

CASES DECIDED

IN THE

COURT OF APPEALS

OF THE

STATE OF NEW YORK

[253 NE3d 1242, 228 NYS3d 509]

THE PEOPLE OF THE STATE OF NEW YORK ex rel. MICHAEL D. NEVILLE, Director, Mental Hygiene Legal Service, on behalf of RALPH S., Appellant, v ERROL D. TOULON, JR., Suffolk County Sheriff, et al., Respondents.

Argued September 11, 2024; decided October 22, 2024

PROCEDURAL SUMMARY

APPEAL, on constitutional grounds, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered April 19, 2023. The Appellate Division modified, on the law and in the exercise of discretion, a judgment (denominated order) of the Supreme Court, Suffolk County (C. Randall Hinrichs, J.), which had denied the petition for a writ of habeas corpus and, in effect, dismissed the proceeding. The modification consisted of (1) deleting the provision of the judgment denying the petition and, in effect, dismissing the proceeding; (2) adding thereto a provision converting the proceeding into an action for a declaratory judgment, deeming the order to show cause to be the summons and the petition to be the complaint; and (3) declaring that the provision of Mental Hygiene Law § 10.11 (d) (4) that directs the court to determine whether there is probable cause to believe that a respondent in a proceeding pursuant to Mental Hygiene Law article 10 is a dangerous sex offender requiring confinement based upon a review of the allegations in a petition for confinement and any accompanying papers does not violate that respondent's federal or state rights to due process. The Appellate Division affirmed the judgment as modified.

People ex rel. Neville v Toulon, 215 AD3d 874, affirmed.

HEADNOTE

Crimes — Sex Offenders — Civil Commitment or Supervision — Dangerous Sex Offender Requiring Confinement — Constitutionality of Probable Cause Hearing

Mental Hygiene Law § 10.11 (d) (4), which permits confinement of a sex offender alleged to have violated conditions of their strict and intensive supervision and treatment (SIST) regimen upon a judicial finding of probable cause to believe that the individual is a “dangerous sex offender requiring confinement” pending a final SIST revocation hearing, is not facially unconstitutional. Though SIST revocation proceedings implicate a diminished physical liberty interest, given the relatively short period of confinement before a final hearing, the minimal benefit of an adversarial proceeding, and the State’s paramount interest in protecting the public, the court’s initial probable cause determination need not take place as part of an adversarial proceeding in order to comport with procedural due process. The procedures outlined in Mental Hygiene Law article 10 appropriately balance the need to safeguard respondents’ due process rights by prioritizing an expeditious probable cause determination with the need to protect the public from those deemed “likely to be a danger to others and to commit sex offenses if not confined to a secure treatment facility” (Mental Hygiene Law § 10.03 [e]).

RESEARCH REFERENCES

By the Publisher’s Editorial Staff

AM JUR 2d Mentally Impaired Persons §§ 127, 138, 147, 148, 150.

McKINNEY’S, Mental Hygiene Law §§ 10.03 (B); 10.11 (d) (4).

NY JUR 2d Penal and Correctional Institutions §§ 45, 50, 54, 55, 57.

ANNOTATION REFERENCE

See ALR Index under Incompetent or Insane Persons.

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POINTS OF COUNSEL

Michael D. Neville, *Mental Hygiene Legal Service*, Garden City (*Timothy M. Riselvato* and *Dennis B. Feld* of counsel), appellant pro se. Mental Hygiene Law § 10.11 (d) (4) is unconstitutional and otherwise impermissible on its face and “as-applied” to appellant. (*Foucha v Louisiana*, 504 US 71; *State of*

New York v Suggs, 31 Misc 3d 1009; *Matter of State of New York v Floyd Y.*, 22 NY3d 95; *People v David W.*, 95 NY2d 130; *Mathews v Eldridge*, 424 US 319.)

Letitia James, Attorney General, New York City (*Kwame N. Akosah, Barbara D. Underwood* and *Matthew W. Grieco* of counsel), for Ann Marie T. Sullivan, respondent. I. Mental Hygiene Law § 10.11 (d) (4) is facially constitutional. (*Dalton v Pataki*, 5 NY3d 243; *Schulz v State of New York*, 84 NY2d 231; *White v Cuomo*, 38 NY3d 209; *Matter of E.S. v P.D.*, 8 NY3d 150; *Mathews v Eldridge*, 424 US 319.) II. Ralph S.’s as-applied challenge is meritless. (*Matter of State of New York v George N.*, 160 AD3d 28; *Matter of State of New York v Jason H.*, 82 AD3d 778; *Matter of State of New York v Donald N.*, 63 AD3d 1391; *People v Goldstein*, 6 NY3d 119; *Cintron v City of New York*, 180 AD3d 602.)

OPINION OF THE COURT

SINGAS, J.

This appeal requires us to examine whether certain provisions of Mental Hygiene Law § 10.11 (d) (4) satisfy procedural due process. Those provisions govern the procedure for the temporary confinement of sex offenders adjudicated to have “mental abnormalities”—but released from confinement to strict and intensive supervision and treatment (SIST)—pending a final SIST revocation hearing. In particular, section 10.11 (d) (4) permits prehearing confinement upon a prompt judicial finding of probable cause to believe that the respondent is a “dangerous sex offender requiring confinement.” We conclude that the current statutory scheme appropriately balances the relevant individual and state interests and provides sufficient process to mitigate the risk of erroneous confinement without a respondent’s participation at the probable cause stage. Thus, we hold that petitioner has failed to demonstrate that Mental Hygiene Law § 10.11 (d) (4) is unconstitutional on its face, or as applied to him.

I.

In 2007, the legislature passed the Sex Offender Management and Treatment Act (SOMTA) creating a program to closely supervise and treat sex offenders who are near release from prison or parole who possess “mental abnormalities” that create a substantial risk of committing new sex crimes (*see* L 2007, ch 7). Pursuant to SOMTA, which is codified as article 10

of the Mental Hygiene Law, every “detained sex offender[’s]”¹ case is reviewed by the Office of Mental Health (OMH), which then refers some offenders to a case review team, which may arrange for psychiatric examination (Mental Hygiene Law § 10.05 [d], [e]). If the case review team determines that the offender is a “sex offender requiring civil management”—meaning they suffer from a “mental abnormality” (*id.* § 10.03 [q])—the case is referred to the Attorney General for possible litigation (*id.* § 10.06 [a]). A “mental abnormality” is “a congenital or acquired condition, disease[,] or disorder that affects the emotional, cognitive, or volitional capacity of a person in a manner that predisposes [them] to the commission of conduct constituting a sex offense and that results in that person having serious difficulty in controlling such conduct” (*id.* § 10.03 [i]).

If the Attorney General concludes that the offender’s case is appropriate for civil management, they may file a petition seeking such management (*id.* § 10.06 [a]). After additional psychiatric evaluation—and within 30 days of filing the petition—the court must hold a hearing to determine “whether there is probable cause to believe that the respondent is a sex offender requiring civil management” (*id.* § 10.06 [g]). If the court finds no probable cause, it must dismiss the petition (*id.* § 10.06 [k]). If probable cause exists, the court must order that the respondent be committed to a treatment facility upon their release from prison or parole and must set a date for trial within 60 days (*id.* §§ 10.06 [k]; 10.07 [a]). At the trial, the Attorney General bears the burden of proving “by clear and convincing evidence [that] the respondent is a detained sex offender who suffers from a mental abnormality” (*id.* § 10.07 [a], [d]).²

If the jury unanimously determines that the Attorney General has sustained their burden, then the court must conduct a separate dispositional hearing to “consider whether the respondent is a dangerous sex offender requiring confinement”—i.e., they “suffer[] from a mental abnormality involving such a strong predisposition to commit sex offenses, and such an inability to control behavior, that the person is likely to be a danger to others and to commit sex offenses if not confined to a

1. This includes any person who is in “care, custody, control, or supervision” with respect to a “sex offense” or “designated felony” (Mental Hygiene Law § 10.03 [g]; *see also* § 10.03 [p] [defining “sex offense”]).

2. The respondent may also waive a jury trial (Mental Hygiene Law § 10.07 [b]).

secure treatment facility” (*id.* § 10.03 [e])—or a “sex offender requiring [SIST]” (*id.* § 10.07 [f]; *see* § 10.03 [r]). If, after the dispositional hearing, the court finds by clear and convincing evidence that an individual meets the criteria in Mental Hygiene Law § 10.03 (e), “then the court shall find the respondent to be a dangerous sex offender requiring confinement,” and “the respondent shall be committed to a secure treatment facility for care, treatment, and control until such time as [the respondent] no longer requires confinement” (*id.* § 10.07 [f]; *see also* § 10.10).

Article 10 requires at least annual evaluation by a psychiatric examiner to determine whether the respondent is currently a “dangerous sex offender requiring confinement” (*id.* § 10.09 [b]). Respondents found to be “dangerous sex offenders requiring confinement” also have the right to annually petition the court for discharge, pursuant to which a court must conduct an evidentiary hearing at which the Attorney General bears the burden of proof (*id.* § 10.09 [a], [d]). Moreover, if OMH determines that a respondent is no longer a “dangerous sex offender requiring confinement,” it must petition the court for discharge or release to SIST (*id.* § 10.09 [e]). “The respondent may at any time petition the court for discharge and/or release to the community under a regimen of [SIST]” (*id.* § 10.09 [f]).

If the court determines that the respondent is not a dangerous sex offender requiring confinement, then the court must release the respondent to SIST. Before release, the Department of Corrections and Community Supervision (DOCCS) recommends supervision requirements that

“may include but need not be limited to, electronic monitoring or [GPS] tracking for an appropriate period of time, polygraph monitoring, specification of residence or type of residence, prohibition of contact with identified past or potential victims, strict and intensive supervision by a parole officer, and any other lawful and necessary conditions that may be imposed by a court” (*id.* § 10.11 [a] [1]).

The court must then enter an order specifying the respondent’s SIST conditions, including supervision requirements and “compliance with a specified course of treatment” (*id.* § 10.11 [a] [2]).

This appeal concerns the initial step in the process for revoking SIST. “If a parole officer has reasonable cause to believe

that” a respondent has violated a SIST condition, or if an “evaluation or report by a treating professional indicat[es] that the person may be a dangerous sex offender requiring confinement,” a parole officer may take the violator into custody and transport them to a facility for a psychiatric evaluation, which must take place within five days (*id.* § 10.11 [d] [1]). Once the violator is taken into custody, DOCCS must “promptly” notify the Attorney General and the Mental Hygiene Legal Service (MHLS), which provides legal representation to article 10 respondents (*id.*). The Attorney General may then petition for confinement or a petition to modify the conditions within five days (*id.* § 10.11 [d] [2]).³ The petition must “be served promptly on the respondent and [MHLS],” and the court must appoint legal counsel to represent the respondent and provide counsel with a copy of the psychiatric evaluation (*id.* § 10.11 [d] [3]). If the Attorney General files a petition seeking confinement,

“then the court shall promptly review the petition and, based on the allegations in the petition and any accompanying papers, determine whether there is probable cause to believe that the respondent is a dangerous sex offender requiring confinement. Upon the finding of probable cause, the respondent may be retained in a local correctional facility or a secure treatment facility pending the conclusion of the proceeding” (*id.* § 10.11 [d] [4]).

Within 30 days of the petition seeking confinement, the court must “conduct a hearing to determine whether the respondent is a dangerous sex offender requiring confinement” (*id.*). At this final revocation hearing—which is conducted in accordance with the same procedures as the initial dispositional hearing—the respondent may offer evidence and present arguments (*id.* §§ 10.07 [f]; 10.11 [d] [4]). “Any failure to commence the hearing within [30 days] shall not result in the dismissal of the petition and shall not affect the validity of the hearing or the determination” (*id.* § 10.11 [d] [4]). “The respondent shall not be released pending the completion of the hearing” (*id.*).

II.

In 2006, Ralph S. was convicted of first-degree sexual abuse and sentenced to a period of incarceration. Prior to his release,

3. If the Attorney General fails to file a petition within this time period, the respondent must be released back to SIST, “but failure to file a petition within such time shall not affect the validity of such petition or any subsequent action” (Mental Hygiene Law § 10.11 [d] [2]).

in 2010, the Attorney General filed a civil management petition pursuant to Mental Hygiene Law article 10 and, after a trial, a jury found that Ralph S. had a “mental abnormality.” After a dispositional hearing, Supreme Court determined that he was a “dangerous sex offender requiring confinement” and ordered him confined. In 2016, Supreme Court determined that Ralph S. no longer required confinement and transferred him to SIST. As conditions of SIST, Ralph S. agreed to, among other things, abstain from using or possessing alcohol, wear an alcohol monitoring bracelet, and not tamper with that bracelet.⁴

In December 2019, Ralph S.’s parole officer charged that, on several occasions that month, Ralph S. had tampered with his alcohol monitoring bracelet to conceal his use of alcohol in violation of his SIST conditions. The parole officer deemed the violations concerning given the connection between his alcohol use and his prior sex offenses, and his failure to be forthcoming regarding his use of alcohol/tampering with the alcohol monitoring device. Ralph S. was taken into custody on December 19. Two days later, an OMH psychologist interviewed Ralph S. while he was in custody with his MHLS counsel present. On December 23, the OMH psychologist issued her report concluding that Ralph S. was a dangerous sex offender requiring confinement based on her diagnoses and the circumstances surrounding Ralph S.’s SIST violation. The report indicated that, given Ralph S.’s reported connection between his alcohol use and his sex offenses, including informing treatment providers that if he began drinking again, he would reoffend, the nature of his SIST violation presented a heightened risk of re-offense.

Five days after he was initially detained, on December 24, the Attorney General filed a petition to revoke Ralph S.’s SIST regimen and transfer him to secure confinement. The violation report and the OMH psychologist’s evaluation report were attached to the petition. The same day, Supreme Court reviewed the petition and accompanying documents and determined that there was probable cause to believe that Ralph S. was a “dangerous sex offender requiring confinement.” The court therefore ordered Ralph S. detained pending a final SIST rev-

4. Before his release, Ralph S. signed a statement affirming that he had reviewed his SIST conditions with the assistance of counsel and agreed to comply.

ocation hearing, which it scheduled for January 15, 2020—28 days after he was taken into custody. His attorney subsequently requested and was granted an adjournment until February 26 to have additional time to obtain an expert report.

On January 31—after his counsel had requested the initial adjournment, but before the adjourn date—Ralph S. filed a habeas corpus proceeding against OMH and DOCCS. He argued that Mental Hygiene Law § 10.11 (d) (4) violates procedural due process because it does not provide notice and an opportunity to be heard on the issue of whether there is probable cause to believe that the individual alleged to have violated their SIST conditions is a dangerous sex offender requiring confinement. At oral argument on the habeas petition, his counsel advanced the same argument. After the hearing, Supreme Court denied the petition, and Ralph S. appealed.⁵

The Appellate Division converted the proceeding to a declaratory judgment action and declared that the relevant statutory provision did not violate Ralph S.’s right to due process (*see* 215 AD3d 874 [2d Dept 2023]). Initially, though the appeal was academic because Ralph S. had been released back to the SIST regimen, the Court determined that conversion to a declaratory judgment action was appropriate because the exception to the mootness doctrine applied (*id.* at 876-877; *see People ex rel. Molinaro v Warden, Rikers Is.*, 39 NY3d 120, 124 n 2 [2022]).⁶ The Court rejected Ralph S.’s facial challenge, concluding that in at least some circumstances, the statute sufficiently protects respondents’ liberty interests from erroneous deprivation and provides them procedural due process (215 AD3d at 879). The Court also rejected his as-applied challenge, insofar as it was preserved (*id.* at 880).

Petitioner appealed as of right (*see* CPLR 5601 [b] [1]).

5. Ralph S. ultimately submitted his independent psychiatric evaluation on March 13. On March 17, the District Administrative Judge for Suffolk County issued an administrative order adjourning all nonessential matters until on or after April 30, 2020, in response to the COVID-19 pandemic. Ralph S.’s SIST revocation hearing was adjourned to, and held on, that date, in conjunction with a hearing on an application by Ralph S. to be released from civil management. After the hearing, the court denied both applications and ordered Ralph S. to return to SIST.

6. On March 29, 2023, Supreme Court discharged Ralph S. from civil management based on an OMH psychologist’s subsequent opinion that Ralph S. no longer had a condition that meets the statutory definition of a mental abnormality.

III.

It is well settled that “[l]egislative enactments are entitled to ‘a strong presumption of constitutionality’ ” (*Dalton v Pataki*, 5 NY3d 243, 255 [2005], quoting *Schulz v State of New York*, 84 NY2d 231, 241 [1994]). “[C]ourts strike them down only as a last unavoidable result” (*Matter of Van Berkel v Power*, 16 NY2d 37, 40 [1965]) after “every reasonable mode of reconciliation of the statute with the Constitution has been resorted to, and reconciliation has been found impossible” (*Matter of Fay*, 291 NY 198, 207 [1943]). A party advancing a facial challenge “bear[s] the burden to demonstrate that in any degree and in every conceivable application, the law suffers wholesale constitutional impairment” (*Cohen v State of New York*, 94 NY2d 1, 8 [1999] [internal quotation marks omitted]).

Regarding the statutory scheme at issue here, it is settled that a state may use civil process to confine a sex offender for treatment of a “‘mental abnormality’ . . . that makes it difficult, if not impossible, for the person to control [their] dangerous behavior” (*Kansas v Hendricks*, 521 US 346, 358 [1997]), upon “proof of serious difficulty in controlling behavior” (*Kansas v Crane*, 534 US 407, 413 [2002]). Due process does not require states to provide supervised release for any sex offender who is found to possess a “mental abnormality” (see *Hendricks*, 521 US at 358). However, “state statutes may create liberty interests that are entitled to the procedural protections of the Due Process Clause of the Fourteenth Amendment” (*Vitek v Jones*, 445 US 480, 488 [1980]). The State does not challenge petitioner’s assertion that release of a sex offender requiring civil management to SIST creates such a liberty interest.

“[T]he Due Process Clauses of the Fifth and Fourteenth Amendments, as expressed by the *Mathews v Eldridge* (424 US 319, 335 [1976]) balancing test, govern the scope of procedural due process” in civil confinement proceedings (*Matter of State of New York v Floyd Y.*, 22 NY3d 95, 103 [2013]). “‘Due process is flexible and calls for such procedural protections as the particular situation demands’ ” (*Mathews*, 424 US at 334, quoting *Morrissey v Brewer*, 408 US 471, 481 [1972] [brackets omitted]). Thus, courts must consider three factors to determine the dictates of due process in a given context: “(1) the private interest of the litigant; (2) the risk of erroneous deprivation in the absence of substitute procedures; and (3) the State’s interest in avoiding additional procedures” (*Floyd Y.*, 22 NY3d at 105). Petitioner contends that an adversarial probable cause

hearing, where an individual is allowed to present evidence and make arguments, is necessary to protect the procedural due process rights of those subject to confinement pending final SIST revocation hearings. We disagree.

A.

“[F]reedom from physical restraint ‘has always been at the core of the liberty protected by the Due Process Clause from arbitrary governmental action’ ” (*Hendricks*, 521 US at 356, quoting *Foucha v Louisiana*, 504 US 71, 80 [1992]; see *Floyd Y*, 22 NY3d at 105). However, at the point of a SIST revocation proceeding, a jury has already determined after trial that the individual possesses a “mental abnormality.” This finding that the respondent has a “condition, disease[,] or disorder” causing them “serious difficulty” in controlling their predisposition toward conduct constituting a sex offense—entails extensive due process safeguards, including requiring a unanimous jury verdict, imposing the heightened standard of proof by clear and convincing evidence, and placing the burden of proof on the Attorney General (Mental Hygiene Law §§ 10.03 [i]; 10.07). Here, our focus is on the limited statutory liberty interest created by the court releasing a respondent to SIST after the jury’s unanimous verdict of “mental abnormality.”

The relevant consideration is the nature of that interest, and the degree to which confinement upon a showing of probable cause infringes on it. At the outset, by statute, a respondent’s release to SIST is expressly subject to revocation upon a determination that the respondent is a “dangerous sex offender requiring confinement.” Moreover, the statute does not contemplate indefinite detention based on the initial probable cause finding. The Mental Hygiene Law provides that a SIST revocation hearing must take place within 30 days of a confinement petition (*id.* § 10.11 [d] [4]).⁷ Thus, we conclude that SIST revocation respondents possess a diminished and temporary physical liberty interest implicated by the court’s probable cause determination.

7. Petitioner also argues that the lack of any enforcement mechanism in the statute for the 30-day requirement violates procedural due process on its face. This does not implicate the provision’s facial constitutionality because the mere possibility of extended delays in some cases does not demonstrate that the statute is unconstitutional in every application, as is necessary for petitioner’s facial challenge to succeed. Thus, this consideration is more appropriately addressed in the context of an as-applied challenge.

B.

Second, the degree to which an adversarial probable cause proceeding would provide additional protection against erroneous probable cause determinations is minimal. At the outset, the statute’s requirement of an independent judicial probable cause finding provides a significant safeguard. To sustain their burden, the Attorney General must present evidence sufficient to support a reasonable belief that the individual has “such a strong predisposition to commit sex offenses, and such an inability to control behavior, that the person is likely to be a danger to others and to commit sex offenses if not confined to a secure treatment facility” (*id.* § 10.03 [e]; *see* § 10.11 [d] [4]). Indeed, courts have held that judicial probable cause determinations provide substantial procedural protection, even absent an opportunity to be heard (*compare Gerstein v Pugh*, 420 US 103, 114 [1975] [holding that an ex parte judicial hearing on the issue of probable cause for pretrial detention under the Fourth Amendment provides “meaningful protection from unfounded interference with liberty”], *with* dissenting op at 20 [contending that an independent judicial probable cause determination does not constitute even “minimal pre-deprivation due process”]). Moreover, a respondent plays some role in the determination, insofar as the psychiatric report that forms the basis for the revocation petition must be prepared based on an interview with the respondent, often with counsel present. And the statutory scheme provides for a respondent’s participation at a full revocation hearing to be held within 30 days of the petition, allowing the respondent to present evidence and raise arguments at a full hearing on the relevant factual and legal issues, at which the state’s burden of proof is considerably higher.⁸

Against this backdrop, the level of added protection an adversarial preliminary hearing would provide is slight and case dependent. Probable cause “does not require the fine resolution of conflicting evidence that a reasonable-doubt or even a preponderance standard demands, and credibility determinations are seldom crucial in deciding whether the evidence supports a reasonable belief” (*Gerstein*, 420 US at 121). Courts are well-equipped to engage in a straightforward probable cause

8. A respondent may also raise such issues pursuant to their right to petition the court for discharge at any time (*see* Mental Hygiene Law § 10.09 [f]).

analysis without adversarial presentation, and there is no evidence that courts frequently make erroneous probable cause determinations without respondents' participation. Petitioner has not otherwise demonstrated that the current scheme leads to incorrect probable cause findings, or that a respondent's participation would meaningfully reduce the instance of such errors.

Conversely, allowing a respondent's full participation in an initial hearing could undermine the statute's requirement of an expeditious probable cause determination. In the present case, the statutory procedure enabled Supreme Court to make a probable cause determination the very same day the Attorney General filed the SIST revocation petition, ensuring that Ralph S. was afforded court process within five days of his initial detention. Affording respondents an opportunity to collect and present evidence and file papers would inevitably delay such determinations, resulting in a longer period of confinement without the benefit of this initial process.⁹

C.

The final factor—the State's interest in avoiding additional procedures—weighs heavily in the government's favor. The State's interest in protecting the public is significant. Upon a

9. The dissent admittedly ignores petitioner's arguments as to the process required, instead creating its own rule allowing respondents to file papers, but only within the five-day period the Attorney General has to file a SIST revocation petition (*compare* dissenting op at 24 ["due process enshrines the right of an at-liberty offender accused of a SIST violation to, at a minimum, challenge, in writing, the State's position on probable cause within the five-day period during which, if the State chooses to seek confinement, the Mental Hygiene Law requires the State to file such petition"], *with* reply brief for petitioner at 2 ["balancing of interests clearly militates in favor of providing basic due process protections at a preliminary probable cause hearing"], 19 n 10 ["Unlike the State, respondents do not already have psychological reports prepared. That such time crunches are possible only emphasizes the need for an initial preliminary hearing"], 30 ["A preliminary hearing is needed to assure that the finding of a violation will be based on verified facts and informed by an accurate knowledge of the behavior" (internal quotation marks and ellipses omitted)]; oral argument tr at 8 ["Someone who's on parole and they are alleged to have violated parole, they get a preliminary hearing on the need for pre-hearing detention At that hearing, they get to present evidence. They get to confront witnesses. That's exactly the situation that we would ask for here"]). The more limited procedure concocted by the dissent faces the glaring issue of the right being dependent on how long it takes for the Attorney General to file their petition. Indeed, the revocation petition in this case was filed exactly five days after Ralph S. was initially detained.

SIST violation and a psychiatric examiner's determination that an individual is a dangerous sex offender requiring confinement, the State has a strong interest in moving expeditiously to ensure that the respondent, who has been shown to be a serious threat to public safety, is removed from situations where they may harm members of the public (*see* Senate Introducer's Mem in Support, Bill Jacket, L 2007, ch 7 at 19 ["The compelling need is to protect residents of this state from sex criminals whose recidivism is predictable and uncontrollable. . . . (T)here is a small group who, because of a mental abnormality, cannot control their sexually violent behavior even when subject to strict supervision"])). Requiring adversarial proceedings prior to confinement, even after a psychiatric professional has determined that a respondent is a dangerous sex offender requiring confinement, could pose a serious risk to the public. Conversely, as explained above, confining a respondent pending the outcome of preliminary adversarial proceedings would result in longer confinement before any initial process, undermining the State's "interest in knowing early on whether its grounds for pursuing confinement are mistaken or unfounded" (dissenting op at 23).

D.

Balancing the *Mathews* factors, though SIST revocation proceedings implicate a diminished physical liberty interest, the relatively short period of confinement before a final hearing, the minimal benefit of an adversarial proceeding, and the State's paramount interest in protecting the public lead us to reject petitioner's contention that the court's initial probable cause determination must take place as part of an adversarial proceeding in order to comport with procedural due process. The procedures outlined in article 10 appropriately balance the need to safeguard respondents' due process rights by prioritizing an expeditious probable cause determination with the need to protect the public from those deemed "likely to be a danger to others and to commit sex offenses if not confined to a secure treatment facility" (Mental Hygiene Law § 10.03 [e]). Thus, petitioner has failed to sustain his burden to demonstrate the statute's facial unconstitutionality.¹⁰

10. To the extent petitioner urges us to treat initial SIST revocation proceedings like preliminary parole revocation proceedings at which parolees have a limited right to appear, provide evidence, and question witnesses

(n. cont'd)

IV.

In addition to his facial challenge, petitioner contends that Mental Hygiene Law § 10.11 (d) (4) violated procedural due process as applied to him. His contention that delay beyond the 30-day statutory window contributed to a due process violation is unpreserved for our review, because it was not raised in his petition or before Supreme Court. His remaining arguments, to the extent preserved, are unavailing.

Accordingly, the order of the Appellate Division should be affirmed, without costs.

RIVERA, J. (dissenting). Our Federal and State Constitutions impose procedural constraints on government deprivations of life, liberty and property (US Const Amend XIV; NY Const, art I, § 6; *see also Goldberg v Kelly*, 397 US 254, 262 [1970]). At the core of these safeguards is an individual's right to pre-deprivation notice and an opportunity to be heard to challenge the factual and legal bases of the government's proposed action "‘at a meaningful time and in a meaningful manner’" (*Mathews v Eldridge*, 424 US 319, 333 [1976], quoting *Armstrong v Manzo*, 380 US 545, 552 [1965]). On its face, Mental Hygiene Law § 10.11 (d) (4) violates that constitutional guarantee by authorizing courts to, in all cases, reconfine sex offenders living in the community under "strict and intensive supervision and treatment" (SIST) (*see* Mental Hygiene Law § 10.03 [q]), based on an *ex parte* finding of probable cause, until the court later holds an adversarial hearing on the State's petition to revoke the offender's community placement.

Under *Mathews*, the familiar factors to determine what process is due when the State seeks to revoke SIST all weigh in favor of offenders accused of breaching SIST conditions and against the facial validity of the statute. First, each offender has a liberty interest in remaining in the community. Second, the State's unchallenged, one-sided presentation supporting its assertion of probable cause unduly heightens the risk of erroneous confinement. Third, precluding offenders' early

relevant to a probable cause determination (*see Morrissey*, 408 US at 487), we note that SIST revocation proceedings bear important differences—including a prior jury finding of "mental abnormality" and heightened public safety concerns—that counsel against a mechanical application of this parole-revocation precedent in the present case. While the dissent accuses us of "ignor[ing]" *Morrissey* (dissenting op at 19), it clearly also recognizes that there are distinctions, given that it declines to grant SIST revocation respondents the same procedural safeguards in preliminary hearings (*see* dissenting op at 23-24).

participation in the revocation proceeding—while they are already detained—undermines the State’s interest in public safety by disrupting offenders’ orderly rehabilitation and reentry into the community. By this stage in the proceeding, there has been a judicial determination that the offender is not a “dangerous sex offender requiring confinement” (Mental Hygiene Law §§ 10.03 [e]; 10.07 [f]) and, indeed, an offender’s written submission may assist the court in identifying possible factual errors and legal missteps in the State’s arguments. Therefore, Mental Hygiene Law § 10.11 (d) (4) is unconstitutional on its face.

I.

In 2016, Supreme Court concluded that petitioner—having previously been convicted of sex offenses and found to have a “mental abnormality” as defined by Mental Hygiene Law article 10—was not a “dangerous sex offender requiring confinement” (*id.* § 10.07 [f]). The law therefore required the court to order his release to SIST, subject to court-ordered conditions. Petitioner sought termination of his SIST conditions under Mental Hygiene Law § 10.11 (f) sometime in fall 2019. In December 2019, before Supreme Court rendered a decision on that request, petitioner was taken into custody based on his parole officer’s allegations that he violated certain alcohol-related SIST conditions. Within five days, in accordance with Mental Hygiene Law § 10.11 (d) (2), the State filed an *ex parte* petition to revoke petitioner’s SIST. The State alleged that he violated the conditions by consuming alcohol and tampering with an alcohol-detection device and that this, coupled with the results of a psychiatric examination conducted during the five-day interim, established probable cause that he was a dangerous sex offender requiring both revocation of his SIST placement and confinement. After several adjournments and while petitioner was still in custody, Supreme Court held the statutorily-mandated hearing on April 30, 2020. Two weeks later, the court concluded that the State failed to establish grounds to revoke petitioner’s SIST placement and ordered him released back to SIST. On June 22, 2020, the State filed a second petition to detain petitioner and the court again ordered that he remain in custody based on probable cause that he consumed alcohol in violation of his SIST conditions. Supreme Court subsequently declined the State’s revocation petition and ordered petitioner released back to SIST. In 2023, Supreme

Court granted petitioner's request to terminate SIST, finding that petitioner did not suffer from a "mental abnormality" as defined in Mental Hygiene Law § 10.03 (i) and thus was no longer subject to article 10.

During the pendency of the State's first revocation petition, petitioner sought a writ of habeas corpus, challenging the constitutionality of Mental Hygiene Law § 10.11 (d) (4) on the ground that he was denied notice and an opportunity to be heard on whether there was probable cause to support his confinement pending conclusion of the proceeding. Supreme Court denied the writ and the Appellate Division modified to convert the matter to a declaratory judgment action and, as modified, affirmed (215 AD3d 874 [2d Dept 2023]).

II.

Petitioner mounts both a facial and an as-applied constitutional challenge to Mental Hygiene Law § 10.11 (d) (4). Petitioner's as-applied challenge to the duration of his confinement beyond the 30 days provided in section 10.11 (d) (4) is unpreserved because he failed to assert this claim in Supreme Court despite having had an opportunity to do so (*see e.g. Mouradian v Astoria Fed. Sav. & Loan*, 91 NY2d 124, 131 n 4 [1997]). Petitioner's facial challenge to this same provision is without merit. Contrary to his contention, the text does not authorize indefinite detention. Indeed, petitioner could have sought—but did not seek—mandamus relief to compel the court's compliance with the statutory deadline (*see Matter of Legal Aid Socy. of Sullivan County v Scheinman*, 53 NY2d 12, 16 [1981] ["Mandamus lies to compel the performance of a purely ministerial act where there is a clear legal right to the relief sought"]).

Petitioner's remaining facial challenge to the statutorily-mandated Mental Hygiene Law § 10.11 (d) (4) ex parte process has merit. "Normally, a plaintiff bringing a facial challenge must establish that no set of circumstances exists under which the [law] would be valid, or show that the law lacks a plainly legitimate sweep" in order to prevail (*Americans for Prosperity Foundation v Bonta*, 594 US 595, 615 [2021] [internal quotation marks and citations omitted]). Petitioner has met this standard. As I discuss below, by its terms, Mental Hygiene Law § 10.11 (d) (4) establishes an ex parte mechanism for the State to seek extended prehearing confinement, and therefore the law uniformly denies all offenders on SIST an opportunity

to be heard on the merits in advance of the court's probable cause determination.

III.

The majority adequately sets out the relevant Mental Hygiene Law article 10 framework and the specific procedures challenged on this appeal. However, it fundamentally misconstrues and misapplies elementary constitutional principles.

A.

Mathews sets forth the legal standard by which to determine what process is due at the initial probable cause stage of the State-initiated SIST revocation proceeding (*see* majority op at 9-10, citing 424 US at 335). Under *Mathews*, we balance the following three factors to determine what procedure is due in conjunction with the exercise of governmental power:

“First, the private interest that will be affected by the official action; second, the risk of an erroneous deprivation of such interest through the procedures used, and the probable value, if any, of additional or substitute procedural safeguards; and finally, the Government’s interest, including the function involved and the fiscal and administrative burdens that the additional or substitute procedural requirement would entail” (424 US at 335).

B.

The first factor weighs heavily in petitioner’s favor because he has a constitutionally protected interest in his continued liberty on SIST. Although the United States Supreme Court has concluded that a dangerous sex offender may be civilly confined and the government need not provide a community-based alternative (*see Kansas v Crane*, 534 US 407, 413 [2002]), the New York Legislature established such a community-based alternative to civil confinement when it adopted the Sex Offender Management and Treatment Act of 2007 (SOMTA) (*see* L 2007, ch 7, § 2). The scheme’s two-tiered system requires confinement of dangerous sex offenders and community placement of all others (*see* Mental Hygiene Law § 10.07 [f]). In enacting SOMTA, New York has created for offenders on SIST a constitutionally-protected liberty interest subject to all the protections inherent in that interest (*see Wilkinson v Austin*, 545 US 209, 221 [2005] [observing that “(a) liberty interest

. . . may arise from an expectation or interest created by state laws or policies”]; *Sandin v Conner*, 515 US 472, 483-484 [1995] [“States . . . create liberty interests which are protected by the Due Process Clause”]). Under SOMTA, upon a judicial finding that a sex offender has a mental abnormality as defined in Mental Hygiene Law § 10.03 (e), the court must determine if the offender is a dangerous sex offender, in which case the court must order civil confinement in a secure treatment facility (Mental Hygiene Law § 10.07 [f]). Where the court makes no such finding, it “shall” order a SIST disposition along with applicable conditions (*id.*). This disposition reflects the legislative finding that, for a person who is not a dangerous sex offender requiring confinement, “it can be effective and appropriate to provide treatment in a regimen of [SIST]”; and ultimately “[t]he goal of a comprehensive system should be to protect the public, reduce recidivism, and ensure offenders have access to proper treatment” (*id.* § 10.01 [c]).

“[C]ivil commitment for *any purpose* constitutes a significant deprivation of liberty that requires due process protection” (*Addington v Texas*, 441 US 418, 425 [1979] [emphasis added]). The majority acknowledges that, for petitioner and other offenders on SIST, this interest is “significant,” but then asserts that the interest is “diminished and temporary” or “limited” (majority op at 10). Having thus characterized the interest, the majority next concludes that this supposedly lesser grade of liberty is sufficiently protected by the petitioner’s participation in the later, adversarial hearing, even though the petitioner is confined throughout the proceeding. This analysis suffers from several fatal flaws.

First, the majority points to the initial finding of a “mental abnormality” under Mental Hygiene Law § 10.03 (i) as a basis for diluting an offender’s interest in remaining at liberty while a court determines whether they violated a SIST condition (*see* majority op at 10). That premise is analytically misplaced. A prior “mental abnormality” is a precondition to the court’s disposition on the proper placement of such offender: confinement or life in the community on SIST (*see* Mental Hygiene Law § 10.01 [f]). Upon that disposition, offenders placed on SIST, such as petitioner, acquire an interest in their “continued liberty” (*Morrissey*, 408 US at 482)—in other words, remaining in the community—and, in turn, that is the liberty interest at issue in this appeal (*Kansas v Hendricks*, 521 US 346, 356 [1997] [“(F)reedom from physical restraint ‘has always been at the

core of the liberty protected by the Due Process Clause from arbitrary governmental action’”], quoting *Foucha v Louisiana*, 504 US 71, 80 [1992]). Simply put, the prior finding of an offender’s “mental abnormality” has no bearing on the gravity of their interest in continued personal liberty.

Second, the majority completely ignores the United States Supreme Court’s analysis in *Morrissey* (408 US 471). Although *Morrissey* involved parolees, its reasoning applies with equal—if not greater—force to offenders on SIST. Both classes of individuals have been convicted of a crime and released into the community subject to conditions intended to further rehabilitation and protect the public (see *Matter of Silmon v Travis*, 95 NY2d 470, 477 [2000] [noting that “the Board (of Parole) is empowered to deny parole where it concludes that release is incompatible with the welfare of society” and that “there is a strong rehabilitative component in (parole) that may be given effect by considering remorse and insight”]; Mental Hygiene Law § 10.01 [c] [“The goal of (SOMTA) should be to protect the public, reduce recidivism, and ensure offenders have access to proper treatment”])). Both have a reliance interest based on the State’s “implicit promise that [their release into the community] will be revoked only if [they] fail[] to live up to the [supervisory] conditions” (*Morrissey*, 408 US at 482). And both have strong interests in their “continued liberty” (*id.*). Indeed, those interests are effectively indistinguishable from one another when it comes to “[t]he fundamental requirement of due process[:] . . . the opportunity to be heard” (*Mathews*, 424 US at 333).

“The liberty of a parolee enables [them] to do a wide range of things open to persons who have never been convicted of any crime. The parolee has been released from prison based on an evaluation that [they] show[] reasonable promise of being able to return to society and function as a responsible, self-reliant person. Subject to the conditions of [their] parole, [they] can be gainfully employed and [are] free to be with family and friends and to form the other enduring attachments of normal life. Though the State properly subjects [them] to many restrictions not applicable to other citizens, [their] condition is very different from that of confinement in a prison. [They] may have been on parole for a number of years and may be living a relatively

normal life at the time [they are] faced with revocation. The parolee has relied on at least an implicit promise that parole will be revoked only if [they] fail[] to live up to the parole conditions. In many cases, the parolee faces lengthy incarceration if [their] parole is revoked” (*Morrissey*, 408 US at 482 [footnotes omitted]).

Thus, “the liberty of a parolee, although indeterminate, includes many of the core values of unqualified liberty and its termination inflicts a ‘grievous loss’ on the parolee and often on others” (*id.*). We could easily substitute “offender on SIST” for “parolee” in this analysis and reach the same conclusion.

Most troubling is that the majority’s view of petitioner’s liberty interest as unworthy of even minimal pre-deprivation due process. That view harkens back to the long-rejected classification of indeterminate liberty as a mere governmental privilege subject to governmental deprivation without protection, as opposed to a constitutional right whose revocation requires heightened procedural safeguards. Again, *Morrissey* is on point here in that it discarded these labels because “[b]y whatever name, the liberty is valuable and must be seen as within the protection of the Fourteenth Amendment” (*id.*).

C.

The second *Mathews* factor weighs squarely in the offenders’ favor. With respect to this factor, the Court must consider (1) “the risk of an erroneous deprivation” of a SIST offender’s freedom from imprisonment “through the procedures used,” and (2) “the probable value, if any, of additional or substitute procedural safeguards” (*Mathews*, 424 US at 335). “The only interest to be considered at this part of the *Mathews* analysis is that of the detained individuals—not the government” (*Black v Decker*, 103 F4th 133, 152 [2d Cir 2024], citing *Hamdi v Rumsfeld*, 542 US 507, 530 [2004]). The risk of needless detention in this context is far from “minimal,” as the majority argues (majority op at 11). Section 10.11 (d) of the Mental Hygiene Law allows only for a one-sided presentation from the State at the initial probable cause stage; offenders are given no opportunity to be heard on whether they will remain imprisoned during the pendency of the proceedings (*see* Mental Hygiene Law § 10.11 [d] [1], [2], [4]). Of course, the State is not a neutral party in these proceedings. Rather, the State acts an advocate bringing to bear all its resources to persuade the

court to find probable cause that the offender is a danger and should be confined. This unchallenged argumentation is fundamentally at odds with the principle that the “fundamental instrument for judicial judgment” is “an adversary proceeding in which both parties may participate” (*Carroll v President and Comm’rs of Princess Anne*, 393 US 175, 183 [1968]). The ex parte process mandated by Mental Hygiene Law § 10.11 (d) (4), in turn, creates a high risk that the court will find probable cause based on incomplete or even inaccurate information, resulting in a wrongful deprivation of the offender’s personal liberty.

The majority unpersuasively attempts to minimize the potential for error. Citing *Gerstein v Pugh*, it asserts that “judicial probable cause determinations provide substantial procedural protection, even absent an opportunity to be heard” (majority op at 11, citing 420 US 103, 120 [1975]). Reliance on *Gerstein* is misplaced because in New York, a criminal defendant detained pretrial always “may make an application for recognizance, release under non-monetary conditions, bail, a reduction of bail, or imposition of non-monetary conditions in conjunction with bail or a reduction of bail” (CPL 510.20 [1]). “Upon such application, the principal must be accorded an opportunity to be heard, present evidence and to contend that an order” for bail, release, etc. should issue (CPL 510.20 [2] [b]). Section 10.11 (d) (4), by contrast, extends no such opportunities to offenders detained ex parte pending completion of a SIST revocation proceeding (*see* Mental Hygiene Law § 10.11 [d] [4]).

Second, the majority essentially acknowledges that an offender’s participation assists in the judicial decision-making process because the offender may bring factual errors to the court’s attention and set forth legal arguments in opposition to the State (*see* majority op at 11-12). Nevertheless, the majority holds this factor *against* offenders accused of SIST violations, postulating in oblique and confusing fashion that allowing them an opportunity to be heard on the question of probable cause essentially may delay the court’s determination beyond the initial five-day period (*see id.* at 12). There are glaring problems with this holding. For starters, the majority’s apparent worry about denying offenders “initial process” is curious, given that its holding denies offenders a right be heard before the probable-cause determination (*id.*). The majority also misconstrues the statute’s plain text. Under Mental Hygiene Law § 10.11, the court must hold the revocation upon the

State's filing of its petition for confinement. In other words, the 30-day clock commences with the State's filing, not the court's probable cause determination (*see* Mental Hygiene Law § 10.11 [d] [2], [4]). It is therefore unclear how permitting offenders to be heard on the question of probable cause in written form "would . . . result[] in a longer period of confinement" in toto even on the majority's speculative assumption that offenders' participation would delay the probable-cause determination beyond five days (*see* majority op at 12; Mental Hygiene Law § 10.11 [d] [2]). The majority's holding thus turns due process on its head. Consider that nothing in Mental Hygiene Law § 10.11 (d) *prohibits* courts from allowing offenders to be heard on probable cause yet, under the majority's view, a court would *violate* rather than respect an offender's due process rights by extending to them an opportunity to be heard simply because their submission might cause some delay.

Notably, the majority appears to acknowledge that an offender's participation may expose flaws in the State's position and that careful judicial scrutiny may take more time when the State's arguments are opposed. But careful informed consideration of the issues is the work of the court and precisely what due process requires. Continued confinement during the time it takes the court to resolve the individual's challenge is always a risk the individual must assess before embarking on that challenge and due process of course vests any strategic choice to assume such risk in the individual, not the government. In any event, "[t]he need for expediency cannot overshadow the fact that a critical decision was being made about [petitioner] that determined his potential to commit further sex offenses" (*People v David W.*, 95 NY2d 130, 139 [2000]; *see also Wolff v McDonnell*, 418 US 539, 589 [1974, Marshall, J., concurring in part & dissenting in part] [noting that delays "are small costs to bear to achieve significant gains in procedural fairness"]).

The majority adopts a view contrary to general practice. Indeed, prehearing *ex parte* deprivations are not the norm, certainly not where liberty is at stake (*e.g. Morrissey*, 408 US at 485-486). "Due process requires that a person whose constitutional rights are affected by government action is entitled to be heard and it makes obvious sense in most cases 'to minimize substantially unfair or mistaken deprivations' by insisting that the hearing be granted at a time when the deprivation can still be prevented" (*Matter of Lee TT. v Dowling*, 87 NY2d 699, 713 [1996], citing *Fuentes v Shevin*, 407 US 67, 79-82 [1972]).

The State’s argument that the risk of error is low because the probable cause standard is minimal and easily met is nothing more than a bald assertion that the State is always right. But, if the State were always right, then there would be no need for an independent judicial determination whether the State has carried its burden both at the probable cause stage and any subsequent consideration of the State’s petition for confinement.¹

D.

As for the third factor—the State’s interest in a proceeding which denies *any* opportunity for the offender to be heard before the court’s probable cause determination—the majority concludes that this factor should be weighed on the State’s side. The majority asserts that because the State has an interest in public safety it must act expeditiously (*see* majority op at 12-13). True enough, but the majority ignores an obvious and significant fact: the petitioner has been arrested and is in custody when the State submits its petition and during the pendency of the court’s probable cause determination (Mental Hygiene Law § 10.11 [d] [4]). The majority fails to explain how an opportunity for the petitioner to be heard in opposition to the State’s position on probable cause places the public at risk when, at that point, the petitioner is already confined.

Significantly, the majority narrowly defines the State’s interest, failing to acknowledge that the State also has interests in: (1) an offender’s effective rehabilitation on SIST, which confinement frustrates; and (2) a timely and accurate determination regarding whether an offender’s situation has changed such that they have become a public danger requiring civil confinement. Those interests are furthered by notice and opportunity for the offender to be heard on the probable cause petition. The State has no interest in the erroneous deprivation of an offender’s liberty and every interest in knowing early on whether its grounds for pursuing confinement are mistaken or unfounded. Notably, the administrative and fiscal impacts on the State are de minimis: the work falls on the offender to respond to the State’s allegations and the court to consider the petitioner’s

1. Indeed, as this very case and others demonstrate, the State sometimes fails to meet its ultimate burden of showing by clear and convincing evidence that the offender is “unable to govern [their] sexual conduct” (*Matter of State of New York v Michael M.*, 24 NY3d 649, 659 [2014]; *e.g. Matter of State of New York v George N.*, 160 AD3d 28, 33-34 [4th Dept 2018]).

written submission when making its probable cause determination. In other words, “the fiscal and administrative burdens imposed by requiring notice and opportunity to be heard are not prohibitive and are not so significant as to warrant limiting defendant to the procedures the Legislature provided” (*David W.*, 95 NY2d at 139). The Constitution demands more.

Highlighting the majority’s radical departure from these bedrock principles of procedural due process is the minimal process required here. Petitioner does not, for example, expressly claim a constitutional right to be present at a full-blown adversarial hearing at the time of the offender’s detention by their parole officer and before the court determines whether to retain an offender’s confinement pending final resolution of the State’s petition. Contrary to the majority’s suggestion, regardless of what petitioner requests, it is for us to determine what due process requires. And, here, due process enshrines the right of an at-liberty offender accused of a SIST violation to, at a minimum, challenge, in writing, the State’s position on probable cause within the five-day period during which, if the State chooses to seek confinement, the Mental Hygiene Law requires the State to file such petition (*see* Mental Hygiene Law § 10.11 [d] [2]).²

Since all of the *Mathews* factors support petitioner, and Mental Hygiene Law § 10.11 (d) (4) unambiguously codifies an *ex parte* probable cause mechanism that uniformly denies offenders accused of SIST violations a right to be heard, this is an easy case. Just as the *Morrissey* Court concluded that parolees are entitled to notice and an opportunity to be heard close to the time of their arrest for a parole violation (*see* 408 US at 485-486), the same should be true for offenders on SIST.

2. The majority’s criticism of my analysis as one that “ignores petitioner’s arguments as to the process required” and for “creating its own rule” (majority op at 12 n 9) is mistaken. The majority overreads petitioner’s position, which does not necessarily require “full participation in an initial hearing” (*id.* at 12). More fundamentally, the majority forgets that appellate courts have a responsibility to define the parameters of what due process requires notwithstanding a party’s overbroad interpretation of the law. In concluding that due process here compels at least a “more limited procedure” than what petitioner might prefer—written submissions versus a full in-person hearing—I have not “concocted” a rule, but have faithfully applied the Due Process Clause—“an uncertain enterprise which must discover what ‘fundamental fairness’ consists of in a particular situation by first considering any relevant precedents and then by assessing the several interests that are at stake” (*Lassiter v Department of Social Servs. of Durham Cty.*, 452 US 18, 24-25 [1981]).

Due process encompasses each offender's right to challenge the State and argue against a probable cause finding (*see* Mental Hygiene Law § 10.11 [d] [2]).

IV.

The facts and procedural history of petitioner's case undermine the majority's analysis at every step. Petitioner was released to SIST only after a judicial determination that he was not a dangerous sex offender requiring confinement but rather the type of offender for whom it was "effective and appropriate to provide treatment in a regimen of [SIST]" (Mental Hygiene Law § 10.01 [c]). Following two revocation petitions, during which petitioner was in custody for months each time, the court twice concluded that the State failed to establish that he should be confined. Both times before coming to that same conclusion, however, the same court found—based on the State's *ex parte* submission—that there was probable cause to believe that petitioner should be confined. Only following adversarial hearings during which petitioner could contest the State's arguments and present his own evidence did the court deem confinement inappropriate. We will never know if a submission by petitioner would have led the court to hold that there was no probable cause to revoke SIST. But due process forbids such uncertainty when personal liberty is at stake and these minimal safeguards would avoid erroneous deprivations of liberty without any negative impact on public safety.

Judges GARCIA, CANNATARO, TROUTMAN and HALLIGAN concur. Judge RIVERA dissents in an opinion, in which Chief Judge WILSON concurs.

Order affirmed, without costs.

[254 NE3d 606, 229 NYS3d 62]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JORGE
BAQUE, Appellant.

Argued September 12, 2024; decided October 24, 2024

PROCEDURAL SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered November 23, 2022. The Appellate Division affirmed a judgment of the Supreme Court, Queens County (Richard L. Buchter, J.), which had convicted defendant, upon a jury verdict, of criminally negligent homicide and endangering the welfare of a child.

People v Baque, 210 AD3d 1000, affirmed.

HEADNOTES**Crimes — Appeal — Intermediate Appellate Courts — Weight of Evidence Review — Circumstantial Evidence Rule**

1. In conducting a weight of the evidence review, the Appellate Division will ask whether the case is based upon purely circumstantial evidence. To be satisfied that the jury was justified in finding guilt beyond a reasonable doubt in a circumstantial evidence case, the Appellate Division must satisfy itself that the inference of guilt is the only one that can fairly and reasonably be drawn from the facts, and that the evidence excludes beyond a reasonable doubt every reasonable hypothesis of innocence. To the extent lower courts have suggested that the circumstantial evidence rule has no application on weight of the evidence review (*see e.g. People v Truitt*, 213 AD3d 1145, 1147 [3d Dept 2023]), they should not be followed.

Crimes — Appeal — Intermediate Appellate Courts — Proper Weight of Evidence Review of Conviction Based on Circumstantial Evidence

2. In defendant's prosecution for killing his five-month-old daughter by violently shaking her, the Appellate Division properly conducted a weight of the evidence review of defendant's conviction based solely on circumstantial evidence. The Appellate Division's decision grappled with the circumstantial evidence presented to the jury, including that defendant was the last person with the victim before she was found dead; that the victim's cause of death was severing of her cervical nerves, which caused her to stop breathing and die within minutes; and that her injuries were caused by violent, forceful shaking. Finally, it drew an inference of guilt proved beyond a reasonable doubt, concluding that because the victim lost consciousness and died after defendant cared for her, it was reasonable for the jury to conclude beyond a reasonable doubt that defendant violently and forcefully shook her, causing her death. The same tenets that the jury applies to circumstantial evidence during its deliberations also apply on weight of the evidence review, and the Appellate Division's reasoning here did not manifest a lack of application of

the proper standard. Moreover, given the Appellate Division's reference to Court of Appeals weight of the evidence precedent, as well as to its statutory obligation under CPL 470.15 (5) to determine, based on the facts, whether a verdict of conviction was against the weight of the evidence, the Appellate Division did not improperly apply a legal sufficiency analysis rather than a weight of the evidence review.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Appellate Review § 583; AM JUR 2d Homicide §§ 79–82, 90.
CARMODY-WAIT 2d Appeals in Criminal Cases § 207:144.
MCKINNEY'S, CPL 470.15 (5).
NY JUR 2d Criminal Law: Procedure §§ 3691, 3706; NY JUR 2d Criminal Law: Substantive Principles and Offenses §§ 548, 579.

ANNOTATION REFERENCE

See ALR Index under Appeal and Error; Negligent Homicide.

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POINTS OF COUNSEL

Patricia Pazner, Appellate Advocates, New York City (Sean H. Murray of counsel), for appellant. I. The Appellate Division must apply the circumstantial-evidence rule when it weighs the evidence in a case where the defendant was convicted solely on the basis of circumstantial evidence. (*Jackson v Virginia*, 443 US 307; *People v Bleakley*, 69 NY2d 490; *People v Kennedy*, 47 NY2d 196; *People v Benzinger*, 36 NY2d 29; *Shepherd v People*, 19 NY 537; *People v Lewis*, 275 NY 33; *People v Reed*, 22 NY3d 530; *People v Fitzgerald*, 156 NY 253; *People v Barnes*, 50 NY2d 375; *People v Burke*, 62 NY2d 860.) II. In the alternative, this case should be remanded to the Appellate Division because that Court applied the wrong standard of review when weighing the evidence. (*People v Bleakley*, 69 NY2d 490.)

Melinda Katz, District Attorney, Kew Gardens (Charles T. Pollak and John M. Castellano of counsel), for respondent. Defendant has failed to show that the Appellate Division applied

an incorrect legal standard and, as such, no further review is available. (*People v Truitt*, 213 AD3d 1145; *People v Lendof-Gonzalez*, 36 NY3d 87; *People v Delamota*, 18 NY3d 107; *People v Kancharla*, 23 NY3d 294; *People v Danielson*, 9 NY3d 342; *People v Acosta*, 80 NY2d 665; *People v Hampton*, 21 NY3d 277; *People v Moreno*, 70 NY2d 403; *People v Brown*, 24 NY2d 168; *People v Cabrera*, 137 AD3d 707.)

OPINION OF THE COURT

HALLIGAN, J.

This case requires us to determine whether the Appellate Division properly conducted a weight of the evidence review of a conviction based solely on circumstantial evidence. Because the Appellate Division’s opinion does not manifest a failure to apply the correct legal principle, we affirm.

I.

Jorge Baque’s five-month-old daughter was found unresponsive in her crib at 6:30 a.m. on July 30, 2016. Despite efforts to resuscitate her, she was declared dead. An autopsy revealed that the victim had sustained injuries consistent with abusive head trauma and violent shaking. Baque was arrested and charged with manslaughter in the second degree and endangering the welfare of a child.

At trial, the People relied solely on circumstantial evidence, including testimony establishing that the defendant was the last person with the victim before she was found dead, that the victim died from cervical nerve root tearing which prevented her from breathing, and that she would have died within minutes of receiving her injuries. There was no evidence that anyone saw the defendant shake or hit the victim. The trial court gave the Criminal Jury Instruction circumstantial evidence charge without objection. This instruction tells the jury to determine “what facts, if any, have been proven beyond a reasonable doubt, then . . . what inferences, if any, can be drawn from those facts,” and further that “it must appear that the inference of guilt is the only one that can fairly and reasonably be drawn from the facts, and that the evidence excludes beyond a reasonable doubt every reasonable hypothesis of innocence” (CJI2d[NY] Circumstantial Evidence—Entire Case, https://nycourts.gov/judges/cji/1-General/CJI2d.Circumstantial_Evidence.pdf [last accessed Oct. 1, 2024]). The defendant was convicted of criminally negligent homicide and endangering the welfare of a child.

The defendant appealed, arguing that his conviction was against the weight of the evidence. The Appellate Division affirmed (210 AD3d 1000 [2d Dept 2022]). A Judge of this Court granted leave to appeal (39 NY3d 1077 [2023]), and we now affirm.

II.

In a case that involves solely circumstantial evidence, the ultimate determination of guilt necessarily rests on inference. This type of reasoning differs from the credibility determinations “for which the jury is superbly suited” (*People v Kennedy*, 47 NY2d 196, 201 [1979]). Although circumstantial evidence is no less reliable than direct evidence (*id.*), a case that rests purely on circumstantial evidence presents a unique risk “that the trier of facts may leap logical gaps in the proof offered and draw unwarranted conclusions based on probabilities of low degree” (*People v Benzinger*, 36 NY2d 29, 32 [1974]).

As we have explained on numerous occasions, the circumstantial evidence instruction mitigates this risk. It requires the jury to test its inferences by ensuring that “the inference of guilt is the only one that can fairly and reasonably be drawn from the facts, and that the evidence excludes beyond a reasonable doubt every reasonable hypothesis of innocence” (*People v Sanchez*, 61 NY2d 1022, 1024 [1984]). The jury must ask itself “whether common human experience would lead a reasonable [person], putting [their] mind to it, to reject or accept the inferences asserted for the established facts” (*Benzinger*, 36 NY2d at 32, quoting *People v Borrero*, 26 NY2d 430, 435 [1970]). Proper application of the instruction by the jury does not impose “a greater burden of proof than the traditional ‘beyond a reasonable doubt’ formulation”; rather, it “merely draws attention to the rigorous function which must be undertaken by the finder of fact when presented with a case of purely circumstantial evidence” (*People v Barnes*, 50 NY2d 375, 380 [1980]).

The question before us is whether the Appellate Division erred as a matter of law in conducting its review of the weight of the evidence, in this purely circumstantial case. Weight of the evidence review is a “unique” power afforded to intermediate appellate courts, and one that they exercise regularly (*People v Bleakley*, 69 NY2d 490, 495 [1987]). It requires the Appellate Division to “independently assess all of the proof” and “to serve, in effect, as a second jury” (*People v Delamota*,

18 NY3d 107, 116-117 [2011], citing *People v Romero*, 7 NY3d 633, 644 n 2 [2006]). As we have explained, the Appellate Division must first

“determine whether an acquittal would not have been unreasonable. If so, the court must weigh conflicting testimony, review any rational inferences that may be drawn from the evidence and evaluate the strength of such conclusions. Based on the weight of the credible evidence, the court then decides whether the jury was justified in finding the defendant guilty beyond a reasonable doubt” (*People v Danielson*, 9 NY3d 342, 348 [2007]).

The Appellate Division must afford deference to the “fact-finder’s opportunity to view the witnesses, hear the testimony and observe demeanor” (*Romero*, 7 NY3d at 644 [internal quotation marks omitted]), although it may “substitute its own credibility determinations for those made by the jury in an appropriate case” (*Delamota*, 18 NY3d at 116-117).

[1] In conducting a weight of the evidence review, the Appellate Division will, of course, ask whether the case is based upon purely circumstantial evidence. To be satisfied that the jury was justified in finding guilt beyond a reasonable doubt in a circumstantial evidence case, the Appellate Division must satisfy itself that “the inference of guilt is the only one that can fairly and reasonably be drawn from the facts, and that the evidence excludes beyond a reasonable doubt every reasonable hypothesis of innocence” (*Sanchez*, 61 NY2d at 1024). That proposition is not novel or controversial, and certainly does not require the Appellate Division to charge itself with the applicable jury instruction. The People conceded as much at oral argument, and the Appellate Division regularly and properly executes this task.¹

III.

This Court reviews a weight of the evidence determination to assess whether the “order and writings of the intermediate appellate court manifest a lack of application of [its] review power” (*Romero*, 7 NY3d at 646, quoting *Bleakley*, 69 NY2d at

1. [1] To the extent lower courts have suggested that the circumstantial evidence rule has no application on weight of the evidence review (*see e.g. People v Truitt*, 213 AD3d 1145, 1147 [3d Dept 2023]), they should not be followed.

496).² “[W]e cannot review a weight of the evidence challenge unless the intermediate appellate court manifestly failed to consider the issue or did so using an incorrect legal principle” (*People v Kancharla*, 23 NY3d 294, 303 [2014]). We have never required the Appellate Division to “manifest its weight of evidence review power by writing in all criminal cases” (*Bleakley*, 69 NY2d at 496). Indeed, the Appellate Division “could have summarily affirmed without explicitly addressing the merits of defendant’s challenge to the weight of the evidence” (*Romero*, 7 NY3d at 646).

[2] Applying the above standard, we find no basis for reversal here. The Appellate Division’s decision notes weight of the evidence precedent from this Court (*see* 210 AD3d at 1001, citing *Danielson*, 9 NY3d 342, *People v Mateo*, 2 NY3d 383, 410 [2004], *Bleakley*, 69 NY2d at 495, and *Romero*, 7 NY3d 633). It recites the facts and proceedings below. It grapples with the circumstantial evidence presented to the jury, including that the defendant was the last person with the victim before she was found dead; that the victim’s cause of death was severing of her cervical nerves, which caused her to stop breathing and die within minutes; and that her injuries were caused by violent, forceful shaking. Finally, it draws an inference of guilt proved beyond a reasonable doubt, concluding that “because [she] lost consciousness and died after the defendant cared for her, it was reasonable for the jury to conclude beyond a reasonable doubt that the defendant violently and forcefully shook [her], causing her death” (210 AD3d at 1001).

In arguing that the Appellate Division’s ruling manifestly failed to apply its review power, the defendant and the dissent point to the use of the word “reasonable” in reference to the jury’s finding of guilt. This word choice does not establish that the Appellate Division failed to evaluate inferences from circumstantial evidence with the same lens that the jury used. *Bleakley* demands more than this to show a manifest failure to apply the proper review power (*see* 69 NY2d at 496; *cf. People v Sanchez*, 32 NY3d 1021, 1023 [2018] [“the incorrect language, in the context of the Court’s written decision as a whole, did not manifest a lack of application of that review power to which

2. This standard does not allow us to reverse simply because the Appellate Division’s writing was “unclear” (dissenting op at 41), and none of the cases cited by the dissent for that proposition involve weight of the evidence review or suggest that our review of a weight of the evidence analysis is more intrusive than what is set forth in *Bleakley*.

appellants are entitled” (internal quotation marks and alteration omitted)).

The defendant and the dissent also note that although the parties contested the appropriate application of the circumstantial evidence jury instruction to weight of the evidence review both in their briefs and at oral argument, the Appellate Division did not squarely address this point (*see* brief for defendant-appellant at 35; dissenting op at 38). The dissent points to snippets of oral argument in asserting that this was the key issue at the Appellate Division (*see* dissenting op at 37-38). *Bleakley* makes crystal clear that our role is not to parse exchanges at oral argument in determining whether the Appellate Division properly conducted weight of the evidence review. That the Court did not recite how it deals with circumstantial evidence when conducting weight of the evidence review does not warrant reversal, especially given that the Appellate Division had already done so in a prior case (*see People v Clavell*, 176 AD3d 844, 849-850 [2d Dept 2019]).³

In sum, we confirm that the same tenets that the jury applies to circumstantial evidence during its deliberations also apply on weight of the evidence review and that the Second Department’s reasoning here does not “manifest a lack of application” of the proper standard (*Sanchez*, 32 NY3d at 1023, quoting *Bleakley*, 69 NY2d at 496).

The defendant also argues that the Appellate Division improperly applied a legal sufficiency analysis rather than a weight of the evidence review. Given the Appellate Division’s reference to our weight of the evidence precedent (including *Danielson* [9 NY3d 342], *Mateo* [2 NY3d at 410], *Bleakley* [69 NY2d at 495], and *Romero* [7 NY3d 633]), as well as to its statutory obligation under CPL 470.15 (5) to determine, based on the facts, whether a verdict of conviction was against the weight of the evidence, we reject this contention.

Accordingly, the order of the Appellate Division should be affirmed.

3. The dissent faults the Appellate Division for not citing *Clavell* (*see* dissenting op at 38-39), which reversed the trial court, rather than affirming as here. It also complains that citations to *People v Hang Bin Li* (154 AD3d 960, 961 [2d Dept 2017]) and *People v Edwards* (235 AD2d 348, 349 [1st Dept 1997])—both of which involved an infant’s death by violent shaking—are “irrelevant” (dissenting op at 39). The choice to cite a particular opinion—or not—does not amount to a “manifest lack of application” for purposes of *Bleakley*.

GARCIA, J. (concurring). Intermediate appellate courts have a “unique factual review power” when considering the weight of the evidence in a criminal case (*People v Bleakley*, 69 NY2d 490, 494 [1987]). We have made clear the standard for that aspect of appellate review (see *People v Romero*, 7 NY3d 633, 643-644 [2006]). I agree with the majority that the Appellate Division correctly applied that standard in this case. I write separately because I find the remaining “guidance,” namely that the appellate court must “satisfy itself” that the trial jury standard for considering circumstantial evidence has been met (majority op at 30), confusing, unnecessary, and potentially counterproductive. I therefore concur in result only.

Upon request, a defendant is entitled to have the Appellate Division conduct a weight of the evidence review (*People v Danielson*, 9 NY3d 342, 348 [2007]; see CPL 470.15 [5]). It is well-established that the reviewing court must

“first . . . determine whether an acquittal would not have been unreasonable. If so, the court must weigh conflicting testimony, review any rational inferences that may be drawn from the evidence and evaluate the strength of such conclusions. Based on the weight of the credible evidence, the court then decides whether the jury was justified in finding the defendant guilty beyond a reasonable doubt” (*id.* [citation omitted]; see also *Romero*, 7 NY3d at 643-644; *Bleakley*, 69 NY2d at 495).

It is a precise approach tailored to a unique function.

That standard was applied here. I agree with the dissent that the Appellate Division did not expressly apply the circumstantial evidence rule in its weight of the evidence analysis (see dissenting op at 39; see also 210 AD3d 1000, 1001 [2d Dept 2022]). I disagree, however, that the Appellate Division was required to do so. I am not quite sure what to make of the majority’s view that more was needed, but what was said was enough. More importantly, I am concerned that appellate judges will share that confusion.

After holding that the Appellate Division must “satisfy itself that ‘the inference of guilt is the only one that can fairly and reasonably be drawn from the facts, and that the evidence excludes beyond a reasonable doubt every reasonable hypothesis of innocence’ ” (majority op at 30, quoting *Sanchez*, 61 NY2d 1022, 1024 [1984]), the exact language of the circumstan-

tial evidence jury charge (see CJI2d[NY] Circumstantial Evidence—Entire Case, https://nycourts.gov/judges/cji/1-General/CJI2d.Circumstantial_Evidence.pdf), the majority protests that its holding “does not require the Appellate Division to charge itself with the applicable jury instruction” (majority op at 30). How so? The majority offers no distinction between a jury being charged with that language and the majority’s awkwardly phrased mandate that an appellate court “satisfy itself” with the same. The circumstantial evidence charge has no place here. That charge must be given upon a defendant’s request in a case where “the proof of the defendant’s guilt rests solely on circumstantial evidence” (*People v Hardy*, 26 NY3d 245, 249 [2015]; see *People v Barnes*, 50 NY2d 375, 380-381 [1980]; CJI2d[NY] Circumstantial Evidence—Entire Case). The charge defines circumstantial evidence as “direct evidence of a fact” that may “give[] rise to an inference of guilt beyond a reasonable doubt” (CJI2d[NY] Circumstantial Evidence—Entire Case at 1). The charge requires the jury to review the evidence to decide which facts have been proved beyond a reasonable doubt and to then determine whether “the inference of guilt is the only one that can fairly and reasonably be drawn from” those facts, such that the evidence “excludes beyond a reasonable doubt every reasonable hypothesis of innocence” (*id.* at 2).

The circumstantial evidence charge itself makes clear that “[t]he law draws no distinction between circumstantial evidence and direct evidence in terms of *weight* or importance” (*id.* [emphasis added]). The reason for giving the charge “is not that circumstantial evidence is thought to be weaker than direct evidence, since the reverse is frequently true” (*People v Benzinger*, 36 NY2d 29, 32 [1974]) and the circumstantial evidence charge does not “alter the ultimate burden of proof which must be borne by the People” (*Barnes*, 50 NY2d at 380). Rather, the purpose of the circumstantial evidence rule is merely to “draw[] attention to the fact that proof by circumstantial evidence may require careful reasoning by the trier of facts” and the additional instruction “hopefully forecloses a danger legitimately associated with circumstantial evidence—that the trier of facts may leap logical gaps in the proof offered and draw unwarranted conclusions based on probabilities of low degree” (*Benzinger*, 36 NY2d at 32 [citation omitted]). Appellate Division judges do not need a guardrail to focus their attention on the careful reasoning appropriate in circumstantial evidence cases (see *People v Terry*, 196 AD3d 840, 841 [3d Dept

2021] [emphasizing that the Court does “not distinguish between direct or circumstantial evidence in conducting a legal sufficiency and/or weight of the evidence review”]), or to “mitigate[] th[e] risk” that those judges will “leap” to unfounded conclusions (majority op at 29, quoting *Benzinger*, 36 NY2d at 32).¹

The majority itself makes the ill-advised leap that appellate judges must “satisfy” themselves that the circumstantial evidence standard has been met, apparently because that court sits as a “‘second jury’” (majority op at 29-30, quoting *Romero*, 7 NY3d at 644 n 2). The “second jury” comparison, used in *Romero* only to distinguish the prior inapt “thirteenth juror” analogy (7 NY3d at 644 n 2), is similarly inaccurate and leads us into mischief. On the one hand, the appellate “second jury” is a “super jury” with the power to overturn the first jury’s verdict and put an end to the case. Despite that power, however, the appellate court must accord “[g]reat deference . . . to the factfinder’s opportunity to view the witnesses, hear the testimony and observe demeanor” and must be “careful not to substitute themselves for the jury” (*Bleakley*, 69 NY2d at 495 [emphasis added]). In sum, although the Appellate Division and the jury play a similar role in weighing evidence, and “the differences between” them in this respect are “delicately nuanced,” those differences nevertheless remain (*id.*). Our two-part weight of the evidence review standard accounts for those differences. Given the “unique” role of the appellate courts in performing that function, perhaps it is time to abandon all these colorful but inaccurate labels.

1. Notably, even with respect to trial juries, federal courts and a number of states have abandoned or criticized the special circumstantial evidence instruction as adding far more confusion than value (see e.g. *Holland v United States*, 348 US 121, 139-140 [1954] [“where the jury is properly instructed on the standards for reasonable doubt,” an instruction that circumstantial evidence must “exclude every reasonable hypothesis other than that of guilt” is “confusing and incorrect”]). Many state courts following *Holland*’s lead have dispensed with a circumstantial evidence charge (see *State v Humpherys*, 134 Idaho 657, 661-662, 8 P3d 652, 656-657 [2000] [agreeing with “the conclusion of the courts from the growing majority of states that in all criminal cases there should be only one standard of proof, which is beyond a reasonable doubt,” and holding defendant was not entitled to additional circumstantial evidence instruction (collecting cases)]; see also *People v Gonzalez*, 54 NY2d 729, 730-735 [1981, Fuchsberg, J., concurring] [three Judges would have held that the circumstantial evidence charge should no longer be employed at all]; see also Carol J. Miller, Annotation, *Modern status of rule regarding necessity of instruction on circumstantial evidence in criminal trial—state cases*, 36 ALR4th 1046 [collecting cases]).

The majority claims that the Appellate Division has been “regularly and properly” satisfying itself that the circumstantial evidence test has been met in conducting its weight of the evidence review but provides no citations to that effect (majority op at 30). In fact, the only citation for this statement appears in the related footnote, and the case there, used as an example of others, stands for exactly the opposite approach (*see* majority op at 30 n 1, citing *People v Truitt*, 213 AD3d 1145, 1147 [3d Dept 2023] [referencing cases that “have suggested that the circumstantial evidence rule has no application on weight of the evidence review”]). The majority overrules those cases (*see* majority op at 30 n 1 [*Truitt* and like cases “should not be followed”]).

Until today, the weight of the evidence review standard was clear.² Now, appellate courts may well wonder what other jury charges must be “satisfied”—such as a missing witness charge (CJI2d[NY] A Party’s Failure to Call a Witness, https://www.nycourts.gov/judges/cji/1-General/CJI2d.Missing_witness.pdf) or hearsay (CJI2d[NY] Limiting Instruction Non-Hearsay Statement: Effect on the Listener, <https://www.nycourts.gov/judges/cji/1-General/CJI2d.Hearsay-not%20for%20truth.pdf>)—to avoid error. Unfortunate results are foreseeable. The Appellate Division “is not required to ‘manifest its weight of evidence review power by writing in all criminal cases’” (*Romero*, 7 NY3d at 646, quoting *Bleakley*, 69 NY2d at 496), and may summarily affirm a conviction “without explicitly addressing the merits of [a] defendant’s challenge to the weight of the evidence” (*id.*). Today’s guidance to intermediate appellate courts may just be “the less said the better.” With that, everyone will be satisfied.

SINGAS, J. (concurring in result). There is no indication that the “‘order and writings of the [Appellate Division] manifest a lack of application’” of its exclusive power to review the weight of the evidence (*People v Romero*, 7 NY3d 633, 646 [2006], quoting *People v Bleakley*, 69 NY2d 490, 496 [1987]). I thus presume that our Appellate Division colleagues appropriately exercised that power.

Chief Judge WILSON (dissenting). The legislature has given the Appellate Division a unique role and duty: only it can

2. I do not see what authority the People’s purported concession at oral argument should have in determining the appropriate legal standard for an appellate court’s weight of the evidence review (*see* majority op at 30).

perform weight of the evidence review and sit as the “thirteenth juror” in a criminal conviction. A defendant’s right to a weight of the evidence review performed under the correct legal standard “is the linchpin of our constitutional and statutory design intended to afford each litigant at least one appellate review of the facts” (*People v Bleakley*, 69 NY2d 490, 494 [1987]). Only the Court of Appeals can determine whether the Appellate Division has properly applied the law during weight of the evidence review.

I fully agree with the majority that when the Appellate Division performs weight of the evidence review based only on circumstantial evidence, it must apply the circumstantial evidence rule. That is the Appellate Division’s unique task: to ensure that the inferences drawn from the evidence are proper and the guilt is the only available inference. The problem with the majority’s decision is that we do not know whether the Appellate Division applied that standard to Mr. Baque’s case; we have good reasons to think they did not, and the majority does not want to find out, which thus abandons our own role.

I.

In the Appellate Division, the parties hotly contested one pivotal issue: Mr. Baque’s contention that the Appellate Division must apply the circumstantial evidence rule in conducting its weight of the evidence review. Mr. Baque’s legal arguments in his opening and reply briefs were entirely about the circumstantial evidence rule; the People disagreed: “In appellate review . . . it is error for a reviewing court to evaluate the trial evidence by employing the heightened ‘moral certainty’ analysis.” The People focused their written argument before the Second Department on that issue. Of course, the applicable standard of appellate review determines how the evidence must be evaluated on appeal; applying an incorrect standard of review requires reversal and remittal for application of the correct standard (*see e.g. People v Gillotti*, 23 NY3d 841, 864 [2014]; *People v Kuzdzal*, 31 NY3d 478 [2018]; *People v Ba*, 39 NY3d 1130 [2023]).

At oral argument in the Appellate Division, the parties renewed their dispute as to which standard was correct. Mr. Baque’s lawyer led by arguing that the Appellate Division had to apply the moral certainty standard and directed the court to a prior Second Department case so holding, *People v Clavell* (176 AD3d 844, 849-850 [2019]). The sole question from the

bench during oral argument was why the circumstantial evidence was “sufficient,” which suggests the Court may have applied the legal sufficiency standard when weighing the circumstantial evidence.

The People’s argument commenced by saying “this is not a sufficiency issue here, this is the weight of the evidence issue. And with respect to the standard for review, it is not the moral certainty standard.” The People persisted in that argument, insisting there was no controlling precedent requiring the Appellate Division to apply the circumstantial evidence rule. Instead, the People urged the Court to recognize that the standard was “whether an acquittal would have been unreasonable, and in this case an acquittal would have been unreasonable.” The entire 10 minutes of oral arguments concerned whether the moral certainty rule applied to weight of the evidence review, and if so—or if not—how to interpret the facts to come to the correct result.

The moral certainty rule was not just a point “contested” below (majority op at 32)—it was the contest. Indeed, even when Mr. Baque sought leave to appeal to this Court, the People continued to argue that the circumstantial evidence rule did not apply to appellate weight of the evidence review: “the moral certainty standard, which is unavailable for consideration by an intermediate appellate court in a legal sufficiency analysis, should not be utilized by that same court in its weight-of-the-evidence review.” The People conceded they were wrong only after a Judge of this Court granted leave.

II.

Even though the pivotal issue before it was which standard of review should apply, the Appellate Division did not choose one or the other. Its sole statement that might have any bearing on the standard of review was a bare legal conclusion that “it was reasonable for the jury to conclude beyond a reasonable doubt that the defendant” was guilty (210 AD3d 1000, 1001 [2d Dept 2022]). To the extent its one clause could be construed as stating some standard, it is not a standard either the People or Mr. Baque advocated. The majority excuses the Appellate Division’s failure to respond to the parties’ principal argument as well as its recitation of a pseudo-standard that all agree is improper—because a different panel of the Appellate Division in a different case (*Clavell*) applied the correct standard.

That sort of guesswork should not pass for appellate review by our Court. In any event, what is on appeal is not *Clavell* but

Mr. Baque’s case, in which the Appellate Division did not cite *Clavell*. Instead of citing *Clavell*, the Appellate Division cited two, older cases to support its unusual formulation that “it was reasonable for the jury to conclude [guilt] beyond a reasonable doubt”: *People v Hang Bin Li* (154 AD3d 960, 961 [2d Dept 2017]) and *People v Edwards* (235 AD2d 348, 349 [1st Dept 1997]). Those cases do not mention the circumstantial evidence rule at all; they merely are cases that involve infant fatalities. Although factually similar to Mr. Baque’s, these cases do explicitly apply the circumstantial evidence rule and thus do not reveal whether the Appellate Division concluded that the rule had any relevance here. Moreover, the majority does not contend that the Appellate Division’s citation to those cases suggests that it applied the correct standard. Instead, the majority writes that because the Second Department in *Clavell* “already” applied the circumstantial evidence rule years before, the panel in Mr. Baque’s case did not write to say whether the applied the same correct legal standard in reviewing Mr. Baque’s conviction (majority op at 32).

But *Clavell* was central to the parties’ briefing in the Appellate Division. Mr. Baque argued that *Clavell* controlled and required application of the circumstantial evidence rule on appeal; the People argued that it was distinguishable. Mr. Baque’s counsel again pressed *Clavell* at oral argument, to which the People replied there was no controlling precedent on the moral certainty rule. The Appellate Division’s citations to other irrelevant cases—but not to *Clavell*—provide no reassurance it applied (or decided not to apply) the circumstantial evidence rule when conducting its weight of the evidence review. The People also pointed out in their brief that the Third Department several times held that the circumstantial evidence rule does not apply during weight of the evidence review on appeal, thus identifying a departmental split, yet the Court remained silent as to what standard it applied when reviewing Mr. Baque’s weight of the evidence challenge. Under these circumstances, the Appellate Division’s failure to state clearly whether it was applying the circumstantial evidence rule is striking.

The correct standard, as articulated by the majority, requires the exclusion of every other possibility to reach a verdict of guilt for each element proved purely by circumstantial evidence. But the standard articulated by the Appellate Division instead asks whether it was reasonable for the jury to find Mr. Baque guilty beyond a reasonable doubt. That formulation

does not rule out the possibility that it would have been reasonable for the jury to reach the opposite conclusion. The appropriate legal standard is not whether the jury's verdict was reasonable; it is whether it was the only possible verdict such that it "exclude[s] to a moral certainty every other hypothesis but that of the guilt of the accused" (*People v Lewis*, 275 NY 33, 39 [1937]).

Indeed, we reversed and remitted in *Bleakley* because the Appellate Division had applied an incorrect legal standard very much like the one applied here. In *Bleakley*, the erroneous standard of review employed by the Appellate Division was "whether, after viewing the evidence in a light most favorable to the prosecution, any rational trier of fact could have found that the defendants' guilt had been proven beyond a reasonable doubt" (69 NY2d at 494). That is virtually the same as asking whether "it was reasonable for the jury to conclude beyond a reasonable doubt" that the defendant was guilty.

Bleakley says, in dicta, that the Appellate Division need not always explain every rationale in its opinion. But *Bleakley* does not say that the Appellate Division never has to do so, regardless of the circumstances. And the other cases the majority cites for that proposition do not support the majority's position. *Kancharla* determined that when the Appellate Division does not apply the correct legal standard in weight of the evidence review, our job is to remit, which is exactly what the Court did: "Where the court below erred as a matter of law, the remedy is to reverse and remit for a proper assessment of the weight of the evidence" (*People v Kancharla*, 23 NY3d 294, 303 [2014], citing *People v Danielson*, 9 NY3d 342, 349-350 [2007], *People v Romero*, 7 NY3d 633, 646 [2006]). This appeal presents a circumstance in which the Appellate Division did need to state explicitly what standard of review it chose so that further review of the pivotal issue by our Court could occur. A brief recap illustrates why:

- the parties vehemently disagreed about whether the Appellate Division must apply the circumstantial evidence rule;
- the parties cited *Clavell* in their briefs and argued about its import;
- the parties exhaustively briefed the Third Department's (erroneous) understanding of the applicability of the moral certainty rule;
- the sole question the panel asked at oral argu-

ment concerned whether the evidence was “insufficient”;

- the words the Appellate Division chose that have some bearing on the standard of review are not a correct standard and not the standard advocated by either party;
- the Appellate Division’s phrasing appears to come from cases involving review for legal insufficiency, not weight of the evidence; and
- the two cases cited by the Appellate Division to support its odd phrasing do not mention the circumstantial evidence rule.

Mr. Baque’s case is thus quite different from *Bleakley*. If we simply assume that, in the face of fierce debate by the parties, the Appellate Division chose the right standard, we are not doing our job.

We have regularly remitted cases when the Appellate Division’s writing was simply unclear (*see e.g. Matter of Kaufmann*, 245 NY 423, 431-432 [1927]; *People v Callahan*, 80 NY2d 273, 285 [1992]; *People v Qoshja*, 17 NY3d 910, 911 [2011]; *Matter of Miller v Annucci*, 37 NY3d 996, 998-999 [2021]). Here, the Appellate Division’s writing was at best unclear, and numerous signs strongly suggest it used the wrong standard.

The cost of a remittal is slight. It merely requires the Appellate Division to use the correct standard in conducting weight of the evidence review in line with today’s decision. If the Appellate Division already did so, as the majority assumes, remittal would impose no burden. If the Appellate Division did not apply the standard announced by the majority, failing to remit deprives Mr. Baque of his right to that review.

As we noted in *Bleakley*, “The complementary review scheme erected in our Constitution and statutes imposes a heavy duty on our important and overburdened intermediate appellate courts . . . especially with respect to review of fact issues” (69 NY2d at 493). Nearly 40 years later, our appellate courts today are even more overburdened and do not have the time to write on every issue in every case. But where there is a central, disputed issue, a split of authority and no controlling decision from our Court, both Mr. Baque and the system providing for review by the Court of Appeals require one thing: a clear sentence stating the Appellate Division’s resolution of a hotly disputed issue. For the reasons stated herein, I would remit for the Appellate Division to apply the correct standard when

performing its weight of the evidence review. If it did so the first time, it need only say so.

Judges RIVERA, CANNATARO and TROUTMAN concur. Judge GARCIA concurs in result in an opinion. Judge SINGAS concurs in result in a separate opinion. Chief Judge WILSON dissents in an opinion.

Order affirmed.

[254 NE3d 618, 229 NYS3d 74]

In the Matter of ROBERT W. BODENMILLER, Appellant, v THOMAS
P. DiNAPOLI, as State Comptroller, Respondent.

Argued November 19, 2024; decided December 12, 2024

PROCEDURAL SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the Third Judicial Department, from a judgment of that Court, entered April 13, 2023, in a proceeding pursuant to CPLR article 78 (transferred to the Appellate Division by order of the Supreme Court, entered in Albany County). The Appellate Division (1) confirmed a determination of respondent which had denied petitioner's application for accidental disability retirement benefits; and (2) dismissed the petition.

Matter of Bodenmiller v DiNapoli, 215 AD3d 96, affirmed.

HEADNOTE

Civil Service — Retirement and Pension Benefits — Accidental Disability Retirement — Reasonably Anticipated Precipitating Event

A precipitating event that could or should have reasonably been anticipated by a person in a claimant's circumstances is not an "accident" for purposes of accidental disability retirement (ADR) benefits available under Retirement and Social Security Law § 363 (a) (1). An injury which occurs without an unexpected event is not an accidental injury for purposes of section 363. Because an occurrence is not "unexpected" if a person should reasonably anticipate that it will happen, an injury that results from a reasonably anticipated event is not an "accident." A petitioner need not demonstrate that a condition was not readily observable in order to demonstrate an "accident," but evidence that shows a hazardous condition was readily observable may inform whether the incident could or should have reasonably been anticipated. Accordingly, in petitioner's proceeding to recover ADR benefits based upon injuries he sustained when his rolling desk chair tipped backwards after one of the wheels got caught in a rut in the floor and petitioner grabbed his desk to prevent a fall, substantial evidence supported respondent's determination that petitioner could or should have reasonably anticipated the near-fall from his desk chair. Respondent noted photos documenting the condition of the floor, as well as petitioner's hearing testimony about how long he had worked desk duty, how many times he had gotten into and out of the chair that day, and his familiarity with the ruts in the floor and their location underneath his chair.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Pensions and Retirement Funds §§ 1113, 1117.

CARMODY-WAIT 2d Proceeding Against a Body or Officer
§§ 145:977, 145:1015.

McKINNEY'S, Retirement and Social Security Law § 363
(a) (1).

NY JUR 2d Pensions and Retirement Systems §§ 134–137.

ANNOTATION REFERENCE

Judicial review of decision, on merits, of claim upon public pension fund. 117 ALR 1408.

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POINTS OF COUNSEL

Schaefer Law Group, P.C., Smithtown (Wayne J. Schaefer of counsel), for appellant. Because petitioner's injury resulted from an event that was not a risk inherent in police employment, respondent's determination denying his application was not based on substantial evidence. (*Matter of Garceau-Scopelitis v New York State Comptroller*, 24 AD3d 934; *Matter of Foresta v New York State Policemen's & Firemen's Retirement Sys.*, 95 AD2d 893; *Matter of Hughes v Doherty*, 5 NY3d 100; *Matter of Pell v Board of Educ. of Union Free School Dist. No. 1 of Towns of Scarsdale & Mamaroneck, Westchester County*, 34 NY2d 222; *Matter of 125 Bar Corp. v State Liq. Auth. of State of N.Y.*, 24 NY2d 174.)

Letitia James, Attorney General, Albany (Frederick A. Brodie, Barbara D. Underwood and Andrea Oser of counsel), for respondent. Substantial evidence supported the New York State Comptroller's determination that petitioner's injury was not proved to result from an accident. (*Matter of Bohlen v DiNapoli*, 34 NY3d 434; *Matter of Demma v Levitt*, 11 NY2d 735; *Matter of Haug v State Univ. of N.Y. at Potsdam*, 32 NY3d 1044; *Matter of Kenny v DiNapoli*, 11 NY3d 873; *Matter of Rizzo v DiNapoli*, 39 NY3d 991.)

OPINION OF THE COURT

HALLIGAN, J.

Petitioner, a former police officer, commenced this CPLR article 78 proceeding to annul the Comptroller's determination

denying him accidental disability retirement (ADR) benefits. Substantial evidence supports the Comptroller's conclusion that petitioner could or should have reasonably anticipated the event which caused his injury and the determination that the injury therefore was not the result of an "accident" for purposes of ADR benefits (*see* Retirement and Social Security Law § 363). Accordingly, we affirm.

Petitioner was on desk duty, sitting in his rolling desk chair at work, when one of the wheels of his chair got caught in one of two ruts in the floor. As the chair tipped backwards, petitioner grabbed his desk to prevent a fall and injured his shoulder and neck in the process. He then applied for ADR benefits.

The Comptroller denied petitioner's application. At a hearing, petitioner testified that he had worked desk duty at the precinct where the incident occurred for months leading up to his injury; that he got up from and back into the chair at least five times over the course of six hours on the day of the injury; and that at the time of the incident he was aware of the ruts in the floor, that the ruts were at least three inches wide, and that the ruts were beneath his chair when he was seated. Photographs of the floor included in the record documented its condition. The Comptroller concluded, as relevant here, that petitioner could have reasonably anticipated the hazard of the chair catching in the floor, and that the event therefore was not accidental.

Petitioner commenced this CPLR article 78 proceeding to challenge that determination. Upon transfer, the Appellate Division confirmed the determination and dismissed the proceeding (215 AD3d 96 [3d Dept 2023]). An event is not an accident, the Court explained, if one "could or should have reasonably anticipated the precipitating event" (*id.* at 99 [internal quotation marks omitted]). Applying that test, the Appellate Division concluded that substantial evidence supported the Comptroller's determination "that petitioner could have reasonably anticipated" the event that caused his injury (*id.* at 101).

One Justice dissented, opining that the "reasonably anticipated" standard is inconsistent with this Court's decision in *Matter of Kelly v DiNapoli* (30 NY3d 674 [2018]), and that the tipping of the chair "was the type of sudden, unexpected event that should as a matter of commonsense be deemed an accident" (215 AD3d at 104 [Lynch, J.P., dissenting]). The Appel-

late Division granted petitioner leave to appeal (2023 NY Slip Op 74040[U] [3d Dept 2023]).

On article 78 review, the Comptroller’s “determination to deny ADR [benefits] generally will not be disturbed if it is based on substantial evidence; that is, if it is rationally supported by the record viewed as a whole” (*Matter of Rawlins v Teachers’ Retirement Sys. of the City of N.Y.*, 42 NY3d 315, 318-319 [2024]; see also *Kelly*, 30 NY3d at 684 [“The standard is not an exacting one; it is less than a preponderance of the evidence . . . (and) demands only that a given inference is reasonable and plausible, not necessarily the most probable” (internal quotation marks omitted)]). Applying that standard, we affirm.

Retirement and Social Security Law § 363 (a) (1) provides that ADR benefits are available to a member of the police and firefighter’s retirement system who becomes “[p]hysically or mentally incapacitated for performance of duty as the natural and proximate result of an accident not caused by [the member’s] own willful negligence sustained in such service.” At issue here is whether the precipitating event that caused petitioner’s injury was an “accident” for purposes of this provision. The term is not defined by statute or regulation, but more than four decades ago this Court “adopt[ed] the commonsense definition of a ‘sudden, fortuitous mischance, unexpected, out of the ordinary, and injurious in impact’ ” (*Matter of Lichtenstein v Board of Trustees of Police Pension Fund of Police Dept. of City of N.Y., Art. II*, 57 NY2d 1010, 1012 [1982], quoting *Arthur A. Johnson Corp. v Indemnity Ins. Co. of N. Am.*, 6 AD2d 97, 100 [1st Dept 1958], *affd* 7 NY2d 222 [1959]).

An event which is “a risk inherent” in the work performed is not an “accident” for purposes of ADR benefits (*Kelly*, 30 NY3d at 683; see generally *Matter of Compagnone v DiNapoli*, 42 NY3d 1075 [2024] [decided today]). Further, an event that is not a risk inherent in one’s job must be a “sudden, unexpected” occurrence in order to amount to an “accident” (*Kelly*, 30 NY3d at 678). We held in *Matter of Rizzo v DiNapoli* that a known danger cannot be the cause of a compensable accident, but we left open whether an event that could or should have reasonably been anticipated by the claimant can result in an accident for purposes of section 363 (see 39 NY3d 991, 992 [2022]). We answer that question today.

We hold that a precipitating event that could or should have reasonably been anticipated by a person in the claimant’s cir-

cumstances is not an “accident” for purposes of ADR benefits. It is well established that “an injury which occurs without an unexpected event . . . is not an accidental injury” for purposes of section 363 (*Lichtenstein*, 57 NY2d at 1012). The unexpected nature of the precipitating event is key to this definition. Because an occurrence is not “unexpected” if a person should “reasonably anticipate” that it will happen, an injury that results from a “reasonably anticipated event” is not an “accident.” This objective standard is consistent with the precedent that informed our test in *Lichtenstein* (*see id.*). Those cases define an accident as an “unforeseen, unexpected” event (*Lewis v Ocean Acc. & Guar. Corp., Ltd., of London, England*, 224 NY 18, 21 [1918]), that occurs “without one’s foresight or expectation” (*Berkowitz v New York Life Ins. Co.*, 256 App Div 324, 326 [1st Dept 1939] [internal quotation marks omitted]; *see also United States Mut. Accident Assn. v Barry*, 131 US 100, 121 [1889] [explaining that an injury results from “accidental means . . . if, in the act which precedes the injury, something unforeseen, unexpected, unusual occurs which produces the injury”]).

This standard is also consistent with our remark in *Kelly* that a petitioner need not “demonstrate that a condition was not readily observable in order to demonstrate an ‘accident’ ” (30 NY3d at 685 n 3). But evidence that shows a hazardous condition *was* readily observable may inform whether the incident could or should have reasonably been anticipated. Here, for example, respondent properly considered that the ruts beneath the desk chair were readily observable in assessing whether a person in petitioner’s shoes could or should have reasonably anticipated that those ruts would cause the chair to tip.

Applying this standard, we conclude that substantial evidence supports the Comptroller’s determination that petitioner could or should have reasonably anticipated the near-fall from his desk chair. The Comptroller noted the photos documenting the condition of the precinct floor, as well as petitioner’s hearing testimony about how long he had worked desk duty, how many times he had gotten into and out of the chair that day, and his familiarity with the ruts in the floor and their location underneath his chair. This evidence adequately supports the Comptroller’s conclusion that the event “reasonably could have been anticipated,” and that the incident therefore was not an accident.

Accordingly, the judgment of the Appellate Division should be affirmed, with costs.

Chief Judge WILSON and Judges RIVERA, GARCIA, SINGAS, CANNATARO and TROUTMAN concur.

Judgment affirmed, with costs.

[254 NE3d 1217, 229 NYS3d 344]

ELISE STEFANIK et al., Appellants, v KATHY HOCHUL, as
Governor of the State of New York, et al., Respondents,
and DCCC et al., Intervenors-Respondents.

Argued July 30, 2024; decided August 20, 2024

PROCEDURAL SUMMARY

APPEAL, on constitutional grounds, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered May 9, 2024. The Appellate Division affirmed a judgment of the Supreme Court, Albany County (Christina L. Ryba, J.; op 82 Misc 3d 1126 [2024]), which had (1) declared that the New York Early Mail Voter Act (Election Law § 8-700 *et seq.*) is constitutional; (2) granted the motion of defendants State of New York and Governor Kathy Hochul and the motion of intervenor-defendants to dismiss the complaint; (3) denied plaintiffs' cross-motion for summary judgment in their favor; and (4) dismissed the complaint.

Stefanik v Hochul, 229 AD3d 79, affirmed.

HEADNOTE

Elections — Ballots — Early Mail Voter Act — Constitutionality

The Early Mail Voter Act (Election Law § 8-700 *et seq.*), which permits all registered voters to vote early by mail in any election in which the voter is eligible to vote, does not violate the New York Constitution. It is not certain that the Constitution ever required in-person voting. The Election District Provision may never have been a source of an in-person voting requirement but rather a provision designed to prevent voters from voting for candidates for whom they were not entitled to vote. The Constitutional Convention adopted the language that elections “shall be by ballot, or by such other method as may be prescribed by law” (NY Const, art II, § 7) for the clear purpose of permitting future legislators to determine the method of voting, expressly emphasizing the need to empower the legislature to adapt to technological changes and to improve the efficiency of voting. Where the preexisting limit of “by ballot” limited the legislature’s plenary power, adding “or by such other method” eliminated the restriction that votes be by ballot, and affirmatively stated that any other method would be allowed by the Constitution. The broad grant of power in the amendment is difficult to reconcile with the proposition that voting must be conducted in person, especially because the Constitution does not expressly require as such. Given the lack of textual support for an in-person voting requirement and the equivocal nature of the constitutional history regarding such a requirement, the Constitution does not prevent the legislature from enacting universal, no-excuse, mail-in voting in a manner that overcomes the strong presumption of constitutionality that must be afforded to the Act.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Elections §§ 333–335.

MCKINNEY'S, Election Law § 8-700 *et seq.*; NY Const, art II, § 7.

NY JUR 2d Elections §§ 522, 522.50.

ANNOTATION REFERENCE

See ALR Index under Elections and Voting.

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> New York Official Reports

Query: vote* /s early /3 mail /p constitution!

POINTS OF COUNSEL

O'Connell and Aronowitz, Attorneys at Law, Albany (Michael Y. Hawrlychak and Cornelius D. Murray of counsel), for appellants. I. The 1966 amendment did not alter an unbroken, uniform 150 years of constitutional practice establishing limits on the Legislature's power to authorize absentee voting. (*Matter of Harkenrider v Hochul*, 38 NY3d 494; *White v Cuomo*, 38 NY3d 209; *New York Pub. Interest Research Group v Steingut*, 40 NY2d 250; *Matter of Board of R.T. R.R. Commrs. for City of N.Y.*, 147 NY 260; *Sheils v Flynn*, 164 Misc 302; *Matter of Wise v Board of Elections of Westchester County*, 43 Misc 2d 636; *Local Govt. Assistance Corp. v Sales Tax Asset Receivable Corp.*, 2 NY3d 524; *Matter of Amedure v State of New York*, 77 Misc 3d 629; *Matter of Kuhn v Curran*, 294 NY 207.) II. The language and structure of article II of the New York Constitution demonstrate that section 2 exclusively defines the scope of the Legislature's power to authorize absentee voting. (*Silver v Pataki*, 96 NY2d 532; *County of Orange v Ellsworth*, 98 App Div 275; *Matter of 1605 Book Ctr. v Tax Appeals Trib. of State of N.Y.*, 83 NY2d 240; *People v Page*, 35 NY3d 199; *Matter of Wendell v Lavin*, 246 NY 115; *Morales v County of Nassau*, 94 NY2d 218; *Jackson v Citizens Cas. Co. of N.Y.*, 252 App Div 393; *Sill v Village of Corning*, 15 NY 297; *People ex rel. Killeen v Angle*, 109 NY 564; *Pataki v New York State Assembly*, 4 NY3d 75.) III. The defense of the mail-voting law betrays a disturbingly cynical attitude toward the New York Constitution.

Letitia James, Attorney General, Buffalo (*Jeffrey W. Lang*, *Sarah L. Rosenbluth* and *Barbara D. Underwood* of counsel), for Kathy Hochul and another, respondents. The Early Mail Voter Act is constitutional. (*White v Cuomo*, 38 NY3d 209; *People ex rel. Lardner v Carson*, 155 NY 491; *Matter of Baldwin Union Free Sch. Dist. v County of Nassau*, 22 NY3d 606; *Matter of Kuhn v Curran*, 294 NY 207; *Golden v Koch*, 49 NY2d 690; *Matter of McAneny v Board of Estimate & Apportionment of City of N.Y.*, 232 NY 377; *Matter of Davis v Board of Elections of City of N.Y.*, 5 NY2d 66; *Matter of Barie v Lavine*, 40 NY2d 565; *Matter of Burr v Voorhis*, 229 NY 382; *Matter of Ahern v Elder*, 195 NY 493.)

Cullen and Dykman LLP, Albany (*Nicholas J. Faso*, *Deborah N. Misir* and *Seema Rambaran* of counsel), for Peter S. Kosinski, respondent. I. The Appellate Division erred in ignoring the New York Constitution's express language that voting occurs "at" an election. (*Matter of Kuhn v Curran*, 294 NY 207; *Matter of Hoffmann v New York State Ind. Redistricting Commn.*, 41 NY3d 341; *Matter of Lynch v City of New York*, 40 NY3d 7; *People ex rel. Deister v Wintermute*, 194 NY 99; *Ross v State of New York*, 198 AD3d 1384; *Matter of Amedure v State of New York*, 210 AD3d 1134.) II. The 1966 amendment did not implicitly eliminate the requirement for default in-person voting. III. The mail voting law is unconstitutional because a plain reading of the 1966 amendment does not render the absentee voting provisions of the New York Constitution superfluous. (*Matter of Hoffmann v New York State Ind. Redistricting Commn.*, 41 NY3d 341; *Altman v 285 W. Fourth LLC*, 31 NY3d 178; *Riley v County of Broome*, 95 NY2d 455; *People v Rice*, 44 AD3d 247.)

Elias Law Group LLP, Washington, D.C. (*Aria C. Branch*, admitted pro hac vice, *Justin Baxenberg*, admitted pro hac vice, *Richard Alexander Medina* and *Mark R. Haidar*, admitted pro hac vice, of counsel), and *Dreyer Boyajian LLP*, Albany (*James R. Peluso* of counsel), for DCCC and others, intervenors-respondents. I. The New York Constitution no longer requires in-person voting. (*Haar v Nationwide Mut. Fire Ins. Co.*, 34 NY3d 224; *Matter of Walsh v New York State Comptroller*, 34 NY3d 520; *People v Rathbone*, 145 NY 434; *Lamie v United States Trustee*, 540 US 526; *Union Bank v Wolas*, 502 US 151; *Matter of Kuhn v Curran*, 294 NY 207; *Golden v Koch*, 49 NY2d 690.) II. Plaintiffs cannot rely on canons of construction to resurrect constitutional language that was explicitly removed.

(*Barto v Himrod*, 8 NY 483; *Matter of Bath & Hammondsport R.R. Co. v New York State Dept. of Envtl. Conservation*, 73 NY2d 434; *Sill v Village of Corning*, 15 NY 297; *Silver v Pataki*, 3 AD3d 101; *People ex rel. Killeen v Angle*, 109 NY 564; *Matter of Hoerger v Spota*, 109 AD3d 564, 21 NY3d 549; *Town of Aurora v Village of E. Aurora*, 32 NY3d 366; *Kimmel v State of New York*, 29 NY3d 386; *Cruz v TD Bank, N.A.*, 22 NY3d 61; *Marx v General Revenue Corp.*, 568 US 371.) III. The Early Mail Voter Act falls within the Legislature's power to regulate the method of voting under article II, § 7 of the New York Constitution. (*People ex rel. Deister v Wintermute*, 194 NY 99.) IV. The weight of persuasive authority supports the Early Mail Voter Act's constitutionality. V. The failure of Ballot Proposal 4 does not materially affect the Early Mail Voter Act's constitutionality. (*Clark v Cuomo*, 66 NY2d 185; *United States v Price*, 361 US 304; *Matter of New York State Assn. of Life Underwriters v New York State Banking Dept.*, 83 NY2d 353; *Matter of NYC C.L.A.S.H., Inc. v New York State Off. of Parks, Recreation & Historic Preserv.*, 27 NY3d 174; *People v Brooklyn Cooperage Co.*, 147 App Div 267, 205 NY 531; *Mayor of City of N.Y. v Council of City of N.Y.*, 38 AD3d 89, 9 NY3d 23.)

Public Interest Legal Foundation Inc., Alexandria, Virginia (*Maureen Riordan* and *Joseph Nixon* of counsel), for Public Interest Legal Foundation Inc., amicus curiae. I. The New York Constitution explicitly limits the scope of the Legislature's power to authorize absentee voting. (*Colon v Martin*, 35 NY3d 75; *People v Francis*, 30 NY3d 737; *Taniguchi v Kan Pacific Saipan, Ltd.*, 566 US 560; *FDIC v Meyer*, 510 US 471; *Day v Summit Sec. Servs. Inc.*, 53 Misc 3d 1057; *Burlington Ins. Co. v NYC Tr. Auth.*, 29 NY3d 313; *Vigilant Ins. Co. v Bear Stearns Cos., Inc.*, 10 NY3d 170; *Rotkiske v Klemm*, 589 US 8; *NLRB v SW General, Inc.*, 580 US 288; *Matter of Wendell v Lavin*, 246 NY 115.) II. The Delaware Supreme Court correctly decided that legislatively created universal absentee voting violates its State Constitution.

Hogan Lovells US LLP, New York City (*Matthew C. Sullivan* and *Peter W. Bautz* of counsel), for Common Cause New York, amicus curiae. I. The constitutional text, history, and precedential developments of New York are similar to its sister states that have affirmed the use of early mail voting. (*Ross v State of New York*, 198 AD3d 1384.) II. The legislative history of the Early Mail Voter Act confirms its constitutional grounding in article II, § 7 of the New York Constitution.

Hecker Fink LLP, Washington, D.C. (*Joshua Matz* of counsel) and New York City (*Joseph Posimato* and *Anna Collins Peterson* of counsel), and *State Democracy Research Initiative, University of Wisconsin Law School*, Madison, Wisconsin (*Harry Isaiah Black* of counsel), for Richard Briffault and others, amici curiae. I. The New York Constitution evinces a democracy principle. (*People ex rel. McClelland v Roberts*, 148 NY 360; *Delgado v State of New York*, 39 NY3d 242; *Matter of New York El. R.R. Co.*, 70 NY 327; *Yick Wo v Hopkins*, 118 US 356; *Matter of Friedman v Cuomo*, 39 NY2d 81; *Hoehmann v Town of Clarkstown*, 40 NY3d 1; *Matter of Walsh v Katz*, 17 NY3d 336; *Matter of Esler v Walters*, 56 NY2d 306; *Matter of Burr v Voorhis*, 229 NY 382; *Matter of Hopper v Britt*, 203 NY 144.) II. The New York Constitution's democracy principle supports the Early Mail Voter Act. III. Out-of-state persuasive authority also supports the Early Mail Voter Act.

Law Office of Joseph T. Burns, PLLC, Williamsville (*Joseph T. Burns* of counsel), for Center for Election Confidence, amicus curiae. I. Because early mail voting is absentee voting, it violates article II, § 2 of the New York Constitution. II. Out-of-state cases and constitutions offer no guidance toward interpreting article II, § 2 of the New York Constitution. (*People v Page*, 35 NY3d 199; *Town of Aurora v Village of E. Aurora*, 32 NY3d 366; *Matter of Town of Riverhead v New York State Bd. of Real Prop. Servs.*, 5 NY3d 36.)

Government Justice Center, Inc., Albany (*Cameron J. Macdonald* of counsel), for Government Justice Center, Inc., amicus curiae. I. The 1777 New York Constitution introduced a voting by ballot experiment to ensure election integrity. II. The 1821 New York Constitution made voting by ballot permanent. III. The 1846 New York Constitution preserved elections by ballot. IV. A Civil War amendment made an exception for soldiers to vote by absentee ballot. V. The 1894 voting machine amendment did not affect absentee voting. VI. Post-Civil War absentee voting amendments were incremental and limited. VII. The 1966 amendment did not permit the Legislature to pass a mail-in voting law. VIII. The 1967 Constitutional Convention documents belie the Third Department's interpretation of article II of the New York Constitution.

OPINION OF THE COURT

Chief Judge WILSON.

Plaintiffs, a coalition of elected officials, registered voters, and party officials, challenge New York’s Early Mail Voter Act (the Act), which permits all registered voters to vote early by mail in any election in which the voter is eligible to vote. Plaintiffs maintain the Act is unconstitutional and seek a declaratory judgment and a permanent injunction against its implementation and enforcement. The question raised here is difficult. Though the State Constitution contains no language that explicitly requires in-person voting, the legislative and executive branches have often proceeded as if our Constitution requires as such. Our Court has never been asked to determine what the Constitution requires in this regard. Recently, the legislature assumed that the Constitution requires in-person voting, passing concurrent resolutions culminating in the 2021 proposed amendment to authorize mail-in voting. We acknowledge that the public rejected that amendment, and we take seriously both the legislature’s position in 2021 and the voters’ rejection of the proposed constitutional amendment. At the same time, we may not simply defer to the legislature’s assumptions about what the Constitution requires. Our task is to rigorously analyze the constitutional text and history to determine if New York’s Early Mail Voter Act is unconstitutional. We now hold that it is not.

I.

On September 20, 2023, the Act was signed into law, permitting any registered voter to apply to vote early by mail (L 2023, ch 481, codified as Election Law § 8-700 *et seq.*). The law became effective on January 1, 2024. Among other things, the Act authorizes all registered voters in New York to apply to “vote early by mail . . . in any election . . . in which the voter is eligible to vote” (Election Law § 8-700 [1]). The Act provides that early voting application forms may be filed either with the Board of Elections through the “electronic early mail ballot application transmittal system or in person with the board of inspectors” (*id.* § 8-700 [2] [b]), or through the mail (*see id.* § 8-700 [2] [d]), and that the applicant must certify “as the equivalent of an affidavit” their name, date of birth, address, and that they are a registered voter in the county where they are applying to vote (*id.* § 8-700 [3] [a], [b]; [6]).¹

The Act came on the heels of a failed constitutional amendment to allow universal absentee voting. The proposed amend-

1. Those procedures are essentially the same ones already in place for absentee voting (*see* Election Law § 8-400 *et seq.*) except that there is no

(n. cont’d)

ment was passed by the legislature in 2019 and 2021, with the explanation that voting by mail required a constitutional amendment because “the New York Constitution only allows absentee voting if a person expects to be absent from the county in which they live . . . or because of illness [or] physical disability” (Senate Introducer’s Mem in Support of 2019 NY Senate-Assembly Concurrent Resolution S1049, A778). Similarly, the ballot summary explained that the purpose of the amendment was to “eliminate the requirement that a voter provide a reason for voting by absentee ballot” (Ballot Proposal 4, 2021 Statewide Ballot Proposal: Abstract).² Voters rejected the proposed amendment in November 2021.

In 2023, the legislature passed the Act, stating that “early voting by mail” is different from the failed provision regarding “absentee voting” and falls within the legislature’s general power to regulating the manner of voting (Letter from NY St Bd of Elections, Aug. 23, 2023, Bill Jacket, L 2023, ch 481 at 15-16; NY Assembly Debate on 2023 NY Assembly Bill A7632A, June 9, 2023 at 343, 378, 380, 394). The same day the Act was signed into law, plaintiffs commenced this action against the Governor, the State Board of Elections, the Board’s co-chairs, and the State of New York seeking a declaratory judgment that the law violated the New York Constitution and an injunction against its enforcement.³

More specifically, plaintiffs maintained that the Act violated article II, § 2 of the New York Constitution, which reads:

“The legislature may, by general law, provide a manner in which, and the time and place at which, qualified voters who, on the occurrence of any election, may be absent from the county of their residence or, if residents of the city of New York, from the city, and qualified voters who, on the occurrence

requirement that the voter fit into the absentee categories described in section 8-400 (1).

2. In 2021, the bill sponsors referenced the use of vote-by-mail that was passed in response to the COVID-19 pandemic (*see* 2021 NY Senate-Assembly Concurrent Resolution S360, A4431).

3. The Democratic Congressional Campaign Committee, several voters, and New York federal and state elected officials intervened in defense of the constitutionality of the Act; our references to “defendants” include them. Board of Elections Co-Chair Peter S. Kosinski was named as a defendant in this action, however, throughout this litigation he has always supported the plaintiffs’ arguments; although he is nominally a defendant, our references to plaintiffs herein include him.

of any election, may be unable to appear personally at the polling place because of illness or physical disability, may vote and for the return and canvass of their votes” (NY Const, art II, § 2).

Although this text may not read conclusively to bar mail-in voting, plaintiffs emphasized that the Constitution has been historically understood as mandating in-person voting and that just a few years ago, the legislature acknowledged that a constitutional amendment would be required to institute universal mail-in voting. Plaintiffs also pointed out that the executive branch has, in other litigation, characterized the Constitution as requiring in-person voting.

Intervenor-defendants filed a proposed motion to dismiss the complaint. They argued that the Act did not conflict with article II, § 2; that the Act fell within the legislature’s broad powers under section 7; and that nothing else in the State Constitution rendered the Act unconstitutional. Defendants Kathy Hochul and the State of New York filed a separate motion to dismiss making similar arguments. Plaintiffs opposed defendants’ motions to dismiss and cross-moved for summary judgment.

Supreme Court declared the Act constitutional, granted defendants’ motions to dismiss, denied plaintiffs’ cross-motion for summary judgment, and dismissed the complaint (82 Misc 3d 1126 [Sup Ct, Albany County 2024]). The court agreed with defendants that given the plenary power of the state legislature, absent any “express or necessarily implied prohibition” in the Constitution, the legislature should be understood to have the power to regulate the manner of voting (*id.* at 1131). The court reasoned that because the Constitution did, at one point, have language requiring in-person voting that has since been removed, the removal of such language, coupled with the fact that article II, § 2 has no express language prohibiting mail-in voting, “evinces the intent that in-person voting no longer be required” (*id.* at 1133). Accordingly, the court held that plaintiffs had failed to meet their burden of demonstrating the Act’s unconstitutionality (*id.*).

Plaintiffs appealed, and the Appellate Division unanimously affirmed (229 AD3d 79 [3d Dept 2024]). The Court highlighted the text of the Constitution, which grants the legislature explicit power to regulate elections (229 AD3d at 89, citing NY Const, art II, § 7 [elections shall take place “by ballot, or by such other method as may be prescribed by law, provided that

secrecy in voting be preserved”]) and notably does not prohibit mail-in voting (229 AD3d at 84, 87-88). The Court also highlighted the history of article II, § 2, noting that between 1846 and 1966, the Constitution contained a provision that voters must vote “in the election district of which he shall at the time be a resident, and not elsewhere” (229 AD3d at 85-86, citing 1846 NY Const, art II, § 1 [hereinafter the Election District Provision]). The Court emphasized that it was against this backdrop a variety of constitutional amendments were adopted that created exceptions to that rule for soldiers, ill persons, and eventually absentees, and that the current article II, § 2, adopted in 1963, was one such amendment (229 AD3d at 85-86).

At the same time, the Court noted that in 1966, an amendment significantly streamlined article II, § 1, which, among other things, deleted the Election District Provision (229 AD3d at 86-87). The Court reasoned that this deletion removed the constitutional requirement for in-person voting, looking also to the three statutes expanding absentee voting to additional groups the legislature since passed as support (229 AD3d at 88, citing Election Law §§ 11-302, 11-306, 11-308). The Court found the historical record to be decisive of the fact that since 1966 there has not been a constitutional in-person voting requirement, despite acknowledging that its reading might make article II, § 2 largely superfluous (229 AD3d at 90-91).

Plaintiffs appealed as of right (*see* CPLR 5601 [b] [1]). We now affirm.

II.

It is a “well settled [rule] that [l]egislative enactments are entitled to a strong presumption of constitutionality, and courts strike them down only as a last unavoidable result after every reasonable mode of reconciliation of the statute with the Constitution has been resorted to, and reconciliation has been found impossible” (*White v Cuomo*, 38 NY3d 209, 216 [2022] [internal quotation marks and citations omitted]). Moreover,

“[a]n arrangement made by law for enabling the citizen to vote should not be invalidated by the courts unless the arguments against it are so clear and conclusive as to be unanswerable. Every presumption is in favor of the validity of such a law, and it is only when the courts are compelled

by force of reason and argument that they will declare such a law invalid” (*People ex rel. Lardner v Carson*, 155 NY 491, 501 [1898]).

Nonetheless, it is “the responsibility of the courts” to define the rights and prohibitions set forth in the State Constitution, “which constrain the activities of all three branches” of the government (*Board of Educ., Levittown Union Free School Dist. v Nyquist*, 57 NY2d 27, 39 [1982]).

The legislature’s power to enact laws is plenary—limited only by the Federal and State Constitutions (see *Matter of McAneny v Board of Estimate & Apportionment of City of N.Y.*, 232 NY 377, 389 [1922]; *Lawton v Steele*, 119 NY 226, 232-233 [1890], *affd* 152 US 133 [1894]). This includes “plenary power over the whole subject of elections” (*People ex rel. Lardner*, 155 NY at 502; see *Matter of Burr v Voorhis*, 229 NY 382, 388 [1920]). Accordingly, rather than enumerating the legislature’s permitted functions, the State Constitution generally operates to limit this plenary authority by imposing restrictions on the legislature’s exercise of its powers (Peter J. Galie & Christopher Bopst, *The New York State Constitution* at 112 [2d ed 2012]). The question in determining the constitutionality of a legislative action is therefore not whether the State Constitution permits the act, but whether it prohibits it. “Obedience must be rendered to statutes which do not offend against such restrictions, even though they may seem to us impolitic” (*Village of Kenmore v County of Erie*, 252 NY 437, 441 [1930]).

Although plaintiffs contend *Matter of Kuhn v Curran* should guide our constitutional construction (see 294 NY 207, 217 [1945]), we have since disavowed its approach (see *Golden v Koch*, 49 NY2d 690, 694 [1980]; see also *Matter of Carey v Morton*, 297 NY 361, 366 [1948]). Thus, to resolve the legality of the Act, we must start with the text of the Constitution (see *Matter of Harkenrider v Hochul*, 38 NY3d 494, 509 [2022]).

III.

The question that confronts us is whether the Constitution prevents the legislature from enacting universal, no-excuse, mail-in voting in a manner that overcomes the strong presumption of constitutionality we must afford the Act. Initially, nothing in the Constitution’s text clearly establishes an in-person voting requirement. Before 1966, the legislature and executive branch—citing the Election District Provision—often believed that the Constitution required in-person voting and acted ac-

cordingly. Although the status of the Election District Provision as a source of any in-person voting requirement is less than certain, in 1966, the provision was removed through a constitutional amendment. Since then, the legislature and executive branch have more often acted as if no constitutional amendment was necessary to allow certain groups to vote without being present at the polls.

Thus, to adopt plaintiffs’ position, we would either have to conclude that the pre-1966 Constitution contained an in-person voting requirement separate from the Election District Provision, or that the Election District Provision embodied an in-person voting requirement and that the removal of that requirement was somehow inadvertent or accidental in a way that rendered it ineffective. Neither the parties’ arguments supporting those propositions, nor the legislative history are sufficient to overcome the very strong presumption of constitutionality.

A.

Plaintiffs first argue that New York’s original Constitution, in 1777, textually mandated in-person voting via article II, § 1. The provision states in relevant part that “[e]very citizen shall be entitled to vote *at* every election” (NY Const, art II, § 1 [emphasis added]), and plaintiffs argue that the preposition “at” refers to, and mandates, voting in person. To start, plaintiffs contend that because the 1777 Constitution replaced viva voce voting (voting by voice) with ballot voting, the Constitution must require in-person voting. That does not follow. First, if, whether by custom or practical necessity, people in 1777 voted by voice, the fact that they did so is not evidence of a constitutional requirement. Moreover, because the 1777 Constitution replaced viva voce voting with ballot voting, one could instead conclude that the 1777 Constitution abandoned a requirement that voting must be in person, because (unlike voice voting) ballots do not necessarily have to be cast in person.

Turning to the constitutional language, both in 1777 and today, article II, § 1 guarantees the right to vote to every person who satisfies the then-applicable eligibility requirements. It does not place a limitation on the physical location of voting. Plaintiffs’ textual argument based on the word “at” is meritless, and no member of this Court accepts it. The word “at” may be used to denote both the location and time of some

specific event (*see* Cambridge Online English Dictionary, at [https://dictionary.cambridge.org/us/dictionary/english/at]). Indeed, “voting *at* an election” is a long-standing and very common idiom having nothing to do with any restriction on place; it carries the same meaning as “in.”⁴ The constitutional provision, by its plain reading, guarantees eligible persons the right to vote at elections and says nothing about where or when the voting must take place. Thus, “at every election” communicates the same meaning as “in every election.” Accordingly, the 1777 constitutional provision “at an election” cannot reasonably be interpreted to require in-person voting.

B.

The 1821 New York Constitution provided that every male citizen over the age of 21 years, who met certain other qualifications, “shall be entitled to vote in the town or ward where he actually resides, and not elsewhere” (1821 NY Const, art II, § 1). That language was reenacted in 1846 as:

“Every male citizen of the age of twenty-one years, who shall have been a citizen for ten days, and an inhabitant of this state one year next preceding any election, and for the last four months a resident of the county where he may offer his vote, shall be entitled to vote at such election *in the election district of which he shall at the time be a resident, and not elsewhere*, for all officers that are now

4. The common usage of “voting at an election” can be seen in reference to political elections (*see e.g.* US Const, Amend XIV, § 2 [“when the right to vote at any election for the choice of electors for President and Vice President of the United States”]; Election Law § 5-102 [1] [“No person shall be qualified to register for and vote at any election unless he is a citizen of the United States”]; 52 USC § 10101 [a] [1] [“All citizens of the United States who are otherwise qualified by law to vote at any election by the people in any State”]; *Dubuclet v Louisiana*, 103 US 550, 552 [1881] [“The laws of Louisiana, it is conceded, gave colored men the right to vote at all elections”]), but is not limited to that subject matter. To “vote at an election” is also routinely used to describe voting of all sorts, without any suggestion of a constitutional limitation on the place or manner by which voting must take place (*see e.g.* *Anderson v Abbott*, 321 US 349, 375 n 3 [1944] [“Any such holding company affiliate may make application to the Federal Reserve Board for a voting permit entitling it to cast one vote at all elections of directors” (quoting section 19 of the Banking Act of 1933)]; *Matter of Mutual Fire Ins. Co.*, 164 NY 10, 16 [1900] [“holders of cash policies were persons insured in the company . . . and as such it appears to us that they were entitled to vote at any election of the company”]).

or hereafter may be elective by the people” (1846 NY Const, art II, § 1 [emphasis added]).

Voting “in the election district” where one resides does not necessarily require that the vote be in person. The purpose of the provision, as reflected in the legislative history, shows that it was intended as an anti-fraud measure, designed to prevent people from swaying an election by traveling to vote for candidates who were not their own representatives. The debate about this provision centered on the concern that people would be “imported” to swing elections just before they occurred, and mostly addressed how long a person should need to be a resident somewhere before being eligible to vote for candidates properly on the ballot in that place (*see e.g.* L.H. Clarke, A Report of the Debates and Proceedings of the Convention of the State of New-York, Held at the Capitol, in the City of Albany, on the 28th Day of August, 1821 at 111-112 [1821] [hereinafter 1821 Convention Proceedings]; William G. Bishop & William H. Attree, Report of the Debates and Proceedings of the Convention for the Revision of the Constitution of the State of New-York at 1036-1037, 1042-1044 [1846]; *see also People ex rel. Lardner*, 155 NY at 500 [“The purpose of the restriction was to prevent fraud and repeating”]).⁵ The debates do not contain any mention of an in-person voting requirement or the possibility of voting by mail or some other method, likely because before the Civil War, voting was universally conducted at polling places.

The Civil War brought with it an exigency: how could Union soldiers stationed away from home vote, given the large numbers of otherwise eligible soldiers who were not present in their districts during elections (2 Charles Z. Lincoln, *The Constitutional History of New York* at 235 [1906]). The legislature’s initial view was that it could pass a statute permitting Union soldiers to vote remotely—that no constitutional amendment was required for it to do so. Thus, in 1863, the legislature passed a bill allowing soldiers to vote if they were not present in their election districts (*id.* at 235-236).

5. One delegate stated that “[t]o me, and the majority of the committee, it appeared the only reasonable scheme that those who are to be affected by the acts of the government, should be annually entitled to vote for those who administer it” (1821 Convention Proceedings at 97). Another delegate explained the amendment as designed “to prevent contiguous counties from pouring their population into another for a special purpose” (*id.* at 111).

However, Governor Seymour, who opposed allowing soldiers to vote,⁶ vetoed the legislation (*id.* at 237-238). In explaining his veto, he seized on the Election District Provision as the source of a constitutional requirement that voting must be conducted in person (*id.* at 236-239).

Notably, however, contemporaneous judicial decisions in other states suggest that Governor Seymour's interpretation was highly uncertain. Several states with similar constitutions did not interpret them to mandate in-person voting (*see Morrison v Springer*, 15 Iowa 304 [1863]; *Lehman v McBride*, 15 Ohio St 573, 576 [1863] [the Constitution speaks to the place of residence, not the location of voting]; *State ex rel. Chandler v Main*, 16 Wis 398, 398 [1863] ["no person shall vote for county officers out of the county in which he resides" prohibits voting for officers of the wrong county, not voting out of state for the correct county]). On the other hand, some states held that their constitutions mandated in-person voting (*see People ex rel. Twitchell v Blodgett*, 13 Mich 127, 142-145 [1865] ["offers to vote" in a particular township "by ballot" contemplates personal presence of the elector]; *Bourland v Hildreth*, 26 Cal 161, 186, 195-197 [1864] ["claims his vote" in a particular county and the word "vote" itself requires personal presence]; *Chase v Miller*,

6. Governor Seymour was a Democrat and Democrats at that time opposed letting soldiers vote by mail because they thought the soldier vote would support the Republicans (Mr. Lincoln and New York, *Soldier's Votes*, available at <https://www.mrlincolnannewyork.org/new-york-politics/soldiers-votes> [last accessed Aug. 20, 2024]; Jonathan W. White, *Canvassing the Troops: The Federal Government and the Soldiers' Right to Vote*, 50 Civil War History 291 [2004]). Although President Lincoln was eventually reelected by a comfortable margin, as late as the end of August 1864, it appeared that he would lose (*see generally* David Herbert Donald, *Lincoln* at 528-530 [1996]; *id.* at 529 [on August 22, 1864, Henry J. Raymond, chairman of the National Union Executive Committee, warned Lincoln that he would lose New York by 50,000 votes]; Timothy P. Townsend, *Lincoln, Grant and the 1864 Election*, available at <https://home.nps.gov/liho/learn/historyculture/lincolngrant.htm> [last accessed Aug. 20, 2024]; *see also* Library of Congress, *Abraham Lincoln papers: Series 3. General Correspondence. 1837-1987: Abraham Lincoln, Tuesday, August 23, 1864 [Memorandum on Probable Failure of Reelection; endorsed by members of cabinet]*, available at <http://hdl.loc.gov/loc.mss/ms000001.mss30189a.4359700> [last accessed Aug. 20, 2024]). Thus, it is not clear how much Governor Seymour's view (and veto) was based on an analysis of the Constitution, and how much was based on political motivations. Likewise, the legislature's resolutions and the voters' adoption of the amendment permitting soldiers to vote may have reflected a practical work-around of the Governor's veto, not an acceptance of his interpretation of the Constitution.

41 Pa 403, 419 [1862]).⁷ The principal points drawn from this history are that no result was then thought as indisputably correct, and no judicial resolution of the issue occurred in New York.

Although more than two thirds of the Senators and a majority of the Assembly members voted to override Governor Seymour’s veto (thereby indicating their belief that the Constitution did not prevent absentee voting, although unable to obtain the two thirds in the Assembly necessary to override the Governor), the legislature took the only remaining available route, proposing an amendment to the Constitution (*see* 2 Lincoln, *The Constitutional History of New York* at 239). The amendment was approved by the people (by a more than 5 to 1 margin) at a special election in March of 1864, granting the legislature “power to provide the manner in which, and the time and place at which, such absent electors may vote, and for the canvass and return of their votes in the election districts in which they respectively reside, or otherwise” so that “in time of war no elector in the actual military service of the United States, in the Army or Navy thereof, shall be deprived of his vote by reason of his absence from the state” (*id.* at 239, quoting 1846 NY Const, art II, § 1, as amended Mar. 8, 1864). The legislature then passed a bill enabling soldiers to vote absentee, similar to the one vetoed in 1863, and the Governor signed it (*id.*). The Court of Appeals was never asked to determine whether the Election District Provision, in fact, represented an in-person voting requirement.

The closest we came to considering the scope of the Election District Provision was in *People ex rel. Lardner v Carson* (155 NY at 497), decided shortly after the Civil War. There, we held that “the whole subject of creating election districts and locat-

7. Our dissenting colleague observes that in *State ex rel. Chandler v Main*, counsel “appears” to have argued that the phrase in New York’s Constitution—“vote in the town or ward where he actually resides, and not elsewhere”—was materially different from that in Wisconsin’s Constitution—“provided, that no person shall vote for county officers out of the county in which he resides” (16 Wis at 412, 415; dissenting op at 104). Those provisions have precisely the same meaning and, in any event, Wisconsin’s Supreme Court made no mention of any such difference in reaching its decision that the above phrase in Wisconsin’s Constitution was not intended “to prohibit any voter from ever being allowed to cast his ballot outside of the county in which he resided . . . [but rather] only to prohibit any voter from voting for the county officers of a county in which he did not reside” (16 Wis at 415). As discussed *supra* at 60-61, the legislative history of the Election District Provision supports that same view.

ing the polling places where the residents of the district may vote, is with the legislature, and it may lawfully delegate this power to local authorities” (*id.*). In *Lardner*, the relator argued that the Election District Provision’s requirement “that the elector must vote ‘in the election district of which he shall at the time be a resident and not elsewhere’”—the same language referenced in this case—invalidated certain votes that were cast at a polling place located outside of the election district, though designated as the location for those voters to cast their votes (*id.* at 495-496). We rejected the relator’s argument on the ground that “an election district is just what the legislature chooses to make it. In this respect it is supreme” (*id.* at 496). *Lardner* emphasizes the legislature’s broad discretion over the methods of conducting elections, as expressed in the amendment adopted a few years earlier.

As our colleagues point out, *Lardner* also contains language stating that “[n]o vote can be registered, cast or counted in this state except at the polling place of some election district” (*id.* at 498); “[a]ll that the Constitution requires is that the elector must vote at the polling place designated by law for casting the vote of the district where he resides” (*id.* at 500); and the Constitution “is fully complied with when [a voter] votes with his neighbors at the place designated by law for that purpose” (*id.* at 503). But whether the legislature could authorize ballots to be mailed to a polling place was not even remotely an issue in that case, rendering those statements wholly unnecessary to our holding. Moreover, our holding—that “the whole subject of creating election districts and locating the polling places where the residents of the district may vote, is with the legislature” (155 NY at 497)—supports the proposition that the legislature’s express constitutional power over the method of conducting elections would extend to allowing ballots to be delivered to polling places by mail (or any other method, so long as secrecy was preserved). Thus, contrary to the way in which our colleagues read *Lardner* (as holding that the Constitution in 1898 required in-person voting), that case reemphasizes the broad power of the legislature to determine the method of elections.⁸ To the extent *Lardner* could be interpreted in two different

8. Our dissenting colleague quotes dicta from both *Lardner* and *Matter of Gross v Albany County Bd. of Elections* (3 NY3d 251 [2004]) as if those snippets were holdings (*see* dissenting op at 100-101). They are not. *Lardner*’s holding is that the legislature may delegate to localities the power to locate polling places outside of the pertinent election district (*see* 155 NY at 496-

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ways, that merely adds to the uncertainty as to whether the Constitution requires that voting must be in person.

Nevertheless, for nearly a century thereafter, when the legislature extended voting to groups of voters who were not present in their election district on Election Day, it did so by proposing a constitutional amendment, to be acted on by popular referendum. In 1919, the voters approved an amendment to allow absentee voting for people unavoidably absent due to their occupation or business (1894 NY Const, art II, § 1-a, as added Nov. 4, 1919). In 1923, the voters authorized an amendment to the Constitution to allow absentee voting by residents of soldiers' homes and again in 1929 to allow patients in veterans' hospitals to vote by absentee ballot. The voters approved additional amendments in 1947 to permit absentee voting by those unavoidably absent due to business of a family member (NY Const, art II, § 2, as amended Nov. 4, 1947), in 1955 to allow absentee voting by those unable to appear because of illness or physical disability (NY Const, art II, § 2, as amended Nov. 8, 1955), and in 1963 to allow absentee voting by persons absent from their place of residence for any reason (NY Const, art II, § 2, as amended Nov. 6, 1963). A fair interpretation is that, from 1919 to 1963, the legislature believed that the Constitution forbade absentee voting, which therefore could be accomplished only by a constitutional amendment.

C.

Plaintiffs and defendants both identify the Election District Provision as the source of the constitutional requirement that all voting be conducted in person. That provision, however, was removed by a constitutional amendment in 1966, so it can no longer serve as a textual basis constraining the legislature's power to permit voting by mail.⁹ Indeed, shortly after the deletion of the Election District Provision, the 1967 Temporary

497). Our holding in *Matter of Gross* is that “absentee ballots collected in violation of both a federal court order and article 8 of the Election Law are invalid” (3 NY3d at 255). Our holding did not depend on any interpretation of our Constitution.

9. Plaintiffs and our dissenting colleague rely heavily on the Election District Provision's “and not elsewhere” language to conclude there was an in-person requirement (*see* dissenting op at 100-101, 103, 103-104). Yet that language was eliminated by vote of the people. To accept our dissenting colleague's theory that we must entirely ignore history and look only to what remains in the Constitution (section 2, the grant of authority for absentee voting), would mean that even if the 1966 referendum had publicly been explained as designed to authorize mail-in voting, because section 2

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Commission on the Constitutional Convention observed that the deletion of that provision may have had the effect of allowing remote voting (*see* 1967 Rep of Temp St Commn on Constitutional Convention, Rep No. 4, The Right to Vote at 51 n 28 [explaining that the removal of the Election District Provision in 1966 might be interpreted to “bar the Legislature from prescribing absentee voting in cases not within the scope of” section 2’s absentee ballot provision, but might alternatively be interpreted “to give the Legislature unrestricted discretion over absentee voting”]).

For several decades thereafter, the legislature extended absentee voting to several new groups by statute, without any suggestion that a constitutional amendment was needed. The legislative history of those provisions does not shed light on the question of why the legislature concluded no constitutional amendment was required. In 1982, the election worker ballot was enacted (Election Law § 11-302, as added by L 1982, ch 178). Although in the legislative materials, the Board of Elections stated that this special ballot “must be cast in person” and is “not an absentee ballot” (St Bd of Elections Mem in Support, Bill Jacket, L 1982, ch 178), the Board of Elections and courts have subsequently interpreted it to allow mail-in voting (*see Matter of Panio v Sunderland*, 14 AD3d 627, 631 [2d Dept 2005] [“It is undisputed that the Board (of Elections) has never printed or provided a special ballot application or a special ballot for poll workers. Instead, the Board has historically instructed poll workers to apply for, and vote by, absentee ballots”]).

The legislature passed similar laws to allow victims of domestic violence, caretakers, and emergency responders to vote by mail. In 1996, the legislature permitted victims of domestic violence to vote by “special ballot” without regard to whether they were present in their election district on Election Day (Election Law § 11-306, as added by L 1996, ch 702). As with election workers, the original legislation says the ballots must be “delivered,” but the provision was specifically amended in 2019 to allow domestic violence victims to deliver their votes by mail (L 2019, ch 150)—again, without any suggestion that a constitutional amendment was needed.

remained, we would nevertheless have to hold that mail-in voting is prohibited. To the contrary, in determining whether section 2 standing alone is sufficient to overcome the strong presumption of constitutionality we must afford to the Act, the constitutional history of that provision is clearly relevant.

Next, in 2009, the legislature unanimously amended the absentee voting statute to allow all persons to vote by absentee ballot if they have “duties related to the primary care of one or more individuals who are ill or physically disabled” (Election Law § 8-400 [1] [b]; [3] [c] [ii]; L 2009, ch 426). Finally, in 2016, the legislature enacted a statute to allow emergency responders to vote by mail (Election Law § 11-308; L 2016, ch 485). The text states that the ballots may be “delivered” to any office of any Board of Elections (without specification of by whom or how), and the State Board of Elections has interpreted the word “delivered” to mean ballots can be returned either in person or by mail (*see* New York State Board of Elections, New York State Special Ballot Application for Emergency Responders, https://www.vote.nyc/sites/default/files/pdf/Absentee_voting/SpecialBallotAppEmergencyResponders.pdf [last accessed Aug. 20, 2024]). Interestingly, the statute provides that even ballots delivered to the wrong location are validly cast and acceptable (*see* Election Law § 11-308 [5] [“special ballots received by boards of elections from voters under the jurisdiction of another board of elections shall be date and time-stamped and immediately forwarded to the voter’s board of elections”]).

Contrary to the dissent’s view (*see* dissenting op at 109-111), article II, § 2 cannot be the legislature’s source of authority to permit election workers, first responders, victims of domestic violence, or caretakers of ill or physically disabled persons to vote by some means other than in-person at the polls. For example, the Election Law requires only that victims of domestic violence have “left” their “residence because of” the domestic violence (Election Law § 11-306 [1] [b]). The statute permits absentee voting for all such victims who “wish[] to cast a special ballot” because “of the threat of physical or emotional harm to himself or herself or to family or household members” (Election Law § 11-306 [1] [c]). The dissent’s assertion that this provision is “consistent with” article II, § 2 because it “hinges on the voter’s attestation that they will be absent from their registered residence” (dissenting op at 110) is incorrect, because that does not amount to a requirement that the voter be “absent from the county of their residence” (NY Const, art II, § 2). Likewise, caretakers of ill or physically disabled persons must attest that they are “unable to appear personally at the polling place . . . because of . . . duties related to” care of such persons (Election Law § 8-400 [1] [b]), but article II, § 2

requires that a qualifying inability to appear must be “because of illness or disability”—not because of duties related to someone else’s illness or disability.

Plaintiffs challenge the post-1966 statutory exceptions to in-person voting as untested by the courts and therefore not very meaningful. But the same can be said for the various constitutional amendments adopted between 1864 and 1963—this Court was never asked to determine whether our Constitution required votes to be cast in person at a polling place on Election Day. In both circumstances, the legislative and executive branches proceeded under judicially untested assumptions that were both largely unexamined by the legislature and which differed markedly at different points in time.

D.

Plaintiffs advance two reasons why the Constitution continues to require in-person voting even after the Election District Provision was removed. First, they propose that if so drastic a change had been intended, the 1966 referendum and supporting materials would have at least mentioned it. Second, they contend that the retention of the provision authorizing absentee ballots for specific groups should be read to prevent mail-in voting by all others. Neither proposition is sufficient to overcome the strong presumption of constitutionality we must afford to the Act.

As to the first, it is not certain that the Constitution ever required in-person voting. Contrary to the parties’ assumption here, the Election District Provision may never have been a source of an in-person voting requirement but rather, as explained *supra* at 60-61, a provision designed to prevent voters from voting for candidates for whom they were not entitled to vote.¹⁰ Thus, the 1966 amendment’s explanatory materials may not have mentioned any change to the in-person voting requirement because the existence of that requirement was unclear and untested.

As to plaintiffs’ second argument, because it is not clear that a constitutional amendment was required to permit absentee voting in the first place, little can be inferred from the reten-

10. Notably, Co-Chair Kosinski, who has always supported plaintiffs’ position that the Constitution requires in-person voting, forcefully contends that the Election District Provision is not the source of any in-person voting requirement.

tion of preexisting constitutional authorization for absentee voting by specific classes of persons. If the Constitution never required in-person voting, the amendments were superfluous and could not be interpreted to add a restriction when they are worded as expansions. But even if plaintiffs were correct in their contention that the Election District Provision was the source of a constitutional in-person voting requirement, the elimination of that provision cannot reasonably be interpreted to have converted a voting expansion (the authorization for absentee voting by specified groups) into a prohibition clear enough to overcome the strong presumption of constitutionality that we must afford to the Act.

Under the interpretive aid of *expressio unius est exclusio alterius*, we may resolve ambiguity in a statute by looking to what a legislature has expressly included to conclude that other, dissimilar items were meant to be excluded (*see* McKinney’s Cons Laws of NY, Book 1, Statutes § 240, Comment). The canon applies with particular force where a statute creates provisos or exemptions, because “the inclusion of such provisos or exceptions is generally considered to deny the existence of others not mentioned” (*id.*). Plaintiffs’ resort to that doctrine here is unavailing. They contend that because article II, § 2 lists certain groups that the legislature may permit to vote by absentee ballot, we should interpret the Constitution to exclude all others. Even putting aside whether *expressio unius* is appropriate when interpreting the Constitution, that aid is unhelpful here.

If section 2 had been adopted against a blank slate, plaintiffs’ argument would have more force.¹¹ However, as discussed previously, the original grant of authority (for Union soldiers) was

11. Contrary to the dissent’s understanding of *expressio unius* (*see* dissenting op at 97-98), it is “not . . . an ironbound rule of law excluding in all cases from the operation of a statute those things which are not enumerated therein. It is merely an aid to be utilized in ascertaining the meaning of a statute when its language is ambiguous” (McKinney’s Cons Laws of NY, Book 1, Statutes § 240, Comment; *see Brennan-Centrella v Ritz-Craft Corp. of Pa.*, 942 F3d 106, 111 [2d Cir 2019] [the maxim is “only an aid to statutory construction, not a rule of law, making the principle an uncertain guide to interpretation” (internal quotation marks and citation omitted)]; *see also Westnau Land Corp. v United States Small Bus. Admin.*, 1 F3d 112, 116 [2d Cir 1993] [“The controlling consideration is legislative intent . . . Since not every silence is pregnant, *expressio unius* is an uncertain guide to interpretation” (internal quotation marks, brackets and citations omitted)]). Additionally, mechanically applying the maxim to interpret the Constitution in a vacuum, as the dissent would have us do (*see* dissenting op at 98-99), would not

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adopted to respond to an unprecedented wartime exigency where different views about the Constitution were strongly held, and the provision was amended as a political solution that bypassed the legal question of what the Constitution required. Moreover, if one accepts plaintiffs' view that the Election District Provision was the source of the in-person voting requirement, then section 2 should be viewed as enumerating exceptions to that requirement, not as itself creating a general rule prohibiting the legislature from allowing absentee voting in any other circumstances. Thus, the removal of the Election District Provision would have the effect of rendering the exceptions unnecessary, rather than converting the exceptions themselves into a general rule. Instead, plaintiffs' *expressio unius* argument would have us hold that the 1966 amendment, which was expressly intended to *broaden* voter participation, had the silent effect of converting section 2—which was itself intended to broaden voter participation—into the repository for a ban on in-person voting. *Expressio unius* assists when its premise is true: that because the legislature listed certain things, it meant to exclude others. Here, however, that premise is false: we cannot infer that because the legislature acted several times to make voting easier for people outside their election districts, that when it acted in 1966 to further expand voting,¹² its intent was to restrict it.

Plaintiffs' remaining point is that if the Constitution does not require in-person voting, section 2 is superfluous, and we should not read provisions of a statute (or constitution) to be superfluous. But the very point of the 1864 constitutional

aid in its purpose of divining the legislative intent (*see Price v Price*, 69 NY2d 8, 16 n 3 [1986] ["The maxim 'is merely an aid to be utilized in ascertaining the meaning of a statute when its language is ambiguous, and should be applied to accomplish the legislative intention, not to defeat it' " (quoting McKinney's Cons Laws of NY, Book 1, Statutes § 240, Comment)]; *United States v Barnes*, 222 US 513, 519 [1912] [*expressio unius* "expresses a rule of construction, not of substantive law, and serves only as an aid in discovering the legislative intent when that is not otherwise manifest"]).

12. The legislative and constitutional history materials describe the 1966 amendment as one aiming to reduce residency requirements to three months (*see* Abstract of Proposed Amendment No. 6 [1966]; 1967 Rep of Temp St Commn on Constitutional Convention, Rep No. 4, The Right to Vote at 10, 29, 48-51) as part of an effort to increase voter participation (*see* 1965 NY Senate-Assembly Concurrent Resolution S5519, A923 [proposing amendment to NY Const, art II, § 1]; Rep of Joint Legis Comm to Make a Study of the Election Law and Related Statutes, 1966 NY Legis Doc No. 30 at 11 [acknowledging objective to "(l)iberaliz(e) . . . laws pertaining to registration and voting to achieve an increase in voter participation"]).

amendment—which first introduced the absentee ballot exception—was to circumvent an uncertainty as to what the Constitution required. That is, contemporaneous events show that the original constitutional amendment may well have been superfluous if the Constitution did not limit voting to in-person voting. Only now are we called on to pass on that question, and “superfluity” in this context would mean only that the legislature took legally unnecessary, though lawful, steps to achieve a desired result. Even under plaintiffs’ view that the Election District Provision imposed an in-person voting requirement, we would conclude that the elimination of that provision in 1966 rendered section 2 a historical remnant that the legislature failed to clean up. As an example, the 1864 constitutional provision authorizing the legislature to permit absentee voting for soldiers and sailors remained in the Constitution for almost 50 years after the Constitution was amended in 1919 to permit anyone to vote by absentee ballot if their “duties, occupation, or business” required them to be outside of their district of residence (*see* 1894 NY Const, art II, § 1-a, as added Nov. 4, 1919). Because soldiers and sailors who were absent from their election districts would fall within the terms of those absent because of their “duties, occupation, or business,” the special exception for soldiers and sailors was superfluous after the 1919 amendment, but it was not until 1966 that the legislature got around to proposing an amendment that eliminated the superfluous language—despite several other amendments to that section in the interim. In any event, the canon against superfluity is not absolute (*RadLAX Gateway Hotel, LLC v Amalgamated Bank*, 566 US 639, 645, 646-647 [2012]), and its application here is insufficient to overcome the strong presumption of constitutionality.

E.

Finally, article II, § 7 reinforces the legislature’s plenary power to conduct elections in the method it sees fit. Initially, the Constitution mandated that voting be “by ballot” (1821 NY Const, art II, § 4; 1846 NY Const, art II, § 5 [the 1821 and 1846 Constitutions provided that “(a)ll elections by the citizens shall be by ballot, except for such town officers as may by law be directed to be otherwise chosen”]). In 1894, however, the Constitutional Convention removed that requirement, adopting instead language that elections “shall be by ballot, *or by such other method as may be prescribed by law*” (1894 NY

Const, art II, § 5, now NY Const, art II, § 7 [emphasis added]). That language allowed the legislature to authorize any “method” for elections. A “method” is “a procedure or process for attaining an object” or “a way, technique, or process of or for doing something” (Merriam-Webster.com Dictionary, method [<https://www.merriam-webster.com/dictionary/method>]); voting by mail is a “method” of conducting an election.

Importantly, the Convention extensively debated an alternative amendment that would have authorized elections to be conducted by ballot or by voting machine but rejected that in favor of the broader language authorizing the legislature to approve any other method. Delegates such as Hamlin opposed the broader amendment on the ground that it would allow “any machine in the future [to be] used,” and that “[i]f the time shall ever come when there is some device that has been demonstrated after repeated experiments to be successful, it will be ample time for the people of this State to put it in their Constitution” (3 Rev Rec, 1894 NY Constitutional Convention at 85-86). Rejecting that view, the Convention adopted the broad amendment, supported by delegates who explained that “in case the Legislature shall deem it advisable in the future, in view of improvements which may be made, to adopt any one of them, the Legislature will be authorized to do so” (*id.* at 88-91). The provision was revised to ensure that the legislature possessed the maximum flexibility to determine the method of elections, limited to methods that preserved “secrecy in voting” (*id.* at 93).¹³ Indeed, although no “‘inventive genius’ was needed to envision putting a stamp on an envelope” in 1894 (dissenting op at 106), the Convention was not deciding whether to al-

13. Several delegates reiterated that the amendment was intended to ensure that the legislature would be unfettered to adapt even then-unknown methods of voting (*see id.* at 88-89 [“are we ready at this stage, in the nineteenth century, to say that it is impossible . . . that any machine may be devised for voting, or any other method may be devised than voting ‘by ballot’? . . . The object of this amendment . . . is to empower the Legislature to provide for elections by some other method than ‘by ballot,’ in case such other method be sufficiently approved to warrant its introduction, and that only. . . . This amendment opens the door to all improvements Some improved methods may be devised which will obviate all the difficulties which have been suggested as incident to the Myers machine, and will supersede the cumbersome and expensive method of voting under the present electoral law”]; *id.* at 87 [the Constitution should not contain “a prohibition against further advance in the making or in the use of devices having reference to such an important matter as elections”]). Their view carried the day.

low voting by mail (or voting by machine); it was deciding whether the legislature should be given unfettered authority to determine the method of voting in the future, known or unknown (*see* 3 Rev Rec, 1894 NY Constitutional Convention at 92 [“It is not a question as to whether the people shall be permitted to vote by a machine or by method other than that now prescribed by law, but it is a question whether or not this Convention is willing to give to the Legislature a permission to act on its own judgment as to the method of voting to be pursued by the people”]).

The Convention’s history expresses the amendment’s clear purpose to permit future legislators to determine the method of voting—expressly emphasizing the need to empower the legislature to adapt to technological changes and to improve the efficiency of voting. Where the preexisting limit of “by ballot” limited the legislature’s plenary power, adding “or by such other method” eliminated the restriction that votes be by ballot, and affirmatively stated that any other method—including those that could not even be thought of at the time—would be allowed by the Constitution. The broad grant of power in the amendment is difficult to reconcile with the proposition that voting must be conducted in person, especially because the Constitution does not expressly require as such.

IV.

Admittedly, the recent sequence of events is troubling. In 2019 and 2021, the legislature passed resolutions authorizing a ballot referendum to amend the Constitution to permit voting by mail and, in 2021, informed the voters that if they wished to be able to vote by mail, they needed to vote to amend the Constitution. The voters considered the proposition and voted against it. Having lost the question before the voters, the legislature then decided that no constitutional amendment was required and passed the Act. Upholding the Act in these circumstances may be seen by some as disregarding the will of those who voted in 2021. But our role is to determine what our Constitution requires, even when the resulting analysis leads to a conclusion that appears, or is, unpopular (*see e.g. Marbury v Madison*, 1 Cranch [5 US] 137, 178 [1803] [“It is emphatically the province and duty of the judicial department to say

what the law is”)].¹⁴

The essence of our concurring and dissenting colleagues’ opinions is our consideration of the constitutional history pertinent to voting is improper, because the text of the Constitution is absolutely clear (*see* concurring op at 75, 83-84, 86-87, 90; dissenting op at 97, 98-102, 109, 111, 114). That each insists the text is clear in diametrically opposed ways¹⁵ demonstrates the soundness of our approach. Had there been a clear, unequivocal, and persistent understanding by our coordinate branches that the Constitution required in-person voting, this would be a more difficult case. However, the lack of textual support for an in-person voting requirement and the equivocal nature of the constitutional history regarding such a requirement do not allow us to overcome the very strong presumption of constitutionality we must afford to the Act.

Accordingly, the order of the Appellate Division should be affirmed, without costs.

RIVERA, J. (concurring). Plaintiffs challenge the Early Mail Voter Act—which permits early voting by mail-in ballot—on the sole ground that, with the exception of absentee voters, the State Constitution requires all eligible voters to cast their ballots in person. I join in the result to affirm the dismissal of plaintiffs’ complaint in its entirety because there is no express or implied constitutional limitation on the legislature’s power to allow mail-in voting. But I cannot agree with the majority’s path to this conclusion. I find no support for the majority’s ahistorical questioning of the import of *People ex rel. Lardner v Carson* (155 NY 491 [1898]). Nor do I share the majority’s radical view that, for close to two centuries, our State’s elected of-

14. The bulk of the dissent’s argument is that for a long time, the other branches of government have acted as if the Constitution required an amendment for voting that was not in-person. Putting aside our disagreement that the general understanding of the text has been “clear” for the last 200 years (*see* dissenting op at 95, 103, 114-115), our dissenting colleague does not dispute that the Court was never asked to decide that question; nor does he dispute that it is our unique role to do so.

15. *Compare* concurring op at 84 (“since 1966, the Constitution has lacked any express language suggesting an in-person voting requirement”), *with* dissenting op at 97 (“A review of the plain text of the provisions at issue here establishes that the people intended the Constitution to limit the legislature’s authority to make laws governing absentee voting, and that the Early Mail Voter Act, whatever its merits or flaws as policy, goes behind those limits and is therefore unconstitutional”).

officials acted as if “it [wa]s not certain that the Constitution ever required in-person voting” and were therefore unsure of the scope of the legislature’s power to regulate elections (majority op at 68-69). That view is driven in part by the majority’s speculation about political motives of various different legislators from the 1800s to today and its criticism of legislative conduct, neither of which are proper considerations for this Court because what controls is the Constitution’s text. The majority’s ill-advised approach needlessly complicates a straightforward analysis and gives the appearance of rationalizing what the majority views as untoward political machinations. The dissent, for its part, reads into the Constitution an in-person requirement by implication unsupported by the text and our rules of construction. Properly applied, the presumption in favor of constitutional validity, well-established rules of construction and our precedent support my conclusion that although at one time the Constitution required in-person voting, the Constitution as currently written does not prohibit the legislature’s enactment of the challenged statute.

I.

Article II, titled “Suffrage,” embodies our democratic principle of a government by and for the people and protects the right of eligible voters to choose their elected representatives (NY Const art II). The right to vote “ ‘is of the most fundamental significance under our constitutional structure’ ” (*Hoehmann v Town of Clarkstown*, 40 NY3d 1, 6 [2023], quoting *Matter of Walsh v Katz*, 17 NY3d 336, 343 [2011], quoting *Illinois Bd. of Elections v Socialist Workers Party*, 440 US 173, 184 [1979]). It holds this elevated status “as a fundamental political right, because [it is] preservative of all rights” (*Yick Wo v Hopkins*, 118 US 356, 370 [1886]).

Prior to the Civil War, article II, § 1 of the 1846 New York State Constitution required voters to exercise their right to vote “in the election district of which he shall at the time be a resident, and not elsewhere” (the Election District Provision) (see majority op at 60-61).¹ Contrary to the majority’s suggestion that this now-deleted provision was unclear, before its deletion from the Constitution, New Yorkers generally under-

1. It was not until 1917 that women secured the right to vote in New York State (see 1894 NY Const, art II, § 1, as amended Nov. 6, 1917). For purposes of historical accuracy, I quote, without modification, the original male centric language used during the years prior to women’s suffrage.

stood that this language required in-person voting at a polling site in the voter's election district.

In 1863, with an upcoming presidential election whose results would affect the war effort and the fact that a large number of voters serving in the army might be unable to cast a vote in their district, the New York State Legislature considered a bill which would permit soldiers to vote wherever they were stationed, even if outside of New York State (*see* 2 Charles Z. Lincoln, *The Constitutional History of New York* at 235-236 [1906]).²

“It was evident that members of the legislature and others felt serious doubt concerning the validity of this measure, for, while the bill was pending in the assembly, a resolution was introduced . . . in that house by Gilbert Dean of New York, to amend the suffrage section of the Constitution by providing for taking the vote of persons absent in the military or naval service of the United States in time of war” (*id.* at 237).

Governor Horatio Seymour shared this doubt and sent a special message to the legislature “recommending such amendment” (*id.*). The Governor noted that

“[t]he Constitution of this state requires the elector to vote in the election district in which he resides; but it is claimed by some that a law can be passed whereby the vote of an absent citizen may be given by his authorized representative. It is clear to me that the Constitution intends that the right to vote shall only be exercised by the elector *in person*” (*id.* at 237-238 [emphasis added]).

The day following the Governor's message, Senator John Ganson of Buffalo introduced an amendment “to carry the Governor's recommendation into effect” (*id.* at 238). Meanwhile, an amended version of the military voting law was passed by

2. Charles Z. Lincoln was a delegate to the Constitutional Convention of 1894 and, from 1895 to 1900, served as Chair of the Statutory Revision Commission and legal advisor to several New York governors. Lincoln's five-volume *The Constitutional History of New York* is a “fundamental resource for [New York State] constitutional history from the beginning of the colonial period to 1905” (New York State Library, *New York State Constitutional Conventions and Constitutional History* [Sept. 19, 2022], available at <https://www.nysl.nysed.gov/scandocs/nyconstitution.htm> [last accessed Aug. 20, 2024]).

both houses of the legislature (*id.* at 238). Governor Seymour vetoed the law stating “that the bill was ‘so clearly in violation of the Constitution, in the judgment of men of all parties’ . . . and that ‘some of those who voted for it openly stat[ed] their opposition to the measure’ ” (*id.*). The Senate voted to override the veto, but the Assembly failed to garner enough votes. Prior to the Governor’s veto, the Assembly passed the previously-introduced Dean constitutional amendment by a vote of 114 to 1 (*id.* at 239). The same day as the veto, both houses passed the Ganson amendment which became article II, § 1, and permitted the legislature to enact a law providing for active military personnel who were absent from New York State to vote (*id.* at 239). An exception to the article II, § 1 election district residency voting requirement during war time was thus constitutionally established.

The majority speculates that Governor Seymour’s reading was “highly uncertain” (majority op at 62), that the legislature narrowly failed to override his veto, and that the amendment was a mere political compromise “to circumvent an uncertainty as to what the Constitution required” (majority op at 70-71). But it strains credulity to believe that the legislature took the more onerous path of pursuing an amendment as a political expediency given the urgency of the upcoming election or, for that matter, did not at least simultaneously attempt to pass the statute and amend the Constitution. Beyond this mere speculation, the majority attempts to shore up its view not with other contemporaneous sources on the meaning of our State’s Constitution in effect at the time, but by reference to decisions from *other states* construing their own constitutions—observing that some viewed their similarly-worded constitutions as requiring in-person voting while others did not (*see* majority op at 62-63). Seizing on this divergence, the majority concludes that “no result was then thought as indisputably correct” (*id.* at 63). The majority fails to explain how other state’s observations bear on the meaning of *New York’s* Constitution during the relevant time period. Further undermining the majority’s “uncertainty” argument is the fact that article II, § 1 was expanded several times by further amendment to include certain non-military voters who were absent from their residence or unable to appear in person at the polls. This provision eventually became what is currently article II, § 2, which states:

“The legislature may, by general law, provide a manner in which, and the time and place at which,

qualified voters who, on the occurrence of any election, may be absent from the county of their residence or, if residents of the city of New York, from the city, and qualified voters who, on the occurrence of any election, may be unable to appear personally at the polling place because of illness or physical disability, may vote and for the return and canvass of their votes” (NY Const, art II, § 2).

By amendment in 1894, what is now numbered section 7, titled “Manner of voting; identification of voters,” was adopted and grants broad authority to the legislature in regulating election matters. It provides, in pertinent part, that “[a]ll elections by the citizens, except for such town officers as may by law be directed to be otherwise chosen, shall be by ballot, or by such other method as may be prescribed by law, provided that secrecy in voting be preserved” (NY Const, art II, § 7). Although the debate at the 1894 Constitutional Convention largely centered around whether to authorize the use of voting machines, the delegates rejected a narrower amendment that would have permitted only the use of voting machines, instead authorizing the legislature to authorize “other method[s]” of voting (*see* 3 Charles Z. Lincoln, *The Constitutional History of New York* at 108-114 [1906]). Several of the delegates expressed their opinion that the amendment would allow the legislature to, in its future wisdom, prescribe certain other methods of voting besides paper ballots if such methods would improve elections (*see* 1 Rev Rec, 1894 NY Constitutional Convention at 919, 924-925; *id.* vol 3 at 88, 92-93, 96; *id.* vol 4 at 442). Thus, the Court has noted, section 7 is “[t]he sole enactment concerning the ballot or method of voting” and “[t]he restriction upon the exercise of legislative wisdom and provision in the matter of elections could scarcely be less stringent” (*Matter of Burr v Voorhis*, 229 NY 382, 395 [1920]).

Then, in 1898, this Court expounded on the legislative power to designate the location of election districts and polling sites where New Yorkers cast their votes under the Election District Provision. In *People ex rel. Lardner v Carson*, the Court considered whether votes were validly cast in a Town of Lockport election at a designated election district located just outside the town boundary in the City of Lockport (155 NY 491 [1898]). The Court stated that “[w]e are told that the Constitution enacts that the elector must vote ‘in the election district of which he shall at the time be a resident and not elsewhere.’ So it does” (*id.* at 496). The Court rejected a challenge to the place-

ment of the election district outside the geographic boundary of a town, and upheld the validity of the votes cast in that district, concluding that, in accordance with article II, § 1, “the whole subject of creating election districts and locating the polling places where the residents of the district may vote, is with the legislature, and it may lawfully delegate this power to local authorities” (*id.* at 497). Most instructive is the Court’s summary of the constitutionally-mandated voting process:

“The object of the Constitution is to secure to every citizen the right to cast one honest vote. To that end it enacts that he shall vote at his own home with his neighbors, where he is known, and not at some other polling place where he may not be known. But all this is fully complied with when he votes with his neighbors at the place designated by law for that purpose, and whether that place be located on one side or the other of an imaginary line bounding a town or a district is not, in the constitutional sense, a matter of the slightest consequence” (*id.* at 503).

Thus, like prior legislatures, the Court also understood the Election District Provision to require in-person voting.

The majority asserts that these “statements” were “wholly unnecessary to [the Court’s] holding” in *Lardner* (majority op at 64, 64-65 n 8), and attempts to recast *Lardner* as a decision about “the broad power of the legislature to determine the method of elections” (*id.* at 64). That is true but fails to account for the Court’s exposition on the purpose of the Election District Provision. Nevertheless, according to the majority, *Lardner* “could be interpreted in two different ways” which, it frets, “merely adds to the uncertainty as to whether the Constitution requires that voting must be in person” (*id.* at 64-65). But there was no such uncertainty. Instead, the majority now creates it where none ever existed. More to the point, the *Lardner* Court concluded that “[t]he purpose of the [Election District Provision] was to prevent fraud and repeating” (155 NY at 500), which was achieved, according to the Court, by requiring voters to “vote at [their] own home with [their] neighbors, where [they] [are] known, and not at some other polling place where [they] may not be known” (*id.* at 503). In 1898, this could mean only voting in-person. Additionally, it is simply unfathomable that the legislature at the time would have “authorize[d] ballots to be mailed to a polling place” (majority op at 64)—espe-

cially if, as the majority insists, the Election District Provision was nothing more than “an anti-fraud measure” (*id.* at 61).

Regardless, by amendment in 1966, the Election District Provision—the only language in the Constitution that served as a basis for an in-person requirement—was excised from the Constitution and voter qualifications were reduced as part of an effort to increase voter participation (*see* 1965 NY Senate-Assembly Concurrent Resolution S5519, 1965 NY Laws Appendix at 2783-2784 [proposing amendment to article II, § 1]; Rep of Joint Legis Comm to Make a Study of the Election Law and Related Statutes, 1966 NY Legis Doc No. 30 [acknowledging objective to “(l)iberaliz(e) . . . laws pertaining to registration and voting to achieve an increase in voter participation”]). The amended language stands today. Article II, § 1 provides:

“Every citizen shall be entitled to vote at every election for all officers elected by the people and upon all questions submitted to the vote of the people provided that such citizen is eighteen years of age or over and shall have been a resident of this state, and of the county, city, or village for thirty days next preceding an election” (NY Const, art II, § 1).

In the years following the 1966 amendment, the legislature continued its preference for in-person voting, but also has expanded remote voting several times. First, in 1982 the legislature passed a law permitting election workers to vote by “special ballot” to be “delivered” to their local board of elections (*see* Election Law § 11-302). In 1996, the legislature expanded this option to victims of domestic violence, and in 2016 to emergency responders (*see* Election Law §§ 11-306, 11-308). All three of these expansions were accomplished without additional constitutional amendment, thereby evincing a legislative understanding that after 1966 the Constitution did not require in-person voting.

The majority suggests and the dissent contends that the 1966 amendment was not the demise of in-person voting, in part relying on the 1967 Temporary Commission on the Constitutional Convention’s comment that removal of the Election District Provision might “‘bar the [l]egislature from prescribing absentee voting in cases not within the scope of’” section 2, but also might “‘give the [l]egislature unrestricted discretion over absentee voting’” (majority op at 65-66; dissenting op at 108, quoting 1967 Rep of Temp St Commn on

Constitutional Convention, Rep No. 4, The Right to Vote at 51 n 28). This musing, which the Temporary Commission relegated to a footnote, noticeably grapples with none of the history leading up to and including *Lardner* (155 NY at 491), and it therefore adds little weight to either the majority’s or the dissent’s positions regarding the deletion’s effect.

In 2021, the legislature again attempted to expand absentee voting—this time to all voters and this time via a ballot initiative (2019 NY Senate-Assembly Concurrent Resolution S1049, A778; 2021 NY Senate-Assembly Concurrent Resolution S360, A4431), proposing a constitutional amendment as follows:

“The proposed amendment would delete from the current provision on absentee ballots the requirement that an absentee voter must be unable to appear at the polls by reason of absence from the county or illness or physical disability. Shall the proposed amendment be approved?” (New York State Board of Elections, Past Election Results, *Authorizing No-Excuse Absentee Ballot Voting*, available at <https://results.elections.ny.gov/contest/590> [last accessed Aug. 5, 2024]).

The provision was defeated at the polls by a slim margin.³

Thereafter the legislature passed—and the governor signed—the Early Mail Voter Act, which went into effect on January 1, 2024, and which strives to “make New York State a leader in engaging the electorate” by “meeting voters where they are and opening up greater opportunities for people to have their choices made on the ballot” (Senate Introducer’s Mem in Support, Bill Jacket, L 2023, ch 481 at 10).⁴ In a joint letter urging the Governor to sign the Act into law, its Senate and Assembly

3. Following the participation trend in off-cycle years, in the 2021 election 25.7% of registered voters cast a ballot—a total of 3,441,110 votes. A smaller number of those votes were validly cast and counted on the ballot proposal, rejecting it by approximately 306,000 votes: 1,677,580 voted against and 1,370,897 voted in favor (*see* New York State Board of Elections, Enrollment By County, *Voters Registered by County as of 11/1/2021*, available at https://elections.ny.gov/enrollment-county?f %5B0%5D= filter_ term%3A256 [last accessed Aug. 20, 2024]; New York State Board of Elections, Past Election Results, *Authorizing No-Excuse Absentee Ballot Voting*, available at <https://results.elections.ny.gov/contest/590> [last accessed Aug. 20, 2024]).

4. Contrary to the dissent, this reference suggests no *judicial* “‘political maxims’” or “‘line of policy’” (dissenting op at 97, quoting *People ex rel. Wood v Draper*, 15 NY 532, 546 [1857]), but merely acknowledges the legislature’s statement of policy.

sponsors conveyed their understanding of a “vote-by-mail structure” as “distinct from absentee voting” (Bill Jacket, L 2023, ch 481 at 17). To that end, the Act authorized all registered voters in New York to apply to “vote early by mail . . . in any election . . . in which the voter is eligible to vote” (Election Law § 8-700 [1]). The Act provides that a registered voter wishing to vote by mail must apply to do so and that such applications must be received by a local Board of Election “not later than the tenth day before the election for which the ballot is first requested” (*id.* § 8-700 [2] [d]).

The Act includes various integrity checks and opportunities for a voter to confirm that their ballot has been timely received and considered. For example, upon timely receipt, the Board of Elections (BOE) must confirm that the applicant is “a registered voter of the county or city at the address listed in the application and is eligible to vote in the election or elections for which the application is filed” and, if the applicant fails to meet the qualifications for mail-in voting, the BOE must immediately notify the applicant of the rejection and its reasons therefor (*id.* § 8-702 [1]-[2]). Upon approving an application, the BOE must send the approved applicant “an early mail ballot,” along with a postage-paid return envelope (*id.* § 8-704 [1]-[2]). The ballot is “cast and counted” if received by the close of polls on election day or postmarked by that date and received no later than seven days thereafter (*id.* § 8-710 [1]).⁵ The Act also requires the State BOE to maintain, with the assistance of local BOEs, an integrated “electronic early mail ballot tracking system” that “may be integrated with the United States Postal service tracking system” which allows a voter to confirm whether the BOE, *inter alia*, “received such voter’s completed early mail ballot” and “counted or rejected” it (*id.* § 8-712 [1], [3] [e], [g]).⁶ To account for its new authorization of early voting by mail, existing canvassing procedures apply to “early mail . . . ballots” (L 2023, ch 481, § 22).

5. The Act provides that “any early mail ballot received by the [BOE] by mail that does not bear or display a dated postmark shall be presumed to have been timely mailed or delivered if such ballot bears a time stamp of the receiving [BOE] indicating receipt by such board on the day after the election” (Election Law § 8-710 [1]).

6. The tracking system must indicate whether the BOE: (1) received and approved or rejected the voter’s application to vote early by mail; (2) sent the voter a ballot and when; and (3) determined that the voter could cure a defective “ballot envelope” (Election Law § 8-712 [3] [a]-[c], [f]).

II.

A.

Plaintiffs contend that in-person voting has always been understood as constitutionally required with the only exception being absentee voting for designated groups of eligible voters, as authorized in article II, § 2. They argue that the Act establishes unrestricted absentee voting in contravention of the limits in section 2 and, if permitted to stand, would implicitly and in practice render article II, § 2's absentee voter qualifications superfluous. Defendants respond that the complaint was properly dismissed because there is no express or implied constitutional prohibition on voting by mail and the legislature has plenary authority to regulate elections.

"It is well settled that [l]egislative enactments are entitled to a strong presumption of constitutionality, and courts strike them down only as a last unavoidable result after every reasonable mode of reconciliation of the statute with the Constitution has been resorted to, and reconciliation has been found impossible" (*White v Cuomo*, 38 NY3d 209, 216 [2022] [internal quotation marks and citations omitted]). "It has been our repeated admonition, in light of our obligation to respect the powers of a coequal branch of government, that legislation should not be declared unconstitutional unless it clearly appears to be so and that all doubts should be resolved in favor of the constitutionality of an act" (*id.* at 228-229 [internal quotation marks omitted]). Moreover, the Court has long acknowledged that our State Constitution vests the legislature with "plenary power over the whole subject of elections" (*Lardner*, 155 NY at 502; *see also Matter of Burr*, 229 NY at 388; *Matter of McAneny v Board of Estimate & Apportionment of City of N.Y.*, 232 NY 377, 389-390 [1922]). Application of those principles here compels a conclusion that plaintiffs fail to meet "the heavy burden of showing that [the Act] is unconstitutional" (*People v Foley*, 94 NY2d 668, 677 [2000]).

To the extent that the majority's errant comment that, "[h]ad there been a clear, unequivocal, and persistent understanding by our coordinate branches that the Constitution required in-person voting, this would be a more difficult case" (majority op at 74) suggests that individual legislators' erroneous interpretations of the Constitution control our analysis, that is plainly incorrect. This Court is the final arbiter of the meaning of the Constitution in that it is "vested with a unique role and review

power over the constitutionality of legislation” (*Cohen v State of New York*, 94 NY2d 1, 11 [1999], citing *Marbury v Madison*, 1 Cranch [5 US] 137 [1803]). As the Court has repeatedly explained, “policy initiatives” are “within the province of the Legislature,” while issues concerning “whether the Legislature has met its constitutional obligations” are “within the province of this Court” (*Matter of Maron v Silver*, 14 NY3d 230, 263 [2010], citing *Marbury*, 1 Cranch [5 US] at 177). And we have, of course, on prior occasions, disagreed with the legislature’s interpretation of the Constitution and declared its enactments invalid (see e.g. *id.*; *People v LaValle*, 3 NY3d 88, 120, 130-131 [2004]). Therefore, the Court cannot determine the constitutionality of the Act by reference to an alleged uncertainty of some legislators as to whether the Constitution ever contained an in-person requirement, but instead must determine whether plaintiffs have identified a specific provision of the current Constitution that requires in-person voting either “expressly or by necessary implication” (*Silver v Pataki*, 96 NY2d 532, 537 [2001]).

B.

In resolving the question of the legality of the Act, we look to the text of the Constitution (*Matter of Harkenrider v Hochul*, 38 NY3d 494, 509 [2022]), here article II, “‘and give to the language used its ordinary meaning’” (*Matter of Hoffmann v New York State Ind. Redistricting Commn.*, 41 NY3d 341, 359 [2023], quoting *Matter of Sherrill v O’Brien*, 188 NY 185, 207 [1907]). Further, “[a]ll parts of the constitutional provision . . . must be harmonized with each other as well as with the general intent of the whole” (*id.* [internal quotation marks omitted]).

Until 1966, article II, § 1 contained the only language that was understood and interpreted to require in-person voting at an election district—the Election District Provision. It is undisputed that this language was removed when section 1 was amended in 1966 and has never been readopted by amendment or statute (see majority op at 65; dissenting op at 107-108). Thus, since 1966, the Constitution has lacked any express language suggesting an in-person voting requirement.

Plaintiffs mount a textual argument based on section 1’s mandate that all eligible voters “shall be entitled to vote at every election.” The majority agrees with me that the phrase “at every election” does not by its terms refer to a brick-and-

mortar location (*see* majority op at 59-60). If plaintiffs’ reading of section 1 reflected the intent of the people who amended it in 1966, then section 1 would have retained the reference to election districts. Instead, this mandated entitlement—situated in section 1’s voter qualifications provision—guarantees the right to vote to every person who satisfies the age and residency requirements. The majority further agrees with me that the word “at” may be used to denote both the location and time of some specific event (*see* Webster’s Third New International Dictionary, Unabridged 136 [2002]; Oxford English Dictionary Online [Oxford University Press 2024], at, <http://www.oed.com> [last accessed Aug. 20, 2024]). The event at issue here—an election—does not occur within any one specific place as would, for example, the opening session of the legislature in Albany. Rather, voting in an election takes place simultaneously at many places within a set time period. Thus, placed in context and properly understood, “at every election” carries no different meaning from “in every election”—both phrases communicate that an eligible voter may exercise the franchise during every electoral cycle opportunity.⁷ The manner in which a voter may do so is a different matter left within the legislature’s “plenary power over the whole subject of elections” (*Lardner*, 155 NY at 502; *see also* *Matter of Burr*, 229 NY at 388; *McAneny*, 232 NY at 389-390), and by authority of section 7, which provides that elections “shall be by ballot, *or by such other method as may be prescribed by law*” (NY Const, art II, § 7 [emphasis added]). All but one member of the Court agrees with the obvious: voting by mail is a “method” of voting (*id.*; *compare* majority op at 71-73, *with* dissenting op at 105-106).⁸ The dissent’s contrary view is based on a dictionary definition of “ballot” as “[a]n instrument, *such as a paper* or ball, used for casting a vote” (*see* dissenting op at 100 [emphasis added], quoting Black’s Law Dictionary [12th ed 2024]). This definition cuts against the dissent’s position because a mail-in ballot is a

7. This was the understanding of the senators who passed the 1863 bill giving qualified servicemembers the option of giving another in-district voter permission “to cast for [the service member] [their] vote or ballot, in the same manner as other votes are cast, for all officers for which [they] would have the right to vote if [they] were in person present at such election” (1863 NY Senate Bill 300, § 2).

8. Given the broad authority under article II, § 7 which allows the legislature to permit voting without a paper ballot—provided that secrecy is maintained—the Court need not decide whether mail-in ballots are “ballots” within the meaning of the Constitution.

“paper . . . used for casting a vote” (*id.*, quoting Black’s Law Dictionary [12th ed 2024]).

The dissent is mistaken in its assertion that “the more logical reading” of section 7 is that it “grants authority to adopt modernized instruments for recording votes” (dissenting op at 99), considering that the 1894 Constitutional Convention considered and rejected a version of it that would have required voting “by ballot, or by the use of a voting apparatus” in favor of the broader language it still contains to this day (3 Charles Z. Lincoln, *The Constitutional History of New York* at 109). Insofar as the dissent relies on the premise that methods of voting aside from in-person voting invite fraud no evidence supports that view (*see e.g.* dissenting op at 105 n 3 [“The inability to preserve secrecy in the process reinforces the conclusion that absentee balloting is not available to the legislature as a ‘method’ by which elections could be conducted”]).

Plaintiffs’ and the dissent’s position that, even without this language, it has always been commonly understood that the constitution requires a voter to personally cast their ballot on election day (*see* dissenting op at 100-102) ignores at least two fundamental canons of construction. First, we are bound by the plain text of the Constitution (*see Matter of Harkenrider*, 38 NY3d at 509). In other words, we must accept the words proposed by the legislature and adopted by the people, not intuit some hidden meaning contrary to the common understanding of the language actually chosen at the time of enactment or claim, as the majority does, some uncertainty about its meaning as a way to create constitutional gaps and ambiguities where none exist (*see id.* at 509 [“In construing the language of the Constitution as in construing the language of a statute, . . . (we) look for the intention of the People and give to the language used its ordinary meaning”], quoting *Matter of Sherrill*, 188 NY at 207]; *Kuzmich v 50 Murray St. Acquisition LLC*, 34 NY3d 84, 91 [2019] [“ ‘Absent ambiguity the courts may not resort to rules of construction to (alter) the scope and application of a statute’ because no such rule ‘gives the court discretion to declare the intent of the law when the words are unequivocal’ ”], quoting *Bender v Jamaica Hosp.*, 40 NY2d 560, 562 [1976]; *Finger Lakes Racing Assn. v New York State Racing & Wagering Bd.*, 45 NY2d 471, 479-480 [1978] [“Courts are constitutionally bound to give effect to the expressed will of the Legislature and the plain and obvious meaning of a statute is always preferred to any curious, narrow or hidden sense that

nothing but a strained interpretation of legislative intent would discern”). Here, again, the only language setting out an in-person requirement was deleted by constitutional amendment in 1966. Second, “[w]hen provisions contained in an original act are omitted from an amendatory act, it is reasonable to presume that they were intentionally omitted” (McKinney’s Cons Laws of NY, Book 1, Statutes § 193, Comment). Indeed, “the very purpose and effect of an amendment is to amend the relevant portion of the Constitution, effectively repealing and voiding any prior version of the particular section so amended” (*Matter of Baldwin Union Free Sch. Dist. v County of Nassau*, 22 NY3d 606, 625 [2014]).

Plaintiffs and the dissent invoke the principle of *expressio unius est exclusio alterius* to argue that because article II, § 2 sets forth who may vote absentee, a fortiori, this provision and the Constitution as a whole exclude anyone else from voting other than in-person (see dissenting op at 97-98). Such negative implication is misplaced. Under this canon, “ “[w]here a law expressly describes a particular act, thing or person to which it shall apply, an irrefutable inference must be drawn that what is omitted or not included was intended to be omitted or excluded” ’ ” (*Town of Aurora v Village of E. Aurora*, 32 NY3d 366, 372-373 [2018], quoting *Matter of Town of Riverhead v New York State Bd. of Real Prop. Servs.*, 5 NY3d 36, 42-43 [2005], quoting McKinney’s Cons Laws of NY, Book 1, Statutes § 240, Comment at 411-412 [1971 ed]). Intervenors argue that the canon does not apply when interpreting the Constitution, and that prior decisions from this Court, like *Sill v Village of Corning* (15 NY 297 [1857]), and *People ex rel. Killeen v Angle* (109 NY 564 [1888]), appearing to apply the canon to constitutional questions are distinguishable.⁹ Regardless, the canon simply does not affect our analysis here in light of the plain text of article II, which established an exception to the in-person voting mandated under former section 1.

At bottom, the dissent engages in circular reasoning by positing that application of the canon here renders “a limitation on the legislature’s authority to establish absentee voting

9. The dissent cites to an Appellate Division decision as an example of a precedent applying *expressio unius est exclusio alterius* to construe the Constitution (see dissenting op at 98, citing *Silver v Pataki*, 3 AD3d 101, 107 [1st Dept 2003]). The Court affirmed the Appellate Division, but not on the basis of *expressio unius est exclusio alterius* (see generally *Pataki v New York State Assembly*, 4 NY3d 75 [2004]).

procedures for any voters beyond the delineated categories in section 2 . . . unavoidable” (dissenting op at 99). But of course, assuming the canon had any rightful place in our constitutional analysis, this “unavoidable” conclusion would follow only if one were to grant the very proposition that the dissent falls short in proving—namely that all mail-in voting is absentee voting. But absentee voting as established in article II, § 2 was adopted for those who could not physically return to their residence or for whom the burden to do so would be a barrier to exercising the franchise. Mail-in voting is available to all eligible voters, including those who would rather not travel to their designated polling site. Thus, while absentee voting was designed for those unable to comply with an in-person requirement, mail-in voting addresses other obstacles and inconveniences.

The deletion of that mandate by amendment in 1966, and the retention of the legislature’s existing broad plenary authority under section 7 to enact methods for casting votes, makes inapt plaintiffs’ negative implication as to the meaning of section 2. In other words, because section 2 was originally enacted as an exception to the in-person voting requirement in section 1, which was later deleted, we cannot imply that the exception is now the general rule it was meant to avoid in limited cases. Plaintiffs’ negative implication does not further the original purpose of article II, § 2, and would nullify that part of the 1966 amendment that deleted the election district in-person requirement. Indeed, the dissent’s concern that the 1966 removal of the Election District Provision requires undesired acceptance of either superfluity or continuation of the same limitation via negative implication of section 2 (*see* dissenting op at 108-109) is unfounded. The purpose of the 1966 amendment was to expand voting opportunities and facilitate casting a vote, not, as plaintiffs would have it, to reaffirm and entrench historic barriers to the franchise.¹⁰ Further diminishing the force of this view is the fact that article II, § 2 is phrased in permissive language. It authorizes, but does not require, the legislature to adopt special voting procedures for registered voters falling within certain discrete classes (*see* NY Const, art II, § 2).

10. Notably, the legislature has expanded by statute the class of persons who may vote by mail—for example, military voters (*see* Election Law § 10-112; L 1976, ch 233, § 1). Those persons would, under plaintiffs’ and the dissent’s view, be considered absentee voters (dissenting op at 109-110). Thus, it appears that, even before passage of the Act, the legislature assumed it had the authority to statutorily expand voting by mail.

Likewise unpersuasive are plaintiffs’ claims that legislative extensions of special balloting procedures to election workers (*see* Election Law § 11-302), domestic violence victims (*see id.* § 11-306), and emergency responders (*see id.* § 11-308) in 1982, 1996, and 2016, respectively, suggest that the legislature has understood the Constitution as requiring in-person voting when it passed those statutes. The Constitution, as amended in 1966 under which we live today, suggests no such requirement. Instead, because in-person voting was the legislative preference after 1966, these amendments to the Election Law were in accordance with the law, rooted in that preference, as it existed at that time. Put another way, although after 1966 no express language supported a constitutional mandate for in-person voting, the legislature continued in-person voting for the eligible voting population with statutory carveouts for defined subcategories of voters for whom in-person voting was an obstacle to accessing the franchise (*see* Senate Introductor’s Mem in Support, Bill Jacket, L 1982, ch 178 at 5 [noting that “(p)oll clerks and inspectors of election(s) must serve continuously from an hour before the polls open . . . until well after the polls close” and, when serving outside their election districts, “frequently are deprived of the opportunity to vote”]; Senate Introductor’s Mem in Support, Bill Jacket, L 1996, ch 702 at 7 [noting that remote voting for intimate-partner violence victims afraid to disclose their locations would “allow() them to exercise their right to vote without placing them in greater jeopardy”]; Senate Introductor’s Mem in Support, Bill Jacket, L 2016, ch 485 at 7 [noting that the objective of Election Law § 11-308 was to ensure that “emergency responders . . . will not lose their right to vote on account of service in response to an emergency”]).

The majority shares my view that the dissent’s attempt to ground the legislature’s authority to permit alternative methods of voting for these classes in article II, § 2 fails (*see generally* majority op at 67-68; dissenting op at 109-110). Section 2, of course, authorizes the legislature to implement absentee voting for voters “absent from the county of their residence or, if residents of the city of New York, from the city” (NY Const, art II, § 2). Poll workers covered by Election Law § 11-302 are completely outside that category since “[n]o person shall be certified or act as . . . [a] poll clerk who is not . . . a resident of the county in which he or she serves, or within the city of New York, of such city” (Election Law § 3-400 [6]). Nor

are domestic violence victims or emergency responders covered under Election Law §§ 11-306 and 11-308 required to show absence from their counties of residence before voting using an alternate method.¹¹

The fact that the legislature may have continued in-person voting after 1966 for the general eligible voting population does not affect my analysis. Legislative preferences and practices need not—and often do not—press constitutional limits and, just as the legislature transgressed no such limit when it authorized alternative voting methods for the classes of persons described above, it likewise crossed no constitutional lines by statutorily adopting early voting by mail decades after elimination of the constitutional mandate.

III.

Plaintiffs' reliance on limited legislative history in support of their interpretation—and the majority's speculation over the import of that history—is also misplaced. Ordinarily, our analysis begins and ends with the clear text of the Constitution in effect today (*Matter of Harkenrider*, 38 NY3d at 509). In other words, we do not rely on legislative history to interpret what is plain. Although at times we have, when confronted with clear text, noted that the legislative history confirms our interpretation (see e.g. *Riley v County of Broome*, 95 NY2d 455, 463 [2000], citing McKinney's Cons Laws of NY, Book 1, Statutes § 124), we have also observed that when, as here, the text “is clear and unambiguous, . . . there is no need to resort to legislative history” (*Xiang Fu He v Troon Mgt., Inc.*, 34 NY3d 167, 173 [2019]).

Even were it necessary to look beyond the face of article II, contrary to the majority's and dissent's respective views (majority op at 58-68; dissenting op at 102-111), the legislative history confirms what the constitutional text makes plain: the

11. I agree with the dissent's general assertion that “[c]onsideration of the relevant constitutional history is not ‘improper’” and that “it is the majority's effort to recast our history that is unsound” (dissenting op at 102, quoting majority op at 74). As for the majority's notion that the dissent and I view “the text [a]s clear in diametrically opposed ways” (majority op at 74 & n 15), this misunderstands our respective positions. The dissent and I agree on how to read article I, § 1 and that, after the 1966 amendment to section 1, there is no express in-person voting requirement (see dissenting op at 107-108). The dissent and I disagree, not with any express language, but on whether mail-in voting is absentee voting and whether section 2 is subject to the *expressio unius est exclusio alterius* canon. As to this final point, the majority and I agree.

people adopted a structure that expands access to the franchise by reducing voter residency requirements and eliminating mandatory in-person voting. The adoption of the 1966 amendment to article II, § 1, under which we live today, occurred amidst a wider movement to “[l]iberaliz[e] . . . laws pertaining to registration and voting to achieve an increase in voter participation” (Rep of Joint Legis Comm to Make a Study of the Election Law and Related Statutes, 1966 NY Legis Doc No. 30 at 11). As early as three years before the amendment’s adoption, the Joint Legislative Committee to Make a Study of the Election Law and Related Statutes published a report urging that our State’s election laws not fall into a state of antiquity, but remain “in step with our ever-changing times . . . to facilitate the voting process to enable every voter to vote with the least possible inconvenience” (Rep of Joint Legis Comm to Make a Study of the Election Law and Related Statutes, 1963 NY Legis Doc No. 33 at 15). In fact, the report mentioned a proposal to “liberaliz[e] absentee balloting” (*id.* at 12).

Nor are plaintiffs or the dissent correct that we should consider whether the 1966 amendment was presented to the voters as intended to eliminate an in-person voting requirement in fact and in practice (*see* dissenting op at 95). In *Golden v Koch*, the Court unanimously abandoned its prior approach, adopted in *Matter of Kuhn v Curran* (294 NY 207 [1945]), that looked to “the meaning that the words . . . would convey to the ‘intelligent, careful voter’” because in practice “this standard ha[d] become little more than an empty legal fiction” (49 NY2d 690, 694 [1980]).¹² The Court observed that,

“[w]hile the concept that publicly approved provisions of law must be construed by seeking the intent of the electors approving them has surface appeal, when one considers the documents by which voters are apprised of constitutional or charter amendments, the places at which they are made available, and the time normally required to peruse, much less digest, the content of such materials, it is clear that so few voters do what the ‘intelligent, careful voter’ rule assumes they do that this standard has become little more than an empty legal fiction” (*id.*).

12. The dissenters in *Golden* parted ways with the majority on all but this point and “heartedly endorse[d] abandonment of the ‘intelligent, careful voter’ rule” (49 NY2d at 700 [Meyer, J., dissenting]).

The Court, thus, applied certain of our “traditionally accepted standards of statutory construction” for construing constitutional amendments (*id.*).

When applying these canons, we are not engaged in mere thought exercises. Our judicial role vests us with the tremendous responsibility of examining the words of each constitutional provision “[a]s adopted by the [p]eople” based on “the words in which the will of the [p]eople has been expressed” (*People v Rathbone*, 145 NY 434, 438 [1895]). The dissent is correct that “[w]e have never abandoned the requirement that we ‘look for the intention of the People’ in construing the language of the Constitution (dissenting op at 112, quoting *Hoffman*, 41 NY3d at 359 [internal citations and quotation marks omitted]). But the dissent misreads my textually-focused analysis as abandoning this commitment. After all, “[t]he Constitution is the basis upon which rests that complicated social organization called the state” and therefore “[i]t must be presumed that its framers understood the force of the language used and, as well, the people who adopted it” (*Rathbone*, 145 NY at 438). And, for the reasons discussed, the relevant text here establishes that the people eliminated in-person voting by constitutional amendment in 1966.

Plaintiffs’ argument—adopted by the dissent (*see* dissenting op at 100, 108-109)—that upholding the Act as constitutional would render article II, § 2 superfluous because absentee voters can now vote by mail pursuant to the Act—is similarly unpersuasive for several reasons. The premise of this argument is fatally flawed because the canon against superfluity is not absolute. It can be surmounted, for example, “by textual indications that point in the other direction” (*RadLAX Gateway Hotel, LLC v Amalgamated Bank*, 566 US 639, 645, 646-647 [2012]) or “where it is practicable to give each [term] a distinct and separate meaning” (*Cohen v Lord, Day & Lord*, 75 NY2d 95, 100 [1989]). The dissent incorrectly asserts that neither exception applies (*see* dissenting op at 100). Here, the legislature had, until the Act’s passage, continued in-person voting, which was the default when the Constitution was amended in 1966 and only now has exercised its authority to implement an alternate “method” of voting (NY Const, art II, § 7). Further, section 2 also allows the legislature to provide a manner, time and place to vote for constitutionally-defined eligible absentee voters—i.e., those persons outside the county or New York City or who are unable to appear personally at the polling site due to an ill-

ness or disability. Thus if, in the future, the legislature chooses to end early mail-in voting and reinstate in-person voting, the legislature may still provide a method for absentee voters to exercise the franchise in every election in which they are eligible.

As a textual matter, the majority is incorrect that section 2 is a historical remnant (majority op at 71). Although there is significant overlap between early mail-in voting and absentee voting, there are meaningful differences that benefit the narrow subcategories of voters eligible to vote absentee. For example, article II, § 2 enables the legislature to design and implement special voting procedures exclusively for the enumerated subcategories of eligible voters without providing the same for other voters generally.¹³ Section 2 does not specifically require that method to be mail-in voting. Even in the event the Act were repealed, this special authority would remain intact, and thus the Act does not render section 2 superfluous.¹⁴

13. Indeed, the legislature has done so. For example, instead of having to apply to vote absentee in each election, hospitalized veterans may register as such and “need not thereafter make application for an absentee ballot” (Election Law § 8-404 [1] [a]). Instead, 60 days before each election, the Board of Elections must furnish hospitals with lists of eligible veteran voters, which the hospital must, within 15 days, cross-reference with its directory of patients or residents (*id.* § 8-404 [1] [a]-[b]). The Board will then automatically send a hospitalized veteran an absentee ballot (*id.* § 8-404 [1] [a]). As another example, registered voters residing in certain nursing homes, residential health care facilities, and facilities operated by either the Department of Mental Hygiene or Veterans’ Administration of the United States vote absentee by a special procedure under which the local Board appoints “bi-partisan boards of inspectors” who may deliver absentee ballots to residents personally—including at their bedsides—and, if the voter is unable to mark their ballot, may be assisted by either two inspectors or another person of their choosing, unless the voter “is unable to mark the ballot and unable to communicate how [they] wish[] such ballot marked” (*id.* § 8-407).

14. The majority presents as another example of a historical remnant the 1864 constitutional provision permitting soldiers and sailors to vote absentee (majority op at 71). According to the majority that provision became “superfluous” after the 1919 passage of what was then section 1-a of article II (*id.*). But a close comparison of these two versions of this provision fails to support the majority’s claim. First, the 1864 amendment was mandatory in that it required the legislature to ensure “no elector in the actual military service of the United States, in the Army or Navy thereof, shall be deprived of [their] vote by reason of [their] absence from the state” (2 Charles Z. Lincoln, *The Constitutional History of New York* at 239), whereas the 1919 amendment was permissive in that it ultimately authorized—but did not require—the legislature to establish absentee voting for servicemembers (*see*

(n. cont’d)

IV.

Plaintiffs' remaining argument—which the dissent endorses (*see* dissenting op at 111-114)—that the Act is an end run around the 2021 rejection of a ballot proposal that would have authorized no-excuse absentee voting—is also unpersuasive. Plaintiffs contend that the legislature's actions following the failed ballot initiative are an anti-democratic disregard of the will of the voters who rejected the no-excuse absentee amendment. However, the results of the ballot initiative and the legislature's response to its defeat simply have no bearing on the meaning of the Constitution.

In the same vein as the dissent, the majority also judges the legislature's conduct as “troubling” (majority op at 73). Hand-wringing by members of this Court cannot serve as a factor in our constitutional analysis, and the majority's remarks undermine the public's trust in the judiciary as an independent, non-partisan, institution. The majority's consternation is particularly odd given that, like me, the majority concludes that the legislature has not violated the Constitution. The legislature's passage of the Act may reflect political calculations that are common within and central to the legislative branch of government, but which have no role in our judicial decision-making nor do they impact our traditional rules of interpretation. If the voters—including members of this Court—object to the conduct of the legislature, conduct which is wholly constitutional—as is the case here—the electorate's recourse is at the proverbial ballot box.

GARCIA, J. (dissenting). While the legislature has plenary power, including, as relevant here, the power to make rules and regulations governing elections, the people of the State of New York, through the language of the State Constitution,

1894 NY Const, art II, § 1-a, as amended 1929). Second, section 1-a's reference to soldiers and sailors was a deliberate addition, not a superfluous remnant. Article II, § 1-a originally authorized the legislature to establish absentee voting for “qualified voters” who were “unavoidably absent from the state or county of their residence because their duties, occupation or business require[d] them to be elsewhere within the United States” (*id.*, as added Nov. 4, 1919). In 1923, however, that provision was amended to refer expressly to “inmates of a soldiers' and sailors' home” (1894 NY Const, art II, § 1-a, as amended 1923). The new text distinguished this group from those whose “duties, occupation or business require[d] them to be elsewhere within the United States” with a disjunctive “or” (*id.*, as amended 1923), thus accounting for the unique obstacles faced by incapacitated soldiers and sailors (*see* majority op at 71-72).

hold the power to limit that authority. For more than 200 years, the State Constitution has restrained, and been understood to restrain, that plenary power with respect to absentee voting, limiting it to certain categories of voters unable to appear in person because of absence, illness, or physical disability. Just three years ago, the legislature sought permission from the people, in the form of a constitutional amendment, to remove that limit and permit the legislature to enact “no excuse” absentee voting, explaining that it was necessary to change the text of the Constitution before the legislature could do so. The ballot materials provided to potential voters informed them that “[t]he purpose of this proposal is to eliminate the requirement that a voter provide a reason for voting by absentee ballot” by “deleting the requirement currently in the Constitution that restricts absentee voting to people under one of two specific circumstances” (Ballot Proposal 4, 2021 Statewide Ballot Proposal: Abstract). The amendment was defeated by a wide margin, leaving the public to believe the restriction remained.

Nevertheless, shortly thereafter, in 2023, the legislature passed, and Governor Hochul signed into law, sweeping “no excuse” universal absentee ballot voting procedures (*see* 2023 NY Senate Bill S7394A, 2023 NY Assembly Bill A7632A; Election Law § 8-700 *et seq.*). The majority approves, reading the limitation on absentee voting out of the Constitution by first attempting to undermine it (majority op at 58-65, 68-69) and then holding that, in any event, a 1966 constitutional amendment, silently and without notice, removed it (*id.* at 65-71). Acknowledging that the legislature’s conduct with respect to the failed amendment is “troubling” (majority op at 73), the majority nevertheless accepts it, making the people’s recent vote to preserve the limitation meaningless. I cannot join in that result. Above plenary power and politics, the Constitution establishes a limit, long enshrined, well understood, and recently reinforced, on the legislature’s authority to enact absentee voting procedures. The “no excuse” universal mail voting legislation violates that constitutional limitation. I dissent.

I.

Before turning to the constitutional provisions at issue, it is necessary to consider a few aspects of the role of the legislature, the people, and the judiciary in New York’s constitutional government.

The legislature has plenary power except as restrained, “expressly or by necessary implication,” by the language of the constitution (see *Silver v Pataki*, 96 NY2d 532, 537 [2001]; *People ex rel. Cent. Trust Co. v Prendergast*, 202 NY 188, 197 [1911]). Specifically, “[t]he right to vote . . . is defined and regulated by the Constitution and legislative enactments of the state,” and “the legislature is free to adopt concerning [voting] any reasonable, uniform and just regulations which are in harmony with constitutional provisions” (*Matter of Burr v Voorhis*, 229 NY 382, 388 [1920]; see also *Matter of Davis v Board of Elections of City of N.Y.*, 5 NY2d 66, 69 [1958] [legislature has “plenary power . . . to promulgate reasonable regulations for the conduct of elections”]). The function of a state constitution, therefore, is to “provide[] limitations on the otherwise plenary, residual, sovereign power of states to make laws and govern themselves” (Robert F. Williams & Lawrence Friedman, *The Law of American State Constitutions* 4 [2d ed 2023]), and as a result, “very nearly everything that may be included in a state constitution operates as a restriction on the legislature” (*id.* at 371, quoting Frank P. Grad & Robert F. Williams, 2 *State Constitutions for the Twenty-First Century: Drafting State Constitutions, Revisions and Amendments* 86-89 [2006]; see also *Client Follow-Up Co. v Hynes*, 75 Ill 2d 208, 215, 390 NE2d 847, 849-850 [1979] [“Under traditional constitutional theory, the basic sovereign power of the State resides in the legislature (and) . . . (a)ll that needs to be done is to pass such limitations as are desired on the legislature’s otherwise unlimited power”]). Accordingly, we must look to the text of the Constitution to determine whether the people have limited the legislature’s plenary authority in a manner that makes the Early Mail Voter Act unconstitutional.

In doing so, we recognize the unique role of the people in the making of our Constitution when we interpret its text: “If the guiding principle of statutory interpretation is to give effect to the plain language, especially should this be so in the interpretation of a written Constitution, an instrument framed deliberately and with care, and adopted by the people as the organic law of the State” (*Matter of King v Cuomo*, 81 NY2d 247, 253 [1993] [citations, internal quotation marks and brackets omitted]; see *Matter of Hoffmann v New York State Ind. Redistricting Commn.*, 41 NY3d 341, 359 [2023] [“We have long and repeatedly held that ‘(i)n construing the language of the Constitution as in construing the language of a statute, the

courts should look for the intention of the People and give to the language used its ordinary meaning’ ”], quoting *Matter of Sherrill v O’Brien*, 188 NY 185, 207 [1907]). So while the burden is high for establishing a conflict between a statute and the Constitution (*see e.g. White v Cuomo*, 38 NY3d 209, 216 [2022]), when a conflict is found, “courts must not hesitate to condemn [because t]he Constitution is the voice of the people speaking in their sovereign capacity, and it must be heeded” (*Matter of New York El. R.R. Co.*, 70 NY 327, 342 [1877]). The burden cannot be so high as to silence that voice.

Finally, policy arguments surrounding any challenged statute do not factor in our analysis:

“We are not concerned with the policy or expediency of the legislation. Subject only to the restrictions contained in the State and Federal Constitutions, the power of the Legislature is plenary. Obedience must be rendered to statutes which do not offend against such restrictions, even though they may seem to us impolitic; statutes which are beyond the power of the Legislature are invalid, though they may be politically wise” (*Village of Kenmore v County of Erie*, 252 NY 437, 441 [1930]; *but see* concurring op at 81 [noting “the Early Mail Voter Act . . . strives to ‘make New York State a leader in engaging the electorate,’ ” quoting Senate Introducer’s Mem in Support, Bill Jacket, L 2023, ch 481 at 10]).

Courts have “no political maxims and no line of policy to further or to advance,” making our duty a “humble one” limited to “construing the constitution by the language it contains” (*People ex rel. Wood v Draper*, 15 NY 532, 546 [1857]).

II.

A review of the plain text of the provisions at issue here establishes that the people intended the Constitution to limit the legislature’s authority to make laws governing absentee voting, and that the Early Mail Voter Act, whatever its merits or flaws as policy, goes beyond those limits and is therefore unconstitutional.

Article II, § 1 sets out the fundamental right of every citizen to vote in all elections and sets minimum age and residency requirements. Section 2 describes two and only two categories of voters for whom the legislature has authority to pass laws

governing the “manner in which, and the time and place at which” votes are cast, namely those who are absent from their county of residence or unable to appear personally and cast their votes because of illness or disability. In setting forth these specific conditions for the exercise of legislative authority, the structure of this provision illustrates the maxim *expressio unius est exclusio alterius*—“where a law expressly describes a particular act, thing or person to which it shall apply, an irrefutable inference must be drawn that what is omitted or not included was intended to be omitted or excluded” (*People v Page*, 35 NY3d 199, 206-207 [2020], quoting McKinney’s Cons Laws of NY, Book 1, Statutes § 240). Section 2’s express grant of authority to the legislature to institute absentee voting for the two referenced categories of voters necessarily implies a corresponding lack of authority to do the same for any other categories (*see e.g. Silver v Pataki*, 3 AD3d 101, 107 [1st Dept 2003] [“Since the (relevant constitutional provision) recites the three permissible methods of alteration by the Legislature, the principle of *expressio unius est exclusio alterius* should be applied and permits this Court to construe the listed methods as exclusive”], *affd* 4 NY3d 75 [2004]).

Moreover, the concept of *expressio unius* is, as we have seen, baked into the State Constitution (*see* G. Alan Tarr, *Understanding State Constitutions* at 8-9 [2000] [“Most often . . . these apparent ‘grants of power’ function as limitations. For in a constitution of plenary legislative powers, an authorization to pursue one course of action may by negative implication serve to preclude pursuing alternative courses that were available in the absence of the ‘grant’ under the familiar canon of *expressio unius est exclusio alterius*”]). The charter is at its core a limitation on otherwise plenary power (*see Prendergast*, 202 NY at 197 [“The legislature has all the power of legislation there is, except as limited by the Constitution, either expressly or by necessary implication”]), and this language in section 2 serves no purpose other than as a restriction on the legislature’s authority with respect to absentee voting.

Indeed, while implying that the maxim does not apply to interpretation of constitutional provisions, the majority accepts that “[i]f section 2 had been enacted against a blank slate, plaintiff’s argument would have more force” (majority op at 69; *see also* 229 AD3d 79, 88 [3d Dept 2024] [(P)laintiffs’ reliance on the interpretive maxim *expressio unius est exclusio alterius* for the premise that article II, § 2 precludes the Legislature

from authorizing universal mail-in voting by carving out the only categories of voters entitled to vote by absentee ballot—to the exclusion of others—may well have been plausible prior to the 1966 amendment to article II, § 1”). Of course, *expressio unius* is a textual canon that “focus[es] on the language of the statute itself and the relationships between statutory provisions” (Jacob Scott, *Codified Canons and the Common Law of Interpretation*, 98 Geo LJ 341, 352 [2010]). The maxim’s application does not turn on timing and cannot be applied with a historical gloss; it must instead be applied to the current text “under which we live today” (concurring op at 89, 91). The majority is critical of an approach that “look[s] only to what remains in the Constitution” (majority op at 65-66 n 9) when determining what the text means. That seems the point of textual analysis. When the plain meaning of that text is examined, a limitation on the legislature’s authority to establish absentee voting procedures for any voters beyond the delineated categories in section 2 becomes not just plausible but unavoidable.

Defendants argue that the language of section 7 reiterates the legislature’s plenary authority in this area and in effect trumps section 2. This argument fails. The legislature’s plenary power needs no reiteration within the Constitution, and this provision is also best understood as a limit on the legislature’s authority. Defendants’ alternative reading requires understanding section 7’s language “by ballot, or by such other method as may be prescribed by law,” as granting an authority so great as to encompass the creation of entirely new systems and procedures of voting, rather than the more logical reading that it instead grants authority to adopt modernized instruments for recording votes—at a polling place. More specifically, defendants argue that it encompasses absentee voting, but a comparison of the text of section 7 with section 2 shows that where that authority is intended, different language is used. In section 2 the legislature is given limited authority with respect to two categories of absentee voters, and only those two, to “provide a manner in which, and the time and place at which,” qualified voters may vote. Section 7, by contrast, provides legislative authority to establish that elections “shall be by ballot, or by such other method as may be prescribed by law.” The difference in the terms used is the difference in the limited authority granted.

Textually, the alternative interpretation requires separating the term “ballot” and “such other method”—and we have

instructed that a general phrase following “words of a particular meaning . . . is to be construed as applying only” to the specific words preceding it (*see e.g. People v Shapiro*, 50 NY2d 747, 764 [1980]). Using Black’s Law Dictionary’s definition of “ballot” as meaning “[a]n instrument, such as a paper or ball, used for casting a vote,” the phrase “by ballot, or by such other method” refers naturally to another instrument used for lodging and recording votes, not any process by which elections are conducted (Black’s Law Dictionary 175 [12th ed 2024]).

The alternative reading of section 7 renders section 2, whether considered exclusive or not, entirely superfluous. If section 7 grants authority to the legislature to provide systems for universal absentee voting by mail, a grant of authority to the legislature to provide for absentee voting for two specific categories of voters is unneeded, and odd. When read, as it must be, alongside section 2, whatever the breadth of section 7’s text by itself may be, it is constrained, as would be the legislature’s “plenary power,” by section 2’s specific language on legislative authority with respect to absentee balloting. And while it may be true that “the canon against superfluity is not absolute,” one of the only ways in which the canon is “surmounted” is “‘by textual indications that point in the other direction’ ” (concurring op at 92, quoting *RadLAX Gateway Hotel, LLC v Amalgamated Bank*, 566 US 639, 646-657 [2012] [describing how the general/specific canon may be overcome, but holding that it applied to interpretation of Bankruptcy Code provisions]; *see also* majority op at 70-71). As in *RadLAX*, there is “no such indication here” (566 US at 647).¹ Rather, reading the text as complementary, section 2 limits whatever authority over absentee voting procedures section 7 might, by a strained reading, be said to permit.

Interpretation of the plain text of the Constitution, as it now stands, leads inexorably to the conclusion that the legislature’s authority to permit absentee voting is limited to the two specific categories of voters expressly identified. The Early Mail Voter Act violates that limitation.

That the Constitution limits the legislature’s authority over absentee voting is the longstanding interpretation of the rele-

1. Nor does the canon against superfluity permit provisions to be recast as mere “historical remnant[s]” to avoid being labeled as “superfluous” (majority op at 71) because “[a]ll parts of the constitutional provision . . . must be harmonized with each other” (*Matter of Hoffmann v New York State Ind. Redistricting Commn.*, 41 NY3d 341, 359 [2023] [citations and internal quotation marks omitted]).

vant constitutional language, historically through the present day. In 1898, this Court held that “[t]he elector must vote at the polls of the election district in which, at the time, he resides, and not *elsewhere*. No vote can be registered, cast or counted in this state except at the polling place of some election district” (*People ex rel. Lardner v Carson*, 155 NY 491, 498 [1898]). The majority interprets the clear statement by this Court of the limit on the ability of the legislature to authorize absentee voting as at best “add[ing] to the uncertainty as to whether the Constitution requires that voting must be in person” and more likely to simply reaffirm the legislature’s power to determine the method of voting, apparently because this Court was not specifically considering “mail in” voting (majority op at 64-65). But the rule applies to any form of absentee voting and was central to our analysis in *Lardner*; there was no need to decide “what is an election district” and “by what power it is made” (*Lardner*, 155 NY at 496) or to hold, in the majority’s paraphrasing, “that the legislature may delegate to localities the power to locate polling places outside of the pertinent election district” (majority op at 64-65 n 8), if voting was not limited to in person at that polling place (*see also* 155 NY at 507 [Vann, J., dissenting] [although disagreeing with the result, also noting the need to address the constitutional limitation, and likewise concluding that “(t)he words ‘and not elsewhere,’ which appear in every Constitution except the first, are an express limitation. The command of the Constitution is that the elector must be a resident of the election district in which he offers his vote, and that he shall be entitled to vote only in that election district”]). The majority’s efforts to weaken our holding in *Lardner* fail.

Over 100 years later, this Court again recognized constitutional limitations on the legislature’s authority to pass absentee ballot legislation, noting that the statute under examination, permitting such voting by those unavoidably absent from the county of residence or unable to appear because of illness or physical disability, was “[c]onsistent with the limited circumstances [for absentee voting] contemplated in the Constitution” (*Matter of Gross v Albany County Bd. of Elections*, 3 NY3d 251, 255 [2004] [prohibiting absentee ballots from voters who failed to articulate “why they were not able to vote at the polls” to be counted (*id.* at 259))]. The majority now seeks to undermine this abiding interpretation to make the action of the legislature in disregarding the will of the people more pal-

atable. As the Attorney General urged in prior litigation when arguing for an expansive interpretation of the phrase “because of illness” in article II, § 2, for “over a decade . . . [a] legislative view of article II, § 2 has been ‘acquiesced in by all departments of the state government,’ making it . . . ‘a practical construction of the constitutional provision now in question’ that ‘ought not now to be disturbed’ ” (brief for Attorney General in *Cavalier v Warren County Bd. of Elections*, 210 AD3d 1131 [3d Dept 2022] at 32, quoting *People ex rel. Einsfeld v Murray*, 149 NY 367, 376 [1896]). Even more so a construction that has been adhered to for 150 years.

III.

Consideration of the relevant constitutional history is not “improper” (majority op at 74); it is the majority’s effort to recast our history that is unsound. Underlying the majority’s revision is the following principle: while there was a long-standing constitutional restriction requiring a voter to cast a ballot only in the election district where he or she resided, that did not prevent the voter from *mailing* in a ballot—presumably from anywhere in the world (*see* majority op at 61 [voting “in the election district’ where one resides does not necessarily require that the vote be in person”]; *id.* at 68 [same]). In the majority’s view, the provision was aimed at preventing fraud only in the sense of voters “*traveling* to vote for candidates who were not their own representatives” (*id.* at 61 [emphasis added]) but not *mailing in* votes to accomplish the same anti-democratic goal. This defies common sense and runs contrary to our constitutional history.

The New York State Constitution has historically struck a balance between the goal of universal suffrage and concerns about fraud and a compromised electoral process, concerns raised with force in the context of absentee voting (*see e.g.* 1 Rev Rec, 1915 Constitutional Convention at 897 [“to provide for absentee voting might open the door to fraud”]; Temp St Comm on the Constitutional Convention: The Right to Vote at 52 [Feb. 10, 1967] [“It has been claimed that absentee voting does not have the safeguards that can be provided at the polls—since, for example, it may be difficult to assure that voters cast their ballots in secret, free from improper influences”]; *Problems Relating to Home Rule and Local Government*, 1938 Rep of NY Constitutional Convention Comm, vol 11 at 169-170 [“The danger of fraud is the source of opposition to any broadening of

(the absentee voting section)”). As this Court recognized, “[a]bsentee voting serves the laudable purpose of opening the voting process to a larger electorate but there are dangers inherent in the system” (*Gross*, 3 NY3d at 258; *see also* John C. Fortier & Norman J. Ornstein, *The Absentee Ballot and The Secret Ballot: Challenges for Election Reform*, 36 U Mich J L Reform 483, 492-493 [2003]). These concerns necessarily apply with the greatest force to mail in voting where the safeguards attendant to appearing in person at the polls are absent.

Residency limitations featured in the first New York Constitution, providing that those qualified to vote would be entitled to do so “within his said place of residence” (1777 NY Const art VII). Then, beginning in 1821, more than 200 years ago, the Constitution explicitly required that voting take place “in the town or ward where [the voter] actually resides, and not elsewhere” (1821 NY Const, art II, § 1).

Despite those limitations, Governor Seward warned, in an 1839 speech described as his “annual message,” that

“anarchy will surely follow the discovery that the ballot boxes are an uncertain organ of the will of the people. Conscientiously holding the principle of universal suffrage, and indulging no apprehension of its practical operation, if fairly carried out, with proper safeguards against its abuse, I am yet free to confess my fears that it will prove a fatal franchise unless such safeguards be applied” (2 Charles Z. Lincoln, *The Constitutional History of New York* at 101 [1906]).

He reiterated these concerns in speeches over the course of the following years (*id.* [“Universal suffrage is . . . a mighty element of power, and requires the most perfect safeguards”]).

The 1846 Constitution restated the same barrier against voting beyond one’s residential district (*compare* 1821 NY Const, art II, § 1 [qualified voters “shall be entitled to vote in the town or ward where he actually resides, and not elsewhere,” *with* 1846 NY Const, art II, § 1 [qualified voters “shall be entitled to vote at such election in the election district of which he shall at the time be a resident, and not elsewhere”]). The accepted interpretation of this language as limiting legislative authority regarding absentee voting is clear from the events surrounding efforts to ensure the franchise of Civil War soldiers in 1863. When legislation to permit these soldiers to cast absentee bal-

lots was proposed, Governor Seymour expressed concern that passage of such a statute would result in a “doubtful or unconstitutional law” and vetoed the legislation (2 Lincoln at 238).²

The requisite amendment was adopted by the people of the State in 1864, enshrining this right in the Constitution so that section 1 of article II provided that

“in time of war, no elector in the actual military service of the United States, in the Army or Navy thereof, shall be deprived of his vote by reason of his absence from the state; and the legislature shall have power to provide the *manner in which, and the time and place at which, such absent electors may vote*, and for the canvass and return of their votes in the election districts in which they respectively reside, or otherwise” (1846 NY Const, art II, § 1, as amended Mar. 8, 1864 [emphasis added]).

The issue of absentee balloting for Union soldiers was litigated in other jurisdictions. However, before concluding that those decisions from foreign jurisdictions make a long-standing view of New York’s Constitution “highly uncertain” (majority op at 62), care should be taken to ensure the relevant provisions in those other jurisdictions mirror our language. The only three cases cited by the majority as dispensing with the need for a constitutional amendment concern provisions missing the “and not elsewhere” language then found in our Constitution (see majority op at 62; see *Morrison v Springer*, 15 Iowa 304, 339 [1863] [discussing at length the differences in language of the various state constitutions and emphasizing the importance of paying close attention to the text of the Iowa Constitution]; *Lehman v McBride*, 15 Ohio St 573, 584 [1863]). In *State ex rel. Chandler v Main*, the third case cited by the majority, it appears counsel specifically contrasted the New York Constitution’s “and not elsewhere” language with the language of the Wisconsin Constitution, in support of the argument that the legislation permitting absentee voting by soldiers was constitutional under the Wisconsin Constitution—and the Wisconsin Supreme Court ruled in his favor (16 Wis 398, 409 [1863]; but see majority op at 63 n 7 [describing the two significantly dif-

2. The majority takes its examination of the “political motivations” of a sitting governor only so far (majority op at 62 n 6 [questioning Governor Seymour’s motivation in vetoing the legislation, given that he was a Democrat and that party generally opposed letting soldiers vote by mail as they were likely to vote Republican]).

ferent provisions as “hav(ing) precisely the same meaning”). The constitutional provisions at issue in the three cited cases do not contain the operative language of the New York Constitution and the decisions reinforce, rather than shake, the interpretation given to that language in this State.

The end of the nineteenth century saw the introduction of the language now found in article II, § 7. At that time, article II, § 5 provided that “[a]ll elections by the citizens shall be by ballot,” except for town officials. As New York began experimenting with voting machines, the need to amend section 5 became clear and was taken up at the 1894 Constitutional Convention. The Constitution “permit[ted] but one method of voting—that which is known as voting by ballot, and which, through long use, has come to be voting by the deposit of pieces of white paper in the ballot-box” (3 Rev Rec, 1894 Constitutional Convention at 93; *see id.* at 918 [delegate noting that the Century Dictionary defined ballot as “(1) A little ball used in voting; (2) A ticket or slip of paper used in voting; (3) A method of secret voting by means of small ballots or by printed or written ballots”]). Language was added to permit the legislature to use other methods for recording votes besides the paper ballot, “provided that secrecy in voting be preserved” (1894 NY Const, art II, § 5), so that any method devised by “the inventive genius of some of the citizens of this State” may be adopted (3 Rev Rec, 1894 Constitutional Convention at 93).³ We must again consider, when looking at the language of the provision, that it was meant to ease a restriction on legislative authority, not as an unnecessary “grant” of plenary power to the legislature (majority op at 73).

The majority agrees that “[t]he Convention’s history expresses the amendment’s clear purpose to permit future legislators to determine the method of voting—expressly emphasizing the need to empower the legislature to adapt to technological changes and to improve the efficiency of voting,” and acknowledges that the view of the delegates who urged that the amendment “was intended to ensure that the legislature would be

3. Of course, lack of secrecy continued to be a major concern in the absentee voting process (*see Matter of Gross*, 3 NY3d at 255 [noting that safeguards were adopted in certain absentee voting laws “in recognition of the fact that absentee ballots are cast without the secrecy and other protections afforded at the polling place”]). The inability to preserve secrecy in the process reinforces the conclusion that absentee balloting is not available to the legislature as a “method” by which elections could be conducted.

unfettered to adapt even then-unknown methods of voting . . . carried the day” (majority op at 73, 72 n 13, citing 3 Rev Rec, 1894 Constitutional Convention at 85-92). I read the Convention’s history similarly—the language of the proposed amendment reflected confidence in progress toward more secure and more accurate mechanical voting methods beyond the problematic “Myers” voting machine (3 Rev Rec, 1894 Constitutional Convention at 83-89; *see also id.* at 88 [“It seems the height of folly for us to say that we are unwilling that the inventions or devices that may be made or suggested in the next four or five years shall not be adopted”]; *id.* at 98 [amended language “simply opens the door so that the Legislature may take advantage of the results of inventive genius or the results of any advanced thought of the age”]). But in 1894, no “inventive genius” was needed to envision putting a stamp on an envelope and mailing in a paper ballot.

Given the limited scope of the language in section 7, it was well understood that any expansion of the categories of individuals permitted to vote by absentee ballot beyond those expressly referenced in the 1864 amendment required constitutional amendment (*see* 2 Rev Rec, 1915 NY Constitutional Convention at 1814-1815 [“The only case of absentee voting that the State of New York has ever recognized was in the case of war . . . That is the only kind of absentee voting which this State has ever recognized and it will be a long time in my opinion before any Constitution ever permits any such thing as absentee voting”]). The majority accurately states that “for nearly a century . . . when the legislature extended voting to groups of voters who were not present in their election district on Election Day, it did so by proposing a constitutional amendment, to be acted on by popular referendum” (majority op at 65). Indeed, in 1919, absentee voting was authorized for commercial travelers—those “who may, on the occurrence of any general election, be unavoidably absent from the state or county of their residence because their duties, occupation or business require them to be elsewhere” (NY Const, art II, § 1-a, as added Nov. 4, 1919). This expansion was “not without controversy”; at the time, the New York Times urged voters to reject the amendment and describing absentee voting as “‘a doubtful and even dangerous remedy’ where ‘[t]he danger of fraud is palpable’ ” (*Matter of Gross*, 3 NY3d at 255 & n 2 [2004], quoting *Four Amendments*, NY Times, Oct. 15, 1919, at 16). But, through a vote of the people, the expansion of

absentee voting by constitutional amendment continued; in 1923, to allow for absentee voting by inmates of soldiers' homes (NY Const, art II, § 1-a, as amended Nov. 6, 1923); in 1929, to allow patients in veterans' bureau hospitals to vote absentee (NY Const, art II, § 1-a, as amended Nov. 5, 1929); in 1947, to extend the right to family members of those already entitled to vote absentee (NY Const, art II, § 2, as amended Nov. 4, 1947); and in 1955, to permit absentee voting by those who "may be unable to appear personally at the polling place because of illness or physical disability" (NY Const, art II, § 2, as amended Nov. 8, 1955]). The legislature well understood that for each change, for each expansion of absentee voting, the approval of the people was needed.

By 1963, this piecemeal expansion of the categories of permissible absentee voters had created an unwieldy provision. By amendment, the several categories of voters to whom the legislature was authorized to grant the right to vote absentee were consolidated into two broad categories: qualified voters who "may be absent from the county of their residence" and those who "may be unable to appear personally at the polling place because of illness or physical disability" (NY Const art II, § 2, as amended Nov. 5, 1963).

The majority, the Appellate Division, and defendants all ground their analysis in changes made to section 1 three years after this extensive overhaul of section 2 (*see* majority op at 65-68; 229 AD3d at 86-88). Before 1966, section 1, in addition to the language providing that qualified voters "shall be entitled to vote . . . in the election district of which he or she shall at the time be a resident, and not elsewhere," also contained various residency requirements; provided such voters a right to vote "for all officers that now are or hereafter may be elective by the people, and upon all questions which may be submitted to the vote of the people"; included language permitting the legislature to establish "the manner" of voting for those "in the actual military service of the state, or of the United States, in the army, navy, air force or any branch thereof, or in the coast guard, or the spouse, parent or child of such elector, accompanying or being with him or her, if a qualified voter and a resident of the same election district"; and contained permission for those moving election districts within 30 days preceding the election to vote in their prior district (*see* 1965 NY Senate-Assembly Concurrent Resolution S5519, A923). The 1966 amendment simplified the provision by condensing the language and streamlining the residency requirements:

“Every citizen shall be entitled to vote at every election for all officers elected by the people and upon all questions submitted to the vote of the people provided that such citizen is twenty-one years of age or over and shall have been a resident of this state, of the county, city, or village for three months next preceding an election” (*see* NY Const, art II, § 1, as amended Nov. 8, 1966).

Among the provisions removed from the prior version of that section was the “and not elsewhere” language.

There is no legislative history related to the removal of that language. As the Temporary State Commission on the Constitutional Convention reported the following year, in 1967, removal of the “and not elsewhere” language from section 1, alongside retention of the section 2 absentee voting limits, “arguably suggests that Article II, Section 2 is intended not merely to authorize the Legislature to establish absentee voting in certain cases, but to bar the Legislature from prescribing absentee voting in cases not within the scope of that provision” (Temp St Commn Report at 51 n 28). The Temporary Commission continued, “[o]n the other hand, it might be contended that the 1966 amendment . . . entitling qualified voters to vote ‘at every election for all officers elected by the people and upon all questions submitted to vote of the people,’ was intended to give the Legislature unrestricted discretion over absentee voting” but added that “*this interpretation, however, makes Article II, section 2 superfluous*” (*id.* [emphasis added]; *but see* majority op at 65-66 [omitting the italicized language]). So it would, and because of that, as the Temporary State Commission implied, this latter view should be rejected.

The majority challenges the former interpretation as improperly transferring the prohibition on absentee voting from section 1 to section 2 when section 2 was instead initially crafted “to broaden voter participation” (majority op at 70; 229 AD3d at 91-92). This on its surface is the strongest argument for my colleagues’ position. But the two possible interpretations of the effect of the 1966 amendment make clear that the majority’s conclusion as to section 2’s validity as a limit post-1966 is wrong.

There are two choices when it comes to the effect of the 1966 amendment. The majority concludes that the legislature proposed an amendment that would remove a nearly 150-year-old limitation on its own authority, without any notice to the

people voting on that amendment and without any record of considering the effect. In doing so, either intentionally or accidentally, they rendered section 2 superfluous, even though the legislature and the people had spent considerable time and resources amending that provision a mere three years before. The second choice would have the legislature and the people assume that section 2, now by negative implication, continued the same limitation as before by marking the two exclusive categories—in keeping with the Constitution’s role as providing limits on the legislature’s otherwise plenary power. This outcome is consistent with the formal opinion of the Attorney General at the time that “the proposed [1966] amendment, if adopted, will have no effect upon the other provisions of the Constitution” (1966 Senate Journal, vol II, at 1936-1937; NY Const, art XIX, § 1). The Attorney General could not have concluded that rendering section 2 superfluous would leave it unaffected by the amendment. Before and after 1966, section 2 provided the exclusive categories qualifying for absentee voting, consistent with both the 1966 Attorney General opinion and the plain meaning of the existing text as discussed in section II above.

In support of its assertion that the legislative and executive branches have “more often” acted as though “no constitutional amendment was necessary to allow certain groups to vote without being present at the polls” (majority op at 59), the majority relies solely on the example of statutes passed since the 1966 amendment identifying distinct groups of voters authorized to vote by absentee ballot (*id.* at 66-68). In fact, each of these statutes fit within the confines of article II, § 2. In 1982, the legislature permitted election workers assigned to work “at a polling place other than the one at which he or she is registered to vote” who “will be unable to appear at the polling place” because their duties “require [them] to be elsewhere” to vote by special ballot (Election Law § 11-302); in 1996, permitted victims of domestic violence who affirm that they have “left [their] residence because of such violence” and want to cast a special ballot “because of the threat of physical or emotional harm” to do so (Election Law § 11-306 [1] [b], [c]); in 2009, extended absentee voting to those “unable to appear personally at the polling place” because of “duties related to the primary care of one or more individuals who are ill or physically disabled” (Election Law § 8-400 [1] [b]) and in 2016, permitted emergency responders who file a written statement that they

will be “unable to appear at the polling place . . . because his or her duties as an emergency responder require such voter to be elsewhere” to cast a special ballot (Election Law § 11-308 [2]). The majority insists that article II, section 2’s language authorizing the legislature to provide absentee ballots for persons “unable to appear . . . because of illness or physical disability” “cannot be the legislature’s source of authority to permit election workers, first responders, victims of domestic violence, or caretakers of ill or physically disabled persons to vote by some means other than in person at the polls” (majority op at 67). But each of these statutory changes provided voting opportunities and procedures for those either “unable to appear because of illness” or who “may be absent” within the meaning of, and consistent with, section 2—authorization for the emergency responder, election worker, and domestic violence victim to vote absentee hinges on the voter’s attestation that they will be absent from their registered residence, one of the two categories of voters for whom article II, § 2 authorizes the legislature to “provide a manner in which” they may vote absentee. For that reason, no legislative history is needed to “shed light on the question of why the legislature concluded no constitutional amendment was required” (majority op at 66)—because article II, section 2 permits the legislature to extend absentee voting to those who may be absent or who are ill or disabled, and these groups of absentee voters fit within these categories. The “absent from” or “unable to appear because of illness or disability” provisions of section 2 cover all categories of absentee voting authorized since 1966.

Indeed, expanding absentee voting to new categories of voters within the confines of article II, § 2’s limitations was the approach taken by the legislature in enacting, and the Attorney General in defending, a 2020 absentee voter law passed amid the outbreak of the coronavirus pandemic. At that time, the legislature amended Election Law § 8-400, explaining that the statutory language “because of illness” also included “instances where a voter is unable to appear personally . . . because there is a risk of contracting or spreading a disease that may cause illness to the voter or to other members of the public” (L 2020, ch 139, § 1). When this legislation was challenged in court, the Attorney General stressed that the statute complied with the limitations of section 2, representing to the courts that while the “express requirement [that voters do so in person] no longer exists[, . . .] the Constitution has generally been regarded

as continuing to retain the requirement implicitly” (see brief for Attorney General in *Cavalier v Warren County Bd. of Elections*, 210 AD3d 1131 [3d Dept 2022] at 4), but the exclusive categories of section 2 could be stretched far enough to cover the challenged legislation.⁴ The same elastic interpretation of section 2 authorizes the various post-1966 absentee voter statutes (see *id.* at 32 [representing that the legislature had acted on the “more capacious understanding of the term ‘illness’ ” in passing the 2009 legislation related to caregivers]). Any suggestion on the majority’s part that article II, § 2’s reference to illness or physical disability cannot be the source of the “caretaker” statute (majority op at 67-68) ignores the decade-long understanding “that constitutional authorization for absentee voting ‘because of illness’ does not require illness personally and presently afflicting the qualified voter” (brief for Attorney General in *Cavalier* at 32).

Over this long course of constitutional history, an enduring feature of both the constitutional language, and legislative action in accordance with that language, has been an understanding of the limits on the legislature’s authority to provide for absentee voting. The majority would rattle this 150-year-old interpretation of the law to excuse the legislature’s disregard of the people’s decision to reject an amendment to abolish the restraint. The effort is necessary given that the recent action by the legislature in proposing the amendment and rejecting the outcome makes clear not only the limitation on its authority but the violation that took place here.

IV.

“The right to amend is a defining part of state constitutions” (Jessica Bulman-Pozen & Miriam Seifter, *The Right to Amend State Constitutions*, 133 Yale LJ Forum 191, 226 [2023]). Put another way, “[c]onstitutions tell us who is in charge [but a]mendments remind officeholders it is not them” (Jeffrey S. Sutton et al., *State Constitutional Law: The Modern Experience* 1027 [4th ed 2023]). When we consider the history of an amendment, we must therefore look not only to the legislative

4. The Attorney General now not only disavows the existence of any constitutional limitation but denies that what she described previously as a “generally” held view ever garnered a “consensus.” It is difficult to reconcile the Attorney General’s latest position with the standard definition of “consensus” as “[a] general agreement” (Black’s Law Dictionary 382 [12th ed 2024]).

history behind the drafting of the proposal, but to the understanding of the people in adopting—or rejecting—that proposal.

Knowing that such examination would lead to an unfavorable result given the clarity of the materials submitted to voters before they rejected the 2021 proposed amendment, defendants now seek to avoid consideration of the voters' intent, suggesting that precedent from this Court requires us to disregard the voters' understanding of the proposal put before them. While this Court has abandoned the "intelligent, careful voter" approach (*Golden v Koch*, 49 NY2d 690, 694 [1980]), we have always maintained the importance of the role of the people in the process of amending the Constitution.⁵ The relevance of the people's voice can be understood through our standard approach to constitutional interpretation (*see Golden*, 49 NY2d at 694; *see also Matter of King*, 81 NY2d at 253; *see also* Robert F. Williams, *The Brennan Lecture: Interpreting State Constitutions as Unique Legal Documents*, 27 Okla City Univ L Rev 189, 196 [2002] ["Often state courts will examine . . . evidence of the voters' intent derived from official ballot pamphlets and other materials presented to voters prior to the referendum"]; G. Alan Tarr, *Understanding State Constitutions*, 65 Temple L Rev 1169, 1186 [1992] ["(T)he more recent the constitutional provision, the more likely that there is an extensive documentary record . . . (such as) voters' pamphlets . . . bearing on its meaning"]). We have never abandoned the requirement that we "look for the intention of the People" in construing the language of the Constitution (*see Hoffman*, 41 NY3d at 359 [citation and internal quotation marks omitted]).

Examining what the people were told, and what they intended, is all the more important in our state given the limited avenues available for participation by the people in the amendment process. New York has only two ways to amend the Constitution—by legislative proposal or by convention (*see* NY Const art XIX). Ours is not one of the 18 states that "permit initiatives as a way for the people to directly amend their constitutions" (Jeffrey S. Sutton, *Who Decides? States as Laboratories of Constitutional Experimentation* 345 [2002]; *see also* Jerald A. Sharum, Note, *A Brief History of the Mechanisms of Constitutional Change in New York and the Future Prospects*

5. Despite the suggestion in the concurrence, we have never weighed the people's intent by voter turnout (*see* concurring op at 81 n 3).

for the Adoption of the Initiative Power, 70 Albany L Rev 1055, 1080 [2007] [“The power of the people to initiate constitutional amendments has never been established in New York”]). As there has been no constitutional convention called in New York since 1967, legislative proposals put to the people for approval have become the sole avenue for amendment in the State, and it is an avenue often taken—from 1967 through 1996, the legislature proposed 4,437 constitutional amendments (*see* New York State Bar Association, Report of the Committee on the New York State Constitution [Jan. 2024]). As a result, the legislature has become the gatekeeper to constitutional reform (*see* Sharum, 70 Albany L Rev at 1082 [(T)he initiative (power) provides a relief mechanism outside the legislative sphere to achieve constitutional change without requiring direct support in the legislature”). Or, along the same lines, the legislature acts as the people’s agent in proposing amendments. With that role in mind, I turn to the failed amendment of 2021.

In 2019, the legislature proposed an amendment to article II, § 2, to remove the limitation on the legislature’s authority to provide for absentee voting, explaining that it was necessary because “[c]urrently, the New York State Constitution only allows absentee voting if a person expects to be absent from the county in which they live, or the City of New York, or because of illness [] or physical disability” (Senate Introducer’s Mem in Support, 2019 NY Senate-Assembly Concurrent Resolution S1049, A778). As required by article XIX of the Constitution, after the proposal was agreed upon “by a majority of the members elected to each of the two houses,” it was then “referred to the next regular legislative session convening after the succeeding general election” (NY Const, art XIX, § 1) and was agreed upon by another group of legislators upon the premise that “the New York State Constitution allows absentee voting in extraordinarily narrow circumstances” (Senate Introducer’s Mem in Support, 2021 NY Senate-Assembly Concurrent Resolution S360, A4431). That is, two separate legislatures approved the submission of the amendment to the people demonstrating that “the legislature itself recognized that the Constitution did not permit it to proceed” (*Matter of Harkenrider v Hochul*, 38 NY3d 494, 516-517 [2022] [discussing impact of voters’ rejection of a different proposed amendment also on the 2021 ballot]).

Voters were then told that a restriction existed within the Constitution, and that the proposed amendment would elimi-

nate it (*see* Ballot Proposal 4, 2021 Statewide Ballot Proposal: Abstract [“The purpose of this proposal is to eliminate the requirement that a voter provide a reason for voting by absentee ballot . . . by deleting the requirement currently in the Constitution that restricts absentee voting to people under one of two specific circumstances”]). The ballot language itself read: “The proposed amendment would delete from the current provision on absentee ballots the requirement that an absentee voter must be unable to appear at the polls by reason of absence from the county or illness or physical disability. Shall the proposed amendment be approved?” (2021 Statewide Ballot Proposals). The people’s answer was no.⁶

Despite the 55 to 45 percent margin of the vote against the amendment, and with the knowledge that the people were told that such an amendment was necessary to authorize further expansion of the absentee ballot, the legislature passed the Early Mail Voter Act. The 2023 legislation provides that any registered voter may apply “to vote early by mail,” and requires the board of elections to mail an early mail ballot to any applicant, so long as their application is received within the time limit set out in the statute (Election Law § 8-700). The application requests basic personal information—full name, date of birth, and address (Election Law § 8-700 [3]). No reason need be given for the decision to vote by mail; no showing of potential absence, inability to appear, illness, risk of illness, physical disability, care for individuals with physical disability, or anything of the sort need be provided.

The legislature’s action effectively reads the people’s power to amend—or refuse to amend—out of the Constitution, and by allowing this to stand the majority “usurp[s] the voters’ prerogative to *maintain* or alter” constitutional provisions by permitting the legislature to do so (*White*, 38 NY3d at 252 [Wilson, J., dissenting] [emphasis added] [“We can only hope the decision does not crack the foundational principle we have thus far followed: that the three branches of government limit each other in important ways to protect the rights of the people of our state” (*id.*)]).

The constitutional text is clear; the legislature’s power to authorize absentee voting is limited by article II, § 2. This restric-

6. This was a proposal for removing any bar on the legislature’s authority to institute universal absentee voting—not a suggested mechanism for absentee voting with which voters may have had specific disagreements. It was a simple yes or no question.

tion, plain on the face of the document, is reinforced by 200 years of constitutional history. Most recently, in 2021, voters were asked—in effect by two separate legislatures—to approve a change that would have permitted the legislature to recast the balance between universal suffrage and fraud prevention; they declined to do so. The legislature’s response—essentially “we never needed you anyway”—breached the trust placed in the legislature to act for the people in the amendment process. The majority gets by this “troubling” “recent sequence of events” by sowing unfounded doubts about the established interpretation of the Constitution as limiting the legislature’s authority to make rules governing absentee ballots (majority op at 74 [“Had there been a clear, unequivocal, and persistent understanding by our coordinate branches that the Constitution required in-person voting, this would be a more difficult case”])). We can expect that whatever criticism of the legislature’s actions the majority musters will have all the effect of a strongly worded letter to the editor of a local newspaper on an issue of good government. The reader applauds the sentiment but laments being powerless to impose a remedy. But this Court has both the power and the duty to remedy what happened here, and our failure to do so diminishes us and nullifies the will of the people. I dissent.

Judges SINGAS, CANNATARO and HALLIGAN concur. Judge RIVERA concurs in result in an opinion, in which Judge TROUTMAN concurs. Judge GARCIA dissents in an opinion.

Order affirmed, without costs.

[255 NE3d 648, 230 NYS3d 104]

In the Matter of RICH AMEDURE et al., Appellants, v STATE OF NEW YORK et al., Respondents, and MINORITY LEADER OF THE SENATE OF THE STATE OF NEW YORK et al., Appellants, et al., Respondent.

Argued October 15, 2024; decided October 31, 2024

PROCEDURAL SUMMARY

APPEALS from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered August 23, 2024. The Appellate Division, with two Justices dissenting, (1) modified, on the law, a judgment (denominated decision and order) of the Supreme Court, Saratoga County (Rebecca A. Slezak, J.; op 84 Misc 3d 879 [2024]), entered in a combined proceeding pursuant to Election Law article 16 and CPLR article 78 and action for declaratory judgment, which had, among other things, (a) adjudged and declared (I) “that the Legislature, if partial invalidity had been foreseen, would have wished the statute to be enforced with the invalid part excised therefrom, instead of rejecting the legislation altogether”; (ii) “that chapter 763 of the Laws of 2021, and more specifically, Election Law § 9-209 (2) (g), insofar as the same provides that if the central board of canvassers splits as to whether a ballot is valid, it shall prepare such ballot to be cast and canvassed pursuant to this subdivision, violates the Constitution of the State of New York and is unconstitutional and void”; and (iii) “that the remainder of chapter 763 of the Laws of 2021, and more specifically, the remaining portions of Election Law § 9-209, after excision of subdivision (2) (g), is . . . constitutional and valid”; and (b) ordered so much of the petition and motion to declare the statute unconstitutional granted in part and denied in part; (2) dismissed the petition/complaint; and (3) declared that Laws of 2021, chapter 763 is constitutional and valid. The modification consisted of reversing so much of the judgment as had declared Election Law § 9-209 (2) (g) unconstitutional. The Appellate Division affirmed the judgment as modified.

Matter of Amedure v State of New York, 232 AD3d 48, affirmed in part, appeal dismissed in part.

HEADNOTE

Elections — Judicial Proceedings — Resolution of Disputes as to Validity of Ballot — Constitutionality

Election Law § 9-209 (2) (g), which provides that if the members of a bipartisan local board charged with reviewing ballots are split as to a ballot’s

validity, the ballot shall be cast and canvassed, does not violate the equal representation mandate of New York Constitution, article II, § 8, or the constitutional principles of judicial review and separation of powers. New York Constitution, article II, § 8 requires “equal representation” of the two major political parties on various election bodies, and Election Law § 9-209’s requirement that the Board be “divided equally between representatives of the two major political parties” secures that equal representation (Election Law § 9-209 [1]). The authority that Election Law § 9-209 vests in a two-member Board is equally distributed to each member: during the Board’s initial review for defects, either member can declare a ballot invalid, and during the Board’s subsequent review, either member can declare a ballot valid. Thus, no single Board member has any more authority than any other member over the canvassing process, and neither party carries more sway over the process than the other. Moreover, the statute comports with the Constitution and contains multiple pathways for judicial review, and the statutory scheme includes numerous safeguards through which the courts can address and prevent electoral fraud as necessary.

RESEARCH REFERENCES

By the Publisher’s Editorial Staff

AM JUR 2d Elections §§ 86, 358, 359.

McKINNEY’S, Election Law § 9–209 (1), (2) (g); NY Const, art II, § 8.

NY JUR 2d Elections §§ 646, 648, 650, 651.

ANNOTATION REFERENCE

See ALR Index under Ballots; Constitutional Law; Elections and Voting.

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POINTS OF COUNSEL

Fusco Law Office, Albany (Adam Fusco of counsel), and *Perillo Hill, LLP*, Sayville (John Ciampoli of counsel), for Rich Amedure and others, appellants. I. Election Law § 9-209 (2) (g) violates article II, § 8 of the New York State Constitution and the Election Law. (*People v Stuart*, 100 NY2d 412; *Matter of Conlin v Kisiel*, 35 AD2d 423; *Matter of Graziano v County of Albany*, 3 NY3d 475; *People ex rel. Chadbourne v Voorhis*, 236 NY 437; *People ex rel. Stapleton v Bell*, 119 NY 175; *Matter of Kolb v Casella*, 270 AD2d 964; *Matter of Hosley v Valder*, 160 AD2d 1094; *Matter of Kelley v Lynaugh*, 112 AD3d 862; *Matter*

of *Pavlic v Haley*, 20 AD2d 592, 13 NY2d 1111; *Matter of Johnson v Martins*, 79 AD3d 913.) II. Preclusion of judicial review of unilateral actions by the boards of elections violates due process and the separation of powers doctrine. (*Matter of De Guzman v State of N.Y. Civ. Serv. Commn.*, 129 AD3d 1189; *Matter of Pan Am. World Airways v New York State Human Rights Appeal Bd.*, 61 NY2d 542; *Matter of Baer v Nyquist*, 34 NY2d 291; *Matter of New York City Dept. of Envtl. Protection v New York City Civ. Serv. Commn.*, 78 NY2d 318; *Board of Educ., Levittown Union Free School Dist. v Nyquist*, 57 NY2d 27; *Marbury v Madison*, 5 US 137; *Matter of Rosenstock v Scaringe*, 40 NY2d 563.) III. Recent cases exemplify the unconstitutionality of Election Law § 9-209 (2) (g). (*Matter of Hughes v Delaware County Bd. of Elections*, 217 AD3d 1250; *Matter of Delgado v Sunderland*, 97 NY2d 420; *Tenney v Oswego County Bd. of Elections*, 70 Misc 3d 680.) IV. Chapter 763 of the Laws of 2021 enables rampant voter fraud and undermines the integrity of New York's elections. (*Matter of Panio v Sunderland*, 4 NY3d 123; *Tenney v Oswego County Bd. of Elections*, 71 Misc 3d 400.) V. The appellate court should have struck the entirety of chapter 763 of the Laws of 2021 because excision of section 9-209 (2) (g) is impossible. (*Hecker v State of New York*, 20 NY3d 1087; *People ex rel. Alpha Portland Cement Co. v Knapp*, 230 NY 48.)

DerOhannesian & DerOhannesian, Albany (Paul DerOhannesian II of counsel), for Minority Leader of the Senate of the State of New York and another, appellants. I. "So far, so good" until there is a deadlock under Laws of 2021, chapter 763's post-2021 ballot canvassing procedure. II. The deadlock scenario that results under Election Law § 9-209 (2) (g) allowing a single commissioner's qualification of a voter violates the bipartisan mandates of New York's Constitution. (*Matter of Graziano v County of Albany*, 3 NY3d 475; *Matter of Conlin v Kisiel*, 35 AD2d 423, 28 NY2d 700.) III. If the majority opinion is upheld on this appeal, board malfeasance will result in voter's disenfranchisement. (*Storer v Brown*, 415 US 724.) IV. Where there is a deadlock, chapter 763 of the Laws of 2021 precludes judicial review in contravention of the requirements of New York's Constitution and Election Law. (*Marbury v Madison*, 5 US 137; *United States v American Trucking Assns., Inc.*, 310 US 534; *Matter of King v Cuomo*, 81 NY2d 247; *Saxton v Carey*, 44 NY2d 545; *White v Cuomo*, 38 NY3d 209; *Klostermann v Cuomo*, 61 NY2d 525; *Matter of Gross v Albany County Bd. of Elections*, 3 NY3d 251; *Matter of De Guzman v State of*

N.Y. Civ. Serv. Commn., 129 AD3d 1189; *Matter of New York City Dept. of Envtl. Protection v New York City Civ. Serv. Commn.*, 78 NY2d 318; *Mount St. Mary's Hosp. of Niagara Falls v Catherwood*, 26 NY2d 493.)

Letitia James, Attorney General, Buffalo (*Sarah L. Rosenbluth, Barbara D. Underwood and Jeffrey W. Lang* of counsel), for State of New York, respondent. I. Election Law § 9-209 (2) (g) satisfies all constitutional requirements at issue here. (*People ex rel. Chadbourne v Voorhis*, 236 NY 437; *Matter of Finegan v Cohen*, 275 NY 432; *People ex rel. Stapleton v Bell*, 119 NY 175; *Matter of Graziano v County of Albany*, 3 NY3d 475; *Butts v City of New York*, 779 F2d 141; *Matter of Conlin v Kisiel*, 35 AD2d 423, 28 NY2d 700; *New York Pub. Interest Research Group v Steingut*, 40 NY2d 250; *Motor Veh. Mfrs. Assn. of U.S. v State of New York*, 75 NY2d 175; *Matter of Delgado v Sunderland*, 97 NY2d 420; *Matter of New York State Comm. of the Independence Party v New York State Bd. of Elections*, 87 AD3d 806.) II. The severability issue is not properly before this Court. (*Forman v Henkin*, 30 NY3d 656; *People v Viviani*, 36 NY3d 564.) III. The appeal of the Minority Leaders should be dismissed because they are not aggrieved by the Appellate Division's decision. (*Byrnes v Senate of the State of N.Y.*, 41 NY3d 1022.)

Hacker Murphy LLP, Troy (*Benjamin F. Neidl and James Knox* of counsel), for Senate of the State of New York and another, respondents. I. Subdivision (2) (g) of Election Law § 9-209 does not violate the State Constitution or the Election Law. (*Cohen v Cuomo*, 19 NY3d 196; *White v Cuomo*, 38 NY3d 209; *New York State Rifle & Pistol Assn., Inc. v Cuomo*, 804 F3d 242; *People ex rel. Lardner v Carson*, 155 NY 491; *People ex rel. Chadbourne v Voorhis*, 236 NY 437; *Matter of Harris v Hulbert*, 211 App Div 301; *People ex rel. Stapleton v Bell*, 119 NY 175; *Matter of Conlin v Kisiel*, 35 AD2d 423; *Matter of Dutchess County Dept. of Social Servs. v Day*, 96 NY2d 149.) II. The statute does not offend due process or the separation of powers. (*Matter of Delgado v Sunderland*, 97 NY2d 420; *Matter of New York State Comm. of the Independence Party v New York State Bd. of Elections*, 87 AD3d 806, 17 NY3d 706; *Matter of Korman v New York State Bd. of Elections*, 137 AD3d 1474; *Matter of Scaringe v Ackerman*, 119 AD2d 327; *Bloom v Crosson*, 183 AD2d 341, 82 NY2d 768; *Matter of Lisa v Board of Elections of City of N.Y.*, 54 AD2d 746; *Matter of Pan Am. World Airways v New York State Human Rights Appeal Bd.*, 61 NY2d 542; *Matter of Baer v Nyquist*, 34

NY2d 291; *Matter of De Guzman v State of N.Y. Civ. Serv. Commn.*, 129 AD3d 1189; *Matter of New York City Dept. of Envtl. Protection v New York City Civ. Serv. Commn.*, 78 NY2d 318.) III. Plaintiffs/petitioners-respondents' discussion of "recent cases" is unavailing. (*Matter of Hughes v Delaware County Bd. of Elections*, 217 AD3d 1250.) IV. Even if subdivision (2) (g) of Election Law § 9-209 were invalid (which it is not) the trial court was correct to sever it. (*Waste Recovery Enters. v Town of Unadilla*, 294 AD2d 766, 100 NY2d 614; *Matter of Westinghouse Elec. Corp. v Tully*, 63 NY2d 191; *People v Liberta*, 64 NY2d 152.)

Hodgson Russ LLP, Albany (Christopher Massaroni, Henry A. Zomerfeld, Sera Yoon, Julia E. Mikolajczak and Mohammed A. Alam of counsel), for Assembly of the State of New York and others, respondents. I. Subdivision (2) (g) of Election Law § 9-209 is fully consistent with constitutional standards and preserves equal representation of the political parties in election matters. (*White v Cuomo*, 38 NY3d 209; *People ex rel. Lardner v Carson*, 155 NY 491; *People ex rel. Chadbourne v Voorhis*, 236 NY 437; *Clark v Cuomo*, 66 NY2d 185; *Matter of Graziano v County of Albany*, 3 NY3d 475.) II. Election Law § 9-209 (2) (g) does not infringe on the role of the judiciary. (*Matter of Delgado v Sunderland*, 97 NY2d 420; *Matter of Korman v New York State Bd. of Elections*, 137 AD3d 1474; *Tenney v Oswego County Bd. of Elections*, 70 Misc 3d 680; *Matter of McGrath v New Yorkers Together*, 55 Misc 3d 204; *Matter of De Guzman v State of N.Y. Civ. Serv. Commn.*, 129 AD3d 1189; *Matter of New York City Dept. of Envtl. Protection v New York City Civ. Serv. Commn.*, 78 NY2d 318; *Matter of Pan Am. World Airways v New York State Human Rights Appeal Bd.*, 61 NY2d 542; *Matter of Baer v Nyquist*, 34 NY2d 291; *Matter of Lisa v Board of Elections of City of N.Y.*, 54 AD2d 746, 40 NY2d 911.) III. Chapter 763 of the Laws of 2021 does not facilitate fraud in elections. (*People ex rel. Stapleton v Bell*, 119 NY 175; *Matter of Weinberger v Jackson*, 28 AD2d 559, 19 NY2d 995.) IV. Any award of relief should be prospective only. (*Matter of King v Cuomo*, 81 NY2d 247.)

OPINION OF THE COURT

Per Curiam.

In 2021, the Legislature enacted chapter 763 of the Laws of 2021 to streamline the canvassing of certain ballots. One of its provisions, Election Law § 9-209 (2) (g), provides that if the

members of a bipartisan local board charged with reviewing ballots are split as to a ballot's validity, the ballot shall be cast and canvassed. Petitioners/plaintiffs (hereinafter plaintiffs) claim this section violates the equal representation mandate set forth in article II, § 8 of the New York Constitution and constitutional principles of judicial review and separation of powers. Seeing no merit to these challenges, we affirm the order of the Appellate Division. We also dismiss the appeal taken therefrom by the Minority Leaders of the Senate and the Assembly.

I.

The Election Law sets forth instructions for reviewing and canvassing absentee, mail-in, and certain other ballots (*see* Election Law § 9-209). During the 2020 election, there was an unusually high volume of absentee ballots due to the COVID-19 pandemic, and the statutorily mandated procedures gave rise to significant delays in the state's election reporting (*see* Senate Introductor's Mem in Support, Bill Jacket, L 2021, ch 763 at 8). Following that election, the Legislature enacted chapter 763, which repealed and replaced Election Law § 9-209. The prior statute had provided that a "central board of inspectors" would review absentee and other special ballots "no more than fourteen days after a general or special election and no more than eight days after a primary election" (*see* former Election Law § 9-209 [1] [a] *et seq.* [detailing the previous canvass process]). By enacting chapter 763, the Legislature sought to address the delays by requiring the review of absentee ballots every four days once early voting begins, and once every day on or after the election (*see* Election Law § 9-209 [2]; Governor's Approval Mem, Bill Jacket, L 2021, ch 763 at 6 ["These three election bills . . . speed up the counting of absentee ballots, make them more accessible, and permit New Yorkers who have requested a ballot to track its progress"]; Senate Introductor's Mem in Support, Bill Jacket, L 2021, ch 763 at 7 ["This bill amends the Election Law . . . in order to obtain the results of an election in a more expedited manner and to assure that every valid vote by a qualified voter is counted"]).

As relevant here, before returning one of the covered ballots a voter must place their completed ballot inside a ballot affirmation envelope (ballot envelope) (*see e.g.* Election Law §§ 7-119, 7-122, 7-125, 8-302 [3] [e] [ii]). The voter must then sign the ballot envelope, place it inside a return envelope,

and mail that envelope or return it in person. When the local board of elections receives that envelope, it is reviewed for potential defects, some of which the statute deems incurable and others curable. The local board of elections or a set of poll clerks known as the “central board of canvassers” (the Board) is entrusted with that process (*id.* § 9-209 [1]). The statute requires that each Board “be divided equally between representatives of the two major political parties,” a mandate included in the prior version of the law as well (*id.*; *see* Election Law former § 9-209 [1] [a]). The Board is thus required to have an even number of members and may have as few as two.

Under subdivision (2) (a), the Board first reviews the ballot envelope for any of four incurable defects that would render it presumptively invalid: (1) the name on the ballot envelope does not match the registration records; (2) there is no name on the ballot envelope; (3) the ballot envelope was not timely received or the postmark is not timely; or (4) the ballot envelope is completely unsealed. If the Board concludes that a ballot has any of these defects or splits as to the existence of any defect, then the ballot must be set aside for post-election review pursuant to section 9-209 (8) (*see* Election Law § 9-209 [2] [a]). If none of these defects exist, the Board then reviews the ballot for conditions that may render it defective but curable. Those conditions are set forth in Election Law § 9-209 (3) (b).

The appeal before us primarily concerns the process through which the Board evaluates one of these conditions: whether the voter’s signature on the ballot envelope matches the voter’s signature on file.* Election Law § 9-209 (2) (c) requires that the Board “compare the signature, if any, on each ballot envelope” with the signature on the applicable registration records. A non-matching signature renders a ballot defective, but curable (*id.* § 9-209 [3] [b]). Election Law § 9-209 (2) (g) provides that if the Board splits “as to whether a ballot is valid,” it “shall prepare such ballot to be cast and canvassed pursuant to this subdivision.” Thus, at the time, for example, that a two-person Board reviews a ballot for a signature match, subdivision (2) (g) allows either of the canvassers to approve the ballot for canvassing, and at that point the ballot envelope will be opened

* We need not resolve the parties’ disagreement about the extent to which subdivision (2) (g) applies to certain other defects—including extrinsic marks on the ballot itself and unsealed or torn ballots—to decide this appeal.

and the ballot processed pursuant to subdivision (2) (d). Once a ballot is processed, subdivision (8) (e) prohibits “a court [from] order[ing] a ballot that has been counted to be uncounted” (Election Law § 9-209 [8] [e]).

We turn now to the dispute before us. Plaintiffs filed this proceeding/action against, among others, defendants the State of New York, the New York Senate and Assembly, the Senate and Assembly Majority Leaders, and the Senate and Assembly Minority Leaders, seeking a declaration that chapter 763 is unconstitutional in its entirety. Plaintiffs argued that Election Law § 9-209 (2) (g) violated the equal representation mandate in article II, § 8 of the New York Constitution and principles of judicial review, and that these defects were not severable from the rest of the law. Most of the defendants filed motions to dismiss, except the Minority Leaders, who filed a memorandum of law in support of plaintiffs’ claims but sought no relief of their own.

Supreme Court concluded that subdivision (2) (g) violated article II, § 8 of the New York Constitution and improperly restricted judicial review in violation of the New York Constitution, but found that provision severable and declared the remainder of the statute constitutional (84 Misc 3d 879 [Sup Ct, Saratoga County 2024]). Only certain defendants/respondents appealed (but not the Minority Leaders), and a divided panel of the Appellate Division reversed (232 AD3d 48 [3d Dept 2024]). The Appellate Division reasoned that the plain language of article II, § 8 required “equal representation” of both parties on the Boards, that Election Law § 9-209 (1) satisfied this mandate, and that subdivision (2) (g) did not unconstitutionally constrain the judiciary (232 AD3d at 53-58). Two Justices dissented. Plaintiffs, and separately, the Minority Leaders, appeal as of right.

II.

It is well-settled that “[l]egislative enactments are entitled to a strong presumption of constitutionality” (*Stefanik v Hochul*, 43 NY3d 49 [2024], quoting *White v Cuomo*, 38 NY3d 209, 216 [2022]). Thus, plaintiffs must meet a “heavy burden” to prevail on their challenge to subdivision (2) (g) (*People v Foley*, 94 NY2d 668, 677 [2000]). Ultimately, plaintiffs’ reading is inconsistent with the constitutional framework.

Plaintiffs argue that Election Law § 9-209 (2) (g) violates article II, § 8 of the New York Constitution by allowing a ballot

to be processed as valid where the Board evenly splits as to its validity. Section 8 provides that

“[a]ll laws creating, regulating or affecting boards or officers charged with the duty of qualifying voters, . . . or of receiving, recording or counting votes at elections, shall secure equal representation of the two political parties which, at the general election next preceding that for which such boards or officers are to serve, cast the highest and the next highest number of votes” (NY Const, art II, § 8).

According to plaintiffs, Election Law § 9-209 (2) (g) violates this equal representation mandate because equal representation requires bipartisan agreement. We disagree.

Plaintiffs’ argument fails under the plain text of article II, § 8. The provision requires “equal representation” of the two major political parties on various election bodies, and Election Law § 9-209’s requirement that the Board be “divided equally between representatives of the two major political parties” secures that equal representation (Election Law § 9-209 [1]). Critically, the authority that Election Law § 9-209 vests in a two-member Board is equally distributed to each member: during the Board’s initial review for defects, either member can declare a ballot invalid (*see id.* § 9-209 [2] [a]), and during the Board’s subsequent review, either member can declare a ballot valid (*see id.* § 9-209 [2] [g]). Thus, no single Board member has any more authority than any other member over the canvassing process, and neither party carries more sway over the process than the other.

Although we need go no further, the history of article II, § 8 confirms our reading. Adopted at the 1894 Constitutional Convention, the provision was originally introduced to constitutionalize a statutory equal representation mandate that had been enacted several years earlier (*see* Peter J. Galie & Christopher Bopst, *The New York State Constitution* 109 [2d ed 2012]; 3 Charles Z. Lincoln, *The Constitutional History of New York* 127-129 [1906] [noting that the sponsor of the original draft claimed that “bi-partisan boards of election should be provided for,” and the bipartisanship should be secured “in perpetuity to the people of the state”]; *see also id.* at 114-127 [providing an extended discussion of the historical precedents]).

Discussion of this provision at the convention, though not extensive, reflects an understanding that bipartisan unanimity

was not required for election boards to take action. Its sponsor stated that the amendment was intended to “secure purity” and “absolute impartiality in the conduct of elections” (Galie & Bopst at 109 [quoting statement of Edward Lauterbach]), and that it did so by “engraft[ing] into the Constitution of the State the policy that the casting of the votes and the counting of the ballots shall be under the supervision of the representatives of both parties” (3 Rev Rec, 1894 Constitutional Convention at 251 [comment of Lauterbach]). Subdivision (2) (g) permits the review of absentee ballots to occur under exactly that arrangement.

As the Appellate Division dissent notes, one delegate complained that the equal representation mandate would be “fatal to our system of government, because it leaves no place where the matter can be decided in the event of a discussion, [and] a difference of opinion, as between parties” and would appoint no one to break a tie (3 Rev Rec, 1894 Constitutional Convention at 248 [comment of Dean], 254 [comment from another delegate asking how a validity determination would be made in the event of a tie and proposing that the majority party have power to decide]; *see also* 3 Lincoln at 129; 3 Rev Rec, 1894 Constitutional Convention at 243-271 [general discussion]). In our view, the dissent misreads this isolated comment by a dissenting voice as assuming that bipartisan agreement was required to take action, rather than as expressing concern about the lack of a unanimity requirement. Indeed, in response to questions about what would happen in the event of a tie vote (3 Rev Rec, 1894 Constitutional Convention at 254 [comments of Woodward, Johnson]), another delegate explained that, under the existing legal framework, when an in-person vote was contested by an evenly divided vote of the relevant inspectors, the contested voter “may swear in his vote, and *there is no necessity of an agreement*” (*id.* at 255 [comment of Moore] [emphasis added]). Subdivision (2) (g), we note, requires the same result. Article II, § 8 was again amended in 1938, but the revisions did not concern canvassing boards such as the one discussed here (*see* Galie & Bopst at 109 [“The 1938 additions involved changing ‘distributing ballots at the polls’ to ‘distributing ballots to voters’ ”]; Journal of 1938 NY Constitutional Convention, Appendix 3, Doc No. 16 at 9-10 [Constitution of the State of New York as revised, with amendments passed by the Constitutional Convention and marginal notes indicating the source and changes]).

None of the cases plaintiffs rely on contradict our reading of section 8. In *People ex rel. Chadbourne v Voorhis*, we explained that the provision “is well understood. It is to guarantee equality of representation to the two majority political parties on all such boards *and nothing more*” (236 NY 437, 446 [1923] [emphasis added]). We emphasized that the Legislature has authority to “adopt a reasonable method of ascertaining a qualifying fact” concerning voting (*id.*), and that is what subdivision (2) (g) does here with respect to a signature match. In *People ex rel. Stapleton v Bell*, we held that a statutory equal representation mandate similar to the constitutional provision at issue here did not allow one party’s members of a local board of elections to decline to certify an election based on speculation that certain voters were ineligible (119 NY 175, 179 [1889]). And in *Matter of Graziano v County of Albany*, we considered only whether a single commissioner had standing to challenge county actions that allegedly impaired the equal representation mandate, without addressing the scope of the provision (3 NY3d 475, 480-481 [2004]).

The dissenting Appellate Division Justices pointed to another line of cases as indicating that, under common law and parliamentary law, there can be no authority to act on a divided vote (see 232 AD3d at 61 [Egan Jr., J., dissenting], quoting *Matter of Felice v Swezey*, 278 App Div 958, 959 [2d Dept 1951], and citing *People ex rel. Argus Co. v Bresler*, 171 NY 302, 309 [1902]). That may be true. However, in enacting Election Law § 9-209 (2) (g), the Legislature expressly declared what happens in the case of a deadlocked board: the ballot is “prepare[d] . . . to be cast and canvassed” pursuant to subdivision (2) (Election Law § 9-209 [2] [g]). Neither of the cases cited by the dissent presented a similar directive. Just the opposite; there was no underlying legislation in either case prescribing a rule of decision in the event of a tie vote (see *Argus*, 171 NY at 308-309; *Felice*, 278 App Div at 958-959).

Plaintiffs also assert that the interplay between subdivision (2) (g)’s presumption of validity and subdivision (8) (e)’s limitation on a court’s power to declare a ballot uncounted once counted violates constitutional principles of separation of powers and judicial review. The Constitution vests Supreme Court with “general original jurisdiction in law and equity” (NY Const, art VI, § 7 [a]). It simultaneously vests the Legislature with the power “to adopt concerning [the right to vote] any reasonable, uniform and just regulations which are in harmony

with constitutional provisions” (*Matter of Burr v Voorhis*, 229 NY 382, 388 [1920]). Here, the statute comports with the Constitution and contains multiple pathways for judicial review. Election Law § 16-106 (5) allows any candidate to seek a temporary or preliminary injunction to halt a canvass, provided that the candidate prove by clear and convincing evidence that “procedural irregularities or other facts arising during the election” warrant such remedy. Executive Law § 63-b (1) empowers the Attorney General to initiate a quo warranto action to contest a candidate’s title to office. And a wide variety of criminal prohibitions in the Election Law punish malfeasance and fraud (*see e.g.* Election Law §§ 17-102, 17-104, 17-108, 17-130, 17-132). In the face of these many levers of judicial supervision, among others, it is inaccurate—and misleading—to say that Election Law § 9-209 dispenses with the role of the judiciary in ensuring that the people enjoy free and fair elections.

Finally, plaintiffs suggest that subdivision (2) (g) might enable electoral fraud by preventing a sole member of the Board from setting aside a ballot so that its validity may be contested in court. As the Appellate Division recognized, the statutory scheme includes numerous safeguards through which the courts can address and prevent electoral fraud as necessary (*see* 232 AD3d at 51-52, 56-57). In addition to the various avenues for judicial review we have noted, Election Law § 9-209 (5) allows observers to be present for the entirety of the review process, whereby candidates and parties may gather evidence of fraud, in the rare instance that it may occur. To the extent plaintiffs raise concerns about fraudulent voter registrations or ballot applications, the challenged law is largely inapposite: lists of registered voters are regularly made available for public review (*see* Election Law §§ 5-602, 5-604), and Election Law §§ 5-218 and 5-220 allow claims to contest pending registrations or cancel completed registrations.

Because plaintiffs failed to meet their “heavy burden” of proving Election Law § 9-209 (2) (g)’s unconstitutionality (*Foley*, 94 NY2d at 677), we hold that the statute does not violate the constitutional principles of separation of powers or of judicial review.

III.

We dismiss the appeal as to the Minority Leaders of the Senate and Assembly as they are not aggrieved by the Appellate Division’s order. The Minority Leaders filed submissions at

Supreme Court and the Appellate Division setting forth legal arguments consistent with certain of plaintiffs' claims for relief, but neither sought affirmative relief in a pleading nor moved for relief at Supreme Court. In these circumstances, the Appellate Division order did not deny them any relief, nor did it grant any relief adverse to them. They therefore are not aggrieved under CPLR 5511 (*see Byrnes v Senate of the State of N.Y.*, 41 NY3d 1022 [2024]).

Accordingly, on the appeal by plaintiffs Rich Amedure et al., the order of the Appellate Division should be affirmed, without costs. The appeal, insofar as taken by defendants Minority Leader of the Senate et al., should be dismissed, without costs, upon the ground that they are not parties aggrieved (CPLR 5511).

Chief Judge WILSON and Judges RIVERA, GARCIA, SINGAS, CANNATARO, TROUTMAN and HALLIGAN concur.

On appeal by plaintiffs Rich Amedure et al., order affirmed, without costs. Appeal, insofar as taken by defendants Minority Leader of the Senate of the State of New York et al., dismissed, without costs, upon the ground that they are not parties aggrieved (CPLR 5511).

[256 NE3d 17, 230 NYS3d 562]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TIMOTHY SHADER, Appellant.

Argued October 17, 2024; decided November 26, 2024

PROCEDURAL SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered June 1, 2023. The Appellate Division affirmed an amended order of the Albany County Court (Andra Ackerman, J.), which had reclassified defendant pursuant to Correction Law § 168-o (2) as a risk level two sex offender pursuant to the Sex Offender Registration Act.

People v Shader, 217 AD3d 1040, affirmed.

HEADNOTE

Crimes — Sex Offenders — Sex Offender Registration Act — Reclassification of Risk Level

In defendant's proceeding pursuant to Correction Law § 168-o (2) seeking an order modifying his risk level classification under the Sex Offender Registration Act, County Court did not abuse its discretion in modifying defendant's level three classification to level two but denying further modification to level one. The court properly considered the Board of Examiners of Sex Offenders' and defendant's submissions, including the undisputed evidence of rehabilitation, in concluding that defendant proved by clear and convincing evidence that he was less likely to reoffend than he was at the time of his release. The court also properly considered the countervailing evidence in concluding that defendant failed to prove by clear and convincing evidence that a level one classification was appropriate. That evidence included the nature of the underlying offense, which defendant committed while on parole for a prior sex crime, defendant's prior offenses, and defendant's misdemeanor conviction of crimes committed while on parole for the underlying offense, for which he received a parole violation. Although the misdemeanors appeared to have involved no violence or sexual component, the court's consideration of that factor, along with all the other factors, did not constitute an abuse of discretion as a matter of law.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Mentally Impaired Persons §§ 131, 133–135.

CARMODY-WAIT 2d Appeals in Criminal Cases §§ 207:5, 207:156.

McKINNEY'S, Correction Law § 168-o (2).

NY JUR 2d Penal and Correctional Institutions §§ 382, 386, 391, 393–397, 400, 406, 408.

ANNOTATION REFERENCES

Validity, Construction & Application of State Sex Offender Registration Statutes Concerning Level of Classification—General Principles, Evidentiary Matters, & Assistance of Counsel. 64 ALR6th 1.

Validity, Construction, & Application of State Sex Offender Registration Statutes Concerning Level of Classification—Claims for Downward Departure. 66 ALR6th 1.

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Query: “sex offender registration act” & (modif! /5 clas-sif!) & “level three” & “level two” & “level one”

POINTS OF COUNSEL

Pappalardo & Pappalardo, LLP, White Plains (*Jill K. Sanders* of counsel), for appellant. It was an abuse of discretion to deny Timothy Shader’s petition for modification where he set forth overwhelming evidence of his low risk of sexual re-offense, as this ignored the legislative intent of Correction Law § 168-o (2) and effectively denied Timothy Shader any meaningful path to Sex Offender Registration Act level one. (*People v West*, 201 AD3d 1242; *People v Austin*, 182 AD3d 937; *People v Mingo*, 12 NY3d 563; *People v Bullock*, 125 AD3d 1; *People v Macchia*, 126 AD3d 458.)

P. David Soares, District Attorney, Albany (*Erin N. LaValley* of counsel), for respondent. County Court did not abuse its discretion in modifying the defendant’s Sex Offender Registration Act risk level from level three to level two. (*People v Stevens*, 91 NY2d 270; *Doe v Pataki*, 120 F3d 1263; *People v Perez*, 35 NY3d 85; *People v Stewart*, 61 AD3d 1059; *People v Johnson*, 11 NY3d 416.)

Patricia Pazner, Appellate Advocates, New York City (*Ava C. Page* of counsel), *Twyla Carter*, *The Legal Aid Society*, New York City (*Lily Goetz* of counsel), *Jenay Nurse Guilford*, *Center for Appellate Litigation*, New York City (*Nicole Geoglis* of counsel), and *Caprice Jenerson*, *Office of the Appellate Defender*, New York City (*Will A. Page* of counsel), for Appellate Advocates and others, amici curiae. I. Denying a modification to level one based on the nature of the underlying offense renders the legislature’s clear mandate under Correction Law § 168-o “without meaning and illusory.” (*People v Davis*, 179 AD3d 183;

People v Mingo, 12 NY3d 563; *People v Britton*, 31 NY3d 1019; *People v Windham*, 10 NY3d 801.) II. A subsequent nonsexual conviction should not result in denial of a level one modification if there is no nexus between the conduct and a heightened risk of sexual offense. (*People v Brown*, 41 NY3d 279; *People v Diaz*, 150 AD3d 60, 32 NY3d 538.) III. When the Board of Examiners of Sex Offenders supports level one, this Court should require an aggravating factor demonstrating a higher likelihood of sexual re-offense to deviate upward from the recommendation. (*People v Gillotti*, 23 NY3d 841; *People v Francis*, 30 NY3d 737.) IV. Many people convicted of registerable offenses subsequently lead productive lives devoid of any sexual misconduct, thus making level one the only appropriate adjudication. (*Graham v Florida*, 560 US 48; *Roper v Simmons*, 543 US 551; *People v Rudolph*, 21 NY3d 497; *People v Brown*, 41 NY3d 279; *People v Knox*, 12 NY3d 60.)

OPINION OF THE COURT

TROUTMAN, J.

Defendant, previously determined to be a level three risk under the Sex Offender Registration Act (SORA) (Correction Law § 168 *et seq.*), commenced this proceeding pursuant to Correction Law § 168-o (2) seeking an order modifying his risk level classification. We hold that County Court did not abuse its discretion in modifying defendant's level three classification to level two but denying further modification to level one.

In 1977, defendant, age 19, entered the home of a woman to whom he was a complete stranger at approximately 3:00 a.m. After the woman attempted to defend herself by striking him in the head with a heavy object, defendant overpowered her, rendered her unconscious using an ether- or chloroform-soaked rag, and tied her up. He then raped and sodomized her. At the time of those crimes, defendant already had an escalating history of sex offenses. His first instance of sexual misbehavior occurred in 1968 when he reportedly exposed himself in school, although that incident does not appear to have led to legal proceedings. Sometime thereafter, he was adjudicated a juvenile delinquent and placed on one year of probation for conduct that, if committed by an adult, would constitute the crime of sexual abuse in the first degree (Penal Law § 130.65). Still later, in 1973, defendant forced a girl he was dating into sex, and he was charged with rape in the first degree (*id.* § 130.35), convicted on a reduced charge of sexual misconduct (*id.*

§ 130.20), and again placed on probation. In 1974, at around midnight, he followed two women who were leaving a bar and attempted to grab them. After one escaped, he took the other to a barn where he forced her to disrobe, took off his own clothes, lay atop her, fondled her, and stated his intent to rape her, before he was interrupted by an approaching vehicle. Defendant was adjudicated a youthful offender following a conviction of attempted rape in the first degree (*id.* §§ 110.00, 130.35) and sentenced to prison. He then committed his 1977 crimes one month after his release, while he was still on parole for the attempted rape. Defendant was convicted upon a jury verdict of, inter alia, rape in the first degree, sodomy in the first degree (*id.* former § 130.50), and burglary in the second degree (*id.* § 140.25), and the court sentenced him to a prison term of $8\frac{1}{3}$ to 30 years.

Defendant served 21 years in prison. At first, he denied responsibility for his criminal conduct and refused to participate in sex offender treatment, but he eventually took responsibility and enrolled in treatment, which he completed. Defendant was released to parole in 1998, and the sentencing court determined him to be a level three risk pursuant to SORA. The risk assessment of the Board of Examiners of Sex Offenders (Board) assessed him a total of 125 points based on the nature of his offense and his criminal history, which alone put defendant above the 110-point threshold required to classify him as a presumptive level three risk. In 2003, while still on parole, defendant was convicted of two misdemeanors: attempted auto stripping and attempted possession of burglary tools. He has no other convictions since his 1998 release.

In 2021, defendant petitioned under Correction Law § 168-o (2) to modify his risk level classification to level one. Defendant argued that he posed a low risk of reoffense based on his engagement in one-on-one outpatient sex offender treatment from 1998 to 2008; his steady full-time employment, including his current job, which he had held for 17 years; his stable and loving relationship with his wife, whom he met in 2008; his role as stepfather to his wife's daughter; and his age of 66 years. Defendant also noted that he had fully complied with his SORA obligations since his release 23 years earlier and, aside from his 2003 misdemeanor conviction, had not reoffended. He submitted letters of support from his wife and stepdaughter. In addition, he submitted the report of an expert psychologist who examined him and concluded that his risk of

reoffense was low, and that requiring him to register at risk level three was no longer necessary for purposes of public safety. At the court's request (*see* Correction Law § 168-o [4]), the Board submitted an "updated recommendation" stating that it "would not oppose" defendant's request for a modification to level one.

The People opposed any modification of defendant's risk level. Although the People did not challenge defendant's extensive evidence of rehabilitation, they argued that modification was inappropriate based on, *inter alia*, the seriousness of his crimes and his criminal record.

County Court granted the petition in part and modified defendant's risk level to level two. The court noted that the Board "did not recommend" modification to risk level one; the Board "just" "didn't oppose it." Nevertheless, considering the submissions by the Board, defendant, and the People, the court concluded that defendant proved by "clear and convincing evidence that he [wa]s less likely to reoffend than he was when he was released from prison in 1998" and classified as a level three risk. At the same time, however, the court found that defendant failed to prove by clear and convincing evidence that he was "so less likely to offend" as to warrant a modification to risk level one. Specifically, the court found that the seriousness of his 1977 crimes, wherein defendant committed a burglary of the victim's home and assaulted and raped her, outweighed the fact that defendant had not committed any sex offenses since his 1998 release. The court also considered defendant's significant history of sex offenses preceding his 1977 crimes, the commission of the 1977 crime only one month after his release to parole, and his 2003 postrelease misdemeanor conviction, also while on parole, of attempted auto stripping and attempted possession of burglary tools. Based on "all of the facts and circumstances," the court concluded that a risk level two classification was appropriate.

The Appellate Division held that there was no abuse of discretion and affirmed (217 AD3d 1040, 1041-1042 [3d Dept 2023]), and we granted defendant leave to appeal (40 NY3d 909 [2024]).

In making the initial risk level determination pursuant to SORA, the court must assess the offender's risk to the public safety in accordance with guidelines adopted by the Board that are based upon statutory factors, including the nature of the

offense and any prior offenses (*see* Correction Law §§ 168-l [5]; 168-n [2]). Following the initial risk level determination, registered sex offenders may petition annually to modify their risk level classifications (*see id.* § 168-o [2]). The offender's petition must "set forth the level of notification sought, together with the reasons for seeking such determination" (*id.*). The legislature has assigned to the offender the burden of proving "by clear and convincing evidence" the "facts supporting the [offender's] requested modification" (*id.*).

On a petition for modification, as with the initial risk level determination, "the nature of a defendant's crime is a relevant, important factor to be considered by the hearing court" (*People v Davis*, 179 AD3d 183, 191 [2d Dept 2019]; *see People v Charles*, 213 AD3d 417, 417 [1st Dept 2023], *lv denied* 39 NY3d 915 [2023]), as is the defendant's criminal history (*see People v Lewis*, 211 AD3d 647, 647 [1st Dept 2022], *lv denied* 39 NY3d 912 [2023]). The analysis must not end there, however, because the court must "request an updated recommendation" from the Board and consider that recommendation and any other "relevant materials and evidence" submitted by the parties (Correction Law § 168-o [4]), including any evidence of rehabilitation or other changed circumstances. The court must undertake "a thorough analysis of a defendant's likelihood of reoffending and the danger the defendant poses to the community in which he or she resides" in the event of a reduced risk level classification (*Davis*, 179 AD3d at 191). The relevant inquiry is whether the petitioner has proved by clear and convincing evidence that "conditions have changed, subsequent to the initial risk level classification, so as to warrant a modification thereof" (*People v Lashway*, 226 AD3d 1270, 1271 [3d Dept 2024]; *see People v Clark*, 207 AD3d 758, 759 [2d Dept 2022], *lv denied* 39 NY3d 903 [2022]; *People v Bentley*, 186 AD3d 1135, 1136 [4th Dept 2020], *lv denied* 36 NY3d 903 [2020]). "Where the hearing court's findings, expressly made under the proper evidentiary standard, are affirmed by the Appellate Division, this Court's review is limited to whether the decisions below are affected by an error of law or are otherwise not supported by the record" (*People v Lashway*, 25 NY3d 478, 483 [2015]).

Here, we conclude that the court did not abuse its discretion in granting defendant's petition in part and modifying his risk level classification from level three to level two but denying further modification to level one (*see Charles*, 213 AD3d at 417; *Lewis*, 211 AD3d at 647). The court properly considered the

Board's and defendant's submissions, including the undisputed evidence of rehabilitation, in concluding that defendant proved by clear and convincing evidence that he was less likely to re-offend than he was at the time of his 1998 release. The court also properly considered the countervailing evidence in concluding that defendant failed to prove by clear and convincing evidence that a level one classification was appropriate. That evidence included the nature of the underlying offense, which defendant committed while on parole for a prior sex crime, defendant's prior offenses, and defendant's 2003 misdemeanor conviction of crimes committed while on parole for the underlying offense, for which he received a parole violation. Although the misdemeanors appear to have involved no violence or sexual component, we cannot conclude that the court's consideration of that factor, along with all the other factors, constitutes an abuse of discretion as a matter of law.¹

Our dissenting colleagues' approach to modification proceedings would insulate that process from the primary goal of SORA, namely "to protect the public from the danger of recidivism posed by sex offenders, to assist the criminal justice system to identify, investigate, apprehend and prosecute sex offenders, and to comply with the Federal Crime Control Act" (*People v Boone*, 41 NY3d 573, 584 [2024], quoting *People v Stevens*, 91 NY2d 270, 275 [1998]). Put another way, the statute aims to "protect[] members of the community, particularly their children, by notifying them of the presence of individuals in their midst who may present a danger" and to "enhance[] law enforcement authorities' ability to investigate and prosecute future sex crimes" (*id.*, quoting *Doe v Pataki*, 120 F3d 1263, 1266 [2d Cir 1997]). These overarching goals are as relevant to a modification proceeding as they are to an initial risk level classification.

Our dissenting colleagues' interpretation of the statute would, if adopted by this Court, "expose[] the public to the risk the statute was enacted to protect against" (*id.* at 585) by limiting, as a matter of law, the types of convictions the SORA court

1. Defendant acknowledged his crimes committed while on parole for the instant offense and never argued that the court could not consider those crimes as a matter of law, as the dissent now suggests. Rather, as the dissent demonstrates (*see* dissenting op at 140-141 n 2), defendant argued that he would most appropriately be classified at level one because his most recent evidence of rehabilitation outweighed the severity of his history of sex offenses and postrelease criminal conduct.

could consider in determining whether to lower a defendant's risk level (*see* dissenting op at 140-145). The dissent's analogy to *People v Brown* (41 NY3d 279 [2023]) is inapt because the defendant in that case never committed an offense that was sexual in nature (*see id.* at 281). Here, in stark contrast, defendant committed a serious sexual assault and was responsible for a string of sex offenses, and the question is whether his more recent criminal conduct bears on the risk of his committing future sex offenses. Under the dissent's proposed rule, the SORA court would be prohibited from considering that defendant violated the law and his parole when he was caught with burglary tools after being convicted of raping a young woman during the course of a burglary also committed while defendant was on parole (*see* dissenting op at 140-145).² We decline to endorse that untenable result.

The dissent altogether ignores the burden of proof by speculating about the specific kinds of burglary tools that may have been in defendant's possession and the manner in which he used those tools (*see* dissenting op at 143-144). The dissent's approach is tantamount to requiring the lower courts, contrary to the clear directive of the Correction Law, to construe the record in the light most favorable to the defendant. The error is most clearly demonstrated by the dissent's own citation to Correction Law § 168-o (3), which governs petitions filed by the People for an upward modification of an offender's risk level. In those circumstances, the People must show that the defendant's risk of reoffense has increased since the initial risk-level adjudication, and the proof must establish a heightened threat to the community that the defendant will commit another sex offense. Thus, unlike the provision that governs here, section 168-o (3) assigns to the People the burden of demonstrating entitlement to such a modification by clear and convincing evidence. In short, it was not the People's burden on this defendant's petition to show that his postrelease crimes were sexually motivated.

Next, according to the dissent, the SORA court erred by relying on the prior sex offenses committed by the defendant without "engag[ing] with what has changed since" (dissenting op at 145). As detailed above, this is simply a misreading of the

2. Our decision does not turn on the facts underlying the postrelease conviction and parole violation. We highlight these details only to illustrate the folly of the dissent's approach by reference to the facts of this case.

record. As a general matter, the dissent's approach again misapprehends the nature of the modification proceeding. The original risk level designation is presumed to apply, and the defendant has the burden of demonstrating by clear and convincing evidence that a modification of that risk level is warranted (*see* Correction Law § 168-o [2]). The SORA court would be remiss if it did not give weight to the serious, indeed heinous, nature of defendant's crimes. The dissent's flawed premise—that the statute guarantees to every level two and level three sex offender the ability to obtain a modification to level one—is unsupported by the statute's text and misapprehends SORA's "legislative purpose" (*Brown*, 41 NY3d at 281), which is to "further 'the protection of the community against people who have shown themselves capable of committing sex crimes'" (*id.* at 290-291). The legislature has rejected that premise by providing that certain sex offenders, like level three sex offenders, must register "for life" (Correction Law § 168-h [2]). Modification proceedings offer those defendants an opportunity to prove to a magistrate that the original assessment should no longer apply; they do not guarantee relief from this obligation.

Rather than committing the parade of errors listed by the dissent, the SORA court, under the proper framework, considered all the "relevant materials and evidence" and made an informed judgment about which risk level designation was appropriate (*id.* § 168-o [4]). The court's conclusion that defendant demonstrated entitlement to some relief from the more stringent requirements of a risk level three designation was an appropriate exercise of the SORA court's discretion in keeping with its statutory responsibility to protect the public.

Finally, contrary to the dissent's suggestion, appellate review of modification proceedings is robust. While the statute broadly confers upon the SORA court the discretion to grant or deny a modification petition without deference to the decision of the Board (*see id.*; *Lashway*, 25 NY3d at 483), the Appellate Division has the power to exercise its own discretion in an appropriate case and grant a defendant's petition even absent an abuse of discretion by the SORA court (*see Davis*, 179 AD3d at 192 [modifying risk level classification to level one on the facts and in the interest of justice]; *see generally People v Z.H.*, 192 AD3d 55, 58 [4th Dept 2020, Troutman, J.] ["Although we do not conclude that the court abused its discretion in denying defendant youthful offender status, we choose to exercise our

discretion in the interest of justice to determine that defendant is a youthful offender”)], and we review for legal error or lack of record support (*see Lashway*, 25 NY3d at 483). We do not blame our colleagues or the lower courts for failing to do what we might have done in the first instance (*cf.* dissenting op at 151 [“Mr. Shader cannot do better; we can”]).

Our decision does not preclude defendant from petitioning for a modification to risk level one based upon updated facts (*see* Correction Law § 168-o [2]) or for relief from his duty to register after 30 years of SORA registration (*see id.* § 168-o [1]).

Accordingly, the order of the Appellate Division should be affirmed, without costs.

Chief Judge WILSON (dissenting). In 1968, Timothy Shader, then 12 years old, exposed himself while at school. As the majority chronicles in lurid detail, between ages 12 and 21, Mr. Shader committed several sex offenses, culminating in an event 47 years ago, in March of 1977, when he broke into a home, raped an occupant, and was convicted of rape, burglary and other related offenses and was sentenced to 8 $\frac{1}{3}$ to 30 years in prison. He committed no sexual misconduct while incarcerated. He did not serve the maximum 30 years because the Parole Board deemed him worthy of release nine years early.

Upon his release in 1998, the Board of Examiners of Sex Offenders (the Board) recommended a level three determination pursuant to the Sex Offender Registration Act (SORA), based on 125 points assessed under the risk assessment instrument (RAI), and the SORA court imposed that risk level. Since then, Mr. Shader has fully complied with the restrictions pertaining to level three; in this proceeding, he requested that his risk level be reduced to level one.

Level three “high risk” offenders are subject to SORA’s most stringent mandates. They must report in person to a local police precinct to verify their addresses every 90 days (*see* Correction Law § 168-h). They must report any residence changes within 10 days, report their attendance at any higher education institution, provide the address of every employer they work for, and provide in writing the details of all Internet service providers, Internet screen names and email accounts (*see* § 168-f). They must annually report where they live by signing and returning an annual verification form to the Division of Criminal Justice Services (DCJS) within 10 days after receiv-

ing it (*id.*). They are pictured on the public online “sex offender registry” along with their home and work addresses, descriptions of their offense, and other identifying information, and can be validly denied jobs, housing, and education based on their status (*see* § 168-q [1]). Failure to perform any of these registration obligations is a felony.

There is little practical difference in the restrictions placed on level three and level two registrants. Except for the 90-day in-person reporting requirement, level two registrants are subject to the same reporting obligations. Like level three registrants, their information is also publicly available on the online registry.¹ In contrast, the difference between level three and level one is considerable. Perhaps most significantly, unlike levels two and three registrants, level one registrants are not pictured on the online registry, which reduces the stigma and harassment that inevitably comes with registry status and makes it more difficult for potential employers, living situations, and community groups to discriminate on that basis (members of the public may contact a hotline maintained by DCJS to obtain information about level one offenders). In addition, unlike level two and three offenders, who must register for life, level one offenders are relieved from the duty to register after 20 years.

In the 23 years between his release from prison and his application to reduce his risk level from three to one, Mr. Shader did nothing to suggest that he now poses any risk of sexual offense. To the contrary, the record of his life over that time demonstrated to the Board’s satisfaction that he should be assigned a level one designation. Nevertheless, on Mr. Shader’s petition to modify his risk level from three to one, the SORA court designated him a level two offender. The court gave three bases for denying Mr. Shader a level one designation: (1) Mr. Shader’s 2003 misdemeanor conviction for attempted auto stripping and attempted possession of burglar tools; (2) the “seriousness” of his 1977 SORA-qualifying conviction; and (3) sexual offenses committed before the SORA-qualifying conviction, when he was between the ages of 12 and 19. The Appellate Division affirmed on the same grounds.

The essential question at a modification hearing, as at the initial SORA hearing, is whether the classification is “an ac-

1. There are other relatively minor differences: for example, level two offenders must report in person for current photograph every three years, while level three offenders must appear every year (*see* § 168-f [2]).

curate determination of the risk a sex offender poses to the public” (*People v Mingo*, 12 NY3d 563, 574 [2009]). As the majority notes, our review of those decisions is for legal error or abuse of discretion. In my view, both types of error are present here. First, the “auto stripping” misdemeanor on which both the SORA court and Appellate Division relied was legally irrelevant to the determination of Mr. Shader’s present risk of sexual offending, and both courts erred in considering it. Second, in the absence of any other relevant countervailing evidence, the court abused its discretion in denying Mr. Shader’s request based solely on his underlying 1977 offense and his criminal history predating his initial SORA risk level determination. By ignoring those errors, the majority neglects our duty to determine whether the lower courts’ determinations may have been “affected by an error of law” (*People v Lashway*, 25 NY3d 478, 483 [2015]).

I.

The first error, sufficient on its own to require a reversal, is the SORA court’s consideration of Mr. Shader’s 2003 misdemeanor conviction in assessing his risk of sexual recidivism. The purpose of SORA is “to protect the public from the danger of recidivism posed by sex offenders” (*People v Cook*, 29 NY3d 121, 125 [2017], quoting *People v Stevens*, 91 NY2d 270, 275 [1998]). We have emphasized that SORA is designed to prevent sexual reoffending, not crime generally (*People v Diaz*, 32 NY3d 538 [2018]; *People v Brown*, 41 NY3d 279 [2023]). For that reason, SORA’s risk classification scheme measures the risk of sexual reoffending, not reoffending generally, and a judge’s review during modification proceedings is expressly limited to “relevant” evidence (see Correction Law § 168-o [4] [“After reviewing the recommendation received from the board and any relevant materials and evidence submitted by the sex offender and the district attorney, the court may grant or deny the petition”]). It follows that, to be relevant at a modification proceeding, the evidence must relate to the propensity to commit a sexual offense. Mr. Shader’s 2003 misdemeanor conviction for attempted auto stripping has no bearing on his propensity in 2021 to commit a sex offense.²

2. The majority implies that this argument is not preserved because Mr. Shader “never argued that the court could not consider [the 2003 misdemeanor] as a matter of law” but instead “argued that he would most

(n. cont’d)

In 2003, while on parole, Mr. Shader received a parole violation after being convicted of attempted auto stripping in the third degree and attempted possession of burglary tools. At the modification hearing, the People argued this conviction indicated “a lack of refraining from committing offenses.” Neither the SORA court nor the Appellate Division endorsed that argument. Both courts simply stated the presence of the conviction as grounds for denying a level one without explaining the relevance to his current risk of sexual reoffense.

In context, the legislature’s express use of the term “relevant” in Correction Law § 168-o means that evidence forming the basis of a SORA court’s decision must relate to the propensity to commit another sexual offense (*see e.g. Kuzmich v 50 Murray St. Acquisition LLC*, 34 NY3d 84, 91 [2019] [(“T)he clearest indicator of legislative intent is the statutory text, (and) the starting point in any case of interpretation must always be the language itself” (quoting *Majewski v Broadalbin-Perth Cent. School Dist.*, 91 NY2d 577, 583 [1998])]). Section 168-o (3), the parallel provision that allows the People to seek an upward modification of an initial risk level determination based on subsequent events, requires that the district attorney must show “the conduct underlying the new crime or the violation is of a nature that indicates an increased risk of a repeat sex offense” (§ 168-o [3]). Section 168-o (3) thus states the legislature’s clear intent as to modification proceedings that modifications must be based only on evidence relevant to risk of a new sexual offense.³ Other statutory provisions support

appropriately be classified at level one because his most recent evidence of rehabilitation outweighed the severity of his history of sex offenses and post-release criminal conduct” (majority op at 135 n 1). In disputing the People’s contention that the attempted auto stripping conviction was relevant to Mr. Shader’s modification petition, Mr. Shader argued to the SORA court that it was “not an assaultive incident. It’s a minor misdemeanor conviction.” The SORA court relied on that misdemeanor in making its determination. Either of those is sufficient to preserve the issue for our review (*see* CPLR 4017, 5501 [a] [3]). (In contrast to this clearly preserved argument, the majority resorts to an argument that neither a party nor court ever raised [*see infra* at 144 n 12]).

3. The majority misconstrues my reliance on section 168-o (3). The provisions governing upward and downward modifications are parallel provisions: they concern the same legal question of whether a change in risk level is warranted (or, in another framing, what is the registrant’s current risk of sexual reoffense). Section 168-o (4)’s directive applies to both proceedings. The majority’s approach is textually unfounded and would lead to the absurd result that crimes with no relevance to sexual risk—that the legislature

(n. cont’d)

this interpretation. For example, the section of SORA that establishes the Board specifies that the Board should develop guidelines not based on criminal history generally, but rather on “criminal history factors *indicative of high risk of repeat offense*,” such as whether the conduct “was found to be characterized by repetitive and compulsive behavior [or] associated with drugs or alcohol” (*see* § 168-l [5] [a] [ii] [emphasis added]).

That interpretation is also supported by our own precedent. In *People v Brown*, we held that a defendant could not be required to register under SORA where his crime—stealing money at gunpoint in the presence of his 10-year-old cousin—was undisputedly non-sexual in nature and the SORA court found he did not pose a sexual threat (41 NY3d 279, 281 [2023]). We emphasized that “the purpose of SORA is clearly to track those who are actual sex offenders—it is not intended as a registry of anyone who commits a crime” (*id.* at 297). The defendant in *Brown* was convicted of several violent crimes, and we nevertheless held that subjecting him to SORA lacked a rational basis, and therefore required that he not be listed on the registry at all. Mr. Shader’s misdemeanor conviction pales in comparison.⁴ The People’s argument—that Mr. Shader’s offense indicated “a lack of refraining from committing offenses”—would mean that *any* subsequent offense (jaywalking, speeding, shoplifting) may enter in the calculus of future sexual

prohibited the People from using on upward modifications to prove a registrant poses a higher risk—could validly be used by the People on downward modifications to counter a registrant’s evidence that he poses a lower risk (*see e.g. Lubonty v U.S. Bank N.A.*, 34 NY3d 250, 255 [2019] [“We must . . . ‘interpret a statute so as to avoid an unreasonable or absurd application of the law’” (quoting *People v Garson*, 6 NY3d 604, 614 [2006])]).

4. The majority’s contention that *Brown* is irrelevant because the defendant in *Brown* never committed a sexual offense misses the point (*see* majority op at 136). The defendant in *Brown* committed a serious, violent offense, but was nonetheless found to pose no sexual threat, and we held he could not be forced to register under SORA as a result. This holding has two implications. First, it shows that the purpose of SORA is to protect against the risk of sexual reoffending, not reoffending generally. Second, it disproves the SORA court’s (and majority’s) contention that any criminal conduct is relevant to someone’s likelihood to commit a future sexual offense. The underlying offense in *Brown* had no nexus to sexual offending and the defendant was found to pose no sexual threat. This shows that not all criminal conduct is relevant to SORA determinations; rather, the conduct must be of such a nature that it indicates an increased risk of sexual offense (*see* § 168-o [3]). This is no less true here than it was in *Brown*: that someone has previously committed a sexual offense does not suddenly make all their subsequent conduct relevant to their risk of future sexual reoffense.

harm. That interpretation contradicts the legislature's intent.

The remoteness of Mr. Shader's 21-year-old misdemeanor also demonstrates its irrelevance. Beyond simple common sense, our precedent on witness impeachment, for example, makes clear that a defendant's prior convictions, "if remote in time, will seldom have any logical bearing on the defendant's credibility, veracity or honesty at the time of trial" (*People v Sandoval*, 34 NY2d 371, 377 [1974]). Likewise, the legislature's statutory scheme for enhanced punishment for repeat offenders deems prior felony convictions too stale for consideration if the sentence was imposed more than 10 years earlier (*see e.g.* Penal Law §§ 70.04 [1] [b] [iv]; 70.06 [1] [b] [iv]).

The majority concedes the 2003 misdemeanor "involved no violence or sexual component" (majority op at 135). The majority nonetheless states it cannot conclude the court's consideration of this factor "along with all the other factors" constituted an abuse of discretion as a matter of law (*id.*). The majority repeatedly implies, though does not explicitly state, that Mr. Shader's 2003 misdemeanor for attempted possession of burglary tools while attempting to strip something from a car was somehow relevant to his risk of sexual reoffense two decades later because he committed the underlying 1977 offense "during the course of a burglary" (majority op at 136). His convictions for attempted auto stripping and attempted possession of burglar's tools arose from a single incident and were therefore prosecuted jointly.⁵ The misdemeanor was for "attempted possession," not possession; it is unclear whether Mr. Shader actually possessed anything. But even were it fair to assume that Mr. Shader possessed "burglar's tools" when attempting to strip something from an automobile, that term includes, among other things, screwdrivers,⁶ hammers,⁷ pliers,⁸ tweezers,⁹ and even plastic cards.¹⁰ There is nothing in the record to suggest (and the People do not allege) that Mr. Shader was committing or had any intent to commit a burglary, much less a sex offense

5. At the modification hearing, counsel explained that Mr. Shader recalled being caught "attempting to take something off of a[n] . . . abandoned car."

6. *People v Smith*, 23 NY2d 955 (1969).

7. *People v Oddo*, 19 NY2d 979 (1967).

8. *People v Allen*, 278 AD2d 331 (2d Dept 2000).

9. *People v Davis*, 155 AD2d 611 (2d Dept 1989).

10. *People v Luperena*, 159 AD2d 727 (2d Dept 1990).

of any sort.¹¹ Even if we assume that Mr. Shader was apprehended in 2003 with a screwdriver in hand attempting to remove something from a car, that has no probative value as to his propensity to commit a sex offense then, much less today. SORA is about protecting against sexual reoffending; it is not a registry for hubcap theft.¹² Allowing the SORA court to consider a factor with no probative value to Mr. Shader's risk of sexual reoffense undermines the fundamental purpose of SORA and is (to borrow the majority's phrasing) an "untenable result" (majority op at 136).

Notably, in its recommendation to the SORA court, the Board concluded the misdemeanor convictions were "minor and are not assaultive or sexual in nature" and there was "no evidence to indicate [Mr. Shader] has engaged in any sexually inappropriate behavior in the community since his release to parole in 1998." The Board consists of persons with "expertise and experience" in the field of the behavior and treatment of sex offenders (see *People v Francis*, 30 NY3d 737, 747 [2018]), and it is statutorily charged to both issue recommendations and develop guidelines designed to assess "the risk of a repeat offense by . . . sex offender[s] and the threat posed to the public safety" (§ 168-l [5]). Because the Board has expertise in assessing the risk of sexual reoffense, the Board's conclusion that the 2003 misdemeanors were not a factor that indicated an increased risk of sexual reoffense is entitled to deference (see e.g. *Matter of KSLM-Columbus Apts., Inc. v New York State Div. of Hous. & Community Renewal*, 5 NY3d 303, 312 [2005]).

11. The complete lack of record evidence on the factual circumstances of this offense defeats the majority's claim that I am "constru[ing] the record in the light most favorable to the defendant" (majority op at 136). I am merely pointing out that there is nothing in the record to construe, and thus no basis for the majority's claim that the misdemeanor "bears on the risk of his committing future sex offenses" (majority op at 136).

12. The majority's attempt to establish the relevance of the 2003 conviction for attempted possession of burglar's tools to Mr. Shader's 1977 conviction for rape in the course of a burglary by observing that both involved statutes having the word "burglar" in them was not advanced by the People in the SORA court, the Appellate Division or here. The lower courts merely referred to the 2003 misdemeanor convictions as grounds for denying Mr. Shader's request for a level one designation. Likewise, the People have not contended the burglar's tools have any particular relevance, but instead contend that the 2003 misdemeanor convictions are relevant because they show Mr. Shader's broader "willing[ness] . . . to reoffend." Interested lawyers should note the majority's approval of resort to an argument that neither a party nor court ever raised—it might come in handy the next time a preservation question arises.

In sum, the modification provision restricts the court’s review to relevant materials and evidence (*see* § 168-o [4]). A subsequent offense need not be sexual in nature to be relevant; but it must be of a nature that it indicates an increased risk of repeat sexual offense.¹³ Mr. Shader’s 2003 misdemeanor was legally irrelevant to his propensity to commit another sexual offense, and the SORA court erred in considering it. That error falls squarely within the scope of our review.

II.

The second error is that the reliance on Mr. Shader’s criminal conduct of nearly a half century ago, without more, fails to engage with what has changed since. The majority defends its result because it “does not preclude” Mr. Shader from petitioning to a level one “based upon updated facts.” Again, putting aside the irrelevant misdemeanor, the only countervailing evidence to Mr. Shader’s evidence of rehabilitation was the “seriousness” of his 1977 conviction and offenses prior to it. Those facts are unchangeable and will never be any less serious. The only factor that will change is time. The majority is correct that Mr. Shader could reapply and seek a modification to level one today, but it gives no explanation for why the three additional years would suddenly counteract the “seriousness” of his underlying offense or offenses prior to it. Relying on seriousness alone means denying the possibility for change, which effectively eliminates judicial review.

The Board explains in modification cases that its recommendation is based on “what has changed in the offender’s life since the risk level was established.” Areas the Board “weigh[s] the greatest” include successful completion of sex offender treatment; compliance with SORA and parole; time without re-offense; positive social supports; and “the overall existence of a stable, pro-social lifestyle.” As the majority holds, the relevant inquiry at a modification proceeding is whether “conditions have changed, subsequent to the initial risk level classification,

13. When the majority claims that approach might “limit[] . . . the types of convictions” SORA courts may consider (majority op at 135-136), that is exactly the point: convictions that have no bearing on risk of sexual reoffense—like any other fact that has no bearing on risk of sexual reoffense—have no place in a SORA risk level determination, whether when setting the original risk level or setting the level on a motion for modification. That is the very definition of relevant evidence. Some crimes with no sexual component may bear on risk of sexual reoffense, but the facts here, involving attempted auto stripping 20 years earlier, do not.

so as to warrant a modification thereof” (majority op at 134, quoting *People v Lashway*, 226 AD3d 1270, 1271 [3d Dept 2024]). I disagree with the majority’s conclusion that the SORA court and Appellate Division correctly applied that standard here.

Mr. Shader presented extensive, persuasive and unimpeached evidence demonstrating that he presented no appreciable present risk of sexual reoffense. In 2021, when at age 66 Mr. Shader petitioned to modify his risk level from three to one, he had not committed a sex offense in 44 years. Mr. Shader presented evidence that he had, during that time, done everything a person could do to comply with prison and post-release self-betterment programs and supervisory rules. While incarcerated, he engaged in therapeutic programming geared toward sex offenders, undertook vocational training and earned an associate’s degree. For the entire 10 years while on parole, he attended outpatient sex offender treatment, which included one-on-one sessions targeted to address and resolve underlying issues that led to his sex offending. He successfully completed 10 years’ parole supervision and was in full compliance with his SORA registration obligations. He was steadily employed, first by Time Warner Cable as a cable installer, then by DirectTV as a satellite installer and service technician, and, for the 17 years preceding his request for modification, by One Diversified, where he works in audiovisual integration.

His petition contained exceptionally strong letters of support. His wife of 11 years recounted how Mr. Shader cared for her after her multiple open-heart surgeries. The woman with whom he had been in a nine-year relationship prior to meeting his wife described Mr. Shader as “in a stable and loving relationship with his wife and daughter” and as having worked hard to achieve “all that he ever wanted in life, to be in a stable relationship, raise children and be a loving husband and successful provider for his family.” His petition also contained a letter from his stepdaughter, who said that Mr. Shader “provided a paternal wisdom and guidance” and “provided money to cover my tuition, laptop, and travel expenses . . . [and] [a]s I took time to study in Europe, Tim remained with my mother as she again fell ill and underwent a second open heart surgery.” She explained that, after coming across Mr. Shader on the online sex offender registry 12 years ago, she initially reacted with “surprise and horror,” but after discussing his past with him, his openness “was a foundational factor

in building a trustworthy relationship” and he “has presented his loyalty” to their family. She concluded that in the 14 years “I have known, traveled, and lived with Tim that he has consistently provided an accepting home filled with love and the understanding that better days are always ahead.” Those letters are not only valuable for their express statements concerning Mr. Shader’s character and rehabilitation, but also because they evince that he has been able to maintain a strong, robust, and supportive social network since his release from prison. The People did not dispute any of those facts, and the Board credited the letters and the statements in them, concluding they not only showed Mr. Shader’s character and rehabilitation, but also proved he had a “strong support network” and had been “living a prosocial life in the community without any oversight except for his SORA requirements for the past 13 years.”

Nothing in the record suggests that the SORA court applied the legal standard articulated by the majority (and the Board) and properly weighed Mr. Shader’s evidence of rehabilitation.¹⁴ The SORA court acknowledged that Mr. Shader has not been arrested for new sex crimes and that a psychological evaluation showed his risk was low, but did not mention the other factors “weighed the greatest” by the Board, such as compliance with SORA and parole, positive social supports, and the existence of a “pro-social” lifestyle.

The majority appears to base its conclusion that the SORA court “properly considered” Mr. Shader’s submissions, including his “undisputed evidence of rehabilitation,” on the fact that the court did grant Mr. Shader’s petition “in part”: the court downgraded Mr. Shader from a level three to a level two risk (majority op at 134-135). That reasoning confuses outcome with analysis. The fact that the court concluded Mr. Shader was less likely to reoffend than he was at the time of his 1998 release

14. Indeed, the order issued by the SORA court in this case was not an order under section 168-o, which concerns modification requests, but rather a “rating order pursuant to Correction Law § 168-d,” which concerns requests for downward departures in the context of an initial SORA risk level determination. The order is not merely titled erroneously, but three times within the text of the order relies on that section, never once references the proper statutory section, and ultimately recites: “The above Final Risk Level Determination is a [] . . . Downward departure based upon mitigating or aggravating factors shown by clear and convincing evidence allowing for such departure”—all of which pertains not to risk-level modification proceedings, but to the initial SORA hearing (*see* § 168-d).

does nothing to ensure it properly weighed his evidence of rehabilitation, nor can it excuse flaws in the SORA court's analysis, such as the consideration of evidence irrelevant to Mr. Shader's current risk (discussed in section I).

In contrast to the SORA court and Appellate Division, the Board examined the evidence in Mr. Shader's case in detail and concluded that "by all accounts, it appears he has turned his life around and has been living a prosocial life in the community without any oversight except for his SORA requirements for the past 13 years." For that reason, the Board advised that it did not oppose Mr. Shader's request for a level one determination—meaning that the Board determined that designating him as a level one would not pose risk to the community.¹⁵ The People offered no evidence unconsidered by the Board to demonstrate Mr. Shader posed a moderate rather than low risk, and the SORA court expressed no concern with the substance of the Board's recommendation or any of the evidence it examined. The SORA court erred by discounting the Board's recommendation and, instead, relying on evidence irrelevant to determining his current risk of sexual reoffense, and the Appellate Division erred by not correcting that error.

Mr. Shader is now 68 years old; he was 66 when he filed this petition. Between ages 21 and 66 he committed no sex offense. Instead, he married, helped to raise a child, maintained steady employment, and has strong support from not just his family, but from the woman with whom he had a prior nine-year relationship. What material improvement could he show within the past three years, or the next three? According to the People, Mr. Shader might be able to warrant a reduction to level one if he could show he had developed "serious health issues" that prevented him from being able to commit another

15. As a way of discrediting the Board's recommendation, the majority quotes the SORA court's statement that the Board "'did not recommend' modification to risk level one; the Board 'just' 'didn't oppose it'" (majority op at 133). There is no difference between the two. Section 168-o (4) requires the Board to provide an "updated *recommendation*" of the defendant's risk level in every modification proceeding, and the Board's choice not to oppose a given level *is* its risk level recommendation (*see* § 168-o [4] [emphasis added]). The Board's use of the "would not oppose" language is a purely semantic choice that it employs in its recommendations in modification proceedings (*see e.g. People v Smilowitz*, 178 AD3d 1187, 1188-1189 [3d Dept 2019] [Board was "'not opposed to a downward modification' of defendant's risk level classification to a risk level one"]; *People v Davis*, 179 AD3d 183, 185 [2d Dept 2019] [Board "did not oppose" a reduction to level two but opposed a reduction to level one]).

sexual offense, directing us to *People v Davis*, in which the modification petitioner had “renal failure requiring five-hour hemodialysis sessions three times a week, the loss of a toe, and erectile dysfunction [and] . . . limited mobility, requiring the use of a quad cane or walker to ambulate” (179 AD3d 183, 189 [2d Dept 2019]).

Perhaps the legislature’s intention in creating section 168-o was to allow modifications to level one only when a SORA registrant was near death. It appears to me, though, from the legislative scheme and its history, that the purpose was to give registrants an incentive to overcome their past and demonstrate, by clear and convincing evidence, that they posed minimal risk of committing a sexual offense in the future. As we have recognized, SORA is “designed not to punish, but rather to protect the public” (*People v Windham*, 10 NY3d 801, 802 [2008]; see *Matter of North v Board of Examiners of Sex Offenders of State of N.Y.*, 8 NY3d 745, 752 [2007] [SORA is a statute “intended to prevent future crime,” not impose punishment for a past one]; *People v Gravino*, 14 NY3d 546, 556 [2010] [SORA is not a penal statute, but rather, “a remedial statute intended to prevent future crime”]). The structure of SORA, including its provisions establishing the Board as experts in “the behavior *and treatment*” of sex offenders and requiring treatment for offenders, supports this reading (see § 168-l [1] [emphasis added]). It would be a massive waste of resources to pay for individualized treatment if the legislature truly believed sex offenders were beyond redemption. Section 168-o (2) fits into this framework: it affirms that SORA’s risk classification system is about protection, not punishment, and therefore provides a means for any registrant to modify a risk level classification by showing that no high or moderate risk presently exists. To “give meaning” to the words in section 168-o, there must be something Mr. Shader can do, short of deliberately destroying his physical condition, to show that he no longer poses a high or moderate risk of committing a new sex offense and merits a modification from level three to level one.¹⁶

16. The majority disputes my “flawed premise” that SORA “guarantees to every level two and level three sex offender the ability to obtain a modification to level one” (majority op at 137). But it is the majority’s reading that is flawed: It is unclear how else to interpret section 168-o (2)’s plain text that “[a]ny sex offender required to register” under SORA may petition for an

(n. cont’d)

The majority makes the same mistake as the lower courts. Unable to point to any record evidence to counter Mr. Shader's evidence of rehabilitation, the majority resorts to reciting the details of Mr. Shader's 1977 offense (*see* majority op at 131). Those facts are not in dispute. The majority uses these facts to appall and to distract from what really is in dispute: whether someone whose conduct justified a level three designation 47 years ago can demonstrate that he now poses a low risk.

Mr. Shader cannot go back in time to change the facts of his conviction. He cannot undo the harm caused by the crimes he committed as a teenager. But his past should not eternally doom his future. Relying solely on the nature of the underlying offense and prior history—which is all in this record that pertains to sexual offending—violates the legislature's clear intent in enacting section 168-o. Truthfully, when the sole basis for designating Mr. Shader a level two risk is the crimes that happened nearly a half century ago, continued registration is perpetual punishment, casting Mr. Shader as Sisyphus in a modern-day Tartarus.

III.

The implication of the majority's decision is that we effectively have no power to review modification decisions by SORA courts. The SORA court wrongly relied on evidence without "any conceivable sexual component," disregarded the

order modifying the level of notification, other than to guarantee any sex offender required to register under SORA the ability to petition for an order modifying their level of notification (§ 168-o [2] [emphasis added]). The statute does not guarantee that every registrant will succeed in obtaining a level one designation, but it does guarantee every registrant the opportunity. (Perhaps the majority believes certain level two and three offenders, given the "serious, indeed heinous" nature of their crimes [majority op at 137], should not be entitled to the ability to obtain a level one, but that is a matter to be brought up with the legislature.) As support for its contention, the majority observes that the legislature has provided "certain sex offenders, like level three sex offenders, must register 'for life'" (majority op at 137, quoting § 168-h [2]). That observation is neither here nor there. Level three registrants can petition to level one, and, if successful, are no longer required to register for life. Perhaps the majority means to refer to the statute's provisions on designations. It is true that a registrant with a designation is statutorily required to register for life, even as a level one (*see* § 168-h [2]). However, even a registrant with a designation can petition to modify to level one and obtain other benefits of level one status, such as removal from the public online registry. There is no indication in section 168-o (2) that the legislature meant to exclude these registrants (or indeed, any registrants) from the ability to obtain a risk level modification.

Board's expertise, and discounted Mr. Shader's "undisputed evidence of rehabilitation." The only relevant countervailing evidence had no bearing on the changes Mr. Shader worked hard to show over the 45 years before he sought a modification and was already considered in determining his initial risk level. The majority nonetheless holds we cannot conclude the SORA court abused its discretion. There is nothing "robust" about that kind of review. If these errors are not sufficient, it is unclear what errors might be. Mr. Shader cannot do better; we can.

Judges GARCIA, SINGAS and CANNATARO concur. Chief Judge WILSON dissents in an opinion, in which Judges RIVERA and HALLIGAN concur.

Order affirmed, without costs.

[256 NE3d 644, 231 NYS3d 74]

REGINA FARAGE, Appellant, v ASSOCIATED INSURANCE MANAGEMENT CORP. et al., Defendants, and TOWER INSURANCE COMPANY OF NEW YORK et al., Respondents.

Argued October 16, 2024; decided November 26, 2024

PROCEDURAL SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered November 10, 2022. The Appellate Division order, insofar as appealed from, affirmed so much of an order of the Supreme Court, New York County (Arthur F. Engoron, J.; op 72 Misc 3d 1206[A], 2021 NY Slip Op 50653[U] [2021]), as had (1) granted the motion of defendants Tower Insurance Company of New York, AmTrust Financial Services, Inc., AmTrust North America, Castlepoint Insurance Company, Tower Risk Management Corp., Tower Group, Inc., and Tower Group Companies' motion to dismiss the complaint; (2) denied as moot defendant E.G. Bowman Co.'s (Bowman's) motion to (a) dismiss the action as against it and (b) dismiss the causes of action against codefendants AXA Global Facilities, Inc. (Global) and Mark Lauria Associates, Inc. (Lauria); (3) denied as moot defendant Lauria's motion to (a) dismiss the action as against it and (b) dismiss the causes of action against codefendants Bowman and Global; and (4) denied as moot plaintiff's cross-motion to amend the complaint to add causes of action for negligence against defendants Bowman and Lauria.

Farage v Associated Ins. Mgt. Corp., 210 AD3d 470, affirmed.

HEADNOTE

Limitation of Actions — Contractual Limitations Period — Failure to Sue within Insurance Policy Limitations Period

In plaintiff's action seeking insurance coverage for lost business income and the full replacement value of property damaged in a fire six years earlier, defendant insurers met their burden of establishing, by reference to the insurance contract's two-year suit limitation, that the action was time-barred because it was not commenced within two years of the fire, and plaintiff failed to raise a question of fact as to the enforceability of the limitation provision. A suit limitation provision in an insurance policy is unreasonable where the policy requires total replacement before an action may be commenced but the damaged property cannot reasonably be replaced within the limitation period. Accordingly, a plaintiff seeking to nullify a suit limitation provision must demonstrate that the damaged property could not reasonably be replaced within the limitation period. Plaintiff failed to allege actions that she took to complete the repairs within two years; she did not provide any

details regarding the extent of the damage, or why complete restoration within two years was an impossibility. In asserting that defendants' conduct allegedly delayed the restoration, plaintiff's submissions offered no factual specificity as to the length of the resultant delay. As such, plaintiff failed to sufficiently allege that defendants' conduct made it impossible for her to reasonably complete restoration within two years of the fire. Moreover, plaintiff did not assert that she informed defendants at the expiration of the limitation period that the repairs could not be completed within the term specified in the contract.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Insurance §§ 1867, 1870–1871, 1873–1874, 1876; AM JUR 2d Limitation of Actions §§ 79–81.
CARMODY-WAIT 2d Limitation of Actions §§ 13:16–13:20, 13:146.
COUCH ON INSURANCE (3d ed) §§ 235:1, 235:4, 235:7, 235:53–235:54, 235:59.
NEW YORK CONTRACT LAW (2d ed) § 19:11.
NY JUR 2d Insurance §§ 2555, 2557–2558, 2560; NY JUR 2d Limitations and Laches §§ 43, 45, 326, 328–329.
SIEGEL, NY PRAC (6th ed) § 39.
WILLISTON ON CONTRACTS (4th ed) § 79:10.

ANNOTATION REFERENCES

Constitutionality, construction, and application of statutes relating to contractual time limitation provisions of insurance policies. 112 ALR3d 1288.

Validity of contractual limitation of time for bringing action. 121 ALR 758.

Validity of contractual time period, shorter than statute of limitations, for bringing action. 6 ALR3d 1197.

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POINTS OF COUNSEL

Hug Law, PLLC, Albany (*Matthew C. Hug* of counsel), for appellant. I. The lower court erred by dismissing appellant's complaint as against the Tower respondents based upon CPLR 3211 (a) (1) and (7). (*Mazur Bros. Realty, LLC v State of New York*, 59 AD3d 401; *Sullivan v State of New York*, 34 AD3d 443;

Leon v Martinez, 84 NY2d 83; *Goshen v Mutual Life Ins. Co. of N.Y.*, 98 NY2d 314.) II. The Appellate Division's decision dismissing all claims as against the Lauria/Bowman respondents must be reversed and the matter remanded to Supreme Court for further proceedings.

Mound Cotton Wollan & Greengrass LLP, New York City (Kevin F. Buckley, Jodi S. Tesser and Rachel Horzempa Winship of counsel), for Tower Insurance Company of New York and others, respondents. I. Plaintiff failed to comply with the two-year suit limitations provision. (*John v State Farm Mut. Auto. Ins. Co.*, 116 AD3d 1010; *Beekman Regent Condominium Assn. v Greater N.Y. Mut. Ins. Co.*, 45 AD3d 311; *Schunk v New York Cent. Mut. Fire Ins. Co.*, 237 AD2d 913; *Grumman Corp. v Travelers Indem. Co.*, 288 AD2d 344; *Blonar v State Farm Ins. Cos.*, 34 AD3d 1333.) II. The exception to the two-year suit limitation provision allowed under *Executive Plaza, LLC v Peerless Ins. Co.* (22 NY3d 511 [2024]) does not apply. (*Blitman Constr. Corp. v Insurance Co. of N. Am.*, 66 NY2d 820; *Continental Leather Co. v Liverpool, Brazil & Riv. Plate Steam Nav. Co.*, 259 NY 621; *Herter v Mullen*, 159 NY 28; *Kel Kim Corp. v Central Mkts.*, 70 NY2d 900; *407 E. 61st Garage v Savoy Fifth Ave. Corp.*, 23 NY2d 275.) III. Contractual suit limitation provisions should be enforced as written. (*Riddlesbarger v Hartford Ins. Co.*, 74 US 386.) IV. Plaintiff may not rely on her affidavit to argue the unreasonableness of the suit limitations provision is improper. (*Matter of Shapiro v State of New York*, 259 AD2d 753; *Matter of Serviss v Incorporated Vil. of Floral Park*, 164 AD3d 512; *Cioffi v S.M. Foods, Inc.*, 142 AD3d 526.)

Keidel, Weldon & Cunningham, LLP, White Plains (Howard S. Kronberg of counsel), for E.G. Bowman Co., Inc. and another, respondents. The lower court properly dismissed the claims against the broker defendants based on the dismissal of the claims on the contract of insurance itself because plaintiff did not bring suit against her fire insurer within two years as required by the explicit terms in the contract of insurance. (*Brian Fay Constr., Inc. v Morstan Gen. Agency, Inc.*, 90 AD3d 796; *Andriaccio v Borg & Borg*, 198 AD2d 253; *Macon v Arnlie Realty Co.*, 207 AD2d 268; *Kinns v Schulz*, 131 AD2d 957; *American Motorists Ins. Co. v Salvatore*, 102 AD2d 342.)

Robinson & Cole LLP, New York City (Wystan M. Ackerman of counsel), for American Property Casualty Insurance Association, amicus curiae. I. The history of suit limitation provisions

in New York strongly supports the Appellate Division's decision. (*Roach v New York & Erie Ins. Co.*, 30 NY 546; *Hamilton v Royal Ins. Co.*, 156 NY 327; *Proc v Home Ins. Co.*, 17 NY2d 239; *Executive Plaza, LLC v Peerless Ins. Co.*, 22 NY3d 511.) II. The purposes of suit limitation provisions support the Appellate Division's decision. (*Zieba v Middlesex Mut. Assur. Co.*, 549 F Supp 1318.)

OPINION OF THE COURT

SINGAS, J.

The issue in this case is whether plaintiff, in response to a motion to dismiss, raised an issue as to whether she could reasonably replace her damaged property within the contract's two-year suit limitation period. We conclude under the facts and circumstances here that she did not and affirm the dismissal of the complaint.

I.

On August 4, 2014, plaintiff's multi-unit apartment building on Staten Island was damaged in a fire. At the time, plaintiff had an insurance policy, in effect, with defendant Tower Insurance Company of New York. The policy provides, in relevant part, that an insured "may [not] bring a legal action against" the insurer under the policy unless:

"a. There has been full compliance with all of the terms of this insurance; and

"b. The action is brought within 2 years after the date on which the direct physical loss or damage occurred."

Another portion of the policy provides:

"We will not pay on a replacement cost basis for any loss or damage:

"(i) Until the lost or damaged property is actually repaired or replaced; and

"(ii) Unless the repairs or replacement are made as soon as reasonably possible after the loss or damage."

In July 2020, restoration of the property was completed, and plaintiff submitted an itemized invoice to Tower. On September 1, 2020, plaintiff's claim was denied.

On August 4, 2020—six years after the fire, and four years after the expiration of the contractual limitation period—plaintiff commenced the instant action, seeking the full replacement value of the property and coverage for lost business income and other damaged personal property. Plaintiff asserted causes of action against defendants Tower Insurance Company of New York, Tower Risk Management Corporation, Tower Group, Inc., Tower Group Companies, Castlepoint Insurance Company, AmTrust Financial Services, and AmTrust North America, Inc. (Tower/AmTrust defendants) for breach of contract and breach of the covenant of good faith and fair dealing.

Plaintiff's complaint alleged that "as a direct result of Tower/AmTrust's bad faith conduct . . . restoration work was delayed for years." Specifically, plaintiff asserted that "[g]iven the massive structural damage wrought by the fire, the restoration of [plaintiff's] property would have been multi-year process [sic] under even the best of circumstances. Yet the bad faith conduct of Tower/AmTrust delayed the process even longer." Further, "because of Tower/AmTrust's misconduct, it was not possible for [plaintiff] to complete the restoration of the property until July 2020." Plaintiff gave three examples of Tower/AmTrust's alleged misconduct. First, Tower/AmTrust refused to pay vendors' invoices for initial remedial work, such as boarding windows and removing debris, which resulted in "liens on the property" and "prevented [plaintiff] from obtaining much needed financing for the seven-figure restoration costs." Second, Tower/AmTrust "assigned a succession of claims adjusters, none of whom would take responsibility for the claims handling process" and this "result[ed] in months of delay and setting back the restoration process." Finally, Tower/AmTrust "forbade [plaintiff] from even beginning the remediation until the property was inspected by the insurer's expert, but delayed in sending the so-called expert, who in fact had no understanding of the engineering challenges posed by the structural damage."

Plaintiff also asserted a breach of contract claim against E.G. Bowman Co. and Mark Lauria Associates, Inc. (broker defendants), alleging that she had contracted with them to procure insurance coverage for the full replacement cost of the property, but they failed to procure such a policy.

The Tower/AmTrust defendants moved to dismiss the action pursuant to CPLR 3211 (a) (1) and (7), asserting that the insurance policy’s two-year suit limitation provision barred the action. Plaintiff opposed the motion, arguing that the suit limitation provision was unreasonable and unenforceable under *Executive Plaza, LLC v Peerless Ins. Co.* (22 NY3d 511 [2014]). Plaintiff asserted two additional facts—that the fire was a four-alarm fire and that the property damage was “caused both by the fire and the water used by the fire department to extinguish it”—but otherwise relied on the factual allegations in her complaint. The broker defendants also moved to dismiss the complaint pursuant to CPLR 3211 (a) (1) and (7), and plaintiff moved to amend the complaint to add causes of action against the broker defendants and moved for leave to serve a second supplemental summons and amended complaint to add a new defendant.

Supreme Court granted the Tower/AmTrust defendants’ motion to dismiss the complaint in its entirety and denied the broker defendants’ and plaintiff’s motions as moot (*see* 72 Misc 3d 1206[A], 2021 NY Slip Op 50653[U] [Sup Ct, NY County 2021]). As pertinent here, the court held that the policy’s suit limitation provision “bars plaintiff’s claims” (2021 NY Slip Op 50653[U], *4). The court rejected plaintiff’s argument that the provision was unenforceable under *Executive Plaza* because plaintiff “failed to demonstrate sufficiently that she attempted to repair the Property within . . . two years” and she “did nothing to protect her rights as the suit limitation expired” (*id.* [internal quotation marks omitted]).

The Appellate Division affirmed the order dismissing the complaint (*see* 210 AD3d 470 [1st Dept 2022]). The Court held that the Tower/AmTrust defendants conclusively established that the suit limitation provision barred the action, and *Executive Plaza* did not apply because plaintiff “failed to allege that she reasonably attempted to repair the property within the two-year limitations period but was unable to do so” (*id.* at 471). As a result, the Court deemed the claims against the broker defendants unavailing because plaintiff did not recover on her insurance claim due to her own failure to timely sue, such that “any negligence or breach of contract by plaintiff[s] brokers is not the proximate cause of plaintiff’s alleged damages” (*id.*). We granted plaintiff leave to appeal

(see 40 NY3d 902 [2023]).¹

II.

When deciding a motion to dismiss, the court must “accept the facts as alleged in the complaint as true, accord plaintiffs the benefit of every possible favorable inference, and determine only whether the facts as alleged fit within any cognizable legal theory” (*Goldman v Metropolitan Life Ins. Co.*, 5 NY3d 561, 570-571 [2005] [internal quotation marks omitted]; see *Leon v Martinez*, 84 NY2d 83, 87-88 [1994]). Under CPLR 3211 (a) (1), a party may move to dismiss a cause of action asserted against them on the ground that “a defense is founded upon documentary evidence.” Such a motion “may be appropriately granted only where the documentary evidence utterly refutes [the] plaintiff’s factual allegations, conclusively establishing a defense as a matter of law” (*Goshen v Mutual Life Ins. Co. of N.Y.*, 98 NY2d 314, 326 [2002], citing *Leon*, 84 NY2d at 88). Unambiguous contracts that can “be interpreted only in one manner” may be the basis for a dismissal pursuant to CPLR 3211 (a) (1) (*Goldman*, 5 NY3d at 571).

Suit limitation provisions that specify a “reasonable” period, shorter than the statute of limitations, within which an action must be commenced are generally enforceable (*John J. Kassner & Co. v City of New York*, 46 NY2d 544, 551 [1979]; see CPLR 201). We have held that “there is nothing inherently unreasonable about a two-year period of limitation” in a case involving the same provisions at issue here: a two-year suit limitation provision and a condition precedent to the suit requiring complete replacement of the damaged property (*Executive Plaza, LLC*, 22 NY3d at 518). Nevertheless, the “period of time within which an action must be brought . . . should be fair and reasonable, in view of the circumstances of each particular case” (*id.* at 519, quoting *Continental Leather Co. v Liverpool, Brazil & Riv. Plate Steam Nav. Co.*, 259 NY 621, 622-623 [1932, Crane, J., dissenting]).

In *Executive Plaza*, the plaintiff alleged “that it acted reasonably to replace the damaged building, but was not able to do so” within the two-year limitation period, detailing several

1. The Appellate Division also affirmed, to the extent appealable, a separate, nonfinal Supreme Court order denying plaintiff’s motion to renew and reargue. That portion of the order is not before us on appeal.

steps taken within that period to restore the property (*id.* at 517). Answering a certified question from the United States Court of Appeals for the Second Circuit, this Court held that a suit limitation provision in an insurance policy is unreasonable where the policy requires total replacement before an action may be commenced but the damaged “property cannot reasonably be replaced within” the limitation period (*id.* at 518).² Accordingly, a plaintiff seeking to nullify a suit limitation provision under *Executive Plaza* must demonstrate that the damaged property could not reasonably be replaced within the limitation period.

On this motion to dismiss, the Tower/AmTrust defendants met their burden of establishing, by reference to the contract’s two-year suit limitation provision, that the action was time-barred because plaintiff did not commence it within two years of the fire, utterly refuting plaintiff’s factual allegations (*see Goshen*, 98 NY2d at 326). Nothing in plaintiff’s response raised any issue as to whether the provision should bar her claims. Plaintiff’s allegation that “[g]iven the massive structural damage wrought by the fire, the restoration of [plaintiff’s] property would have been [a] multi-year process under even the best of circumstances” is a conclusory statement that the suit limitation provision was unreasonable and is not logically inconsistent with the replacement of the property within the two-year limitation period. Here, plaintiff failed to allege actions that she took to complete the repairs within two years; she did not provide any details regarding the extent of the damage, other than that the damage was “massive” and the fire set off four alarms, or why complete restoration within two years was an impossibility.³ This bare-bones allegation stands in stark contrast to the plaintiff’s factual assertions in *Executive Plaza*. There, the plaintiff pleaded the specific remedial actions taken to restore the property, including retaining an architect and construction company, submitting a variance application, and seeking and obtaining building permits, which were not issued

2. After this Court answered the certified question, the Second Circuit held that the plaintiff’s claim should not have been dismissed because a factual question existed as to the reasonableness of the suit limitation provision (*Executive Plaza, LLC v Peerless Ins. Co.*, 745 F3d 615 [2d Cir 2014]).

3. In opposition to defendants’ motion to dismiss, plaintiff relied on the allegations in her complaint. We note that she was not required to do so but was free to submit an affidavit alleging that she acted reasonably to replace the damaged property and was unable to complete the replacement before the limitation period lapsed (*see Leon*, 84 NY2d at 88).

until 20 months after the property damage (see *Executive Plaza, LLC v Peerless Ins. Co.*, 717 F3d 114, 115-116 [2d Cir 2013]; *Executive Plaza, LLC v Peerless Ins. Co.*, 2012 WL 910086, *1, 2012 US Dist LEXIS 36174, *3 [ED NY, Mar. 13, 2012, No. 11-CV-1716 (JS)(GRB)]). Most importantly, that plaintiff provided that these remedial actions were taken within the limitation period. All of this information is notably absent from plaintiff's pleadings and motion response here.

Plaintiff's attribution of the lengthy restoration to Tower/AmTrust's conduct does not provide the requisite specificity as to whether the property could be reasonably restored within two years. Plaintiff's allegation that "because of Tower/AmTrust's misconduct, it was not possible for [plaintiff] to complete the restoration of the property until July 2020" is patently conclusory. In asserting that Tower/AmTrust's conduct allegedly delayed the restoration, plaintiff's submissions offer no factual specificity as to the length of the resultant delay except for one allegation that the assignment of "a succession of claims adjusters . . . result[ed] in *months of delay*" (emphasis added). As such, plaintiff failed to sufficiently allege that Tower/AmTrust's conduct made it impossible for her to reasonably complete restoration within two years of the fire.

Moreover, plaintiff does not assert that she informed the Tower/AmTrust defendants at the expiration of the limitation period that the repairs could not be completed within the term specified in the contract, further undermining her claim that she could not do so. In *Executive Plaza*, by contrast, the plaintiff had filed an action prior to the expiration of the limitation provision, and before the restoration had been completed, detailing the efforts taken to restore the property (see 22 NY3d at 519). By doing so, the plaintiff demonstrated that it was diligently, but unsuccessfully, working to satisfy the condition precedent. Here, plaintiff asserts that she "promptly submitted" a claim to the Tower/AmTrust defendants after the fire and otherwise suggests that she was in contact with them during some of the restoration process. But critically, plaintiff is silent as to when any of this contact allegedly occurred or what information she relayed to defendants regarding the circumstances giving rise to the impossibility of timely restoration. We do not suggest that a plaintiff seeking to defeat a suit limitation provision need file a premature action, but had plaintiff here informed the insurer of the relevant circumstances during the limitation period and detailed that com-

munication in her motion papers, she would have provided support to her claim that the suit limitation provision was unreasonable under these circumstances.

Because plaintiff did not raise a question of fact as to the enforceability of the limitation provision, the Tower/AmTrust defendants' motion to dismiss the complaint in its entirety pursuant to CPLR 3211 (a) (1) was properly granted. As a result, the claims against the broker defendants were properly dismissed because plaintiff's failure to recover was the result of her own actions and not those of the broker defendants (see *Milgrim v Royal & SunAlliance Ins. Co.*, 75 AD3d 587, 589 [2d Dept 2010]; *US Pack Network Corp. v Travelers Prop. Cas.*, 42 AD3d 330, 331 [1st Dept 2007]; see also *Kinns v Schulz*, 131 AD2d 957, 959 [3d Dept 1987]).

Accordingly, the order of the Appellate Division insofar as appealed from should be affirmed, with costs.

RIVERA, J. (dissenting). In New York, a plaintiff need meet only a "minimal standard" in their pleading to pursue their "right to seek redress" (*Armstrong v Simon & Schuster*, 85 NY2d 373, 379 [1995]). Where they do so, we must ensure that the "courthouse doors" are not "closed at the very inception of [the] action" (*id.*). The majority in this case inverts this mandate, denying redress for allegations that plainly meet our requirements.

I.

We are required to construe pleadings "liberally" (CPLR 3026). In applying this rule, "[w]e accept the facts as alleged in the complaint as true [and] accord plaintiffs the benefit of every possible favorable inference" (*Leon v Martinez*, 84 NY2d 83, 87 [1994]; see also *Tax Equity Now NY LLC v City of New York*, 42 NY3d 1, 25 [2024]). We deem a complaint "to allege whatever can be implied from its statements by fair intendment," when viewing the complaint in its entirety (*Cohn v Lionel Corp.*, 21 NY2d 559, 562 [1968]). Statements in a complaint need only put the defendants "on notice of the legal claim asserted" (*Tax Equity Now*, 42 NY3d at 12; see CPLR 3013). "[W]hether a plaintiff can ultimately establish its allegations is not part of the calculus in determining a motion to dismiss" (*Tax Equity Now*, 42 NY3d at 12).

These principles have special force when considering a motion to dismiss a complaint under CPLR 3211 (a) (1). Under

that provision, a party may move for a judgment on the ground that “a defense is founded upon documentary evidence” (CPLR 3211 [a] [1]). However, “such motion may be appropriately granted only where the documentary evidence utterly refutes plaintiff’s factual allegations, conclusively establishing a defense as a matter of law” (*Goshen v Mutual Life Ins. Co. of N.Y.*, 98 NY2d 314, 326 [2002]). Indeed, dismissal under CPLR 3211 (a) (1) is warranted only when the moving party has shown that what the pleader claims to be a material fact “is not a fact at all” and the matter is beyond “significant dispute” (*Guggenheimer v Ginzburg*, 43 NY2d 268, 275 [1977]). Even “inartfully drafted” allegations must survive dismissal so long as “the facts as alleged fit within any cognizable legal theory” upon which the pleader might be entitled to prevail (*Leon*, 84 NY2d at 87-88).

In *Executive Plaza, LLC v Peerless Ins. Co.*, we considered a motion to dismiss much like this one (*see* 22 NY3d 511 [2014]). We held that where a fire insurance policy (1) “contains a clause limiting the time in which the insured may bring suit under the policy” and (2) “says that the insured may recover the cost of replacing destroyed property . . . only after the property has already been replaced,” but (3) “the property cannot reasonably be replaced” within the contractual limitation period, then the limitation period is unreasonable and unenforceable (*id.* at 516). It is undisputed that plaintiff’s insurance policy is identical in all relevant respects to the one in *Executive Plaza*. The only question at this early stage is whether defendants have “utterly refute[d]” any contention that plaintiff’s property could not reasonably be replaced within the two-year contractual limitation period (*Goshen*, 98 NY2d at 326). Defendants failed to carry that burden.

Plaintiff’s allegations followed two paths. First, she alleged that her three-story building “suffered severe damage” from a “catastrophic, four-alarm fire.” “Given the massive structural damage wrought by the fire, the restoration of [plaintiff’s] property would have been [a] multi-year process under even the best of circumstances.” Thus, she asserted as a matter of fact that due to the structural damage, the property would take years to restore. Second, plaintiff alleged that defendants intentionally obstructed the claims process and her restoration efforts to undermine her insurance claims. Plaintiff alleged that she “promptly” submitted an insurance claim to the Tower/AmTrust defendants. But those defendants “pass[ed] Ms.

Farage from one adjuster to another, none of whom would take responsibility for processing her claim, resulting in months of delay and setting back the restoration process.” The Tower/AmTrust defendants simultaneously “forbade Ms. Farage from even beginning the remediation until the property was inspected by the insurer’s expert” and “delayed in sending” the expert to conduct the inspection. That expert “had no understanding of the engineering challenges posed by the structural damage the [b]uilding had suffered.” “All this significantly delayed any efforts to repair and restore the building.” Moreover, the Tower/AmTrust defendants refused to pay vendors that it “insisted be retained to handle initial remediation work.” Consequently, those vendors “placed liens on the property, which made it impossible for Ms. Farage to obtain loans secured by the property.” “In the end, because of Tower/AmTrust’s misconduct, it was not possible for Ms. Farage to complete the restoration of the property until July 2020,” nearly six years after the fire.

These allegations were plainly sufficient to survive a motion to dismiss. Plaintiff’s complaint put defendants on notice that she intended to prove that her property could never have reasonably been replaced in less than two years and that the Tower/Amtrust defendants’ conduct delayed replacement beyond that period. Moreover, by alleging that she “promptly” began the process of replacing the property, and then describing what steps she took, plaintiff indicated how she intended to substantiate those claims. Had plaintiff met her ultimate burden, a court would be bound by *Executive Plaza* to hold that the two-year contractual limitation period was unreasonable and unenforceable. Indeed, nothing in the insurance contract “conclusively establish[ed] a defense as a matter of law” (*Goshen*, 98 NY2d at 326), nor was it beyond “significant dispute” that the material facts alleged were “not . . . fact[s] at all” (*Guggenheimer*, 43 NY2d at 275).

II.

The majority concludes that defendants met their heavy burden by analyzing plaintiff’s allegations individually (rather than in their entirety) and construing them restrictively (rather than liberally). That analysis is contrary to our well-established pleading standards and, on its own terms, falls flat at every step.

The majority asserts that plaintiff’s allegation that restoration of the massive structural damage “‘would have been [a]

multi-year process under even the best of circumstances' is a conclusory statement that the suit limitation provision was unreasonable" (majority op at 159). Merely quoting the pleading refutes the majority's characterization. Plaintiff's allegation here is based on facts—massive structural damage due to fire—rather than on a legal proposition, doctrine or theory. Plaintiff never invoked the limitation provision in her complaint, let alone argue that it was unreasonable. Indeed, plaintiff never mentioned the "reasonableness" standard at all. Instead, it was defendants who invoked the limitations provision in their motions to dismiss. Thus, this case has little in common with others where this Court has rejected allegations as merely conclusory (*see e.g. Godfrey v Spano*, 13 NY3d 358, 373 [2009] [concluding that allegations that an executive order "ha(d) resulted and (would) continue to result in the illegal disbursement of County funds" were insufficient to survive a motion to dismiss]).

The majority faults plaintiff for a lack of detail "regarding the extent of the damage" "or why complete restoration within two years was an impossibility" (majority op at 159). The majority ignores that, on a motion to dismiss, we must "accord plaintiff[] the benefit of every possible favorable inference" (*Leon*, 84 NY2d at 87). Applying that standard here, we can easily draw a favorable inference that a four-alarm fire in a three-story building caused significant damage (*see id.*). That inference is supported by plaintiff's allegation that the harm caused by this "catastrophic" event "included structural damage caused both by the fire and [by] the water used by the fire department to extinguish it." Of course, plaintiff would still have to establish that "complete restoration within two years was," reasonably speaking, "an impossibility" (majority op at 159). But at the pleading stage she need only assert a viable claim, not prove it (*see Tax Equity Now*, 42 NY3d at 12).*

The majority also faults plaintiff for failing to plead that she undertook "specific remedial actions" "within the limitation period" (majority op at 159-160). Yet it is a "fair intendment" of

* The majority "note[s]" that plaintiff was "not required" to rely on the allegations in her complaint, but "was free to submit an affidavit alleging that she acted reasonably to replace the damaged property and was unable to complete the replacement before the limitation period lapsed" (majority op at 159 n 3). This is irrelevant. We may not "penalize[]" a plaintiff "because [they have] not made an evidentiary showing in support of [their] complaint" (*Rovello v Orofino Realty Co.*, 40 NY2d 633, 635 [1976]).

the complaint that plaintiff did just that, as becomes particularly clear when, as we must, we accord plaintiff every favorable inference (*Cohn*, 21 NY2d at 562; see *Leon*, 84 NY2d at 87). Plaintiff alleged that she “promptly” submitted an insurance claim for the property damage to the Tower/AmTrust defendants; that those defendants “forbade Ms. Farage from even beginning the remediation until the property was inspected by the insurer’s expert,” but “delayed” the inspection; and that the Tower/AmTrust defendants refused to pay vendors, prompting the vendors to “place[] liens on the property.” When construed liberally and holistically, as our pleading standard requires, these allegations portray plaintiff as acting dutifully to fulfill her contractual obligations in a timely manner. Although the complaint in *Executive Plaza* was more detailed, our decision there did not alter our minimum pleading standards. In answering the certified question from the Second Circuit of whether a two-year limitations provision is reasonable if repairs cannot be completed within the agreed upon period, we had no occasion to opine as to whether or why the plaintiff’s complaint was adequate. Nor did the Second Circuit. After we answered the discrete question posed to us, the Second Circuit vacated the district court judgment on the pleadings and remanded to address the outstanding factual questions as to whether the plaintiff could have reasonably replaced the property within two years and did so as soon as reasonably possible (*Executive Plaza, LLC v Peerless Ins. Co.*, 745 F3d 615, 616 [2d Cir 2014]).

The majority further deems plaintiff’s “attribution of the lengthy restoration to Tower/AmTrust’s conduct” insufficiently specific (majority op at 160). But under *Executive Plaza*, what matters is only whether the property could reasonably have been restored within the limitation period. Whether plaintiff’s allegation of “Tower/AmTrust’s misconduct” is “conclusory” is therefore irrelevant (majority op at 160). On a motion to dismiss, we must accept her factual allegation that defendants’ conduct caused delay, not her conclusion that it legally constituted misconduct or bad faith. And if the restoration would have been a “multi-year process” no matter what, as plaintiff alleged, then even “months of delay” would have prevented plaintiff from completing the restoration within two years.

Finally, the majority suggests that “had plaintiff here informed the insurer of the relevant circumstances during the limitation period and detailed that communication in her mo-

tion papers, she would have provided support to her claim that the suit limitation provision was unreasonable under these circumstances” (majority op at 160-161). So broadly stated, it is hard to disagree. The majority does not claim that a plaintiff must file a premature action or otherwise give notice of their intent to file a claim after a suit-limitation period has expired—and, indeed, no such requirements exist. The majority, however, concludes that plaintiff’s failure to allege that she provided the insurer with notice of her inability to comply within the limitations period “undermin[es] her claim that she could not” reasonably complete the restoration within the requisite time (majority op at 160). But we did not adopt a notice requirement in *Executive Plaza* and the parties here did not include such a requirement in their agreement, and plaintiff thus had no contractual obligation to provide this type of notice. The majority cannot rewrite the policy to comport with its preferred view of what plaintiff should have done (*see e.g. MAK Tech. Holdings Inc. v Anyvision Interactive Tech. Ltd.*, 42 NY3d 570, 576 [2024]; *Reiss v Financial Performance Corp.*, 97 NY2d 195, 199 [2001]).

III.

Defendants did not “utterly refute[]” that plaintiff’s property could not reasonably be replaced within the insurance policy’s two-year limitations period (*Goshen*, 98 NY2d at 326). Plaintiff’s factual allegations that the massive structural damage to the property would take years to repair and that defendants’ obstructionist tactics led to month-long delays of her restoration efforts negate application of the contractual limitations bar. Therefore, defendants’ CPLR 3211 (a) (1) motion to dismiss should have been denied. Under New York’s liberal pleading regime, a party need only assert facts that “fit within any cognizable legal theory” (*Leon*, 84 NY2d at 87-88). The complaint here more than meets that standard. Our law commands that we keep the courthouse open to this plaintiff.

I dissent.

Judges GARCIA, CANNATARO and TROUTMAN concur. Judge RIVERA dissents in an opinion, in which Chief Judge WILSON and Judge HALLIGAN concur.

Order insofar as appealed from affirmed, with costs.

[256 NE3d 654, 231 NYS3d 84]

HENRY E. CALABRESE, Respondent, v CITY OF ALBANY, Appellant.

Argued November 21, 2024; decided December 17, 2024

PROCEDURAL SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the Third Judicial Department, from an order of that Court, entered November 9, 2023. The Appellate Division order, insofar as appealed from, affirmed so much of an order of the Supreme Court, Albany County (Christina L. Ryba, J.; op 2022 NY Slip Op 34899[U] [2022]), as had denied defendant's cross-motion for summary judgment dismissing the complaint. The following question was certified by the Appellate Division: "Did this Court err, as a matter of law, in affirming, on the law, so much of the order of the Supreme Court which denied defendant's cross-motion for summary judgment dismissing the complaint?"

Calabrese v City of Albany, 221 AD3d 1152, affirmed.

HEADNOTES

Municipal Corporations — Notice of Street Defect — Written Notice — Reports of Defect Submitted through Online Reporting System

1. In plaintiff's action to recover damages for injuries he sustained in a motorcycle accident allegedly caused by a road defect that defendant city knew about but failed to repair, reports of the defect submitted to defendant through an online reporting system served as "written notice . . . actually given" to the appropriate official as required by Code of City of Albany former § 24-1 (A). The electronic notices served as objectively observable and tangible records that were functionally equivalent to writings inscribed in a physical medium. The online system was defendant's sole process for recording road defect reports, and the system did not route such reports through any third party, consistent with the policy underlying the prior written notice requirement. Moreover, defendant used the system to receive, track, and follow up on notices provided through the system, as well as notices received through all other channels, and subsequent repairs were then documented in the same system. As a result, even though not personally received by defendant's general services commissioner, these notices were "actually given" to the statutory designee. Accordingly, the reports could constitute prior written notice. Plaintiff therefore raised a triable question of fact as to whether defendant had prior written notice of the defect, precluding defendant's motion for summary judgment on that issue.

Municipal Corporations — Tort Liability — Governmental Immunity

2. Defendant city was not entitled to governmental immunity from plaintiff's action to recover damages for injuries he sustained in a motorcycle

accident allegedly caused by a road defect resulting from defendant's repair of a water main break. A city is shielded from liability for discretionary actions taken during the performance of governmental functions undertaken for the protection and safety of the public pursuant to the general police powers. Conversely, a governmental entity acts in a purely proprietary role when its activities essentially substitute for or supplement traditionally private enterprises and so is subject to suit for such activities under the ordinary rules of negligence applicable to nongovernmental parties. A municipality's proprietary duty to keep its roadways in a reasonably safe condition is well settled. While defendant's response to the water main break may have been a governmental function, defendant's repair of the excavation on the street where the accident occurred was a proprietary function.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Municipal, County, School, and State Tort Liability §§ 10, 18–20, 38, 40, 44–46, 48–49, 51, 99–101, 108–109, 111, 210, 216, 222, 253, 533, 548, 552.

CARMODY-WAIT 2d Actions By and Against Public Bodies and Public Officers §§ 144:1, 144:3, 144:8, 144:182–144:184, 144:187, 144:190.

DOBBS LAW OF TORTS (2d ed) §§ 343–344.

NY JUR 2d Government Tort Liability §§ 8, 12, 14–15, 19, 33–35, 103, 109, 116, 340–342, 345, 349, 354–356, 359, 361, 363.

NEW YORK LAW OF TORTS §§ 17:25, 17:31–17:34, 17:39, 17:43, 17:48, 17:55, 17:61, 17:64.

ANNOTATION REFERENCE

See ALR Index under Defects and Irregularities; Government; Governmental Immunity or Privilege; Highways and Streets; Municipal Corporations; Notice or Knowledge; Torts.

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POINTS OF COUNSEL

Marisa Franchini, Corporation Counsel, Albany (Robert Magee of counsel), for appellant. I. The City of Albany is entitled to summary judgment because prior “written notice” of the depression was not sent to or received by its statutory designee.

(*Gorman v Town of Huntington*, 12 NY3d 275; *Fumarelli v Marsam Dev.*, 92 NY2d 298; *Matter of Scotto v Dinkins*, 85 NY2d 209; *Matter of Wegmans Food Mkts., Inc. v Tax Appeals Trib. of the State of N.Y.*, 33 NY3d 587; *Misty Cleaning Servs., Inc. v Independent Group Home Living Program, Inc.*, 223 AD3d 897.) II. The depression was not affirmatively created; it appeared gradually due to natural forces. (*Yarborough v City of New York*, 10 NY3d 726; *Oboler v City of New York*, 8 NY3d 888; *Vega v City of New York*, 88 AD3d 497; *Thompson v City of New York*, 172 AD3d 485; *Wald v City of New York*, 115 AD3d 939.) III. The emergency excavation was a discretionary act taken in furtherance of a governmental purpose and is therefore clothed with governmental immunity. (*Applewhite v Accuhealth, Inc.*, 21 NY3d 420; *Valdez v City of New York*, 18 NY3d 69; *Haddock v City of New York*, 75 NY2d 478; *Sebastian v State of New York*, 93 NY2d 790; *McLean v City of New York*, 12 NY3d 194.) IV. The decision correctly held that Albany City Code § 24-1 was enforceable notwithstanding its reference to the Public Works Commissioner. (*Elmy v City of Amsterdam*, 25 AD3d 1038.)

Harding Mazzotti, LLP, Albany (*Peter P. Balouskas* of counsel), for respondent. I. SeeClickFix electronic notifications may satisfy the prior “written” notice requirement of the statute. (*Williamson v Delsener*, 59 AD3d 291; *Jimenez v Yanne*, 152 AD3d 434; *Forcelli v Gelco Corp.*, 109 AD3d 244; *Stevens v Publicis S.A.*, 50 AD3d 253; *Van Wageningen v City of Ithaca*, 168 AD3d 1266.) II. The appellant may be held liable for immediately creating or exacerbating the defective roadway depression that caused respondent’s crash through its excavation of the roadway just weeks prior to respondent’s crash as an exception to the prior written notice requirement. (*Amabile v City of Buffalo*, 93 NY2d 471; *Martin v City of New York*, 191 AD3d 152; *Bania v City of New York*, 157 AD3d 612; *Guss v City of New York*, 147 AD3d 731.) III. Appellant is incapable of establishing that the Commissioner of “Public Works” did not receive prior written notice, as the agent designated to receive written notice by the strictly construed statute in effect at the time of the crash, because no commissioner of public works existed and thus satisfaction of the strictly construed terms of statute was an impossibility. (*Hawley v Town of Ovid*, 108 AD3d 1034; *Poirier v City of Schenectady*, 85 NY2d 310; *Misek-Falkoff v Village of Pleasantville*, 207 AD2d 332; *Drzewiecki v City of Buffalo*, 51 AD2d 870; *Farnsworth v Village of Potsdam*, 228 AD2d 79.) IV. The appellant must be estopped from asserting

prior written notice as a defense where the Commissioner of General Services deliberately enacted a scheme that prevents respondent from satisfying the statute. (*Beadles v Smyser*, 209 US 393; *Vermeule v City of Corning*, 186 App Div 206; *Robinson v City of New York*, 24 AD2d 260; *Moore v Mayor of City of N.Y.*, 73 NY 238; *North Riv. Elec. Light & Power Co. v. City of New York*, 48 App Div 14.) V. The appellant's maintenance of the roadway is a propriety function that subjects it to the ordinary standards of negligence. (*Gutkaiss v Delaware Ave. Merchants Group, Inc.*, 173 AD3d 1327; *Turturro v City of New York*, 28 NY3d 469; *Wittorf v City of New York*, 23 NY3d 473.)

Susan R. Katzoff, Corporation Counsel, Syracuse, Victor J. Kessler, City Attorney, Ithaca, Sophie A. Bergman, Corporation Counsel, Binghamton, Patrick N. Beath, Corporation Counsel, Rochester, and Cavette A. Chambers, Corporation Counsel, Buffalo, for City of Syracuse and others, amici curiae. I. Prior "written notice" must be "actually given" to the statutory designee. (*Majewski v Broadalbin-Perth Cent. School Dist.*, 91 NY2d 577; *Patrolmen's Benevolent Assn. of City of N.Y. v City of New York*, 41 NY2d 205; *Tompkins v Hunter*, 149 NY 117; *Amabile v City of Buffalo*, 93 NY2d 471; *Kuzmich v 50 Murray St. Acquisition LLC*, 34 NY3d 84.) II. If the decision and order is affirmed, municipalities using SeeClickFix or a similar platform will be faced with the dilemma of accepting a significantly increased liability risk or eliminating the constituent driven program altogether.

Wade Beltramo, New York State Conference of Mayors and Municipal Officials, Albany, for New York State Conference of Mayors and Municipal Officials, amicus curiae. I. Websites and applications such as SeeClickFix are extremely imprecise methods for cataloging defects in municipal infrastructure and, absent the municipality's consent, are not reasonable substitutes for written notice of defect procedures created pursuant to General Municipal Law § 50-g and Local Law. (*Van Wageningen v City of Ithaca*, 168 AD3d 1266.) II. If upheld, the Appellate Division's rationale would open up applications and websites such as Facebook, Twitter, Instagram, Threads and YouTube as means of legally complying with prior written notice laws, effectively eviscerating the limited protections that the state legislature has expressly and clearly given local governments and their taxpayers via General Municipal Law § 50-g. III. Applications such as SeeClickFix are valuable tools that can provide better customer service to a municipality's

constituents, but if this Court rules that such applications constitute an acceptable method for delivering written notices of defect, it will dissuade local governments from using such applications and have the perverse public policy outcome of incentivizing local officials to make it more difficult for constituents to report issues, including defects in infrastructure, to local officials. (*Matter of Meyer*, 209 NY 386; *Archer v Equitable Life Assur. Socy. of U. S.*, 218 NY 18.)

OPINION OF THE COURT

GARCIA, J.

Plaintiff was injured when he lost control of his motorcycle on Lark Street in the City of Albany. He brought this lawsuit claiming that the accident was caused by a road defect that the City knew about and had failed to repair. The primary issue on appeal is whether certain reports submitted to the City through an online reporting system called “SeeClickFix” (SCF) served as “written notice” of that defect and, if so, whether those reports were “actually given” to the official designated by statute to receive such notice. Viewing the evidence in the light most favorable to plaintiff, based on the implementation and use of the SCF system by the City and its Department of General Services (DGS), we hold that plaintiff raised a triable issue of fact as to prior written notice to the appropriate City official. We further hold that plaintiff raised a triable issue of fact regarding the affirmative negligence exception to the prior written notice requirement, and that the City lacks governmental immunity from suit. We therefore affirm.

I.

Statutes requiring that a municipality receive “prior written notice” of, and a reasonable opportunity to remedy, roadway defects were designed to address the “vexing problem” of municipal liability for such defects (*Amabile v City of Buffalo*, 93 NY2d 471, 473 [1999] [internal quotation marks and citation omitted]; see also *San Marco v Village/Town of Mount Kisco*, 16 NY3d 111, 116 [2010]; *Sprague v City of Rochester*, 159 NY 20, 25-26 [1899]). Prior notice statutes “are a valid exercise of legislative authority” (*Amabile*, 93 NY2d at 473 [citation omitted]; see General Municipal Law § 50-e [4]; Town Law § 65-a; Village Law § 6-628), but because local laws requiring such notice are in derogation of the common law, they are strictly construed against the municipality and “liberally in favor of the citizen” (*Sprague*, 159 NY at 26; see *Laing v City of New*

York, 71 NY2d 912, 914 [1988]). We have recognized two exceptions to the prior notice requirement—“namely, where the locality created the defect or hazard through an affirmative act of negligence and where a ‘special use’ confers a special benefit upon the locality” (*Amabile*, 93 NY2d at 474 [citations omitted]). For the affirmative negligence exception to apply, the locality’s negligent act must immediately give rise to the dangerous condition (*see Yarborough v City of New York*, 10 NY3d 726, 728 [2008]).

Here, at the time of the accident, the City’s prior written notice statute provided:

“No civil action shall be maintained against the City for damages or injuries to person or property sustained in consequence of any street . . . being defective, out of repair, unsafe, dangerous or obstructed unless, previous to the occurrence resulting in such damages or injury, *written notice of the defective, unsafe, dangerous or obstructed condition of said street . . . was actually given to the Commissioner of Public Works* and there was a failure or neglect within a reasonable time after the receipt of such notice to repair or remove the defect, danger or obstruction complained of” (Code of City of Albany former § 24-1 [A] [emphasis added]).

This version of the statute was enacted in 1983. About 15 years later, the Department of Public Works was abolished, and its functions were transferred to DGS (*see* Code of City of Albany §§ 42-99, 42-104). The statute was not amended to reflect that reorganization until after plaintiff’s injury.

At the time the City’s notice statute was enacted, the phrase “written notice” did not, and indeed could not yet, contemplate software applications capable of sending communications from the public over the Internet to municipal officials. We now confront the issue of whether such a relatively recent advance in technology can provide an avenue for written notice to be actually given to the statutory designee pursuant to the City’s notice statute.

II.

SCF is an online reporting system maintained by the City that allows users to report, through a software application or website, “anything that they see that should be addressed by

any city department.” When a member of the public reports an issue in SCF, the system routes it automatically to the appropriate government office. Reports of road defects go to DGS, the agency responsible for road maintenance. Users may provide a description of the defect, its location, and photographs of the condition. Various city officials, including the DGS Commissioner, have encouraged the public to report road defects through SCF. At the same time, presumably anticipating potential liability for unaddressed road defects, the City requires SCF users to accept as a term of use the disclaimer that “use of this system . . . does not constitute a valid notice of claim nor valid prior written notice as established under . . . state and local law.”

Once SCF routes a road defect report to DGS, a DGS “front office” employee reviews it and assigns it to the appropriate supervisor for any necessary repair. In turn, the supervisor documents DGS’s response by making handwritten notes on a printed copy of the SCF report, and a DGS employee then enters those notes into the SCF system to track and record them. SCF is the only system used by DGS to log, track, and follow up on road defect reports, including all road defect reports received from DGS employees in the field or from members of the public who call or submit reports by regular mail. Outside of SCF, DGS has “[no] other documents pertaining to complaints about street . . . defects.” The Commissioner of DGS has access to the SCF system but, as a matter of choice, has “[n]ever personally reviewed any type of complaint from any source pertaining to any road defect[],” opting instead to receive a spreadsheet listing reported complaints and work done to address them.

III.

In July 2019, plaintiff was injured when he lost control of his motorcycle on Lark Street in the general area where the City’s Water Department had repaired a water main break approximately two months before. In the months leading up to the accident, DGS had received a number of complaints about a defect in the road near the accident site; some were reported through SCF and others were reported by telephone and entered into SCF by a DGS employee pursuant to DGS policy.

Plaintiff brought this action, alleging that the City’s negligence caused his injuries. Following discovery, the parties cross-moved for summary judgment. The City argued that prior

written notice was not actually given to the Commissioner of DGS, no exception to the prior written notice statute applied, and the City was immune from suit. Supreme Court denied both motions (2022 NY Slip Op 34899[U] [Sup Ct, Albany County 2022]). First, the court held that an SCF report may constitute prior written notice, but that several issues of fact precluded summary judgment, including which of the complaints were “based upon verbal rather than written communications,” “whether the defects described in the S[CF] notifications were the same as, or were otherwise related to, the roadway depression that caused plaintiff’s accident,” and “whether the manner in which the City excavated, repaired and/or restored the roadway created or exacerbated the defective condition which allegedly caused plaintiff’s accident” (*id.* at *8, *12). Supreme Court also rejected the City’s governmental immunity argument.

The parties both appealed denial of their respective summary judgment motions, and the Appellate Division affirmed (221 AD3d 1152 [3d Dept 2023]). As relevant here, the Court held that the SCF complaints may constitute written notice actually given within the meaning of the statute and rejected defendant’s governmental immunity argument (*id.* at 1154-1155, 1156). The Appellate Division granted defendant leave to appeal and certified the question of whether it erred by affirming the denial of the City’s motion (2024 NY Slip Op 63739[U] [3d Dept 2024]).

IV.

A. Impossibility

As a threshold matter, plaintiff argues that the City’s notice statute is unenforceable because it requires that prior written notice be actually given to the Commissioner of Public Works, an office that no longer exists. Compliance with the plain language of the statute was impossible for the approximately 20-year period from the time the Department of Public Works was abolished to the amendment substituting the DGS Commissioner as the designated official after plaintiff’s accident, and therefore, plaintiff argues, any notice requirement during that period should be excused. We decline to read the statute in a manner that would produce such an “objectionable, unreasonable or absurd consequence[]” (*Long v State of New York*, 7 NY3d 269, 273 [2006]; *see McKinney’s Cons Laws of NY*, Book 1, Statutes § 141 [statutes should not be read to require impos-

sibility)). The relevant statutes abolishing the Department of Public Works make clear that all functions, power, and personnel belonging to that department were transferred to DGS (*see* Code of City of Albany §§ 42-101, 42-104). Accordingly, we read the statute, as did the lower courts, to require that prior written notice be actually given to the Commissioner of DGS.¹

Because the prior written notice requirement was not excused by the City's failure to amend the statute, we must address two issues with respect to whether the SCF reports could provide that notice: whether such reports are "written," and, if so, whether the City's implementation and use of the SCF system resulted in those reports being "actually given" to the Commissioner of General Services.

B. Written Notice

[1] We agree with the courts below that notices submitted electronically through SCF may satisfy the "written notice" component of the statute. Electronic communications fall within the plain meaning of the word "written" (*see* Black's Law Dictionary [12th ed 2024], written [defining "written" as: "(Of words or signs) recorded in visual form of some kind. . . . Expressed in letters, words, etc. on paper or in some other medium. . . . The term is often contrasted with its antonym *spoken*"]. They serve as "objectively observable and tangible record[s]" that are functionally equivalent to writings inscribed in a physical medium (*Bazak Intl. Corp. v Tarrant Apparel Group*, 378 F Supp 2d 377, 383-384 [SD NY 2005] [holding that an email can be a writing under the Uniform Commercial Code]). Indeed, the SCF system was the City's sole process for recording road defect reports, including each defect's reported location and the date and time each report was received by DGS, and the system did not route such reports through any third party, consistent with the policy underlying the prior written notice requirement (*see Poirier v City of Schenectady*, 85 NY2d 310, 313-314 [1995]; *see also Dalton v City of Saratoga Springs*, 12 AD3d 899, 901 [3d Dept 2004] ["Verbal complaints transcribed to a written telephone message or, here, a work order do not satisfy the statutory requirement"]). Moreover, any ambiguity in what constitutes a writing under the statute must be strictly construed against the City (*see e.g.*

1. As the Appellate Division noted in rejecting this argument, "defendant represents without contradiction that it has never endeavored to avoid liability through such a literal enforcement of [Code of City of Albany former §] 24-1" (221 AD3d at 1153).

Laing, 71 NY2d at 914). We therefore hold that a report typed into SCF by a user and then transmitted to DGS is a “written” communication (cf. *Van Wageningen v City of Ithaca*, 168 AD3d 1266, 1267 [3d Dept 2019] [acknowledging that an email is a “written complaint()” for purposes of prior written notice]; *Bochner v Town of Monroe*, 169 AD3d 631, 632 [2d Dept 2019] [recognizing that an email can serve as prior written notice]). However, any notices received verbally, for example via telephone, and memorialized by DGS staff in the SCF system do not qualify as “written” (see *Gorman v Town of Huntington*, 12 NY3d 275, 280 [2009] [“Nor can a verbal or telephonic communication to a municipal body that is reduced to writing satisfy a prior written notice requirement”]; see also *Tortorici v City of New York*, 131 AD3d 959, 960 [2d Dept 2015] [request generated from a “311” call and entered by clerk into the computer system was not written notice]). Of course, should a municipality prefer a different definition of “written notice,” it may choose to provide one in its prior notice statute (see e.g. *Wolin v Town of N. Hempstead*, 129 AD3d 833, 834 [2d Dept 2015] [prior written notice statute required that notices be “manually subscribed”]).

C. Actually Given to the Statutory Designee

In addition to holding that the SCF reports were “written” notice within the meaning of the statute, we also hold that the reports were “actually given” to the Commissioner of General Services. We have made clear that not “every written complaint to a municipal agency necessarily satisfies the strict requirements of prior written notice, [and] that any agency responsible for fixing the defect that keeps a record of such complaints has [not], ipso facto, qualified as a proper recipient of such notice” (*Gorman*, 12 NY3d at 279). The notice at issue in *Gorman* was made to the agency responsible for fixing the road defect, but that agency was not the locality’s statutory designee for prior written notice and was therefore not the proper recipient (see *id.* at 279-280 [citing cases involving similarly misdirected notices]). By contrast, the notices here went to the appropriate municipal agency, but were not addressed to, or personally reviewed by, the Commissioner of that agency, who is designated by title as the proper recipient (see Code of City of Albany § 24-1). Nevertheless, we hold, based on DGS’s specific process for routing and maintaining the road defect reports received through SCF, that those notices were “actually given” to the statutory designee.

In *Sprague v City of Rochester*, we accepted the conclusion that notice to a subordinate could provide prior notice to the statutory designee (see 159 NY at 26 [“It is not reasonable to believe that the legislature intended that personal notice of every defect in the entire system of sidewalks should be given (to the city’s executive board) in order to enable citizens to obtain redress for injuries owing to a failure to repair”]). There, the prior notice statute designated “the city officers having charge of the highways” as the mandatory prior notice recipients (see *id.* at 23). We concluded that “the legislature did not contemplate that [those officers] should look closely after details, but that they should take general charge, give general directions, and to a great extent delegate their powers to subordinates” (*id.* at 26). The officers in *Sprague*, like the Commissioner here, were empowered to establish unwritten practices regulating the inspection and repair of the streets and sidewalks as they saw fit, delegating authority to foremen to act on their behalf (see *id.* at 24-25). On these facts, we held that prior notice to a foreperson satisfied the statute (see *id.* at 28). Lower courts have reached the same commonsense conclusion with respect to notice given to a subordinate of the locality’s statutory designee (see generally *Elias v City of Rochester*, 49 App Div 597 [4th Dept 1900] [notice given to the clerk of the statutory designee was sufficient where the statutory designee could not practicably receive the public’s complaints directly and the clerk was empowered by statutory designee to receive and process them], *affd without op* 169 NY 614 [1902]; see also *Kowalski v City of Poughkeepsie*, 9 AD2d 685 [2d Dept 1959]).

Here, DGS created a system for processing complaints that bypassed the need for the Commissioner’s personal review. SCF was promoted by the Commissioner as a tool for reporting road defects within the City and was the only internal system for tracking those complaints and any remedial work done in response. Any written complaints addressed to the Commissioner and actually mailed to DGS would be subject to the same process—that is, they would be routed to the DGS front desk and entered into SCF (*cf. Horst v City of Syracuse*, 191 AD3d 1297, 1301 [4th Dept 2021] [by comparison, prior notice statute not satisfied by reports submitted via a web-based complaint system that “were maintained in an electronic format and were separate from the written notices kept in the office of the commissioner”]). In sum, DGS used SCF to receive, track, and follow up on notices provided through SCF, as well

as notices received through all other channels, and subsequent repairs were then documented in the same system. As a result, we hold that, even though not personally received by the Commissioner, these notices were “actually given” to the statutory designee.² Accordingly, the SCF reports at issue here could constitute prior written notice. Plaintiff therefore raised a triable question of fact as to whether the City had prior written notice of the defect on Lark Street, precluding the City’s motion for summary judgment on that issue.

V.

Supreme Court also properly determined that issues of fact precluded summary judgment as to whether the City’s alleged negligence immediately resulted in a dangerous condition that caused plaintiff’s accident—in which case, the prior written notice requirement would not apply. According to a city official, the hole dug in connection with the water main repair was properly backfilled, compacted, and “cold patched,” and was “flat and even with the surrounding road and capable of supporting vehicle traffic.” On the other hand, plaintiff’s expert engineer opined that “there was severe insufficient subbase and asphalt concrete material used to restore the roadway,” which “caused dipping or sinking in the roadway, and would have been immediately apparent after the April . . . 2019 work was done.” This competing evidence about the adequacy of the City’s repair, and whether its consequences were immediately apparent after the repair’s completion, required denial of summary judgment on the question of whether the City affirmatively created the defect.

VI.

[2] Finally, we reject the City’s contention that, because it was acting in a governmental capacity when it responded to the water main break, it is immune for any resulting negligence. The City is shielded from liability for “discretionary actions taken during the performance of governmental functions” (*Valdez v City of New York*, 18 NY3d 69, 75-76 [2011] [citation omitted]; see *Haddock v City of New York*, 75 NY2d 478, 484 [1990]). We have described “governmental functions” as those acts “‘undertaken for the protection and safety of the public

2. We note that the SCF disclaimer requiring the user to accept that use of the system does not provide statutory notice does not operate to undo notice actually made in compliance with the statute.

pursuant to the general police powers’ ” (*Applewhite v Accuhealth, Inc.*, 21 NY3d 420, 425 [2013], quoting *Sebastian v State of New York*, 93 NY2d 790, 793 [1999]). Conversely, a governmental entity acts in “a purely proprietary role when its ‘activities essentially substitute for or supplement traditionally private enterprises’ ” and so “is subject to suit [for such activities] under the ordinary rules of negligence applicable to non-governmental parties” (*id.*, quoting *Sebastian*, 93 NY2d at 793). As relevant here, “[a] municipality’s proprietary duty to keep its roadways in a reasonably safe condition is well settled” (*Turturro v City of New York*, 28 NY3d 469, 479 [2016] [citations omitted]). Here, while the City’s response to the water main break may have been a governmental function, the City’s repair of the excavation on Lark Street was a proprietary function. As a result, the City is not entitled to governmental immunity from suit.

Accordingly, the order of the Appellate Division insofar as appealed from should be affirmed, with costs, and the certified question answered in the negative.

Chief Judge WILSON and Judges RIVERA, SINGAS, CANNATARO, TROUTMAN and HALLIGAN concur.

Order insofar as appealed from affirmed, with costs, and certified question answered in the negative.

[258 NE3d 1186, 232 NYS3d 412]

In the Matter of KASOWITZ, BENSON, TORRES & FRIEDMAN, LLP,
Petitioner, v JPMORGAN CHASE BANK, N.A., Appellant, THE
DAKOTA, INC., Respondent, and FLETCHER INTERNATIONAL,
LTD., et al., Intervenors-Respondents, et al., Respondent.

Argued October 16, 2024; Decided November 26, 2024

PROCEDURAL SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered October 18, 2022. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Lewis J. Lubell, J.; op 2021 NY Slip Op 34219[U] [2021]), which had declared that the lien of the cooperative security interest of respondent The Dakota, Inc. was prior in seniority to the lien of respondent JPMorgan Chase Bank, N.A.

Matter of Kasowitz, Benson, Torres & Friedman, LLP v JPMorgan Chase Bank, N.A., 209 AD3d 529, reversed.

HEADNOTES**Judgments — Collateral Estoppel — Prior Opportunity to Litigate**

1. In a CPLR 5225 proceeding in which petitioner law firm sought the seizure and sale of respondent debtor's cooperative apartments to satisfy a judgment against him for unpaid legal fees, respondent bank, which held an interest in the apartments along with respondent cooperative organization which controlled the apartments, was not barred from challenging the legal basis of the judgment, where the bank was neither joined nor required to intervene in the action that resulted in the fee award against the debtor and therefore had no prior opportunity to challenge the award. An assignee is not privy to a judgment where the succession to the rights affected thereby has taken place prior to the institution of the suit against the assignor. It was undisputed that the debtor assigned the bank an interest in his property before he initiated his discrimination action against the co-op, which counterclaimed for legal fees and costs pursuant to the proprietary lease. The subsequent judgment in that action could not have defined the prior interest assigned to the bank. Moreover, the priority agreement among the three respondents bound the bank to an inferior creditor status as against the co-op but did not prohibit the bank from challenging in the first instance the co-op's entitlement under the lease provision to a post-assignment fee award incident to the property. Thus, the Appellate Division erred in concluding that the bank's challenge here to the enforcement of the fee judgment in the discrimination action amounted to an impermissible collateral attack. Moreover, CPLR 1012 (a) (2) permits, but does not require, persons who "may be bound by the judgment" to intervene as of right. Accordingly, courts have not treated intervention as a requirement for a nonparty to avoid collateral estoppel.

Judgments — Collateral Estoppel — Privy — Unity of Interest

2. A party's representation of a nonparty is adequate for preclusion purposes, as explained in *Taylor v Sturgell* (553 US 880, 900 [2008]), only if,

at a minimum, the interests of the nonparty and their representative are aligned, and either the party understood themselves to be acting in a representative capacity or the original court took care to protect the interests of the nonparty. In addition, adequate representation sometimes requires notice of the original suit to the persons alleged to have been represented. Lower court cases suggesting that mere unity of interest between a party and a nonparty in one action suffices to bind the nonparty in a subsequent action are inconsistent with *Taylor* and, to that extent, should not be followed (see e.g. *Altegra Credit Co. v Tin Chu*, 29 AD3d 718, 720 [2d Dept 2006]).

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Judgments §§ 468, 544, 553–554, 561, 569–570.
CARMODY-WAIT 2d Judgments §§ 63:604–63:605, 63:607.
MCKINNEY'S, CPLR 1012 (a) (2); 5225.
NY JUR 2d Judgments §§ 344–345, 359, 365, 374.
SIEGEL, NY PRAC (6th ed) §§ 422, 467.

ANNOTATION REFERENCE

See ALR Index under Collateral Attack; Estoppel and Waiver; Judgments, Orders, and Decrees; Res Judicata.

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POINTS OF COUNSEL

Wilmer Cutler Pickering Hale and Dorr LLP, New York City (Alan E. Schoenfeld of counsel) and Washington, D.C. (*Thad Eagles* of counsel), *Thompson Coburn Hahn & Hessen LLP*, New York City (*Zachary G. Newman*, *Steven R. Aquino* and *Jonathan A. Samper* of counsel), and *Parker Ibrahim & Berg LLP*, New York City (*James P. Berg* and *Mitchell Kurtz* of counsel), for appellant. I. JPMorgan Chase Bank, N.A. (Chase) is not bound by the judgment in the *Fletcher v The Dakota, Inc.* (Sup Ct, NY County, index No. 101289/11) suit because that litigation began after Alphonse Fletcher, Jr.'s assignment to Chase. (*Matter of Farley v Wurz*, 217 NY 105; *Postal Telegraph Cable Co. v Newport*, 247 US 464; *Dull v Blackman*, 169 US 243; *Industrial Credit Co. v Berg*, 388 F2d 835; *Wight v Chandler*, 264 F2d 249.) II. JPMorgan Chase Bank, N.A. had no affirmative duty to intervene in the *Fletcher v The Dakota, Inc.* (Sup Ct, NY County, index No. 101289/11) suit because

due process does not permit, and New York law does not impose, any such duty. (*Green v City of Tucson*, 255 F3d 1086; *Gilbertson v Albright*, 381 F3d 965; *Martin v Wilks*, 490 US 755; *South Central Bell Telephone Co. v Alabama*, 526 US 160.) III. Allowing JPMorgan Chase Bank, N.A. its day in court would not collaterally attack or destroy the judgment against Alphonse Fletcher, Jr. (*ABN AMRO Bank, N.V. v MBIA Inc.*, 17 NY3d 208; *Neenan v Woodside Astoria Transp. Co.*, 261 NY 159.) IV. Affirming the First Department's decision would burden future courts, unsettle procedural rules, prejudice litigants, and increase costs with no commensurate benefits. (*Lubonty v U.S. Bank N.A.*, 34 NY3d 250.) V. This appeal is not moot because a favorable decision would eliminate an obstacle to appellate review of the merits. (*Matter of Veronica P. v Radcliff A.*, 24 NY3d 668; *Matter of New York State Commn. on Jud. Conduct v Rubenstein*, 23 NY3d 570.)

Smith, Gambrell & Russell, LLP, New York City (*John Van Der Tuin* and *Morgan V. Manley* of counsel), for respondent. I. Two trial courts and the Appellate Division all correctly found that The Dakota, Inc. is entitled to its legal fees in *Fletcher v The Dakota, Inc.* (Sup Ct, NY County, Dec. 14, 2017, Bluth, J., index No. 101289/11) under the proprietary lease. (*W.W.W. Assoc. v Giancontieri*, 77 NY2d 157; *Donohue v Cuomo*, 38 NY3d 1; *Schron v Troutman Sanders LLP*, 20 NY3d 430; *Matter of Freeman*, 34 NY2d 1; *Matter of DaimlerChrysler Corp. v Spitzer*, 7 NY3d 653.) II. JPMorgan Chase Bank, N.A. (Chase) had its day in court, both before Justice Lubell and in *Fletcher v The Dakota, Inc.* (Sup Ct, NY County, June 5, 2023, Bluth, J., index No. 101289/11) and, in any event, is bound by the court's decision in *Fletcher v The Dakota, Inc.* (Sup Ct, NY County, Dec. 14, 2017, Bluth, J., index No. 101289/11) because Chase is both the common-law and contractual privy of Alphonse Fletcher, Jr. (*Ryan v New York Tel. Co.*, 62 NY2d 494; *Buechel v Bain*, 97 NY2d 295; *Matter of Shea*, 309 NY 605; *Altegra Credit Co. v Tin Chu*, 29 AD3d 718; *Chase Nat. Bank v Norwalk*, 291 US 431.) III. The question of whether JPMorgan Chase Bank, N.A. (Chase) was required to intervene in *Fletcher v The Dakota, Inc.* (Sup Ct, NY County, Dec. 14, 2017, Bluth, J., index No. 101289/11) is now moot because Chase voluntarily sought intervention. (*Matter of Hearst Corp. v Clyne*, 50 NY2d 707; *Saratoga County Chamber of Commerce v Pataki*, 100 NY2d 801; *Onewest Bank, FSB v McKay*, 172 AD3d 887; *Judson Realty v First Park Assoc.*, 164 AD2d 767; *Cioffi v Town of Guilderland*, 124 AD2d 319.) IV. The sole question presented

by appellant's brief was not raised below and is therefore not reviewable. (*Lichtman v Grossbard*, 73 NY2d 792.)

OPINION OF THE COURT

RIVERA, J.

On this appeal, we must determine whether a lienholder nonparty to an action that resulted in a fee award against a debtor may challenge the legal basis of the judgment in a separate proceeding to recover those fees. We conclude that because the nonparty was neither joined nor required to intervene in the action against the debtor, it had no prior opportunity to challenge the award and thus is not barred from doing so in this proceeding. Therefore, we reverse the contrary order of the Appellate Division and remit to that Court for further proceedings.

I.

In 2001, Alphonse Fletcher, Jr. acquired certain property associated with two apartment units in a residential cooperative corporation, controlled by The Dakota, Inc. (the Dakota). The Dakota holds a perfected lien against that property. In 2008, JP Morgan Chase Bank, N.A. (Chase) approved a multimillion-dollar loan to Fletcher, which he secured by immediately assigning to Chase his rights, title, and interest in the property. Shortly thereafter, Fletcher, Chase, and the Dakota entered into an agreement whereby Chase recognized the Dakota's priority to the proceeds of any sale or subletting of Fletcher's apartments (the agreement).

In 2011, Fletcher sued the Dakota for, among other things, alleged racial discrimination (the Fletcher action). The Dakota counterclaimed for legal fees and costs, invoking article II, paragraph fifteenth of Fletcher's proprietary lease, which provides:

"If the Lessee shall at any time be in default hereunder, and the Lessor shall take any action against the Lessee based upon such default, or if the Lessor shall defend any action or proceeding (or claim therein) commenced by the Lessee, the Lessee will reimburse the Lessor for all expenses (including, but not limited to attorneys' fees and disbursements) thereby incurred by the Lessor, so far as the same are reasonable in amount, and the Lessor

shall have the right to collect the same as additional rent or damages.”

Supreme Court granted summary judgment to the Dakota in the Fletcher action. Thereafter, Supreme Court concluded that paragraph fifteenth authorized the award of attorneys’ fees and costs and entered judgment for the Dakota on its counterclaim.

While the Fletcher action was pending, and before Supreme Court issued its fee award on the Dakota’s counterclaim against Fletcher’s former law firm, petitioner Kasowitz, Benson, Torres & Friedman, LLP (Kasowitz), commenced this CPLR 5225 proceeding against Chase, the Dakota and Fletcher that is the subject of this appeal. Kasowitz sought the seizure and sale of Fletcher’s apartments to satisfy a judgment against Fletcher for unpaid legal fees. The Dakota answered, claiming, first, that it held an interest in Fletcher’s property arising from the fee judgment in the Fletcher action and, second, that this interest was superior to that held by Chase. Chase countered that the Dakota did not hold a superior lien because paragraph fifteenth authorized attorneys’ fees only in actions against the Dakota initiated by lessees in default and Fletcher was not in default when he sued the Dakota. In the alternative, Chase argued that if paragraph fifteenth were to apply to actions initiated by lessees not in default, the provision would be unconscionable.

In 2021, Supreme Court granted summary judgment to the Dakota, concluding that paragraph fifteenth “clearly and unambiguously” allowed the Dakota to recover attorneys’ fees from Fletcher (2021 NY Slip Op 34219[U], *6 [Sup Ct, NY County 2021]). The Appellate Division affirmed (209 AD3d 529 [1st Dept 2022]). The Appellate Division concluded, in relevant part, that Chase’s contentions amounted to an “impermissible collateral attack on the Dakota’s judgment” in the Fletcher action (*id.* at 530-531). The Court further stated that “[i]f Chase wants to vacate the Dakota’s judgment, it must move before ‘[t]he court which rendered [the] judgment’ ” (*id.* at 530, quoting CPLR 5015 [a]).

Chase simultaneously moved for leave to appeal to this Court and, in the Fletcher action before Supreme Court, to intervene and vacate the judgment. Chase explained in its motion for leave that it was pursuing this course to protect its rights if we were to deny leave. We granted Chase leave to appeal (39 NY3d

916 [2023]).¹ As for the Fletcher action, the Dakota opposed Chase’s motion, arguing, in part, that Chase failed to satisfy the requirements of CPLR 5015 (a) and that the motion was untimely. Before we granted leave, Supreme Court denied Chase’s motion in its entirety. The court concluded that given the Appellate Division’s decision, it would be unfair to find that Chase waited too long after entry of judgment to file for relief, but that Chase’s argument that the dispute fell outside paragraph fifteenth lacked merit.²

II.

As a threshold matter, we reject the Dakota’s argument that this appeal is moot because Chase already had “its day in court.” According to the Dakota, Chase seeks a third bite at the apple because in two separate actions—on the motion to vacate and intervene in the Fletcher action and in the Kasowitz action here—Supreme Court considered the merits of Chase’s arguments that paragraph fifteenth did not authorize the Dakota to obtain attorneys’ fees. The Dakota misunderstands the law and ignores that Chase seeks—and has not yet received—an unencumbered Appellate Division review of its challenge in *this* proceeding, and that a decision from our Court rejecting a collateral bar would allow for such review.

An appeal is not moot if “the rights of the parties will be directly affected by the determination of the appeal and the interest of the parties is an immediate consequence of the judgment” (*Matter of Hearst Corp. v Clyne*, 50 NY2d 707, 714 [1980]). To vacate the judgment in the Fletcher action, Chase must establish one of the statutory grounds enumerated in CPLR 5015 (a).³ Following the Appellate Division’s collateral estoppel holding in the matter on appeal here, Supreme Court

1. We subsequently denied the Dakota’s motion to dismiss the appeal as moot (41 NY3d 1011 [2024]).

2. Chase’s appeal in the Fletcher action has been stayed pending our decision here.

3. CPLR 5015 (a) provides:

“The court which rendered a judgment or order may relieve a party from it upon such terms as may be just, on motion of any interested person with such notice as the court may direct, upon the ground of:

“1. excusable default, if such motion is made within one year after service of a copy of the judgment or order with written notice of its entry upon the moving party, or, if the moving party has entered the judgment or order, within one year after such entry; or

(n. cont’d)

in the Fletcher action looked past these requirements to reach the merits of Chase's contractual arguments. However, on appeal, the Appellate Division may decline to do the same; it may conclude that Chase failed to satisfy the narrow grounds under CPLR 5015 for vacating a judgment, thus barring appellate review of Supreme Court's merits determination. A decision from us that Chase was not estopped from challenging the fee award and a remittal of the matter to the Appellate Division would provide a clear path to a merits appellate review and obviate any need for Chase to pursue its pending appeal of the CPLR 5015 (a) motion.⁴ Thus, our disposition of this appeal would have an immediate, legally significant effect upon the parties' rights, which means this appeal is not moot.

III.

[1] Turning to the central issue in this appeal, the Dakota contends that Chase is collaterally estopped from contesting that paragraph fifteenth authorized the fee judgment because: (1) as a secured lender, Chase had a continuing shared and common interest with Fletcher in the shares and lease that secured its loan; (2) when Chase made its loan, Chase recognized the Dakota's senior interest regarding the shares and lease; and (3) Chase had notice of the attorneys' fees due and of the priority of the Dakota's claim. We conclude that Chase is not barred in this matter from challenging the applicability of paragraph fifteenth and its liability for the fee awarded by Supreme Court in the Fletcher action.

Estoppel of an assignee turns on the particular interest they assigned because an assignee cannot transfer a greater interest than they hold (*see Postal Telegraph Cable Co. v Newport*, 247 US 464, 474-475 [1918] ["The ground upon which, and upon which alone, a judgment against a prior owner is held

"2. newly-discovered evidence which, if introduced at the trial, would probably have produced a different result and which could not have been discovered in time to move for a new trial under section 4404; or

"3. fraud, misrepresentation, or other misconduct of an adverse party; or

"4. lack of jurisdiction to render the judgment or order; or

"5. reversal, modification or vacatur of a prior judgment or order upon which it is based."

4. Chase represents that the separate appeals are "an accident of timing" and that, if it succeeds before this Court, it will seek to consolidate the appeals below and rely solely on the remand here to resolve the merits.

conclusive against (their) successor in interest, is that the estoppel runs with the property, that the grantor can transfer no better right or title than (they have), and that the grantee takes *cum onere*”]). As this Court held in *Gramatan Home Invs. Corp. v Lopez*, for an assignee to be bound by the actions of an assignor, “privity must have arisen *after* the event out of which the estoppel arises” (46 NY2d 481, 486 [1979] [emphasis added]). “Conversely, an assignee is not privy to a judgment where the succession to the rights affected thereby has taken place *prior to* the institution of the suit against the assignor” (*id.* at 487 [emphasis added]). “Doubts should be resolved against imposing preclusion to ensure that the party to be bound can be considered to have had a full and fair opportunity to litigate” (*Buechel v Bain*, 97 NY2d 295, 305 [2001]). It is undisputed that Fletcher assigned Chase an interest in his property in 2008 and that Fletcher initiated his action against the Dakota in 2011. The subsequent judgment in that action could not have defined the prior interest that Fletcher assigned to Chase. If the fee award dispute had arisen prior to Fletcher’s assignment of his interests to Chase, then Chase might well have “taken” that interest subject to the Dakota’s claim because Fletcher would have assigned his interest as so burdened. But that is not the case here.

The Dakota’s reliance on the 2008 agreement among Fletcher, Chase and the Dakota is misplaced because the agreement created a separate line of contractual privity among the three regarding the Dakota’s superior creditor status.⁵ The agreement binds Chase to an inferior creditor status as against the Dakota but does not prohibit Chase from challenging in the first instance the Dakota’s entitlement under the lease provision to a post-assignment fee award incident to the property. Thus, the Appellate Division erred in concluding that Chase’s current challenge to the enforcement of the Dakota’s fee judgment in the Fletcher action amounted to an impermissible collateral attack.

IV.

To the extent that the Appellate Division suggested that Chase was required to intervene in the Fletcher action to protect its interests, we disagree. Such requirement is incon-

5. The Dakota also asserts superior creditor status under UCC 9-322 (h) (1).

sistent with New York’s Civil Practice Law and Rules and with federal due-process principles.

The CPLR generally treats joinder as mandatory, but intervention as permissive. Section 1001 (a) of the CPLR requires joinder of persons “who might be inequitably affected by a judgment in the action.” Section 1012 (a) (2) permits—but does not require—persons who “may be bound by the judgment” to intervene as of right, provided, that they timely move to do so. Accordingly, other New York appellate courts have not treated intervention as a requirement for a nonparty to avoid collateral estoppel.⁶ That approach comports with the CPLR. Indeed, under this framework, the Dakota could have joined Chase as a party to the Fletcher action. It chose not to do so at its peril.

[2] Moreover, requiring intervention here would violate Chase’s due-process rights. The Dakota maintains that Chase had notice of the Fletcher action. However, notice alone is insufficient to preclude nonparty Chase from contesting the Dakota fee judgment in a separate proceeding. The United States Supreme Court has explained:

“A party’s representation of a nonparty is ‘adequate’ for preclusion purposes only if, at a minimum: (1) The interests of the nonparty and [their] representative are aligned; and (2) either the party understood [themselves] to be acting in a representative capacity or the original court took care to protect the interests of the nonparty. In addition, adequate representation sometimes requires (3) notice of the original suit to the persons alleged to have been represented” (*Taylor v Sturgell*, 553 US 880, 900 [2008] [citations omitted]).

To conclude that Chase essentially waived its challenge to the judgment in the Fletcher action by failing to intervene timely would treat Fletcher as Chase’s representative in that proceed-

6. See e.g. *Gentlecare Ambulatory Anesthesia Servs. v MVAIC*, 64 Misc 3d 130(A), 2019 NY Slip Op 51039(U), *2 (App Term, 2d Dept, 2d, 11th & 13th Jud Dists 2019); *J.K.M. Med. Care, P.C. v Ameriprise Ins. Co.*, 54 Misc 3d 54, 56 (App Term, 2d Dept, 2d, 11th & 13th Jud Dists 2016); *Ideal Med. Supply v Mercury Cas. Ins. Co.*, 39 Misc 3d 15, 16 (App Term, 1st Dept 2013); *Smooth Dental, P.L.L.C. v Preferred Mut. Ins. Co.*, 37 Misc 3d 67, 68 (App Term, 2d Dept, 2d, 11th & 13th Jud Dists 2012); *Mid Atl. Med., P.C. v Victoria Select Ins. Co.*, 20 Misc 3d 143(A), 2008 NY Slip Op 51758(U), *2 (App Term, 2d Dept, 2d & 11th Jud Dists 2008).

ing. However, Fletcher's and Chase's respective interests were not aligned because Fletcher had no interest in whether Chase or the Dakota bore the cost of the judgment, or which among them had superior creditor status in an action to recover the fees. Indeed, Fletcher represented to Supreme Court in this litigation that he no longer has a legal interest in this proceeding. Nor is there any indication that Fletcher understood himself to be acting in a representative capacity for Chase in the Fletcher action or that that Supreme Court "took care" to protect Chase's interest (*id.* at 900). Fletcher therefore could not bind Chase as its representative in his action against the Dakota.⁷

Accordingly, the order of the Appellate Division should be reversed, with costs, and the matter remitted to the Appellate Division for further proceedings in accordance with this opinion.

Chief Judge WILSON and Judges SINGAS, CANNATARO, TROUTMAN, HALLIGAN and CERESIA* concur. Judge GARCIA took no part.

Order reversed, with costs, and matter remitted to the Appellate Division, First Department, for further proceedings in accordance with the opinion herein.

7. [2] Lower court cases suggesting that mere unity of interest between a party and a nonparty in one action suffices to bind the nonparty in a subsequent action are inconsistent with *Taylor* and, to that extent, should not be followed (see e.g. *Altegra Credit Co. v Tin Chu*, 29 AD3d 718, 720 [2d Dept 2006]).

* Designated pursuant to NY Constitution, article VI, § 2.

[258 NE3d 1159, 232 NYS3d 385]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DAVID
VAUGHN, Appellant.

Argued October 17, 2024; decided November 26, 2024

PROCEDURAL SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered June 14, 2023. The Appellate Division affirmed a judgment of the Supreme Court, Kings County (Suzanne M. Mondo, J.), which had convicted defendant, upon a jury verdict, of robbery in the first degree and burglary in the second degree.

People v Vaughn, 217 AD3d 781, affirmed.

HEADNOTES

Crimes — Identification of Defendant — Expert Testimony on Reliability of Eyewitness Identifications

1. Whether to admit expert testimony concerning the factors that affect the reliability of eyewitness identifications rests within the discretion of the trial court, which balances the probative value of the proffered testimony against the prospect of trial delay, undue prejudice to the opposing party, confusing the issues or misleading the jury. The presence of evidence that corroborates the eyewitness identification is not a determinative factor in deciding an application to admit this sort of expert testimony, nor is it the first part of a rigid two-step process. To the extent the holding in *People v LeGrand* (8 NY3d 449 [2007]) has been misinterpreted to suggest there is such a two-step process, those cases should not be followed (*see e.g. People v Santiago*, 17 NY3d 661, 669 [2011]). Courts should not apply any two-step process that references corroboration or credibility as gateway factors for the exercise of discretion by the trial court.

Crimes — Identification of Defendant — Expert Testimony on Reliability of Eyewitness Identifications — Exercise of Discretion in Limiting Testimony to Cross-Race Effect

2. In a criminal prosecution in which defendant, on the third day of trial testimony and for the first time, sought a ruling allowing expert testimony on cross-race effect and 10 additional factors that affect the reliability of eyewitness identifications, Supreme Court did not abuse its discretion in granting defendant's application only in part and limiting the expert testimony to the topic of cross-race effect. Although the court was familiar with the law concerning cross-race effect from a then-recent decision, the same could not be said for the rest of the factors. Defendant failed to provide a written application or legal memorandum at the court's request or cite case law to satisfy the prerequisites for the admission of scientific testimony. Even after the court made its preliminary ruling, defendant had the opportunity to renew his application, supplement it with legal support, or narrow it to some of the more relevant or legally supportable topics. Defendant may have

dispelled the court's stated concerns at least with respect to some of the factors if he had responded to the court's direct request for case law supporting his position. The court expressed that it understood the importance of the issue and that it was sensitive to defendant's right to present a defense. The court also expressed that it would have been amenable to delaying trial for a *Frye* hearing and a full briefing had defendant made his application prior to jury selection. Under the circumstances, there was no abuse of discretion in the court's balancing of the proffered testimony's probative value against the prospect of causing undue prejudice, confusing the issues, misleading the jury, or unduly delaying the proceedings.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Evidence §§ 318, 321–322, 330, 334, 346, 348, 350; AM JUR 2d Expert and Opinion Evidence §§ 20, 23, 265–266, 269–271.
CARMODY-WAIT 2d Particular Types of Evidence §§ 194:180, 194:185–194:186, 194:200, 194:214.
LAFAYE, ET AL., CRIMINAL PROCEDURE (4th ed) §§ 7.1, 7.5.
NY JUR 2d Criminal Law: Procedure §§ 2063–2064, 2261–2262, 2265; NY JUR 2d Evidence and Witnesses §§ 669, 676.

ANNOTATION REFERENCE

Admissibility, at criminal prosecution, of expert testimony on reliability of eyewitness testimony. 46 ALR4th 1047.

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POINTS OF COUNSEL

Patricia Pazner, Appellate Advocates, New York City (Sam Feldman of counsel), for appellant. When appellant's trial turned on identifications by two eyewitnesses that were allegedly corroborated only by low-quality surveillance video and a nondescript brown sweatshirt, the court erred in excluding expert testimony on relevant factors affecting the reliability of eyewitness identifications. (*Holmes v South Carolina*, 547 US 319; *People v Cerda*, 40 NY3d 369; *People v McCullough*, 27

NY3d 1158; *People v LeGrand*, 8 NY3d 449; *People v Boone*, 30 NY3d 521.)

Eric Gonzalez, District Attorney, Brooklyn (Melissa Owen and Leonard Joblove of counsel), for respondent. The trial court properly exercised its discretion by limiting the scope of expert testimony regarding the reliability of eyewitness identification evidence. (*People v Powell*, 37 NY3d 476; *People v Young*, 7 NY3d 40; *People v McCullough*, 27 NY3d 1158; *People v LeGrand*, 8 NY3d 449; *People v Perdue*, 41 NY3d 245.)

Proskauer Rose LLP, New York City (Russell L. Hirschhorn, Portia S. Proctor and Dakshina H. Chetti of counsel), and *The Innocence Project, Inc., New York City (Matthew A. Wasserman and Lauren Gottesman of counsel)*, for The Innocence Project, Inc., amicus curiae. I. Expert testimony about the science of eyewitness identification and memory helps safeguard against the risk of wrongful convictions. (*People v Boone*, 30 NY3d 521; *Perry v New Hampshire*, 565 US 228.) II. Eyewitness expert testimony should be admitted if identification is at issue and estimator or system variables are implicated. (*People v LeGrand*, 8 NY3d 449; *People v McCullough*, 27 NY3d 1158; *People v Lee*, 96 NY2d 157; *People v Oddone*, 22 NY3d 369; *People v Perdue*, 41 NY3d 245.) III. Expert testimony about stress, weapon focus, and witness confidence would have aided the jury in assessing the evidence. (*People v Abney*, 13 NY3d 251.)

The Legal Aid Society, New York City (Philip Desgranges and Shona Hemmady of counsel), for The Legal Aid Society, amicus curiae. I. The corroboration rule is unworkable because it creates more questions for this Court and the courts below it. (*People v LeGrand*, 8 NY3d 449; *People v McCullough*, 27 NY3d 1158; *People v Powell*, 27 NY3d 523; *Holmes v South Carolina*, 547 US 319; *People v Bing*, 76 NY2d 331.) II. The corroboration rule is illogical and no longer serves the ends of justice. (*People v McCullough*, 27 NY3d 1158; *Holmes v South Carolina*, 547 US 319; *People v LeGrand*, 8 NY3d 449; *People v Oddone*, 22 NY3d 369.) III. The corroboration rule conflicts with a more embracing and sounder doctrine that the jury should determine the importance of relevant evidence. (*People v Young*, 7 NY3d 40; *People v Lee*, 96 NY2d 157; *Barefoot v Estelle*, 463 US 880; *People v Buie*, 86 NY2d 501; *Florez v Central Intelligence Agency*, 829 F3d 178.)

OPINION OF THE COURT

TROUTMAN, J.

Whether to admit expert testimony concerning the factors that affect the reliability of eyewitness identifications rests within the discretion of the trial court, which balances the probative value of the proffered testimony against “the prospect of trial delay, undue prejudice to the opposing party, confusing the issues or misleading the jury” (*People v Primo*, 96 NY2d 351, 355 [2001]; see *People v McCullough*, 27 NY3d 1158, 1161 [2016]; *People v Lee*, 96 NY2d 157, 160 [2001]). The presence of evidence that corroborates the eyewitness identification is not a determinative factor in deciding an application to admit this sort of expert testimony, nor is it the first part of a rigid two-step process (see *McCullough*, 27 NY3d at 1161). To the extent our holding in *People v LeGrand* (8 NY3d 449 [2007]) has been misinterpreted to suggest there is such a two-step process, those cases should not be followed (see e.g. *People v Santiago*, 17 NY3d 661, 669 [2011]). Here, although the Appellate Division referenced an incorrect framework, we nevertheless hold that Supreme Court did not abuse its discretion in granting defendant’s oral, midtrial application only in part and limiting the testimony of defendant’s expert to the topic of cross-race effect (217 AD3d 781, 783 [2d Dept 2023]). Therefore, we affirm the Appellate Division’s order.

I.

On May 9, 2016, two men entered a Brooklyn warehouse during working hours, one of them displaying a badge on a lanyard that he wore over a plain, brown sweatshirt. Inside the warehouse, the men were shown to an office. The man with the badge entered the office, closed the door, and drew a firearm, while the other man remained outside the door. The gunman, a Black man, forced a victim, an Asian man, to surrender \$3,000 cash, and the robbers left. That victim and a second victim, who is also Asian, separately called 911 as they exited the warehouse, and for a time they pursued the fleeing robbers through the streets.

Surveillance footage depicts the robbery essentially in its entirety, as well as the robbers’ entry into and exit from the warehouse. Although the footage is of fairly good quality, the quality is not so good that the robbers’ facial features can be clearly discerned.

Four days later, the first victim was standing at a loading dock when he saw defendant and another man walk by. The

victim recognized those men as the robbers, noting that they were wearing the same clothes that the robbers wore during the robbery. In defendant's case, he wore a plain, brown hooded sweatshirt. The victim would later testify at trial that he and defendant locked eyes, and then defendant put his hood up. The victim hailed a passing police car and guided the officers down the path that the robbers took during their earlier flight from the warehouse. Shortly thereafter, the victim spotted defendant and his companion and identified them as the robbers. Defendant was arrested and brought to the precinct, where the sweatshirt was photographed inside out, vouchered, and placed in an evidence bag. By the time of trial, the sweatshirt, which had been wet from the rain when bagged, was destroyed by mold.

Defendant was charged with, inter alia, robbery in the first degree (Penal Law § 160.15 [4]), and the matter proceeded to a jury trial. After the parties finished selecting a jury, they delivered their opening statements, and the People called their first two witnesses before the court adjourned for a holiday weekend. Testimony resumed five days later. On the morning of the sixth day, the court put on record that defense counsel called chambers late on the day the court adjourned for the holiday weekend and stated that he intended to call an expert to testify about cross-race effect.¹ Defense counsel confirmed this and added that the parties received an email from chambers, approximately two weeks before trial commenced, asking if the defense intended to present expert testimony on cross-race effect. Defense counsel had responded to the court's email by stating that he "may intend" to do so.

Defense counsel then stated, for the first time, his intention to elicit expert testimony not only on cross-race effect, but also on several other factors that affect the reliability of eyewitness identification, "such as" the reliability of showup identification procedures, the effect of stress, weapon focus, the duration of the encounter, distance and lighting, the use of disguises, and memory decay. Asked by the court for "something in writing," defense counsel acknowledged that he had nothing prepared. The court stated that it was important for defense counsel to identify all the factors on which he intended to present

1. Cross-race effect, one of the factors that affect the reliability of eyewitness identifications, is based on scientific studies demonstrating that the likelihood of misidentification is higher when the eyewitness and the defendant are of different races (see *People v Boone*, 30 NY3d 521, 528 [2017]).

testimony because there may be legal authority establishing whether they are generally accepted in the scientific community, obviating the need for a *Frye* hearing to determine that issue (*see generally Frye v United States*, 293 F 1013 [DC Cir 1923]). The court recognized that the general acceptance of cross-race effect had been established in *People v Boone* (30 NY3d 521, 528-529 [2017]) and asked if defense counsel had case law supporting the general acceptance of the additional factors about which he sought to elicit expert testimony. Defense counsel did not have any case law to provide but offered to list the factors and supply case law later, prompting the court to admonish him for arriving late: “[T]his is why I asked everybody to be here at 10:30 this morning because I knew this was an outstanding matter and we would be spending some time on it. Now, it’s after 11:00.” Defense counsel apologized and listed a total of 11 factors for the court’s consideration: the eight listed previously plus the influence of private actors, the effect of multiple perpetrators, and the correlation between confidence and accuracy.

The court again emphasized to defense counsel the importance of providing case law and, referring to *Boone*, opined that the additional factors such as the effect of stress and weapon focus were within the ken of an average juror. Thus, the court indicated that it would likely not allow testimony as to those factors unless defense counsel provided case law to the contrary. The People asked the court to preclude the expert testimony on the ground that defendant’s application was untimely, but at that point the court stated that it was “not likely” to deny the application on that ground. The People further argued that the expert testimony should be excluded because the identification was corroborated by the surveillance video and clothing. Defense counsel argued that the jury could not conclude that defendant was the culprit based on the video and clothing alone and that the expert testimony would be informative for a jury, and he asked “at least” for testimony on cross-race effect.

The court chided defense counsel for failing to make a motion in limine:

“This case is a year old. This has never been raised before. We could have had a hearing on this. I could have had both sides brief this issue and, here we are, with a jury in the back, in the middle of trial,

and you are . . . telling me that you want to call this expert witness . . . [Y]ou were in front of me at least two weeks ago—ten days ago. It could have been brought up before we ever picked a jury. We would have delayed on picking the jury. I would have seen this as a very significant issue.”

Testimony resumed, and at the end of the day the court issued a “preliminary ruling” that it was “not likely” to permit testimony on any factor other than cross-race effect. The court stated that it had read several cases and that it had discretion to admit or exclude the testimony because the identification was corroborated by the clothing and video. The court added: “[T]he other issue is . . . you really needed to raise this issue a while ago, and perhaps it might have been a different result. But getting this information in the middle of the People’s case that you’re calling a witness . . . we’re doing a lot of catch up here.” The court stated that it could have denied defendant’s application in its entirety but explained that it was important to afford defendant the “opportunity to put on a defense.”

Trial proceeded. Defendant neither renewed his application nor supplied case law to support it. The court adhered to its preliminary ruling, and defendant’s expert testified about cross-race effect.

The jury found defendant guilty, and the court sentenced him as a persistent felony offender to an indeterminate prison term of 20 years to life. The Appellate Division affirmed, concluding that “the People presented sufficient corroborating evidence connecting the defendant to the crime to obviate the need for the additional inquiry required by *People v LeGrand*,” and that “[u]nder the circumstances of this case, the court providently exercised its discretion in limiting the testimony” (217 AD3d at 783).

A Judge of this Court granted leave to appeal (40 NY3d 999 [2023]).

II.

The “‘single greatest cause of wrongful convictions’” is mistaken eyewitness identification (*Boone*, 30 NY3d at 527). Although eyewitness identifications are often reliable (*see Young v Conway*, 698 F3d 69, 80 [2d Cir 2012]; *Boone*, 30 NY3d at 538 [Garcia, J., concurring]), the prevalence of eyewitness misidentifications, the danger they pose to the “truth-seeking function and integrity of our justice system,” and the need to

mitigate that danger are so beyond dispute and so well established, in New York State and elsewhere, that we hardly need to discuss the matter further (*Boone*, 30 NY3d at 528 [majority]). Situational and environmental factors that affect the reliability of eyewitness identifications have been the subject of scientific study for decades, and defendants in criminal proceedings, likewise for decades, have sought to present the testimony of experts in the “scientific data concerning certain factors involved in perception and memory” (*People v Mooney*, 76 NY2d 827, 831 [1990, Kaye, J., dissenting]; see *LeGrand*, 8 NY3d at 452). We have repeatedly “‘encouraged’” the trial courts to admit this sort of expert testimony in appropriate cases (*Santiago*, 17 NY3d at 669, quoting *People v Drake*, 7 NY3d 28, 31 [2006]).

Questions of the admissibility and scope of expert testimony concerning the factors that affect the reliability of eyewitness identifications in a particular case are addressed to the trial court’s sound discretion (see *People v Berry*, 27 NY3d 10, 19-21 [2016]; *People v Abney*, 13 NY3d 251, 259-260, 268 [2009]; see also *People v Cronin*, 60 NY2d 430, 433 [1983]). Courts deciding those questions apply traditional evidentiary principles (see *McCullough*, 27 NY3d at 1161), which require the courts to weigh the testimony’s probative value against its prospect of causing undue prejudice to the opposing party, confusing the issues, misleading the jury, or unduly delaying trial (see *People v Perdue*, 41 NY3d 245, 252 [2023]; *McCullough*, 27 NY3d at 1161).

On an application to admit expert testimony of this sort, the trial court may need to determine whether the expert testimony is beyond the ken of the average juror² or generally accepted in the scientific community (see *Lee*, 96 NY2d at 162). Indeed, in *Abney*, we reversed and ordered a new trial where the trial court abused its discretion in denying an application to present expert testimony on several factors, concluding that the court should have held a *Frye* hearing to resolve the issue of general acceptance (see *Abney*, 13 NY3d at 268). While general accep-

2. Generally, the scientific studies concerning the factors that affect the reliability of eyewitness identifications are beyond the ken of the average juror (see *Lee*, 96 NY2d at 162). Although that may not be true of every conceivable such factor, we have yet to find testimony of this sort within the ken of the average juror, and we have never upheld the exclusion of this kind of testimony on the ground that it was within the ken of the average juror (cf. *Abney*, 13 NY3d at 260, 268).

tance may be established at a *Frye* hearing, a hearing is not necessary in all cases (see *People v Wesley*, 83 NY2d 417, 426 [1994]). General acceptance may be established through legal precedent (see *Matter of Lahey v Kelly*, 71 NY2d 135, 144 [1987]; *Boone*, 30 NY3d at 528 [considering lower court opinions to support the conclusion that cross-race effect is generally accepted in the scientific community]; cf. *People v Williams*, 35 NY3d 24, 39 [2020] [holding that the court abused its discretion as a matter of law in admitting DNA evidence without a *Frye* hearing because the cases on which the court relied did not adequately assess whether the evidence was generally accepted in the scientific community]). Where the defendant fails to demonstrate that a topic of the proffered expert testimony is generally accepted in the relevant scientific community, the trial court should exclude or limit the testimony as appropriate (see *Berry*, 27 NY3d at 19).

Courts must not decide whether evidence is admissible based solely on the existence or strength of corroborating evidence (see *People v Oddone*, 22 NY3d 369, 379 [2013]; see also *Holmes v South Carolina*, 547 US 319, 329-330 [2006]). Nor should courts require adequate corroborating evidence as a prerequisite to weighing other considerations pertinent to admissibility (see *McCullough*, 27 NY3d at 1161). Rather, courts should be guided by “whether the proffered expert testimony ‘would aid a lay jury in reaching a verdict’” (*Lee*, 96 NY2d at 162; see *Abney*, 13 NY3d at 266).

Our decision in *People v LeGrand* does not say otherwise. In that case, we held that the court abused its discretion in excluding testimony concerning three factors that affect the reliability of eyewitness identification—the correlation between confidence and accuracy, the effect of postevent information, and confidence malleability (see 8 NY3d at 452, 458; see also *McCullough*, 27 NY3d at 1161). In so holding, we observed that the prerequisites for the admission of scientific evidence were satisfied—i.e., the testimony concerning the three factors was “relevant” to assessing the accuracy of the eyewitness identification in that particular case; the testimony was “based on principles that are generally accepted within the relevant scientific community”; the testimony was “proffered by a qualified expert”; and the topic of the testimony was “beyond the ken of the average juror” (*LeGrand*, 8 NY3d at 452). Although we also considered that there was “little or no corroborating evidence connecting the defendant to the crime,” the “main issue” in

LeGrand did not involve corroboration at all, but instead concerned whether the defendant had established at the *Frye* hearing that the testimony was generally accepted in the scientific community (*id.*).

[1] To be clear, the considerations enumerated in *LeGrand* do not displace the traditional principles under which courts weigh the probative value of the testimony against the prospect of delay, prejudice, or confusion (*see McCullough*, 27 NY3d at 1161). Courts should not apply any two-step process that references corroboration or credibility as gateway factors for the exercise of discretion by the trial court.

III.

[2] Here, the court did not abuse its discretion in granting defendant's application only in part and limiting the expert testimony to the topic of cross-race effect. The record establishes that the court reached its determination by weighing the probative value of the testimony against, among other things, the prospect of unduly delaying trial (*see Perdue*, 41 NY3d at 252).³

On the morning of the third day of testimony, for the first time, defendant sought a ruling allowing expert testimony on cross-race effect and 10 additional factors that affect the reliability of eyewitness identifications. Although the court was familiar with the law concerning cross-race effect from our then-recent decision in *Boone*, the same cannot be said for the rest of the factors. Defendant failed to provide a written application or legal memorandum at the court's request or cite case law to satisfy the prerequisites for the admission of scientific testimony. Even after the court made its "preliminary ruling," defendant had the opportunity to renew his application, supplement it with legal support, or narrow it to some of the more relevant or legally supportable topics (*see Abney*, 13 NY3d at 259-260, 268). Defendant may have dispelled the court's stated concerns at least with respect to some of the factors if he had responded to the court's direct request for case law supporting his position. For example, our precedent establishes that the correlation between confidence and accuracy is generally accepted in the relevant scientific community and beyond the ken

3. The record belies the dissent's suggestion that trial delay concerns, specifically those occasioned by a *Frye* hearing and a full briefing, were not an "actual basis" of the court's ruling (dissenting op at 215).

of the average juror, both of which are necessary to demonstrate the testimony's admissibility (see *LeGrand*, 8 NY3d at 452). Defendant did none of these things.

We cannot conclude that a court abused its discretion in excluding or limiting expert testimony of this sort on such a perfunctory application brought at this juncture of the proceedings (see *Santiago*, 17 NY3d at 666-667 [reversing where defendant moved before trial and renewed motion after a different justice was assigned to the case]; *Abney*, 13 NY3d at 259-260 [reversing where defendant moved before jury selection, the court denied as premature with leave to renew, and defendant renewed motion after the People rested]; *LeGrand*, 8 NY3d at 453 [reversing where defendant moved prior to retrial]). Indeed, the cases where we have reversed illustrate the importance of a timely motion because admissibility in those cases hinged in part on the outcome of a *Frye* hearing that the court was able to hold before trial (see *LeGrand*, 8 NY3d at 458), should have held (see *Abney*, 13 NY3d at 268), or may have found necessary to hold (see *Santiago*, 17 NY3d at 672). Of course, the timing of the motion is not dispositive, and indeed is less crucial, if the defendant establishes that a *Frye* hearing is unnecessary under precedent recognizing that the proposed testimony is generally accepted in the scientific community (see *Lahey*, 71 NY2d at 144), but defendant made no attempt to do so here.⁴

Even on appeal, defendant makes no attempt to demonstrate that all or even most of the factors concerning which he sought to elicit expert testimony satisfy *Frye*'s general acceptance standard. Defendant now focuses on three factors that he perceives to be most easily established as the subject of admissible expert testimony—the effect of stress, weapon focus, and the correlation between confidence and accuracy. Our dissenting colleague does the same. By focusing now on the most legally supportable factors and providing support for their admissibility, defendant does what he could and perhaps should have done in the trial court. His failure to have done so in the

4. Contrary to the dissent's assertion, our decision does not incentivize defense attorneys to request *Frye* hearings if general acceptance can be established without such a hearing (see dissenting op at 214-215). Our decision should incentivize defense attorneys to prepare their motions before trial, provide trial court judges with written submissions supporting their positions, including citation to relevant authority, and address as appropriate any concerns raised by the trial courts concerning those motions.

face of the trial court's stated concerns and direct request for case law is precisely the problem here. Thus, contrary to the dissent, defendant fails even on appeal to obviate the need to conduct a *Frye* hearing for the trial court to rule on the entirety of the application. Moreover, although our dissenting colleague "would expect" the court first to "hear from counsel on the cause and potential length of any delay" (dissenting op at 214), we presume that this judge was aware of the anticipated length of delay a midtrial *Frye* hearing would create.

The court expressed that it understood the importance of the issue and that it was sensitive to defendant's right to present a defense. The court also expressed that it would have been amenable to delaying trial for a *Frye* hearing and a full briefing had defendant made his application prior to jury selection. In the end, the court exercised its discretion by granting defendant's application in part and limiting the expert's testimony to the topic of cross-race effect. We emphasize that the timing of the application and the prospect of trial delay are not dispositive considerations. The court could have delayed the jury trial and held the *Frye* hearing or granted the application in its entirety if defendant had been able to establish that a *Frye* hearing was not required. Under the circumstances, however, especially given defense counsel's failure to submit a written application supported by legal authority despite the court's request for that information, we cannot say that there was an abuse of discretion in the court's balancing of the proffered testimony's probative value against the prospect of causing undue prejudice, confusing the issues, misleading the jury, or unduly delaying the proceedings.

Accordingly, the order of the Appellate Division should be affirmed.

RIVERA, J. (dissenting). Mistaken eyewitness identifications are the leading cause of wrongful convictions. There is a scientific consensus that various factors—including the three raised in this appeal—impact memory in a way that increases the risk of witness misidentification. As the Court has repeatedly recognized, expert testimony regarding factors that decrease the reliability of eyewitness identifications minimizes the grave risk of incarcerating innocent people. Despite acknowledging both that wrongful convictions are a real occurrence and that expert testimony can help jurors understand counterintuitive subjects, the majority decides that judicial economy is more important than a defendant's constitutional right to present a

defense (*see* majority op at 201). According to the majority, vague concerns about trial delay alone are sufficient to preclude relevant, scientifically-sound expert testimony on the unreliability of eyewitness identification. That conclusion is unprecedented. It also has no support in this record, where the trial court rejected defendant's expert testimony, not as untimely, but as unnecessary and, accordingly, made neither factual findings pertaining to any possible delay nor a ruling that the probative value of the evidence was outweighed by the danger that its admission would prolong the trial to an unreasonable extent without any corresponding advantage (*see People v Davis*, 43 NY2d 17, 27 [1977]).

Finally, the majority reaffirms a fundamental error in the application of the corroboration rule by again permitting a court to credit the very eyewitness testimony contested by the proffered expert opinion even though questions concerning the credibility and reliability of such evidence "have traditionally been reserved for the trier of fact" (*Holmes v South Carolina*, 547 US 319, 330 [2006]). Crediting such testimony before the defendant has an opportunity to test its strength before the factfinder—through cross-examination aided by expert opinion—creates a significant risk of wrongful conviction and does not rationally serve the ends of justice. Therefore, I would reverse and order a new trial.

I.

Defendant was tried before a jury for, among other counts, robbery and burglary arising from an armed theft at a warehouse. No forensic evidence linked defendant to the crime and the prosecution's case therefore depended largely on the testimony of two eyewitnesses working at the warehouse who identified defendant as the gunman. The eyewitnesses are Asian men and defendant is Black. The defense was that the eyewitnesses mistakenly identified him.

Pretrial, the court asked defense counsel if he intended to move for the presentation of expert testimony regarding cross-racial effects on the reliability of eyewitness identifications. Defense counsel responded that he "may intend" to do so and later clarified that this meant he was "trying to find" an expert who was able to take the case and willing to accept the modest rates paid to expert witnesses who testify on behalf of indigent defendants. A week later, defense counsel confirmed his intent

to call an expert. On the following business day, the trial court agreed with the prosecution that his request “can wait” because it “[did] not involve” the prosecution witness testifying that day. During an in-court colloquy the next day,¹ defense counsel specified his intent to present expert testimony on cross-race effects and a host of other factors that diminish the reliability of eyewitness identifications, including those which he presents on appeal: the witness’s “stress,” “weapon focus,” and “confidence relative to . . . accuracy.”

In response, the trial court expressed doubt about whether “the jurors need[ed] an expert to explain . . . that it might be stressful during a crime if there is a gunpoint robbery.” Defense counsel explained that “an expert would be able to clarify how the human mind works under stress” and that the lay jurors were unaware of “how stress can affect a witness’s perception under certain circumstances.” Regarding overconfidence, counsel explained that “there are witnesses that will swear and testify that they are 100 percent sure, they have a tremendous amount of confidence as to their identification, but that does not mean that the identification was accurate.”

The trial court indicated that it would permit expert testimony on cross-racial identifications, but unless the defense supplied it with “case law,” would not permit expert testimony on the effects of stress, weapon focus, and overconfidence because those other subjects were “all within the k[e]n of a juror using their good common sense.” The prosecution protested that the court should have barred defendant from calling an expert on cross-racial effects as well, arguing—much like the majority here posits concerning the other factors—that the defense’s application was ill-timed. The trial court “chided defense counsel for failing to make a motion in limine,” as the majority recounts (majority op at 195), but nonetheless over-

1. As the majority observes, the trial court described defense counsel’s application as having come “‘in the middle of trial’” and “‘in the middle of the People’s case’” (majority op at 195-196), characterizations that the majority endorses (*see id.* at 193, 201). However, the record shows that the issue of the defense’s application came up while the prosecution was presenting the second of its eight witnesses at which point the defense was told the application “can wait.” The trial court then permitted defense counsel to flesh out his application the following day after the prosecution finished presenting its third witness. Thus, if the trial court was unfamiliar with the parameters of the application until the middle of the prosecution’s case, that was of its own choosing. Either way, the application certainly did not come “midtrial” (majority op at 193, 201). And it certainly preceded the testimonies of the two eyewitnesses to which the expert’s testimony pertained.

ruled the prosecution's objection and made clear that defense counsel's timing was not the driver of its decision, commenting that it was "not likely to grant [the prosecution's] application" to preclude the expert "based on a timeliness issue." Defense counsel also reminded the trial court that he had indicated pretrial that he might call an expert witness, and explained that any delay in specifying which expert was attributable to his difficulty locating an expert willing to accept the fee rates set by County Law § 18-b.

The prosecution persisted in its effort to preclude the testimony altogether on the ground that in *People v Boone* (30 NY3d 521 [2017]), where we first approved of the admission of expert testimony on cross-racial effects, "there was no other corroborating evidence," unlike here, the prosecution continued, where there was "more than one witness who was involved," along with surveillance video. Defense counsel countered that part of the prosecution's corroborating evidence was another eyewitness whose identification raised the same cross-racial concern—i.e., an Asian male identifying a Black defendant and that the prosecution's "corroborating evidence would assume that the jury has to take" the corroborating evidence based on an initial presentation without further consideration. The court agreed with the prosecution that its case was "not relying just on the witnesses" because of the surveillance video, "where the jury can have the opportunity to look at the videotape and look at the defendant" and further commented that the surveillance video was "powerful."

Later, the trial court reiterated what it termed its earlier "preliminary ruling" that it would permit expert testimony solely on cross-racial identifications and not "anything else." The trial court also informed the parties that it had independently researched the law in this area. Specifically, the trial court explained that it had "been reading a number of cases . . . [o]n this identification testimony," and, based on that case law, concluded that "it's really in the discretion of the [c]ourt with respect to denying it when it is corroborated by other evidence in the case, and there is corroboration for the identification through the clothing of the defendant, as well as a videotape."

The prosecution's case relied primarily on the testimonies of two eyewitnesses, J. and C., each of whom identified defendant in court as one of the men who robbed them—C. for the first time. One victim described the man who entered the office as a

six-foot tall Black man “in his mid 40s, . . . had a hat on,” and “pulled out a silver gun.” The other victim pegged his height at six feet, two inches with “facial hair, [a] goatee,” and a “[h]unched-over posture,” and described him as wearing a brown hoodie, blue jeans, red headphones, and a silver shield around his neck. Both victims described the man who remained outside the door—the codefendant—as a shorter Black male, who one of them recalled wearing a navy-blue fleece jacket. The in-court descriptions tracked their respective descriptions to the investigating officers after the robbery. Neither victim ever described either of the men as missing a bottom tooth.

The prosecution also presented video from inside the warehouse that captured the robbery committed by two robbers—one holding a gun and wearing what appears to be a brown sweater—over the course of roughly two minutes. But the video does not clearly depict their faces. The prosecution also presented evidence that defendant was wearing a brown sweater when he was arrested and presented a photograph of the sweatshirt turned inside out.

For his part, defense counsel introduced evidence casting doubt on the eyewitnesses’ identifications. During cross-examination J.—who, four days after the robbery, spotted two men who he “had a feeling” were the “two guys” who robbed him and contacted police—confirmed that he “was not 100 percent sure” at that point and that he had made this guess from 30 to 35 feet away. The defense also introduced a meteorologist, who testified that a quarter inch of rain fell nearby at John F. Kennedy International Airport that day, with rainfall peaking between 5:00 and 6:00 p.m., when the airport reported fog. Defense counsel also called a police officer who was present for J.’s identification of defendant four days after the robbery, who recalled J. telling the officers he was sure the two men were the perpetrators “because [defendant] still ha[d] the brown sweater on” without mentioning any other distinctive features such as defendant’s face or hair.

The defense also introduced a photo of defendant taken before the robbery, which showed that he had a gap in his lower front teeth where one or two teeth were missing, and later had defendant show his missing teeth to the jury. Finally, the defense expert also testified, as limited by the court’s ruling, solely on the questionable reliability of cross-racial identifications. He explained that there is an “often replicated or repeated finding” that people are “worse at identifying

members of another race or ethnicity when we are talking about stranger identification” and that this cross-racial effect reduces “the likelihood that someone can accurately identify an unfamiliar strange face after a single exposure to that face.”

Defense counsel argued during his summation that defendant was “charged with something he did not do . . . [a]ll because he’s wearing what appears to be a brown sweatshirt,” and observed that brown is “a very common color,” the sweatshirt itself had been destroyed by mold and, since the only available photograph showed it turned inside out, the jury could not see whether it had any distinctive features like a logo. He also commented on the “terrible” viewing conditions under which J. identified defendant four days after the robbery based on his wearing a similar, plain brown sweatshirt at the time. He urged the jury to skepticize the identifications because “[t]his is a very stressful situation for somebody [who] is getting robbed with a gun.” He also reminded them that, although defendant had “a prominent missing bottom tooth” prior to the date of the robbery, the surveillance video showed the robber’s teeth as he was talking and no missing tooth was visible, and both victims testified that the man with the gun had all of his teeth. Finally, he noted that C. never identified defendant as the robber before the trial, but instead waited 653 days before pointing to “the only African American man sitting at the Defense table . . . [w]ith officers behind him.”

During its summation, the prosecution likewise emphasized the centrality of the victims’ identifications and presented weapon focus as buttressing rather than tainting the identification, urging that

“the question here isn’t how [the victims] remember. How could they forget[?] How could they forget the face of the man who held a gun to them[?] Members of the jury, I submit to you, it doesn’t matter . . . if it was two days, three days or if it was 653 days. That’s a face you are not going to forget.”

The prosecution further told the jury that “at the end of the day what a lot of things in this case come down to [is] [the victims]” and emphasized that it was “asking [the jury] to rely on their testimony.”

The jury found defendant guilty of first-degree robbery and second-degree burglary and the trial court subsequently sentenced him to an aggregate 20-year prison term. The Appel-

late Division affirmed (217 AD3d 781 [2d Dept 2023]) and a Judge of this Court granted defendant leave to appeal (40 NY3d 999 [2023]).

II.

A.

Misidentifications are the leading cause of wrongful convictions (*Boone*, 30 NY3d at 527 [“Mistaken eyewitness identifications are ‘the single greatest cause of wrongful convictions in this country’ ” (quoting *State v Delgado*, 188 NJ 48, 60, 902 A2d 888, 895 [2006], citing *State v Dubose*, 285 Wis 2d 143, 162-163, 699 NW2d 582, 592 [2005])]; *People v Marshall*, 26 NY3d 495, 502 [2015] [“Wrongful convictions based on mistaken eyewitness identifications pose a serious danger to defendants and the integrity of our justice system” (citing *United States v Wade*, 388 US 218, 228 [1967] [“The vagaries of eyewitness identification are well-known; the annals of criminal law are rife with instances of mistaken identification”])]; *People v Santiago*, 17 NY3d 661, 669 [2011] [“(M)istaken eyewitness identifications play a significant role in many wrongful convictions”]). Courts must have a solid basis for precluding expert testimony about the ways in which eyewitness identifications, particularly involving strangers, may be unreliable, for even an eyewitness confident in their identification may be mistaken due to risk factors that impact memory.

As I have previously discussed, the science concerning the many environmental factors that undermine the reliability of eyewitness identifications is now well-settled and undisputable (see *People v Perdue*, 41 NY3d 245, 257-259 [2023, Rivera, J., dissenting]).² As relevant here, high stress and the presence of a weapon greatly increase the chance of a mistake by an eyewitness. Even as far back as 2001, a survey of psychologists who studied the topic revealed that, when presented with the proposition that “[t]he presence of a weapon impairs an eyewitness’s ability to accurately identify the perpetrator’s face,” 87% found the statement “reliable” and 97% believed it had some “research basis” (Saul M. Kassin et al., *On the “General Acceptance” of Eyewitness Testimony Research: A New Survey of the Experts*, 56 Am Psych 405, 408, 412 [2001]). When pre-

2. The Innocence Project has filed an amicus brief in this appeal further detailing the settled science on this subject (see https://www.nycourts.gov/reporter/webdocs/PeoplevVaughn_AmicusBrief.pdf).

sented with the proposition that “[v]ery high levels of stress impair the accuracy of eyewitness testimony,” 60% found it “reliable” and 98% believed there was a “research basis” for it (*id.* at 405, 408, 412).

What was once an emerging consensus has solidified. In a recent survey, 78% of experts concurred with the proposition that “[h]igh levels of stress impair the accuracy of an eyewitness’s memory for an event” (Travis M. Seale-Carlisle et al., *New Insights on Expert Opinion About Eyewitness Memory Research*, 18 *Persps on Psych Sci* 1, 5, 7 [2024]). The same is true of a witness’s “confidence at the time of trial” in their possibly stress-affected identification of a defendant as the perpetrator, which “is not a reliable predictor of eyewitness accuracy” (National Research Council, *Identifying the Culprit: Assessing Eyewitness Identification* at 108 [2014], available at <http://nap.nationalacademies.org/catalog/18891/identifying-the-culprit-assessing-eyewitness-identification> [last accessed Oct. 28, 2024], citing, *inter alia*, C.M. Allwood, J. Knutsson, & P.A. Granhag, *Eyewitnesses Under Influence: How Feedback Affects the Realism in Confidence Judgements*, 12 *Psych, Crime, & L* at 25-38 [2006]). Several meta-analyses confirm that there is no real debate within the scientific community about these issues (*see e.g.* Angela M. Jones et al., *Comparing the effectiveness of Henderson instructions and expert testimony: Which safeguard improves jurors’ evaluations of eyewitness evidence?*, 13 *J Experimental Criminology* 29, 31 [2017]; Kerstin Kocab & Siegfried L. Sporer, *The Weapon Focus Effect for Person Identifications and Descriptions: A Meta-analysis*, *Advances in Psychology and Law: Vol 1* 71-72 [June 2016]; Kenneth A. Deffenbacher et al., *A Meta-Analytic Review of the Effects of High Stress on Eyewitness Memory*, 28 *L & Human Behav* 687, 699 [2004]).

Though sound ethical considerations limit laboratory testing of stress effects, one study of military servicemembers, under which each participant was subject to interrogations in high- and low-stress environments and then asked to identify their interrogators after 24 hours, revealed that, for every subject who correctly identified their interrogator after that time, two identified the wrong person (Charles A. Morgan III et al., *Accuracy of eyewitness memory for persons encountered during exposure to high intense stress*, 27 *Intl J L & Psychiatry* 265, 273 [2004]). Subjects interrogated under low-stress conditions were much more likely to identify the correct person after 24

hours (*see id.*). Similarly, contemporary studies have shown that “the presence of a weapon reduced both identification accuracy and feature accuracy” and accuracy is further reduced “in threatening scenarios than in non-threatening ones” (National Research Council, *Identifying the Culprit* at 93, citing J.M. Fawcett et al., *Of Guns and Geese: A Meta-Analytic Review of the “Weapon Focus” Literature*, 19[1] Psych, Crime & L 35-36 [2013]).

Studies likewise have continued to reinforce the consensus that witness confidence in identifications is both a poor predictor of the identification’s accuracy yet a dangerously persuasive feature for lay jurors. “[P]ostidentification feedback,” meaning positive reinforcement from others concerning the identification, is largely to blame (Gary L. Wells & Laura Smalarz, *Lives Destroyed by Distorted Recollections of Fluency, Attention, View, and Confidence: A Sin of Bias in Eyewitness Identification*, 11 J Applied Rsch, Memory & Cognition, 461, 461 [2022]). For example, in one study, subjects were shown a simulated crime, followed by a lineup from which many of the subjects identified a suspect despite the perpetrator’s absence from the lineup (*see id.*). Subjects who were then told “Good, you identified the suspect” later “showed a shocking degree of distortion in their recall of the ease with which they were able to pick the person out of the lineup, how good their view was, how much attention they paid during witnessing, and the confidence they had at the time of the identification” (*id.*). Science confirms the tendency of lay jurors to assign weight to this inflated confidence, thereby insidiously distorting “the truth-seeking function and integrity of our justice system” (*Boone*, 30 NY3d at 528). Studies show that subjects participating in simulations as jurors can “significantly discriminate between accurate and mistaken witnesses when the witnesses had not received confirming postidentification feedback” (Laura Smalarz & Gary L. Wells, *Post-Identification Feedback to Eyewitnesses Impairs Evaluators’ Abilities to Discriminate Between Accurate and Mistaken Testimony*, 38 L & Hum Behav 192, 199 [2014]). Once the eyewitness is told that they identified the correct person and conveys the identification to the jurors, however, “the ability of [the jurors] to discriminate between accurate and mistaken testimony was totally eliminated” (*id.* at 200).

B.

In light of this decades-old consensus, the Court has long approved the propriety of expert testimony regarding the reliability of eyewitness identifications. Notably, at the time of defendant's trial, there was ample precedent—including from this Court—based on these studies, supporting the admission of the expert testimony regarding the specific factors impairing reliability that the trial court barred defendant from presenting here.

The trial court's preclusion of the expert testimony here is due to its consideration of alleged corroborating evidence as dispositive. As I discuss more fully below, that was error (*see infra* § III). Courts presented with applications to admit expert testimony engage in a two-step inquiry to determine its admissibility. At the first step, the court must evaluate “whether the expert testimony ‘would help to clarify an issue calling for professional or technical knowledge, possessed by the expert and beyond the ken of the typical juror’” (*People v Nicholson*, 26 NY3d 813, 828 [2016], quoting *People v Williams*, 20 NY3d 579, 583-584 [2013], quoting *De Long v County of Erie*, 60 NY2d 296, 307 [1983]). If so, the court must then assess whether other experts in the relevant field have accepted the scientific methods and techniques the evidence's offeror has proffered. “[I]n recognition that expert testimony . . . may involve novel scientific theories and techniques, a trial court may need to determine whether the proffered expert testimony is generally accepted by the relevant scientific community” (*People v Lee*, 96 NY2d 157, 162 [2001]). Unlike many other jurisdictions, this Court has held onto the framework for assessing general acceptance first announced over a century ago in *Frye v United States* (293 F 1013, 1014 [DC Cir 1923]), the central inquiry of which is “‘whether the accepted techniques, when properly performed, generate results accepted as reliable within the scientific community generally’” (*Parker v Mobil Oil Corp.*, 7 NY3d 434, 446 [2006], quoting *People v Wesley*, 83 NY2d 417, 422 [1994]). Of course, courts need not conduct a full *Frye* hearing every time a party moves to introduce expert testimony. “Judicial precedent may also support a conclusion with respect to the general reliability of a disputed scientific technique short of a hearing” (*People v Williams*, 35 NY3d 24, 38 [2020]; *see also Wesley*, 83 NY2d at 436 [Kaye, Ch. J., concurring] [“Once a scientific procedure has been proved reliable, a *Frye* inquiry need not be conducted each time such evidence is offered” and

“(c)ourts thereafter may take judicial notice of reliability of the general procedure”).

The majority acknowledges that parties and trial courts may consider previous *Frye* hearings and determinations in other cases (see majority op at 197-198). Nevertheless, the majority ignores the abundance of precedent establishing the admissibility of expert testimony covering the factors at issue here.³ In *People v Lee*, the Court first recognized that these scientifically-recognized factors that impair the reliability of eyewitness identifications and the studies that revealed and confirmed them are beyond “the ken of the typical juror” (96 NY2d 157, 162 [2001]). The Court specifically pointed to several of the factors on which defendant sought to present expert testimony here in *People v Young* (7 NY3d 40 [2006]). There, the Court observed that the defendant moved to present expert testimony

“that, where a crime is committed with a weapon, the victim’s tendency to focus on the weapon may interfere with his or her observation of the criminal; that a stressful experience is more likely to be a memorable one up to ‘a moderate level of stress,’ but that events generating ‘higher levels of stress’ are remembered less well; and that there is ‘only a very weak relationship’ between a witness’s confidence in the accuracy of his or her recollection and its true accuracy—i.e., that people very confident in their recollections are often wrong” (*id.* at 43).

The *Young* Court ultimately held that, under the circumstances present in that case, the trial court there did not abuse its discretion when it denied the defendant’s application (see *id.* at 46). However, the Court acknowledged that the proffered factors “were relevant to [the] identification of [the] defendant” and “could have been valuable to a juror . . . in assessing [the identifier’s] testimony” because “the expert [could] tell the jury something significant that jurors would not ordinarily be expected to know already” regarding the factors that impact

3. The majority’s observations that “we have yet to find testimony of this sort within the ken of the average juror” and “have never upheld the exclusion of this kind of testimony on the ground that it was within the ken of an average juror” (majority op at 197 n 2) is squarely at odds with the trial court’s contrary determination here. Perhaps without realizing it, the majority highlights the trial court’s grave error in excluding the expert testimony when it concedes that the three factors at issue in this appeal are “legally supportable” (majority op at 200). In doing so, the majority bolsters a conclusion antithetical to the one it reaches today.

the accuracy of identification which were not “so obvious or well known that ordinary jurors would not benefit from hearing them” (*id.* at 44-45).

As concerns the second step, “[c]ourts across the country now accept that certain factors can greatly affect the accuracy of eyewitness identification testimony” and have admitted expert testimony on a variety of them including, as relevant here, “the weak correlation between confidence and accuracy regarding an identification; . . . the diminishing reliability of an identification caused by the witness’s focus on a weapon; and . . . the negative impact of high stress at the time of the observation on the ability to retain an accurate perception of events” (*Jones v United States*, 262 A3d 1114, 1125-1126 [DC 2021] [footnotes omitted] [cataloging cases]). So too have courts in New York, including this one, incorporated scientific consensus regarding these factors into our jurisprudence. As far back as a decade ago, the Court had already repeatedly held that the perils of witness confidence and post-identification feedback have gained sufficient acceptance in the scientific community, such that expert testimony concerning them is admissible (*see Santiago*, 17 NY3d at 672; *People v Abney*, 13 NY3d 251, 268 [2009]). And lower courts have long held the same regarding many other factors including, among other things, weapon focus and event stress (*see e.g. People v Abney*, 31 Misc 3d 1231[A], 2011 NY Slip Op 50919[U], *29-35 [Sup Ct, NY County 2011]; *People v Norstrand*, 35 Misc 3d 367, 373 [Sup Ct, Monroe County 2011]). The scientific consensus has only grown stronger since then (*see e.g. Seale-Carlisle et al., New Insights on Expert Opinion About Eyewitness Memory Research*, 18 Persps on Psych Science at 1, 5, 7; National Research Council, *Identifying the Culprit*; Jones et al., *Comparing the effectiveness of Henderson instructions and expert testimony*, 13 J Experimental Criminology at 29, 31; Kocab & Sporer, *The Weapon Focus Effect*, *Advances in Psychology and Law*: Vol 1 71-72; Fawcett et al., *Of Guns and Geese*, 19 [1] Psychology, Crime & L at 35-36).

III.

Here, the majority upholds the trial court’s rejection of counsel’s request to present expert testimony concerning these scientifically-proven phenomena, not because the majority questions their general acceptance in the scientific community, but because, the majority says, defendant failed to bring the

trial court's attention to this general acceptance. The majority reaches its conclusion that the trial court acted within its discretion to obviate "the prospect of unduly delaying the trial" (majority op at 199). That reasoning is flawed as a matter of fact and law.

First, the record establishes that the trial court limited the expert's testimony not due to some vague concern about trial delay but because the court determined on the merits that the testimony was unnecessary.⁴ The Appellate Division similarly addressed the merits of defendant's proffered expert testimony and made no mention of a timeliness bar as justification for the trial court's decision (*see* 217 AD3d at 783). Indeed, an amorphous claim of trial delay alone is insufficient to deny a defendant their constitutional right to present a defense.

The majority accurately observes that we have never concluded that a court "abused its discretion in excluding or limiting expert testimony of this sort on" what it calls "such a perfunctory application brought at this juncture of the proceedings" (majority op at 200). The majority also points to other cases featuring what it terms "a timely motion" as "illustrat[ing] the importance of" such, but the decisions it references—unlike the one on appeal here—did not hinge on either the punctiliousness or timing of the defendants' motions at issue in them, but on whether the trial courts there erred in rejecting those motions on their merits (*id.*, citing *Santiago*, 17 NY3d at 672; *Abney*, 13 NY3d at 268; *People v LeGrand*, 8 NY3d 449, 458 [2007]). The majority's mere correlation of certain fact patterns with certain outcomes is insufficient to alter or displace the legal principles that actually drove those outcomes in those cases.

Second, even if unreasonable trial delay could justify rejecting expert testimony on a matter as significant as eyewitness

4. To portray the trial court's ruling as delay-driven, the majority relies mostly on the trial court's comment that defendant "‘really needed to raise this issue a while ago, and perhaps it might have been a different result’" (majority op at 196). But that remark is nothing more than speculation that if defense counsel had more time, he might have persuaded the trial court to permit expert testimony on the three factors presented on appeal. Contrary to the majority, the remark does not suggest timeliness grounds for the trial court's exclusion of the testimony. Rather, the trial court made this comment after explaining that it was denying defense counsel's request after "reading a number of cases" and concluding that "it's really within the discretion of the [c]ourt with respect to denying [expert evidence] when [the identification] is corroborated by other evidence in the case."

reliability in a case where the perpetrator's identity is disputed, the record here does not establish any judicial findings of a lengthy delay that would support limiting the expert testimony as done here. Undue delay is a valid basis for excluding relevant evidence when the evidence's "probative value is outweighed by the danger that its admission would prolong the trial to an unreasonable extent without any corresponding advantage" (*Davis*, 43 NY2d at 27, quoting Jerome Prince, Richardson on Evidence § 147 [10th ed 1973]). Here, there was no discussion about how much longer either side would need if such testimony was permitted. One would expect that if the trial court was going to deny the testimony on a procedural rather than substantive ground, that the court would first hear from counsel on the cause and potential length of any delay, and whether any delay was unreasonable.⁵ Indeed, given the trial court's approval of the expert's testimony on cross-racial effects, it is unclear how permitting this same expert to explain, during the course of his same appearance, the impact of the other relevant effects would raise "the prospect of unduly delaying the trial" (majority op at 199). Moreover, the testimony provided an obvious "corresponding advantage" since it would have educated the jurors on matters counterintuitive to their common understanding of the way human memory works—information, in other words, outside the ken of the jurors and essential to the truth-seeking function of the trial (*Davis*, 43 NY2d at 27 [internal quotation marks omitted]).⁶ Today's decision penalizing defendants for a trial court's unfamiliarity with the law incentivizes defense attorneys to, out of an abundance

5. The majority "presume[s] that this judge was aware of the anticipated length of delay a midtrial *Frye* hearing would create" (majority op at 201). That presumption is in tension with the majority's refusal to "presume" that trial courts are familiar with the law regarding the admissibility of expert testimony on factors affecting the reliability of eyewitness identifications. The majority's resort to simply assuming away this weakness in its reasoning as a basis for denying defendant the chance to present this valuable expert testimony is troubling.

6. The record belies the majority's suggestion that "'undue prejudice to the opposing party, confusing the issues or misleading the jury'" played a role in the trial court's ruling, in addition to the prospect of delay (majority op at 193, quoting *People v Primo*, 96 NY2d 351, 355 [2001]; see also *id.* at 197, 201). But more to the point, it is difficult to imagine how, in a case that hinged so heavily on eyewitness identifications, admission of relevant, *Frye*-tested expert testimony concerning factors that undermine the reliability of such identifications would inject prejudice, confuse the issues, or mislead the jury—certainly no more so than expert testimony on cross-racial effect, which the trial court rightly admitted.

of caution, request *Frye* hearings in every case involving an eyewitness identification, even when precedent supports admission of the expert testimony. Irrespective of the point at which they make such requests, the result will be unnecessarily prolonged criminal proceedings and wastes of valuable time and resources—byproducts the majority presumably would find objectionable (*see* majority op at 200 & n 4).

The actual basis for the trial court's ruling—that the expert testimony was unnecessary—was wrong on the law. Just before the defense's expert testified about the effects of cross-racial identifications, the trial court informed counsel that it had “been reading a number of cases . . . [o]n this identification testimony” which convinced it that it had ruled correctly when defense counsel first confirmed his intent to present expert testimony about the other factors as well. But the trial court misunderstood the law pronounced in a “number of cases . . . [o]n this identification testimony” that it had “been reading.” As the majority states, “our precedent establishes that the correlation between confidence and accuracy is generally accepted in the relevant scientific community and beyond the ken of the average juror” (majority op at 199-200). Nevertheless, the majority unpersuasively holds that the trial court acted within its discretion when its ruling overlooked a constellation of precedents of which it could have taken judicial notice and admitted the testimony (*see Williams*, 35 NY3d at 38).

Strikingly, the majority faults defendant for failing to furnish the trial court with case law supporting his position (*see* majority op at 199). But, the trial court based its conclusion on its own research and reading of the cases. And of course, trial judges are expected to remain current on “[j]udicial precedent” that “may . . . support a conclusion with respect to the general reliability of a disputed scientific technique” (*Williams*, 35 NY3d at 38). Indeed, as a general matter, “[t]rial judges are presumed to know the law and to apply it in making their decisions” (*Walton v Arizona*, 497 US 639, 653 [1990], *overruled on other grounds Ring v Arizona*, 536 US 584 [2002]; *see also Bell v Cone*, 543 US 447, 455 [2005] [observing that, on federal habeas review, a court should not “presume so lightly that a state court failed to apply its own law”]). Thus, defendant is no more at fault than a lawyer who presents cases that fail to persuade the judge. Had the trial court here known the law, its “concerns at least with respect to some of the factors” (majority op at 199), including those raised on this appeal, would have been dispelled.

Finally, the majority is wrong inasmuch as it approves of the trial court's reliance on the surveillance footage and photo of the brown sweatshirt as sufficiently corroborative to preclude testimony about stress, weapon focus, and the pitfalls of witness confidence (*see* majority op at 196-199). For starters, the majority fails to justify the obvious incongruity in the trial court's ruling which regarded the prosecution's corroborating evidence sufficient to disallow testimony on those three subjects, but insufficient to preclude testimony on cross-racial effects. In addition, that evidence was weak because the surveillance footage failed to capture any of defendant's distinguishing identifying features and the ubiquity of brown sweatshirts similar to the one defendant wore when police arrested him.

IV.

The majority also attempts to recast the role that the prosecution's evidence corroborating the eyewitness identification at issue plays in the admissibility of expert testimony regarding the factors affecting the reliability of such identifications. As an initial matter, since the majority's holding is on different grounds from that of the trial court and Appellate Division—namely, the trial court's purportedly-overriding interest in avoiding trial delay (majority op at 193)—its commentary on corroboration is “not necessary to the decision” here and therefore should be construed as obiter dicta (*McCormick v Pennsylvania Cent. R.R. Co.*, 49 NY 303, 309 [1872]; *see also United States v Rubin*, 609 F2d 51, 69 n 2 [2d Cir 1979, Friendly, J., concurring] [“A judge's power to bind is limited to the issue that is before (them); (they) cannot transmute dictum into decision by waving a wand and uttering the word ‘hold’ ”]).⁷

Regardless, as I discuss below, the majority's “clarification” fails to address a fundamental problem of the “corroborating evidence” rule. Under existing case law, New York courts may

7. *See also* Hon. Pierre N. Leval, Madison Lecture: *Judging Under the Constitution: Dicta about Dicta*, 81 NYU L Rev 1249, 1257 (2006):

“To identify dictum, it is useful to turn the questioned proposition around to assert its opposite, or to assert whatever alternative proposition the court rejected in its favor. If the insertion of the rejected proposition into the court's reasoning, in place of the one adopted, would not require a change in either the court's judgment or the reasoning that supports it, then the proposition is dictum. It is superfluous. It had no functional role in compelling the judgment.”

consider whether eyewitness evidence controverted by the defendant corroborates the prosecution's case. Where a court must make a factual or credibility determination solely within the province of the trier of fact, such evidence can never be judicially deemed reliable for purposes of precluding expert testimony on eyewitness identification. In other words, eyewitness testimony cannot be self-corroborating when the defendant challenges the testimony based on the scientifically-identified risk factors that impact witness memory. Therefore, the trial court should not have applied the rule here.⁸

A.

Applying the traditional *Frye* standard, the Court has sanctioned the introduction of expert testimony on a vast array of subjects, including, for example: the effect of drugs and alcohol “on a person’s ability to act purposefully” (see *People v Cronin*, 60 NY2d 430, 433 [1983]); the effects of rape trauma syndrome on complaining witnesses (see *People v Taylor*, 75 NY2d 277, 289 [1990]); the adequacy of building security measures to deter crime (see *Price v New York City Hous. Auth.*, 92 NY2d 553, 558-559 [1998]); child sexual abuse accommodation syndrome (see *People v Carroll*, 95 NY2d 375, 387 [2000]); and whether a fire was deliberately set (see *People v Rivers*, 18 NY3d 222, 228 [2011]). Not so for testimony regarding the reliability of eyewitness identifications, however. For that, the Court has special rules developed over the past two decades.

After initial reticence on the subject (see e.g. *People v Mooney*, 76 NY2d 827, 828 [1990]; see also *id.* at 832 [Kaye, J., dissenting]), the Court first decided in *Lee* that expert testimony on the subject is proper under the *Frye* standard (see 96 NY2d at 160-162). But rather than treat this like other expert testimony subject to traditional relevancy principles, the Court concluded that a trial court’s discretion in admitting it must be guided by “other relevant factors,” including most pertinently “the existence of corroborating evidence” (*id.* at 163). The Court drew on this reasoning five years later in *Young*, which involved a

8. Amici the Innocence Project and the Legal Aid Society recommend abandonment of the corroboration rule altogether on the grounds that it contravenes traditional evidence principles and abridges the constitutional right of criminal defendants to present a complete defense. I note that defendant does not adopt this position and therefore the continued propriety of the rule is not at issue on this appeal.

victim of a home invasion who identified defendant as her attacker even though the attacker wore a scarf on their face (*see* 7 NY3d at 42). The *Young* Court acknowledged that expert testimony on the reliability of eyewitness identifications—specifically the effects of race differences and witness confidence—“[c]ertainly . . . could have been valuable to a juror” because it was “counter-intuitive” (*id.* at 45). Nevertheless, the Court agreed that this relevant testimony was inadmissible given “[t]he corroborating evidence” that “significantly diminishe[d] the importance of the proffered expert testimony”—specifically, that stolen property had been found with two of the defendant’s “acquaintances” and that one acquaintance testified that she had received some of the property from defendant—a month after the break-in (*see id.* at 43, 46).

Then in *People v LeGrand*, the Court set out the test still applied today:

“[W]here the case turns on the accuracy of eyewitness identifications and there is little or no corroborating evidence connecting the defendant to the crime, it is an abuse of discretion for a trial court to exclude expert testimony on the reliability of eyewitness identifications if that testimony is (1) relevant to the witness’s identification of defendant, (2) based on principles that are generally accepted within the relevant scientific community, (3) proffered by a qualified expert and (4) on a topic beyond the ken of the average juror” (8 NY3d 449, 452 [2007]).

Almost 10 years later, the Court in *People v McCullough* announced in a 4-3 decision that the lower courts had misunderstood *LeGrand* and the corroboration rule as follows:

“To the extent *LeGrand* has been understood to require courts to apply a strict two-part test that initially evaluates the strength of the corroborating evidence, it should instead be read as enumerating factors for trial courts to consider in determining whether expert testimony on eyewitness identification ‘ “would aid a lay jury in reaching a verdict” ’ ” (27 NY3d 1158, 1161 [2016], quoting *Lee*, 96 NY2d at 162).

The clarification apparently didn’t stick and so the Court now tries again. Courts determining the admissibility of the

type of expert testimony at issue here, the majority says, must “weigh the [evidence]’s probative value against its prospect of causing undue prejudice to the opposing party, confusing the issues, misleading the jury, or unduly delaying trial” (majority op at 197, citing, *inter alia*, *McCullough*, 27 NY3d at 1161). However, like the *McCullough* majority, today’s majority cautions that courts do not decide admissibility based solely on the existence or the strength of corroborating evidence, but rather “should be guided by ‘whether the proffered expert testimony “would aid a lay jury in reaching a verdict” ’” (*id.* at 198, quoting *Lee*, 96 NY2d at 162; *compare id.*, with *McCullough*, 27 NY3d at 1161). I agree, but only as to the majority’s reiteration of the *Frye* standard for admitting expert testimony generally (*see Nicholson*, 26 NY3d at 828), which courts apply before considering alleged corroboration. I disagree to the extent the majority’s rule would allow a court to consider as corroborative evidence eyewitness testimony which is the subject of the proffered expert’s opinion.

B.

Whether the strength of alleged corroborating evidence is considered as a dispositive first step or one factor among others that the trial court may weigh in deciding the admissibility of proffered expert testimony on eyewitness reliability, the rule deprives a defendant of their right to challenge the eyewitness testimony before the factfinder. It thus enhances the risk of wrongful convictions that *LeGrand* and its progeny sought to eliminate. In *McCullough*, I explained why corroboration by the witness(es) offering the identification, untested by a jury, cannot serve as a ground for excluding expert testimony regarding factors that might undercut the reliability of the identification and, in turn, the corroboration itself. But, since the majority has doubled down on *McCullough*’s misapplication of the corroboration rule, I must explain why the Court was wrong then and, as illustrated by the increased consensus since (*see supra* § II.A), is wrong now.

Permitting a trial court to consider the strength of an eyewitness’ testimony for purposes of corroborating the prosecution’s case when determining the admissibility of a defendant’s otherwise relevant, *Frye*-compliant expert testimony on factors affecting the reliability of eyewitness identifications contra-

venes traditional principles of evidence. First, it invades the province of the jury by requiring trial courts to engage in trial-level factfinding. Relevant evidence is admissible unless some other rule requires its exclusion (*see People v Harris*, 26 NY3d 1, 5 [2015] [“Generally, ‘all relevant evidence is admissible unless its admission violates some exclusionary rule’” (quoting *People v Scarola*, 71 NY2d 769, 777 [1988])]; *Badger v Badger*, 88 NY 546, 559 [1882] [“Being evidence, relevant and material, it was admissible unless some rule of law excluded it”]). Indeed, “[t]he basic rule is that all competent, substantial, credible and relevant evidence is to be available to the courts” as “the process of investigating the truth in courts of justice is an indispensable function of society” (*Sackler v Sackler*, 15 NY2d 40, 44 [1964]). Evidence, the Court has said, “is relevant if it has any tendency in reason to prove any material fact” (*People v Alvino*, 71 NY2d 233, 241 [1987] [internal quotation marks omitted]). With that relevant evidence in hand, the jury’s job is then to “assess the reliability of eyewitnesses, aided by cross-examination, by the arguments of counsel, and by whatever other evidence supports or contradicts the witnesses’ testimony” (*People v Marte*, 12 NY3d 583, 589 [2009]).

Other exclusionary rules of evidence that authorize courts to keep relevant evidence from the jury’s view are grounded in some intrinsic quality of the evidence itself that impairs the truth-seeking function of trials. Some of the rules set threshold levels of reliability. Others aim to keep the size of the evidentiary sphere managed and the jury undistracted from its job to render a finding regarding the discrete facts at issue. Courts may, for example, curtail “the exploration of collateral issues” because it “tends ‘to obscure the main issue in the minds of the jury, to lead them away from the principal matters which require their attention and to protract trials to an unreasonable extent without any corresponding advantage to any one concerned’” (*People v Oddone*, 22 NY3d 369, 379 [2013], quoting *People v Harris*, 209 NY 70, 82 [1913]). Similarly, there are rules designed to mitigate the risk of faulty assumptions or ad hominem jury determinations like those forbidding “‘evidence of other crimes’” that “‘has no purpose other than to show that a defendant is of a criminal bent or character and thus likely to have committed the crime charged’” (*People v Weinstein*, 42 NY3d 439, 466 [2024], quoting *People v Schwartzman*, 24 NY2d 241, 247 [1969]). More broadly, courts may exclude evidence whose probative value fails to “exceed[] the potential for prejudice” (*Alvino*, 71 NY2d at 242).

Some rules permitting exclusion of relevant evidence concern the evidence's inherent lack of reliability. Courts exclude hearsay, for example, because, except under certain well-known circumstances, untested, out-of-court statements are generally unreliable (*see Nucci v Proper*, 95 NY2d 597, 602 [2001]). The same goes for evidence offered by a party that fails to establish its authenticity, which courts may exclude because it is inherently untrustworthy (*see People v Price*, 29 NY3d 472, 476 [2017]). And, of course, as outlined *supra*, courts may bar expert testimony if the party offering it fails to show that "the accepted techniques, when properly performed, generate results accepted *as reliable* within the scientific community generally" (*Wesley*, 83 NY2d at 422 [emphasis added], citing *Frye*, 293 F 1013).

Our rule authorizing a trial court to consider the strength of the prosecution's eyewitness as part of the alleged corroborating evidence in deciding whether to exclude a defendant's otherwise admissible expert testimony on the reliability of that same eyewitness is an anomaly that fits within none of these categories. Permitting courts to treat as a factor the strength of the prosecution's corroborating evidence before admitting expert testimony on eyewitness identifications perversely withdraws this core jury function from jurors and reassigns it to judges. The Court has established that this type of expert evidence qualifies for a judicial imprimatur of reliability under *Frye*, but nonetheless has extended trial courts the discretion to exclude it anyway if, among other things, "the corroboration" of the identification offered by the prosecution "was strong enough for the trial court reasonably to conclude that the expert's testimony would be of minor importance" (*Young*, 7 NY3d at 45). However, this analysis—evaluating the weight and significance that eyewitness testimony serves to one party or another's theory of the case—is the classic province of the jury, a factual and credibility determination it makes, guided by the court's instructions (*see Marte*, 12 NY3d at 589).

The corroboration rule also empowers judges to place their thumbs on the scale by enabling them to credit the prosecution's alleged corroborating evidence before the jury has had an opportunity to accept or reject it. If time-tested rules of evidence and procedure applied, the jury would evaluate the strength of the testimony during its deliberations after both sides present their cases, including by testing the credibility and reliability through cross-examination and expert opinion

(see *New York Guar. & Indem. Co. of City of N.Y. v Gleason*, 78 NY 503, 504 [1879] [“Whether more weight should be given to the testimony of two accomplices, and whether and to what extent they corroborate each other are matters for the jury”]; *Davis v Alaska*, 415 US 308, 316 [1974] [“Cross-examination is the principal means by which the believability of a witness and the truth of (their) testimony are tested”]; *People v Falletto*, 202 NY 494, 499 [1911] [describing “cross-examination” as “the best method known to bring out the full and exact truth”]). And there is good reason to believe that, in some of the Court’s eyewitness-identification-expert cases, the jury might not have credited the prosecution’s evidence of corroboration had the trial court not weighed in first and excluded relevant and helpful expert opinion on the unreliability factors.

McCullough demonstrates the dangers of allowing judges to weigh the reliability of the eyewitness when considering the admissibility of a defense expert on such eyewitness identifications (see 27 NY3d 1158). There, the trial court barred the testimony, reasoning that the eyewitness’s “identification of [the] defendant as a participant,” in an attempted robbery during which a codefendant shot the victim “coupled with [a getaway driver’s] testimony connecting [the] defendant to the incident, would constitute sufficient corroboration” (*id.* at 1160). Defendant was thereafter convicted of murder (*id.* at 1161). On appeal, the Appellate Division reversed, concluding that the trial court had abused its discretion when it concluded that the driver’s identification constituted sufficient corroboration under *LeGrand* to bar the expert testimony (see *People v McCullough*, 126 AD3d 1452, 1453 [4th Dept 2015]). This Court then reversed and reinstated the verdict after retooling *LeGrand* in the manner discussed supra (see *McCullough*, 27 NY3d at 1161). As I noted in my dissent, several factors weighed against deeming the getaway driver’s corroboration sufficient to bar the expert testimony—i.e., the driver’s initial, inaccurate implication of his brother and cousin in the crime and the driver’s motive to tailor his account to the prosecution’s theory to keep his favorable plea deal in place (see 27 NY3d at 1169-1170 [Rivera, J., dissenting]). Of course, the only way the trial court could have barred the expert testimony in *McCullough* was by crediting the corroboration itself before the jury had a chance to weigh it. But we cannot know whether the jury agreed with the trial court’s assessment and, if it did not, then there is a substantial probability that testimony from an eyewitness-identification expert would have affected the jury’s findings.

McCullough also illustrates how the corroboration rule ignores that juries do not assess each piece of evidence in a vacuum. The significance of one piece often turns on the significance of another, and juries are free to reason through bodies of evidence in different directions and assemble the pieces in different ways. Who can say that the jury in *McCullough*, instead of crediting the eyewitness's identification because of the driver's corroboration—as the trial court did—instead credited the driver's corroboration because of the eyewitness's identification? If the jury took this latter course, then an eyewitness identification expert might well have undermined both the eyewitness's *and* the driver's testimonies. In that respect, barring the defense's expert testimony on the reliability of eyewitnesses may result in improper judicial bolstering of the prosecution's evidence.

Finally, we have required strict adherence to these same traditional evidence principles before in this very same area of the law. In *Boone*, we held that, “when identification is an issue in a criminal case and the identifying witness and defendant appear to be of different races,” trial courts must, upon request, instruct the jury regarding the cross-racial effects on eyewitness identifications given the higher “likelihood of misidentification” and the “significant disparity between what the psychological research shows and what uninstructed jurors believe” regarding the effect's impact (30 NY3d at 526, 528-529). We recognized that “[t]he instruction would not be required when there is no dispute about the identity of the perpetrator” (*id.* at 536). We cautioned, however, that

“a trial judge may not decide the purely factual question of whether a crime was so prolonged and a witness's exposure to the perpetrator so extended that the witness would have adequately learned the perpetrator's features so as to be able to recognize him accurately. *It is the jury's task to examine and evaluate the many factors upon which the accuracy of [identification] testimony turns* including, among others, the . . . opportunity and capacity to observe and remember the physical characteristics of the perpetrator at the time of the crime. *A judge should not engage in a weight analysis as to the quantitative degree of risk of misidentification at this threshold stage*” (*id.* at 536 n 6 [emphases added and internal quotation marks and citations omitted]).

Boone's core holding that relevance alone controls the availability of an instruction on cross-racial effect does not support a trial court's consideration of alleged corroboration evidence "at this threshold stage" of determining the admissibility of a defense expert on eyewitness identifications (*id.*). No principled justification exists for, on the one hand, allowing judicial weight analyses to bar a defense expert from offering relevant, *Frye*-compliant expert testimony regarding eyewitness identifications while, on the other hand, expressly disapproving of the same for assessing the need for an instruction on cross-racial effect.⁹ In addition, consideration of disputed eyewitness testimony as self-corroborating may also be unconstitutional. The Constitution leaves courts with ample breathing room to regulate the entry and exclusion of evidence (*see Crane v Kentucky*, 476 US 683, 689-690 [1986]). But it also enshrines some limits on this discretion. "Whether rooted directly in the Due Process Clause of the Fourteenth Amendment or in the Compulsory Process or Confrontation clauses of the Sixth Amendment, the Constitution guarantees criminal defendants 'a meaningful opportunity to present a complete defense'" (*id.* at 690 [citations omitted], quoting *California v Trombetta*, 467 US 479, 485 [1984]). This constitutional guarantee precludes federal and state courts from: (1) applying the rules of evidence "mechanistically to defeat the ends of justice" (*Chambers v Mississippi*, 410 US 284, 302 [1973]); and (2) devising such rules that are "arbitrary or disproportionate to the purposes they are designed to serve" (*see Rock v Arkansas*, 483 US 44, 56 [1987] [invalidating rule prohibiting defendants' hypnotically-refreshed testimony wholesale]).¹⁰

The Supreme Court has sent a strong signal that the Constitution forbids courts from treating the strength of the prosecu-

9. Indeed, this leads to the absurd result where a defendant might be entitled to an instruction on the impact of cross-racial effect on eyewitness identification under *Boone* (30 NY3d at 535-536) but judicially barred from educating the jury about cross-racial effect through an expert on the subject, based on a nonjury finding that the corroboration was strong. The record here shows that this is not a mere thought exercise. Despite our clear position in *Boone*, the trial court had reservations about the necessity of the expert testimony regarding the reliability of cross-race identifications, commenting that the "expert . . . is going to be teaching the jury something that they know" and that it "d[id]n't find it a big loss to [defendant] if this witness didn't testify at all" but, as a purported act of grace, allowed the testimony "to give the defense latitude."

10. The Second Circuit has held that a trial court's exclusion of defense evidence violates the Constitution any time "the omitted evidence [evaluated

(n. cont'd)

tion's case at the time the defendant attempts to introduce evidence supporting a defense as a factor in that evidence's admissibility. In *Holmes*, the Court unanimously held unconstitutional a rule announced by the South Carolina Supreme Court under which, in considering whether to admit third-party culpability evidence proffered by defendants, trial courts had discretion to consider whether there was "‘strong evidence of [the defendant’s] guilt’" and could exclude the defendant's evidence suggesting an alternative perpetrator if it "‘did not raise “a reasonable inference” as to [the defendant’s] own innocence’" (547 US at 328-329, quoting *State v Gay*, 343 SC 543, 550, 541 SE2d 541, 545 [2001], quoting *State v Gregory*, 198 SC 98, 104, 16 SE2d 532, 534 [1941]). In the case on appeal to the Supreme Court, the South Carolina Supreme Court articulated the rule to be that, "where there is strong evidence of [a defendant’s] guilt, especially where there is strong forensic evidence, the proffered evidence about a third party’s alleged guilt does not raise a reasonable inference as to the [defendant’s] own innocence" which vested the trial court with discretion to exclude it (*State v Holmes*, 361 SC 333, 342-343, 605 SE2d 19, 24 [2004]; see also *Gay*, 343 SC at 550, 541 SE2d at 545).

"Under this rule, the trial judge does not focus on the probative value or the potential adverse effects of admitting the defense evidence of third-party guilt. Instead, the critical inquiry concerns the strength of the prosecution's case: If the prosecution's case is strong enough, the evidence of third-party guilt is excluded even if that evidence, if viewed independently, would have great probative value and even if it would not pose an undue risk of harassment, prejudice, or confusion of the issues" (547 US at 329).

The Court further summarized the invalid South Carolina rule's "logic" as such:

"Where (1) it is clear that only one person was involved in the commission of a particular crime and (2) there is strong evidence that the defendant was the perpetrator, it follows that evidence of third-party guilt must be weak" (*id.* at 330).

in the context of the entire record] creates a reasonable doubt that did not otherwise exist" (*Washington v Schriver*, 255 F3d 45, 56 [2d Cir 2001]).

The majority cites *Holmes* to support its proposition that a trial court may not decide admissibility “based solely on the existence or the strength of corroborating evidence,” but may instead treat it as a factor (majority op at 198). But that squarely conflicts with the *Holmes* Court’s reasoning. *Holmes* held that the South Carolina rule violated the Constitution because it “depends on an accurate evaluation of the prosecution’s proof, and the true strength of the prosecution’s proof cannot be assessed without considering challenges to the reliability of the prosecution’s evidence” (547 US at 330). “Just because the prosecution’s evidence, *if credited*, would provide strong support for a guilty verdict,” the Court continued, “it does not follow that evidence of third-party guilt has only a weak logical connection to the central issues in the case” (*id.*). Furthermore—and perhaps most critically—“the strength of the prosecution’s case cannot be assessed without making the sort of factual findings that have traditionally been reserved for the trier of fact” (*id.*). In other words, “by evaluating the strength of only one party’s evidence, no logical conclusion can be reached regarding the strength of contrary evidence offered by the other side to rebut or cast doubt” (*id.* at 331).¹¹ Certainly, there is no persuasive justification for departing from *Holmes* for the type of expert testimony at issue here. Like the rule at issue in *Holmes*, the corroboration approach the majority endorses (*see* majority op at 196-199) is at odds with *Holmes*’s core concerns about judges—instead of juries—evaluating the strength of the prosecution’s case (*see* 547 US at 330-331).

Dispensing with corroboration as a factor in the admissibility of this expert evidence would have no effect on the ability of courts to disallow such expert testimony under circumstances where the normal rules of evidence would justify exclusion. As an easy example, if the defense seeks to admit expert testimony on the reliability of eyewitness identifications where the prosecution has *no* evidence of such an identification to offer, the court can exclude it as irrelevant (*see Harris*, 26 NY3d at 5). So too can courts insist on live testimony from such experts under the hearsay rule, thereby giving the prosecution a fair op-

11. As one New York jurist has suggested, *Holmes* throws the constitutionality of permitting consideration of the prosecution’s corroboration completely into doubt (*People v Santiago*, 75 AD3d 163, 177 n 4 [1st Dept 2010, McGuire, J., concurring], *revd* 17 NY3d at 673 [holding, pre-*McCullough*, that the prosecution’s corroborating evidence was not “sufficient to obviate the second stage of the *LeGrand* analysis”]).

portunity to cross-examine them (*see Nucci*, 95 NY2d at 602). Courts simply would be prohibited from considering the strength of the prosecution’s alleged corroborating evidence as a factor in admissibility (*see Holmes*, 547 US at 330-331) in the same manner as in the cross-racial identification context, where the Court has appropriately cautioned that “[a] judge should not engage in a weight analysis as to the quantitative degree of risk of misidentification” when deciding whether to admit expert testimony from a defense witness on the subject (*Boone*, 30 NY3d at 536 n 6).

V.

In a case that turned on eyewitness identification, the trial court here precluded defendant’s expert from helping the jury to understand factors present in this case that the scientific community agrees have a counterintuitive impact on human memory and thus impair the reliability of eyewitness testimony. The factors at issue here—the witness’s stress, weapon focus, and confidence relative to accuracy—had been recognized by courts years before defendant’s trial as proper bases for expert testimony. The trial court’s exclusion of it was therefore an error that warrants reversal and a new trial.

The majority’s affirmance here is contrary to law and modern science and, in turn, greatly disserves our system of justice and undermines this Court’s role in minimizing the leading cause of wrongful convictions: mistaken identifications. The responsibility now falls to trial judges on the front lines to exercise their discretion to ensure that juries are well-informed about the potential unreliability of eyewitness testimony.

Chief Judge WILSON and Judges GARCIA, SINGAS, CANNATARO and HALLIGAN concur. Judge RIVERA dissents in an opinion.

Order affirmed.

[258 NE3d 1192, 232 NYS3d 419]

In the Matter of NYC ORGANIZATION OF PUBLIC SERVICE RETIREES, INC., et al., Respondents, v RENEE CAMPION et al., Appellants.

Argued November 19, 2024; decided December 17, 2024

PROCEDURAL SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered November 22, 2022. The Appellate Division affirmed a judgment (denominated an order) of the Supreme Court, New York County (Lyle E. Frank, J.; op 2022 NY Slip Op 30657[U] [2022]), entered in a proceeding pursuant to CPLR article 78, which had, to the extent appealed from, (1) granted the petition to the extent of (a) allowing New York City retirees to have the option of opting out of the Medicare Advantage Plan; (b) enjoined respondents from passing along any costs of the retirees' current plan to the retirees or their dependents except where such plan rises above the H.I.P.-H.M.O. threshold provided by Administrative Code of City of NY § 12-126; and (c) required respondents to ensure that all retirees and their dependents pay the deductible for only one plan for the calendar year 2022; and (2) denied respondents' motion to dismiss the proceeding.

Matter of NYC Org. of Pub. Serv. Retirees, Inc. v Champion, 210 AD3d 559, affirmed.

HEADNOTE

Civil Service — Compensation and Benefits — Health Insurance — City's Payment Obligation When Multiple Health Insurance Plans Offered

Administrative Code of the City of New York § 12-126 requires New York City, when it offers more than one health insurance plan to employees and retirees, to pay up to the statutory cap for each plan offered as part of its health insurance program. When enacting section 12-126, the City Council and the Mayor intended to require the City to pay, up to the cap, for any plans it offered as part of its health insurance program. That reading of the legislative history is consistent with the Council's contemporaneous use of "program" to refer to the City's "program" of health insurance plans. It is also consistent with the many references to employee and retiree choice in the state-law amendments and City Council resolutions that preceded section 12-126.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Municipal Corporations, Counties, and Other Political Subdivisions § 223.

CARMODY-WAIT 2d Proceeding Against a Body or Officer § 145:951.

NY JUR 2d Civil Servants and Other Public Officers and Employees §§ 175, 398; NY JUR 2d Counties, Towns, and Municipal Corporations §§ 431, 454–455; NY JUR 2d Public Funds §§ 23, 54.

ANNOTATION REFERENCE

See ALR Index under Civil Service; Health and Accident Insurance; Municipal Corporations; Public Officers and Employees.

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Query: ((public municipal city town! village county /s retired retiree employee) (civil-serv!) /p health medical /5 benefit plan insurance /p cost pay! amount & benefit plan insurance /p cost pay! amount /p cap! maximum limit) (city /7 admin! /7 12-126)

POINTS OF COUNSEL

Muriel Goode-Trufant, Corporation Counsel, New York City (*Richard Dearing, Devin Slack* and *Jonathan Schoepp-Wong* of counsel), for appellants. I. The Appellate Division erred in requiring the City of New York to pay for more than one insurance plan. (*People v Santi*, 3 NY3d 234; *Matter of Albany Law School v New York State Off. of Mental Retardation & Dev. Disabilities*, 19 NY3d 106; *Matter of Avella v City of New York*, 29 NY3d 425; *People v Mitchell*, 38 NY3d 408; *Matter of Chemical Specialties Mfrs. Assn. v Jorling*, 85 NY2d 382.) II. The Appellate Division also erred by failing to correct a separate misreading of the law's monetary cap. (*Geraci v Probst*, 15 NY3d 336; *U.S. Bank N.A. v DLJ Mtge. Capital, Inc.*, 33 NY3d 84; *Matter of Richardson v Fiedler Roofing*, 67 NY2d 246; *American Sugar Ref. Co. of N.Y. v Waterfront Commn. of N.Y. Harbor*, 55 NY2d 11.)

Walden Macht & Haran LLP, New York City (*Jacob S. Gardener* of counsel), *Latham & Watkins LLP*, New York City

(*Jonathan Lippman* of counsel), and *Pollock Cohen LLP*, New York City (*Steve Cohen* of counsel), for respondents. I. Supreme Court and the Appellate Division correctly held that the City of New York must continue paying up to the statutory cap for whichever healthcare plan a retiree selects. (*Matter of ATM One v Landaverde*, 2 NY3d 472; *Zakrzewska v New School*, 14 NY3d 469; *People v Silburn*, 31 NY3d 144; *Randall v Bailey*, 288 NY 280; *Sheehy v Big Flats Community Day*, 73 NY2d 629.) II. The City of New York's statutory cap argument is both unpreserved and meritless. (*Metropolitan Transp. Auth. v 2 Broadway*, 279 AD2d 315; *Residential Bd. of Mgrs. of Platinum v 46th St. Dev., LLC*, 154 AD3d 422; *RSB Bedford Assoc., LLC v Ricky's Williamsburg, Inc.*, 91 AD3d 16; *Bingham v New York City Tr. Auth.*, 99 NY2d 355; *Henry v New Jersey Tr. Corp.*, 39 NY3d 361.)

Steptoe & Johnson LLP, New York City (*Alan M. Klinger* and *Dina Kolker* of counsel), for New York City Municipal Labor Committee, amicus curiae. I. Administrative Code of the City of New York § 12-126 does not require the City of New York to pay for more than one insurance plan. II. Administrative Code of the City of New York § 12-126 only obligates the City of New York to pay up to a statutory cap for Medicare-eligible retirees. (*Matter of Avella v City of New York*, 29 NY3d 425; *Matter of Lynch v City of New York*, 40 NY3d 7; *People ex rel. Molinaro v Warden, Rikers Is.*, 39 NY3d 120; *Golden v Koch*, 49 NY2d 690; *Matter of Brookford, LLC v New York State Div. of Hous. & Community Renewal*, 31 NY3d 679.) III. Respondents do not have a unilateral right to lifetime Medigap insurance based on past practice.

Emery Celli Brinckerhoff Abady Ward & Maazel, LLP, New York City (*Andrew G. Celli, Jr.* and *Eric Abrams* of counsel), for Donald Berwick, amicus curiae. I. The business model of Medicare Advantage programs involves reporting incentives that have resulted in overpayment by the Centers for Medicare and Medicaid Services to Medicare Advantage plans as compared to traditional fee-for-service Medicare plans. II. Overpayment does not increase care quality or efficiency.

Sue Ellen Dodell, Bronx, for New York City Correction Captains Association and others, amici curiae. I. Administrative Code of City of NY § 12-126 requires the City of New York to provide health insurance coverage for retirees and to pay for such insurance up to a maximum amount. II. Retirees do not

have their own unique statutory cap that is pegged to a plan that costs \$7.50 per person per month (a fraction of the cost of their existing health insurance), as claimed by the City of New York.

Kaplan Hecker & Fink LLP, Washington, D.C. (*Joshua Matz*, *Carmen Iguina González*, admitted pro hac vice, and *Jackson Erpenbach*, admitted pro hac vice, of counsel) and New York City (*Julie E. Fink* of counsel), for Physicians for a National Health Program—New York Metro, amicus curiae. I. The Aetna Medicare Advantage PPO plan is inferior to retirees’ current insurance. (*Bianculli v City of N.Y. Off. of Labor Relations*, 216 AD3d 560.) II. The Aetna Medicare Advantage PPO plan will imperil retirees’ health, harm physicians, and undermine the provision of healthcare in New York City.

Webster, Chamberlain & Bean, Washington, D.C. (*Hugh K. Webster* of counsel), for Public Sector HealthCare Roundtable, amicus curiae. Medicare Advantage Employer Group Waiver Plans have successfully maintained cost-effectiveness while ensuring comprehensive care for retirees.

OPINION OF THE COURT

Chief Judge WILSON.

At issue on this appeal are the portions of Administrative Code of the City of New York § 12-126 requiring New York City (City) to pay, for active employees, retirees and their dependents, “the entire cost of health insurance coverage,” defined as “[a] program of hospital-surgical-medical benefits,” in an amount “not to exceed one hundred percent of the full cost of H.I.P.-H.M.O. on a category basis” (Administrative Code § 12-126 [a] [iv]; [b] [1]). The statute requires that the City’s program includes “hospital[,] surgical [and] medical benefits.” The statute also requires the City to pay the full cost of the program, so long as that cost does not exceed the comparator in the statute. The question in this case is what section 12-126 requires the City to do when it offers more than one health insurance plan to employees and retirees. Petitioners argue that section 12-126 requires the City to pay, up to the statutory cap, for any plan it offers. The City contends that its section 12-126 obligation is satisfied if it pays up to the cap for one health insurance plan providing hospital, surgical and medical benefits. It argues that it may offer additional plans but has no statutory obligation to pay any portion of their cost, and explains

that when it has paid for additional plans in the past, it has done so because it agreed to in collective bargaining, not because it was statutorily required to do so. The parties also disagree as to which health insurance plan sets the statutory cap for Medicare-eligible retirees.

We hold that section 12-126 requires the City to pay up to the statutory cap for any plan it offers to employees and retirees. We do not reach the question of how the statutory cap should be determined because the City has not demonstrated that the question was preserved, and its answer depends on “further evidence” not presented on the record below.

I.

New York City provides health insurance coverage to active employees and retirees. Many of the City’s retirees are 65 and over and therefore eligible for Medicare. Because Medicare covers a large share of an individual’s health insurance costs, the health insurance plans available to Medicare-eligible individuals require enrollment in Medicare. The plans offered to such persons may be either Medigap or Medicare Advantage plans. Medigap plans supplement regular Medicare by insuring costs that Medicare does not cover. Under a Medigap plan, the retiree is covered by Medicare and by a supplemental private insurance plan. Medicare Advantage plans, in contrast, replace the federal government with a private insurer as the primary provider of health insurance. The insurance company receives subsidies from the federal government to pay for the costs of healthcare.

This case arises out of the City’s plan to discontinue payment for any portion of the premiums for Senior Care, a Medigap plan which petitioners are enrolled in and wish to keep. Historically, the options offered to Medicare-eligible city retirees included two plans: the HIP VIP Premier (HMO) plan (HIP VIP) and Senior Care. Until 2021, the City paid the full cost of premiums for both. If a retiree selected a plan that was more expensive than Senior Care, the City would pay the premium up to the cost of Senior Care, and the retiree would be responsible for the remaining cost. As of 2021, the majority of city retirees (approximately 200,000 out of 250,000) were enrolled in Senior Care.

In July 2021, the City and the Municipal Labor Committee (MLC)—an association of unions that bargains, on behalf of its constituent unions, with the City on citywide health benefits—

agreed to change the health insurance benefits offered to Medicare-eligible retirees. Under the plan, retirees enrolled in Senior Care would be automatically enrolled in a new NYC Medicare Advantage Plus Plan (MAPP) unless they opted out by October 31, 2021. The City would continue to offer Senior Care as an option for Medicare-eligible retirees but would no longer cover any portion of its premiums. The City argues that the changes would reduce its healthcare costs.

II.

Petitioners are Medicare-eligible retirees and a new organization created to represent them. In September 2021, they brought a CPLR article 78 proceeding seeking to block the City’s transition to MAPP. Petitioners moved for a preliminary injunction. The City opposed the motion and cross-moved to dismiss the petition. On October 21, 2021, Supreme Court preliminarily enjoined the City from enforcing the October 31, 2021, opt-out date. On December 14, 2021, Supreme Court extended the preliminary injunction to April 1, 2022.

On January 31, 2022, petitioners moved for “summary judgment.”¹ That motion responded to the arguments raised by the City in its cross-motion to dismiss. The next day, the City sent a letter to the court asserting its “strong desire for a determinative ruling as soon as possible in an effort to proceed with the Medicare Advantage Plus Plan as scheduled.” On February 4, 2022, the City responded to petitioners’ motion. On February 28, 2022, the court held a hearing on the merits of the petition.

By letter dated March 2, 2022, the City raised a new argument, asserting that the City is not statutorily required to pay Senior Care’s premiums because the statutory cap is lower than the cost of Senior Care. The City’s letter asserted that the statutory cap for Medicare-eligible retirees “would not be the one for the active employee HIP-HMO plan, as Petitioners argue, but the retiree HIP-HMO plan called HIP-VIP (HMO).” Petitioners responded by letter the next day, objecting to the City’s argument on timeliness grounds and on the merits.

That same day, Supreme Court denied the City’s motion to dismiss and granted the petition in part (*see* 2022 NY Slip Op

1. Although Supreme Court held that the summary judgment motion was not “legally permissible in this proceeding,” the court “reviewed the papers submitted for [the motion] as being incorporated to the 2 motion sequences that were proper” (2022 NY Slip Op 30657[U], *1 n 1 [Sup Ct, NY County 2022]).

30657[U] [Sup Ct, NY County 2022]). The court permanently enjoined the City “from passing along any costs of the New York City retirees’ current plan to the retiree or to any of their dependents, except where such plan rises above the H.I.P.-H.M.O. threshold” (*id.* at *4). With respect to the statutory cap, the court wrote that it was “the Court’s understanding that the threshold is not crossed by the cost of [Senior Care],” though the court’s opinion did not identify how the relevant cap was determined, what dollar amount it represented, or what the cost of Senior Care was (*id.* at *3).

The Appellate Division affirmed the judgment insofar as appealed from by the City. The Court agreed that Administrative Code § 12-126 (b) (1) requires the City to pay the full cost, up to the statutory cap, of any health insurance plan it offers to retirees (210 AD3d 559, 560 [1st Dept 2022]). The Appellate Division held that the question of which plan sets the “statutory cap” was “improperly raised for the first time on appeal” and involved factual issues such as the interpretation of “on a category basis” and the cost of HIP VIP (*id.*).

We granted respondents leave to appeal (39 NY3d 915 [2023]), and now hold that the Appellate Division correctly determined the City must pay the full cost, up to the statutory cap, of any plan it offers. We therefore affirm.

III.

Administrative Code § 12-126 (b) (1) constrains the City’s collective bargaining over health insurance (*cf. Matter of City of Watertown v State of N.Y. Pub. Empl. Relations Bd.*, 95 NY2d 73, 79 [2000] [(B)argaining is mandatory even for a subject ‘treated by statute’ unless the statute ‘“clearly preempt(s) the entire subject matter”’ or the demand to bargain ‘“diminish(es) or merely restate(s) the statutory benefits”’ ”]). Section 12-126 (b) (1) provides: “The city will pay the entire cost of health insurance coverage for city employees, city retirees, and their dependents, not to exceed one hundred percent of the full cost of H.I.P.-H.M.O. on a category basis.” The term “health insurance coverage” is defined in section 12-126 (a) (iv) as “[a] program of hospital-surgical-medical benefits to be provided by health and hospitalization insurance contracts entered into between the city and companies providing such health and hospitalization insurance.” The question in this case is whether the City is statutorily required to pay up to the statutory cap for every plan it offers retirees, or whether section 12-126 is satisfied if

the City offers one subsidized plan for hospital-surgical-medical benefits and others for which it does not pay at all.

“In matters of statutory interpretation, our primary consideration is to discern and give effect to the Legislature’s intention” (*Matter of Albany Law School v New York State Off. of Mental Retardation & Dev. Disabilities*, 19 NY3d 106, 120 [2012]). Where the text is ambiguous, “we inquire into the spirit and purpose of the legislation by examining the statutory context of the provision as well as its legislative history” (*Simmons v Trans Express Inc.*, 37 NY3d 107, 113 [2021] [internal quotation marks omitted]).

Here, the statutory text is ambiguous. In favor of petitioners’ interpretation, “a program of” medical benefits is different from “a plan of” medical benefits. That reading aligns with the City’s longstanding practice of offering multiple health insurance plans as part of a program that included options. Additionally, the City refers to the array of health benefits it offers as the “New York City Health Benefits Program,” further supporting the idea that “program” refers to all plans offered by the City. Moreover, paragraph (iv) specifies that this program of medical benefits is to be provided by “insurance contracts” between the City and health insurance “companies” (emphasis added). The use of the plural for these terms could be read to suggest that “program” would include multiple plans offered by several companies.

In favor of the City’s interpretation, the term “program” could also be read refer to the collection of benefits—i.e., hospital-surgical-medical benefits—under a single health insurance plan, not to a variety of insurance plans offered by the City. The use of the plural “contracts” might merely allow the City to obtain one type of benefit (e.g., medical) from one provider and another type of benefit (e.g., surgical) from a different provider. The City’s interpretation is somewhat supported by subdivision (b) (2) (iii), which states that when an employee “dies and is enrolled in a health insurance plan, the surviving spouse shall be afforded the right to such health insurance coverage” (Administrative Code § 12-126 [b] [2] [iii]). Reading “health insurance coverage” in that context to include a program of whatever the City offered to all employees appears inconsistent with the use of “such,” which evidences an intent to limit the surviving spouse to the plan the decedent had. Similarly, the statutory scheme refers to “health insurance coverage” predicated on Medicare enrollment (*see id.* §

12-126 [b] [1], [2] [i]-[iv]), which would not cohere for similar reasons if the Court adopted petitioners' interpretation of "program."

Given the lack of clarity in the statutory language, we turn to the legislative history. That history better supports the view that when enacting section 12-126, the City Council and the Mayor intended to require the City to pay, up to the cap, for any plans it offered as part of its health insurance program. That reading is consistent with the Council's contemporaneous use of "program" to refer to the City's "program" of health insurance plans. It is also consistent with the many references to employee and retiree choice in the state-law amendments and City Council resolutions that preceded section 12-126.

The legislative history of section 12-126 began in early 1965, when the City entered into a collective bargaining agreement with the Patrolmen's Benevolent Association, the Uniformed Firemen's Association, the Correction Officers' Benevolent Association and the Transit Policemen's Benevolent Association. The City agreed to offer employees a choice among three private health insurance plans and to pay the full cost of each "not to exceed 100 per cent of the full cost of HIP-Blue Cross (21-day plan) on a category basis." On February 11, 1965, the Board of Estimate (Board) adopted a resolution authorizing the City to enter into contracts with the relevant private insurers (2 Journal of Proceedings of Bd of Estimate of City of NY, from Jan. 29, 1965, to Mar. 11, 1965, at 1123 [Cal. No. 155, Feb. 11, 1965]). Resolution 155's language capping the City's required expenditures at the cost of HIP-Blue Cross (21-day plan) was later incorporated into section 12-126.

But there was one problem: Resolution 155 was unlawful. State law forbade the City from providing health care insurance through contracts with private insurers, and also forbade the City from paying more than 50% of the cost of employee and retiree health insurance. Unlike other municipalities and the State itself, the City could enter into health insurance contracts only with nonprofit insurance carriers and could pay only up to 50% of employee/retiree costs. Seeking to make its agreement legal, the City passed a home rule request asking the state legislature to amend the General Municipal Law and the General City Law. In July 1965, the State granted the City the authority to (1) contract with private insurance carriers to provide employee and retiree health insurance, and (2) pay up to the full cost of that insurance (*see* L 1965, ch 782; *see* Gen-

eral City Law § 20 [29], [29-a]). The amendments were enacted in July 1965 but applied retroactively to authorize contracts entered into beginning on January 1, 1965 (*see* L 1965, ch 782, § 5).

The Mayor's office described the state-level amendments as a way to broaden the health insurance choices available to New York City employees and retirees. In New York City's memorandum in support of the 1965 amendments, Assistant to the Mayor Paul E. Bragdon wrote that the bill "would be of great benefit to all persons employed by cities and other municipalities because it *expands the range of available health insurance coverage* for such employees and their families" (City of NY Mem in Support, Bill Jacket, L 1965, ch 782 at 3 [emphasis added]). In another memorandum, he explained: "The choice of coverage which could be offered under these amended statutes would permit each employee to obtain the form of insurance most advantageous to himself in the light of his personal circumstances" (City of NY Revised Mem in Support, Bill Jacket, L 1965, ch 782 at 18). The Mayor's office asserted that the "primary thrust" of the bill was to allow the City to "institute a choice of health insurance plan" like that previously negotiated for certain city employees (*id.* at 17).

Resolution 155 did, in fact, provide retirees and active employees with a choice of health insurance plans. The Resolution itself explained that the City intended to give certain employees "a choice among several hospital-surgical-medical insurance plans" (2 Journal of Proceedings of Bd of Estimate of City of NY, from Jan. 29, 1965, to Mar. 11, 1965, at 1124 [Cal. No. 155, Feb. 11, 1965]). In December 1965, the Board of Estimate extended Resolution 155's choice of plans to all city employees and retirees through Resolution 292, explaining: "It is the desire and intent of the City to grant to all its employees . . . a choice of health plans consisting of H.I.P.-Blue Cross, G.H.I.-Blue Cross and Blue Cross-Blue Shield-Major Medical." (Cum Ann Index to Journal of Proceedings of Bd of Estimate of City of NY, from Jan. 1 to Dec. 31, 1965, at 8557 [Cal. No. 292, Dec. 16, 1965]).

In 1967, the City Council codified the Board's resolutions. The Council's first attempt to do so would have required the City to "provide and pay for the entire cost of *any basic health insurance plan* providing for medical and hospitalization coverage" (Council of City of NY Intro No. 430-1967 [emphasis added]). The proposal did not define the phrase "basic health

insurance plan,” nor did it incorporate any cap on the City’s financial obligations.

On September 12, 1967, the Mayor vetoed the proposal, which he said would subject the City to unpredictable financial burdens. He explained that “[t]he phrase ‘basic health insurance plan’ is nowhere defined, except to say that it does include, but is not limited to, Title XVIII benefits. Thus, the City would be bound to an open-ended obligation to pay for coverages which it cannot now possibly anticipate” (2 Proceedings of Council of City of NY, from July 11 to Dec. 19, 1967, at 75 [M-389, Sept. 12, 1967]). In response, the City Council enacted Local Law 120 (1967) of City of New York, which added the definition of “health insurance coverage” found in Administrative Code § 12-126 (a) (iv): “[a] program of hospital-surgical-medical benefits to be provided by health and hospitalization insurance contracts entered into between the city and companies providing such health and hospitalization insurance” (*see* Council of City of NY Intro No. 474-1967). Local Law 120 also incorporated the “statutory cap” from the Board’s resolutions, requiring the City to pay only up to “the full cost of H.I.P.-Blue Cross (21-day plan) on a category basis”² (Local Law 120 [1967] § 1).

In context, Local Law 120’s definition of “health insurance coverage” sought to control the City’s potential expenditures by limiting retirees to the program of plans offered by the City. Whereas the previous iteration of the law might have required the City to pay the cost of any insurance plan a retiree selected, Local Law 120 requires the City to pay only for the “program” of insurance plans offered by the City. Equally important, Local Law 120 limited the City’s exposure by capping its legal obligation at the “full cost of H.I.P.-Blue Cross (21-day plan) on a category basis,” thus providing a financial exposure limit that addressed the Mayor’s principal concern.

Reading the definition of “health insurance coverage” to extend to the full array of health insurance plans offered by the City also aligns with contemporaneous use of the word “program.” Resolution 292, for example, referred to the City’s

2. In 1984, the City Council amended section 12-126, replacing “H.I.P.-Blue Cross (21-day plan)” with “H.I.P.-H.M.O.” (Local Law No. 28 [1984] of City of NY § 1). A note in the legislative history explains: “The H.I.P./Blue Cross (21 day plan) no longer is used; the correct designation for this health insurance coverage is H.I.P./H.M.O.” (City of NY Off of Mayor, Mem of Martha K. Hirst, Assistant Legis Representative to City Council, Local Law Bill Jacket, Local Law No. 28 [1984] of City of NY).

“health insurance program,” which at the time consisted of three plans (Cum Ann Index to Journal of Proceedings of Bd of Estimate of City of NY, from Jan. 1 to Dec. 31, 1965, at 8561 [Cal. No. 292, Dec. 16, 1965]). Specifically, the Resolution directed the Director of Personnel “to study the effect of the medicare program on the City’s health insurance program and to report to the Board of Estimate . . . his recommendations concerning any adjustments or revisions in the City’s program” (*id.*). Moreover, a 1965 report on behalf of the Mayor requesting funding for the “implementation of choice of health insurance plans” authorized in the Board’s resolutions described the array of plans offered by the City as a “program”:

“In order to provide a choice of health insurance plans for employees not previously eligible for this program as of January 1, 1966, and to cover the cost of providing such choice to employees . . . it is necessary to provide funds for the implementation of said program” (10 Journal of Proceedings of Bd of Estimate of City of NY, from Nov. 19, 1965, to Dec. 31, 1965, at 8249 [Cal. No. 5, Dec. 16, 1965]).

We are asked to resolve what requirements section 12-126 (b) (1) imposes upon the City. We conclude that the City must pay—up to the statutory cap—for each health insurance plan that it offers employees and retirees.

IV.

We are also asked to resolve whether Medicare eligibility is a “category” under section 12-126’s “statutory cap.” The City has not demonstrated that this question is preserved for our review.

The City first raised the argument that HIP VIP sets the statutory cap for Medicare-eligible retirees in a post-hearing letter to Supreme Court, weeks after it had requested a final determination of the petition “as soon as possible,” and on the literal eve of Supreme Court’s decision. The record does not establish that Supreme Court was even aware of the parties’ submissions when it issued its final determination. The court’s decision does not expressly reference the letter or address petitioners’ objection to its belated submission. The decision is most clearly read to hold that, on the motion before it, the court did not need to determine what the statutory cap was, because of the court’s “understanding” that the cost of Senior Care was below the statutory cap however it was determined—a conclusion Supreme Court could have drawn based

on the undisputed facts at the time of the hearing. We thus cannot conclude that Supreme Court considered the issue raised in the letters as timely or in any way ruled on the issue in its decision.

The order of the Appellate Division should be affirmed, with costs.

Judges RIVERA, GARCIA, SINGAS, CANNATARO, TROUTMAN and HALLIGAN concur.

Order affirmed, with costs.

[259 NE3d 454, 232 NYS3d 776]

In the Matter of SHANI JETER, Appellant, v SHEILA POOLE, as
Commissioner of the New York State Office of Children
and Family Services, et al., Respondents.

Argued September 12, 2024; decided November 25, 2024

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered June 28, 2022, in a proceeding pursuant to CPLR article 78 (transferred to the Appellate Division by order of the Supreme Court, entered in New York County). The Appellate Division (1) confirmed a determination of respondent New York State Office of Children and Family Services which, after a hearing, had denied petitioner's request to amend to "unfounded" and to seal an indicated report finding maltreatment of her adopted daughter; (2) denied the petition; and (3) dismissed the proceeding.

Matter of Jeter v Poole, 206 AD3d 556, affirmed.

HEADNOTES

Social Services — Register of Child Abuse and Maltreatment — Fair Hearing — No Constitutional Right to Assigned Counsel

1. In petitioner's CPLR article 78 proceeding challenging the determination of respondent New York State Office of Children and Family Services, made after a fair hearing at which petitioner represented herself, not to expunge petitioner's indicated report on the Statewide Central Register of Child Abuse and Maltreatment (SCR) based upon allegations that she had struck her daughter with an extension cord, the Appellate Division properly concluded that petitioner had no constitutional right to assigned counsel during her SCR administrative hearing. Although petitioner had a protected interest in her reputation and ability to secure employment in her chosen field, those interests alone are not enough to give rise to a constitutional right to the assistance of counsel. Inclusion on the SCR—unlike Family Court article 10 proceedings—does not impact rights that warrant recognition of a constitutional right to assigned counsel in civil proceedings. Property interests typically do not give rise to a constitutional right to assigned counsel, including the kind of property interests at stake in administrative hearings to address professional licenses or certifications. Due process considerations in such cases require only that a party to an administrative hearing be afforded the opportunity to be represented by counsel. Petitioner was provided with that opportunity. Moreover, the existing statutory procedures were sufficient to ensure petitioner's due process rights were protected.

Social Services — Register of Child Abuse and Maltreatment — Statutory Amendments Providing Irrebuttable Presumption at Fair Hearing — Retroactivity

2. The statutory amendments to Social Services Law § 422 (8) (b) (ii), which provide an "irrebuttable presumption" that an allegation of abuse or

neglect that is the subject of a report on the Statewide Central Register of Child Abuse and Maltreatment (SCR) “has not been proven by a fair preponderance of the evidence” when the related Family Court Act article 10 petition is dismissed, do not apply retroactively to determinations by the New York State Office of Children and Family Services rendered before the effective date the legislature provided for the amendments. Accordingly, the amendments did not apply to petitioner’s SCR hearing seeking to expunge her indicated report held prior to the amendments’ effective date. When the legislature enacted the amendments, it specifically provided that those amendments, including the addition of the irrebuttable presumption, would not take effect until a specified date. Thus, it is clear that the legislature intended that the statutory amendments would not apply until that date, which was well after petitioner’s SCR hearing was held and respondent’s determination was rendered. When the legislature enacted the relevant statutory changes, it delayed their effective date for over 18 months. Nothing contained within the statutory text or legislative history evinces a legislative intent to apply the amendments to respondent’s determinations rendered before the effective date. Moreover, application of the new irrebuttable presumption to determinations rendered before the effective date would have retroactive effect by imposing new duties with respect to Family Court proceedings and respondent’s determinations already completed.

Social Services — Register of Child Abuse and Maltreatment — Substantial Evidence

3. In petitioner’s CPLR article 78 proceeding challenging the determination of respondent New York State Office of Children and Family Services not to expunge petitioner’s indicated report on the Statewide Central Register of Child Abuse and Maltreatment based upon allegations that she had struck her daughter with an extension cord, the Appellate Division correctly held that respondent’s determination was supported by substantial evidence in the record. The daughter consistently recounted her version of events to a teacher, a police officer, and the city children’s services agency. A treating physician opined that the daughter’s visible and documented injuries were consistent with being struck by an extension cord. Although petitioner asserted that the daughter’s allegations were false, petitioner never offered an alternative explanation for the injuries. Respondent determined that there was no other credible explanation for the daughter’s injuries and that petitioner’s denial and blaming the incident on the child was not credible. For the same reasons, the hearing officer did not abuse her discretion in refusing to consider an undated note, purportedly written by the daughter, asserting that petitioner did not abuse her but providing no alternative explanation for her documented injuries.

RESEARCH REFERENCES

By the Publisher’s Editorial Staff

AM JUR 2d Administrative Law §§ 309, 310.

McKINNEY’S, Social Services Law § 422 (8) (b) (ii).

NY JUR 2d Administrative Law §§ 224, 226; NY JUR 2d
Public Welfare and Elder Assistance § 323.

ANNOTATION REFERENCE

See ALR Index under Abuse of Persons; Administrative Law; Attorneys; Expungement.

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Query: register /4 "child abuse" /s expunged & counsel

POINTS OF COUNSEL

Lansner & Kubitschek, New York City (*Carolyn A. Kubitschek* and *David J. Lansner* of counsel), for appellant. I. The New York Constitution requires that indigent individuals be provided with counsel at Statewide Central Register name-clearing hearings. (*Matter of Lee TT. v Dowling*, 87 NY2d 699; *People v David W.*, 95 NY2d 130; *People v Bowles*, 89 AD3d 171; *People v VonRapacki*, 204 AD3d 41; *People v Reid*, 59 AD3d 158.) II. Social Services Law § 422 (8) (b) (ii) (b) applies to the instant case. (*Matter of Gwen Y. v New York State Off. of Children & Family Servs.*, 132 AD3d 1091; *Benecke v Barnhart*, 379 F3d 587; *Matter of Gleason [Michael Vee, Ltd.]*, 96 NY2d 117; *Matter of Marino S.*, 100 NY2d 361; *Matter of Asman v Ambach*, 64 NY2d 989.) III. The exclusion from evidence, in a name-clearing hearing, of the written and signed statement of an adolescent is contrary to law and violates the parent's right to procedural due process of law. (*Matter of Charlotte MM. v Commissioner of Children & Family Servs.*, 159 AD3d 1081; *Reeves v Sanderson Plumbing Products, Inc.*, 530 US 133; *Matter of Tamara G.*, 295 AD2d 194; *Matter of Grayson J. [Sharon H.]*, 119 AD3d 575; *People v Mingo*, 12 NY3d 563.) IV. The determination of the State Commissioner was not supported by substantial evidence. (*300 Gramatan Ave. Assoc. v State Div. of Human Rights*, 45 NY2d 176; *Matter of Kelly v Murphy*, 20 NY2d 205; *Matter of Veronica C. v Carrión*, 55 AD3d 411; *Matter of Rhodanna C.B.*, 36 AD3d 106; *Eppler v Van Alstyne*, 93 AD2d 930.)

Letitia James, Attorney General, New York City (*Elizabeth A. Brody*, *Barbara D. Underwood* and *Ester Murdukhayeva* of counsel), for Sheila Poole, respondent. I. Shani Jeter's right-to-counsel claim does not entitle her to relief. (*Matter of Khan v New York State Dept. of Health*, 96 NY2d 879; *Bingham v New York City Tr. Auth.*, 99 NY2d 355; *Henry v New Jersey Tr. Corp.*, 39 NY3d 361; *Clement v Durban*, 32 NY3d 337; *Matter of Bottom v Annucci*, 26 NY3d 983.) II. The First Department properly affirmed the maltreatment determination. (*Matter of Natasha W. v New York State Off. of Children & Family Servs.*, 32 NY3d 982; *Matter of Haug v State Univ. of N.Y. at Potsdam*,

32 NY3d 1044; *Matter of Castilloux v New York State Off. of Children & Family Servs.*, 16 AD3d 1061; *Matter of Vincent KK. v State of N.Y. Off. of Children & Family Servs.*, 284 AD2d 777; *Matter of Chorney v New York State Off. of Children & Family Servs.*, 157 AD3d 437.) III. Shani Jeter's argument based on recent amendments to the Social Services Law is unpreserved and meritless. (*Matter of Shurgin v Ambach*, 56 NY2d 700; *Matter of Mingo v Pirnie*, 55 NY2d 1019; *Matter of Regina Metro. Co., LLC v New York State Div. of Hous. & Community Renewal*, 35 NY3d 332; *Post v 120 E. End Ave. Corp.*, 62 NY2d 19; *Matter of Gleason [Michael Vee, Ltd.]*, 96 NY2d 117.)

Muriel Goode-Trufant, Acting Corporation Counsel, New York City (*Amy McCamphill, Rebecca L. Visgaitis, Richard Dearing and Deborah A. Brenner* of counsel), for David Hansell, respondent. There is no basis for this Court to disturb the Office of Children and Family Services' determination. (*Matter of Khan v New York State Dept. of Health*, 96 NY2d 879; *Matter of Peckham v Calogero*, 12 NY3d 424; *Matter of Bottom v Annucci*, 26 NY3d 983; *Matter of Barbara C.*, 64 NY2d 866; *Hecker v State of New York*, 20 NY3d 1087.)

Domenick Napoletano, New York State Bar Association, Albany (*Linda Gehron* of counsel), for New York State Bar Association, amicus curiae. The New York Constitution requires the appointment of counsel to petitioners who cannot afford an attorney in Statewide Central Register hearings. (*Gideon v Wainwright*, 372 US 335; *People v Witencki*, 15 NY2d 392; *Matter of Ella B.*, 30 NY2d 352; *People ex rel. Menechino v Warden, Green Haven State Prison*, 27 NY2d 376; *People v Bowles*, 89 AD3d 171.)

Tehra Coles, Center for Family Representation, Inc., New York City (*Emily S. Wall* of counsel), for Center for Family Representation, amicus curiae. I. Litigants exercising their rights to seek to clear records in the Statewide Central Register are entitled to have current law applied at each stage of the review process. (*Matter of Regina Metro. Co., LLC v New York State Div. of Hous. & Community Renewal*, 35 NY3d 332; *Matter of Asman v Ambach*, 64 NY2d 989; *Gottwald v Sebert*, 40 NY3d 240; *Landgraf v USI Film Products*, 511 US 244; *Bradley v School Bd. of Richmond*, 416 US 696.) II. The legislative intent of the Statewide Central Register reform was to align the registry records of parents such as Shani Jeter with the

outcomes of their related Family Court proceedings. (*Matter of Cady v County of Broome*, 87 AD2d 964; *Matter of Woodley v Poole*, 226 AD3d 461.)

OPINION OF THE COURT

TROUTMAN, J.

Petitioner contends that her indicated report on the Statewide Central Register of Child Abuse and Maltreatment should be expunged. We disagree and affirm the order of the Appellate Division.

I.

In June of 2019, petitioner’s daughter, T.,¹ who was then 13 years old, disclosed to a friend that petitioner had struck her with an extension cord the previous day. T. then made the same disclosure to a teacher, a police officer, and a caseworker from the New York City Administration for Children’s Services (ACS). The ACS caseworker took photographs of the cuts and bruises on T.’s arms and torso. T. was later taken to an emergency room, and the treating physician opined that her injuries were consistent with being struck with an extension cord.

ACS commenced a Family Court article 10 neglect proceeding² against petitioner and her husband, who had custody of T. and her younger sisters. Family Court authorized an adjournment in contemplation of dismissal (ACD), which allows the court to adjourn the proceedings for a period not exceeding one year “with a view to ultimate dismissal of the petition in furtherance of justice” (Family Ct Act § 1039 [b]). In February of 2020, Family Court dismissed the article 10 proceeding upon the expiration of the adjournment period based on petitioner’s satisfactory compliance with Family Court’s conditions, including completion of parenting and anger management classes.

Meanwhile, the police officer who interviewed T. made a report to the Statewide Central Register of Child Abuse and Maltreatment (SCR). One of the SCR’s primary purposes is to inform child care providers and agencies that a person has a substantiated report of child abuse or maltreatment “for the purpose of regulating their future employment or licensure”

1. Petitioner is T.’s biological great-aunt and adoptive mother.

2. Family Court Act § 1012 (f) (i) (B) defines a “[n]eglected child” to include a child who is subject to “excessive corporal punishment.” T. told the ACS caseworker that petitioner beat her with an extension cord as punishment for perceived misbehavior.

(*Matter of Lee TT. v Dowling*, 87 NY2d 699, 702 [1996]). In July of 2019, ACS determined that the report against petitioner was indicated (*see* Social Services Law § 424 [7]), and petitioner challenged that determination (*see id.* § 422 [8] [a] [i]). After an internal administrative review, the New York State Office of Children and Family Services (OCFS) concluded that a fair preponderance of the evidence supported a determination that petitioner had maltreated T. and that the maltreatment was relevant and reasonably related to employment, licensure, or certification in the child care field (*see id.* § 422 [8] [a] [ii], [v]).³ OCFS then scheduled a fair hearing for petitioner (*see id.* § 422 [8] [a] [iv]-[v]; [b] [i]; *see also Lee TT.*, 87 NY2d at 704).

Petitioner's fair hearing was held in August of 2020, at which ACS had the burden of proof (Social Services Law § 422 [8] [b] [ii]; [c] [ii]). Petitioner represented herself. At the time of petitioner's fair hearing, the Social Services Law provided that "the fact that there is a family court finding of abuse or neglect against the subject in regard to an allegation contained in the report shall create an irrebuttable presumption that said allegation is substantiated" (former Social Services Law § 422 [8] [b] [iii]). Before 2020, no contrary presumption applied if the Family Court article 10 proceedings were dismissed or resolved on the merits in favor of the respondent.

In April of 2020, however, the legislature enacted substantial changes to the statutes governing the SCR. One such change provided that OCFS's administrative review in SCR proceedings should be stayed until any pending Family Court article 10 proceedings regarding the same allegations are resolved (*see* Social Services Law § 422 [8] [a] [ii]). Another change, particularly relevant here, provided a statutory presumption regarding the dismissal of Family Court article 10 proceedings, such that the relevant statutory language now provides with respect to SCR fair hearings:

"In such a hearing, where a family court proceeding pursuant to article ten of the family court act has occurred and where the petition for such proceeding alleges that a respondent in that proceeding committed abuse or neglect against the

3. Pursuant to the statutory definitions applicable to the SCR, a "maltreated child" is a child who is "defined as a neglected child by the family court act" or a child "who has had serious physical injury inflicted upon him or her by other than accidental means" (Social Services Law § 412 [2]).

subject child in regard to an allegation contained in a report indicated pursuant to this section: (A) where the court finds that such respondent did commit abuse or neglect there shall be an irrebuttable presumption in a fair hearing held pursuant to this subdivision that said allegation is substantiated by a fair preponderance of the evidence as to that respondent on that allegation; and (B) where such child protective service withdraws such petition with prejudice, where the family court dismisses such petition, or where the family court finds on the merits in favor of the respondent, there shall be an irrebuttable presumption in a fair hearing held pursuant to this subdivision that said allegation as to that respondent has not been proven by a fair preponderance of the evidence” (Social Services Law § 422 [8] [b] [ii]).

The legislature enacted these statutory changes on April 3, 2020, but provided that the relevant provisions, including the new “irrebuttable presumption” applicable when a Family Court article 10 petition is dismissed, “shall take effect January 1, 2022” (L 2020, ch 56, § 1, part R, § 11). Thus, at the time of petitioner’s fair hearing in August of 2020, these statutory changes were enacted but not yet effective.

After the hearing, OCFS issued a decision dated September 22, 2020, in which it concluded that ACS proved the allegations by a fair preponderance of the evidence and that petitioner’s actions were relevant and reasonably related to child care employment. OCFS concluded that there was “no other credible explanation” for T.’s injuries, and that petitioner’s “denial and blaming the incident on the subject child was not credible.” The decision further stated that “[a] review of the photos and location of the marks seem difficult for the child to inflict upon herself and there is no evidence to suggest that anyone else would have reason to hit the child with an extension cord.”⁴

4. An employer “must inquire of the [SCR] whether there is an indicated report” on petitioner if she sought “employment in a job that would involve ‘regular and substantial contact with children’ ” (*Lee TT.*, 87 NY2d at 705, citing Social Services Law § 424-a [1] [b] [i]). As a result of OCFS’s determination, petitioner would be prohibited from employment in such a position unless the employer maintained a written record regarding the reasons for approval (*see* Social Services Law § 424-a [2] [a]). With the exception of

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Petitioner thereafter commenced this CPLR article 78 proceeding against ACS and OCFS, seeking to challenge OCFS's determination (*see Lee TT.*, 87 NY2d at 705 [(“If the report is not expunged after the hearing, the subject of the report may commence a proceeding pursuant to CPLR article 78 to challenge the decision”). Supreme Court transferred the proceeding to the Appellate Division (*see* CPLR 7804 [g]). In an amended petition filed October 28, 2021, petitioner, by then represented by counsel, contended that she had a constitutional right to assigned counsel during the SCR hearing. Petitioner also contended before the Appellate Division that the “irrebuttable presumption” for Family Court article 10 dismissals should be applied to her on appeal.

The Appellate Division unanimously confirmed OCFS's determination, denied the petition, and dismissed the CPLR article 78 proceeding (206 AD3d 556 [1st Dept 2022]). The Court held that petitioner had no constitutional right to assigned counsel and that the changes to Social Services Law § 422 did not apply retroactively to SCR fair hearings held before the January 1, 2022 effective date (*see id.* at 557-558). The Appellate Division further concluded that OCFS's determination was supported by substantial evidence and that the hearing officer did not abuse her discretion in refusing to consider a letter purportedly authored by T. (*see id.* at 557). This Court granted petitioner leave to appeal (39 NY3d 911 [2023]). We now affirm.

II.

[1] The Appellate Division properly concluded that petitioner had no constitutional right to assigned counsel during her SCR administrative hearing (*see also Matter of Mangus v Niagara County Dept. of Social Servs.*, 68 AD3d 1774, 1775 [4th Dept 2009], *lv denied* 15 NY3d 705 [2010]; *Matter of Gell v Carrion*, 81 AD3d 953, 954 [2d Dept 2011]). Although petitioner has a protected interest in her reputation and ability to secure employment in her chosen field (*Lee TT.*, 87 NY2d at 708-710), those interests alone are not enough to give rise to a constitutional right to the assistance of counsel. Inclusion on the SCR—unlike Family Court article 10 proceedings—does not impact

permitted disclosures to certain child care agencies and law enforcement, SCR reports are confidential and unlawful disclosure constitutes a misdemeanor (*see generally Lee TT.*, 87 NY2d at 705; Social Services Law §§ 422 [4]; 424-a).

rights that we have concluded warrant recognition of a constitutional right to assigned counsel in civil proceedings, such as physical liberty, bodily autonomy, or care and custody of one's children (*cf. Matter of Ella B.*, 30 NY2d 352, 356-357 [1972]; *People ex rel. Menechino v Warden, Green Haven State Prison*, 27 NY2d 376, 383-385 [1971]). Property interests typically do not give rise to a constitutional right to assigned counsel (*see Matter of Brown v Lavine*, 37 NY2d 317, 320-322 [1975]), including the kind of property interests at stake in administrative hearings to address professional licenses or certifications (*see e.g. Matter of Watson v Fiala*, 101 AD3d 1649, 1650-1651 [4th Dept 2012]). "Due process considerations in such cases require only that a party to an administrative hearing be afforded the opportunity to be represented by counsel" (*Matter of Baywood Elec. Corp. v New York State Dept. of Labor*, 232 AD2d 553, 554 [2d Dept 1996]). Petitioner was provided with that opportunity here. Moreover, the existing statutory procedures are sufficient to ensure petitioner's due process rights are protected, such that "[w]e cannot say that fairness can only be achieved for the indigent with the aid of assigned counsel, however desirable that assistance might be" (*Brown*, 37 NY2d at 321).

Petitioner likens inclusion on the SCR to inclusion on the state's sex offender registry. But the right to counsel at Sex Offender Registration Act (SORA) hearings is statutory, not constitutional (*see* Correction Law § 168-n [3]). Appellate Division cases recognizing a right to effective assistance of counsel at SORA hearings have done so on the basis that "the statutory right to counsel in such proceedings . . . would otherwise be rendered meaningless" (*People v VonRapacki*, 204 AD3d 41, 43 [3d Dept 2022], citing *People v Bowles*, 89 AD3d 171, 177-178 [2d Dept 2011]). If counsel is to be provided during SCR proceedings, "it is for the Legislature to say so, for constitutional due process does not command it" (*Brown*, 37 NY2d at 321).⁵

5. Petitioner also relies on the fact that her husband, who was represented by counsel during his SCR proceeding, was successful, attributing his success to the representation. OCFS explains, however, that the allegations against petitioner's husband were based upon his alleged beating of T. with an extension cord in May of 2019, after which she told no one and had no marks that were still visible when ACS's investigation commenced in June of 2019. ACS chose not to present evidence at the SCR hearing for petitioner's

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III.

[2] The Appellate Division also properly concluded that the statutory amendments to Social Services Law § 422 (8) (b) (ii) do not apply retroactively to OCFS determinations rendered before the effective date the legislature provided for the amendments, i.e., January 1, 2022.

“It is fundamental that a court, in interpreting a statute, should attempt to effectuate the intent of the Legislature” (*Majewski v Broadalbin-Perth Cent. School Dist.*, 91 NY2d 577, 583 [1998], quoting *Patrolmen’s Benevolent Assn. of City of N.Y. v City of New York*, 41 NY2d 205, 208 [1976]). “It is a fundamental canon of statutory construction that retroactive operation is not favored by courts and statutes will not be given such construction unless the language expressly or by necessary implication requires it” (*id.* at 584). Here, petitioner’s fair hearing was held in August of 2020, and OCFS rendered its determination on September 22, 2020. When the legislature enacted the amendments to Social Services Law § 422 in 2020, it specifically provided that those amendments—including the addition of the irrebuttable presumption at issue here—would not take effect until January 1, 2022 (L 2020, ch 56, § 1, part R, § 11). Thus, it is clear that the legislature intended that the statutory amendments would not apply until January 1, 2022—well after petitioner’s SCR hearing was held and OCFS’s determination was rendered.

Petitioner and the dissent assert that because the statutory amendments became effective while her appeal was pending, the Appellate Division and this Court should apply them as existing law. Cases which state that the Court should simply apply the law as it exists at the time of appeal without considering the legislature’s intent are cases that predate this Court’s more recent precedent acknowledging that the intent of the legislature is controlling (*see* dissenting op at 260-261, citing, *inter alia*, *Post v 120 E. End Ave. Corp.*, 62 NY2d 19, 28-29 [1984], and *Matter of Asman v Ambach*, 64 NY2d 989 [1985]).⁶ In more recent cases, we have not reflexively applied statutory

husband, requiring dismissal regardless of whether he was represented by counsel.

6. The dissent relies heavily on United States Supreme Court and federal case law, but “[i]f no Federal constitutional principles are involved, the question of retroactivity is one of State law” (*People v Martello*, 93 NY2d 645, 650 [1999]). *Asman* is also distinguishable. There, the legislature specifically provided that the statutory amendments at issue there would apply to

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amendments simply because they were effective by the time the appeal was heard, but instead have analyzed what effect, if any, the legislature intended the statutory amendments to have on proceedings already commenced (*see e.g. People v King*, 42 NY3d 424, 427-428 [2024]; *People v Pastrana*, 41 NY3d 23, 29-30 [2023]; *Gottwald v Sebert*, 40 NY3d 240, 256-260 [2023]; *People v Galindo*, 38 NY3d 199, 207-208 [2022]). We have observed that even where the legislature instructs that statutory amendments should apply immediately, that instruction is “equivocal in an analysis of retroactivity,” because “the date that legislation is to take effect is a separate question from whether the statute should apply to claims and rights then in existence” (*Majewski*, 91 NY2d at 583 [internal quotation marks omitted]), and that this legislative instruction is not enough to require the application of the statutory amendments to pending litigation (*see Gottwald*, 40 NY3d at 259).

In *Galindo*, for example, the legislature enacted statutory amendments while the defendant’s direct appeal was pending (*see Galindo*, 38 NY3d at 202). We did not apply those statutory amendments on appeal simply because they were by then effective. Instead, we concluded that the legislature intended those statutory amendments to “apply to criminal actions commenced on or after the effective date of the amendment” (*id.*). We reasoned that neither the statutory text nor the legislative history supported retroactive application of the statute, noting that the legislature delayed the effective date of the amendment for eight months from its enactment (*see id.* at 207). We stated that “[t]his lengthy lapse in time weighs against immediate application of the amendment and suggests a policy choice to effect a future change in the law,” evincing the legislature’s intent *not* to impact pending matters or to apply the amendment retroactively (*id.*).

The same logic applies here. The legislature enacted the relevant statutory changes in 2020 but delayed their effective date for over 18 months. The legislature certainly could have instructed that these amendments should apply to pending SCR proceedings, but it did not (*cf. Gottwald*, 40 NY3d at 259-260 [legislature provided that statutory amendments would apply to pending cases insofar as they have been continued after the effective date]; *Asman*, 64 NY2d at 990 [legislature

proceedings in which a notice of hearing had been served prior to the effective date of the statutory amendments (*see* 64 NY2d at 990).

provided that statutory amendments would apply to proceedings in which a notice of hearing had been served prior to the effective date]). Nothing contained within the statutory text or legislative history evinces a legislative intent to apply the amendments to OCFS determinations rendered before the effective date.

Petitioner's assertions that the statutory amendments should be applied retroactively to her OCFS determination because they are "procedural" or "remedial" are also unpersuasive. We have instructed that such classifications do not "automatically overcome the strong presumption of prospectivity" and that general principles regarding statutory classifications "may serve as guides in the search for the intention of the Legislature in a particular case but only where better guides are not available" (*Majewski*, 91 NY2d at 584 [internal quotation marks omitted]). Here, the legislature specifically instructed that the statutory amendments to Social Services Law § 422 (8) would not take effect until January 1, 2022, after petitioner's SCR proceedings had concluded.

Finally, petitioner's assertion, accepted by the dissent, that the application of the statutory amendments to cases pending on direct appeal from OCFS determinations rendered before the effective date of the amendments would have no retroactive impact is without merit. As the cases discussed above demonstrate, the application of a statutory amendment to cases pending on direct appeal may result in retroactive effect (see e.g. *King*, 42 NY3d at 427-428; *Galindo*, 38 NY3d at 207; see also *Matter of Regina Metro. Co., LLC v New York State Div. of Hous. & Community Renewal*, 35 NY3d 332, 363-367 [2020]). The existence of these cases is part of the "decisional law background" of which the dissent insists the legislature must be presumed aware (see dissenting op at 263). "A statute has retroactive effect . . . if it would impair rights a party possessed when he acted, increase a party's liability for past conduct, or impose new duties with respect to transactions already completed" (*American Economy Ins. Co. v State of New York*, 30 NY3d 136, 147 [2017] [internal quotation marks omitted]).

Application of the new irrebuttable presumption to OCFS's SCR determinations rendered before the effective date would have such retroactive effect by imposing new duties with respect to Family Court proceedings and OCFS determinations already completed. ACS asserts that it might not have offered,

and Family Court might not have granted, an adjournment in contemplation of dismissal (ACD) to petitioner if the impact of that ACD would be that petitioner's indicated report would not appear on the SCR. ACS notes that this is particularly true where, as here, the allegations did not involve poverty-related neglect, which was a primary concern of the legislature (*see* Senate Introductor's Mem in Support of 2019 Senate Bill S6427A, Veto Jacket, Veto 232 of 2019 at 9 ["The vast majority of allegations made to the SCR involve poverty-related neglect and not child abuse"]), but rather a physical attack on the subject child.

It is undisputed that the State has "a strong interest" in protecting children from abuse (*Lee TT.*, 87 NY2d at 710). ACS and OCFS were entitled to rely on the law as it existed at the time in order to make their determinations, in the absence of any indication of legislative intent to the contrary.⁷ In so holding, we do not attempt to "find a 'manifest injustice' " to "justify [our] determination" (dissenting op at 267), but instead attempt to effectuate the intent of the legislature.

IV.

[3] The Appellate Division correctly held that OCFS's determination is supported by substantial evidence in the record. Substantial evidence is a "minimal standard" that is "less than a preponderance of the evidence" and requires only that "a given inference is reasonable and plausible" (*Matter of Haug v State Univ. of N.Y. at Potsdam*, 32 NY3d 1044, 1045-1046 [2018] [internal quotation marks omitted]). "Where substantial evidence exists, the reviewing court may not substitute its

7. Counsel for OCFS has also asserted that the new irrebuttable presumption is not automatically applied to Family Court article 10 dismissals, but rather, in order to determine whether the presumption applies, the relevant local child protective agency must review all the relevant Family Court records and any findings made by Family Court in order to confirm that the Family Court disposition qualifies for the irrebuttable presumption (*see* Office of Children and Family Services, Administrative Directive 33, 21-OCFS-ADM-33 at 9 [Dec. 23, 2021], available at https://ocfs.ny.gov/main/policies/external/ocfs_2021/ADM/21-OCFS-ADM-33.pdf [last accessed Nov. 18, 2024] [stating that an ACD in Family Court "may or may not" result in an irrebuttable presumption in the SCR proceeding, depending in part upon whether a "finding of abuse or neglect was made" during the Family Court proceeding]). Although the dissent concludes that the ACD petitioner received in Family Court would qualify for the statutory presumption (*see* dissenting op at 265), in light of our holding that the statutory amendments do not apply to OCFS's fair hearing determinations rendered before the January 1, 2022 effective date, we express no opinion on that issue.

judgment for that of the agency, even if the court would have decided the matter differently” (*id.* at 1046). “Where substantial evidence exists to support a decision being reviewed by the courts, the determination must be sustained, irrespective of whether a similar quantum of evidence is available to support other varying conclusions” (*id.* [internal quotation marks omitted]; *see also Matter of Black v New York State Tax Appeals Trib.*, 41 NY3d 131, 145 [2023]).

T. consistently recounted her version of events to a teacher, police officer, and ACS. A treating physician opined that T.’s visible and documented injuries were consistent with being struck by an extension cord. Although petitioner asserted that T.’s allegations were false, petitioner never offered an alternative explanation for T.’s injuries. OCFS determined that there was no other credible explanation for T.’s injuries and that petitioner’s “denial and blaming the incident on the subject child was not credible.” For the same reasons, the hearing officer did not abuse her discretion in refusing to consider an undated note, purportedly written by T., asserting that petitioner did not abuse her but providing no alternative explanation for her documented injuries (*see Matter of Charlotte MM. v Commissioner of Children & Family Servs.*, 159 AD3d 1081, 1082-1083 [3d Dept 2018]; *Matter of R.B. v New York State Off. of Children & Family Servs.*, 199 AD3d 429, 430-431 [1st Dept 2021]).

Although the dissent would not address the substantial evidence issue (*see* dissenting op at 266), the dissent adopts petitioner’s view of the facts (dissenting op at 256-257).⁸ This is antithetical to our substantial evidence standard of review. On

8. For example, the dissent asserts that T.’s teachers “confirmed that she had no marks on her arms when she was at school that day” (dissenting op at 256). This appears to be based upon petitioner’s assertion that petitioner did not see any bruising before T. left for school, and that none of T.’s teachers called ACS to report bruising. Of course, the fact that T.’s teachers did not call ACS to report any injuries before a different teacher called the police does not mean that T.’s injuries did not exist, particularly where T.’s injuries were observed and photographed. The record does not state that T. told her therapist that she had lied “about her mother beating her” (dissenting op at 257). Rather, T.’s therapist stated in a letter that T. had admitted that she “lied on her aunt about various things because her aunt took away some of her privileges,” something OCFS determined that T. also told ACS as an explanation for why petitioner had beaten her in the first place. Petitioner further asserted that T.’s purported recantation should be considered credible because, according to petitioner, it was offered to Family Court by the attorney for the child (*see* dissenting op at 257). The full record of the Family

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this record, Family Court did not “determine” anything regarding the ultimate merits of T.’s allegations (*see* dissenting op at 267), i.e., that T.’s allegations were false or her subsequent alleged recantation was credible. Rather, Family Court dismissed the article 10 proceedings against petitioner after the expiration of the adjournment period in accordance with the adjournment in contemplation of dismissal.

An ACD is not a determination that allegations of abuse or neglect were fabricated, unfounded, or unsubstantiated. It is not a determination on the merits of the allegations at all, but rather “leaves the question unanswered” (*Matter of Marie B.*, 62 NY2d 352, 359 [1984]). An ACD constitutes a determination by the parties and Family Court that the ends of justice and the needs of the child would be best served by allowing the Family Court respondent to comply with certain conditions, and, so long as those conditions are met, the proceeding will be dismissed (*see e.g. Matter of R.B.*, 199 AD3d at 430, citing *Matter of Stephen FF. v Johnson*, 23 AD3d 977, 978 [3d Dept 2005]).

Accordingly, the order of the Appellate Division should be affirmed, without costs.

Chief Judge WILSON (dissenting). Family Court dismissed charges of child abuse levelled at Shani Jeter and her husband by their teenage daughter. The legislature determined that in such situations, the Office of Children and Family Services (OCFS) could not continue to list their names on New York’s Statewide Central Register, which identifies persons charged with abuse or neglect of children. Both Ms. Jeter and her husband brought administrative proceedings to change their designations in the Register from “indicated” to “unfounded,” at which only Ms. Jeter’s husband was represented by counsel. OCFS granted Ms. Jeter’s husband’s request but not hers, leaving her listed as “indicated” for having abused or neglected a child. The majority concludes that this result is warranted because the legislature did not intend the new law to apply retroactively. But this case has nothing to do with retroactiv-

Court proceedings is not before us, and the record does not demonstrate whether Family Court found this letter credible, found that it had any bearing on whether the incident actually occurred, or considered it relevant to whether T.’s best interests would be served by returning to her home provided that petitioner received adequate parenting supports. Ultimately, where, as here, there are facts in the record supporting OCFS’s determination, we are bound to apply the substantial evidence standard and uphold the administrative determination, even if there is evidence in the record supporting a contrary conclusion (*see Haug*, 32 NY3d at 1046).

ity; instead, it rests on a long-settled doctrine that courts apply changes in law that take effect when a case is pending. Because Ms. Jeter's case was pending before the Appellate Division when the new legislation took effect, it is governed by that legislation.

Here, applying the new legislation to pending cases furthers the legislature's stated goal to address disparities in outcomes for poor people and across racial lines. The legislature determined that the best way to do this was by ensuring that the Family Court determination was binding on whether the report was "indicated" or "unfounded" in the Register. Despite the majority's contention that "it is clear that the legislature intended" that these amendments would not apply to someone in Ms. Jeter's position (majority op at 250), the legislature did nothing to displace the longstanding, universal rule that changes in law apply to cases pending on appeal. Instead, the majority undermines the law's purpose by misconstruing the relevant doctrine, pointing to the legislature's silence, and inventing reasons to call this law retroactive.

I.

After school one day in June 2019, 13-year-old T. disappeared. Her mother, Shani Jeter, filed a missing person's report with the police.¹ T. had been diagnosed with oppositional defiant disorder and saw a therapist. T. turned up later that day at a different school with a person she refused to identify and went to the police, displaying marks on her arms and upper body. She told the police that her mother had beaten her with an electrical cord the day before. T. also accused her father of beating her in the past and said that the parents often beat her and her two younger sisters with extension cords and belts.

Inconsistently with her account of abuse, T. had left for school with no marks on her arms and her teachers confirmed that she had no marks on her arms when she was at school that day. T. told the Administration for Children's Services (ACS), the New York City children's protective services agency, that Ms. Jeter beat her because two days earlier T. had defaced a computer monitor by etching a smiley face and a curse word onto it; she had actually defaced the monitor a month earlier. Within two weeks, T. recanted her entire story, a piece at a

1. Jeter and Lang are T.'s great-aunt and great-uncle; they first fostered T. and her two younger sisters and later adopted them.

time. T. first retracted her statements that her younger sisters had been beaten, and the older of the two (10 years old) told ACS that her parents had never hit any of the sisters. T. next retracted her own statement; she said she had never been beaten with any object, saying that she had only been hit on one prior occasion. Finally, she signed a document saying she had made up the accusations, which her lawyer (not her parents' lawyers) tendered to Family Court. T. told her therapist that she had lied about her mother beating her because her mother had removed some of T.'s privileges.

The Family Court ordered the children returned to their parents and dismissed the charges against Mr. Lang. Shortly thereafter, in September 2019, the District Attorney dropped the criminal charges against Ms. Jeter; and in February 2020, Family Court dismissed the case against Ms. Jeter after an adjournment in contemplation of dismissal (ACD). But, as a result of T.'s accusations, her parents' names remained listed as "indicated" for child abuse or neglect on the Register. Under the statutory scheme in place when the Family Court dismissed the charges, the court's determination did not bind OCFS, which often listed names as "indicated" on the Register even after Family Court had dismissed all proceedings against them. Under the law at the time, persons in that position could request a name-clearing hearing before an administrative law judge within OCFS.

T.'s parents requested name-clearing hearings. Ms. Jeter had been suspended from her job because she was listed on the Register. Her listing on the Register also barred her from finding another job in her field: working with developmentally disabled children and adults. Neither of T.'s parents could afford counsel; they had been represented by court-appointed counsel in Family Court. On August 27, 2020, an ALJ heard Ms. Jeter's request to clear her name; she had to represent herself because she had no lawyer. ACS was represented by counsel; it presented no witnesses but moved into evidence the entire investigative record.

II.

Under prior and current law, a finding of abuse or neglect by the Family Court creates an irrebuttable presumption that the allegations are supported by a preponderance of the evidence, precluding all challenges to maintaining the related Register record (Social Services Law § 422 [8]).

However, under prior law, even when charges in the Family Court were determined to be unfounded, the finding created no presumption relating to the Register record (18 NYCRR 434.10 [f] [(D)issmissal or withdrawal of a Family Court petition does not create a presumption that there is a lack of a fair preponderance of the evidence to prove that a child has been abused or maltreated for purposes of this Part]). OCFS could maintain the “indicated” designation on the Register even if the Family Court determined that the charges were baseless. Persons wishing to have their names removed from the Central Register were required to relitigate allegations they prevailed on in the Family Court; they sometimes obtained inconsistent outcomes in the Family Court and administrative proceedings on identical allegations (*see e.g. Matter of Gwen Y. v New York State Off. of Children & Family Servs.*, 132 AD3d 1091, 1092 n 1 [3d Dept 2015]; *Matter of Stephen FF. v Johnson*, 23 AD3d 977 [3d Dept 2005]).

In April 2020, the legislature passed and the Governor signed a new law ensuring that Family Court’s determinations and dismissals are binding on OCFS. Under current law, if the Family Court dismisses charges of abuse, OCFS must remove the alleged abuser’s name from the Register. The legislature altered the law to “reduce the harsh and disproportionate consequences of having an indicated case on the” Register, which “will ultimately relieve individuals from the prospect of being persecuted for the ‘crime’ of being poor” (Sponsors’ Letter to Governor in Support of 2019 NY Senate Bill S6427A, 2019 NY Assembly Bill A8060, Veto Jacket, Veto 232 of 2019 at 6). The sponsors noted “widespread agreement that a system meant to help children is actually hurting some families by blocking job opportunities” (*id.*, quoting Yasmeen Khan, *Changes Proposed for a System that Stigmatizes Parents Accused of Child Neglect*, WNYC, June 12, 2019, available at <https://www.wnyc.org/story/state-system-meant-keep-children-safe-actually-hinders-family-stability-advocates-say/>). The legislature determined that the best way to do this was by ensuring that the Family Court dismissal of charges required removal of the accused’s name from the Register.

OCFS described the purpose of the legislation in the same terms: to “address[] the disproportionality and disparity in race and income for families engaged with [Child Protective Services]” (Office of Children and Family Services, *Change in Standard of Evidence for Child Protective Services Investiga-*

tions, 21-OCFS-ADM-26 at 2 [Nov. 4, 2021], https://ocfs.ny.gov/main/policies/external/ocfs_2021/ADM/21-OCFS-ADM-26.pdf; see also Suzanne Miles-Gustave, Acting Commissioner of Office of Children and Family Services, Letter in Response to New York State Citizen Review Panels for Child Protective Services 2022 Annual Report [June 23, 2023], <https://ocfs.ny.gov/main/reports/cfsp/2024-NYS-APSR-AttB.pdf> [“The primary purpose of SCR (Statewide Central Register) Reform is to address racial, socioeconomic, and other disparities in the (children’s protective services) system while improving outcomes for families and promoting child safety”]).

The 2020 legislation had an effective date of January 1, 2022 (L 2020, ch 56, § 1, part R, § 11). The effective date was deferred to address the need for the courts and OCFS to put in place the various mechanisms needed to effectuate the automatic removal of names of those vindicated in Family Court. Then-Governor Andrew Cuomo had vetoed a virtually identical version of the law in 2019, citing the “immediate effective date, which would not allow for adequate time to implement necessary systems changes” (Governor’s Veto Mem, 2019 NY Senate Bill S6427A [same-as bill to 2019 NY Assembly Bill A8060], Veto Jacket 232 of 2019 at 5).

The amendment requires that the irrebuttable presumption is reciprocal: acquittal in Family Court creates an irrebuttable presumption that the parent did not commit abuse and therefore cannot be listed on the Register. The irrebuttable presumption favoring the parent exists “where [the] child protective service withdraws such petition with prejudice, where the family court dismisses such petition, or where the family court finds on the merits in favor of the respondent” (Social Services Law §§ 422 [8] [b] [ii]; 424-a [1] [e] [vi]). A parent who obtains any of those outcomes is entitled to an “unfounded” designation in the Register (*id.*).

The legislature changed whether an irrebuttable presumption applies to Family Court determinations in name-clearing hearings to eliminate a variety of enumerated injuries to persons who prevailed in Family Court—including people like Ms. Jeter who had counsel in Family Court but not in administrative proceedings. Now, sections 422 (8) and 424-a (1) (e) provide that the State’s interest in the public identification of child abusers is determined solely by Family Court, where—unlike the administrative proceedings before OCFS—the parties have the right to counsel, the rules of evidence apply, and

a family court judge decides the case instead of an employee of OCFS. Family Court's decision automatically determines placement on the Register.

After Family Court dismissed the charges against Ms. Jeter, she challenged her "indicated" report before an ALJ for OCFS. Her hearing took place in August 2020, four months after the new law was enacted but almost 16 months before it was scheduled to take effect. The next month, the ALJ denied her request. Ms. Jeter challenged that determination in a CPLR article 78 proceeding timely filed in January 2021 in Supreme Court. Supreme Court transferred the case to the Appellate Division, which decided Ms. Jeter's case on June 28, 2022—over five months after the new legislation took effect.

III.

A.

Among the several arguments Ms. Jeter advances, one is patently correct: because her case was pending when the new legislation took effect, it applies to her case and she is therefore entitled to have her designation on the Register changed to "unfounded." Chief Justice John Marshall stated the general rule: "if subsequent to the judgment and before the decision of the appellate court, a law intervenes and positively changes the rule which governs, the law must be obeyed, or its obligation denied" (*United States v Schooner Peggy*, 1 Cranch [5 US] 103, 110 [1801]). The Supreme Court has continued to follow that rule. In *Thorpe v Housing Authority of Durham*, the Supreme Court reaffirmed that "[t]he general rule . . . is that an appellate court must apply the law in effect at the time it renders its decision" (393 US 268, 281 [1969]).

We have unfailingly followed that same rule: "a court applies the law as it exists at the time of appeal, not as it existed at the time of original determination" (*Matter of Asman v Ambach*, 64 NY2d 989, 990 [1985], citing *Matter of Alscot Inv. Corp. v Board of Trustees of Inc. Vil. of Rockville Ctr.*, 64 NY2d 921 [1985], *Post v 120 E. End Ave. Corp.*, 62 NY2d 19, 28-29 [1984], *Mayer v City Rent Agency*, 46 NY2d 139, 149 [1978], *Matter of Tartaglia v McLaughlin*, 297 NY 419 [1948], and *Quaker Oats Co. v City of New York*, 295 NY 527, 536 [1946]; see also Arthur Karger, Powers of the New York Court of Appeals § 17:7 [3d ed rev, Sept. 2023 update], citing *Matter of Kahn [National City Bank]*, 284 NY 515, 523 [1940], *Matter of*

Demisay, Inc. v Petito, 31 NY2d 896, 897 [1972], *Asman*, 64 NY2d at 990, and *Alscot Inv. Corp.*, 64 NY2d at 922).

The case before us is an article 78 proceeding challenging an administrative decision made under preexisting law. The ALJ did not err in applying old law, because that was the law in force at the time. The new law took effect only later, when the article 78 proceeding challenging the ALJ's determination was pending. In those exact circumstances, we and the Appellate Division have consistently applied the new law on appeal, not the old law that was in effect when the administrative decision was made (see e.g. *Alscot Inv. Corp.*, 64 NY2d 921; *Matter of Scism v Fiala*, 122 AD3d 1197 [3d Dept 2014]; *Matter of Jamaica Recycling Corp. v City of New York*, 38 AD3d 398 [1st Dept 2007]; *Matter of Trifaro v Town of Colonie*, 31 AD3d 821 [3d Dept 2006]; *Matter of D'Agostino Bros. Enters., Inc. v Vecchio*, 13 AD3d 369 [2d Dept 2004]; *Matter of Linder v Schneider*, 176 AD2d 319 [2d Dept 1991]).

Courts around the country, from the Founding until now, have held that when the law changes in this way the change in law can be raised for the first time on appeal, even before a court of last resort. (See e.g. *United States v Chambers*, 291 US 217, 226 [1934]; *Hamling v United States*, 418 US 87, 101-102 [1974]; *Henderson v United States*, 568 US 266, 271-277 [2013]; *Demars v First Serv. Bank For Sav.*, 907 F2d 1237 [1st Cir 1990]; *Equal Empl. Opportunity Commn. v Westinghouse Elec. Corp.*, 765 F2d 389 [3d Cir 1985]; *Alexander S. v Boyd*, 113 F3d 1373, 1388 [4th Cir 1997]; *Deck v Peter Romein's Sons, Inc.*, 109 F3d 383, 386 [7th Cir 1997]; *Ex parte L.J.*, 176 So 3d 186, 194 [Ala 2014]; *Fresneda v State*, 458 P2d 134, 143 & n 28 [Alaska 1969]; *People v Bank of San Luis Obispo*, 159 Cal 65, 68-69, 112 P 866, 867-868 [1910]; *Nevada D.H.H.S. Div. of Welfare v Lizama*, 2017 WL 6547070, *4, 2017 N. Mar. I. LEXIS 16, *9 [N Mariana Is., Dec. 21, 2017, 2016-SCC-0031-FAM].) Several of our cases speak to that very point. (See e.g. *Post v 120 E. End Ave. Corp.*, 62 NY2d at 28-29 ["new questions of law may be raised for the first time on appeal if they could not have been presented to the trial court"], citing Cohen & Karger, Powers of the New York Court of Appeals [rev ed], §§ 161, 162, now Karger, Powers of the New York Court of Appeals §§ 17:1, 17:2; *Matter of Regina Metro. Co., LLC v New York State Div. of Hous. & Community Renewal*, 35 NY3d 332, 362-363 [2020], quoting *Matter of Gleason [Michael Vee, Ltd.]*, 96 NY2d 117, 121 n [2001].) Although the State argues that we cannot reach

Ms. Jeter’s argument because her failure to alert the ALJ to the not-yet-effective amendment renders the issue unpreserved, the majority correctly rejects that argument by reaching the merits of Ms. Jeter’s claim.²

When addressing the merits, however, the majority abandons the settled law in Ms. Jeter’s favor by mischaracterizing the legal issue at stake. The question is not whether the law applies “retroactively to OCFS determinations rendered before the effective date” (majority op at 250); the question is whether once the changed statute became the law, its new “rule of decision” applies to Ms. Jeter’s appeal (*Schooner Peggy*, 1 Cranch [5 US] at 110). This case is not about the retroactive impact of a law: the majority’s analysis is addressed to someone whose appeals were exhausted before January 1, 2022. That is not Ms. Jeter.

A law has “genuinely ‘retroactive’ effect” where “it would impair rights a party possessed when he acted, increase his liability for past conduct, or impose new duties with respect to transactions already completed” (*Landgraf v USI Film Products*, 511 US 244, 277, 280 [1994]). But the new Social Services Law § 422 (8) does none of those things. The majority’s argument to the contrary is based not on law or fact, but on conjecture. “[A] statute does not operate ‘retrospectively’ merely because it applied in a case arising from conduct antedating the statute’s enactment” (*Gottwald v Sebert*, 40 NY3d 240, 258 [2023]). When a law impugns no previous rights, imposes no new liability, nor unsettles final matters (such as lawsuits that have exhausted their appeals) “the law as it exists at the time a decision is rendered on appeal is controlling” (*Alscot Inv. Corp.*, 64 NY2d at 922). The majority can point to no circumstance here that defeats the U.S. Supreme Court’s recitation of settled law: “a court is to apply the law in effect at the time it renders its decision, unless doing so would result in manifest injustice or there is statutory direction or legislative history to the contrary” (*Bradley v School Bd. of Richmond*, 416 US 696, 711 [1974]). The majority ignores those cases—instead it

2. Lack of preservation is a threshold issue that prevents us from addressing a question on the merits (see *Bingham v New York City Tr. Auth.*, 99 NY2d 355, 359 [2003], citing *Telaro v Telaro*, 25 NY2d 433, 439 [1969]). The majority’s merits resolution of Ms. Jeter’s argument about right to counsel, like its merits resolution of Ms. Jeter’s claim as to the amendment’s applicability, necessarily rejects the State’s argument that a claim to the constitutional right to counsel must be preserved.

manufactures statutory guidance where there is none and fabricates an interest for OCFS to create the appearance of retroactivity.

B.

The majority claims “it is clear that the legislature intended that the statutory amendments would not apply until January 1, 2022” (majority op at 250). The first problem is that there is a difference between the law changing on a date and the law applying before that date. The law that courts apply to a pending case when a statute or decisional law changes is the law as it is on that day. Had Ms. Jeter’s name-clearing hearing happened on January 2, 2022, instead of before the effective date of the new Social Services Law § 422 (8) (b) (ii), no one could dispute that the ALJ would have had to apply the irrebuttable presumption. The ALJ would have applied the law as it was that day. The same is true for the Appellate Division—and should be for this Court. That does nothing to undercut the law’s effective date.

The second problem with the majority’s rationale is that we assume the legislature understands the law—including this Court’s decisions. “The Legislature is . . . presumed to be aware of the decisional and statute law in existence at the time of an enactment” (*Arbegast v Board of Educ. of S. New Berlin Cent. School*, 65 NY2d 161, 169 [1985]); “[a]scertainment of the legislative intent behind [an] enactment . . . requires consideration of the decisional law background . . . of which it may be presumed the Legislature was aware and, to the extent it left it unchanged, that it accepted” (*Hammelburger v Foursome Inn Corp.*, 54 NY2d 580, 588 [1981]).

When the law became effective on January 1, 2022, Ms. Jeter’s appeal was pending. Courts, including ours and the U.S. Supreme Court, uniformly hold that a law that becomes effective while an appeal is pending applies to that case. If the legislature had any doubt about whether *Schooner Peggy*, *Thorpe*, *Bradley*, *Landgraf*, *Asman*, *Alscot Inv. Corp.*, *Post*, *Mayer*, *Matter of Tartaglia*, *Quaker Oats Co.*, *Matter of Kahn*, *Demisay, Inc.* or *Regina* would apply, it could have said so. It would have been very easy to include in the amended Social Services Law § 422 that the irrebuttable presumption would not apply to cases on appeal on the effective date. The legislature said nothing of the kind here.

The 2020 amendments themselves show that the legislature chose to make that distinction when it wanted to. The statu-

tory text distinguishes between investigations commenced prior to the January 1, 2022 effective date that determine whether evidence was “credible,” and investigations begun after the effective date backed by a “fair preponderance” (Social Services Law §§ 412 [6]-[7]; 422 [5] [a]). Those date-specific amendments also change rules of decision. But when it came to the irrebuttable presumption, the legislature did not put in parallel text circumscribing its impact on name-clearing hearings after January 1, 2022: neither section 422 (8) nor section 424-a (1) (e) has any language circumscribing their application once codified.

The third problem is where the majority’s logic then takes it: to a faulty interpretation of the delayed effective date. “[T]he date that legislation is to take effect is a separate question from whether the statute should apply to claims and rights then in existence” (*People v Pastrana*, 41 NY3d 23, 30 [2023], quoting *Majewski v Broadalbin-Perth Cent. School Dist.*, 91 NY2d 577, 583 [1998]). Although a delayed effective date may be relevant to a retroactivity analysis, it is not so in a change in law analysis. The majority cites *People v Galindo* to try to demonstrate that a delayed effective date should be dispositive here (38 NY3d 199, 202 [2022]; majority op at 251). There, we considered whether the new speedy trial obligations in CPL 30.30 (1) could apply to a case that was on appeal after the change in law took effect; we found it could not because to apply it would require the appellate court to “reach back” and entirely redo the entire prejudgment period (*id.* at 207). Doing so would have imposed new duties on the prosecution—duties that the prosecution argued did not even apply to the kind of traffic case at bar in *Galindo*. The additional speedy trial duties of CPL 30.30 (1) in Mr. Galindo’s case gave that law a genuine retroactive effect. The dispositive issue in *Galindo* was not whether the law took effect while the case was on appeal—it was whether the duties it imposed on the prosecution and rights it granted defendants took effect before or after a criminal action began.

Fourth, the majority disregards the legislature’s intent. With no basis, it claims that this Court only just recently began to consider the legislature’s intent in change of law cases. And then carrying the mantle of legislative intent, it cites *Majewski*’s maxim that “[i]t is fundamental that a court, in interpreting a statute, should attempt to effectuate the intent of the Legislature” (91 NY2d at 583), only to disregard the intent of

the legislature here: to render Family Court’s decisions determinative of whether a person would be listed on the Register and remove that function from OCFS ALJs. The legislature reworked the 2020 amendments with a delayed effective date in apparent response to Governor Cuomo’s objection that OCFS needed time to implement the changes. After giving the agency 18 months, the irrebuttable presumption had to be in place for all dismissals. The majority creates an exception for pending cases that the legislature did not write.

C.

To transform the new Social Services Law § 422 (8) (b) (ii) into one with retroactive effect, the majority dreams up a new duty for OCFS. Perhaps, the majority supposes, ACS “*might* not have offered, and Family Court *might* not have granted” an ACD “*if* the impact of that ACD would be that [Ms. Jeter’s] report would not appear on the SCR”—because *then* the law would “impos[e] new duties” on ACS (majority op at 252-253 [emphasis added]). The majority wonders how a law that took effect in 2022 after being passed in 2020 might have shaped ACS’s ACD negotiating strategy in 2019—but a hypothetical impact on negotiating strategy is not a new duty. Unsupported conjecture is not supposed to be the basis for appellate decision-making.

Its hypothesis about how ACS’s approach to the ACD would have differed—even were it supported by the record—is immaterial. To start, we do not know here whether ACS consented to or even opposed Ms. Jeter’s ACD and dismissal—we only know that Family Court granted it. The amendment did not alter ACS’s rights to oppose or support an ACD, nor did it alter ACS’s duties to protect children. Those remain unchanged regardless of whether the result in Family Court would have led to the irrebuttable presumption for the SCR entry. Most importantly, the legislature did not write the law with any consideration of ACS’s position on a dismissal or ACD. The law requires the irrebuttable presumption whenever “the family court dismisses such petition” with no distinction for whether it was dismissed after an ACD, on the initiative of ACS or sua sponte by Family Court (Social Services Law § 422 [8] [b] [iii]). Nor would the new law have imposed new liability on ACS if the irrebuttable presumption had applied to ACDs. It certainly did not create a new duty for ACS.

The majority elevates OCFS over the actual legislators in New York State. Because ACS and OCFS “were entitled to rely

on the law as it existed at the time” of Ms. Jeter’s Family Court proceeding (majority op at 253), the legislature’s decision to remove OCFS from the picture in favor of automatic results based solely on Family Court proceedings does not matter: under the majority’s view, those governmental agencies had a legally protectable interest in the law and policy of the State not changing. But a public agency cannot claim to have an interest in not abiding by the public policy or law made by the legislature. No one, and surely not an arm of the executive branch, is “entitled” to any reliance on the law remaining the same (see *Preston Co. v Funkhouser*, 261 NY 140, 144 [1933] [“Nor has a person a vested interest in any rule of law entitling him to have the rule remain unaltered”], *affd* 290 US 163 [1933]). Moreover, even if ACS could be said to have had relied on Ms. Jeter’s remaining on the SCR, the legislature extinguished any public interest in a SCR independent of Family Court determinations.

The majority cannot create retroactive impact in a law that merely changes how an administrative record works. Its mistakes illustrate a prudential reason why courts apply new rules of decision on appeal where they do not have genuine retroactive effect—we cannot know whether ACS or Family Court would have thought about Ms. Jeter’s ACD differently if her case had been before them three years in the future. When a change in law would materially affect the rights, liabilities or duties of the parties, we might conclude that applying a law before its effective date imposes a retroactive effect. But because the new law does none of those, and instead provides a different “rule of decision,” we should follow Chief Justice Marshall and over two centuries of jurisprudence to apply the law as it is today.

Ms. Jeter’s position is both legally correct and practically sensible. Until the statute took effect, there was no legal basis for the ALJ or a court to apply it. Ms. Jeter raised the application of the new legislation to her case before the Appellate Division, which was her first opportunity to do so. Because the law simply changes the rule of decision without creating new duties or liabilities, it has no retroactive effect; the change in law that took effect while her legal claim was pending must apply to Ms. Jeter’s case.

IV.

Because I would reverse on the above grounds, I would not reach any of Ms. Jeter’s other claims. I note, however, that al-

though the majority does not acknowledge it, the strength of her facial due process claim as to the denial of counsel is difficult to assess because the application of the new legislation should radically decrease and alter the nature of name-clearing hearings going forward. The majority does, however, silently and correctly concede that Ms. Jeter did not need to preserve her right to counsel claim.

There is a sharp irony in Ms. Jeter's case. Her chosen career is aiding developmentally disabled persons. She first fostered and then adopted her grandnieces. She later lost her job and profession because of a recanted accusation. When represented by a lawyer, all charges against her were dismissed by a family court judge, but when she was subsequently unrepresented, an ALJ concluded Ms. Jeter did not meet her burden to prove what Family Court already determined.

Perhaps even more ironic is the majority's decision to mischaracterize a change in law as a retroactive law. In seeking to find a "manifest injustice" that would justify its determination that the law has retroactive effect, the majority would continue to lock Ms. Jeter out of her chosen career of serving others. The legislature has displaced the agency's determination with Family Court's, but the majority ignores the language and entire purpose of that amendment. Our job is to follow settled law and the legislature's command. Here, that requires us to reverse and remit to ensure Ms. Jeter has the benefit of the legislature's judgment that Family Court's processes and orders are superior to those of an administrative law judge.

Judges GARCIA, SINGAS and CANNATARO concur. Chief Judge WILSON dissents in an opinion, in which Judges RIVERA and HALLIGAN concur.

Order affirmed, without costs.

[259 NE3d 474, 232 NYS3d 795]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v PARRIS
J. RUFUS, Appellant.

Argued November 20, 2024; decided December 19, 2024

PROCEDURAL SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Fourth Judicial Department, from an order of that Court, entered October 6, 2023. The Appellate Division affirmed a judgment of the Monroe County Court (Meredith A. Vacca, J.), which had convicted defendant, after a nonjury trial, of driving while intoxicated.

HEADNOTES

Motor Vehicles — Operating Vehicle while Under Influence of Alcohol or Drugs — Probable Cause for Traffic Stop — Crossing Fog Line

1. In defendant's prosecution for driving while intoxicated, police had probable cause to stop defendant after observing his vehicle cross the fog line three times within a short distance and time. Whether a driver has violated Vehicle and Traffic Law § 1128 (a) is a fact-specific determination, which depends upon what is "practicable" under the circumstances and what a driver has "ascertained." Defendant told one of the troopers who had pulled him over that he had swerved because he saw the patrol car behind him. The troopers observed signs of alarming driving. The record showed that defendant did not merely "touch" the fog line or barely cross over it once while otherwise abiding by all rules of the road. Rather, both troopers testified that defendant crossed the fog line three times within seconds and a short distance of a tenth of a mile. Thus, defendant's failure to stay in his lane was not a de minimis diversion. When a driver swerves over the fog line repeatedly, in quick succession, they have failed to "drive[] as nearly as practicable entirely within a single lane" in violation of Vehicle and Traffic Law § 1128 (a).

Motor Vehicles — Operating Vehicle while Under Influence of Alcohol or Drugs — Legally Sufficient Evidence

2. Defendant's conviction of driving while intoxicated in violation of Vehicle and Traffic Law § 1192 (3) was based on legally sufficient evidence. A trooper testified at trial that he observed defendant bearing telltale physical signs of intoxication: bloodshot and glassy eyes; slurred and illogical speech; and conduct incongruous with that of a sober driver, such as providing a plastic air freshener wrapper instead of the vehicle registration card. These signs were confirmed by the results of defendant's field sobriety tests and by defendant's admission that he had been drinking. That evidence supported defendant's conviction of driving while intoxicated. Defendant's weight of the evidence challenge was unreviewable because where, as here, the Appellate Division has properly considered such a challenge, the Court of Appeals is without authority to review the Appellate Division's determination.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Automobiles and Highway Traffic §§ 131, 340, 345, 348–349, 949, 962; AM JUR 2d Searches and Seizures §§ 81, 83, 89.
CARMODY-WAIT 2d Arrest or Other Detention; Post-Arrest Procedure §§ 177:78, 177:100–177:101.
LAFAVE, ET AL., CRIMINAL PROCEDURE (4th ed) §§ 3.3, 3.5, 3.7.
MCKINNEY'S, Vehicle and Traffic Law §§ 1128 (a); 1192 (3).
NY JUR 2d Automobiles and Other Vehicles §§ 744, 878, 881, 890, 910; NY JUR 2d Criminal Law: Procedure §§ 128, 218, 456.

ANNOTATION REFERENCE

Driving automobile while intoxicated as a substantive criminal offense. 42 ALR 1498.

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/p “fog line”

POINTS OF COUNSEL

Fiandach & Fiandach, Rochester (Edward L. Fiandach of counsel), for appellant. I. Crossing the fog line with the right front tire was an insufficient basis for the stop of the motor vehicle. (*People v Malinsky*, 15 NY2d 86; *People v Berrios*, 28 NY2d 361; *People v Guthrie*, 25 NY3d 130; *Steigelman v Transervice Lease Corp.*, 145 AD3d 439; *Guerrero v Milla*, 135 AD3d 635.) II. The verdict in this case was both insufficient and against the weight of the evidence presented at trial. (*People v Bleakley*, 69 NY2d 490; *People v Cruz*, 48 NY2d 419; *People v Hammond*, 35 AD3d 905; *People v Rosado*, 158 Misc 2d 50; *People v Ardila*, 85 NY2d 846.)

Sandra Doorley, District Attorney, Rochester (Amy N. Walendziak of counsel), for respondent. I. The New York State Troopers had probable cause to stop defendant's vehicle. (*People v Vandover*, 20 NY3d 235; *People v Brown*, 25 NY3d 973; *People v Estrella*, 10 NY3d 945; *People v Howard*, 22 NY3d 388; *People v Harrison*, 57 NY2d 470.) II. Defendant's contentions are not

reviewable by this Court, and are otherwise without merit. (*People v Hawkins*, 11 NY3d 484; *People v Gray*, 86 NY2d 10; *People v Finger*, 95 NY2d 894; *People v Santi*, 3 NY3d 234; *People v Ramos*, 19 NY3d 133.)

OPINION OF THE COURT

RIVERA, J.

Defendant challenges his conviction of driving while intoxicated, claiming that the vehicular stop that led to his arrest was unlawful. Defendant also claims that the trial evidence was legally insufficient to support the court's guilty verdict on that count and weighed in favor of acquittal. Based on the totality of the circumstances, we conclude that the officers had probable cause to stop defendant after they observed his vehicle cross the fog line three times within a short distance and time.¹ We also conclude that defendant's legal insufficiency claim is without merit and his weight of the evidence claim is unreviewable (see *People v Bleakley*, 69 NY2d 490, 495 [1987]; see also *People v Danielson*, 9 NY3d 342, 349 [2007]). Therefore, we affirm the Appellate Division.

* * *

Defendant was charged and convicted following a nonjury trial of felony driving while intoxicated under Vehicle and Traffic Law § 1192 (3). Before trial, defendant moved to suppress evidence of his intoxication obtained during the car stop, arguing that the stop was unsupported by probable cause. The evidence adduced at the suppression hearing showed that defendant was driving in the right-hand lane of a three-lane interstate highway at approximately 2:00 a.m. on a Sunday, with two State Troopers, Tiwana and Statt, behind him in a patrol car. The troopers testified that they observed the tires on the right side of defendant's vehicle cross the solid white fog line onto the right shoulder of the road three times within a tenth of a mile. Defendant was traveling within the speed limit.

Trooper Tiwana testified that he directed defendant to pull over. After defendant complied, Trooper Tiwana approached on the driver's side and observed that defendant was the sole occupant. He then informed defendant that he was pulling him over for swerving over the line, asked him where he was traveling, and requested his driver's license and vehicle registration.

1. The "fog line" is the solid white line that runs between the roadway and the shoulder.

Defendant handed over his license but gave the trooper the plastic backing of an air freshener instead of his registration, which he provided later during the encounter. Trooper Tiwana further testified that during these initial interactions, he smelled a strong odor of alcohol, noted that defendant's speech was slurred and illogical, and observed that defendant had bloodshot, glassy eyes and droopy eyelids. According to the trooper, defendant claimed that "he was swerving because he saw [the] patrol car approaching from the rear."

Trooper Tiwana then asked defendant to exit the vehicle. The trooper observed that, as defendant was getting out, he grabbed the car door for balance before walking slowly toward the front of the car. Trooper Tiwana then administered four sobriety tests, the results of which led him to conclude that defendant was intoxicated. He then placed defendant under arrest and transported him to a local police station. During the ride, defendant volunteered that he had been drinking, although, before the arrest, he had denied consuming alcohol. At the station, defendant refused to take a chemical breath test.

The court denied defendant's motion to suppress, crediting the troopers' testimony that they observed defendant's vehicle cross the fog line three times within a tenth of mile, which supported their reasonable belief that defendant had violated Vehicle and Traffic Law § 1128 (a). At defendant's bench trial, the troopers testified consistently with their suppression hearing testimonies, and the court admitted the police report of defendant's refusal to submit to a chemical test. Based on the record evidence, the court found defendant guilty of driving while intoxicated, in violation of Vehicle and Traffic Law § 1192 (3), and later sentenced him.²

A divided Appellate Division affirmed, concluding that the record supported the suppression court's determination that Trooper Tiwana had probable cause to believe that defendant violated Vehicle and Traffic Law § 1128 (a) before stopping his vehicle because he had observed the vehicle "swerve and cross over the white fog line three times within a tenth of a mile" (220 AD3d 1162, 1163 [4th Dept 2023]). The majority also rejected defendant's remaining claims. The dissenting Justices would have reversed the conviction solely on the lack of probable cause because, in their view, there was no evidence of de-

2. The court dismissed the second count of the indictment, refusal to take a breath test in violation of Vehicle and Traffic Law § 1194 (1) (b).

fendant's unsafe driving (*see id.* at 1163-1167 [Curran & Ogden, JJ., dissenting]). One of the dissenting Justices granted defendant leave to appeal.

As relevant here, an automobile stop is lawful when it is “based on probable cause [to believe] that a driver has committed a traffic violation” (*People v Hinshaw*, 35 NY3d 427, 430 [2020], quoting *People v Robinson*, 97 NY2d 341, 350 [2001]). Here, the troopers stopped defendant based on an alleged violation of Vehicle and Traffic Law § 1128 (a). That section provides: “[a] vehicle shall be driven as nearly as practicable entirely within a single lane and shall not be moved from such lane until the driver has first ascertained that such movement can be made with safety.”

[1] Whether a driver has violated Vehicle and Traffic Law § 1128 (a) is a fact-specific determination, which depends upon what is “practicable” under the circumstances and what a driver has “ascertained.” Thus, whether conduct observed by an officer amounts to a probable violation of Vehicle and Traffic Law § 1128 (a) is a determination based on the totality of the circumstances. Defendant’s claim that the troopers lacked a lawful basis to stop him because he was not swerving or otherwise driving erratically is a gross mischaracterization of the record and is contradicted by his own statement. The hearing court credited Trooper Tiwana’s testimony that he stopped defendant for swerving over the fog line and that defendant told him that he swerved because he saw the patrol car behind him. We find unpersuasive defendant’s effort to minimize his conduct as a brief, subtle lane departure, commonly observed on the road and generally accepted as within the bounds of the law. The troopers observed signs of alarming driving. The record shows that defendant did not merely “touch” the fog line or barely cross over it once while otherwise abiding by all rules of the road. Rather, both troopers testified that defendant crossed the fog line three times within seconds and a short distance of a tenth of a mile. Thus, contrary to the defendant’s suggestion his failure to stay in his lane was not a *de minimis* diversion.

When a driver swerves over the fog line repeatedly, in quick succession, they have failed to “drive[] as nearly as practicable entirely within a single lane” in violation of Vehicle and Traffic Law § 1128 (a) (*see e.g. Matter of Schoonmaker v New York State Dept. of Motor Vehs.*, 33 NY3d 926, 928 [2019] [testimony that vehicle “ma(de) an erratic movement off the right side of the road, crossing the fog line and moving off the shoulder with

the vehicle's right front tire" provided substantial evidence that stop was lawful under Vehicle and Traffic Law § 1128 (a) (brackets omitted)]; *People v Tandle*, 71 AD3d 1176, 1177, 1178 [2d Dept 2010]; *People v Parris*, 26 AD3d 393, 394 [2d Dept 2006]; cf. *People v Davis*, 58 AD3d 896, 898 [3d Dept 2009] [police officer's testimony that driver had made "brief contacts with the fog line," but not that driver was, for example, "weaving, driving erratically or even that he drove onto the shoulder" was insufficient to support traffic stop under Vehicle and Traffic Law § 1128 (a)]. On these facts, the troopers' observations, which were credited by the suppression court, established probable cause for the traffic stop. Therefore, the court properly denied the motion to suppress.

[2] Defendant's challenges based on the sufficiency and weight of the evidence do not warrant reversal. "A verdict is legally sufficient when, viewing the facts in a light most favorable to the People, 'there is a valid line of reasoning and permissible inferences from which a rational jury could have found the elements of the crime proved beyond a reasonable doubt'" (*Danielson*, 9 NY3d at 349, quoting *People v Acosta*, 80 NY2d 665, 672 [1993]). Section 1192 (3) of the Vehicle and Traffic Law states that "[n]o person shall operate a motor vehicle while in an intoxicated condition." Trooper Tiwana testified at trial that he observed defendant bearing telltale physical signs of intoxication: bloodshot and glassy eyes; slurred and illogical speech; and conduct incongruous with that of a sober driver, such as providing a plastic air freshener wrapper instead of the vehicle registration card. These signs were confirmed by the results of defendant's field sobriety tests and by defendant's admission that he had been drinking. That evidence supports defendant's conviction of driving while intoxicated, in violation of Vehicle and Traffic Law § 1192 (3) (cf. *People v Cruz*, 48 NY2d 419, 427 [1979]). Defendant's weight of the evidence challenge is unreviewable because where, as here, the Appellate Division has properly considered such a challenge, "this Court is without authority to review the Appellate Division's . . . determination" (*Danielson*, 9 NY3d at 349; cf. *People v Kancharla*, 23 NY3d 294, 306 [2014]).

Accordingly, the order of the Appellate Division should be affirmed.

Chief Judge WILSON and Judges GARCIA, SINGAS, CANNATARO, TROUTMAN and HALLIGAN concur.

Order affirmed.

[260 NE3d 324, 233 NYS3d 545]

In the Matter of 160 EAST 84TH STREET ASSOCIATES LLC, Appellant, v NEW YORK STATE DIVISION OF HOUSING AND COMMUNITY RENEWAL, Respondent. (Index No. 157557/20.)

Argued November 20, 2024; decided December 19, 2024

PROCEDURAL SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered October 18, 2022. The Appellate Division order, insofar as appealed from, affirmed an order of the Supreme Court, New York County (Arthur F. Engoron, J.; op 2021 NY Slip Op 34221[U] [2021]), entered in a proceeding pursuant to CPLR article 78, which had (1) denied the petition to (a) annul respondent New York State Division of Housing and Community Renewal’s (DHCR) “Explanatory Addenda” to a rent deregulation order; (b) annul DHCR’s order denying the petition for administrative review challenging the addenda; and (c) reinstate the deregulation order; and (2) dismissed the proceeding.

Matter of 160 E. 84th St. Assoc. LLC v New York State Div. of Hous. & Community Renewal, 209 AD3d 517, affirmed.

HEADNOTE

Landlord and Tenant — Rent Regulation — Housing Stability and Tenant Protection Act’s Repeal of Luxury Deregulation — Apartments with Deregulation Orders Prior to Enactment and Leases Not Expiring Until after Effective Date of Repeal

Respondent Division of Housing and Community Renewal properly interpreted part D of the Housing Stability and Tenant Protection Act of 2019 (HSTPA), which repealed “luxury deregulation” of rent-stabilized residences, as applying to apartments that, prior to the repeal, were ordered to become deregulated upon expiration of the tenants’ leases, which would not expire until after the effective date of the repeal. Accordingly, respondent’s denial of deregulation for an apartment owned by petitioner, which had obtained a luxury deregulation order prior to the HSTPA, because its lease with the tenant expired after the statute took effect was proper and did not constitute an impermissible retroactive application. Part D states that Rent Stabilization Law (Administrative Code of City of NY) § 26-504.3—the sole statutory authority for luxury deregulation—was “repealed” (L 2019, ch 36, § 1, part D) and that the repeal “shall take effect immediately” (*id.* part D, § 8). Because the HSTPA became law on June 14, 2019, as of that date there ceased to be any provision in New York law for an apartment to become luxury deregulated. Since luxury deregulation became unavailable upon the HSTPA’s passage, there was no statute authorizing respondent to exempt previously qualifying apartments from rent stabilization if they were not lux-

ury deregulated as of June 14, 2019. Respondent did not retroactively vitiate petitioner's interests, inasmuch as the conditions for luxury deregulation had not been fully satisfied because the lease had not yet expired and the enactment of the HSTPA prevented that deregulation from coming into effect. Because this analysis required only a prospective application of part D of the HSTPA, the statute is not impermissibly retroactive.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Landlord and Tenant §§ 876, 879, 881.

CARMODY-WAIT 2d Proceeding Against a Body or Officer
§§ 145:898, 145:932.

DOLAN, RASCH'S NEW YORK LANDLORD AND TENANT,
INCLUDING SUMMARY PROCEEDINGS (5th ed) §§ 2:38–
2:40, 11:9.

NY JUR 2d Landlord and Tenant §§ 444, 662.

ANNOTATION REFERENCE

See ALR Index under Landlord and Tenant; Leases;
Rent; Rent Control.

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Query: ("high income" or luxury) /3 deregulation & "housing stability #and tenant protection act" or HSTPA

POINTS OF COUNSEL

Horing Welikson Rosen & Digrugilliers PC, Williston Park (Jillian N. Bittner of counsel), for appellant. I. The New York State Division of Housing and Community Renewal (DHCR) had neither jurisdictional nor statutory authority to issue the Explanatory Addenda to Order; nor was any such authority conveyed upon DHCR by the Housing Stability and Tenant Protection Act of 2019. (*Matter of Classic Realty v New York State Div. of Hous. & Community Renewal*, 2 NY3d 142; *Matter of Dowling v Holland*, 245 AD2d 167; *Majewski v Broadalbin-Perth Cent. School Dist.*, 91 NY2d 577; *People v Brown*, 25 NY3d 247; *Lubonty v U.S. Bank N.A.*, 34 NY3d 250.) II. The Explanatory Addenda to Order constitutes an impermissible retroactive application of part D of the Housing Stability and Tenant Protection Act of 2019 that is not authorized by the legislature. (*Casey v Whitehouse Estates, Inc.*, 39 NY3d 1104; *Matter of County of St. Lawrence v Daines*, 81 AD3d 212; *Mat-*

ter of Harris v Israel, 191 AD3d 468; *Murphy v Board of Educ. of N. Bellmore Union Free School Dist.*, 104 AD2d 796; *Shielcrawt v Moffett*, 294 NY 180.) III. The law in effect at the time appellants filed the petitions, and obtained the deregulation orders, governs. (*Matter of Mengoni v New York State Div. of Hous. & Community Renewal*, 97 NY2d 630; *Matter of Century Tower Assoc. v State of N.Y. Div. of Hous. & Community Renewal*, 83 NY2d 819; *Matter of Mark Greenberg Real Estate v Division of Hous. & Community Renewal*, 258 AD2d 313; *Matter of Amsterdam-Manhattan Assoc. v Joy*, 42 NY2d 941; *Matter of AEJ 534 E. 88th, LLC v New York State Div. of Hous. & Community Renewal*, 194 AD3d 464.) IV. The Explanatory Addenda to Order impermissibly revived time-barred claims. (*Hopkins v Lincoln Trust Co.*, 233 NY 213; *Matter of Thomas v Bethlehem Steel Corp.*, 63 NY2d 150; *Matter of Beary v City of Rye*, 44 NY2d 398; *35 Park Ave. Corp. v Campagna*, 48 NY2d 813.) V. The Explanatory Addenda to Order, which purports to interpret part D of the Housing Stability and Tenant Protection Act of 2019, is not entitled to deference. (*Matter of West 58th St. Coalition, Inc. v City of New York*, 188 AD3d 1; *Kurcsics v Merchants Mut. Ins. Co.*, 49 NY2d 451; *Matter of Dworman v New York State Div. of Hous. & Community Renewal*, 94 NY2d 359.)

Letitia James, Attorney General, New York City (*Matthew W. Grieco, Barbara D. Underwood and Ester Murdukhayeva* of counsel), for respondent. I. The New York State Division of Housing and Community Renewal correctly determined that the subject apartments could no longer be deregulated. (*People v Talluto*, 39 NY3d 306; *James B. Nutter & Co. v County of Saratoga*, 39 NY3d 350; *Matter of Walsh v New York State Comptroller*, 34 NY3d 520; *Town of Aurora v Village of E. Aurora*, 32 NY3d 366; *Draper v Georgia Props.*, 94 NY2d 809.) II. There is no basis to find undue delay in cases involving deregulation petitions filed in 2016. (*Matter of Yonkers Gardens Co. v State of N.Y. Div. of Hous. & Community Renewal*, 51 NY2d 966; *Matter of St. Vincent's Hosp. & Med. Ctr. of N.Y. v New York State Div. of Hous. & Community Renewal*, 109 AD2d 711; *Matter of Schutt v New York State Div. of Hous. & Community Renewal*, 278 AD2d 58; *Matter of Dickinson v Daines*, 15 NY3d 571; *Matter of Brookford, LLC v New York State Div. of Hous. & Community Renewal*, 31 NY3d 679.)

Belkin Burden Goldman LLP, New York City (*Magda L. Cruz* of counsel), for New York Apartment Association, amicus cu-

riae. In the luxury deregulation statutory scheme, the operative factors for exemption from rent regulation are income and rent, not lease expiration. (*Kuzmich v 50 Murray St. Acquisition LLC*, 34 NY3d 84; *Matter of Essex County v Zagata*, 91 NY2d 447; *Matter of Guido v Town of Ulster Town Bd.*, 74 AD3d 1536; *Matter of Rosado-Ciriello v Board of Educ. of the Yonkers City Sch. Dist.*, 219 AD3d 839; *Matter of Auerbach v Board of Educ. of City School Dist. of City of N.Y.*, 86 NY2d 198.)

OPINION OF THE COURT

TROUTMAN, J.

Our primary task on this appeal is statutory interpretation. Specifically, we are asked to determine whether the Division of Housing and Community Renewal (DHCR) properly interpreted part D of the Housing Stability and Tenant Protection Act of 2019 (HSTPA)—repealing so-called “luxury deregulation” of rent-stabilized residences—as applying to apartments that, prior to the repeal, were ordered to become deregulated upon expiration of the tenants’ leases, which would not expire until after the effective date of the repeal. We answer that question in the affirmative and hold that, contrary to petitioner’s contention, DHCR’s interpretation of part D as eliminating luxury deregulation for an apartment owned by petitioner was proper and did not constitute an impermissible retroactive application. Finally, we reject petitioner’s remaining arguments as being without merit.

I.

The Rent Stabilization Law (RSL) (Administrative Code of City of NY § 26-501 *et seq.*) was enacted in 1969 to address “the intractable housing emergency in the City of New York” (*Manocherian v Lenox Hill Hosp.*, 84 NY2d 385, 389 [1994]). The RSL contains a legislative finding that the housing shortage is “a serious public emergency” involving “an acute shortage of dwellings,” and that government intervention is necessary “in order to prevent speculative, unwarranted and abnormal increases in rents” (RSL § 26-501).

DHCR administers the RSL by promulgating regulations for rent stabilization based on statutory criteria and by prohibiting owners of regulated units from charging more rent than those regulations allow (*see* RSL §§ 26-511, 26-512). Those regulations are codified in the Rent Stabilization Code (RSC) (*see* 9 NYCRR 2520.1 *et seq.*).

The legislature has amended and reenacted the RSL numerous times by adjusting the terms under which tenants rent apartments and owners earn revenue from their properties (see *Matter of Regina Metro. Co., LLC v New York State Div. of Hous. & Community Renewal*, 35 NY3d 332, 369 [2020]). This Court has consistently held that, given the long history of rent regulation in New York City, neither owners nor tenants “can expect the RSL to remain static” (*id.*). Furthermore, we have explained that, although owners can expect to “earn a reasonable return” on their properties, they have no right to expect that any particular iteration of the RSL will remain in force (*id.* [internal quotation marks omitted]).

From 1993 to 2019, the legislature amended the RSL several times by adjusting the income threshold for high-income deregulation (luxury deregulation) (see L 1997, ch 116, § 16; see also L 2011, ch 97, § 1, part B, § 36). Former RSL § 26-504.3 provided that, each year, landlords of rent-stabilized apartments for which the rent exceeded the statutory threshold could provide their tenants with an income certification form inquiring about whether tenants’ household income exceeded the statutory threshold (former RSL § 26-504.3 [b]). It required the tenants to return the completed form and, if their certified income exceeded the statutory threshold for two consecutive years, “the owner [could] file the certification with [DHCR]” who was then required to “issue an order providing that such housing accommodation shall not be subject to the provisions” of the RSL “upon the expiration of the existing lease” (*id.*).

However, if tenants did not return the form, landlords could petition DHCR to verify the tenants’ income. If, after DHCR’s verification, the agency determined that the income exceeded the statutory threshold for two years, DHCR was then required to issue a deregulation order specifying that the unit would “not be subject to the [RSL] upon the expiration of the existing lease” (*id.* § 26-504.3 [c] [2]). If the tenant failed to provide the information necessary to verify their income, DHCR was similarly required to issue an order that conditioned deregulation “upon the expiration of the current lease” (*id.* § 26-504.3 [c] [3]; see also *Matter of Classic Realty v New York State Div. of Hous. & Community Renewal*, 2 NY3d 142, 145-146 [2004]). The RSC regulations in effect at the time similarly provided that any deregulation order became effective “upon the expiration of the existing lease” (former 9 NYCRR 2531.3 [eff until Nov. 7, 2023]).

In 2019, the legislature enacted major changes to the RSL in the Housing Stability and Tenant Protection Act of 2019 (*see* L 2019, ch 36, as amended). Part D of the HSTPA repealed the provisions of the RSL authorizing luxury deregulation (*see id.* § 1, part D, § 5). The repeal provision stated that it “shall take effect immediately” (*id.* part D, § 8).

In support of repeal, the legislature made the following “findings and declaration of emergency” (*id.* part D, § 1):

“Section 1. Legislative findings and declaration of emergency. The legislature hereby finds and declares that the serious public emergency which led to the enactment of the existing laws regulating residential rents and evictions continues to exist; that such laws would better serve the public interest if certain changes were made thereto, including the continued regulation of certain housing accommodations that become vacant.

“The legislature further recognizes that severe disruption of the rental housing market has occurred and threatens to be exacerbated as a result of the present state of the law in relation to the deregulation of housing accommodations upon vacancy. The situation has permitted speculative and profiteering practices and has brought about the loss of vital and irreplaceable affordable housing for working persons and families.

“The legislature therefore declares that in order to prevent uncertainty, potential hardship and dislocation of tenants living in housing accommodations subject to government regulations as to rentals and continued occupancy as well as those not subject to such regulation, the provisions of this act are necessary to protect the public health, safety and general welfare. The necessity in the public interest for the provisions hereinafter enacted is hereby declared as a matter of legislative determination” (*id.*).

A cleanup bill enacted a few days later amended part D, § 8 to read as follows: “This act shall take effect immediately; provided however, that (i) any unit that was lawfully deregulated prior to June 14, 2019 shall remain deregulated” (L 2019, ch 39, § 1, part Q, § 10).

In September 2019, DHCR issued an “Explanatory Addenda” to owners and tenants of apartments subject to pre-HSTPA luxury deregulation orders stating that their apartments would be deregulated only if “the lease in effect on the day” DHCR issued the deregulation order “expired before June 14, 2019.” If the lease was still in effect on or after June 14, 2019, the addenda said the apartment would remain rent-stabilized. DHCR cited a provision of the deregulation orders stating that “the subject housing accommodation is deregulated, effective upon the expiration of the existing lease,” which it explained meant deregulation was contingent on the lease expiring before the HSTPA took effect.

Petitioner owns Manhattan apartment buildings that obtained luxury deregulation orders prior to the HSTPA but were denied deregulation because their leases with tenants expired after the statute took effect. It commenced this proceeding seeking to reinstate a deregulation order and annul DHCR’s addenda on the grounds that it was arbitrary, capricious, and an improper retroactive application of the HSTPA. Petitioner further contended that DHCR’s delay in adjudicating petitions for luxury deregulation resulted in an improper delay of deregulation and that timely action would have resulted in deregulation prior to the effective date of the HSTPA.

Supreme Court dismissed this and similar proceedings, holding that DHCR’s interpretation of the HSTPA reasonably concluded that an apartment subject to a deregulation order did not become lawfully deregulated unless its lease expired prior to June 14, 2019 (2021 NY Slip Op 34221[U] [Sup Ct, NY County 2021]). It also held that there was no showing that DHCR deliberately or negligently delayed processing petitioner’s application. The Appellate Division affirmed, rejecting both petitioner’s claim that DHCR improperly gave the HSTPA retroactive effect and caused undue delay (209 AD3d 517 [1st Dept 2022]). We granted leave to appeal from so much of the Appellate Division order as affirmed dismissal of this proceeding (40 NY3d 972 [2023]).

II.

In determining this appeal, our first step is statutory interpretation. Specifically, we must determine whether DHCR’s addenda properly interpreted part D of the HSTPA as prospectively repealing luxury deregulation for apartments previously

ordered to be deregulated upon the expiration of their tenants' current leases, where those leases had not yet expired on the statute's effective date (i.e., June 14, 2019).

A.

It is well established that “[a] clause in a statute purporting to repeal other statutes is subject to the same rules of interpretation as other enactments” (*Smith v People*, 47 NY 330, 339 [1872]). As the parties recognize, we owe no deference to DHCR’s interpretation of part D because “this appeal does not call upon us to interpret a statute” requiring “specialized knowledge and understanding of underlying operational practices or . . . an evaluation of factual data and inferences to be drawn therefrom” (*Roberts v Tishman Speyer Props., L.P.*, 13 NY3d 270, 285 [2009] [internal quotation marks omitted], quoting *Matter of KSLM-Columbus Apts., Inc. v New York State Div. of Hous. & Community Renewal*, 5 NY3d 303, 312 [2005]). The question here “is one of pure statutory reading and analysis, dependent only on accurate apprehension of legislative intent” (*Kurcsics v Merchants Mut. Ins. Co.*, 49 NY2d 451, 459 [1980]). As a result, “there is little basis to rely on any special competence or expertise of the administrative agency and its interpretive regulations” (*id.*).

“[W]hen presented with a question of statutory interpretation, our primary consideration is to ascertain and give effect to the intention of the [l]egislature” (*Kuzmich v 50 Murray St. Acquisition LLC*, 34 NY3d 84, 91 [2019] [internal quotation marks omitted]). “Inasmuch as ‘the clearest indicator of legislative intent is the statutory text, the starting point in any case of interpretation must always be the language itself, giving effect to the plain meaning thereof’ ” (*id.*, quoting *Majewski v Broadalbin-Perth Cent. School Dist.*, 91 NY2d 577 [1998]).

i.

The language of the HSTPA, prospectively repealing luxury deregulation, supports DHCR’s interpretation that an apartment could not become deregulated if the existing lease expired after June 14, 2019. Part D states that RSL § 26-504.3—the sole statutory authority for luxury deregulation—was “repealed” (L 2019, ch 36, § 1, part D) and that the repeal “shall take effect immediately” (*id.* part D, § 8). Because the HSTPA “became law” on “June 14, 2019,” as of that date there ceased to be any provision in New York law for an apartment to become luxury deregulated.

Apartments can be removed from rent stabilization only “through regular, officially authorized means” (*Draper v Georgia Props.*, 94 NY2d 809, 811 [1999]). Since luxury deregulation became unavailable upon the HSTPA’s passage, there is now no statute authorizing DHCR to exempt previously qualifying apartments from rent stabilization if they were not luxury deregulated as of June 14, 2019.

The legislature did, however, create an exception by amending the HSTPA to state that “any unit that was lawfully deregulated prior to June 14, 2019 shall remain deregulated” (L 2019, ch 39, § 1, part Q, § 10). But petitioner’s apartment falls outside of that exception because the lease had not yet expired on June 14, 2019. As a result, DHCR properly interpreted the HSTPA, as amended, to provide that the apartment remains subject to rent stabilization.

ii.

Petitioner seeks to recast the plain language of the HSTPA in its favor by arguing that after DHCR issued a luxury deregulation order prior to the repeal, and that order became final, the apartment was exempt as a matter of law and the tenant no longer possessed a right to a rent-stabilized renewal. We disagree.

Petitioner’s contention is premised on its assertion that former RSL § 26-504.3 did not condition the finality or validity of an order of luxury deregulation on the expiration of the lease in effect at the time the order issued. As a result, petitioner concludes that the pre-repeal order—granting it luxury deregulation at some point after the repeal—was intended by the legislature to be unaffected by the repeal. Undisputedly, the apartment here met the former statutory criteria for luxury deregulation (*see* former RSL §§ 26-504.1, 26-504.3). Petitioner is therefore correct that DHCR was statutorily mandated to issue an order of deregulation when the tenant’s income and rent crossed the required thresholds. However, contrary to petitioner’s assertion, the satisfaction of those conditions alone does not mean the apartment immediately became exempt from rent regulation.

As DHCR explains, pre-HSTPA, the RSL did not require immediate deregulation upon the statutory conditions for luxury deregulation being met. Instead, those conditions were merely prerequisites to DHCR’s obligation to “issue an order providing that such housing accommodation shall not be subject to the

provisions of [the RSL] upon the expiration of the existing lease” (former RSL § 26-504.3 [b], [c] [2], [3] [eff until June 14, 2019]).

That is because, pre-HSTPA, an apartment became deregulated only upon the expiration of the lease in effect at the time a deregulation order was issued. In other words, the apartment was subject to the RSL (i.e., regulated) up until the end of the existing lease. Since the statute authorized DHCR to issue orders that would grant apartments luxury deregulated status only “upon the expiration of the existing lease,” there would have been no statutory authority for DHCR to issue an order granting the apartment immediate deregulated status.

Additionally, the language of DHCR’s deregulation order conforms with our understanding that deregulation did not occur until the lease’s expiration, inasmuch as the order states “that the subject housing accommodation is deregulated, effective upon the expiration of the existing lease.” The ordinary meaning of the word “effective,” when used in reference to either a statute or an order, is to denote that it is “in operation at a given time” (Black’s Law Dictionary [12th ed 2024], effective). As Black’s Law Dictionary explains, “A statute, order, or contract is often said to be effective beginning (and perhaps ending) at a designated time” (*id.*). Black’s Law Dictionary further explains that an “effective date” is “[t]he date on which a statute, contract, insurance policy, or other such instrument becomes enforceable or otherwise takes effect,” which “sometimes differs from the date on which the instrument was enacted or signed” (*id.*, date). In other words, consistent with the statutory scheme, DHCR’s order stated prospectively that the apartment would become deregulated when the lease expired—not that the apartment was deregulated on the date of the order.

Generally, “the jurisdiction of an administrative board or agency consists of the powers granted it by statute, [and thus] a determination is void . . . where it is made either without statutory power or in excess thereof” (*Abiele Contr. v New York City School Constr. Auth.*, 91 NY2d 1, 10 [1997]). DHCR’s order conforms with the powers granted to the agency by the former luxury deregulation statute, which, as shown above, required DHCR to make any deregulation order contingent on the expiration of the tenant’s lease. Thus, DHCR did not retroactively vitiate the landlord’s interests when it declined to find the apartment deregulated, inasmuch as the conditions for lux-

ury deregulation had not been fully satisfied because the tenant's lease had not yet expired and the enactment of the HSTPA prevented that deregulation from coming into effect. Because this analysis requires only a prospective application of part D of the HSTPA, the statute is not impermissibly retroactive.

B.

We conclude our statutory analysis by applying the established rule of construction that “[t]he language of the statute must be read in the light of what it was intended to accomplish” (*Matter of Guardian Life Ins. Co. of Am. v Chapman*, 302 NY 226, 235 [1951]; see e.g. *People v Santi*, 3 NY3d 234, 243 [2004] [(“In implementing a statute, the courts must of necessity examine the purpose of the statute and determine the intention of the Legislature” (internal quotation marks omitted))]. Inasmuch as the lease here had not expired before the repeal of luxury deregulation, treating the apartment as still being regulated is most in keeping with legislative intent because, as discussed above, the legislature expressly found that deregulation “has permitted speculative and profiteering practices and has brought about the loss of vital and irreplaceable affordable housing for working persons and families” (L 2019, ch 36, § 1, part D, § 1; see *supra* at 280). As a result, the legislature determined that there was an emergent need to repeal luxury deregulation “in order to prevent uncertainty, potential hardship and dislocation of tenants living in housing accommodations subject to government regulations as to rentals and continued occupancy as well as those not subject to such regulation” (*id.*). Thus, DHCR’s interpretation is in accord with the rational basis undergirding the HSTPA’s elimination of luxury deregulation.

III.

Petitioner also raises the issue of DHCR’s undue delay in processing petitioner’s deregulation application. We reject that argument. Because “neither a property owner nor a tenant has a vested interest in beneficial regulations,” even delay that prejudiced the tenant or the owner is generally not a reason to fail to apply the current law (*Matter of IG Second Generation Partners L.P. v New York State Div. of Hous. & Community Renewal, Off. of Rent Admin.*, 10 NY3d 474, 482 [2008], citing *I. L. F. Y. Co. v Temporary State Hous. Rent Commn.*, 10 NY2d

263 [1961]). There is also no basis to apply prior law unless the party demanding application of the prior law demonstrates that the agency caused improper delay, or that the agency “deliberately or negligently delayed processing the [applications] before it” (*Matter of St. Vincent’s Hosp. & Med. Ctr. of N.Y. v New York State Div. of Hous. & Community Renewal*, 109 AD2d 711, 712 [1st Dept 1985] [internal quotation marks omitted], *aff’d* 66 NY2d 959 [1985]).

Petitioner does not provide evidence of negligence and, instead, asks us to infer negligence from the fact that DHCR issued a deregulation order about two years after the petition was filed. However, petitioner had asked DHCR to verify the tenant’s income through an independent investigation with the Department of Taxation and Finance (DTF). Cases involving DTF verification require interagency coordination, and in some cases this process may require “a more involved assessment” (*Matter of Brookford, LLC v New York State Div. of Hous. & Community Renewal*, 31 NY3d 679, 686 [2018]; *see* Tax Law § 171-b). We have declined to infer willfulness or negligence by DHCR from nothing more than lengthy processing times (*see IG Second Generation*, 10 NY3d at 482), and we decline to do so here. Even an “inordinate delay” by DHCR is no basis for declining to apply the current law, absent a showing of negligence or willfulness (*id.* at 482-483), which petitioner has not demonstrated here. Reversing DHCR’s decision based solely on delay or missed deadlines “would not only be impractical but would also fail to recognize the degree to which broader public concerns, not merely the interests of the parties, are affected by administrative proceedings” (*Matter of Dickinson v Daines*, 15 NY3d 571, 575 [2010] [internal quotation marks omitted]).

Moreover, petitioner cannot overcome the absence of willful or negligent delay by arguing that DHCR failed to meet certain statutory timetables for processing petitioner’s deregulation application. The ordinary rule is that a statutory deadline for government action “is directory rather than mandatory,” unless the statutory text contains some clear indication “that the designation of time was intended as a limitation on the power of the body or officer” (*Dickinson*, 15 NY3d at 574 [internal quotation marks omitted], quoting *Matter of Grossman v Rankin*, 43 NY2d 493, 501 [1977]), which has not been shown here. Nor was such a duty imposed by regulation, inasmuch as the RSC during this proceeding stated that “[t]he expiration of the

time periods prescribed . . . for action by the DHCR” does not divest DHCR of authority to process petitions and issue determinations (9 NYCRR 2531.9 [eff until Nov. 7, 2023]).

IV.

Petitioner’s remaining arguments lack merit. Accordingly, the order of the Appellate Division, insofar as appealed from, should be affirmed, with costs.

Chief Judge WILSON and Judges RIVERA, GARCIA, SINGAS, CANNATARO and HALLIGAN concur.

Order insofar as appealed from affirmed, with costs.

[260 NE3d 1060, 234 NYS3d 111]

EMILY WU, Appellant, v UBER TECHNOLOGIES, INC., Respondent,
et al., Defendants.

Argued October 15, 2024; decided November 25, 2024

PROCEDURAL SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered September 21, 2023. The Appellate Division affirmed an order of the Supreme Court, Bronx County (Veronica G. Hummel, J.; op 78 Misc 3d 551 [2022]), which had (1) denied plaintiff's motion to stay defendant Uber Technologies, Inc.'s demand for arbitration and to sanction defendant Uber; and (2) granted defendant Uber's motion to compel arbitration and to stay the action until the completion of arbitration. The following question was certified by the Appellate Division: "Was the order of this Court, which affirmed the order of the Supreme Court, Bronx County, properly made?"

Wu v Uber Tech., Inc., 219 AD3d 1208, affirmed.

HEADNOTE**Arbitration — Agreement to Arbitrate — Formation — Clickwrap Procedure in Smartphone Application Used to Solicit Assent to Terms of Use**

In plaintiff's personal injury action based on alleged negligence of a driver affiliated with defendant transportation company, the "clickwrap" process defendant used to solicit plaintiff's assent to updated terms of use on defendant's smartphone application resulted in the formation of an agreement to arbitrate. When terms are linked on an uncluttered interface and temporally and spatially coupled with the mechanism for manifesting assent, and the user does not need to scroll beyond what is immediately visible to find the terms, the interface provides reasonably conspicuous notice of the existence of contractual terms. The headline and the larger text in the center of the screen clearly advised plaintiff that she was being asked to agree to a contract with defendant. A reasonably prudent user would have understood that clicking on the words "Terms of Use" would permit them to review those terms in their entirety. If plaintiff had clicked on any of the several prominently-placed hyperlinks that would have enabled her to review and assess the terms, she would have seen that the terms included an arbitration agreement, disclosed in bolded, all-capitalized text, with the arbitration agreement itself set forth in the very next section under a prominent heading. Defendant's clickwrap process put plaintiff on inquiry notice of the updated terms, including the prominently placed arbitration agreement, and she manifested her assent to those terms by both clicking on the box and pressing the "Confirm" button. As plaintiff failed to establish that the delegation provision itself was invalid, her challenges to the applicability of the agreement and raising unconscionability were properly directed to an arbitrator.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

- AM JUR 2d Alternative Dispute Resolution §§ 2, 48–49, 51–52, 54, 60; AM JUR 2d Computers and the Internet §§ 101–102, 113.
- CARMODY-WAIT 2d Arbitration §§ 141:1–141:2, 141:10, 141:12–141:13, 141:15, 141:17–141:19, 141:21, 141:23, 141:51–141:52, 141:118, 141:124–141:126.
- NEW YORK CONTRACT LAW (2d ed) §§ 2:9–2:10; 4:3–4:4, 27:2–27:3, 27:5–27:6, 27:10–27:11.
- NY JUR 2d Arbitration and Award §§ 1, 10, 12, 15–16, 18–19, 21, 50, 271–273.
- SIEGEL, NY PRAC (6th ed) §§ 588–589.
- WILLISTON ON CONTRACTS (4th ed) §§ 57:1–57:2, 57:6–57:7, 57:20–57:21, 57:23–57:24, 57:31, 57:46–57:47, 57:50.

ANNOTATION REFERENCE

See ALR Index under Arbitration; Computers; Contracts.

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> New York Official Reports
Query: clickwrap & arbitrat!

POINTS OF COUNSEL

Kelner & Kelner, Esqs., New York City (*Joshua D. Kelner* of counsel), for appellant. I. The attorney Rules of Professional Conduct (22 NYCRR 1200.0) prohibit contact with represented parties like Emily Wu and Uber Technologies, Inc.'s flagrant violation of that obligation here to obtain a jury trial waiver in a pending action should not be rewarded. (*Mori v Saito*, 785 F Supp 2d 427; *United States v Jamil*, 546 F Supp 646; *Schmidt v State of New York*, 279 AD2d 62; *Matter of Harris*, 259 AD2d 170; *Matter of Jaffe*, 208 AD2d 215.) II. Plaintiff did not agree to arbitrate her pending lawsuit in the first place and never entered into a contract with Uber Technologies, Inc. (*People v Coventry First LLC*, 13 NY3d 108; *Specht v Netscape Communications Corp.*, 306 F3d 17; *Granite Rock Co. v Teamsters*, 561 US 287; *Nguyen v Barnes & Noble Inc.*, 763 F3d 1171; *Meyer v Uber Tech., Inc.*, 868 F3d 66.) III. The terms of service, to the extent they affect a pending lawsuit, represented an unconscionable contract, not to mention a contract of adhesion,

and are unenforceable here. (*Matter of State of New York v Avco Fin. Serv. of N.Y.*, 50 NY2d 383; *King v Fox*, 7 NY3d 181; *State of New York v Wolowitz*, 96 AD2d 47; *Simar Holding Corp. v GSC*, 87 AD3d 688; *Dabriel, Inc. v First Paradise Theaters Corp.*, 99 AD3d 517.) IV. Uber Technologies, Inc.'s fallback reliance upon its 2016 terms of service, which it raised for the first time in its cross-motion, is likewise problematic, because its registration process failed to elicit informed, knowing assent from its users to any arbitration clause. (*Ramos v Uber Tech., Inc.*, 60 Misc 3d 422; *Mejia v Linares*, 219 AD3d 1251.)

Perkins Coie LLP, Phoenix, Arizona (*Michael R. Huston*, admitted pro hac vice, and *Jordan M. Buckwald*, admitted pro hac vice, of counsel) and New York City (*Jacob Taber* of counsel), for respondent. I. Plaintiff agreed to arbitrate her claim against Uber Technologies, Inc. (*Kindred Nursing Centers L. P. v Clark*, 581 US 246; *Stonehill Capital Mgt. LLC v Bank of the W.*, 28 NY3d 439; *Fleming v Ponziani*, 24 NY2d 105; *God's Battalion of Prayer Pentecostal Church, Inc. v Miele Assoc., LLP*, 6 NY3d 371; *AT&T Mobility LLC v Concepcion*, 563 US 333.) II. Plaintiff's agreement to arbitrate both existing and future claims is enforceable. (*Fteja v Facebook, Inc.*, 841 F Supp 2d 829; *Henry Schein, Inc. v Archer & White Sales, Inc.*, 586 US 63; *Matter of Monarch Consulting, Inc. v National Union Fire Ins. Co. of Pittsburgh, PA*, 26 NY3d 659; *Matter of Town of Ramapo v Ramapo Police Benevolent Assn.*, 17 AD3d 476; *Williams v Dillon & Co.*, 243 AD2d 559.) III. The Supreme Court did not abuse its discretion by denying plaintiff's frivolous motion for sanctions. (*Matter of Winkelman v Furey*, 97 NY2d 711; *Franco v Jay Cee of N.Y. Corp.*, 36 AD3d 445; *Lipin v Bender*, 84 NY2d 562; *Foxfire Enters. v Enterprise Holding Corp.*, 140 AD2d 581; *Congel v Malfitano*, 31 NY3d 272.) IV. Plaintiff's objections to arbitrability must be resolved by the arbitrator, and are meritless in any event. (*Rent-A-Center, West, Inc. v Jackson*, 561 US 63; *Revis v Schwartz*, 38 NY3d 939; *Sablosky v Gordon Co.*, 73 NY2d 133; *Gillman v Chase Manhattan Bank*, 73 NY2d 1; *Matter of State of New York v Avco Fin. Serv. of N.Y.*, 50 NY2d 383.)

Mayer Brown LLP, Washington, D.C. (*Andrew J. Pincus* and *Archis A. Parasharami* of counsel), for Chamber of Commerce of the United States of America and others, amici curiae. I. The Court should reject plaintiff's attempt to transform an ordinary-course revision of contract terms into a violation of the Rules of Professional Conduct (22 NYCRR 1200.0). (OCon-

ner v Agilant Solutions, Inc., 444 F Supp 3d 593; *AT&T Mobility LLC v Concepcion*, 563 US 333.) II. This Court should adopt the same contract formation standard used by the Second Circuit, under which Uber Technologies, Inc.’s contract formation process produces enforceable online contracts. (*Meyer v Uber Tech., Inc.*, 868 F3d 66; *Register.com, Inc. v Verio, Inc.*, 356 F3d 393; *Specht v Netscape Communications Corp.*, 306 F3d 17; *Matter of Express Indus. & Term. Corp. v New York State Dept. of Transp.*, 93 NY2d 584; *Moore v Microsoft Corp.*, 293 AD2d 587.) III. Plaintiff’s attempts below to invoke a heightened standard of proof of contract formation for arbitration agreements under New York law are foreclosed by federal law. (*AT&T Mobility LLC v Concepcion*, 563 US 333; *Doctor’s Associates, Inc. v Casarotto*, 517 US 681; *Kindred Nursing Centers L. P. v Clark*, 581 US 246; *Matter of Marlene Indus. Corp. [Carnac Textiles]*, 45 NY2d 327; *Fleming v Ponziani*, 24 NY2d 105.)

Public Justice, Washington, D.C. (*Shelby Leighton*, admitted pro hac vice, of counsel), for Public Justice, amicus curiae. I. No retroactive agreement to arbitrate was formed in 2021. (*Stonehill Capital Mgt. LLC v Bank of the W.*, 28 NY3d 439; *Berkson v Gogo LLC*, 97 F Supp 3d 359; *Nguyen v Barnes & Noble Inc.*, 763 F3d 1171; *Starke v SquareTrade, Inc.*, 913 F3d 279; *Sgouros v TransUnion Corp.*, 817 F3d 1029.) II. The 2021 terms of service should not be retroactively enforced. (*Rent-A-Center, West, Inc. v Jackson*, 561 US 63; *Hoffmann-La Roche Inc. v Sperling*, 493 US 165; *OConner v Agilant Solutions, Inc.*, 444 F Supp 3d 593; *Chen-Oster v Goldman, Sachs & Co.*, 449 F Supp 3d 216; *Kater v Churchill Downs Inc.*, 423 F Supp 3d 1055.)

OPINION OF THE COURT

CANNATARO, J.

On this appeal, we apply centuries-old principles of contract law to a web-based “terms of use” update containing an arbitration agreement. The parties dispute the validity of that agreement and its applicability to this personal injury action, which plaintiff commenced two months before she indicated her assent to the updated terms of use by means of a series of clicks on her smartphone.

We conclude that the “clickwrap” process Uber used to solicit plaintiff’s assent resulted in the formation of an agreement to arbitrate. Moreover, a key term of that agreement expressly

delegates to an arbitrator the exclusive authority to resolve all disputes as to the applicability and enforceability of the agreement. Because plaintiff has not established that the delegation provision is invalid, her challenges to the portions of the agreement that purportedly apply to pending legal claims were properly directed to the arbitrator.

I.

In July 2020, plaintiff Emily Wu requested a car using Uber's software application on her smartphone. An Uber-affiliated driver took her to an intersection in Brooklyn where, according to the complaint, the driver discharged plaintiff in the middle of the roadway. Upon exiting the car, plaintiff was almost immediately struck by another vehicle, sustaining injuries.

Plaintiff commenced this personal injury action in November 2020. As relevant here, the complaint pleads a negligence claim against Uber on a respondeat superior theory. On November 23, 2020, plaintiff served her complaint on Uber by personal service upon the New York Secretary of State (*see* Business Corporation Law § 306 [b]). As explained further below, Uber acknowledges that this service was legally effective but disputes that it became aware of the lawsuit at that time, claiming that its New York City office was not fully processing mail in late 2020 due to the COVID-19 pandemic. Consistent with that assertion, Uber did not respond to the complaint or appear in this action within 30 days as required by law (*see* CPLR 3012 [c]).

In January 2021, almost two months after plaintiff's service of process through the Secretary of State, but before plaintiff served Uber with a motion for a default judgment (*see* CPLR 3215), non-attorney employees of Uber circulated an email "on a mass basis" to millions of the company's U.S. users informing them that, in the upcoming days, they would be prompted to agree to updated terms of use in order to continue using the ride-sharing service. In relevant part, the three-paragraph email to Uber users stated:

"We recommend that you review the updated Terms. Some of the updates include changes to the Arbitration Agreement, the terms related to access and use of the Uber platform, and procedures and rules for filing a dispute against Uber."

The updated terms were available for recipients' review by

clicking on any of three hyperlinks appearing in the email. It is undisputed that plaintiff received and opened this email on January 15, 2021.

The next time plaintiff logged into the Uber app on her smartphone, she was presented with an in-app blocking pop-up screen with the headline, “We’ve updated our terms.” The uncluttered screen encouraged plaintiff to review the new terms of use and included a hyperlink to those terms indicated by underlined and blue text. Toward the bottom of the screen was a checkbox and, to its immediate right, bolded text stating: **“By checking the box, I have reviewed and agreed to the Terms of Use and acknowledge the Privacy Notice.”** Immediately beneath this was a large black button labeled “Confirm.” It is undisputed that plaintiff checked the box and clicked the “Confirm” button.

The January 2021 terms of use provide, initially, that “[b]y accessing or using [Uber’s] Services, you confirm your agreement to be bound by these Terms. If you do not agree to these Terms, you may not access or use the Services.” The fifth paragraph of the terms sets forth the following warning in bolded, all-capitalized text:

“IMPORTANT: PLEASE BE ADVISED THAT THIS AGREEMENT CONTAINS PROVISIONS THAT GOVERN HOW CLAIMS BETWEEN YOU AND UBER CAN BE BROUGHT, INCLUDING THE ARBITRATION AGREEMENT (SEE SECTION 2 BELOW). PLEASE REVIEW THE ARBITRATION AGREEMENT BELOW CAREFULLY, AS IT REQUIRES YOU TO RESOLVE ALL DISPUTES WITH UBER ON AN INDIVIDUAL BASIS AND, WITH LIMITED EXCEPTIONS, THROUGH FINAL AND BINDING ARBITRATION (AS DESCRIBED IN SECTION 2 BELOW). BY ENTERING INTO THIS AGREEMENT, YOU EXPRESSLY ACKNOWLEDGE THAT YOU HAVE READ AND UNDERSTAND ALL OF THE TERMS OF THIS AGREEMENT AND HAVE TAKEN TIME TO CONSIDER THE CONSEQUENCES OF THIS IMPORTANT DECISION.”

Section 2 of the January 2021 terms sets forth the “Arbitration Agreement” itself. As relevant here, the provisions of section 2 expressly encompass “any” personal injury “claim” that

accrued prior to acceptance of the updated terms, without exception for claims already commenced and pending in court:

“By agreeing to the Terms, you agree that you are required to resolve *any claim* that you may have against Uber on an individual basis in arbitration as set forth in this Arbitration Agreement. . . .

“Except as expressly provided below in Section 2 (b), you and Uber agree that *any dispute, claim or controversy* in any way arising out of or relating to (i) these Terms and prior versions of these Terms, or the existence, breach, termination, enforcement, interpretation, scope, waiver, or validity thereof, (ii) your access to or use of the Services *at any time*, (iii) *incidents or accidents resulting in personal injury that you allege occurred in connection with your use of the Services, whether the dispute, claim or controversy occurred or accrued before or after the date you agreed to the Terms*, or (iv) your relationship with Uber, will be settled by binding arbitration between you and Uber, and not in any court of law” (emphases added).

Immediately beneath a heading titled “Rules and Governing Law,” section 2 also expressly provides that the arbitrator has exclusive authority to resolve most threshold disputes concerning the interpretation or enforceability of the arbitration agreement in accordance with the consumer arbitration rules of the American Arbitration Association (hereinafter the “delegation provision”). The relevant language provides:

“The parties agree that the arbitrator (‘Arbitrator’), and not any federal, state, or local court or agency, shall have exclusive authority to resolve any disputes relating to the interpretation, applicability, enforceability or formation of this Arbitration Agreement, including any claim that all or part of this Arbitration Agreement is void or voidable. The arbitrator shall also be responsible for determining all threshold arbitrability issues, including issues relating to whether the Terms are applicable, unconscionable or illusory and any defense to arbitration, including waiver, delay, laches, or estoppel. If there is a dispute about whether this Arbitration Agreement can be enforced or applies to a dispute,

you and Uber agree that the arbitrator will decide that issue.”

On March 3, 2021, plaintiff moved for a default judgment against Uber based on its failure to respond to the summons and complaint within the time afforded by the CPLR. This time, plaintiff served the motion by mail to CT Corporation, Uber’s authorized agent in New York for service of process. Uber responded by interposing an answer to the complaint on March 15, 2021, which included an affirmative defense that plaintiff had agreed to arbitrate her claims. On March 23, 2021, Uber sent a notice of intent to arbitrate in accordance with CPLR 7503 (c), referencing the January 2021 terms of use. Plaintiff’s counsel responded by asserting that the process by which Uber solicited plaintiff’s agreement to the January 2021 terms violated rule 4.2 of the Rules of Professional Conduct (22 NYCRR 1200.0), accusing Uber’s attorneys of knowingly causing the company to engage in communications with plaintiff, a represented party, about the subject of her pending litigation without prior notice to her attorney. Plaintiff’s counsel threatened to seek sanctions if Uber did not withdraw its demand for arbitration. Uber did not withdraw its demand.

Plaintiff next moved to stay Uber’s demand for arbitration and requested sanctions for the company’s allegedly improper communications with plaintiff. Among other things, plaintiff argued that the January 2021 arbitration agreement is procedurally and substantively unconscionable, adhesive, and contrary to New York public policy, particularly insofar as it applies to claims already pending in court. Plaintiff also argued that she never validly agreed to the updated terms, and that the manner in which the terms were presented to her violated the no-contact requirements of rule 4.2. Plaintiff asked the court to strike Uber’s answer and award monetary sanctions and “other penalties” for the ethical violation. Uber cross-moved to compel arbitration and to stay the litigation, arguing that the aforementioned email and pop-up screen put plaintiff on inquiry notice of the arbitration agreement, and that her challenges to the enforceability of that agreement were matters to be submitted to the arbitrator in accordance with the delegation provision.¹

1. Uber also submitted evidence that (i) when plaintiff first signed up for her Uber account in 2016, she agreed to terms and conditions containing an arbitration agreement, and (ii) plaintiff hailed rides through Uber more than

(n. cont’d)

Supreme Court denied plaintiff's motion and granted Uber's cross-motion to compel arbitration and stay the litigation (78 Misc 3d 551 [Sup Ct, Bronx County 2022]). The court agreed with Uber that the company's communications put plaintiff on inquiry notice of the arbitration agreement in the January 2021 terms, and that plaintiff assented to that agreement through conduct which a reasonable person would understand to constitute assent. The court rejected plaintiff's arguments that Uber's communications misled her about the scope of the arbitration agreement. Finally, the court held that plaintiff failed to establish a violation of rule 4.2, concluding, among other things, that plaintiff did not show that Uber had actual knowledge either of this action or that plaintiff was represented by counsel at the time its January 2021 communications were sent.² The court also characterized plaintiff's requested sanctions for the alleged rule 4.2 violation as "drastic" and "disproportionate" (*id.* at 602, 606). The court stated that "the most appropriate remedy for that wrong would be the voiding of the arbitration agreement[,] [b]ut [plaintiff] does not even suggest that more targeted remedy" (*id.* at 607).

Plaintiff appealed, and the Appellate Division unanimously affirmed (219 AD3d 1208 [1st Dept 2023]). The Court concluded that an agreement to arbitrate was formed based on the record evidence that plaintiff was notified of the January 2021 terms and clicked a checkbox and button confirming that she had reviewed and consented to those terms. The Court stated that "[p]laintiff's arguments disputing the validity of the terms and raising unconscionability must be decided by the arbitrator, because the terms contain a delegation provision that plaintiff did not specifically challenge" (*id.* at 1209). With respect to the alleged rule 4.2 violation, the Court concluded that "Supreme Court providently exercised its discretion in declining to sanction Uber and its employees for the sending of mass communications that were received by plaintiff directly during the pendency of the action" (*id.*).

50 times after agreeing to the January 2021 terms, including 19 times after Uber's demand for arbitration. Because we conclude that plaintiff assented to the delegation provision in the January 2021 terms through the clickwrap process described further below, it is unnecessary for us to address the legal consequences, if any, of this evidence.

2. Supreme Court also concluded that plaintiff failed to establish the pop-up screen was "a type of communication that falls within the ambit of rule 4.2" or that an attorney caused the screen to be sent to plaintiff (78 Misc 3d at 602). We express no opinion as to these issues.

The same panel granted plaintiff leave to appeal to this Court, certifying the following question: “Was the order of this Court, which affirmed the order of the Supreme Court . . . properly made?” (2023 NY Slip Op 78234[U] [1st Dept 2023]). We now answer that question in the affirmative.

II.

This Court has consistently recognized New York’s “long and strong public policy favoring arbitration” (*Matter of Smith Barney Shearson v Sacharow*, 91 NY2d 39, 49 [1997]; see e.g. *American Intl. Specialty Lines Ins. Co. v Allied Capital Corp.*, 35 NY3d 64, 70 [2020]; *Stark v Molod Spitz DeSantis & Stark, P.C.*, 9 NY3d 59, 66 [2007]; *Sablosky v Gordon Co.*, 73 NY2d 133, 138 [1989]; *Mobil Oil Indonesia v Asamera Oil [Indonesia]*, 43 NY2d 276, 281-282 [1977]; *Matter of Prinze [Jonas]*, 38 NY2d 570, 574 [1976]; *Matter of Weinrott [Carp]*, 32 NY2d 190, 199 [1973]; *Matter of Staklinski [Pyramid Elec. Co.]*, 6 NY2d 159, 164 [1959]; *Gilbert v Burnstine*, 255 NY 348, 353 [1931]; *Matter of Fletcher*, 237 NY 440, 445 [1924]; *Matter of Berkovitz v Arbib & Houlberg, Inc.*, 230 NY 261, 269 [1921]). In appreciation of that policy, “New York courts interfere as little as possible with the freedom of consenting parties to submit disputes to arbitration” (*Sacharow*, 91 NY2d at 49-50 [internal quotation marks omitted]; see also *Matter of Marchant v Mead-Morrison Mfg. Co.*, 252 NY 284, 298-299 [1929, Cardozo, Ch. J.]). “[W]e have steadfastly discouraged courts from becoming unnecessarily entangled in arbitrations or from serving ‘as a vehicle to protract litigation’ ” (*American Intl. Specialty Lines Ins. Co.*, 35 NY3d at 70 [some internal quotation marks omitted], quoting *Matter of Nationwide Gen. Ins. Co. v Investors Ins. Co. of Am.*, 37 NY2d 91, 95 [1975]).

In this case, the parties agree that the arbitration agreement in Uber’s January 2021 terms of use is governed by the Federal Arbitration Act (FAA) (9 USC § 1 *et seq.*). First enacted in 1925, the FAA provides that written agreements to arbitrate are “valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract” (*id.* § 2; see *AT&T Mobility LLC v Concepcion*, 563 US 333, 339 [2011]). In other words, the Act places arbitration agreements “‘upon the same footing as other contracts’ ” (*Scherk v Alberto-Culver Co.*, 417 US 506, 511 [1974], quoting HR Rep 96, 68th Cong, 1st Sess at 1, 2 [1924]). “With the FAA, Congress sought to counteract an historic judicial hostility toward arbitration,

which often trumped the parties' clear intentions" (*Schnabel v Trilegiant Corp.*, 697 F3d 110, 118 [2d Cir 2012], citing *Allied-Bruce Terminix Cos. v Dobson*, 513 US 265, 272 [1995]). The Act represents "a congressional declaration of a liberal federal policy favoring arbitration agreements, notwithstanding any state substantive or procedural policies to the contrary" (*Moses H. Cone Memorial Hospital v Mercury Constr. Corp.*, 460 US 1, 24 [1983]; see *Buckeye Check Cashing, Inc. v Cardegna*, 546 US 440, 443 [2006] [the Act "embodies the national policy favoring arbitration"]).

Concomitantly, because arbitration agreements are simply contracts, the Supreme Court has also made clear that "[a]rbitration is strictly a matter of consent" (*Coinbase, Inc. v Suski*, 602 US 143, 148 [2024], quoting *Lamps Plus, Inc. v Varela*, 587 US 176, 184 [2019]). Arbitration is "a way to resolve those disputes—but *only* those disputes—that the parties have agreed to submit to arbitration" (*First Options of Chicago, Inc. v Kaplan*, 514 US 938, 943 [1995] [emphasis added]; see *Volt Information Sciences, Inc. v Board of Trustees of Leland Stanford Junior Univ.*, 489 US 468, 478 [1989] [the FAA "does not require parties to arbitrate when they have not agreed to do so"]). "Consequently, the first question in any arbitration dispute must be: What have these parties agreed to?" (*Coinbase, Inc.*, 602 US at 148). That question is governed by state contract-law principles, provided that those rules do not expressly or covertly discriminate against agreements to arbitrate (see *Kindred Nursing Centers L. P. v Clark*, 581 US 246, 251 [2017]; *Perry v Thomas*, 482 US 483, 492 n 9 [1987]). Here, the parties agree that New York contract law applies to the question of whether they agreed to arbitrate.

To form a binding contract under New York law, it is often said that "there must be a 'meeting of the minds'" (see *Stonehill Capital Mgt. LLC v Bank of the W.*, 28 NY3d 439, 448 [2016], quoting *Farago v Burke*, 262 NY 229, 231 [1933]; *Matter of Express Indus. & Term. Corp. v New York State Dept. of Transp.*, 93 NY2d 584, 589 [1999]). But "in determining whether the parties possessed the necessary intention to contract, an objective test is generally to be applied. That means, simply, that the manifestation of a party's intention rather than the actual or real intention is ordinarily controlling" (*Mencher v Weiss*, 306 NY 1, 7 [1953]; see *Brown Bros. Elec. Contrs. v Beam Constr. Corp.*, 41 NY2d 397, 399 [1977] ["In accordance with long-established principles, the existence

of a binding contract is not dependent on the subjective intent of either (party)”; *Hotchkiss v National City Bank of N.Y.*, 200 F 287, 293 [SD NY 1911, L. Hand, J.] [“A contract has, strictly speaking, nothing to do with the personal, or individual, intent of the parties. A contract is an obligation attached by the mere force of law to certain acts of the parties, usually words, which ordinarily accompany and represent a known intent”], *affd* 201 F 664 [2d Cir 1912], *affd* 231 US 50 [1913]). It is therefore most precise to say, as we repeatedly have, that a binding contract requires an objective “‘manifestation of mutual assent,’ ” through either words or conduct, to the essential terms comprising the agreement (*Stonehill Capital Mgt. LLC*, 28 NY3d at 448, quoting *Matter of Express Indus. & Term. Corp.*, 93 NY2d at 589; *accord Cobble Hill Nursing Home v Henry & Warren Corp.*, 74 NY2d 475, 483 [1989]; see Restatement [Second] of Contracts § 19). “Generally, courts look to the basic elements of the offer and the acceptance to determine whether there is an objective meeting of the minds sufficient to give rise to a binding and enforceable contract” (*Matter of Express Indus. & Term. Corp.*, 93 NY2d at 589; see *Kolchins v Evolution Mkts., Inc.*, 31 NY3d 100, 106 [2018]; *Zheng v City of New York*, 19 NY3d 556, 577 [2012]). As with any other contract, the party seeking to enforce an arbitration agreement bears the burden to prove these elements by a preponderance of the evidence (see *Fleming v Ponziani*, 24 NY2d 105, 110 [1969]).

Because contract formation is governed by an objective rather than a subjective standard, there is no requirement that a party have correctly understood—or even reviewed—the terms presented by the offeror for their manifestation of acceptance to be effective. Instead, courts ask whether the offeree was put on inquiry notice of the contractual terms (see *Starke v SquareTrade, Inc.*, 913 F3d 279, 289 [2d Cir 2019] [applying New York law]; *Blossom v Dodd*, 43 NY 264, 268-270 [1870]). An offeree is placed on inquiry notice of contractual terms when those terms are clearly and conspicuously presented to the offeree as a contract and made available for review (see *Blossom*, 43 NY at 268-269 [“The delivery and acceptance of a paper containing the contract may be binding, though not read, provided the business is of such a nature and the delivery is under such circumstances as to raise the presumption that the person receiving it knows that it is a contract, containing the terms and conditions”]). It then becomes the responsibility of the offeree, before manifesting assent, to “inquire” further by

reading and assessing the proposed terms to determine whether they are acceptable. Under well-established law, a person who accepts a written contract without first undertaking this review generally bears the risk that the agreement may contain provisions they do not like or expect (*see Morris v Snappy Car Rental*, 84 NY2d 21, 30 [1994] [involving a standardized car rental agreement]; *Pimpinello v Swift & Co.*, 253 NY 159, 162-163 [1930] [a contracting party, “having the will to sign the writing, is bound by the consequence, ‘reasonably to have been anticipated’ from the signing of a document unread, that its terms might not truly express the intent of the signer”]; *Metzger v Aetna Ins. Co.*, 227 NY 411, 416 [1920] [“when a party to a written contract accepts it as a contract he is bound by the stipulations and conditions expressed in it whether he reads them or not”]; *Miller v Phoenix Mut. Life Ins. Co.*, 107 NY 292, 296 [1887] [it is not “generally a defense to an action founded upon (a contract) that the party did not read the contract, or was ignorant of its contents, or that it was prepared by the party claiming the benefit of it, unless he also shows that his signature thereto was obtained by misrepresentation or fraud”]). A contrary rule “would introduce into the law a dangerous doctrine” (*see Metzger*, 227 NY at 415), by allowing one contracting party’s negligence or post hoc dissatisfaction to frustrate the reasonable expectations of the other party or parties, in contradiction of the objectives of contract law “to protect the parties’ reasonable expectations, avoid fraud, and promote stability in commercial transactions” (*see MAK Tech. Holdings Inc. v Anyvision Interactive Tech. Ltd.*, 42 NY3d 570, 573 [2024]).

Sometimes, of course, there are instances in which an offeree’s failure to review or appreciate a particular term results not from their own “negligence or inexcusable trustfulness,” but from another party’s wrongful conduct³ (*see Metzger*, 227 NY at 416). The general rule in such cases is that the elements of offer and acceptance are still satisfied, although the “resulting contract may be voidable” due to the wrongful conduct (*see*

3. For example, active concealment can constitute fraud (*see* 60A NY Jur 2d, Fraud and Deceit §§ 83, 84). However, there is generally no requirement that a party affirmatively warn counterparties of terms in a proposed agreement that might be considered unusual or unfavorable to them (*see e.g. Guoba v Sportsman Props., Inc.*, 200 AD3d 658, 661 [2d Dept 2021]; *Sanford/Kissena Owners Corp. v Daral Props., LLC*, 84 AD3d 1210, 1211 [2d Dept 2011]; *see also Mandarin Trading Ltd. v Wildenstein*, 16 NY3d 173, 179 [2011]).

Restatement [Second] of Contracts § 19 [3]; *cf. Kamerman v Curtis*, 285 NY 221, 225-226 [1941] [distinguishing between fraud in the inducement and fraud in the factum]).

Importantly, under both the FAA and New York law, parties may agree to have an arbitrator decide not only the merits of a dispute, but also “ ‘gateway’ questions of ‘arbitrability,’ ” such as whether their agreement to arbitrate covers a particular controversy or whether one party should be relieved from the agreement due to the wrongful conduct of another party (*Henry Schein, Inc. v Archer & White Sales, Inc.*, 586 US 63, 67-68 [2019], quoting *Rent-A-Center, West, Inc. v Jackson*, 561 US 63, 68-69 [2010]; *Howsam v Dean Witter Reynolds, Inc.*, 537 US 79, 84 [2002]; accord *Revis v Schwartz*, 38 NY3d 939, 940 [2022]). The Supreme Court has repeatedly “explained that an ‘agreement to arbitrate a gateway issue is simply an *additional, antecedent agreement* the party seeking arbitration asks the . . . court to enforce, and the FAA operates on this additional arbitration agreement just as it does on any other’ ” (*Henry Schein, Inc.*, 586 US at 68 [emphasis added], quoting *Rent-A-Center, West, Inc.*, 561 US at 70). Thus, before enforcing a provision that delegates arbitrability issues to an arbitrator, the court must first assess whether the delegation provision is itself valid (*see Coinbase, Inc.*, 602 US at 149). In undertaking that analysis, the court must keep in mind that, as a matter of substantive federal arbitration law, a delegation provision is severable from the remainder of the arbitration provision and contract in which it appears (*id.* at 150-151; *Rent-A-Center, West, Inc.*, 561 US at 71-72; *Buckeye Check Cashing, Inc.*, 546 US at 445; *Prima Paint Corp. v Flood & Conklin Mfg. Co.*, 388 US 395, 402-403 [1967]). Therefore, unless a party “challenge[s] the delegation provision specifically,” the court must enforce it according to its terms, which in the case of a comprehensive delegation provision will mean leaving any challenge to the enforceability of the arbitration agreement or contract more generally for the arbitrator (*Rent-A-Center, West, Inc.*, 561 US at 72).

One type of direct challenge that must be resolved by a court is a claim that the parties did not in fact agree to delegate arbitrability issues, which may arise from a broader challenge to the formation of the underlying contract (*see Granite Rock Co. v Teamsters*, 561 US 287, 297 [2010]; *cf. Coinbase, Inc.*, 602 US at 150-151 [“where a challenge applies ‘equally’ to the whole contract and to . . . (a) delegation provision, a court must ad-

dress the challenge”). In contrast, challenges that go solely to the enforceability of other provisions of the contract and do not relate to the severable delegation provision cannot be considered by the court (*see Rent-A-Center, West, Inc.*, 561 US at 71-72 [instructing that the FAA “operates on the *specific* ‘written provision’ to ‘settle by arbitration a controversy’ that the party seeks to enforce” (emphasis added)]).

Although “‘courts should not assume that the parties agreed to arbitrate arbitrability unless there is ‘clear and unmistakable’ evidence that they did so’” (*Coinbase, Inc.*, 602 US at 149 [brackets omitted], quoting *Kaplan*, 514 US at 944), where that standard is met, “courts must respect the parties’ decision as embodied in the contract” by leaving the arbitrability issues for the arbitrator (*Henry Schein, Inc.*, 586 US at 65). Indeed, in such a case, courts may not rule on the potential merits of an arbitrability issue even if the arguments of the party seeking to arbitrate “appear[] to the court to be frivolous” or even “wholly groundless” (*see id.* at 68 [internal quotation marks omitted]).

III.

There is no sound reason why the contract principles described above should not be applied to web-based contracts in the same manner as they have long been applied to traditional written contracts. Although this Court has not, until now, had the opportunity to offer substantial guidance on the question, state and federal courts across the country have routinely applied “traditional contract formation law” to web-based contracts, and have further observed that such law “does not vary meaningfully from state to state” (*Edmundson v Klarna, Inc.*, 85 F4th 695, 702-703 [2d Cir 2023]). Case law from other jurisdictions may therefore provide useful guidance (*id.* at 703).

First, as with any other type of contract, formation of a web-based contract requires a “manifestation of mutual assent sufficiently definite to assure that the parties are truly in agreement with respect to all material terms” (*see Stonehill*, 28 NY3d at 448 [internal quotation marks omitted]). Consistent with this principle, courts have examined whether the offeree of a web-based contract was put on inquiry notice of the contractual terms (*see e.g. Edmundson*, 85 F4th at 703 [noting that New York, California, and Connecticut law are all similar]; *Kauders v Uber Tech., Inc.*, 486 Mass 557, 572-573, 159 NE3d 1033,

1048-1050 [2021] [Massachusetts law]; *Sgouros v TransUnion Corp.*, 817 F3d 1029, 1034 [7th Cir 2016] [Illinois law]). The existence of such notice must be evaluated objectively, in line with our focus on the “objective manifestations of the intent of the parties as gathered by their expressed words and deeds” (*Stonehill*, 28 NY3d at 448-449 [internal quotation marks omitted]). Thus, as other courts have recognized, a user does not need to have actually read and understood the terms of an Internet contract to be so bound; rather, where a “reasonably prudent user” would have been on inquiry notice of contractual terms, an offeree may still be bound by them (*Meyer v Uber Tech., Inc.*, 868 F3d 66, 74-75 [2d Cir 2017]). A reasonably prudent user is one who is neither “highly savvy” nor “a complete stranger” to computers or smartphones—that is, someone who has general familiarity with how to navigate a website, use a scroll bar, recognize a hyperlink, and download an application (see *Edmundson*, 85 F4th at 703-704).

To effectuate this objective standard, courts “look to the design and content of the relevant interface to determine if the contract terms were presented to the offeree in way that would put her on inquiry notice of such terms” (*Starke*, 913 F3d at 289). For example, “[w]here the link to a website’s terms of use is buried at the bottom of the page or tucked away in obscure corners of the website where users are unlikely to see it, courts have refused to enforce the [web-based] agreement” (*Nguyen v Barnes & Noble Inc.*, 763 F3d 1171, 1177 [9th Cir 2014] [collecting authorities]).

“By contrast, when terms are linked on an uncluttered interface and temporally and spatially coupled with the mechanism for manifesting assent, and the user does not need to scroll beyond what is immediately visible to find the terms, [courts] have concluded, as a matter of law, that the interface provided reasonably conspicuous notice of the existence of contractual terms” (*Edmundson*, 85 F4th at 704 [internal quotation marks omitted]).

In addition to inquiry notice, formation of a web-based contract under New York law also requires a clear and objective manifestation of assent (see *Stonehill*, 28 NY3d at 448). This manifestation need not take any one particular form. Although an Internet or smartphone user need not explicitly say “I agree” to the contractual terms, they must engage in conduct

that a reasonably prudent user would understand to constitute assent (*Edmundson*, 85 F4th at 704-705 [discussing relevant considerations]).

We now turn to the application of these principles to Uber's January 2021 terms of use. Only a few days before plaintiff purportedly agreed to the terms, she received the following email:

Updated Terms of Use

Starting on January 18, you'll be asked to review and agree to our updated terms

[Review terms →](#)

Hi

You can now review our updated [Terms of Use](#) ("Terms"), which will go into effect on January 18, 2021. Beginning on or after January 18, you'll see a pop-up in the Uber or Uber Eats app that will enable you to review and agree to the updated Terms. After indicating that you have read and agree to the Terms, tap **Confirm** in order to continue using the app.

We recommend that you review the updated [Terms](#). Some of the updates include changes to the Arbitration Agreement, the terms related to access and use of the Uber platform, and procedures and rules for filing a dispute against Uber.

Please note that we are not making any changes to the ways in which we use your personal data. We will continue to uphold our long-standing policy of not sharing or selling your data for third-party marketing or advertising purposes, unless we have your consent. For information on our privacy practices, please see our [Privacy Notice](#).

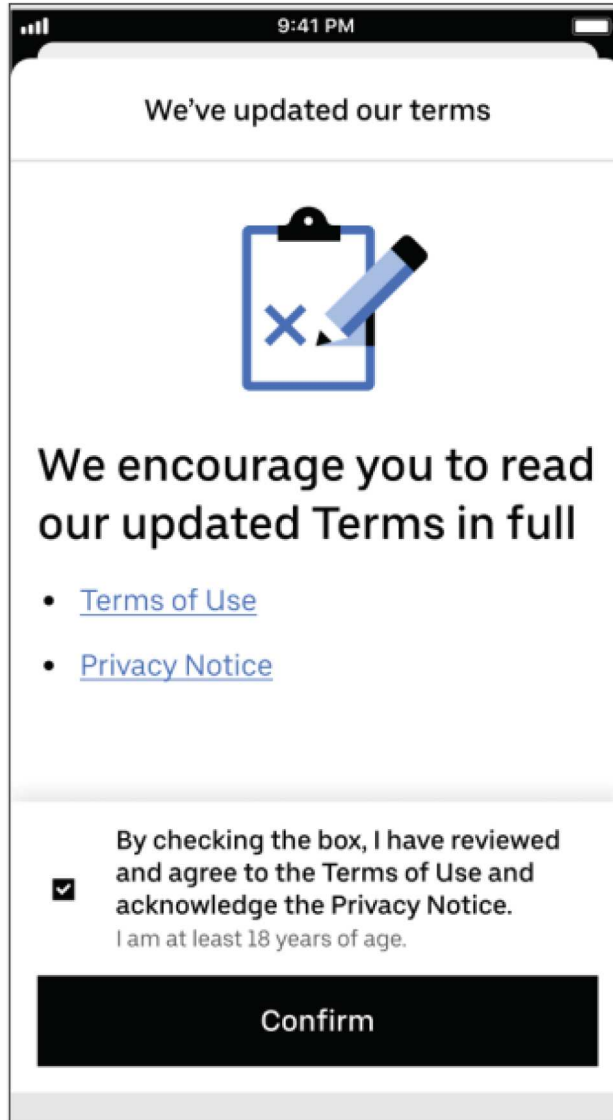
Thank you,
The Uber team

The headline of the email, "**Updated Terms of Use**," and the large text immediately beneath it clearly informed plaintiff that she would soon "be asked to review and agree to [Uber's] updated terms [of use]." Moreover, the email specifically advised plaintiff that the terms would include, among other subjects, "changes to the Arbitration Agreement." The terms were accessible through several hyperlinks, including a large

black button at the very top of the email specifically labeled “Review terms,” and the text “Terms of Use” in the first line of the first paragraph, which was distinguished from the black text surrounding it by the signature blue font indicating a hyperlink (see *Edmundson*, 85 F4th at 704, 707; *Meyer*, 868 F3d at 77-78). Finally, the text of the email expressly advised plaintiff *how* she could manifest assent to the terms, i.e., by tapping “**Confirm**” on a pop-up window that would automatically appear when she opened the Uber application on her smartphone. The email was written in plain language.

Only a few days later, Uber’s January 2021 terms of use were presented to plaintiff by means of a clickwrap process—a means of acquiring binding assent from consumers that has been widely upheld by courts across the country⁴ (see *Toth v Everly Well, Inc.*, 118 F4th 403, 410-411 [1st Cir 2024]; *Oberstein v Live Nation Entertainment, Inc.*, 60 F4th 505, 513 [9th Cir 2023]; *Meyer*, 868 F3d at 75; *Hancock v American Tel. & Tel. Co., Inc.*, 701 F3d 1248, 1256 [10th Cir 2012]; *Brooks v Lang Yang*, 216 AD3d 505, 506 [1st Dept 2023]). As previewed in the email, plaintiff was presented with the following pop-up screen when she opened the Uber app on her smartphone:

4. The methods by which web-based contracts are offered and accepted are detailed in *Meyer* (868 F3d at 75 [discussing “clickwrap,” “browsewrap,” and “sign-in-wrap” agreements]).



The headline and the larger text in the center of the screen—"We've updated our terms" and "We encourage you to read our updated Terms in full"—clearly advised plaintiff that she was being asked to agree to a contract with Uber. The terms themselves were again made accessible by a hyperlink on the words "Terms of Use," which were formatted in large, underlined, blue text. A reasonably prudent user would have understood from the color, underlining, and placement of that

text, immediately beneath the sentence “encourag[ing]” users to “read [the] updated Terms in full,” that clicking on the words “Terms of Use” would permit them to review those terms in their entirety. Finally, Uber provided plaintiff with an unambiguous means of accepting the terms by including a checkbox, “Confirm” button, and bolded text expressly stating that, “By checking the box, I have reviewed and agree to the Terms of Use.” It is undisputed that plaintiff checked the box and clicked the “Confirm” button.

It is unclear from the record whether plaintiff clicked on any of the several prominently-placed hyperlinks that would have enabled her to actually review and assess the January 2021 terms. Had she done so, however, plaintiff would have seen that those terms included an arbitration agreement. As already noted, that portion of the agreement was disclosed in bolded, all-capitalized text in the fifth paragraph, and the arbitration agreement itself was set forth in the very next section under the prominent heading “**Arbitration Agreement.**”

Numerous courts have held that this very clickwrap process, or those substantially like it, satisfy the requirements for formation of an agreement to arbitrate (*see e.g. Brooks*, 216 AD3d at 506-507; *Rigano v Uber Tech., Inc.*, 84 Misc 3d 1208[A], 2024 NY Slip Op 51381[U] [Sup Ct, Westchester County 2024]; *Garcia v Lora*, 2024 NY Slip Op 34658[U] [Sup Ct, Bronx County 2024]; *Williamson v Alexander*, 2022 NY Slip Op 34503[U] [Sup Ct, Kings County 2022]; *Wakeman v Uber Tech., Inc.*, 721 F Supp 3d 1191 [D Kan 2024]; *Hamilton v Uber Tech., Inc.*, 2023 WL 5769500, 2023 US Dist LEXIS 158628 [SD NY, Sep. 7, 2023, No. 22-CV-6917 (PGG) (OTW)]; *see also Mejia v Linares*, 219 AD3d 1251, 1252 [1st Dept 2023] [solely insofar as it discusses Uber’s 2021 clickwrap process]). We agree. Uber’s clickwrap process put plaintiff on inquiry notice of the January 2021 terms—including the prominently placed arbitration agreement—and she manifested her assent to those terms by both clicking on the box and pressing the “Confirm” button.

Plaintiff argues that her assent to the arbitration agreement was not effective, or should not be enforced, because Uber knew, or should have known, that she would never agree to arbitrate claims already pending in court and, further, that neither the January 2021 email nor the pop-up screen drew her attention to that aspect of the agreement’s alleged scope. She relies on the Restatement (Second) of Contracts, which

provides that “standardized agreements” should be enforced “with respect to the terms included in the writing,” except that where the offeror “has reason to believe that the party manifesting . . . assent would not do so if he knew that the writing contained a particular term, the term is not part of the agreement” (Restatement [Second] of Contracts § 211 [1], [3]). Plaintiff further asserts that Uber’s communications and the January 2021 terms were “actively misleading” because they implied that the arbitration agreement would only apply to future claims against the company, and the language covering accrued personal injury claims was “buried” in the agreement. As will be explained, these questions are for the arbitrator to resolve, because they neither call into question the formation of the arbitration agreement nor directly challenge the delegation provision contained in that agreement.

Contrary to plaintiff’s assertions, her arguments do not raise an issue of contract formation. Uber’s clickwrap process satisfied the contract-formation requirements of offer and acceptance. Although plaintiff’s accusations of misrepresentations or unconscionable conduct may raise questions as to the enforceability of the provision of the arbitration agreement purporting to cover preexisting claims, the Supreme Court has made clear that those are not formation questions (*see e.g. Rent-A-Center, West, Inc.*, 561 US at 73-75 [unconscionability]; *Buckeye Check Cashing, Inc.*, 546 US at 444 [argument that contract was void ab initio for illegality and against public policy]; *Prima Paint Corp.*, 388 US at 396-397 [fraud in the inducement]). Rather, at their core, these questions ask “whether [the arbitration agreement] is legally binding, as opposed to whether it was in fact agreed to” (*see Rent-A-Center, West, Inc.*, 561 US at 69 n 1).

The very Restatement section on which plaintiff relies makes clear that its requirements do not go to the question of contract formation. As noted above, the specified consequence of a violation of section 211 is that the “*particular term* . . . is not part of the agreement”—not that no agreement was formed (*see* Restatement [Second] of Contracts § 211 [3] [emphasis added]). Put differently, the offending term is unenforceable and effectively severed from the contract formed by the parties’ manifestations of assent, which is otherwise unaffected.⁵ *Formation* defects, by contrast, prevent the creation of any contract

5. The official commentary also explains that section 211 is “closely related to the policy against unconscionable terms,” which, as previously

(n. cont’d)

at all (*see Buckeye Check Cashing, Inc. v Cardegna*, 546 US at 444 n 1 [describing true formation issues such as capacity, agent authority, and “whether the alleged obligor ever signed the contract”]). This distinction is critical when it comes to arbitration agreements like this one, with broad delegation provisions. If no agreement was ever formed, it would be improper for this Court to enforce any provision set forth therein, including a delegation provision. But if the problem is solely with the enforceability of a “particular term”—here, the language requiring plaintiff to arbitrate personal injury claims that “occurred or accrued before or after the date [she] agreed to the Terms”—the severable delegation provision is not affected.

In the delegation provision, the parties expressly agreed that the arbitrator would have “exclusive authority” over any disputes relating to the applicability or enforceability of the arbitration agreement, including “all threshold arbitrability issues, . . . issues relating to whether the Terms are . . . unconscionable . . . any defense to arbitration . . . [and any] dispute about whether this Arbitration Agreement can be enforced or applies to a dispute.” That language easily covers all of plaintiff’s challenges relating to how Uber misled her. Therefore, unless plaintiff can establish that the delegation provision, specifically, is invalid, her enforceability challenges are for the arbitrator (*see e.g. Rent-A-Center, West, Inc.*, 561 US at 66; *Scott v CVS*, 2023 WL 3477827, *2, 2023 US App LEXIS 11900, *4 [3d Cir, May 15, 2023, No. 22-3314]). Here, plaintiff does not contend that the delegation provision itself was hidden from her, is unconscionable, or is against public policy. She makes those contentions only with respect to the separate language in the arbitration agreement requiring the parties to arbitrate personal injury claims that accrued prior to its formation. Under the Supreme Court’s well-settled severability rule, the delegation provision must be enforced regardless of “the substance of the remainder of the contract” (*see Rent-A-Center, West, Inc.*, 561 US at 71-72).

Finally, plaintiff argues that Uber should be barred from enforcing the arbitration agreement, and that severe sanctions should be awarded against the company, because Uber knowingly solicited her agreement to arbitrate pending claims

explained, is an enforceability rather than a formation issue (Restatement [Second] of Contracts § 211, Comment *f*).

without prior notice to her attorney in violation of rule 4.2 of the Rules of Professional Conduct. These arguments arguably require a different analysis, inasmuch as they could at least potentially render the delegation provision itself voidable (*see Coinbase, Inc.*, 602 US at 150-151; *Rent-A-Center, West, Inc.*, 561 US at 74). But even assuming that it is within our authority to consider the rule 4.2 question, we hold that Supreme Court did not abuse its discretion in declining to invalidate the delegation provision—much less the broader arbitration agreement—as a sanction for that purported ethical violation. As an initial matter, invalidation of the delegation provision or arbitration agreement was not among the sanctions requested by plaintiff for the rule 4.2 violation (*see* 78 Misc 3d at 601-602). In any event, there is record support for Supreme Court's affirmed factual finding that Uber lacked actual knowledge of this litigation at the time it solicited plaintiff's assent to the January 2021 terms, rendering rule 4.2 inapplicable.

* * *

For essentially as long as there have been written contracts, parties have entered them without first carefully reviewing their terms. That failure can have legal consequences, whether the party is a sophisticated entity or an ordinary consumer, and whether the contract is presented on paper or through an electronic pop-up window. Here, the consequence of plaintiff's purported failure to carefully review Uber's updated terms of use is that she must make her arguments regarding Uber's allegedly deceptive and unconscionable conduct to a neutral arbitrator, not the courts.

Accordingly, the order of the Appellate Division should be affirmed, with costs, and the certified question answered in the affirmative.

RIVERA, J., dissenting. Plaintiff was injured in an automobile accident while using defendant Uber Technology's ride-sharing services. She hired a lawyer and sued Uber and the drivers involved in state court. Thereafter, Uber sent millions of its customers a hyperlink to its "Updated Terms of Use" that includes a mandatory arbitration provision which Uber asserts required recipients including plaintiff to arbitrate rather than litigate any claims going forward. Uber never sent the updated terms to plaintiff's counsel of record. Plaintiff contends that she did not intend and did not agree by these updated terms to resolve her already-filed lawsuit through binding arbitration.

Thus, the question on this appeal is one of contract formation: “whether any agreement between the alleged obligor and obligee was ever concluded” (*Buckeye Check Cashing, Inc. v Cardegna*, 546 US 440, 444 n 1 [2006]). That decision is for the courts.

The United States Supreme Court and this Court have repeatedly and consistently held that when a party contests a motion to compel arbitration based upon a contractual arbitration clause, the courts must determine whether the parties have entered a contract at all (*see e.g. Granite Rock Co. v Teamsters*, 561 US 287, 296 [2010]; *Henry Schein, Inc. v Archer & White Sales, Inc.*, 586 US 63, 69 [2019]; *Buckeye Check Cashing, Inc.*, 546 US at 444 n 1). In New York, “[t]o form a binding contract there must be a meeting of the minds, such that there is a manifestation of mutual assent sufficiently definite to assure that the parties are truly in agreement with respect to *all material terms*” (*see Stonehill Capital Mgt. LLC v Bank of the W.*, 28 NY3d 439, 448 [2016] [internal quotation marks and citations omitted; emphasis added]). The majority acknowledges that contract formation in New York requires inquiry or actual notice of all material terms, but fails to recognize that mandated removal from court to arbitration of an *already filed* lawsuit is a material term for these parties that is separate and distinct from a general arbitration provision for future suits. Because plaintiff was not on actual or inquiry notice of such a consequential term, no contract was formed here, at least as to relevant litigation-related terms. Under traditional contract principles and precedent, plaintiff—or any reasonable person—would not have understood the update encompassed their preexisting lawsuit. Uber’s general customer update lacks an express reference to pending litigation, uses prospective language, and sets its effective date months after circulation. Moreover, Uber sent the update directly to an adverse party—plaintiff—rather than the counsel of record. Under these circumstances, there was no agreement to arbitrate and Uber therefore lacks a contractual basis for forcing plaintiff out of the courtroom. I dissent.

I.

The Federal Arbitration Act (FAA) provides that arbitration agreements are “valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of

any contract” (9 USC § 2).¹ “[A]rbitration agreements are simply contracts” (*Coinbase, Inc. v Suski*, 602 US 143, 148 [2024]). They hold no greater position under the law than any other contract (*Rent-A-Center, West, Inc. v Jackson*, 561 US 63, 69 n 1, 70 n 2 [2010]). Contracts inducing arbitration are on equal footing with other contracts, in that they require “clear and unmistakable” evidence of intent (*id.*). Arbitration “is a way to resolve those disputes—but only those disputes—that the parties have agreed to submit to arbitration” (*First Options of Chicago, Inc. v Kaplan*, 514 US 938, 943 [1995]). That choice is consequential

“because a party who has not agreed to arbitrate will normally have a right to a court’s decision about the merits of its dispute (say, as here, its obligation under a contract). But, where the party has agreed to arbitrate, [they], in effect, ha[ve] relinquished much of that right’s practical value. The party still can ask a court to review the arbitrator’s decision, but the court will set that decision aside only in very unusual circumstances” (*id.* at 942).

“[A]rbitration is strictly a matter of consent.” (*Coinbase Inc.*, 602 US 143, 148). It is thus axiomatic that the parties must mutually agree to arbitrate before a court may order arbitration. “It is similarly well settled that where the dispute at issue concerns contract formation, the dispute is generally for courts to decide” (*Granite Rock Co.*, 561 US at 296), for it is “generally [a] nonarbitral question whether an arbitration agreement was ‘ever concluded’ ” (*id.* at 296, quoting *Buckeye Check Cashing, Inc.*, 546 US at 444 n 1). In other words, “a court may not compel arbitration until it has resolved the question of the very existence of the contract embodying the arbitration clause” (*Specht v Netscape Communications Corp.*, 306 F3d 17, 26 [2d Cir 2002, Sotomayor, J.] [internal quotation marks and citation omitted]).

1. Section 4 of the FAA states that “[t]he [district] court shall hear the parties, and upon being satisfied that the making of the agreement for arbitration or the failure to comply therewith is not in issue, the court shall make an order directing the parties to proceed to arbitration in accordance with the terms of the agreement” (9 USC § 4 [emphasis added]). This section thus requires that courts must first determine that there is no dispute as to the existence of a contract (*Applebaum v Lyft, Inc.*, 263 F Supp 3d 454, 466 [SD NY 2017]).

Of course, the question of whether the parties entered an agreement at all is one of formation and separate and distinct from the question of whether an agreement formed by the parties that encompasses arbitration of the merits of the parties' dispute is legally valid and enforceable. The former is a matter resolved by the courts and the latter types of questions of arbitrability may be sent to an arbitrator. In other words, "before referring a dispute to an arbitrator, the court determines whether a valid arbitration agreement exists" (*Henry Schein, Inc.*, 586 US at 69). "When deciding whether the parties agreed" to delegate the issue of arbitrability to an arbitrator, courts generally "should apply ordinary state-law principles that govern the formation of contracts" (*First Options*, 514 US at 944).

II.

A.

The majority clutters the issue with its description of how Uber's correspondence and the updated terms include certain bolded language and where on a customer's smartphone this language and acceptance of terms the checkbox could be found (*see* majority op at 293). Even if that is useful narrative background, it is completely irrelevant because there is no record that plaintiff clicked on the hyperlink and read the updated terms. Uber's silence on this issue suggests that she did not. Given that Uber presented documentation that plaintiff had received and opened its email advising that it had updated its terms of use, it is hard to believe that Uber would not have confirmed and presented documentation that plaintiff clicked on the hyperlink.

If she did not read the terms, then plaintiff was like most people. The reality is that a majority of customers never read these terms (*see* Ian Ayres & Alan Schwartz, *The No-Reading Problem in Consumer Contract Law*, 66 Stan L Rev 545, 547 [2014] [empirical study of 45 thousand households found that "one or two out of every thousand retail software shoppers chooses to access the license agreement, and those few that do spend too little time, on average, to have read more than a small portion of the license text"], citing Yannis Bakos et al., *Does Anyone Read the Fine Print? Consumer Attention to Standard Form Contracts*, NYU Center for Law, Economics & Organization, Working Paper No. 09-40 [2009], available at <http://>

ssrn.com/abstract=1443256).² Uber provides a ride-share platform that connects its customer to its driver. Most customers will access the app and simply check off agreement to the terms to get that ride. In any case, we need not resolve the question of whether plaintiff actually read the updated terms of use all the way through before checking the box agreeing to the terms. Even if she did, the law still favors plaintiff since the dispositive question is how a reasonable person would interpret the updated terms.

B.

Contract formation is a matter of state law and requires evidence of the parties' "clear and unmistakable" agreement to arbitrate (*First Options*, 514 US at 944 [internal quotation marks, brackets and citation omitted]). As a first principle of contract law—impressed on every novice law student—"there must be a meeting of the minds, such that there is a manifestation of mutual assent sufficiently definite to assure that the

2. More absurd examples highlight the extent of this problem. "PC Pitstop included a provision in its EULA that awarded '[a] special consideration which may include financial compensation . . . to a limited number of authorize licensee [sic] to read this section of the license agreement and contact PC Pitstop.' Four months passed before a user noticed the clause and claimed the \$1000 prize" (Ian Ayres & Alan Schwartz, *The No-Reading Problem in Consumer Contract Law*, 66 Stan L Rev 545, 547 [2014], quoting Larry Magid, *It Pays to Read License Agreements*, PC Pitstop, <http://www.pcpitstop.com/spycheck/eula.asp>).

"[A]s an April Fools' Day prank in 2010, Gamestation put up spoof terms and conditions committing its United Kingdom consumers to sell their souls: 'Should we wish to exercise this option, you agree to surrender your immortal soul, and any claim you may have on it, within 5 (five) working days of receiving written notification from gamestation.co.uk or one of its duly authorised minions.' Over 7000 consumers made a purchase from the site that day, all checking a box saying they understood the conditions, and 'no one noticed a thing'" (Ayres & Schwartz, *The No-Reading Problem in Consumer Contract Law*, 66 Stan L Rev at 547 n 5 [citation omitted], citing Lucy Kellaway, *Pointless Conditions Should Not Apply: The Sopoforic Legalese of Online Transactions*, Financial Times [Jan. 23, 2011], <http://www.ft.com/cms/s/0/7158c690-2596-11e0-8258-00144feab49a.html#axzz1zPmBwtYm>). In a study of over 500 college students, all of them agreed to a fake social media site's terms of service, despite a term in paragraph 2.3.1 in which they gave the site the right to name their future first-born child (David Berreby, *Click to agree with what? No one reads terms of service, studies confirm*, The Guardian, Mar. 3, 2017, <https://www.theguardian.com/technology/2017/mar/03/terms-of-service-online-contracts-fine-print> [accessed Nov. 1, 2024]).

parties are truly in agreement with respect to all material terms” (*Stonehill Capital Mgt. LLC v Bank of the W.*, 28 NY3d 439, 448 [2016] [internal quotation marks and citations omitted]). The arbitration provision is a significant and material term for plaintiff, as it restricts her right to continue pursuing relief in court (*see First Options*, 514 US at 944). The question remains whether a reasonable person would have understood that the updated terms apply to pending lawsuits against Uber so that agreement to the updates constitutes assent to mandatory arbitration of claims in litigation.

Assent based on a meeting of the minds requires notice—express or inquiry³—of the terms of the proposed agreement (*Matter of Express Indus. & Term. Corp. v New York State Dept. of Transp.*, 93 NY2d 584, 589 [1999]; *Starke v SquareTrade, Inc.*, 913 F3d 279, 288-289 [2d Cir 2019] [applying New York law]).⁴ “Where an offeree does not have *actual* notice of certain contract terms, [they are] nevertheless bound by such terms if [they are] on *inquiry* notice of them and assents to them through conduct that a reasonable person would understand to constitute assent” (*Starke*, 913 F3d at 289). “In determining whether an offeree is on inquiry notice of contract terms, New York courts look to whether the *term* was obvious and whether it was called to the offeree’s attention” (*id.* [emphasis added]). Thus, notice is a precondition to assent. One cannot have notice of the terms if the terms are not obvious, and one cannot assent if there is no notice of the terms.

Even if the parties are on notice of a term in the sense that it is accessible and not obfuscated in presentation, that does not end the inquiry. The parties must still have a shared understanding of the terms for them to assent (*Berkson v Gogo LLC*, 97 F Supp 3d 359, 403 [ED NY 2015] [“The offeror must show that a reasonable person in the position of the consumer would have known about what (they were) assenting to”]; *ISC Holding AG v Nobel Biocare Invs. N.V.*, 351 F Appx 480, 481 [2d Cir 2009] [“Without a meeting of the minds such that an enforceable agreement to arbitrate was formed, we will not compel arbitration”]). Thus, plaintiff can only be bound to arbitrate the claims she filed in state court if she both had notice and understood the updated terms to encompass those

3. Inquiry notice is a class of constructive notice of the terms of the proposed agreement (*Witter v Taggart*, 78 NY2d 234, 239 [1991]).

4. To be clear, I am referring here to notice of the terms themselves not whether plaintiff had notice that Uber had updated its existing terms of use.

claims. The update may have been crystal clear about future disputes, or at least claims not yet filed, and clearly understood by a reasonable person to carry the parties' shared intended meaning.

The majority concludes that there is no formation problem here because, either plaintiff was on inquiry notice that there was *an* agreement or, the contract meets the inquiry notice standards for a typical contract of adhesion with a general mandated arbitration provision (majority op at 307). This is a misstatement of the inquiry notice standard required for contract formation and also fails to grapple with the actual material term at issue here: a provision that forces already-filed lawsuits from courts to arbitrators. The Supreme Court in *First Options* established that this inquiry notice standard is provision-specific and requires more than just the plaintiff being on inquiry notice of *an* agreement. The Court warned that “[c]ourts should not assume that the parties agreed to arbitrate arbitrability unless there is ‘clear and unmistakable’ evidence that they did so” (514 US at 944 [brackets and citation omitted]). It has subsequently explained that this evidentiary requirement is an “‘interpretive rule,’ based on an assumption about the parties’ expectations” (*Rent-A-Center, West, Inc.*, 561 US at 69 n 1). The rule “pertains to the parties’ manifestation of intent, not the agreement’s validity” (*id.* [emphasis omitted]). If evidence of manifest assent is lacking, then there is no question for the arbitrator (*id.*). That is exactly the case here.

The majority mischaracterizes the Restatement [Second] of Contracts § 211 (3) and argues that the “consequence of a violation of section 211 is that the ‘*particular term . . .* is not part of the agreement’—not that no agreement was formed” to support its position that a contract exists between plaintiff and Uber (majority op at 308 [citation omitted]). The actual language of the Restatement belies this reading, and consistently treats unexpected terms of which a party does not have actual or inquiry notice as a contract formation issue. “Where the other party has reason to believe that the party manifesting such assent would not do so if [they] knew that the writing contained a particular term, *the term is not part of the agreement*” (Restatement [Second] of Contracts § 211 [3] [emphasis added]). The majority takes the Restatement out of context in order to conclude that because the rule is closely related to unconscionability, the rule does not pertain to formation. The full Restatement commentary is explicit that unexpected terms

are simply not part of the contract. Thus, the majority has it backwards: it is a question of formation, and it is not a question of enforcement.

“f. Terms excluded. Subsection (3) applies to standardized agreements the general principles stated in §§ 20 and 201. Although customers typically adhere to standardized agreements and are bound by them without even appearing to know the standard terms in detail, they are not bound to unknown terms which are beyond the range of reasonable expectation. *A debtor who delivers a check to his creditor with the amount blank does not authorize the insertion of an infinite figure. Similarly, a party who adheres to the other party’s standard terms does not assent to a term if the other party has reason to believe that the adhering party would not have accepted the agreement if he had known that the agreement contained the particular term.* Such a belief or assumption may be shown by the prior negotiations or inferred from the circumstances. Reason to believe may be inferred from the fact that the term is bizarre or oppressive, from the fact that it eviscerates the non-standard terms explicitly agreed to, or from the fact that it eliminates the dominant purpose of the transaction. The inference is reinforced if the adhering party never had an opportunity to read the term, or if it is illegible or otherwise hidden from view. This rule is closely related to the policy against unconscionable terms and the rule of interpretation against the draftsman. See §§ 206 and 208” (*id.* Comment *f* [emphasis added]).

The contract in this case does not contain a run-of-the-mill arbitration provision. As the Restatement commentary notes, with contracts of adhesion, consumers “trust to the good faith of the party using the form and to the tacit representation that like terms are being accepted regularly by others similarly situated” (*id.* Comment *b*). Here, plaintiff is similarly-situated to Uber customers with pending lawsuits. Thus, the question is whether those Uber customers would have assented to the arbitration provision. Without that assent, there is no formation as concerns the arbitration provision. Unsurprisingly, the majority can cite no case or authority for its sweeping proposi-

tion to the contrary. The majority's view strains credulity and disregards the most basic principles of our contract law.

III.

Plaintiff maintains that the updated terms of use cannot be understood to require that she arbitrate claims then pending in state court. While the update may be crystal clear that it applies to all disputes not yet litigated, plaintiff is correct that the update could not have put a reasonable person on notice or have led them to understand that acceptance of the revised terms would force them to arbitrate previously filed, currently pending claims.

We need only look to the method of notification and the update's content to reach this conclusion. Uber's "Updated Terms of Use" were sent via hyperlink to millions of Uber customers months after plaintiff was injured and filed her action.⁵ The majority fails to convincingly explain how plaintiff should have been on inquiry notice that clicking "accept" on a pop-up box—a necessary prerequisite to order an Uber ride—would have the wholly unrelated effect of changing the venue of her filed, pending lawsuit. Indeed, the update was not sent to counsel and lacks any express reference to pending litigation. The update conspicuously fails to state what Uber now claims plaintiff should have easily understood, that the mandatory arbitration provision applies to lawsuits already filed. That lack of express language is fatal to Uber's argument because without it neither plaintiff—nor any reasonable layperson—could have been on actual or inquiry notice or have understood that the update would encompass her lawsuit.

In the usual course, Uber's counsel would have had to seek plaintiff's consent to remove the case from court to arbitration. Doing so would limit her options (*see First Options*, 514 US at 942, 946). Proceeding with arbitration rather than litigation would have entailed a significant change in strategy, decided after consultation with counsel to assess the pros and cons of moving from our public justice system to private dispute resolution. Plaintiff, like any other represented party, would have assumed that all litigation-related communication from de-

5. By all measures it appears the updated terms were intended to address what courts had previously found to be ineffective notice of mandatory arbitration (*see Kauders v Uber Tech., Inc.*, 486 Mass 557, 159 NE3d 1033 [2021]; *Cullinane v Uber Tech., Inc.*, 893 F3d 53, 64 [1st Cir 2018]; *Sarchi v Uber Tech., Inc.*, 268 A3d 258 [Me 2022]).

fendants—especially one with such significant consequences—would be sent directly to her lawyer. In fact, that is exactly what the rules of professional ethics require. The New York Rules of Professional Conduct (22 NYCRR 1200.0) rule 4.2 states:

“(a) In representing a client, a lawyer shall not communicate or cause another to communicate about the subject of the representation with a party the lawyer knows to be represented by another lawyer in the matter, unless the lawyer has the prior consent of the other lawyer or is authorized to do so by law.

“(b) Notwithstanding the prohibitions of paragraph (a), and unless otherwise prohibited by law, a lawyer may cause a client to communicate with a represented person unless the represented person is not legally competent, and may counsel the client with respect to those communications, provided the lawyer gives reasonable advance notice to the represented person’s counsel that such communications will be taking place.”

Apart from the conclusions to be drawn from what the update fails to say and how Uber avoided presenting this significant term to plaintiff’s counsel, there is also the necessary import of the actual language adopted by Uber. The update states it is effective months after circulation and uses prospective language in describing the method for resolving disputes. For example, Uber titled this an “update” that would “go into effect on a future date” which suggests that Uber changed existing terms that would then apply at a later date (*see Merriam-Webster.com Dictionary, update* [<https://www.merriam-webster.com/dictionary/update>] [(1) an act or instance of updating; (2) current information for updating something; (3) an up-to-date version, account, or report])). In addition, the update described the changes as concerning the “procedures and rules for *filing* a dispute against Uber” (emphasis added) rather than cases already filed. The capitalized language at the beginning of the agreement states that the arbitration clause affected how “CLAIMS BETWEEN YOU AND UBER CAN BE BROUGHT.” Again, the language is not set in the past tense, all suggesting to a reasonable person that the agreement applies to how parties will resolve disputes in the future. The fact

that the update encompasses disputes *arising from* past events, but not disputes *litigating* past events, would lead a reasonable person to understand the update applies only if the customer has not yet acted on their rights to sue. That is a logical reading and the one that explains the absence of affirmative language to include pending litigation.⁶

Under these circumstances, the update can only be read to apply to disputes where the customer has not yet affirmatively exercised their right to seek relief in court. Therefore, plaintiff was not on notice and could not have understood that the terms of use required that she arbitrate her pending personal injury action. Without that understanding, she could not assent to binding arbitration when she checked the box accepting the updated terms of use.

IV.

Uber claims that its updated terms of use allow but one interpretation by its users: the terms require binding arbitration of all customer disputes, including those pending in court before the update was drafted and mass disseminated. But if that is what Uber intended to make clear to its users it took pains to confuse those who, at the time, were adverse parties in litigation. For what lawyer and what sophisticated business would draft a material term with counterintuitive language that limits their customers' rights by mandating arbitration, send that purported offer as part of a mass electronic mailing to a customer in a preexisting lawsuit, but not their counsel of record, in apparent, if not actual, violation of the rules against direct contact with a represented party? Established contract doctrine, case law and rules of professional conduct require direct dealings with opposing counsel, and no client suing Uber would think any differently.

The majority focuses solely on what it views as a reasonable interpretation of the updated terms, and not what a reasonable layperson would understand and agree to. Under our law, people are bound to what a reasonable person presented with

6. Plaintiff's use of Uber's ride share services after clicking acceptance of the updated terms on the Uber app does not establish her acceptance of binding arbitration of her pending claims because it only indicates she accepted the claims as she understood them and as a reasonable person would interpret the terms. As I discuss, the proper interpretation excludes pending litigation from the update's arbitration provision.

the same language and choice would understand as the terms of the agreement. Applying that law here, Uber should not be able to force plaintiff out of her chosen forum on the specious ground that a reasonable person in her position, having retained counsel, filed a claim, and engaged in motion practice, suddenly decided that arbitration was the better course. Indeed, Uber would have this Court believe that by simply clicking a box on the Uber app while waiting for the car service, plaintiff, without benefit of counsel's advice, forfeited her right to litigate her claims before the judiciary of the state of New York. That is nonsense.

Judges GARCIA, SINGAS, TROUTMAN and HALLIGAN concur. Judge RIVERA dissents in an opinion, in which Chief Judge WILSON concurs.

Order affirmed, with costs, and certified question answered in the affirmative.

[262 NE3d 249, 235 NYS3d 248]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JASON
BRISMAN, Appellant.

Argued November 19, 2024; decided January 9, 2025

PROCEDURAL SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered December 9, 2021. The Appellate Division order, insofar as appealed from, affirmed a judgment of the Chemung County Court (Christopher P. Baker, J.) which had imposed a prison term of 3½ to 7 years upon defendant's conviction of promoting prison contraband in the first degree.

People v Brisman, 200 AD3d 1219, reversed.

HEADNOTE**Crimes — Sentence — Harsh or Excessive Sentence — Standard of Review**

In a criminal prosecution, the Appellate Division erred in applying an abuse of discretion standard in rejecting defendant's challenge to the severity of his sentence, rather than considering whether defendant's sentence was unduly harsh or severe. An abuse of discretion standard is inconsistent with the CPL, which commits excessive sentence determinations purely to the Appellate Division's interest of justice jurisdiction. Appellate courts apply an abuse of discretion standard in reviewing rulings that are inherently unsuceptible to broad generalization and therefore unamenable to clear rules for lower courts, where the law accordingly commits certain trial-level determinations to a court's discretion to begin with. Challenges to the severity of a sentence are addressed not to the appellate courts' power to modify on the law but are instead addressed purely to the courts' interest of justice powers, which are distinct from determinations made on the law. Accordingly, those courts have broad, plenary power to reduce a sentence without deference to the sentencing court. A defendant need not show extraordinary circumstances or an abuse of discretion by the sentencing court in order to obtain a sentence reduction.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Appellate Review § 727; AM JUR 2d Criminal Law § 738.

CARMODY-WAIT 2d Sentencing Procedures §§ 203:15, 203:17–203:18; CARMODY-WAIT 2d Appeals in Criminal Cases §§ 207:124, 207:146, 207:149.

LAFAVE, ET AL., CRIMINAL PROCEDURE (4th ed) §§ 26.3, 27.5.

NY JUR 2d Criminal Law: Procedure §§ 2970, 2972, 3691,
3693, 3711, 3718.

ANNOTATION REFERENCE

Reduction by appellate court of punishment imposed by
trial court. 89 ALR 295.

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or severe /p “interest of justice” /p “abuse of discretion”

POINTS OF COUNSEL

Clea Weiss, Rochester, for appellant. I. The Third Department failed to use the standard of review selected by the Legislature in CPL 470.15 (6) (b)—whether a sentence is unduly harsh or severe—in reviewing Jason Brisman’s request for a sentence reduction. (*People v Brenda WW.*, 222 AD3d 1188; *People v Miles*, 173 App Div 179; *People v Lopez*, 6 NY3d 248; *People v Cerulli*, 179 App Div 930; *People v Speiser*, 277 NY 342.) II. The intermediate appellate courts should consider the disparity between a plea offer and the sentence imposed after trial when conducting sentence review pursuant to CPL 470.15 (6) (b). (*People v Van Pelt*, 76 NY2d 156; *Bordenkircher v Hayes*, 434 US 357; *People v Martinez*, 26 NY3d 196; *Alabama v Smith*, 490 US 794; *Wasman v United States*, 468 US 559.) III. This appeal is not moot. (*Matter of Flowers v Miller*, 284 AD2d 618; *People v Ramirez*, 89 NY2d 444; *People ex rel. Howard v Yelich*, 87 AD3d 772; *People v Winters*, 196 AD3d 847.)

Weeden A. Wetmore, District Attorney, Elmira (*Nathan M. Bloom* of counsel), for respondent. I. The Third Department did not err in deferring to the sentencing court. (*People v Delgado*, 80 NY2d 780; *People v Jemes*, 132 AD3d 1361; *People v Frank*, 89 AD3d 517; *People v Delgado*, 178 AD2d 275; *People v Junco*, 43 AD2d 266.) II. Because the Third Department found no trial penalty, the prosecution’s plea offer was not an appropriate factor in reviewing the defendant’s sentence under CPL 470.15. (*People v Avery*, 85 NY2d 503; *People v Farrar*, 52 NY2d 302.)

Scott Lockwood, Deer Park, for New York State Association of Criminal Defense Lawyers, amicus curiae. I. The “extraordinary circumstances” test has no statutory basis. (*People v Gem-*

mill, 34 AD 177; *People v Delgado*, 80 NY2d 780; *People v Colon*, 192 AD3d 1567.) II. The preservation requirement is irrelevant in this context given the broad review power of an intermediate appellate court and the role of the judge in sentencing. (*Pfeifer v Jones & Laughlin Steel Corp.*, 678 F2d 453; *People v Jones*, 81 AD2d 22; *People v Fuller*, 57 NY2d 152; *People v Delgado*, 80 NY2d 780.)

OPINION OF THE COURT

TROUTMAN, J.

The intermediate appellate courts are empowered to reduce a sentence that, though legal, is “unduly harsh or severe” (CPL 470.15 [6] [b]). The decisions whether a sentence warrants reduction under that standard, and the extent to which the sentence should be reduced, are committed to the discretion of the intermediate appellate court, which has “broad, plenary power” to reduce the sentence “without deference to the sentencing court” (*People v Delgado*, 80 NY2d 780, 783 [1992]). A defendant need not demonstrate extraordinary circumstances or abuse of discretion by the sentencing court in order to obtain a sentence reduction (see *People v Brenda WW.*, 222 AD3d 1188, 1193 n 2 [3d Dept 2023]; *People v Acosta*, 208 AD3d 1579, 1582 [4th Dept 2022], *lv denied* 39 NY3d 1076 [2023]; *People v Mitchell*, 168 AD3d 531, 532 [1st Dept 2019]).

While incarcerated for manslaughter, defendant engaged in a fight with another incarcerated person. Defendant cut his finger during the fight; his opponent sustained a face wound. After restraining the combatants, correction officers found a bloody, sharpened porcelain shard lying within an arm’s length of defendant. Defendant was convicted of promoting prison contraband in the first degree (Penal Law § 205.25 [2]) and sentenced as a second felony offender to 3½ to 7 years in prison (200 AD3d 1219, 1219-1221 [3d Dept 2021]). The Appellate Division rejected defendant’s challenge to the severity of his sentence on the ground that there were “‘no extraordinary circumstances or abuse of discretion warranting a reduction of the sentence in the interest of justice’” (*id.* at 1222, quoting *People v Planty*, 155 AD3d 1130, 1135 [3d Dept 2017], *lv denied* 30 NY3d 1118 [2018]).¹ Although we lack the discretionary authority to review a challenge to the severity of a sentence

1. Defendant does not dispute the further conclusion that he failed to preserve his contention that the sentence punished him for exercising his right to a trial (see 200 AD3d at 1222). Of course, lack of preservation does

(n. cont’d)

(see *People v Speiser*, 277 NY 342, 344 [1938]), we have the power to review the applicable standard (see *Delgado*, 80 NY2d at 783; see generally *People v Gillotti*, 23 NY3d 841, 860-861 [2014]). Because the Appellate Division applied an erroneous standard, we reverse the order and remit for consideration of defendant's excessive sentence claim under the proper standard.

The Appellate Division has the “inherent power” to reduce an unduly harsh or severe sentence (*People v Thompson*, 60 NY2d 513, 520 [1983]). Indeed, even before the 1896 establishment of the Appellate Division (see 1894 NY Const, art VI, § 2), the intermediate appellate courts had the power to reduce a sentence as “excessive and severe” (*People v Hildebrandt*, 16 Misc 195, 199 [Queens County Ct 1896]; see *People v Casey*, 72 NY 393, 396 [1878] [sentence challenged in the lower courts as “excessive”]; see also *People v Miller*, 15 NYS 516 [Sup Ct, Gen Term, 2d Dept 1891] [reducing a sentence of imprisonment to a \$25 fine]; *People v Baldwin*, 4 NYS 608, 608 [Sup Ct, Gen Term, 3d Dept 1889] [reversing dismissal of an appeal on the ground that the defendant “had the right to have the court of sessions exercise its discretion as to the sentence”]). Over the years that followed, the legislature enacted statutes clarifying the Appellate Division's powers. The first instance of legislative action was in 1919, when the legislature formally codified the Appellate Division's “complete jurisdiction to reduce the sentence” (*Speiser*, 277 NY at 344; see L 1919, ch 282). This legislation came on the heels of two significant Appellate Division decisions. In *People v Miles* (173 App Div 179 [3d Dept 1916]), the Third Department granted a new trial as a remedy for an excessive sentence (see *id.* at 183-185), and, in *People v Cerulli* (179 App Div 930 [2d Dept 1917]), a split Second Department

not preclude the Appellate Division from considering the facts and circumstances underlying that contention in the exercise of its interest of justice power. Indeed, a disparity between a plea offer and a trial sentence may be relevant to the Appellate Division's determination of whether a sentence is unduly harsh or severe (see e.g. *People v Colon*, 211 AD3d 1613, 1615 [4th Dept 2022] [“We agree with defendant . . . that the aggregate sentence of imprisonment is unduly harsh and severe considering the disparity between the plea offer and the sentence of imprisonment imposed following trial”], *lv denied* 39 NY3d 1141 [2023]; *People v Lewis-Bush*, 204 AD3d 1424, 1427 [4th Dept 2022] [“(W)e agree with defendant that the sentence is unduly harsh and severe, particularly considering the disparity between the plea offer and the sentence received”], *lv denied* 38 NY3d 1072 [2022]).

called *Miles* into question (*see id.* at 930). The 1919 legislation confirmed that the Appellate Division had the power to reduce sentences as the intermediate appellate courts had done before. New Yorkers enshrined this power in their Constitution (*see* NY Const, art VI, § 4 [k]; *People v Pollenz*, 67 NY2d 264, 267-268 [1986]).

While the 1919 legislation settled any questions about the intermediate appellate courts' broad powers and the proper remedies, it said nothing of the standard. Over the ensuing decades, however, appellate decisions confirmed the courts' historic power to reduce a sentence that is "excessive" or "unduly severe" (*see e.g. People v Marsh*, 20 AD2d 918, 918 [2d Dept 1964]; *People v Fisher*, 19 AD2d 613, 613 [1st Dept 1963]; *People v Spagnolia*, 260 App Div 551, 552 [4th Dept 1940]). Courts also began to use the synonymous term "unduly harsh" (*see People v Gittelson*, 18 NY2d 427, 430 [1966]; *People v McDonald*, 8 Misc 2d 50, 51 [Columbia County Ct 1957]). As one court observed, the Code of Criminal Procedure, which governed criminal procedure in this state through 1970, "g[ave] every defendant the right of review of the sentence meted out to [them] and impose[d] upon the court the responsibility to determine whether the sentence is harsh and excessive and should be modified" (*People v Corapi*, 42 Misc 2d 247, 254 [App Term, 1st Dept 1964], citing Code Crim Pro § 543).

At the same time, some Appellate Division decisions contemplated a heightened standard under which the defendant must demonstrate extraordinary circumstances or abuse of discretion (*see e.g. People v Caputo*, 13 AD2d 861, 861 [3d Dept 1961] ["The imposition of sentence is within the discretion and judgment of the sentencing court and an appellate court will not interfere with such discretion except under most extraordinary circumstances which do not here exist"]; *People v Nixon*, 33 AD2d 403, 407 [3d Dept 1970] ["It cannot be said that the trial court abused its discretion in imposing the sentence it did"]). The legislature settled any doubts with the enactment of the Criminal Procedure Law in 1970. CPL 470.15 and 470.20, which have remained unchanged since the statute's enactment, empower the intermediate appellate courts to modify, "as a matter of discretion in the interest of justice," a sentence that, "though legal, was unduly harsh or severe" (CPL 470.15 [6] [b])

and provide that, upon doing so, “the court must itself impose some legally authorized lesser sentence” (CPL 470.20 [6]).²

An abuse of discretion standard is inconsistent with the CPL, which commits excessive sentence determinations purely to the Appellate Division’s interest of justice jurisdiction. Appellate courts apply an abuse of discretion standard in reviewing rulings that are inherently unsusceptible to broad generalization and therefore unamenable to clear rules for lower courts—where the law accordingly commits certain trial-level determinations to a court’s discretion to begin with (*see Matter of State of New York v John S.*, 23 NY3d 326, 344 [2014]). Abuse of discretion is, for example, the standard appellate courts use in reviewing a challenge to the admission or exclusion of evidence at trial (*see id.*), and a reversal or modification based on such abuse of discretion is one made on the law (*see People v Mawhiney*, 220 AD3d 1055, 1060 [3d Dept 2023]; *People v Singleton*, 139 AD3d 208, 210, 215 [1st Dept 2016]; *People v Salim*, 96 AD3d 1484, 1485 [4th Dept 2012], *lv denied* 19 NY3d 1028 [2012]; *see also* CPL 470.15 [4] [a]). Challenges to the severity of a sentence are addressed not to the appellate courts’ power to modify on the law but are instead addressed purely to the courts’ interest of justice powers (*see* CPL 470.15 [6] [b]), which are distinct from determinations made on the law (*see* CPL 470.15 [3] [a], [c]). Accordingly, we have been clear that those courts have “broad, plenary power” to reduce a sentence “without deference to the sentencing court” (*Delgado*, 80 NY2d at 783).

Our dissenting colleagues do not say that abuse of discretion is the proper legal standard for evaluating a defendant’s challenge to the severity of a sentence. Instead, they suggest that abuse of discretion is not a standard of review at all, but a “manifest[ation]” of the Appellate Division’s conclusion upon application of the proper legal standard—that being whether the sentence is “unduly harsh or severe” (dissenting op at 334). Of course, abuse of discretion is a standard of review familiar to appellate jurists all over this country, including the Justices of our state’s Appellate Division. As those Justices well know, it is an inquiry distinct from whether the Appellate Division should exercise its own discretion in the interest of justice (*see*

2. The dissent manages to find our reliance on the CPL’s plain language to be “myopic” and “confusing” (dissenting op at 333) but does not dispute that, as detailed above, the statute codifies the Appellate Division’s historical review powers as enshrined in the Constitution.

People v Z.H., 192 AD3d 55, 58 [4th Dept 2020, Troutman, J.] [“Although we do not conclude that the court abused its discretion in denying defendant youthful offender status, we choose to exercise our discretion in the interest of justice to determine that defendant is a youthful offender”). We know the dissenters agree because we said as much two months ago (*see People v Shader*, 43 NY3d 129, 137-138 [Nov. 26, 2024]).

The dissent’s misguided analysis flows from its misunderstanding of *Delgado* (80 NY2d 780). In *Delgado* and its two companion cases, *Diaz* and *Ramsey*, we were presented with three decisions wherein the defendants’ sentencing challenges split the Appellate Division (*see People v Delgado*, 178 AD2d 275 [1st Dept 1991]; *People v Diaz*, 177 AD2d 406 [1st Dept 1991]; *People v Ramsey*, 178 AD2d 269 [1st Dept 1991]). One majority memorandum concluded that the sentence was “not excessive under the circumstances” and added that the “court did not abuse its discretion” (*Diaz*, 177 AD2d at 407), and concurrences in the other two urged the application of an abuse of discretion standard (*see Delgado*, 178 AD2d at 276; *Ramsey*, 178 AD2d at 270).

In affirming, we began with the appropriate standard, explaining that the “intermediate appellate court has broad, plenary power to modify a sentence that is unduly harsh or severe under the circumstances,” and that this “sentence-review power may be exercised, if the interest of justice warrants, without deference to the sentencing court” (*Delgado*, 80 NY2d at 783). Having articulated a standard of review entirely incompatible with an abuse of discretion standard, we nonetheless concluded that the Appellate Division “did not misapprehend its power in these cases” inasmuch as we “read the Appellate Division’s statements that the sentencing courts did not abuse their discretion to mean that the Appellate Division did not find the sentences unduly harsh or severe under the circumstances” (*id.*). Our understanding that the Appellate Division “did not find the sentences unduly harsh or severe under the circumstances” essentially mirrored the conclusion in *Diaz* that the sentence was “not excessive under the circumstances” (177 AD2d at 407), language which is conspicuously absent from the decision below (*contra* dissenting op at 334 [obfuscating the distinction between *Diaz* and the instant case by describing their language as “virtually identical”]). Moreover, our decision in *Delgado* was specific to the statements as we understood them in the context of those writings. We did

not say that abuse of discretion is the appropriate standard, nor did we bind ourselves to affirming in every case where the Appellate Division employs abuse of discretion language. Indeed, the dissenters appear to agree that there are cases where the Third Department employed abuse of discretion language in applying the wrong standard of review (*see* dissenting op at 334, quoting *People v Lancaster*, 143 AD3d 1046, 1054 [3d Dept 2016], *lv denied* 28 NY3d 1147 [2017]).

Unlike in *Delgado*, we cannot read the references to “extraordinary circumstances or abuse of discretion” in this case to mean that the Appellate Division applied the proper “unduly harsh or severe” standard because the Third Department’s subsequent jurisprudence demonstrates—and indeed acknowledges—that it had not been applying the “unduly harsh or severe” standard at the time it decided the instant case. Six months after deciding the instant case, the Third Department abandoned the “extraordinary circumstances or abuse of discretion” standard altogether. That Court last articulated that standard in five decisions released May 19, 2022 (*see People v Purdie*, 205 AD3d 1225, 1226 [3d Dept 2022], *lv denied* 38 NY3d 1135 [2022]; *People v Thompson*, 205 AD3d 1232, 1233 [3d Dept 2022]; *People v Torres*, 205 AD3d 1211, 1212 [3d Dept 2022]; *People v Blair*, 205 AD3d 1227, 1228-1229 [3d Dept 2022], *lv denied* 38 NY3d 1132 [2022]; *People v Duckett*, 205 AD3d 1229, 1230 [3d Dept 2022], *lv denied* 39 NY3d 939 [2022]). Only weeks later, it reduced sentences in three criminal appeals (*see People v Harris*, 206 AD3d 1454, 1461 [3d Dept 2022] [concluding that an aggregate sentence of 50 years to life for a persistent felony offender who was convicted of nonviolent felonies was unduly harsh and severe], *lv denied* 39 NY3d 940 [2022]; *People v Drumgold*, 206 AD3d 1044, 1048 [3d Dept 2022], *lv denied* 38 NY3d 1150 [2022]; *People v Kerrick*, 206 AD3d 1268, 1271 [3d Dept 2022] [reducing a 20-year sentence to 12 years to rectify a disparity in sentencing of accomplices who received five years in prison and six months in jail, respectively], *lv denied* 38 NY3d 1151 [2022]; *cf. People v Smith*, 206 AD3d 1058, 1063 [3d Dept 2022] [upholding a sentence in a third appeal as “not . . . harsh and excessive”]). In one of those decisions, *Drumgold*, the Third Department reduced the defendant’s aggregate sentence as “excessive” even though the sentencing court “did not abuse its discretion” (206 AD3d at 1048). The Court later acknowledged this shift, explaining that its CPL 470.15 (6) (b) jurisprudence had

“evolved” past its old “extraordinary circumstances or . . . abuse of discretion” standard (*Brenda WW.*, 222 AD3d at 1193 n 2).

Interestingly, the dissent cites *Harris* and *Kerrick* for the proposition that “the Appellate Division is not imposing an improper barrier to relief” (dissenting op at 334). But one need only read the decisions to appreciate that the Appellate Division applied a different standard to the sentencing claim raised by this defendant than it did to those raised by the defendants in *Harris*, *Drumgold*, and *Kerrick*, and that at least the defendant in *Drumgold*, if not the others, would have been entitled to no relief under the standard that the Appellate Division applied to the defendant in the instant case. The development of the Third Department’s jurisprudence thus undermines the dissent’s dismissive and regrettable assumption that our clarification of the proper standard “is unlikely to have a significant impact” (dissenting op at 335). Our legal standards, and the words we use when articulating them, are of greater importance than my colleagues in the dissent suggest.

The Third Department is to be commended for having led the charge in asserting the Appellate Division’s discretionary sentencing powers in *Miles* and deserves great credit for its recent efforts to bring its jurisprudence back in line with the Appellate Division’s historical powers. And it is not the only Department to have repudiated the “extraordinary circumstances or abuse of discretion” standard. The Fourth Department has been emphatic that this standard is incorrect (*see e.g. Acosta*, 208 AD3d at 1582; *People v Curtis*, 196 AD3d 1145, 1146 [4th Dept 2021], *lv denied* 37 NY3d 1026 [2021]), and the other Departments are in accord. In *People v Mitchell* (168 AD3d 531 [1st Dept 2019]), the First Department reduced a defendant’s multiyear prison sentence on a conviction that resulted from his attempt to buy necessities using a counterfeit \$20 bill, without regard to the sentencing court’s discretion (*see id.* at 531-532) or the dissent’s protest that the mitigating circumstances relied on by the majority were “‘all too ordinary’” (*id.* at 536; *see People v Walsh*, 101 AD3d 614, 614 [1st Dept 2012] [reducing a sentence based on the defendant’s age, poor health, and expressions of remorse, over the protest of a dissenting Justice concerning the absence of extraordinary circumstances]). The Second Department has likewise cited ordinary mitigating circumstances—mental illness and lack of prior criminal record—in reducing consecutive, maximum

prison sentences as “excessive” (*People v Demilio*, 227 AD3d 1098, 1101 [2d Dept 2024]). The upshot is that the unanimous rule in all four Departments of the Appellate Division is that “a criminal defendant need not show extraordinary circumstances or an abuse of discretion by the sentencing court in order to obtain a sentence reduction under CPL 470.15 (6) (b)” (*Acosta*, 208 AD3d at 1582). In other words, if defendant’s appeal were being decided today in any Department of the Appellate Division, he would not be required to demonstrate either extraordinary circumstances or an abuse of discretion. Instead, the standard would be whether his sentence was “unduly harsh or severe,” a standard that may be met by a showing of ordinary mitigating circumstances (CPL 470.15 [6] [b]).

In an apparent effort to defend an “extraordinary circumstances” standard, the dissent asserts that “the sentence imposed by the court of first instance will normally be appropriate” and that excessive sentences are an “extraordinary” occurrence (dissenting op at 334-335). The dissent fails to offer adequate empirical support for those assertions, and, even if they are true, the dissent’s reasoning is beside the point. Even assuming excessive sentencing is extraordinary in occurrence, excessive sentencing may, as the Appellate Division has long recognized, occur under ordinary circumstances (*see e.g. Mitchell*, 168 AD3d at 531-532, 536; *Miles*, 173 App Div at 182).

There is no basis in the Constitution, the statute, or the historic powers of the intermediate appellate courts to endorse an erroneous standard that has been roundly rejected by the Appellate Division. Doing so would result only in harmful consequences by potentially insulating excessive sentences from modification, for society derives no legitimate benefit from imprisoning a person for longer than is warranted. Here, because the Appellate Division applied an improper standard in rejecting defendant’s challenge to the severity of his sentence, the matter should be remitted to that Court for a determination whether defendant’s sentence is unduly harsh or severe (*see* CPL 470.15 [6] [b]; *see People v Ba*, 39 NY3d 1130, 1130 [2023]).

Accordingly, the order insofar as appealed from should be reversed and case remitted to the Appellate Division for further proceedings in accordance with this opinion.

CANNATARO, J. (dissenting). Every day, criminal courts in this state go about the quintessentially judicial function of

imposing sentences, fashioned to the particular circumstances of the offense and the individual offender, informed by the sentencing court's unequaled vantage point to the myriad factors that go into crafting an appropriately individualized sentence. We trust our trial judges to exercise their discretion to impose an appropriate sentence from a range of legally permissible options established by the legislature. In those extraordinary circumstances where the sentence imposed by the court of original instance, while indisputably legal, nonetheless appears unjust, we trust the intermediate appellate courts to exercise their own inherent and exclusive authority to reduce the sentence in the interest of justice. In my view, there is nothing in the Appellate Division decision below that manifests either a failure by that Court to conduct its interest of justice review or a misapplication of the "unduly harsh or severe" standard (CPL 470.15 [6] [b]). Moreover, today's holding directly contradicts our prior decision in *People v Delgado* (80 NY2d 780 [1992]) and I am therefore compelled to conclude that, despite protestations to the contrary, the majority has made the unwarranted decision to overturn that precedent. For these reasons, I dissent.

Defendant was convicted, upon a jury verdict, of promoting prison contraband in the first degree. He was sentenced, as a second felony offender, to a term of 3½ to 7 years' imprisonment, to be served consecutive to an existing undischarged sentence. The Appellate Division affirmed, acknowledging that County Court imposed the maximum legal sentence, but opining that the court "relied on the appropriate factors" and that "no extraordinary circumstances or abuse of discretion warrant[ed] a reduction of the sentence in the interest of justice" (200 AD3d 1219, 1222 [3d Dept 2021] [internal quotation marks and citation omitted]).

As the majority recognizes, even before the legislature codified the intermediate appellate courts' interest of justice jurisdiction, the Appellate Division exercised that authority as an inherent power to rectify an unjust sentence (*see e.g. People v Miles*, 173 App Div 179, 183-184 [3d Dept 1916]). The State Constitution, providing that the Appellate Division "shall have all the jurisdiction possessed by them on the effective date of this article and such additional jurisdiction as may be prescribed by law" with respect to appeals from final judgments (NY Const, art VI, § 4 [k]), preserved the Appellate Division's "unique interest-of-justice jurisdiction" and insulated

that power from reduction or limitation by the legislature (*see People v Lopez*, 6 NY3d 248, 255 [2006]; *People v Pollenz*, 67 NY2d 264, 267-268 [1986]). We have also characterized the legislative history of the constitutional amendment as “indicat[ing] that section 4 (k) was intended to render inapplicable the general rule that the right to appellate review is purely statutory” (*Pollenz*, 67 NY2d at 269). To that end, the majority’s myopic focus on whether the Court below used the precise words employed by the legislature when it codified the Appellate Division’s inherent interest of justice power “without substantive change” is confusing, as “the ultimate decision with respect to the appropriate sentence in a particular case, even a ‘negotiated sentence’ presumably acceptable to the parties, rests” as it always has “with the judiciary” (*People v Thompson*, 60 NY2d 513, 520, 518 [1983]).*

Although this Court does not have interest of justice jurisdiction, where the issue presented is whether the intermediate appellate court has failed to exercise its interest of justice jurisdiction, or has done so applying an incorrect legal standard, a question of law is presented for our review (*see e.g. Delgado*, 80 NY2d at 783). In exploring the limits of our power to interfere with the Appellate Division’s exercise of its exclusive interest of justice jurisdiction, we took no issue in *Delgado* with the intermediate appellate court’s use of “abuse of discretion” language similar to that employed by the Appellate Division here. Indeed, we rejected the argument that the Appellate Division misapprehended its interest of justice jurisdiction when it referenced the absence of an abuse of discretion on the part of the sentencing court in its review of the defendants’ excessive sentence claims (*see* 80 NY2d at 783). We made clear that the Appellate Division was not *required* to defer to the sentencing court, but nonetheless “read the Appellate Division’s statements that the sentencing courts did not abuse their

* Any suggestion by the majority that CPL 470.15 was intended to set or clarify a standard of review for the intermediate appellate courts’ review of excessive sentence claims is unsupported by the legislative history. Indeed, the CPL merely codified the intermediate appellate courts’ “judicially recognized” ability to reverse or modify a judgment in the interest of justice (Staff Comment of Temp St Commn on Rev of Penal Law & Crim Code, 1967 Proposed NY CPL 240.30 at 326). Moreover, subdivisions (4), (5) and (6) of what ultimately became CPL 470.15 were deemed “mainly illustrative in nature *and perhaps unnecessary*” but were nonetheless included “to make crystal clear the important distinction between a reversal ‘on the law,’ a reversal ‘on the facts,’ and a reversal in the interest of justice” (*id.* [emphasis added]).

discretion to mean that the Appellate Division did not find the sentences unduly harsh or severe under the circumstances” (80 NY2d at 783).

The majority fails to explain how this case is distinguishable from the trio of cases we affirmed in *Delgado*, particularly *People v Diaz* (177 AD2d 406, 407 [1st Dept 1991]), where the Court employed virtually identical language. There, despite the First Department’s reference to the absence of an abuse of discretion, we nonetheless construed that language to indicate that the Court properly conducted its review under the unduly harsh or severe standard. There is no meaningful distinction between the language we found permissible in *Delgado* and the parallel construction employed by the Third Department here. The language in the opinion below stating that County Court relied upon the appropriate factors further indicates that the Appellate Division was, in fact, conducting its discretionary review of the propriety of the sentence. In context, its reference to considerations such as the absence of extraordinary circumstances or an abuse of discretion merely manifests its conclusion that the sentence was not unduly harsh or severe.

This is not a instance where the Appellate Division employed language that might be susceptible to a reading that it misapprehended its own review power in the sense that it did not believe it had the authority to substitute its discretion for that of the sentencing judge, absent an abuse of that discretion (*compare People v Lancaster*, 143 AD3d 1046, 1054 [3d Dept 2016] [(“a) sentence which falls within the statutory parameters will not be disturbed on appeal absent evidence of a clear abuse of discretion or the existence of extraordinary circumstances” (internal quotation marks and citations omitted))]. Moreover, the fact that the same Court has regularly reduced sentences as “harsh and excessive” in other cases without reference to a threshold abuse of discretion or extraordinary circumstances test further supports the conclusion that the Appellate Division is not imposing an improper barrier to relief on that basis (*see e.g. People v Harris*, 206 AD3d 1454, 1461 [3d Dept 2022]; *People v Kerrick*, 206 AD3d 1268, 1271 [3d Dept 2022]; *People v Smith*, 309 AD2d 1081, 1083 [3d Dept 2003]; *People v Mendoza*, 300 AD2d 824, 825 [3d Dept 2002]).

Given that the Appellate Division evaluates the severity of sentences that have been imposed within a lawful range established by the legislature for the offense at issue, the sentence imposed by the court of first instance will normally be

appropriate. From time to time, however, there may be something extraordinary about the circumstances of the crime or the individual defendant that makes the legal sentence imposed by the court of first instance unjust. In that event, the Appellate Division exercises its interest of justice jurisdiction to impose a “legally authorized lesser sentence” (CPL 470.20 [6]). Whether the Appellate Division invokes this authority because it characterizes the sentence as unduly harsh or severe, excessive, or the result of an abuse of discretion, or extraordinary circumstances, or something else, the essence of the review remains the same. Rather than signaling a misapplication of the appropriate standard, these terms are merely another way of demonstrating that the Appellate Division is grappling with whether a sentence should be reduced in the interest of justice (*see e.g. People v Paulino*, 233 AD3d 6 [1st Dept 2024]). In other words, unlike the majority, I do not view the Appellate Division’s reference to the absence of an abuse of discretion or extraordinary circumstances as invoking a separate standard, but as a different way of expressing the same standard—a standard that is well-established and does not require any clarification or correction from this Court. In sum, I would defer, as we did in *Delgado*, to the Appellate Division’s exercise of its own inherent power.

Finally, we have previously recognized that the Appellate Division “rarely” exercises its interest of justice jurisdiction to reduce sentences (*Thompson*, 60 NY2d at 520). This observation lends support to the inference that it is indeed an “extraordinary” circumstance where a reduction in sentence will be warranted. To the extent the majority views excessive sentencing as something other than extraordinary, it is not clear whether the majority’s position is that the sentencing scheme established by the legislature is fundamentally unfair or whether the majority views the judges of this state as being routinely heavy-handed in imposing punishment. If it is the former, the remedy lies with the legislature. If it is the latter, requiring the Appellate Division to review sentences for whether they are “unduly harsh or severe” through talismanic recitation of statutory language, instead of using their own entirely reasonable iteration of the same standard, is unlikely to have a significant impact.

Chief Judge WILSON and Judges RIVERA and HALLIGAN concur. Judge CANNATARO dissents and votes to affirm in an opinion, in which Judges GARCIA and SINGAS concur.

Order insofar as appealed from reversed and case remitted to the Appellate Division, Third Department, for further proceedings in accordance with the opinion herein.

[262 NE3d 259, 235 NYS3d 258]

BRITTANY N. JONES, Also Known as BRITTANY N. FINCH, Appellant, v CATTARAUGUS-LITTLE VALLEY CENTRAL SCHOOL DISTRICT, Respondent.

Argued November 19, 2024; decided February 20, 2025

PROCEDURAL SUMMARY

PROCEEDING, pursuant to NY Constitution, article VI, § 3 (b) (9) and Rules of the Court of Appeals (22 NYCRR) § 500.27, to review a question certified to the New York State Court of Appeals by the United States Court of Appeals for the Second Circuit. The following question was certified by the United States Court of Appeals and accepted by the New York State Court of Appeals: “Whether the six-month waiting period for claims filed pursuant to the claim-revival provision of New York’s Child Victims Act, [CPLR 214-g], establishes a statute of limitations, a condition precedent to bringing suit, or some other affirmative defense.”

HEADNOTE

Limitation of Actions — Revival of Time-Barred Claims — Child Victims Act — Six-Month Waiting Period for Filing Claims

The six-month waiting period under the Child Victims Act (CVA) for filing a previously time-barred tort claim based on sex offenses against a child (*see* CPLR 214-g) is neither a statute of limitations nor a condition precedent. A statute of limitations is a law that bars claims after a specified period, rather than premature claims. Nor does a waiting period like this one further the policies underlying a statute of limitations. Statutes of limitations reflect the legislative judgment that individuals should be protected from stale claims and thus are designed to prevent plaintiffs from sleeping on their legal rights to the detriment of a defendant. The statute read as a whole establishes that the six-month waiting period was intended, at least in part, to give the courts ample time to prepare for the inevitable avalanche of cases and not to provide a benefit to defendants. Moreover, the CVA, like other claim revival statutes, temporarily revived certain previously time-barred claims; it did not act to create any new causes of action. Thus, the CVA cannot be interpreted such that timely commencement of the action is so incorporated with the remedy given as to make it an integral part of it.

RESEARCH REFERENCES

By the Publisher’s Editorial Staff

AM JUR 2d Limitation of Actions § 40.
CARMODY-WAIT 2d Limitation of Actions §§ 13:9, 13:370.
DOBBS LAW OF TORTS (2d ed) §§ 241, 247.
McKINNEY’S, CPLR 214–g.

NY JUR 2d Limitations and Laches §§ 9–11, 127, 132.

NEW YORK LAW OF TORTS §§ 19:38.10, 19:51.

SIEGEL, NY PRAC (6th ed) §§ 38, 54.

ANNOTATION REFERENCE

See ALR Index under Abatement, Survival, and Revival of Actions; Limitation of Actions; Premature Acts or Matters; Time and Date; Torts.

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Query: reviv! & “Child Victims Act” or 214-g & “waiting period” or (condition /3 precedent)

POINTS OF COUNSEL

Appellate Law Group LLC, Radnor, Pennsylvania (*Virginia Hinrichs McMichael*, admitted pro hac vice, of counsel), for appellant. I. The New York Child Victims Act’s six-month waiting period did not establish a statute of limitations. (*Lozano v Montoya Alvarez*, 572 US 1; *Heimeshoff v Hartford Life & Accident Ins. Co.*, 571 US 99; *Stuart v American Cyanamid Co.*, 158 F3d 622; *Standard Oil Co. v Nippon Shokubai Kagaku Kogyo Co., Ltd.*, 754 F2d 345.) II. The waiting period is not a condition precedent. (*Tanges v Heidelberg N. Am.*, 93 NY2d 48; *Singer v Lilly & Co.*, 153 AD2d 210.) III. The waiting period is a claim-processing rule. (*Henderson v Shinseki*, 562 US 428; *United States v Kwai Fun Wong*, 575 US 402; *Stewart v Iancu*, 912 F3d 693; *Forester v Chertoff*, 500 F3d 920; *Hamer v Neighborhood Housing Servs. of Chicago*, 583 US 17.)

Hodgson Russ LLP, Buffalo (*Patrick J. Hines* and *Alexandria N. Rowen* of counsel), for respondent. I. The period for commencing actions defined in CPLR 214-g is a singular provision setting forth a statute of limitations. (*Standard Oil Co. v Nippon Shokubai Kagaku Kogyo Co., Ltd.*, 754 F2d 345; *McCarthy v Volkswagen of Am.*, 55 NY2d 543; *Matter of Jenkins v Astorino*, 155 AD3d 733; *Tauber v Village of Spring Val.*, 56 AD3d 660; *Contact Chiropractic, P.C. v New York City Tr. Auth.*, 31 NY3d 187.) II. The nonjurisdictional nature of a “claims processing rule” is irrelevant to the certified question. (*Gonzalez v Thaler*, 565 US 134; *Henderson v Shinseki*, 562 US 428; *Nutraceutical Corp. v Lambert*, 586 US 188; *Manrique v United States*, 581 US 116; *Eberhart v United States*, 546 US 12.) III.

If CPLR 214-g is not a statute of limitations, it must be a condition precedent to suit. (*Singer v Lilly & Co.*, 153 AD2d 210; *Gatti Paper Stock Corp. v Erie R.R. Co.*, 247 App Div 45.)

Hath Rose Schirripa & Cheverie LLP, New York City (*Hillary M. Nappi* of counsel), and *Marci A. Hamilton, CHILD USA*, Philadelphia, Pennsylvania (*Jessica Schidlow* and *Carina Nixon* of counsel), for CHILD USA, amicus curiae. I. The Court should uphold the New York Child Victims Act's purpose to provide justice to child sex abuse victims and rule the revival provision did not establish an affirmative defense. II. A ruling that the revival provision establishes an affirmative defense would subvert the compelling public policy interests served by the New York Child Victims Act.

OPINION OF THE COURT

TROUTMAN, J.

In 2019, the legislature passed the Child Victims Act (CVA), which provided that previously time-barred tort claims based on sex offenses against children could be brought within a specified time (*see* CPLR 214-g). As amended, the CVA provided that such a claim “is hereby revived, and action thereon may be commenced not earlier than six months after, and not later than two years and six months after” February 14, 2019—i.e., “the effective date of this section” (*id.*). In other words, actions on these claims could be commenced “not earlier than” August 14, 2019, and “not later than” August 14, 2021.

In response to a question certified by the United States Court of Appeals for the Second Circuit, we answer that the six-month waiting period preceding August 14, 2019, the date on which previously barred claims could be brought, is neither a statute of limitations nor a condition precedent.

On April 26, 2019, plaintiff commenced a negligence action in state court against defendant, alleging that a teacher employed in one of defendant's schools engaged in unlawful sexual conduct with her in and around 2009 and 2010, when she was a student under age 17, and that, in 2013, as a result of that conduct, the teacher pleaded guilty to rape in the third degree. Defendant removed the case to federal court based on plaintiff's out-of-state residence and filed an answer wherein defendant asserted, among others, an affirmative defense based on the statute of limitations. Over the next 28 months, defendant filed numerous motions and conducted discovery, demanding medical authorizations from plaintiff and participating in the depositions of at least five witnesses.

On September 3, 2021, defendant moved for summary judgment dismissing the complaint on statute of limitations grounds. Defendant argued, for the first time, that the complaint must be dismissed because plaintiff commenced her action before CPLR 214-g's period for filing claims began. Significantly, defendant filed its motion less than three weeks after the statutory period for filing claims ended, meaning that plaintiff would be unable to recommence a timely action if defendant's motion succeeded. The District Court granted the motion on the ground that plaintiff "commenced this action before the date the New York legislature authorized for the commencement of suits under the CVA" (2022 WL 2124608, *9, 2022 US Dist LEXIS 105107, *24-25 [WD NY, June 13, 2022, 19-CV-707S]). The District Court noted that plaintiff "concedes that she commenced her action prematurely, but argues that this Court should find that [defendant] is equitably estopped from asserting this defense" (2022 WL 2124608, *3, 2022 US Dist LEXIS 105107, *7) and ultimately rejected that defense (*see* 2022 WL 2124608, *9, 2022 US Dist LEXIS 105107, *25).

The Second Circuit stated that "[c]entral to the district court's decision was its assumption that Jones's premature filing created a valid statute-of-limitations defense for the school district" and opined that resolution of the appeal "turns on whether section 214-g's waiting period is a statute of limitations, since . . . a defendant may litigate a statute-of-limitations defense even as late as trial so long as the defense was timely asserted under Federal Rule of Civil Procedure 8(c)" (96 F4th 539, 541-542 [2d Cir 2024]). The court concluded that the "plain meaning" of "hereby revived" is that "such revival occurred immediately, and without qualification," on the CVA's effective date (*id.* at 542), and that, "having revived otherwise time-barred claims, the CVA imposed both a start date and an end date for commencing actions thereon, resulting in a two-year filing window" (*id.* at 543). The court also concluded that the end date was a statute of limitations but was "[l]ess clear" whether the start date was also a statute of limitations (*id.* at 543-544). The court thus certified the following question to us: "Whether the six-month waiting period for claims filed pursuant to the claim-revival provision of New York's Child Victims Act, [CPLR 214-g], establishes a statute of limitations, a condition precedent to bringing suit, or some other affirmative defense" (*id.* at 546).

In deciding that claims were revived "immediately" on the CVA's effective date (*id.* at 542), the Second Circuit decided an

open question of New York law concerning the proper statutory interpretation of the CVA. We accept, without endorsing, the Second Circuit’s interpretation for purposes of our answer to the question certified. We conclude that the six-month waiting period is neither a statute of limitations nor a condition precedent.

Under defendant’s interpretation, the six-month waiting period constitutes a statute of limitations such that actions commenced before the two-year window began—but having already been revived upon the statute’s effective date pursuant to the Second Circuit’s interpretation of the CVA—are time-barred. But a statute of limitations is “[a] law that bars claims *after* a specified period” (Black’s Law Dictionary [12th ed 2024], statute of limitations [emphasis added]). In other words, a statute of limitations generally bars claims asserted too late, whereas defendant’s assertion here is that plaintiff’s claim was brought too early. Unsurprisingly, defendant can point us to no precedent in which a statute of limitations barred premature claims.

Nor does a waiting period like this one further the policies underlying a statute of limitations. Statutes of limitations “reflect the legislative judgment that individuals should be protected from stale claims” (*McCarthy v Volkswagen of Am.*, 55 NY2d 543, 548 [1982]; see *Lozano v Montoya Alvarez*, 572 US 1, 14 [2014]) and thus “are designed to prevent plaintiffs from sleeping on their legal rights to the detriment of a defendant” (*Tanges v Heidelberg N. Am.*, 93 NY2d 48, 55 [1999]). The CVA’s six-month waiting period does not “embody a ‘policy of repose’” (*Lozano*, 572 US at 14), nor is it “‘designed to protect defendants’” (*id.*). By imposing a waiting period, the legislature “sought to enable the court system to meet the special issues that the ensuing litigation was likely to generate” (Vincent C. Alexander, Prac Commentaries, McKinney’s Cons Laws of NY, CPLR 214-g). Indeed, other sections of the CVA required training for judges concerning the sexual abuse of minors to begin three months after the statute’s effective date (see Judiciary Law § 219-c; L 2019, ch 11, §§ 9, 12) and the promulgation of rules in anticipation of the commencement of actions on revived claims to take effect three months after the CVA’s effective date (see Judiciary Law § 219-d; L 2019, ch 11, §§ 10, 12). The statute read as a whole thus establishes that the six-month waiting period was intended, at least in part, to give the courts ample time to prepare for the inevitable avalanche of cases and not to provide a benefit to defendants.

Although defendant contends that the waiting period must be a condition precedent if it is not a statute of limitations, we conclude that it is neither. Where “a statute creates a cause of action and attaches a time limit to its commencement,” timely commencement generally is a substantive part of the cause of action and a condition precedent to suit (*Romano v Romano*, 19 NY2d 444, 447 [1967]; see *Yonkers Contr. Co. v Port Auth. Trans-Hudson Corp.*, 93 NY2d 375, 378-379 [1999]). In contrast, the CVA, like other claim revival statutes, “temporarily revived certain previously time[-]barred claims—it did not act to create any new causes of action” (*Anderson v Eli Lilly & Co.*, 79 NY2d 797, 799 [1991]). We thus cannot interpret the CVA such that timely commencement of the action “is so incorporated with the remedy given as to make it an integral part of it” (*Hill v Rensselaer County*, 119 NY 344, 347 [1890]; *Clark v Abbott Labs.*, 155 AD2d 35, 40-41 [4th Dept 1990]).

Our response to the certified question is sufficient to resolve the appeal pending before the Second Circuit, notwithstanding that court’s reference in the certified question to “some other affirmative defense” (96 F4th at 546). The Second Circuit explained that it will affirm the District Court’s judgment if the six-month waiting period is a statute of limitations or a condition precedent but will, consistent with federal procedural law, treat defendant’s timeliness basis for dismissal as forfeited “if the waiting period does not create a statute of limitations or condition precedent” (*id.*). The answer to whether the waiting period is “some other affirmative defense” therefore would not be “determinative of the cause” as is required for us to answer a certified question (NY Const, art VI, § 3 [b] [9]; see 22 NYCRR 500.27; see also *Cordero v Transamerica Annuity Serv. Corp.*, 39 NY3d 399, 408-409 [2023]).

Accordingly, the certified question should be answered in accordance with this opinion.

Chief Judge WILSON and Judges RIVERA, GARCIA, SINGAS, CANNATARO and HALLIGAN concur.

Following certification of a question by the United States Court of Appeals for the Second Circuit and acceptance of the question by the Court pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.27), certified question answered in accordance with the opinion herein.

[263 NE3d 852, 236 NYS3d 595]

ALBERT BEHLER, Appellant, v KAI-SHING TAO, Respondent.

Argued January 7, 2025; decided February 13, 2025

PROCEDURAL SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered March 14, 2024. The Appellate Division, with two Justices dissenting, affirmed an order of the Supreme Court, New York County (Andrew Borrok, J.; op 2022 NY Slip Op 34708[U]), which had (1) granted defendant’s motion to dismiss the complaint, and (2) dismissed the complaint.

Behler v Kai-Shing Tao, 227 AD3d 121, affirmed.

HEADNOTE

Contracts — Construction — Oral Agreement to Invest in Limited Liability Company — Superseding Amended Limited Liability Company Agreement

In an action for breach of an oral agreement by which plaintiff agreed to invest in a Delaware-incorporated limited liability company (LLC) controlled by defendant in exchange for the opportunity to exit the investment under certain conditions, plaintiff’s breach of contract and promissory estoppel claims were dismissed on the ground that the subsequent unilaterally amended LLC agreement’s merger clause unambiguously nullified the prior oral agreement, and defendant therefore conclusively established a defense to plaintiff’s claim as a matter of law. Upon his initial investment, plaintiff became bound by the original LLC agreement, including its clause dictating how its terms could be altered. Once the agreement was altered pursuant to its terms, plaintiff became bound by the amended LLC agreement, including its merger clause. Under Delaware’s Limited Liability Company Act, a member of an LLC “is bound by the [LLC] agreement whether or not the member” signed the agreement (Del Code Ann title 6, § 18-101 [9]). Plaintiff, as a member of the LLC, was therefore bound by its operating LLC agreement (the amended LLC agreement) regardless of whether he signed it. The amended LLC agreement’s merger clause unambiguously and explicitly nullified prior “written and oral” agreements between the parties on the same subject matter, regardless of whether the two agreements were inconsistent. Moreover, under Delaware law, promissory estoppel does not apply where a fully integrated, enforceable contract governs the promise at issue. Here, the amended LLC agreement governed the promise at issue—the terms on which plaintiff was entitled to exit the LLC.

RESEARCH REFERENCES

By the Publisher’s Editorial Staff

AM JUR 2d Contracts §§ 378, 516; AM JUR 2d Estoppel and Waiver §§ 51–52, 54; AM JUR 2d Limited Liability Companies §§ 1, 4, 7.

NEW YORK CONTRACT LAW (2d ed) §§ 2:25, 4:31, 4:35, 23:33.

NY JUR 2d Business Relationships §§ 2094, 2160; NY JUR 2d Contracts § 485; NY JUR 2d Estoppel, Ratification, and Waiver §§ 51–54.

WILLISTON ON CONTRACTS (4th ed) §§ 8:4, 27:14, 33:23, 76:53.

ANNOTATION REFERENCE

See ALR Index under Contracts, Estoppel and Waiver, Limited Liability Companies, Promissory Estoppel.

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Query: “limited liability company” or LLC /s “merger clause”

POINTS OF COUNSEL

Becker, Glynn, Muffly, Chassin & Hosinski LLP, New York City (*Jesse T. Conan, Richard N. Chassin and Walter E. Swearingen* of counsel), for appellant. I. The complaint sufficiently states an enforceable oral agreement. (*Cobble Hill Nursing Home v Henry & Warren Corp.*, 74 NY2d 475; *Matter of 166 Mamaroneck Ave. Corp. v 151 E. Post Rd. Corp.*, 78 NY2d 88; *Tonkery v Martina*, 78 NY2d 893.) II. The 2012 exit guarantee agreement between Albert Behler and Kai-Shing Tao was not terminated by Kai-Shing Tao’s unilateral amendment to Digi-pac’s operating agreement in 2014. (*Stonehill Capital Mgt. LLC v Bank of the W.*, 28 NY3d 439; *Lawrence M. Kamhi, M.D., P.C. v East Coast Pain Mgt., P.C.*, 177 AD3d 726; *Matter of Pinsley v Pinsley*, 168 AD2d 863; *Jeppaul Garage Corp. v Presbyterian Hosp. in City of N.Y.*, 61 NY2d 442; *Peck v Peck*, 232 AD2d 540.) III. The complaint sufficiently states a claim of promissory estoppel. (*Castellotti v Free*, 138 AD3d 198; *Paramax Corp. v VoIP Supply, LLC*, 175 AD3d 939; *University Veterinary Specialists, LLC v Four Dimensional Digital Imaging LLC*, 68 Misc 3d 1204[A], 2020 NY Slip Op 50861[U]; *Tahari v Narkis*, 216 AD3d 557.)

Olshan Frome Wolosky LLP, New York City (*Kerrin T. Klein and Thomas J. Flemming* of counsel), for respondent. I. The Appellate Division properly held that the LLC agreement bars Albert Behler’s breach of contract claim. (*LCM Holdings GP, LLC v Imbert*, 114 AD3d 406; *Merrill by Merrill v Albany Med.*

Ctr. Hosp., 71 NY2d 990; *McConnell v Commonwealth Pictures Corp.*, 7 NY2d 465; *Summit Rest. Repairs & Sales, Inc. v New York City Dept. of Educ.*, 201 AD3d 612; *B.D. Estate Planning Corp. v Trachtenberg*, 134 AD3d 650.) II. Alternatively, the IAS court properly determined that Albert Behler failed to allege and enforceable oral agreement. (*Cobble Hill Nursing Home v Henry & Warren Corp.*, 74 NY2d 475; *Mandarin Trading Ltd. v Wildenstein*, 16 NY3d 173; *Joseph Martin, Jr., Delicatessen v Schumacher*, 52 NY2d 105; *Matter of Express Indus. & Term. Corp. v New York State Dept. of Transp.*, 93 NY2d 584; *Matter of 166 Mamaroneck Ave. Corp. v 151 E. Post Rd. Corp.*, 78 NY2d 88.) III. The Appellate Division properly affirmed the IAS court's dismissal of Albert Behler's promissory estoppel claim. (*MatlinPatterson ATA Holdings LLC v Federal Express Corp.*, 87 AD3d 836; *James v Western N.Y. Computing Sys.*, 273 AD2d 853; *Buffalo-Lake Erie Wireless Sys. Co.*, 104 AD3d 1212; *Sanyo Elec. v Pinros & Gar Corp.*, 174 AD2d 452; *Paramax Corp. v VoIP Supply, LLC*, 175 AD3d 939.)

OPINION OF THE COURT

SINGAS, J.

The issue in this case is whether a limited liability company (LLC) agreement governed by Delaware law supersedes, by operation of its merger clause, an alleged prior oral agreement between plaintiff and defendant. Because the plain language of the merger clause extinguishes the oral agreement, we affirm.

I.

As alleged in the complaint, defendant Kai-Shing Tao is the Chief Executive Officer and Chairman of the Board of Remark Holdings, Inc. (Remark), a publicly traded company. Defendant also controls Delaware-incorporated Digipac LLC (Digipac), which he uses to route funds to Remark. Plaintiff and defendant have been "close friends" for over 20 years and have "often conducted business with each other through oral agreements and representations." In 2012, defendant asked plaintiff to invest in Remark by investing in Digipac. However, plaintiff was concerned with "the inherent difficulty in liquidating shares of a limited liability company" and wanted to invest directly in Remark rather than indirectly through Digipac.

The parties thus entered into an oral agreement whereby plaintiff promised to invest \$3 million in Digipac and defend-

ant promised to provide an opportunity for plaintiff to exit the investment. As characterized by plaintiff, that exit opportunity would come in one of two ways: (1) if Remark's share price hit \$50, defendant "would cause Digipac to sell its shares of [R]emark and distribute the proceeds (based on [plaintiff's] pro rata share of Digipac) to [plaintiff]"; or (2) if the price of Remark shares never reached \$50, defendant "would provide [plaintiff] with an exit opportunity from Digipac based on the value of Digipac's Remark holdings" on the fifth anniversary of plaintiff's initial investment. Plaintiff agreed and wired an initial investment of \$1.5 million to Digipac in November 2012, becoming a member of Digipac. In October 2013, plaintiff wired the remaining \$1.5 million.

At the time of the oral agreement and investment, Digipac was governed by its original LLC agreement, which designated defendant as the "Sole Member" of Digipac, conferred upon the "Sole Member" the exclusive discretion to make distributions, and provided that the LLC agreement "may be amended only in a writing signed by the Sole Member."

In June 2014, defendant unilaterally amended the original LLC agreement in a signed writing (amended LLC agreement). The stated purpose of the amended LLC agreement was "to provide for the management of the business and the affairs of the Company, the allocation of profits and losses among the Members, distributions among the Members, the rights, obligations and interests of the Members to each other and to the Company, and certain other matters." Its provisions governed investment in Digipac, the liquidation of assets, distributions to members, and the transfer of membership interests, among other things. The amended LLC agreement included a Delaware choice-of-law clause.

As relevant here, the amended LLC agreement also contained a merger clause which states:

"This Agreement, together with the Certificate of Formation, each Subscription Agreement and all related Exhibits and Schedules, constitutes the sole and entire agreement of the parties to this Agreement with respect to the subject matter contained herein and therein, and supersedes all prior and contemporaneous understandings, agreements, representations and warranties, both written and oral, with respect to such subject matter, including the Original Agreement."

The trading price of Remark never hit \$50. On the fifth anniversary of plaintiff's initial investment, defendant did not provide plaintiff with an opportunity to exit Digipac. At the time, shares of Remark were trading around \$9.15 per share, giving plaintiff's investment in Digipac a value of approximately \$11.6 million, based on Digipac's holdings in Remark.

Plaintiff filed the instant action in Supreme Court asserting causes of action for breach of contract and promissory estoppel, and seeking an order directing defendant to purchase plaintiff's Digipac membership for \$11.6 million. Defendant moved to dismiss the complaint pursuant to CPLR 3211 (a) (1) and (7), arguing in part that the "alleged oral agreement is inconsistent with Digipac's LLC agreement, which contains a merger clause."

Supreme Court granted defendant's motion to dismiss the complaint (*see* 2022 NY Slip Op 34708[U] [Sup Ct, NY County 2022]). The court reasoned that the amended LLC agreement, to which plaintiff is bound as a member of Digipac, "does not provide for an automatic exit option" and otherwise superseded any prior agreement (*id.* at *1). Additionally, the court held that "the terms of this alleged oral agreement are unenforceable because they are indefinite" (*id.*). Lastly, the court dismissed the promissory estoppel claim, concluding that plaintiff's reliance on defendant's alleged promise was unreasonable given the "lack of definite terms as to any purported guaranteed exit strategy" (*id.* at *1-2).

The Appellate Division affirmed, with two Justices dissenting (*see* 227 AD3d 121 [1st Dept 2024]). Applying "Delaware's stringent statutory regime and case law," the Court held that plaintiff was bound by Digipac's LLC agreement and its subsequent amendment by virtue of his investment in the LLC, and was thus bound by the merger clause (*id.* at 126). The Court further concluded that the oral agreement concerned the same subject matter as the amended LLC agreement—i.e., the "liquidation and distribution of plaintiff's interest in Digipac"—and as a result, the amended LLC agreement superseded the oral agreement under the merger clause's explicit language (*id.* at 127). The Court also held that the promissory estoppel claim must be dismissed because under Delaware law, "[p]romissory estoppel does not apply" where an enforceable contract governs the promise at issue (*id.* at 129 [internal quotation marks omitted]). The Court noted that even if New York law applied, the promissory estoppel claim would be dismissed because it was duplicative of plaintiff's breach of contract claim.

The dissenting Justices would have held that the oral agreement survives the amended LLC agreement because the two agreements are “different in focus and subject matter,” as one is an agreement made between friends to induce an investment and the other is an agreement governing “the rights, obligations, and interests of Digipac’s members to each other and to Digipac” (*id.* at 134). Further, the dissent concluded that the agreements involve different parties as well, since plaintiff “has sued only [defendant], in his individual capacity” and Digipac is not party to the litigation (*id.* at 136). As a result, the dissent would have permitted the promissory estoppel claim to proceed, on the ground that plaintiff may “plead in the alternative to the extent that there is a dispute as to whether the [oral] agreement constituted a valid contract” (*id.* at 139).

Plaintiff appealed as of right (*see* CPLR 5601 [a]).

II.

A party is entitled to dismissal pursuant to CPLR 3211 (a) (1) where “documentary evidence,” such as an unambiguous contract, “conclusively establishes a defense to the asserted claims as a matter of law” (*Goldman v Metropolitan Life Ins. Co.*, 5 NY3d 561, 571 [2005]). “When deciding a motion to dismiss, the court must accept the facts as alleged in the complaint as true, accord plaintiffs the benefit of every possible favorable inference, and determine only whether the facts as alleged fit within any cognizable legal theory” (*see Farage v Associated Ins. Mgt. Corp.*, 43 NY3d 152, 158 [2024] [internal quotation marks omitted]).

Upon his initial investment, plaintiff became bound by the original LLC agreement, including its clause dictating how its terms could be altered. Once the agreement was altered pursuant to its terms, plaintiff became bound by the amended LLC agreement, including its merger clause. Pursuant to the amended LLC agreement’s choice-of-law provision, Delaware law governs its interpretation and reach (*see Ministers & Missionaries Benefit Bd. v Snow*, 26 NY3d 466, 470 [2015]). Under Delaware’s Limited Liability Company Act, which aims to “give the maximum effect to the principle of freedom of contract and to the enforceability of limited liability company agreements” (Del Code Ann title 6, § 18-1101 [b]), a member of an LLC “is bound by the limited liability company agreement whether or not the member . . . executes the limited liability company

agreement” (*id.* § 18-101 [9]; *see Seaport Vil. Ltd. v Seaport Vil. Operating Co., LLC*, 2014 WL 4782817, *2, 2014 Del Ch LEXIS 183, *4 [Sept. 24, 2014, C.A. No. 8841-VCL]). Plaintiff, as a member of Digipac, is therefore bound by its operating LLC agreement—the amended LLC agreement—regardless of whether he signed it.*

Delaware courts “construe [limited liability company] agreements as any other contract” (*In re Coinmint, LLC*, 261 A3d 867, 890 [Del Ch 2021]). If its terms are unambiguous, an LLC agreement should be interpreted according to its plain meaning (*see Fairstead Capital Mgt. LLC v Blodgett*, 288 A3d 729, 760 [Del Ch 2023]). Here, the provision of the amended LLC agreement at issue—the merger clause—unambiguously and explicitly nullifies prior “written and oral” agreements between the parties on the same subject matter (*see ESG Capital Partners II, LP v Passport Special Opportunities Master Fund, LP*, 2015 WL 9060982, *11, 2015 Del Ch LEXIS 302, *34-35 [Dec. 16, 2015, C.A. No. 11053-VCL]; *see also Scott v Land Lords, Inc.*, 616 A2d 1214 [Del 1992]), regardless of whether the two agreements are inconsistent (*see Focus Fin. Partners, LLC v Holsopple*, 241 A3d 784, 822-823 [Del Ch 2020]).

Because the oral agreement and amended LLC agreement involve the same subject matter, the amended LLC agreement superseded the oral agreement through the merger clause. The oral agreement concerns investment in Digipac, the liquidation of Digipac’s assets and distribution of the proceeds, and the transfer of a Digipac membership interest. The amended LLC agreement contains provisions which govern all of those issues, in line with its express purpose “to provide for the . . . distributions among the Members” and “the rights, obligations and interests of the Members to each other and to the Company.” For example, the amended LLC agreement states that “a Member may only Transfer all or any part of its Membership Interest upon the prior written approval of the Manager, which may be withheld or conditioned for any reason.” Plainly, this provision concerns the same subject matter as defendant’s promise to transfer plaintiff’s membership interest on the fifth anniversary of plaintiff’s initial investment.

* Plaintiff does not challenge the validity of the amended LLC agreement. Nor does plaintiff argue that in amending the original LLC agreement, defendant violated the implied covenant of good faith and fair dealing (*see Dawson v Pittco Capital Partners, L.P.*, 2012 WL 1564805, *24, 2012 Del Ch LEXIS 92, *97 [Apr. 30, 2012, C.A. No. 3148-VCN]).

Plaintiff's remaining arguments are either unpreserved or without merit. Plaintiff contends that defendant entered into the oral agreement in his personal capacity rather than his corporate capacity and as such, the merger clause does not reach the oral agreement. We reject this assertion as belied by plaintiff's own characterization of the oral agreement. As stated in the complaint, defendant "agreed that if the price of Remark were to hit \$50/share, he would *cause Digipac to sell its shares of [R]emark and distribute the proceeds*" to plaintiff (emphasis added). At another point in the complaint, plaintiff asserts that defendant "promised that if [plaintiff] agreed to make an indirect investment in Remark through Digipac, [defendant] would *allow [plaintiff] to cash out his Digipac investment*" (emphasis added). Because defendant can only cause the liquidation of Digipac's assets or allow the transfer of a membership interest as Manager of Digipac and cannot take either action in his personal capacity, defendant necessarily entered into the oral agreement in his corporate capacity (*cf. Ray v Harris*, 2008 WL 2410208, *4, 2008 Del Super LEXIS 480, *12 [Feb. 26, 2008, C.A. No. 06C-07-005 RBY]). Indeed, despite concluding that defendant entered this agreement in his personal capacity, the dissent acknowledges that plaintiff seeks, in this litigation, defendant's performance in his corporate capacity (*see* dissenting op at 355 ["plaintiff merely asks that defendant . . . give his consent to the transfer of plaintiff's interest in Digipac, which defendant is fully free to do under the amended operating agreement"]).

We similarly reject plaintiff's assertion that he is a party to the oral agreement in his personal capacity, but a party to the amended LLC agreement in his membership capacity. The consideration plaintiff received from the oral agreement was, in part, a guaranteed exit from his Digipac membership, which implicates, and in fact assumes, plaintiff's role as a Digipac member. Indeed, plaintiff admitted in his pleadings that he would not have entered into the oral agreement without this promise because he feared difficulty in exiting his investment, a concern regarding corporate structure.

To accept the notion that either plaintiff or defendant entered into this oral agreement in a capacity which somehow shields this agreement, which exclusively pertains to plaintiff's Digipac investment rights, from the reach of Digipac's operating agreement would contradict basic principles of contract interpretation and upend the goal of Delaware Code Annotated title

6, § 18-101 (9) to give clarity and certainty to members that the operating agreement governs the LLC (see Del Code Ann title 6, § 18-1101 [b]).

Plaintiff's promissory estoppel claim must similarly fall. Under Delaware law, "[p]romissory estoppel does not apply . . . where a fully integrated, enforceable contract governs the promise at issue" (*SIGA Tech., Inc. v PharmAthene, Inc.*, 67 A3d 330, 348 [Del 2013]; see *Black Horse Capital, LP v Xstelos Holdings, Inc.*, 2014 WL 5025926, *22, 2014 Del Ch LEXIS 188, *78-79 [Sept. 30, 2014, C.A. No. 8642-VCP]). Here, the amended LLC agreement governs the promise at issue—the terms on which plaintiff is entitled to exit Digipac. Even if New York law applies to plaintiff's promissory estoppel claim, the claim would have to be dismissed as "duplicative of the breach of contract claim" (see *Kim v Francis*, 184 AD3d 413, 414 [1st Dept 2020]).

III.

Though an outcome whereby one member to a contract unilaterally extinguishes his contractual obligation, even after the other party has performed, may appear "harsh," the Appellate Division correctly observed that Delaware law "unambiguously advises prospective investors in a closely held LLC (especially one considering a multimillion-dollar investment) to scrutinize the existing LLC agreement and condition their investment upon the clear written delineation thereunder of . . . their contracted-for rights in the event of any future amendments to the LLC agreement" (227 AD3d at 126). Despite his reservations about investing in an LLC, plaintiff, who admits to having some business experience, failed to take the appropriate measures to protect the terms of the oral agreement from defendant's explicit unilateral authority to amend the LLC agreement. Indeed, the amended LLC agreement contains multiple provisions that carve out special rights for a different Digipac member.

Because the amended LLC agreement's merger clause unambiguously nullifies the prior oral agreement between plaintiff and defendant, defendant has conclusively established a defense to plaintiff's claims as a matter of law.

Accordingly, the order of the Appellate Division should be affirmed, with costs.

RIVERA, J. (dissenting). In 2012, plaintiff and defendant entered into an agreement to give plaintiff an exit opportunity

from defendant's limited liability company in exchange for a \$3 million investment. Defendant thereafter took plaintiff's money, accepted him as a member of the LLC, and met with him regularly to discuss his investment. For six years, defendant did not deny that the exit opportunity existed and, when plaintiff sought its performance, defendant freely acknowledged his obligations under the agreement. Yet the majority now invokes the merger clause of an entirely different agreement to allow defendant to avoid his obligation to plaintiff. This outcome is contrary to fundamental principles of contract interpretation. I dissent.

* * *

It is axiomatic that, on a motion to dismiss pursuant to CPLR 3211, “‘we must liberally construe the pleading and “accept the facts as alleged in the complaint as true, accord plaintiffs the benefit of every possible favorable inference, and determine only whether the facts as alleged fit within any cognizable legal theory” ’” (*Audthan LLC v Nick & Duke, LLC*, 42 NY3d 292, 302 [2024], quoting *Himmelstein, McConnell, Gribben, Donoghue & Joseph, LLP v Matthew Bender & Co., Inc.*, 37 NY3d 169, 175 [2021]). Dismissal is warranted under CPLR 3211 (a) (1) only where the movant’s “documentary evidence utterly refutes plaintiff’s factual allegations, conclusively establishing a defense as a matter of law” (*Goshen v Mutual Life Ins. Co. of N.Y.*, 98 NY2d 314, 326 [2002]). A complaint will be dismissed under CPLR 3211 (a) (7) only if the movant demonstrates that the plaintiff has “fail[ed] to assert facts in support of an element of the claim, or if the factual allegations and inferences to be drawn from them do not allow for an enforceable right of recovery” (*Connaughton v Chipotle Mexican Grill, Inc.*, 29 NY3d 137, 142 [2017]). Defendant did not satisfy either standard here. Thus, defendant’s motion to dismiss should have been denied.

I agree with the majority that the issue of whether the exit opportunity agreement was superseded by Digipac’s amended operating agreement is governed by Delaware law pursuant to that agreement’s choice of law clause (see *Petróleos de Venezuela S.A. v MUFG Union Bank, N.A.*, 41 NY3d 462, 474 [2024]) and that, accordingly, it must be “construe[d] . . . as any other contract” (*In re Coinmint, LLC*, 261 A3d 867, 890 [Del Ch 2021])—namely, by looking to “‘the parties’ intentions as reflected in the four corners of the agreement,’ construing the

agreement as a whole and giving effect to all its provisions” (*Salamone v Gorman*, 106 A3d 354, 368 [Del 2014], quoting *GMG Capital Invs., LLC v Athenian Venture Partners I, L.P.*, 36 A3d 776, 779 [Del 2012]).¹ However, applying the plain language of the amended operating agreement here and accepting the well-pleaded allegations of the complaint as true, it is evident that, contrary to the majority’s view, the amended operating agreement did not supersede the exit opportunity agreement.

First, the agreements do not concern the same subject matter. One agreement was reached between two friends—plaintiff and defendant—to induce plaintiff to invest in defendant’s company by protecting his investment and affording him a way out following the occurrence of certain events. The other is Digipac’s governing instrument, adopted years after plaintiff’s investment, which was intended to manage Digipac’s internal affairs and direct the conduct of its business (*see* Del Code Ann title 6, § 18-101 [9]). Thus, the agreements are directed at different problems: one addresses how to induce plaintiff to invest his funds into Digipac to support defendant’s venture in Remark, and the other is directed at managing Digipac’s relationship with its members and the wider world.

Second, the agreements involve different parties, exercising different roles. The exit opportunity agreement involves just plaintiff and defendant, acting as friends and business associates. Although defendant was Digipac’s “Sole Member” and manager when he entered into the exit opportunity agreement, the facts pleaded in the complaint—which must be accepted as true on this motion to dismiss (*see Audthan LLC*, 42 NY3d at 302)—do not allege that he acted in either capacity to make the agreement. Instead, the complaint asserts that defendant negotiated with plaintiff as an individual, promised him an exit opportunity as an individual, and is liable to plaintiff for breaching that promise as an individual. Nowhere does it allege that defendant “held himself out in his corporate capacity” as manager in entering into the exit opportunity agreement (*Ray v Harris*, 2008 WL 2410208, *4, 2008 Del Super LEXIS 480, *12 [Feb. 26, 2008, C.A. No. 06C-07-005 RBY]). Nor do I

1. The same standards apply under New York law (*see Matter of AJG Parkview Corp. v Calabrese*, 187 AD3d 1175, 1178 [2d Dept 2020]; *Maven Tech., LLC v Vasile*, 147 AD3d 1377, 1378 [4th Dept 2017]; *Maldonado v Di-Bre*, 140 AD3d 1501, 1506 [3d Dept 2016], *lv denied* 28 NY3d 908 [2016]; *Sullivan v Harnisch*, 96 AD3d 667, 667 [1st Dept 2012]).

agree with the majority's wholly unsupported suggestion that, merely because a promise implicates the performance of an individual's corporate duties, it must necessarily be a promise made in that individual's corporate capacity.²

I also disagree with the majority's conclusion that plaintiff must have entered into the exit opportunity agreement in his corporate capacity. The parties do not dispute—and cannot dispute—that plaintiff was an individual with no relationship to Digipac when he entered into the exit opportunity agreement. Indeed, the agreement was intended, at least in part, to bring plaintiff into Digipac as a member. Plaintiff's subjective concerns about Digipac's "corporate structure" (majority op at 350) do not change his status as a stranger to Digipac.

Thus, the exit opportunity agreement involves plaintiff and defendant as individuals. In contrast, plaintiff and defendant are implicated in the amended operating agreement solely in their respective roles as member and manager of Digipac. Further, the amended operating agreement does not involve just plaintiff and defendant; rather, it involves Digipac itself and its entire body of members. Indeed, no one disputes that plaintiff could not hold Digipac liable for performance of any aspect of the exit opportunity agreement. Accordingly, the agreements were reached by different parties in different capacities.

Given the foregoing, as the Appellate Division dissent concluded (*see* 227 AD3d 121, 134 [1st Dept 2024, Gesmer, J., dissenting]), the exit opportunity agreement is not an agreement "of the parties" to the amended operating agreement "with respect to the subject matter contained . . . therein." Nothing else in the amended operating agreement mentions—let alone purports to supersede—the exit opportunity agreement. That should be sufficient to survive dismissal at this early procedural stage (*see Audthan LLC*, 42 NY3d at 302; *Roni LLC v Arfa*, 18 NY3d 846, 848 [2011]), and the majority does not offer any authority establishing otherwise.

2. Notably, *Ray*—an unreported and scarcely cited case—is "not necessarily stare [decisis]" (*Aprahamian v HBO & Co.*, 531 A2d 1204, 1207 [Del Ch 1987] [*italics omitted*]). Further, although the majority points to a separate portion of the exit opportunity agreement that would require defendant to liquidate Digipac's holdings in Remark and distribute the proceeds pro rata to plaintiff if Remark's share price reached \$50 per share, it concedes that Remark's share price never reached \$50 per share (*see* majority op at 347). Consequently, that provision is not pertinent here.

Defendant's efforts to contrive a conflict between the two agreements similarly fall short. First, inasmuch as the amended operating agreement provides that "no Member shall have any rights or preferences in addition to or different from those possessed by any other Member," that provision is limited to members' "Voting Rights." Similarly, the amended operating agreement's statement that members shall "look solely to the assets of [Digipac] for the return of [their] investment[s]" relates only to Digipac's winding up and dissolution, which is not at issue here. The amended operating agreement's allocation of "sole discretion" to defendant as manager to make distributions to Digipac's members is of no moment, as plaintiff does not seek payment from Digipac; instead, he demands only that plaintiff honor a personal commitment to buy out his interest in Digipac by a set date. The amended operating agreement's provision that defendant "shall not be liable to [Digipac] or any Member for any claims, costs, expenses, damages or losses arising out of or in connection with the performance of his duties as the Manager . . . other than those directly attributable to [his] willful misconduct" likewise does not apply to defendant's personal promise here. Finally, although the amended operating agreement provides that a "Member may only Transfer all or any part of its Membership Interest upon the prior written approval of" defendant as manager, and that his approval could be "withheld or conditioned for any reason," plaintiff is not attempting to divest himself of his interest without defendant's consent. Instead, plaintiff merely asks that defendant, as a corollary to his promise to furnish plaintiff an exit opportunity from Digipac, give his consent to the transfer of plaintiff's interest in Digipac, which defendant is fully free to do under the amended operating agreement.

For the above reasons, and because defendant disputes the bona fides of the exit opportunity agreement, I would conclude that plaintiff has stated a claim in the alternative for promissory estoppel under Delaware law (*see Chrysler Corp. [Del.] v Chaplake Holdings, Ltd.*, 822 A2d 1024, 1031 [Del 2003]) and—assuming such a claim exists (*see Matter of Hennel*, 29 NY3d 487, 494 n 3 [2017])—under New York law (*see Tahari v Nar-kis*, 216 AD3d 557, 559 [1st Dept 2023]).

In sum, this dispute concerns a personal agreement between two business partners and friends. Because one of those friends did not live up to his promise, the other now seeks to enforce it against him alone. That effort simply has nothing to do with

Digipac's relationship with its members or the "clarity and certainty" (majority op at 350-351) that they should expect in dealing with Digipac. Rather, the majority disrupts the certainty of our well-established motion practice standards (see *Audthan LLC*, 42 NY3d at 302) by recasting the allegations of the complaint to refashion the parties' promise into a corporate commitment. At the very least, plaintiff's contentions raise ambiguities in the exit opportunity agreement that cannot be resolved on a motion to dismiss (see *Terrell v Kiromic Biopharma, Inc.*, 338 A3d 1272, 1278 [Del 2025]; *Sunline Commercial Carriers, Inc. v CITGO Petroleum Corp.*, 206 A3d 836, 846 [Del 2019]).³ The majority ignores these ambiguities and cuts this case short at the outset, leaving defendant with \$3 million of plaintiff's money and plaintiff without recourse. Because Delaware law and this State's liberal CPLR 3211 standard require otherwise, I would reverse the Appellate Division order and remit for further proceedings below.

Judges GARCIA, CANNATARO and HALLIGAN concur. Judge RIVERA dissents in an opinion, in which Chief Judge WILSON and Judge TROUTMAN concur.

Order affirmed, with costs.

3. Contrary to defendant's assertions, the exit opportunity agreement is reasonably certain in each of its material terms, including its price term (see *Cobble Hill Nursing Home v Henry & Warren Corp.*, 74 NY2d 475, 482 [1989]).

[263 NE3d 871, 236 NYS3d 614]

In the Matter of NYP HOLDINGS, INC., et al., Respondents, v
NEW YORK CITY POLICE DEPARTMENT et al., Respondents,
and POLICE BENEVOLENT ASSOCIATION OF THE CITY OF NEW
YORK, INC., Intervenor-Appellant.

Argued January 9, 2025; decided February 20, 2025

PROCEDURAL SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered October 12, 2023. The Appellate Division order, insofar as appealed from, affirmed so much of a judgment (denominated order) of the Supreme Court, New York County (Arlene P. Bluth, J.; op 77 Misc 3d 1211[A], 2022 NY Slip Op 51191[U] [2022]), entered in a proceeding pursuant to CPLR article 78, as had granted the petition to compel respondents New York City Police Department and Dermot F. Shea to disclose substantiated and unsubstantiated disciplinary records of the police officers identified in Freedom of Information Law requests.

Matter of NYP Holdings, Inc. v New York City Police Dept., 220 AD3d 487, affirmed.

HEADNOTE

Records — Freedom of Information Law — Repeal of Statutory Exemption for Police Disciplinary Records — Retroactive Application

Law enforcement disciplinary records created while Civil Rights Law § 50-a, which exempted such records from disclosure under the Freedom of Information Law (FOIL), was in effect may be disclosed in response to FOIL requests submitted after the exemption was repealed, as the Legislature intended for the statutory repeal to have retroactive effect. There is no indication that the repeal was intended to affect the usual manner in which FOIL operates. FOIL requires agencies to “make available for public inspection and copying all records” (Public Officers Law § 87 [2]), and it defines “records” with reference to whether an agency possesses information, but without reference to the date the information was created. Had the Legislature intended to deviate from FOIL’s presumption that information kept or held by an agency is disclosable by exempting records created prior to the repeal, or to mandate that an agency responding to a FOIL request ascertain and apply the law that governed when each responsive record was created, then it would have said as much. The objective of the repeal legislation was to help the public regain trust that law enforcement officers and agencies may be held accountable for misconduct. Contrary to FOIL’s goals, section 50-a prevented access to both the records of the disciplinary proceedings themselves and the recommendations or outcomes of those proceedings. The

legislative purpose could not be squared with the assertion that the Legislature intended to leave all pre-repeal police disciplinary records categorically exempt from FOIL disclosure.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Exemptions § 18; AM JUR 2d Freedom of Information Acts §§ 71, 128, 224, 246; AM JUR 2d Statutes § 227.

CARMODY-WAIT 2d Disclosure § 42:157; CARMODY-WAIT 2d Proceeding Against a Body or Officer §§ 145:587, 145:599.

McKINNEY'S, Civil Rights Law § 50-a; Public Officers Law § 87 (2).

NY JUR 2d Disclosure § 139; NY JUR 2d Records and Recording §§ 21, 29, 39, 41; NY JUR 2d Statutes §§ 89, 94, 98, 226, 231, 235.

ANNOTATION REFERENCES

Constitutionality, construction, and effect of statute or regulation relating specifically to divulgence of information acquired by public officers or employees. 165 ALR 1302.

Validity, construction, and application of statutory provisions relating to public access to police records. 82 ALR3d 19.

What constitutes personal matters exempt from disclosure by invasion of privacy exemption under state freedom of information act. 26 ALR4th 666.

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POINTS OF COUNSEL

Golenbock Eiseman Assor Bell & Peskoe LLP, New York City (*Matthew C. Daly* of counsel), and *Frederick W. Vasselmann, Office of the General Counsel of the Police Benevolent Association of the City of New York, Inc.*, New York City (*Dave Morris* of counsel), for appellant. The decision should be reversed because police officers have continuing privacy rights over records that predate the repeal of Civil Rights Law § 50-a. (*Matter of Regina Metro. Co., LLC v New York State Div. of Hous. & Com-*

munity Renewal, 35 NY3d 332; *Majewski v Broadalbin-Perth Cent. School Dist.*, 91 NY2d 577; *Landgraf v USI Film Products*, 511 US 244; *O’Keeffe v Dugan*, 185 App Div 53; *Southbridge Finishing Co. v Golding*, 2 AD2d 430.)

Davis Wright Tremaine LLP, New York City (*Jeremy A. Chase* and *Lindsey B. Cherner* of counsel), for NYP Holdings, Inc. and another, respondents. The Court should affirm the decision of the Appellate Division and require production of all non-exempt disciplinary records in the New York City Police Department’s possession regardless of date created. (*Matter of Gould v New York City Police Dept.*, 89 NY2d 267; *Matter of Acevedo v New York State Dept. of Motor Vehs.*, 29 NY3d 202; *Nelson v HSBC Bank USA*, 87 AD3d 995; *Matter of Gleason [Michael Vee, Ltd.]*, 96 NY2d 117; *Matter of Puig v City of Middletown*, 71 Misc 3d 1098.)

Holland & Knight LLP, New York City (*Christine Walz* of counsel), and *Reporters Committee for Freedom of the Press*, Washington, D.C. (*Bruce Brown*, *Katie Townsend* and *Mara Gassmann* of counsel), for Reporters Committee for Freedom of the Press and others, amici curiae. I. The New York Legislature intended for the repeal of Civil Rights Law § 50-a to give the press and public access to police complaint records, regardless of when those records were created. (*New York Lawyers for the Pub. Interest v New York City Police Dept.*, 64 Misc 3d 671; *Matter of Fink v Lefkowitz*, 47 NY2d 567; *Matter of Newsday, LLC v Nassau County Police Dept.*, 222 AD3d 85; *Matter of New York Civ. Liberties Union v City of Rochester*, 210 AD3d 1400; *Matter of Gannett Co., Inc. v Town of Greenburgh Police Dept.*, 229 AD3d 789.) II. Access to police complaint records, including pre-June 12, 2020 records, ensures the press can do its job to keep the public informed on the issues that precipitated repeal of Civil Rights Law § 50-a. (*Sheppard v Maxwell*, 384 US 333.)

The Innocence Project, New York City (*Matthew A. Wasserman* of counsel), for The Innocence Project, amicus curiae. I. Police misconduct is one of the leading causes of wrongful convictions. (*People v Oneill*, 141 AD3d 606; *People v Battle*, 116 AD3d 782.) II. Police transparency can help prevent and uncover wrongful convictions. (*People v Santos*, 306 AD2d 197, 1 NY3d 548; *People v Hargrove*, 162 AD3d 25; *People v Rensing*, 14 NY2d 210; *Brady v Maryland*, 373 US 83; *Collins v City of New York*, 923 F Supp 2d 462.)

NAACP Legal Defense and Educational Fund, Inc., New York City (Kimberly Saltz and Catherine Logue of counsel) and Washington, D.C. (*Jin Hee Lee* of counsel), for NAACP Legal Defense and Educational Fund, Inc., amicus curiae. I. New York's Freedom of Information Law should be interpreted broadly in favor of disclosure. (*Matter of Gould v New York City Police Dept.*, 89 NY2d 267; *Matter of Capital Newspapers Div. of Hearst Corp. v Burns*, 67 NY2d 562; *Kuzmich v 50 Murray St. Acquisition LLC*, 34 NY3d 84.) II. Public disclosure of past records serves the public interest. (*Floyd v City of New York*, 959 F Supp 2d 540.)

OPINION OF THE COURT

HALLIGAN, J.

The Freedom of Information Law (Public Officers Law art 6) (FOIL) “imposes a broad duty on government to make its records available to the public” in order “[t]o promote open government and public accountability” (*Matter of Gould v New York City Police Dept.*, 89 NY2d 267, 274 [1996]). “All government records are . . . presumptively open for public inspection and copying unless they fall within one of the enumerated exemptions of Public Officers Law § 87 (2)” (*id.* at 274-275).

Subdivision (2) of section 87 bars disclosure of “records or portions thereof that . . . are specifically exempted from disclosure by state or federal statute” (Public Officers Law § 87 [2] [a]). In 1976, the Legislature enacted former Civil Rights Law § 50-a, which supplied one such exemption:

“All personnel records used to evaluate performance toward continued employment or promotion [of certain law enforcement officers] . . . shall be considered confidential and not subject to inspection or review without the express written consent of [the affected law enforcement officer] except as may be mandated by lawful court order” (former Civil Rights Law § 50-a [1]).

In June 2020, the Legislature concluded that this exemption “undermined” the purpose of FOIL (Senate Introducer's Mem in Support, Bill Jacket, L 2020, ch 96 at 9) and enacted legislation to “immediately” repeal it (L 2020, ch 96, § 5; *see id.* § 1). The Legislature simultaneously amended FOIL to provide for public access to “law enforcement disciplinary records,” which are defined as “any record created in furtherance of a law enforcement disciplinary proceeding” (*id.* § 2, codified at Public

Officers Law § 86 [6]), and added various personal privacy protections for law enforcement officers (*see id.* § 4, codified at Public Officers Law § 89 [2-b]-[2-c]; *see also id.* § 3, codified at Public Officers Law § 87 [4-a]-[4-b]).

Following the repeal of section 50-a, NYP Holdings, Inc. and New York Post reporter Craig McCarthy (collectively, the Post) submitted 144 FOIL requests to the New York City Police Department (the NYPD) for all disciplinary records in its possession related to specific police officers. The NYPD effectively denied the requests for the records relating to all but one officer, and after exhausting its administrative remedies, the Post commenced this CPLR article 78 proceeding to compel disclosure of the requested records. The NYPD moved to dismiss the Post's petition, claiming the requests were so voluminous that compliance with its FOIL obligations would be too burdensome. The Police Benevolent Association of the City of New York, Inc. (the PBA), a union representing members of the NYPD, intervened to assert a separate defense: that records created prior to the repeal of section 50-a were not subject to disclosure under FOIL because the statutory repeal does not apply "retroactively" to records created while the statutory exemption was in effect.

Supreme Court granted the Post's petition (77 Misc 3d 1211[A], 2022 NY Slip Op 51191[U] [Sup Ct, NY County 2022]). The court denied the NYPD's motion to dismiss because the NYPD did not sufficiently justify its claim that compliance with its FOIL obligations would be too burdensome. It refused to consider the PBA's argument that release of the records would constitute retroactive application of section 50-a and that the Legislature did not intend such retroactivity, holding that an intervening party could not present arguments the NYPD did not assert. Appeals from the NYPD and the PBA followed, but the NYPD eventually withdrew its appeal.

The Appellate Division affirmed. It determined that the PBA's retroactivity argument was properly presented, explaining that "section 50-a, prior to its repeal, created protected rights (for police officers), which should not be deemed automatically waived by the inaction of" the NYPD (220 AD3d 487, 488 [1st Dept 2023] [internal quotation marks, citations, and alteration omitted]). The Court concluded, based on statutory text, purpose, and legislative history, that the repeal of section 50-a "applies retroactively to records created prior to" the repeal's effective date (*id.* at 489). "[T]he repeal went into

effect immediately,” the Court noted, “and, by its plain reading and intent, applies to records then existing and not simply to records created at a time subsequent to the enactment of the legislation” (*id.* [internal quotation marks omitted]). The Court further determined that the repeal was “remedial legislation” and thus “should be given retroactive effect in order to effectuate its beneficial purpose” of increasing public trust in, and accountability of, law enforcement agencies (*id.* [internal quotation marks omitted]). Finally, the Court explained that adopting the PBA’s position “would run counter to the clear legislative purpose of providing public access to records that may contain information about actual or alleged police misconduct” (*id.*).

We granted the PBA leave to appeal and stayed the First Department’s order pending resolution of this appeal (41 NY3d 988 [2024]). The sole question before us is whether law enforcement disciplinary records created while Civil Rights Law § 50-a was in effect may be disclosed in response to FOIL requests submitted after the statutory exemption was repealed. Since we granted leave in this case, the Second and Fourth Departments, like the First, have concluded that records created prior to the repeal are disclosable, but for a different reason. Both Courts determined that requests submitted after the repeal seek a straightforward application of FOIL as it existed at the time of the requests, not a retroactive application of the statutory repeal, and that the Legislature did not otherwise intend to exempt law enforcement disciplinary records from disclosure (*see Matter of Newsday, LLC v Nassau County Police Dept.*, 222 AD3d 85, 92-93 [2d Dept 2023]; *Matter of Abbatoy v Baxter*, 227 AD3d 1376, 1377 [4th Dept 2024]).

Even assuming, *arguendo*, that the Post’s FOIL requests entail retroactive application of the repeal legislation, the legislation contains the requisite “clear expression of the legislative purpose to justify a retroactive application” (*Jacobus v Colgate*, 217 NY 235, 240 [1916]). “In determining whether a statute should be given retroactive effect, we have recognized two axioms of statutory interpretation” (*Matter of Gleason [Michael Vee, Ltd.]*, 96 NY2d 117, 122 [2001]). First, “retroactive operation is not favored by courts and statutes will not be given such construction unless the language expressly or by necessary implication requires it” (*Majewski v Broadalbin-Perth Cent. School Dist.*, 91 NY2d 577, 584 [1998]). Second, “remedial legislation should be given retroactive effect

in order to effectuate its beneficial purpose” (*Matter of Gleason*, 96 NY2d at 122). In addition to these principles of statutory construction, we have identified “[o]ther factors” relevant to “the retroactivity analysis,” including “whether the Legislature has made a specific pronouncement about retroactive effect or conveyed a sense of urgency; whether the statute was designed to rewrite an unintended judicial interpretation; and whether the enactment itself reaffirms a legislative judgment about what the law in question should be” (*id.*).

Applying these rules of interpretation, we conclude that the Legislature intended for the statutory repeal to have retroactive effect. For starters, there is no indication that the repeal was intended to affect the usual manner in which FOIL operates. FOIL requires agencies to “make available for public inspection and copying all records” (Public Officers Law § 87 [2]), and it defines “records” with reference to whether an agency possesses information, but without reference to the date the information was created (*id.* § 86 [4] [defining “record” as “any information kept” or “held . . . in any physical form whatsoever”]). The amendments impose various redaction requirements and personal privacy protections for law enforcement disciplinary records specifically, yet they do not, for example, single out records created before a certain date for special treatment, or direct that disclosure of any record is tethered to the date it was created. Had the Legislature intended to deviate from FOIL’s presumption that information kept or held by an agency is disclosable by exempting records created prior to the repeal, or to mandate that an agency responding to a FOIL request ascertain and apply the law that governed when each responsive record was created, then surely it would have said as much.

The drafting history and purpose of the repeal legislation confirm this understanding. As the Assembly sponsor explained, the legislation was enacted in June 2020 in rapid response to “continuing and widespread demonstrations and demands for reform following the [May 25, 2020] killing of George Floyd” by a Minnesota police officer with an extensive prior disciplinary record (Letter from Assembly Member O’Donnell, Bill Jacket, L 2020, ch 96 at 5). Against this backdrop, the Senate sponsor’s memorandum accompanying the bill emphasized its objective: to “help the public regain trust that law enforcement officers and agencies may be held accountable for misconduct” (Senate Introducer’s Mem in Support, Bill Jacket, L 2020, ch 96 at 9).

The sponsor memorandum further explained that, contrary to FOIL's goals, section 50-a, as "interpreted by" the courts, "prevent[ed] access to both the records of the disciplinary proceedings themselves and the recommendations or outcomes of those proceedings" (*id.*). That legislative purpose cannot be squared with the PBA's assertion that the Legislature intended to leave all pre-repeal police disciplinary records categorically exempt from FOIL disclosure. These indicia of legislative intent, along with the remedial nature of the repeal legislation, satisfy us that it was intended to have retroactive application.

Accordingly, the order of the Appellate Division insofar as appealed from should be affirmed, with costs.

Chief Judge WILSON and Judges RIVERA, GARCIA, SINGAS, CANNATARO and TROUTMAN concur.

Order insofar as appealed from affirmed, with costs.

[264 NE3d 169, 237 NYS3d 118]

In the Matter of MARYANN McCABE et al., Appellants, v 511
WEST 232ND OWNERS CORP., Respondent.

Argued October 17, 2024; decided December 17, 2024

PROCEDURAL SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered March 23, 2023. The Appellate Division affirmed a judgment (denominated decision and order) of the Supreme Court, Bronx County (Mary Ann Brigantti, J.; op 2022 NY Slip Op 34900[U] [2022]), entered in a proceeding pursuant to CPLR article 78, which had (1) denied the petition to annul the determination of respondent cooperative board which declined to transfer the shares and proprietary lease for a cooperative unit to petitioner, and (2) dismissed the proceeding.

Matter of McCabe v 511 W. 232nd Owners Corp., 214 AD3d 564, affirmed.

HEADNOTE

Civil Rights — New York City Human Rights Law — Discrimination Based on Marital Status — Long Time Romantic Partnership

Respondent board of a New York City cooperative building did not discriminate against petitioner, who had lived with her long time romantic partner in his cooperative unit which he willed to petitioner upon his death, on the basis of her marital status in violation of the New York City Human Rights Law (Administrative Code of City of NY § 8-107 [5] [NYCHRL]) by declining to treat her as decedent's spouse for purposes of the cooperative's lease provision authorizing an automatic transfer to a shareholder's "spouse." A plain reading of the term is that marital status reflects the legal condition of being single, married, legally separated, divorced, or widowed. Marital status turns on whether an individual has participated or failed to participate in a marriage, and is distinct from the identity or situation of the individual's spouse. Petitioner herself owned a unit in the same building. She was not denied an automatic transfer of decedent's unit merely because she was unmarried, but because of her relationship to a particular person—specifically, because she was not married to decedent. The frequency with which the City Council had revised the NYCHRL reflected its consistent, careful consideration of the statute's scope over the years. Given that history, had the Council intended to require that marital status be extended to cover discrimination based on one's relationship to another, it would have amended the statute to say exactly that. The task of identifying appropriate metrics for assessing which relationships are sufficiently equivalent to a marriage to warrant protection, determining the scope of protection and any appropriate exemptions, and weighing the consequences of such a change, is best left to the City Council.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Civil Rights § 400; AM JUR 2d Condominiums and Cooperative Apartments §§ 74, 78–79; AM JUR 2d Constitutional Law § 890.

CARMODY-WAIT 2d Settlement of Small Estates Without Court Administration § 156:10; CARMODY-WAIT 2d Ascertaining and Liquidating Assets §§ 158:71–158:72.

DOLAN, RASCH'S NEW YORK LANDLORD AND TENANT, INCLUDING SUMMARY PROCEEDINGS (5th ed) §§ 4:25–4:26, 9:79.

NY JUR 2d Civil Rights §§ 145–146, 148, 162; NY JUR 2d Condominiums and Cooperative Apartments §§ 152, 156–157.

ANNOTATION REFERENCES

Transfer of, and voting rights in, stock of co-operative apartment association. 99 ALR2d 236.

Validity, construction, and application of statutes, or of condominium association's bylaws or regulations, restricting sale, transfer, or lease of condominium. 17 ALR4th 1247.

What constitutes illegal discrimination under state statutory prohibition against discrimination in housing accommodations on account of marital status. 33 ALR4th 964.

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POINTS OF COUNSEL

Vernon & Ginsburg, LLP, New York City (*Yoram Silagy* of counsel), for appellants. The rulings of the courts below should be reversed and the cooperative should be required to issue shares and a proprietary lease for the unit in the name of the appellant Maryann McCabe. (*Morse v Fidessa Corp.*, 165 AD3d 61; *Albunio v City of New York*, 16 NY3d 472; *Matter of Cahill v Rosa*, 89 NY2d 14; *Levin v Yeshiva Univ.*, 96 NY2d 484; *Estate of Del Terzo v 33 Fifth Ave. Owners Corp.*, 136 AD3d 486.)

Gallet Dreyer & Berkey, LLP, New York City (*Michelle P. Quinn* of counsel), for respondent. I. Appellant is not a spouse. (*Matter of Manhattan Pizza Hut v New York State Human*

Rights Appeal Bd., 51 NY2d 506; *Zunce v Rodriguez*, 22 Misc 3d 265; *Mahoney-Buntzman v Buntzman*, 12 NY3d 415; *Naghavi v New York Life Ins. Co.*, 260 AD2d 252; *Simpson v Berkley Owner's Corp.*, 213 AD2d 207.) II. There was no discrimination by the cooperative. (*Louis & Anne Abrons Found. v 29 E. 64th St. Corp.*, 297 AD2d 258; *W.O.R.C. Realty Corp. v Carr*, 177 Misc 2d 148; *Matter of Levandusky v One Fifth Ave. Apt. Corp.*, 75 NY2d 530; *40 W. 67th St. v Pullman*, 296 AD2d 120; *Estate of Finkelstein*, 186 AD2d 90.) III. The cooperative's decision is protected by the business judgment rule. (*Estate of Del Terzo v 33 Fifth Ave. Owners Corp.*, 136 AD3d 486.)

OPINION OF THE COURT

HALLIGAN, J.

Petitioner Maryann McCabe resided for 13 years in a New York City cooperative building with her “long time romantic partner,” David Burrows. Upon Burrows’ death, he willed his real property, including his unit in the building, to petitioner, who then sought to acquire his lease and shares under a lease provision authorizing an automatic transfer to a shareholder’s “spouse.” The cooperative board declined to treat petitioner as a spouse but offered to consider whether she could retain the lease and shares under a clause covering a shareholder’s family member. Petitioner argues that the board’s failure to treat her as a spouse for purposes of the automatic transfer provision violated the prohibition against discrimination on the basis of marital status under the New York City Human Rights Law (NYCHRL) (*see* Administrative Code of City of NY § 8-107 [5]). We disagree.

We have interpreted the term “marital status” as used in the state and city human rights laws in several prior decisions (*see Matter of Manhattan Pizza Hut v New York State Human Rights Appeal Bd.*, 51 NY2d 506, 511-512 [1980] [State Human Rights Law]; *Hudson View Props. v Weiss*, 59 NY2d 733, 735 [1983] [NYCHRL and State Human Rights Law]; *Levin v Yeshiva Univ.*, 96 NY2d 484, 490-491 [2001] [same]). Amendments to the NYCHRL that postdate those decisions direct that the statute “shall be construed liberally for the accomplishment of the uniquely broad and remedial purposes thereof, regardless of whether federal or New York state civil and human rights laws, including those laws with provisions worded comparably to provisions of this title, have been so construed”

(Administrative Code of City of NY § 8-130 [a]). Approaching this question of statutory interpretation with that instruction in mind, we conclude that petitioner's proposed reading of "marital status" does not comport with the ordinary meaning of the phrase, the structure of the NYCHRL, or the legislative history of the provision. We therefore affirm.

I.

This matter arises from a dispute over ownership of the lease and shares for an apartment in a New York City cooperative, 511 West 232nd Owners Corp. The lease and shares were held in the name of David Burrows, who resided in the apartment with petitioner from 2006 until his death in 2019. Petitioner owns a separate unit in the building. In 2018, Burrows and petitioner asked the cooperative's board to add petitioner as a shareholder and tenant of his unit. In response, the board requested a marriage license, domestic partnership certificate, or other proof that petitioner was Burrows' spouse, citing paragraph 16 (a) (vi) of the lease. That provision states:

"Except in the case of an assignment, transfer or bequest to the Lessee's spouse of the shares and this Lease . . . consent to such assignment shall have been authorized by resolution [of] the Directors, or given in writing by a majority of the Directors; or, if the Directors [do not consent within 30 days], then by Lessees owning of record at least two-thirds (2/3) of the then issued shares"

The two were neither married nor in a registered domestic partnership, and petitioner was never added as a shareholder of his unit. Burrows bequeathed his apartment to petitioner when he passed away in June 2019.

On February 4, 2020, the board served petitioner with notice to cure and vacate the unit on the ground that the shareholder of record was deceased and petitioner was occupying the apartment without the cooperative's consent. The board invited petitioner to provide evidence demonstrating that she was Burrows' family member and to complete a request for assignment of Burrows' shares. Petitioner responded by asserting that she was entitled to assignment of the shares under paragraph 16 (b) of the lease, which states:

"If the Lessee shall die, consent shall not be unreasonably withheld or delayed to an assignment

of the lease and shares to a financially responsible member of the Lessee's family (other than the Lessee's spouse as to whom no consent is required)."

Petitioner explained that she and Burrows had lived together as partners in the apartment since 2006, and asked the board to inform her of any specific documents they needed as proof of their long-term relationship. The board responded by again noting that under paragraph 16 (b) of the lease, petitioner was required to show she was Burrows' spouse or a financially responsible family member. When petitioner did not supply a marriage license, registration of a domestic partnership, or evidence showing that she was a family member, the board invited her to apply for a transfer of shares in the same manner as a prospective purchaser. Petitioner submitted the required application materials, but the board ultimately rejected her application.

Petitioner brought a CPLR article 78 proceeding challenging the board's refusal to transfer the lease and shares as violative of the NYCHRL's prohibition on marital status discrimination (*see* Administrative Code § 8-107 [5]), as well as the New York State Human Rights Law (*see* Executive Law § 296 [5]) and the Federal Fair Housing Act and Civil Rights Act of 1964. Petitioner alleged that she was the "equivalent of a spouse," and that the board had discriminated against her because of her marital status by refusing to treat her as a spouse. The board responded that petitioner was not a spouse and thus not entitled to an automatic transfer of shares, and that although petitioner did not claim to be a family member, even if she were so considered, she had not established that she was financially responsible as required by the lease.

Supreme Court denied the petition and dismissed the proceeding (2022 NY Slip Op 34900[U] [Sup Ct, Bronx County 2022]). The court reasoned that the automatic transfer request had been denied not because petitioner was unmarried, but because she was unmarried to a particular person (Burrows), and that did not constitute marital status discrimination under *Levin* (96 NY2d 484) and *Hudson View* (59 NY2d 733). Supreme Court further held that petitioner had not established she was a family member, and that even if she had, the board had sufficient grounds for rejecting her application.

Before the Appellate Division, petitioner sought reversal only on the ground that she was the equivalent of Burrows' spouse. The Appellate Division affirmed on the same grounds

set forth by Supreme Court (214 AD3d 564 [1st Dept 2023]). This Court granted leave to appeal (40 NY3d 904 [2023]), and we now affirm.

II.

The question before us is whether the board discriminated against petitioner on the basis of her marital status in violation of the NYCHRL by refusing to treat her as a “spouse” for purposes of the cooperative’s lease. We begin by considering our precedent interpreting the term “marital status.”

We first considered the meaning of “marital status” under the State Human Rights Law (NYSHRL) in *Manhattan Pizza Hut*, a case challenging an anti-nepotism rule (*see* 51 NY2d 506 [analyzing former Executive Law § 296]). We explained that “the plain and ordinary meaning of ‘marital status’ is the social condition enjoyed by an individual by reason of his or her having participated or failed to participate in a marriage” (*id.* at 511). Thus, “the statute in effect says that employers may no longer decide whether to hire, fire, or promote someone because he or she is single, married, divorced, separated or the like” (*id.* at 512). Because marital status “would not be expected to include an identification of one’s . . . spouse and certainly not the spouse’s occupation,” we concluded that firing an employee for being married to her supervisor was not marital status discrimination (*id.* at 511-512, 514).

In subsequent decisions, we interpreted marital status identically under both the state and local human rights laws, without considering whether the statutes might differ in scope (*see Hudson View*, 59 NY2d at 735; *Levin*, 96 NY2d at 490-491). In *Hudson View*, we held that limiting occupancy to a tenant and members of her immediate family was not marital status discrimination under either the state or city statutes (59 NY2d at 735). The basis for the landlord’s action there, we explained, was not that the tenant was unmarried, but that the tenant admittedly had a non-family member living with her (*id.*). In *Levin*, we held that restricting cohabitational housing eligibility to students, their spouses, and their dependent children was not marital status discrimination under the state or city laws, reasoning that “a distinction must be made between . . . marital status as such, and the existence of [a] disqualifying relationship—or absence thereof—with another person” (96 NY2d at 490-491).

Following these decisions, the City Council amended the NYCHRL in 2005 and again in 2016 to clarify that the law

serves “uniquely broad and remedial purposes” (Local Law No. 85 [2005] of City of NY § 7; Local Law No. 35 [2016] of City of NY § 2). Both amendments expressly instruct that the city law should not be interpreted in lockstep with comparably worded state or federal law protections, and the legislative history of the 2016 amendment underscores this point (Rep of Governmental Affairs Div, Comm on Civ Rights at 10-11, Mar. 8, 2016, Local Law No. 35 [2016] of City of NY, citing *Williams v New York City Hous. Auth.*, 61 AD3d 62, 67-68 [1st Dept 2009]). At the same time, “any such broad construction must be *reasonable* and grounded in the language of the local law” (*Doe v Bloomberg L.P.*, 36 NY3d 450, 462 [2021]).

“Even if the NYCHRL was intended to be more protective than the state and federal counterparts, and even if its legislative history contemplates that the Law be independently construed with the aim of making it the most progressive in the nation, the NYCHRL still must be interpreted based on its plain meaning” (*Makinen v City of New York*, 30 NY3d 81, 88 [2017] [citations and internal quotation marks omitted]).

Given that we have not interpreted the term marital status as used in the NYCHRL since passage of the Local Civil Rights Restoration Act of 2005 (Local Law No. 85) and the 2016 amendments, we now take a fresh look at its meaning.

III.

We begin with the text and structure of the statute. The NYCHRL makes it an unlawful practice, among other things, “[t]o discriminate against any . . . person or persons in the terms, conditions, or privileges of the sale, rental, or lease of any such housing accommodation or an interest therein” “[b]ecause of the actual or perceived race, creed, color, national origin, gender, age, disability, sexual orientation, uniformed service, height, weight, marital status, partnership status, or immigration or citizenship status of any person or group of persons” (Administrative Code § 8-107 [5] [a] [1]).

Petitioner’s argument hinges on the definition of the term “marital status” as used in this provision. She argues that the prohibition on discrimination based on marital status requires the board to accord her the same rights under the lease as if she were Burrows’ “spouse” because she is the “equivalent of a spouse.” In this regard, petitioner’s claim is different from a

marital status discrimination claim brought by someone denied access to housing (or, as set forth in other provisions of the NYCHRL, employment) because the individual is single, married, divorced, or widowed (see e.g. *Manhattan Pizza Hut*, 51 NY2d 506). Petitioner instead argues that the board's refusal to treat her as Burrows' spouse because she was not married to him constitutes marital status discrimination.

The NYCHRL does not define "marital status," but Black's Law Dictionary defines it as "[t]he condition of being single, married, legally separated, divorced, or widowed" (Black's Law Dictionary [12th ed 2024], marital status). Along the same lines is the general understanding: "when one is queried about one's 'marital status', the usual and complete answer would be expected to be a choice among 'married', 'single', etc." (*Manhattan Pizza Hut*, 51 NY2d at 511-512). A plain reading of the term, then, is that marital status reflects the legal condition of being single, married, legally separated, divorced, or widowed. Marital status turns on whether an individual has "participated or failed to participate in a marriage," and is distinct from "the identity or situation of the individual's spouse" (*id.*).

This reading comports with how the term was initially understood. Marital status was added to the list of protected classifications in 1973 (see Local Law No. 7 [1973] of City of NY § 3). In a statement before the City Council, the New York Attorney General explained that the provision was included to address the problem that

"many single persons in New York City have been refused housing accommodations merely because of their status as single persons Landlords have a right to insist that applicants for apartments have the necessary financial means to afford their apartments. But such decision should be based on individual consideration of each applicant's background, rather than on stereotyped characterizations based on an applicant's sex or marital status" (Statement of NY St Atty Gen before NY City Council, Oct. 3, 1972, Local Law Bill Jacket, Local Law No. 7 [1973] of City of NY at 35-36).

Those remarks indicate that "marital status" refers to whether a person is participating in a marriage, not the nature of one's relationship with another specific person.

Three other provisions of the NYCHRL reinforce this understanding. First, the 2005 amendments added "partner-

ship status” to the list of classes protected from discrimination under the NYCHRL (Local Law No. 85 [2005] of City of NY §§ 2-3). Partnership status is defined as “the status of being in a domestic partnership, as defined by subdivision a of section 3-240” (Administrative Code of City of NY § 8-102). Section 3-240 of the Code, in turn, defines “domestic partners” as “persons who have a registered domestic partnership,” including “persons who are members of a marriage that is not recognized by the state of New York, domestic partnership, or civil union, lawfully entered into in another jurisdiction” (Administrative Code of City of NY § 3-240 [a]).

The domestic partnership amendment suggests that the City Council did not understand the bar on “marital status” discrimination to cover unmarried couples at the time it passed that amendment. If it did, then presumably a couple who had registered as domestic partners would already be covered, as would an unmarried couple who had not registered as domestic partners, and there would have been no need for the amendment. But although the domestic partner registry was created in 1993 to extend “unmarried heterosexual and homosexual couples in New York City some of the rights enjoyed by married couples” (Alan Finder, *Rights of ‘Domestic Partners’ Broadened by Dinkins Order*, NY Times, Jan. 8, 1993, § A at 1, col 2; see also NY City Executive Order [Dinkins] No. 48; NY City Executive Order [Dinkins] No. 49), the Appellate Division held that the NYCHRL did not protect couples who were domestic partners (see e.g. *Funderburke v Uniondale Union Free School Dist. No. 15*, 251 AD2d 622 [2d Dept 1998]). Chief Judge Wilson offers an alternative account of this amendment, speculating that the City Council might have added domestic partnership status to protect against discrimination targeted specifically at a couple in a domestic partnership, to the exclusion of married couples or unmarried couples who have not registered as domestic partners (see Wilson, Ch. J., dissenting op at 383-385), but the legislative history of this amendment does not support this view. Rather, the point is, as Judge Rivera explains in dissent, that both the “partnership status” and “marital status” classifications “legally recognize an intimate relationship” (Rivera, J., dissenting op at 398). The City Council has, to date, confined statutory protections to legally recognized

relationships, and has given no indication they should extend further.¹

Additionally, the City Council added a provision in 2016 that prohibits discrimination based on “caregiver status” (Local Law No. 1 [2016] of City of NY §§ 1-3). This amendment defined a “covered relative” (a type of “care recipient” for purposes of the Code) as “a caregiver’s child, spouse, domestic partner, parent, sibling, grandchild or grandparent, or the child or parent of the caregiver’s spouse or domestic partner, or any other individual in a familial relationship with the caregiver as designated by the rules of the commission” (Administrative Code § 8-102). The detailed list of covered persons shows that the City Council considered a range of different relationships relevant to the scope of anti-discrimination protection and delineated them with specificity—something that it did not do for persons who were in a romantic relationship with another individual but not married or domestic partners. Along the same lines is a provision that bars discrimination because of the “actual or perceived race, creed, color, national origin, disability, age, sexual orientation, uniformed service or immigration or citizenship status of a person with whom such person has a known relationship or association” (Administrative Code of City of NY § 8-107 [20]).

Judge Rivera’s reliance on our decision in *Braschi v Stahl Assoc. Co.* (74 NY2d 201 [1989]) (see Rivera, J., dissenting op at 404), is unavailing. There, we set forth factors for determining whether someone is “family” as that term is used in the New York City rent regulation laws. We contrasted the term “family,” which we held “includes two adult lifetime partners whose relationship is long term and characterized by an emotional and financial commitment and interdependence,” with “people who have formalized their relationship by obtaining . . . a marriage certificate” (*id.* at 211). That legal formality is precisely what defines a spouse as distinct from other relationships. Petitioner might well qualify as “family” under the *Braschi* test, and she was in fact treated as such by the board.

The Chief Judge reads the text of section 8-107 (5) differently, taking the view that the statutory prohibition of “marital

1. To the extent Judge Rivera suggests a new interpretation of “partner-status” (see Rivera, J., dissenting op at 390-391), that issue is not before us.

status” discrimination includes all couples for purposes of housing discrimination, but not for discrimination in employment or public accommodations (*see* Wilson, Ch. J., dissenting op at 381-382). For starters, the distinction the Chief would draw between housing and employment discrimination is at odds with his reliance on *Funderburke*, an employment discrimination case (*id.* at 384, citing 251 AD2d at 623). More to the point, it would be quite unusual for the legislature to use the same words in the same statute, but intend for them to have different meanings. Our dissenting colleague brushes aside this bedrock assumption by pointing to the inclusion of the phrase “group of persons” in the prohibition against housing discrimination (Wilson, Ch. J., dissenting op at 381; *see also* Administrative Code § 8-107 [5] [a] [1]). But the phrase “group of persons” was part of the NYCHRL as originally enacted in 1965 (Local Law No. 97 [1965] of City of NY § 1-7.0 [2]-[3]), well before the bar on “marital status” discrimination was added in 1973 (Local Law No. 7 [1973] of City of NY). Thus, we cannot read “group of persons” as giving a different meaning to the later-enacted ban on “marital status” discrimination.²

We also disagree with the Chief’s reading for another reason. It suggests that the phrase “person or group of persons” modifies “marital status” specifically, to extend protection to unmarried, unregistered partners. But the phrase actually modifies all of the categories protected by the NYCHRL (*see* Administrative Code § 8-107 [5] [a] [1]). Neither the legislative history nor our case law offers guidance on what “group of persons” means, but it must apply equally to each of these categories since the statute does not tether the phrase to “marital status” alone.

IV.

Petitioner and Judge Rivera in dissent place great weight on section 8-130’s directive to construe the text of the NYCHRL broadly and any exemptions narrowly (*see* Rivera, J., dissenting op at 387, 391-392, 392-393, 394-395, 398-400, 403-404; *see also* Administrative Code § 8-130; *Albunio v City of New York*, 16 NY3d 472, 478 [2011] [the NYCHRL should be construed as broadly as “reasonably possible”]). We adhere to this instruc-

2. The Chief Judge’s insistence that he takes no view on the meaning of “marital status” is puzzling (*see* Wilson, Ch. J., dissenting op at 382), since that is what is at issue in this appeal.

tion, but conclude it does not compel reading the term “marital status” to cover petitioner’s claim.

Section 8-130 was amended in 2005 to mandate that the NYCHRL be construed to accomplish its “uniquely broad and remedial purposes . . . regardless of whether federal or New York State civil and human rights laws, including those laws with provisions comparably-worded to provisions of this title, have been so construed” (Local Law No. 85 [2005] of City of NY § 7). Such similarly worded provisions, the amendment instructed, should be viewed “as a floor below which the City’s Human Rights law cannot fall, rather than a ceiling above which the local law cannot rise” (*id.* § 1). As explained above, our analysis is consistent with that mandate.

In 2016, the City Council again amended section 8-130 to “provide additional guidance for the development of an independent body of jurisprudence for the [NYCHRL] that is maximally protective of civil rights in all circumstances” (Local Law No. 35 [2016] of City of NY § 1). To that end, it instructed that “[e]xceptions to and exemptions from the provisions of this title [should] be construed narrowly in order to maximize deterrence of discriminatory conduct,” and identified three cases that “have correctly understood and analyzed the requirement . . . that all provisions of the [NYCHRL] be liberally and independently construed” (*id.* §§ 1-2, citing *Albunio*, 16 NY3d 472, *Bennett v Health Mgt. Sys., Inc.*, 92 AD3d 29 [1st Dept 2011], and *Williams v New York City Hous. Auth.*, 61 AD3d 62 [1st Dept 2009]). Each of these cases considered the appropriate standard for evaluating a discrete aspect of a discrimination claim—in *Williams*, whether harassment must be severe and pervasive (61 AD3d 62); in *Bennett*, when evidence of pretext allowed a case to proceed to trial (92 AD3d 29); and in *Albunio*, whether implicit opposition to discrimination was sufficient to support a retaliation claim (16 NY3d 472). Here, by contrast, petitioner seeks to redefine an entire category of prohibited discrimination.

The legislative history of the 2005 amendments contains individual remarks by one City Council member and one non-Council testifying witness suggesting that *Levin* no longer remains good law (see *Morse v Fidessa Corp.*, 165 AD3d 61, 64-67, 70-72 [1st Dept 2018]; Minutes of Stated Council Meeting, NY City Council, Sept. 15, 2005 at 41, lines 11-16 [testimony of Annabel Palma, council member and proponent of the local law]; Minutes of Comm on Gen Welfare, NY City Council, Sept.

22, 2004 at 29, lines 3-14 [testimony of Craig Gurian, Director of the Anti-Discrimination Center of Metro NY and proponent of the proposed local law]). However, a colloquy between the Chairperson of the Committee on General Welfare and the Deputy Commissioner for the New York City Commission on Human Rights suggests that the Council intended inclusion of “partnership status” as its response to *Levin* (Minutes of Comm on Gen Welfare, NY City Council, Sept. 22, 2004 at 70, line 22, through 75, line 25).³ In any event, the comments regarding *Levin* are not sufficient for us to conclude that the City Council intended its amendment to section 8-130 to mandate a new, novel understanding of marital status discrimination, and we have previously rejected the suggestion that such discrete comments can bear the weight of legislatively overruling our precedent (see *Russell v New York Univ.*, 42 NY3d 377, 390 n 4 [2024]).⁴

Nor does our holding today address whether the 2005 and 2016 enactments would yield a different result for a plaintiff similarly situated to the plaintiffs in *Levin*. Chief Judge Kaye noted in *Levin* that each of the plaintiffs in that case “were not denied partner housing because of their relationship to any particular person[;] . . . [r]ather, they were denied partner housing merely because they were unmarried” (96 NY2d at 502 [Kaye, Ch. J., concurring in part & dissenting in part]; see also *Hunter v Debmar-Mercury LLC*, 2023 WL 5671527, *15 n 5, 2023 US Dist LEXIS 155458, *39 n 5 [SD NY, Sept. 1, 2023, No. 22 Civ. 1687 (PGC)] [“*Levin* says nothing about discrimination premised on the individual to whom someone is or is not married”]). Here, petitioner herself owned a unit in the same

3. The Committee Report on the 2005 amendment stated that the addition of “partnership status” protection was temporary “[p]ending judicial reconsideration of the proper scope of protection from discrimination based on marital status” (Rep of Comm on Gen Welfare, Aug. 17, 2005 at 2-3, Local Law No. 85 [2005] of City of NY, 2005 NY City Legis Ann 536). This instruction likely also references the mandate to consider the scope of the NYCHRL independent of comparably worded state and federal provisions; whatever its meaning, it does not expressly direct the courts to overrule *Levin*’s interpretation of the NYCHRL.

4. *Levin* allowed a disparate impact claim based on sexual orientation discrimination to proceed (96 NY2d at 496). After *Levin* was decided, New York made same-sex marriage lawful by statute in 2011 (L 2011, ch 95), and the U.S. Supreme Court held that the Fourteenth Amendment requires a State to license a marriage between two people of the same sex (*Obergefell v Hodges*, 576 US 644, 666 [2015]). Thus, the landscape has changed significantly since the specific criticisms lodged against *Levin*.

building. She was not denied an automatic transfer of Burrows' unit merely because she was unmarried, but because of her relationship to a particular person—specifically, because she was not married to Burrows.⁵

The frequency with which the City Council has revised the NYCHRL reflects its consistent, careful consideration of the statute's scope over the years. It amended what was originally a housing anti-discrimination bill first to include protections against employment discrimination and to charge the New York City Human Rights Commission with enforcement (*see* Local Law No. 97 [1965] of City of NY), and then to add a prohibition against discrimination because of sex or marital status (*see* Local Law No. 7 [1973] of City of NY). Between 2005 and 2016, the City Council amended the NYCHRL more than 20 times to add, among other changes, prohibitions on discrimination because of unemployment (*see* Local Law No. 14 [2013] of City of NY), pregnancy (*see* Local Law No. 78 [2013] of City of NY), consumer credit history (*see* Local Law No. 37 [2015] of City of NY), and caregiver status (*see* Local Law No. 1 [2016] of City of NY). Given this history, had the Council intended to require that marital status be extended to cover discrimination based on one's relationship to another, we assume it would have amended the statute to say exactly that.

In fact, the Council did consider expanding the NYCHRL in a manner that may have encompassed petitioner's claims, but it declined to do so based on concerns about the breadth of such protection. In 2003 and again in 2004, the Council's Committee on General Welfare debated an amendment that would have defined marital status as "refer[ring] both to the marital status of a person in isolation, and to the marital status of a person in relation to another person" (Proposed Legislation to Administrative Code, NY City Council, Comm on Gen Welfare, Intro No. 439 [Apr. 30, 2003]; Proposed Legislation to Administrative Code, NY City Council, Comm on Gen Welfare, Intro No. 22 [Sept. 22, 2004]). The Commissioner of the NYC Commission on Human Rights opposed the adoption of this language, warning that it would "have the unintended conse-

5. Thus, contrary to the dissent's suggestion, even if we "'change one thing'" (Rivera, J., dissenting op at 402-403, quoting *Bostock v Clayton County*, 590 US 644, 666 [2020]) about petitioner—from unmarried to married—the outcome would not change: respondent would still have denied petitioner's application for automatic transfer unless she were married to Burrows, specifically.

quence of protecting individuals who are not involved in the type of relationships that the . . . City Council is seeking to protect” (Minutes of Comm on General Welfare, NY City Council, Sept. 22, 2004 at 60, line 3, through 62, line 16). In the face of objections to expanding coverage in this manner (Minutes of Comm on Gen Welfare, NY City Council, Oct. 16, 2003 at 22, line 12, through 23, line 5; Minutes of Comm on Gen Welfare, NY City Council, Sept. 22, 2004 at 60, line 3, through 62, line 16), the effort was abandoned.

Nothing in *Bostock* requires a different result (*see* Rivera, J., dissenting op at 400-403, citing *Bostock v Clayton County*, 590 US 644, 666 [2020]). *Bostock* explains that “[w]hen the express terms of a statute give us one answer and extratextual considerations suggest another, it’s no contest” (*id.* at 653). Our focus on the common understanding of the term “marital status” and other provisions included in the statute that shed light on its meaning is not *extratextual*. Just the opposite, it is grounded in the text. As for our consideration of the City Council’s decision not to expand marital status protection, we agree that it may be difficult to determine why a legislative body declines to take an action, but “[w]hen the Legislature, with presumed knowledge of the judicial construction of a statute, [forgoes] specific invitations and requests to amend its provisions to effect a different result, we have construed that to be some manifestation of legislative approbation of the judicial interpretation” (*see Desrosiers v Perry Ellis Menswear, LLC*, 30 NY3d 488, 497 [2017] [citation and internal quotation marks omitted]).

The City Council has broadened the scope of the NYCHRL on numerous occasions, and it could amend the statute to protect persons in petitioner’s situation. But the task of identifying appropriate metrics for assessing which relationships are sufficiently equivalent to a marriage to warrant protection, determining the scope of protection and any appropriate exemptions, and weighing the consequences of such a change—a project that neither the petitioner nor the dissenters undertake—is best left to the City Council. The City Council can bring its substantial legislative expertise to bear on these questions if it chooses to do so (*see Russell*, 42 NY3d at 392 [“Whether to make the far-reaching change . . . (to interpretation of the NYCHRL) is a question for the City Council, not this Court”]).

For the above reasons, petitioner’s claims of discrimination under the New York State Human Rights Law (Executive Law

§ 296 [5]) and the Federal Fair Housing Act and Civil Rights Act of 1964 also fail. To the extent the dissent argues that the similar text of the state law to the NYCHRL requires similar interpretation (*see* Rivera, J., dissenting op at 391-392), that contention is not developed before us. Petitioner's claim of sex discrimination under Civil Rights Law § 19-a is unpreserved.

V.

We defer to the cooperative board's rejection of petitioner's application and find that even under the heightened reasonableness analysis it applied to her as a family member, consent was reasonably withheld based on her financial representations to the board (*see Matter of Levandusky v One Fifth Ave. Apt. Corp.*, 75 NY2d 530, 538-539 [1990]; *Matter of Kotler v 979 Corp.*, 191 AD3d 473, 474 [1st Dept 2021]).

Accordingly, the order of the Appellate Division should be affirmed, with costs.

Chief Judge WILSON (dissenting). I dissent and write separately because I believe we need not reexamine the definition of "marital status" to resolve this case. The Administrative Code of the City of New York's housing provisions have very different text from the Code's provisions concerning other forms of discrimination. The housing provisions prohibit discrimination against not only an individual, but also "a group of persons," like a couple.¹ Even adopting the narrowest view of "marital status," housing discrimination against a couple for being married, unmarried, separated or divorced is prohibited.

The proprietary lease at issue in this case requires tenants to obtain the approval of the cooperative's Board of Directors for any transfer except "an assignment, transfer or bequest to the Lessee's spouse." Because Mr. Burrows and Ms. McCabe never married or obtained a registered civil partnership, the Board refused to extend this provision to them. I would hold that Ms. McCabe and Mr. Burrows were discriminated against as a couple on the basis of their marital status as unmarried.²

1. Throughout this opinion, I use "couple" as a shorthand. In doing so, I do not intend to preclude the application of the New York City Human Rights Law's (NYCHRL's) housing provisions to larger groups of persons.

2. The majority writes that its holding does not address "whether the 2005 and 2016 enactments would yield a different result for a plaintiff similarly situated to the plaintiffs in *Levin*," who were "denied partner housing . . . merely because they were unmarried" (majority op at 377, quoting

(n. cont'd)

That is plain from the words of the statute. But even if it were necessary to examine the legislative history, it fully supports the proposition that the City Council intended to prohibit the differential treatment of married and unmarried couples.

I.

Section 8-107 (5) (a) (1) of the NYCHRL makes it unlawful to discriminate in the provision of housing accommodations “[b]ecause of the actual or perceived . . . marital status . . . of any person or group of persons.” Section 8-107 (5) (a) (1) (a), (b) and (c) delineates the conduct that is prohibited under the Code. Each clause refers explicitly to conduct against a person or persons, in the plural (“[a] To refuse to sell, rent, lease, approve the sale, rental, or lease or otherwise deny to or withhold from any such person or group of persons such a housing accommodation or an interest therein; [b] To discriminate against any such person or persons in the terms, conditions, or privileges of the sale, rental, or lease of any such housing accommodation or an interest therein or in the furnishing of facilities or services in connection therewith; or [c] To represent to such person or persons that any housing accommodation or an interest therein is not available for inspection, sale, rental, or lease when in fact it is available to such person”). The Code’s employment and public accommodations provisions, in contrast, apply only to a “person,” in the singular.³

Levin v Yeshiva Univ., 96 NY2d 484, 502 [2001, Kaye, Ch. J., concurring in part & dissenting in part]). Although Ms. McCabe brought this claim in her individual capacity and as the executor of Mr. Burrows’s estate, her arguments to this Court relied exclusively on her status as an individual, not as executor. She therefore did not argue that the Board withheld an interest in the apartment (the ability to transfer it to a life partner without Board approval) from Mr. Burrows because he was unmarried (*see* Administrative Code of City of NY § 8-107 [5] [a] [1] [prohibiting any “person having the right to . . . approve the sale . . . of a housing accommodation . . . or an interest therein, . . . (b)ecause of the . . . marital status . . . of any person or group of persons . . . to . . . withhold from any such person or group of persons . . . a housing accommodation or an interest therein”]). That argument mirrors the one advanced by Chief Judge Kaye in *Levin*.

3. For example, section 8-107 (1) (a) establishes that
 “[i]t shall be an unlawful discriminatory practice . . . (a) For an employer or an employee or agent thereof, because of the actual or perceived . . . marital status . . . of any *person*: . . . (2) To refuse to hire or employ or to bar or to discharge from employment *such person*; or (3) To discriminate against *such person* in compensation or in terms, conditions or privileges of employment” (emphasis added).

(n. cont’d)

We have long recognized that legislators do not “deliberately place a phrase in the statute which was intended to serve no purpose” and that “each word must be read and given a distinct and consistent meaning” (*Matter of Rodriguez v Perales*, 86 NY2d 361, 366 [1995], quoting *Matter of Smathers*, 309 NY 487, 495 [1956]). The text of section 8-107 (5) (a) (1) prohibits discrimination in housing against (1) a person, or (2) a group of persons. A couple of persons in a relationship are “persons” or “a group of persons.” The plain language of the housing provisions prohibits discrimination against a couple.

Specifically, the Code prohibits discrimination against a couple on the basis of marital status. The majority defines marital status as “the legal condition of being single, married, legally separated, divorced, or widowed” (majority op at 372). Because resolving this case does not require us to define the scope of marital status, I neither adopt nor reject the majority’s definition. I simply apply it to the people protected by the NYCHRL’s housing provisions under the plain language of the statute. Under the majority’s definition, a landlord (or cooperative corporation) could not reject a tenant (or buyer) on the ground that the tenant was married, or single, or divorced. I agree: doing so would constitute discrimination against that person on the basis of marital status. That definition can easily be applied to the “group of persons” called a couple as well as to individuals—it is commonplace to describe a couple as unmarried, married, separated or divorced.

The majority’s interpretation of the NYCHRL gives no meaning to the City Council’s reference to a “group of persons” and repeated use of the plural “persons” in section 8-107 (5) (a) (1). Nor does it ascribe any meaning to the Council’s choice to use the plural “persons” in the housing context and the singular “person” in the employment and public accommodations contexts.

Section 8-107 (4) (a) establishes that

“[i]t shall be [an] unlawful discriminatory practice for any person who is the owner . . . of any place or provider of public accommodation: 1. Because of any *person’s* actual or perceived . . . marital status, . . . directly or indirectly: (a) To refuse, withhold from or deny *to such person* the full and equal enjoyment, on equal terms and conditions, of any of the accommodations, advantages, services, facilities, or privileges of the place or provider of public accommodation; or (b) To represent to any *person* that any accommodation, advantage, facility, or privilege of any such place or provider of public accommodation is not available when in fact it is available” (emphasis added).

The incompatibility of the majority's test with the text of the Code becomes apparent when we ask how the majority could ever find that a landlord discriminated against "persons" based on marital status.⁴ Imagine a landlord who will happily rent to married couples or single individuals but refuses to rent to an unmarried couple because she does not believe in cohabitation outside marriage. The majority would presumably hold that the landlord is not discriminating based on marital status; she is simply discriminating on the basis of whom the two individuals are (not) married to. Imagine that the same landlord refuses to rent to two single people who wish to live together, because she fears a relationship may develop between them. If the landlord would have rented to the pair were they married, is she only discriminating against them based on their relationship to each other? The majority thus renders the phrase "group of persons" meaningless in section 8-107 (5) (a) (1).

II.

The majority relies on the inclusion of "partnership status" in the NYCHRL for the proposition that "the City Council did not understand the bar on 'marital status' discrimination to cover unmarried couples" because "[i]f it did . . . there would have been no need for the amendment" (majority op at 373). If that is true, we are faced with two options: (1) a construction of the statute that renders protections based on partnership status superfluous, or (2) a construction of the statute that renders the phrase "group of persons" meaningless. Thankfully, we have guidance from the City Council itself on how to resolve such an impasse. We must construe the Code "broadly in favor of discrimination plaintiffs, to the extent that such a construc-

4. The majority notes that the phrase "group of persons" "actually modifies all of the categories protected by the NYCHRL" (majority op at 375). I agree. Under the NYCHRL, it would be unlawful to discriminate against a group of persons, including a couple, on any prohibited ground. This opinion addresses what that means where, as here, a petitioner alleges discrimination on the basis of marital status. I have therefore focused my analysis on what constitutes marital status discrimination against a group. What it would mean to discriminate against a group on the basis of their race, creed, color, national origin, gender, age, disability, sexual orientation, uniformed service, height, weight, partnership status, or immigration or citizenship status is not at issue in this case. Likewise, the fact that the NYCHRL initially included the "group of persons" language before it prohibited discrimination on the basis of marital status does not change the meaning of the current statute: the law originally protected groups of persons from discrimination on certain bases, not including marital status, and marital status became a protected classification eight years later.

tion is reasonably possible” (*Albunio v City of New York*, 16 NY3d 472, 477-478 [2011]). By rendering “group of persons” meaningless, the majority narrows the Code’s scope. Giving the phrase meaning broadens the Code in favor of discrimination plaintiffs like Ms. McCabe.

But the City Council’s broad construction mandate need not come into play, because applying marital status protections to couples does not render partnership status superfluous. Supreme Court’s decision in *Levin* cited an Appellate Division decision holding that a domestic partnership is not a “marital status” under state law (*Levin v Yeshiva Univ.*, 180 Misc 2d 829, 834-835 [Sup Ct, NY County 1999], citing *Funderburke v Uniondale Union Free School Dist. No. 15*, 251 AD2d 622, 623 [2d Dept 1998] [“We do not find that a domestic partnership is a ‘marital status’ within the meaning of Executive Law § 296”]). *Funderburke* suggested that discrimination based on partnership status alone (including discrimination against an individual for their status of being in a domestic partnership) would not be prohibited marital status discrimination.⁵ And the majority’s definition of what constitutes marital status—based on the plain meaning of that term—does not, of course, include the status of being in a domestic partnership.

To illustrate the separate value of protection based on partnership status, imagine three couples: Micah and Morgan are married, Devon and Dana are in a domestic partnership, and Lindsey and Leslie are unmarried life partners. A prohibition on marital status discrimination against couples would prevent a landlord from refusing to rent to Micah and Morgan because they are married, or to Lindsey and Leslie or Devon and Dana because they are not. But it might not prevent a landlord from discriminating against Devon and Dana for be-

5. The majority characterizes my citation of *Funderburke*, which it correctly notes concerned employment discrimination, as inconsistent with the distinction I draw between housing and employment discrimination (majority op at 374-375). That characterization misses the point entirely. “Partnership status,” like “marital status,” means the same thing wherever it is used in the NYCHRL. The Appellate Division’s decision in *Funderburke* helps us understand whether “marital status” encompasses the status of being in a domestic partnership. The distinction between the Code’s employment and housing provisions is entirely separate. One set of provisions applies only to a “person,” while the other applies to a “person or group of persons.” I am not, as the majority suggests, giving the words “marital status” a different meaning in the housing and employment provisions. I am simply applying the majority’s own definition of “marital status” to the “groups of” people the City Council has chosen to protect.

ing in a domestic partnership. A landlord might, for example, rent to married or unmarried couples but refuse as a matter of policy to rent to couples in a domestic partnership in an attempt to evade the Code's protections against sexual orientation discrimination. Another landlord might refuse to rent to Lindsey and Leslie because despite having the option to become domestic partners, they have chosen not to. And Devon and Dana might experience partnership status discrimination as individuals. An employer who opposed the creation of domestic partnerships might, for example, fire Devon for entering into one. If being in a domestic partnership is not a marital status, that conduct would not be prohibited without the addition of "partnership status" to the Code.

III.

Granting groups—not just individuals—protection against housing discrimination reflects the world we live in. Couples look for homes together, cosign leases and mortgages together, move in together, and live together. Unmarried couples are choosing to do so more than ever. Cohabitation among unmarried couples has more than doubled since the mid-1990s. Today, approximately 7% of adults (or 17 million people) live with a partner to whom they are not married (United States Census Bureau, *Unmarried Partners More Diverse Than 20 Years Ago* [Sept. 23, 2019], <https://www.census.gov/library/stories/2019/09/unmarried-partners-more-diverse-than-20-years-ago.html>).

The rise in unmarried cohabitation reflects broader changes in our attitudes towards marriage. In 1960, 72% of U.S. adults were married. By 2016, that number had fallen to 50%. The marriage rate is lower for Americans with no college education: in 2015, 65% of Americans over 25 with bachelor's degrees were married and 50% of Americans over 25 with a high school education or less were married. And the marriage rate is lower for Black and Latinx Americans: 30% of Black adults, 46% of Latinx adults, and 54% of white adults are married (Kim Parker & Renee Stepler, *As U.S. marriage rate hovers at 50%, education gap in marital status widens*, Pew Research Center [Sept. 14, 2017], <https://www.pewresearch.org/short-reads/2017/09/14/as-u-s-marriage-rate-hovers-at-50-education-gap-in-marital-status-widens/>). Discrimination against unmarried couples affects not only couples, but their children too: approximately five million children are being raised by unmarried cohabiting parents (Gretchen Livingston, *About one-third*

of U.S. children are living with an unmarried parent, Pew Research Center [Apr. 27, 2018], <https://www.pewresearch.org/short-reads/2018/04/27/about-one-third-of-u-s-children-are-living-with-an-unmarried-parent/>).

Not everyone views these changes as positive: 30% of U.S. adults believe either that it is never acceptable to cohabit outside marriage, or that it is acceptable only if the couple plans to marry (Nikki Graf, *Key findings on marriage and cohabitation in the U.S.*, Pew Research Center [Nov. 6, 2019], <https://www.pewresearch.org/short-reads/2019/11/06/key-findings-on-marriage-and-cohabitation-in-the-u-s/>). Where these views collide with the lives of New Yorkers, the City Council has chosen to say that persons—plural—should be able to access housing without regard for their marital status.

By ignoring the Council's words, the majority does great damage to marital status protections in the housing context, creating a rule that functionally protects only those who seek housing alone. Under the majority's rule, a landlord could not refuse to rent to a single person for being unmarried or a divorced person for being divorced (or a married person seeking housing alone for being married). But a landlord who does not believe in cohabitation outside marriage could refuse to rent to an unmarried couple because they are not married to each other. And a landlord who does not believe in marriage could refuse to rent to a married couple because they are. Here, the majority holds that a cooperative can withhold benefits from unmarried couples because they are unmarried, while giving those same benefits to married couples. The plain language of the NYCHRL is incompatible with that outcome.

RIVERA, J. (dissenting). Petitioner Maryann McCabe and her intimate life partner David Burrows lived together in his cooperative apartment as spouses, where she cared for him until the day he died. Unsurprisingly, Burrows left petitioner the apartment in his will and named her the executor of his estate. In addition, Burrows' lease provides, in part, that, upon his death, the cooperative will automatically assign the lease and shares to his surviving spouse. Based on both this lease and testamentary disposition, petitioner requested the transfer of the apartment and shares to her name. Respondent refused on the grounds that petitioner and Burrows were neither married nor registered domestic partners. Petitioner sued, relying, in part, on the New York City and New York State Human Rights

Laws (NYCHRL and NYSHRL, respectively), which prohibit discrimination in housing based on marital status.

Petitioner should prevail on her claim because she was denied a benefit that respondent concedes she would have received if she was married. Instead, the majority invokes the Court’s prior narrow construction of “marital status” to justify respondent’s blocking of the transfer as a denial based on her not being married to Burrows rather than her being unmarried generally (*see Levin v Yeshiva Univ.*, 96 NY2d 484, 490 [2001]). Even assuming that construction made sense when it was first adopted, it is no longer a viable reading because the City and State Human Rights Laws have since been amended to require us to construe them “broadly in favor of discrimination plaintiffs, to the extent that such a construction is reasonably possible” (*Albunio v City of New York*, 16 NY3d 472, 477-478 [2011]), to maximally achieve their remedial antidiscrimination purposes (*see Syeed v Bloomberg L.P.*, 41 NY3d 446, 451 [2024]; Executive Law § 300; Administrative Code of City of NY § 8-130 [a]).

Given these clear legislative directives, it is incumbent upon us to construe “marital status” to protect an individual against discrimination based on their lack of membership in a class of married or unmarried or an intimate life partnership regardless of the partnership’s marital status. Indeed, a person’s “marital status” is wholly dependent on the existence or nonexistence of an intimate relationship with another person—because one cannot be married to oneself, “marital status” is always a relational identity. The majority’s reading defies the law’s plain text and inescapable directive, thereby leaving persons like petitioner vulnerable to intolerable discrimination. I therefore dissent.

I.

Petitioner alleges that Burrows was her intimate life partner for years and that, when Burrows died, they lived as spouses in a cooperative apartment that Burrows owned and which was in his name. Like many life partners—married and unmarried—petitioner cared for Burrows in their home when he fell ill. Then, before Burrows passed away, their counsel wrote to the cooperative, stating that Burrows wanted “to add his longtime partner Maryann McCabe to the stock certificate and proprietary lease, as joint tenants with rights of survivorship.” Counsel noted their long-term relationship—that the two had

lived in the apartment “for the past 12 years” and “been partners for over 25 years.” The request was still pending with respondent when Burrows died the following year.

In accordance with their wishes, petitioner requested transfer of the apartment to her name. Despite their public long-term relationship, years of living together as intimate partners in the apartment, Burrows’ inter vivos request, and Burrows’ testamentary transfer of the apartment to petitioner, respondent denied the transfer and demanded that petitioner leave. Petitioner renewed her transfer request, providing respondent with a copy of Burrows’ will and invoking paragraph 16 (b) of Burrows’ lease. That paragraph provides that, upon a lessee’s death, “consent shall not be unreasonably withheld or delayed to an assignment of the lease and shares to a financially responsible member of the Lessee’s family (*other than the Lessee’s spouse as to whom no consent is required*)” (emphasis added). Respondent concedes that, by its plain terms, this provision requires automatic transfer to the decedent lessee’s surviving spouse.

Respondent again refused transfer on the grounds that petitioner was not Burrows’ spouse, but informed petitioner that she could—like any other prospective resident—apply to purchase the apartment, and petitioner did so under protest. Respondent then served petitioner with a notice to cure and notice of termination, without ruling on her purchase application. Afterwards, respondent rejected petitioner’s purchase application on the ground that she failed to meet the financial requirements.

Petitioner, individually and as the executor of Burrows’ estate, filed a CPLR article 78 petition seeking transfer of the shares and proprietary lease to her name. As exhibits, petitioner provided financial documents and public notices acknowledging her romantic long-term relationship with Burrows, including past family obituaries describing them as life partners. She alleges, as relevant here, that respondent violated the NYCHRL and NYSHRL—which prohibit discrimination based on marital status—because petitioner was Burrows’ longtime romantic partner and spousal equivalent. Supreme Court denied the petition and dismissed the proceeding (2022 NY Slip Op 34900[U] [Sup Ct, Bronx County 2022]) and the Appellate Division affirmed (214 AD3d 564 [1st Dept 2023]). Both courts relied on this Court’s prior decisions construing “marital status” discrimination as based on a

complainant's status as married or unmarried versus a complainant's relationship to another person (*see Levin*, 96 NY2d at 490; *Hudson View Props. v Weiss*, 59 NY2d 733, 735 [1983]). We granted petitioner leave to appeal (40 NY3d 904 [2023]).¹

Respondent concedes that it denied petitioner's request for an automatic transfer of the shares and lease under paragraph 16 (b) only because petitioner was not legally recognized as Burrows' spouse or domestic partner when Burrows died. That concession is fatal to respondent's defense under the Human Rights Laws because it admits plain discrimination against petitioner because she was not married to Burrows. But for this fact, respondent would have transferred the interest. Therefore, I would reverse the Appellate Division and grant the petition inasmuch as it seeks relief under the Human Rights Laws.

II.

The NYCHRL provides, in relevant part: "It shall be an unlawful discriminatory practice . . . [t]o refuse to sell, rent, lease, approve the sale, rental, or lease or otherwise deny to or withhold from any such person or group of persons such a housing accommodation or an interest therein" "[b]ecause of the actual or perceived . . . marital status . . . of any person or group of persons" (Administrative Code § 8-107 [5]). As part of the Local Civil Rights Restoration Act of 2005 (Restoration Act), which broadly reformed the NYCHRL, the City Council expanded the NYCHRL's construction provision to require that the law be "construed liberally for the accomplishment of the uniquely broad and remedial purposes thereof" "regardless of whether federal or New York state civil and human rights laws, including those laws with provisions worded comparably to provisions of this title, have been so construed" (Administrative Code § 8-130 [a]; Local Law No. 85 [2005] of City of NY § 7). Accordingly, construction of similarly-worded federal and state counterparts must be viewed "as a floor below which the City's Human Rights law cannot fall, rather than a ceiling above which the local law cannot rise" (*id.* § 1). The amendment was a response to what the Council viewed as judicial misapplication of the NYCHRL. As the City Council explained

1. Respondent asserts that it commenced a holdover proceeding against petitioner which is stayed pending resolution of this appeal.

in the NYCHRL's text, at the time of the reform's passage, the courts had "construed [the NYCHRL] too narrowly to ensure protection of the civil rights of all persons covered by the law" (*id.* § 1). Hence the need to "restore" the NYCHRL.

Amidst this general concern about overly-narrow constructions defeating the NYCHRL's purpose, the Council had a specific concern that this Court's view of the "marital status" category gutted the law's capacity to protect against certain forms of discrimination—including discrimination against same-sex partners who, at the time, could not marry in New York State.² However, intimate life partners, regardless of sexual orientation, could register as domestic partners and thus have their relationship recognized under city and state laws (*see* Administrative Code § 3-240; Executive Law former § 354-b; Public Health Law §§ 2805-q [1]; 4201 [1] [c]; [2] [a] [ii-a]). Therefore, in response to this concern, the Act added "partnership status" as one of the protected categories until the courts had an opportunity to properly apply the new liberal construction mandate. As explained in the Report by the Committee on General Welfare, "[p]ending judicial reconsideration of the proper scope of protection from discrimination based on marital status, this [partnership status] provision will ensure that" domestic partners are protected "from all forms of discrimination addressed by the human rights law" (Rep of Comm on Gen Welfare, Aug. 17, 2005 at 2-3, Local Law No. 85 [2005] of City of NY, 2005 NY City Legis Ann 536). The amendment thus served as a stopgap measure which placed married persons and persons in a legally recognized domestic partnership, as defined by the Act,³ on equal footing for purposes of the NYCHRL. However, the Council expected that this Court would reconsider its view of "marital status," construe this term liber-

2. It was not until 2011 that New York enacted the Marriage Equality Act, legally recognizing marriage between same-sex persons (L 2011, ch 95 [eff July 24, 2011]).

3. Partnership status is defined in the NYCHRL as "the status of being in a domestic partnership, as defined by subdivision a of section 3-240" (Administrative Code § 8-102). Section 3-240 (a) defines "domestic partners" as:

"persons who have a registered domestic partnership, which shall include any partnership registered pursuant to this chapter, any partnership registered in accordance with executive order number 123, dated August 7, 1989, and any partnership registered in accordance with executive order number 48, dated January 7, 1993, and persons who are members of a marriage that is not recognized by the state of New York, domestic

(n. cont'd)

ally to achieve the NYCHRL’s remedial purposes, and apply that same liberal construction to “partnership status” in the future.

In 2016, the Council again amended the NYCHRL to further strengthen its protections, declaring that “[e]xceptions to and exemptions from the provisions of [the NYCHRL] shall be construed narrowly in order to maximize deterrence of discriminatory conduct” (Local Law No. 35 [2016] of City of NY § 2). The Council also indicated its dissatisfaction with the courts’ continued narrow approach to the NYCHRL (Rep of Governmental Affairs Div, Comm on Civil Rights at 8, Mar. 8, 2016, Local Law Bill Jacket, Local Law No. 35 [2016] of City of NY). The Council identified this Court’s decision in *Albunio* (16 NY3d 472) and the First Department’s *Williams v New York City Hous. Auth.* (61 AD3d 62 [1st Dept 2009]) case as examples of decisions that “correctly understood and analyzed the liberal construction requirement” and “developed legal doctrines accordingly that reflect the broad and remedial purposes of” the NYCHRL (Administrative Code § 8-130 [c]). Both decisions reasoned that the Restoration Act required a broad construction of the NYCHRL to effectuate the Council’s goal “to eliminate and prevent discrimination from playing any role in actions relating to employment, public accommodations, and housing and other real estate” (Administrative Code § 8-101).

Like the NYCHRL, the NYSHRL prohibits discrimination based on marital status, declaring it unlawful to “refuse to sell, rent or lease or otherwise to deny to or withhold from any person or group of persons such housing accommodations because of the . . . marital status . . . of such person or persons” (Executive Law § 296 [5] [a] [1]). The NYSHRL has a remedial purpose similar to that of the NYCHRL—to “eliminate and prevent discrimination in employment, in places of public accommodation, resort or amusement, in educational institutions, in public services, in housing accommodations, in commercial space and in credit transactions” (*id.* § 290 [3]).

In 2019, the state legislature amended the NYSHRL to expand its protections and adopted an enhanced liberal construction requirement almost identical to the language in the NYCHRL (L 2019, ch 160, § 6; Executive Law § 300). The NYSHRL now provides, with added language in bold:

partnership, or civil union, lawfully entered into in another jurisdiction” (Administrative Code § 3-240 [a]).

“The provisions of this article shall be construed liberally for the accomplishment of the **remedial purposes thereof, regardless of whether federal civil rights laws, including those laws with provisions worded comparably to the provisions of this article, have been so construed. Exceptions to and exemptions from the provisions of this article shall be construed narrowly in order to maximize deterrence of discriminatory conduct**” (Executive Law § 300 [emphasis added]).

The State’s choice of almost verbatim language found in the NYCHRL—which our courts had applied broadly for over a decade prior to the 2019 state amendment—confirms the State Legislature’s intent and understanding that these comparable provisions should also be broadly construed to achieve the same remedial antidiscrimination purposes. Before the 2019 amendments, the NYSHRL had generally been construed more narrowly than the NYCHRL because of the express mandate that the NYCHRL be construed to apply more broadly than similarly-worded provisions of state and federal laws. Following the 2019 amendment, courts have applied the same analytical framework to NYSHRL and NYCHRL discrimination claims, in recognition that, given the now applicable parallel language, the statutes must be interpreted in kind (*see Cobb v Ellab Inc.*, 2024 WL 1963430, *5, 2024 US Dist LEXIS 80050, *12-13 [ND NY, May 2, 2024, No. 1:22-CV-1002 (MAD/CFH)]; *Cannizzaro v City of New York*, 82 Misc 3d 563, 577 [Sup Ct, NY County 2023]; *Charles v City of New York*, 2023 WL 2752123, *6, 2023 US Dist LEXIS 57078, *16-17 [SD NY, Mar. 31, 2023, No. 21 Civ. 5567 (JPC)]). We too have come to the same recognition that construction of the NYSHRL and NYCHRL follow the same interpretative path (*Syeed*, 41 NY3d at 451-453). Therefore, there is but one liberal construction of “marital status” that applies to petitioner’s claims under each of the Human Rights Laws.

III.

Under this rule of construction, “[c]ourts must construe the Human Rights Laws ‘broadly in favor of discrimination plaintiffs, to the extent that such a construction is reasonably possible’” (*Syeed* at 451, quoting *Albunio*, 16 NY3d 472, 477-478, and citing *Makinen v City of New York*, 30 NY3d 81, 88

[2017]). Applying this rule, “marital status” under the Human Rights Laws covers both (1) a person’s membership in a class of married or unmarried persons, and (2) a person’s marital status in relation to another person. This construction is both logical and eminently reasonable because it guarantees equal treatment among individuals different from one another based solely on the proscribed classification. The proscription common to both Human Rights Laws eliminates marriage as a basis for differential treatment between persons who are similarly situated. It further recognizes the obvious: that married status is based on the existence or nonexistence of an intimate life partner relationship with someone else. Thus, we must construe “marital status” liberally to protect a complainant based both on a general unspecified association to a protected group (e.g. petitioner is unmarried) as well as on the specific individual relationship that defines the complainant as a member of the protected group (e.g. petitioner is unmarried to Burrows).

The Appellate Division correctly adopted this construction in *Morse v Fidessa Corp.* when it observed that “[e]ncompassing the marital status of two people vis-a-vis one another within the meaning of the term ‘marital status’ is, at minimum, a reasonable construction” (165 AD3d 61, 68 [1st Dept 2018]). There, the Court concluded that “‘[m]arital status’ may refer to whether an individual is married or not married. It may also refer to whether two individuals are married to each other or not married to each other” (*id.* at 68). As *Morse* further noted, “a narrow interpretation of ‘marital status’ would allow a wide range of discriminatory conduct—including conduct arising out of assumptions based on stereotypes—to continue unabated” (*id.* at 68-69). Construing “marital status” to include discrimination based on an intimate life partner relationship to another person is “the best way to achieve broad coverage of the city law in accordance with the stated goal of the Council to ‘meld the broadest vision of social justice with the strongest law enforcement deterrent’ ” (*id.* at 72, citing Rep of Governmental Affairs Div, Comm on Civil Rights at 11, Mar. 8, 2016; *Williams*, 61 AD3d at 68).

As applied here, the analysis is straightforward. Respondent concedes that it denied petitioner’s request for an automatic transfer of Burrows’ lease and shares, as required by paragraph 16 (b) of the lease, solely because at the time of Burrows’ death, he and petitioner were not married or registered domestic

partners. Thus, respondent extends a benefit to all cohabitating partners except those who are unmarried and unregistered, regardless of their actual loving and committed lifelong intimate relationship. That denial is prototypical discrimination—denial of a benefit based on lack of membership in a preferred group, here the married or domestic partner survivor of the tenant.

IV.

The majority adopts respondent's view that we must adhere to the construction of "marital status" under the Human Rights Laws the Court first adopted under the old statutory frameworks in the 1980s. In doing so, the Court ignores that our task now, over four decades later, is to construe the current versions of the Human Rights Laws that facially reject both the definition of "marital status" and, as a consequence, the antiquated analytical approach the majority retains today.

The Court first narrowly construed "marital status" under the NYSHRL in a challenge to an employer's anti-nepotism rule which "forb[a]d[e] an employee from working under the supervision of a . . . spouse" (*Matter of Manhattan Pizza Hut v New York State Human Rights Appeal Bd.*, 51 NY2d 506, 509 [1980]). The employee in *Manhattan Pizza Hut* was fired because she was married to her supervisor. To discern the meaning of "marital status" the Court relied on "the obvious and fundamental rule of construction that words of common usage are to be given their ordinary meaning"—a general rule applied by courts to ascertain legislative intent (*id.* at 511, citing McKinney's Cons Laws of NY, Book 1, Statutes § 94).

"So tested, the plain and ordinary meaning of 'marital status' is the social condition enjoyed by an individual by reason of his or her having participated or failed to participate in a marriage. Illuminated another way, when one is queried about one's 'marital status', the usual and complete answer would be expected to be a choice among 'married', 'single', etc., but would not be expected to include an identification of one's present or former spouse and certainly not the spouse's occupation" (*id.* at 511-512).

Thus, the genesis of the *Manhattan Pizza Hut* Court's view of marital status is a general rule now displaced by the respective amendments to the Human Rights Laws which substitute

a rule of construction that the laws be “broadly in favor of discrimination plaintiffs, to the extent that such a construction is reasonably possible” (*Albunio*, 16 NY3d at 477-478).⁴

The *Manhattan Pizza Hut* construction has been the source of disagreement since its adoption. Chief Judge Cooke in dissent observed that marital status under the NYSHRL encompassed the employer’s termination of the employee because the sole ground for termination was that she was married to another employee, and the majority’s reasoning ignored this plain construction of the statute (*Manhattan Pizza Hut*, 51 NY2d at 515 [Cooke, Ch. J., dissenting]).

Manhattan Pizza Hut must be understood in context as reflecting the Court’s primary concern that a broader construction of marital status would invalidate anti-nepotism rules (51 NY2d at 511-513). There, the Court explained that anti-nepotism rules serve a valuable purpose to “avoid favoritism, [whether] conscious or unconscious” when “two close relatives work together” (51 NY2d at 513). True enough, but as Chief Judge Cooke explained, the employer’s business considerations could easily be accommodated in a non-discriminatory manner because “[a]n employer should be free to prevent personal relationships between supervisors and other employees from disrupting the work environment through rules focused on such a problem, not by unwarranted interference with a protected status” (51 NY2d at 516 [Cooke, Ch. J., dissenting]). Thus, the NYSHRL marital status proscription and anti-nepotism rules need not be in tension.

The Court next applied the construction adopted in *Manhattan Pizza Hut* in *Hudson View*, a case involving a restrictive covenant that limited occupancy under the lease to a tenant and their immediate family (*see* 59 NY2d 733 [1983]). The *Hudson View* Court concluded enforcement of this covenant was not marital status discrimination, reasoning that “the issue arises not because the tenant is unmarried, but because the lease restricts occupancy of her apartment, as are all apartments in the building, to the tenant and the tenant’s immediate family” (*id.* at 735). Like in *Manhattan Pizza Hut*, the *Hudson View* Court relied on a now-legislatively-discarded general rule of construction (*Syeed*, 41 NY3d at 451; *Albunio*, 16

4. This view was hardly compelling in the first place. Notably, the *Manhattan Pizza Hut* Court did not explain why marital status should be decoupled from the relationship that brings the complainant within the disparaged group.

NY3d at 477-478). And again, the Court provided no reason in its short memorandum opinion for why it concluded that the complainant's actual relationship—she was unmarried, rather than married, to the proposed occupant—was irrelevant to its analysis other than because it said so.

Then in 2001, the Court in *Levin* rejected claims brought by a student and her same-sex partner that a university violated both Human Rights Laws by denying them university-owned housing on the basis that they were not married, reasoning that the policy limitation was not based on marital status (*see generally* 96 NY2d 484).⁵ The Court explained that, under its precedent, “for purposes of applying the statutory proscription, a distinction must be made between the complainant's marital status as such, and the existence of the complainant's disqualifying relationship—or absence thereof—with another person” (*id.* at 490). The Court concluded that the university's policy was “restricted to those in legally recognized, family relationships with a student, not the student's marital status,” and was therefore indistinguishable from the policy in *Hudson View*, which limited occupancy to the tenant's immediate family (*id.* at 490-491). As such, the university policy—like the *Hudson View* policy—did not discriminate on its face based on marital status in violation of the Human Rights Laws.⁶

Dissenting from the portion of *Levin* adhering to the *Manhattan Pizza Hut* construction, Chief Judge Kaye concluded that the plaintiffs properly pleaded claims based on marital status discrimination, because the plaintiffs were “denied partner housing merely because they were unmarried” (96 NY2d at 502 [Kaye, Ch. J., concurring in part & dissenting in part]). As she explained, the Human Rights Laws “bar[] decisions from being made on the basis of whether a person is ‘single, married, divorced, separated or the like’” which, she concluded, “is

5. The policy predates the 2011 Marriage Equality Act and so the university policy on its face denied its housing to all gay and lesbian intimate life partners (*see* n 2, *supra*).

6. Notably, and to its credit, the *Levin* Court concluded that the plaintiffs were not foreclosed from alleging another statutory ground and held that the plaintiffs sufficiently pleaded a claim that the university policy had a disparate impact based on sexual orientation, a protected classification under the NYCHRL (*id.* at 496). However, the City Council found reliance on the sexual orientation classification inadequate to address discrimination against same-sex couples and, as I have discussed, added the “partnership status” classification as a temporary ameliorative measure pending judicial reconsideration of the NYCHRL under the expanded liberal construction mandate (*see supra* at 390-391).

exactly what happened” to the plaintiffs (*id.*, citing *Manhattan Pizza Hut*, 51 NY2d at 512). Chief Judge Kaye also distinguished *Manhattan Pizza Hut* because that case turned on the sound reasons for anti-nepotism rules, which were not at issue in *Levin* (*id.* at 502). *Hudson View* also was measurably different because the tenant there never asserted that her romantic partner was her immediate family member (*id.* at 501). In contrast, “the gravamen of [the *Levin*] plaintiffs’ complaint is that they share the same level of commitment with their partners as married persons share with their spouses—that their life partners *are* members of their immediate families” (*id.*).

As both Chief Judge Cooke in *Manhattan Pizza Hut* and Chief Judge Kaye in *Levin* observed, the narrow construction of the “marital status” discrimination proscription is contrary to the commonsense understanding that one can only be married or unmarried by reference to another person. That understanding tolerates a class-wide distinction plainly at odds with the Human Rights Laws’ antidiscrimination goals.

V.

In an attempt to justify settling on the same narrow, now inapt construction of marital status that this Court adopted over four decades ago, the majority advances a variety of arguments. Some are directly at odds with the Supreme Court’s statutory construction approach to title VII of the Civil Rights Act of 1964—which is the floor below which the protections of our human rights laws cannot fall—in *Bostock v Clayton County* (590 US 644 [2020]). All of the arguments are unpersuasive.

To the extent the majority suggests that the construction mandates of the Human Rights Laws do not apply to the provisions that list the protected classifications (Administrative Code § 8-107 [5]; Executive Law § 296 [5])—that somehow the construction provision applies piecemeal—that approach finds no textual support in the respective statutes (majority op at 376). Neither the NYCHRL nor the NYSHRL expressly limit their broad construction mandate to apply to everything but the classifications. Certainly, no such implication can be drawn from a mandate that we construe the laws liberally to effectuate their antidiscrimination remedial purposes, since a narrow

interpretation would permit rather than discourage or eliminate discriminatory actions.⁷

Nevertheless, the majority contends that because the City Council has defined protected categories with precision, and acted to expand protections when it deemed it appropriate, the failure to expressly add “unmarried couples” signals that the Council has excluded them from the NYCHRL protections (majority op at 374). That reasoning ignores the Council’s command that we construe every term in the NYCHRL broadly to effectuate the statute’s remedial purposes and the Council’s overall goals. Any doubts on this point are laid to rest by the Committee on Civil Rights 2016 report which explains that the purpose of referring to cases in the 2016 law was to “reaffirm that courts must apply the liberal construction provisions in every case and with respect to every issue” (Rep of Governmental Affairs Div, Comm on Civil Rights at 8-9, Mar. 8, 2016).

The majority reasons that “other provisions of the NYCHRL reinforce [its] understanding” that “‘marital status’ refers to whether a person is participating in a marriage, not the nature of one’s relationship with another specific person” (majority op at 372). In addition to defying logic, by treating “married” as a solitary identity, the majority’s attempt to justify its adherence to a narrow construction in contravention of the textual mandate fails on its own terms.

First, the majority claims that a broad construction would render superfluous the “partnership status” classification (*see* majority op at 372-373). That misunderstands the amendment’s purpose, which was to equate the registered domestic partnerships with marriage; both classifications legally recognize an intimate relationship. The express addition of “partnership status,” however, has no bearing on the *scope* of the discrimination proscription. Partners receive no greater or less protection than persons who are married. Under the 1980s construction retained by the majority, an intimate life partner who is neither married nor a registered partner can be denied housing

7. The majority’s suggestion is odd indeed since federal cases are the floor above which we must read the Human Rights Laws and the United States Supreme Court has recently interpreted title VII’s ban on sex-based discrimination broadly despite the lack of any congressional directive and some legislative history suggesting that its broad interpretation was disfavored (*compare Bostock v Clayton County*, 590 US 644 [2020], *with* Rep of Comm on Gen Welfare, Aug. 17, 2005, *and* Rep of Governmental Affairs Div, Comm on Civil Rights at 8, Mar. 8, 2016).

accommodations based on their relationship to their chosen life partner. Petitioner's case illustrates this point; respondent denied petitioner the automatic transfer of the apartment lease and shares because she was not Burrows' surviving spouse or domestic partner. Indeed, as the majority acknowledges (*see* majority op at 373), even under that construction, "partnership status" is superfluous because a person who is a partner, as defined by the NYCHRL, is legally not a married person and thus would be protected to the extent the narrow construction protects any person because they are not married. The majority points to this corollary as evidence that the Council understood that domestic partners are not covered by the "marital status" classification. Perhaps the Council did have this understanding in mind, but not for the reason the majority presumes. The Council simply intended domestic partners to be no better or no worse off than married persons. That does not tell us that we must read the status of both classifications narrowly. The NYCHRL structure signals the contrary. As to how we actually construe the classifications we have a clear (not an imagined) mandate: read the entirety of the NYCHRL broadly in favor of discrimination plaintiffs, because "[c]ourts must construe the Human Rights Laws 'broadly in favor of discrimination plaintiffs, to the extent that such a construction is reasonably possible'" (*Syeed*, 41 NY3d at 451, quoting *Albunio*, 16 NY3d at 477-478). I cannot see how the majority's construction favors plaintiffs when the construction allows discrimination against an intimate partner even though their relationship has all the indicia of a marriage or domestic partnership and lacks only the legal label. The majority's explanation of how the addition of "partnership status" somehow prohibits a broad reading of marital status also provides no satisfactory explanation for why the Report by the Committee on General Welfare explicitly noted that the addition was a stopgap "[p]ending judicial reconsideration of the proper scope of protection from discrimination based on marital status" (Rep of Comm on Gen Welfare, Aug. 17, 2005 at 2-3, Local Law No. 85 [2005] of City of NY, 2005 NY City Legis Ann at 536; *see* majority op at 377 n 3). It strains credulity to read this statement of legislative intent to mean that the Council meant for us to "revisit" our definition of marital status and retain our previous interpretation, rather than engaging in a liberal construction analysis which, as I explain, leads to a different result.

The majority offers another “structural” argument: that the 2016 amendment’s addition of “caregiver status” indicates that the Council does not intend for us to broadly construe those classifications it does include (*see* majority op at 374). That argument is flawed for similar reasons. The caregiver status classification applies to the NYCHRL employment discrimination proscriptions and protects workers against adverse employment actions based on the prospective or existing employee’s caregiving responsibilities. It does not limit our construction of marital status at all. And, of course, this Court has already made clear that: (1) a complainant may have multiple bases for challenging an alleged discriminatory act; and (2) a failure on one does not automatically foreclose success on another (*see Levin*, 96 NY2d at 490).

The United States Supreme Court squarely rejected similar reasoning in *Bostock* (590 US 644). *Bostock* involved title VII of the Civil Rights Act—a law that notably does not have the same stringent construction mandates as the statutes at issue here—specifically, whether its prohibition of discrimination “‘because of . . . sex’” (42 USC § 2000e-2 [a] [1]) extended to discrimination based on “sexual orientation” (*Bostock*, 590 US at 655-656). The Court held that it does over the dissenters’ protests that the text did not include “sexual orientation” and that the legislature has rejected attempts to amend title VII to include that classification (*compare id.*, *with id.* at 683 [Alito, J., dissenting], *and id.* at 780-783 [Kavanaugh, J., dissenting]).

The *Bostock* majority’s analysis is instructive and forecloses much of the current majority’s contrived “structural” analysis. As to the majority’s claim that “marital status” was traditionally not understood to include marital relationships (*see* majority op 372), *Bostock* cautions:

“Those who adopted the Civil Rights Act might not have anticipated their work would lead to this particular result. Likely, they weren’t thinking about many of the Act’s consequences that have become apparent over the years, including its prohibition against discrimination on the basis of motherhood or its ban on the sexual harassment of male employees. But the limits of the drafters’ imagination supply no reason to ignore the law’s demands. When the express terms of a statute give us one answer and extratextual considerations suggest another, it’s no contest. Only the written word is the

law, and all persons are entitled to its benefit” (*id.* at 653).

The current majority’s reliance on the Council’s choice not to explicitly amend the definition of marital status as a basis for ignoring the Council’s broad-construction command (*see* majority op at 378-379) endorses the very same flawed reasoning that *Bostock* rightly rejected:

“There’s no authoritative evidence explaining why later Congresses adopted other laws referencing sexual orientation but didn’t amend this one. Maybe some in the later legislatures understood the impact Title VII’s broad language already promised for cases like ours and didn’t think a revision needed. Maybe others knew about its impact but hoped no one else would notice. Maybe still others, occupied by other concerns, didn’t consider the issue at all. All we can know for certain is that speculation about why a later Congress declined to adopt new legislation offers a ‘particularly dangerous’ basis on which to rest an interpretation of an existing law a different and earlier Congress did adopt” (*id.* at 670, quoting *Pension Benefit Guaranty Corporation v LTV Corp.*, 496 US 633, 650 [1990]; *see also Flanagan v Mount Eden Gen. Hosp.*, 24 NY2d 427, 433 [1969] [“The practicalities of the legislative process furnish many reasons for the lack of success of a measure other than legislative dislike for the principle involved in the legislation. Legislative inaction is a weak reed upon which to lean in determining legislative intent”]).

Nor can *Bostock*’s rationale be distinguished on the grounds that legislative inaction postdated the rulings from this Court that adopted a narrow interpretation of marital status. Before *Bostock*, Circuit precedent stretching as far back as the 1970s interpreted “sex discrimination” in title VII to exclude sexual orientation discrimination—and this narrow interpretation was, in part, what variations of the Equality Act sought to rectify from that decade onwards (*see e.g. Blum v Gulf Oil Corp.*, 597 F2d 936, 938 [5th Cir 1979]; *Evans v Georgia Regional Hosp.*, 850 F3d 1248, 1255 [11th Cir 2017]; HR Rep 14752, 93rd Cong, 2d Sess, §§ 6, 11 [1974]; HR 2015, 110th Cong, 1st Sess, §§ 3, 4 [2007]).

Bostock also rejected the majority’s bases for its adherence to the Court’s narrow reading—that it is “best left to the City

Council” to “weigh[] the consequences” of such a broad interpretation, and “had the Council intended to require that marital status be extended to cover discrimination based on one’s relationship to another, we assume it would have amended the statute to say exactly that” (majority op at 378-379):

“[There is no] such thing as a ‘canon of donut holes,’ in which Congress’s failure to speak directly to a specific case that falls within a more general statutory rule creates a tacit exception. Instead, when Congress chooses not to include any exceptions to a broad rule, courts apply the broad rule. And that is exactly how this Court has always approached Title VII. ‘Sexual harassment’ is conceptually distinct from sex discrimination, but it can fall within Title VII’s sweep. Same with ‘motherhood discrimination.’ Would the employers have us reverse those cases on the theory that Congress could have spoken to those problems more specifically? Of course not. As enacted, Title VII prohibits all forms of discrimination because of sex, however they may manifest themselves or whatever other labels might attach to them” (*id.* at 669-670 [citations omitted]).

The majority in this case further cites *Manhattan Pizza Hut* for the proposition that the definition of “marital status” should stem from thinking of how one would answer when queried about one’s marital status, and how this “turns on whether an individual has participated or failed to participate in a marriage” which is “distinct from the identity or situation of the individual’s spouse” (majority op at 372, citing 51 NY2d at 511-512 [internal quotation marks omitted]). This approach, according to *Bostock*, “rests on a mistaken understanding of what kind of cause the law is looking for” (590 US at 666). The better test is to apply the but-for test required by the “because” language of civil rights law, which “directs us to change one thing at a time and see if the outcome changes. If it does, we have found a but-for cause” (*id.* at 656).

Here, of course, and contrary to the majority’s exhortations to the contrary (*see* majority op at 378 n 5), if “one thing” about petitioner is changed—from being unmarried to married—the outcome changes, making the Supreme Court’s but-for test glaringly applicable. Petitioner would not be evicted from her apartment in which she built a life with her now-deceased partner, but would get to stay in their home—and grieve—in

peace. Of course, the Court's previous construction of "marital status" predates *Bostock*. But we now have both the benefit of the Supreme Court's analysis and the NYCHRL and NYSHRL's mandate that we may not construe those statutes in a manner that provides less protection than federal law. The majority's adherence to the old construction ignores decades of legal developments discrediting it.

As a final desperate attempt to justify its restrictive construction, the majority leans on the City Council to undo the mistake the majority makes today. If the Court has gotten things wrong, the majority assures, the Council can always correct it (*see* majority op at 379).⁸ That states the obvious—the legislature always has authority to clarify its enactments when the courts misapply them—but it offers no help for the majority here, where the Council heavily criticized the very same construction the Court retains today when the Council enacted the Restoration Act in the wake of *Levin*.

"Indeed, *Levin* was cited in connection with the passage of the Restoration Act as illustrative of the cases that had 'either failed to interpret the City Human Rights Law to fulfill its uniquely broad purposes, ignore [*sic*] the text of specific provisions of the law, or both.' With the passage of the Restoration Act, [these cases and others like them] will no longer hinder the vindication of our civil rights" (*Morse*, 165 AD3d at 67-68 [some internal quotation marks omitted], citing *Williams*, 61 AD3d at 67, quoting from transcript of Council debate).

If inaction tells us anything, it tells us that the majority is wrong to adhere to the pre-Restoration Act construction of "marital status." The fact is that the Council has had the opportunity to consider the impact of the broad construction I would adopt and to take corrective action ever since the Appellate Division decided *Morse*. It has declined to do so. And as this Court knows all too well, the Council has readily criticized the courts for failing to properly construe the NYCHRL (*see* Local Law No. 85 [2005] of City of NY § 1; Local Law No. 35 [2016], 2016 NY City Legis Ann 177, codified as Administrative Code § 8-130 [c]). Surely, if this construction was contrary to

8. Since the majority concludes that the NYSHRL claims fall under the narrow construction, presumably the majority believes the State Legislature can also reverse the Court's erroneous decision here. This attempted reassurance fails to persuade for the same reasons as applied to the Council.

the Council's intent, the Council would have legislatively overruled it by now. The majority should not ignore that the Council has approved of the broad construction in the only way it can, by leaving it in place.

Significantly, construing marital status broadly for purposes of the Human Rights Laws to encompass intimate life partners who are neither married nor in a domestic partnership is workable in practice. Parties and courts can rely on the factors first set forth by this Court in *Braschi v Stahl Assoc. Co.* to evaluate whether such relationships are similarly-situated, including “the exclusivity and longevity of the relationship, the level of emotional and financial commitment, the manner in which the parties have conducted their everyday lives and held themselves out to society, and the reliance placed upon one another for daily family services” (74 NY2d 201, 212-213 [1989]).⁹ Our courts have been making these assessments in the housing context since the 1980s, so it is familiar terrain. Our courts have also made these determinations of what constitutes a “family” in cases involving zoning (*Baer v Town of Brookhaven*, 73 NY2d 942, 943 [1989] [five unrelated elderly women who lived together in a home were a family]), domestic relations (*Matter of Brooke S.B. v Elizabeth A.C.C.*, 28 NY3d 1, 26 [2016] [overruling a narrow definition of “parent” that excluded non-biological and non-adoptive caregivers]), and in domestic violence cases which often require evaluation of whether there was an “intimate relationship” (*Matter of Mark W. v Damion W.*, 25 Misc 3d 1148, 1150 [Fam Ct, Kings County 2009]).

In sum, the Human Rights Laws mandate that we liberally construe those laws to achieve their remedial purposes. To that end we must construe the NYCHRL “broadly in favor of discrimination plaintiffs, to the extent that such a construction is reasonably possible” (*Albunio*, 16 NY3d at 477-478). The majority has failed to convincingly explain why the construction I would adopt, which aligns with the dissents in *Manhattan Pizza Hut* and *Levin* and which the Appellate Division endorsed years ago, is not reasonable.

9. The majority misunderstands my reliance on *Braschi* (74 NY2d 201). I discuss our precedent not because it compels a specific result in our interpretation of “marital status,” but rather because it is an example of how this Court has developed a workable standard based on the typical indicia of an unmarried intimate partnership. That standard may in turn be applied to claims under the Human Rights Laws (*see* majority op at 374).

VI.

Societal attitudes have evolved during the decades since this Court first decided that the NYSHRL's and NYCHRL's bans on discrimination based on "marital status" do not apply to discrimination based on the complainant's relationship to someone else. The number of unmarried partners has increased (Courtney G. Joslin, *Discrimination in and out of Marriage*, 98 BU L Rev 1, 3-4 [2018] ["In 1960, there were fewer than one million unmarried cohabitants. Today, there are over eighteen million"]). "[T]he percentage of children living with unmarried, cohabitating parents more than doubled between 1997, the first year that census data on cohabitation was available, and 2017" (*Greene v Esplanade Venture Partnership*, 36 NY3d 513, 540 [2021, Rivera, J., concurring], citing Gretchen Livingston, *About one-third of U.S. children are living with an unmarried parent* [Apr. 27, 2018], Pew Research Center, <https://www.pewresearch.org/fact-tank/2018/04/27/about-one-third-of-u-s-children-are-living-with-an-unmarried-parent/>). The majority of Americans support allowing unmarried couples to have the same legal rights as married couples (Nikki Graff, *Key findings on marriage and cohabitation in the U.S.* [Nov. 6, 2019], Pew Research Center, <https://www.pewresearch.org/short-reads/2019/11/06/key-findings-on-marriage-and-cohabitation-in-the-u-s/>). The reality is that people organize their personal lives in a variety of ways; they choose to marry or not marry or register as domestic partners based on personal circumstances and preferences (*Greene*, 36 NY3d at 527 [Rivera, J., concurring] ["(F)amilies are formed not solely by matrimony and blood but also with bonds of friendship and love"]). Democratically-enacted New York law now honors and protects that choice in specified areas of public and private life. The majority's decision to adhere to the narrow views of the past ignores both the law and New York's tradition of strong human rights protections against bias and animus. In the light of the present, the most reasonable construction of "marital status" is straightforward: discriminatory conduct against consenting adults based solely on the fact that they are unmarried intimate life partners is prohibited by the Human Rights Laws.

I dissent.

Judges GARCIA, SINGAS, CANNATARO and TROUTMAN concur. Chief Judge WILSON dissents in an opinion. Judge RIVERA dissents in a separate opinion.

Order affirmed, with costs.

[264 NE3d 198, 237 NYS3d 147]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v EDWARD
MERO, Appellant.

Argued November 21, 2024; decided December 19, 2024

PROCEDURAL SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Third Judicial Department, from an order of that Court, entered November 22, 2023. The Appellate Division affirmed (1) a judgment of the Albany County Court (Peter A. Lynch, J.), which had convicted defendant, upon a jury verdict, of murder in the second degree (two counts) and tampering with physical evidence (two counts); and (2) an order of the Supreme Court, Albany County (Peter A. Lynch, J.; op 2020 NY Slip Op 30669[U] [2020]), which had denied defendant's motion pursuant to CPL 440.10 to vacate the judgment of conviction, after a hearing.

People v Mero, 221 AD3d 1242, affirmed.

HEADNOTES

Crimes — Consolidation and Severance — Trial on Charges Relating to Two Separate Murders

1. The trial court in defendant's prosecution for two separate murders committed almost two years apart did not abuse its discretion in denying defendant's motion to sever the charges relating to each murder from each other, where defendant failed to demonstrate a "substantial likelihood that the jury would be unable to consider separately the proof as it related to each offense" (CPL 200.20 [3] [a]). Defendant did not show there was "[s]ubstantially more proof" of the first offense than the second (CPL 200.20 [3] [a]). Rather, he characterized the amount of proof for each as similarly "underwhelming," and asserted that there was a "clear danger" the jurors would treat the evidence cumulatively because of the "abhorrent nature of the allegations." Even accepting defendant's characterization of the evidence, defendant did not show that the jury would find it difficult to segregate the proof for each set of offenses. The trial court gave thorough instructions to the jury, once before trial began, once before jury deliberation began, and once in response to a note requesting a readback of the instructions.

Crimes — Right to Counsel — Effective Representation — Conflict of Interest — Business Relationship between Counsel and Prosecutor

2. In a criminal prosecution, the record supported the trial court's determination that although the improper, undisclosed business relationship between defendant's trial counsel and an assistant district attorney (ADA) involved in the prosecution created a potential conflict of interest, it did not operate on the defense and thus did not require vacatur of the conviction. An actual conflict of interest requiring reversal arises when an attorney has

divided and incompatible loyalties within the same matter necessarily preclusive of single-minded advocacy. Here, the ADA was paid for drafting four appellate briefs and a motion for a change of venue in other cases litigated outside of the county where this prosecution took place. The record indicated that the work was performed on nights and weekends, without access to defense counsel's office or files. A potential conflict of interest requires reversal if a defendant shows that the potential conflict actually operated on the conduct of his defense. Evidence that unconflicted counsel would have acted in a more vigorous, less inhibited manner may establish this point. The trial court characterized defense counsel's advocacy as "meaningful" and "zealous[] and effective[]" notwithstanding an incident that led to the removal of a juror within earshot of counsel's disparaging comments about defendant. The juror was dismissed with the consent of all parties, and no other jurors heard the remarks. Defendant produced no evidence suggesting the business conflict had anything to do with the removal of the juror, or that it otherwise operated on his defense. Moreover, the prosecutor never represented defendant, and the record indicated that defense counsel did not share information or confidences with the prosecutor regarding defendant.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Criminal Law §§ 1111, 1116; AM JUR 2d Homicide § 442; AM JUR 2d Trial §§ 56, 64, 67, 86–87.
 CARMODY-WAIT 2d Right to Counsel § 184:181; CARMODY-WAIT 2d Pretrial Motions §§ 189:212, 189:219.
 LaFAVE, ET AL., CRIMINAL PROCEDURE (4th ed) §§ 11.9, 17.1, 17.3, 17.4, 21.3.
 McKINNEY'S, CPL 200.20 (3) (a).
 NY JUR 2d Criminal Law: Procedure §§ 981, 1673, 1679–1680.

ANNOTATION REFERENCE

Consolidated trial upon several indictments or informations against same accused, over his objection. 59 ALR2d 841.

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POINTS OF COUNSEL

Hug Law, PLLC, Albany (*Matthew C. Hug* of counsel), for appellant. I. The lower court's decision should be reversed and appellant's conviction vacated pursuant to CPL 440.10 (1) (b), (f) and (h), due to the unwaived actual conflict of interest created by the defense attorney's and the former assistant district

attorney's indefensible and undisclosed business arrangement. (*People v Ortiz*, 76 NY2d 652; *Wood v Georgia*, 450 US 261; *People v Payton*, 22 NY3d 1011; *People v Harris*, 99 NY2d 202; *Wheat v United States*, 486 US 153.) II. The trial court abused its discretion in denying appellant's motion to sever the first murder's counts from the second murder's counts resulting in the loss of appellant's right to a fair trial. (*People v Santiago*, 190 AD3d 502; *People v Martinez*, 165 AD3d 1288; *People v Daniels*, 216 AD2d 639; *People v Stanley*, 81 AD2d 842; *People v Jackson*, 77 AD2d 630.) III. The judgment of conviction was unsupported by legally sufficient evidence and was against the weight of the evidence. (*People v Bleakley*, 69 NY2d 490; *People v Bueno*, 18 NY3d 160.) IV. The trial court's decision to deny appellant's motion to suppress the admissions he allegedly made to the two jailhouse informants deprived him of his Sixth Amendment right to counsel as both informants were acting as agents of the government. (*People v Johnson*, 27 NY3d 199; *People v Velasquez*, 68 NY2d 533; *People v Newbeck*, 157 AD3d 908; *People v Jackson*, 125 AD3d 1002; *People v Bent*, 160 AD2d 1176.) V. Appellant was deprived of the effective assistance of counsel. (*People v Turner*, 5 NY3d 476; *Strickland v Washington*, 466 US 668; *People v Baldi*, 54 NY2d 137; *People v De Marco*, 33 AD3d 1045; *People v Caban*, 5 NY3d 143.) VI. The lower court erred by permitting the prosecution to present evidence that appellant remained silent prior to his arrest. (*People v Knowles*, 42 AD3d 662.)

P. David Soares, District Attorney, Albany (Emily Schultz of counsel), for respondent. I. There was no actual or potential conflict of interest. (*People v Ortiz*, 76 NY2d 652; *Wood v Georgia*, 450 US 261; *People v Solomon*, 20 NY3d 91; *People v Brown*, 33 NY3d 983; *People v Wright*, 27 NY3d 516.) II. Supreme Court properly denied severance. (*People v Mahboubian*, 74 NY2d 174; *People v Lakatosz*, 59 AD3d 813; *People v Thompson*, 79 AD3d 1269; *People v Sumpter*, 191 AD3d 1160, 37 NY3d 968; *People v Hunt*, 39 AD3d 961.) III. The evidence was legally sufficient and the verdict was not against the weight of the evidence. (*People v Kancharla*, 23 NY3d 294; *People v Cabey*, 85 NY2d 417; *People v Cintron*, 95 NY2d 329; *People v Bierenbaum*, 301 AD2d 119, 99 NY2d 626; *People v Bleakley*, 69 NY2d 490.) IV. The lower court correctly held, following a *Massiah/Cardona* hearing, that the jailhouse informants were not agents of the government; therefore their testimony was admissible. (*People v Johnson*, 303 AD2d 830; *People v Corse*, 73 AD3d 1208; *People v Bradford*, 15 NY3d

329; *People v Konstantinides*, 14 NY3d 1.) V. Counsel provided meaningful representation. (*People v Ford*, 110 AD3d 1368; *People v Bush*, 107 AD3d 1302; *People v Arnold*, 96 NY2d 358.) VI. Supreme Court properly allowed the evidence. (*People v Knowles*, 42 AD3d 662.)

OPINION OF THE COURT

HALLIGAN, J.

The defendant raises various challenges to his convictions for two counts of murder in the second degree and two counts of tampering with physical evidence. We conclude that the trial court did not err in denying the defendant's motion to sever the charges relating to each murder from each other. With respect to the improper, undisclosed business relationship between the defendant's trial counsel and an assistant district attorney (ADA) involved in the defendant's prosecution, the record supports the trial court's determination that although this arrangement created a potential conflict of interest, it did not operate on the defense and thus did not require vacatur of the conviction. As to the defendant's remaining claims, we conclude that they are either without merit or unreviewable, and affirm.

I.

This appeal arises from Edward Mero's convictions for two separate murders, committed almost two years apart and tried together. The first victim was the defendant's roommate, who was found dead in their shared apartment in 2013 after a fire that occurred under circumstances that later raised questions about her cause of death. The second victim was a woman whom defendant had hired to go on a date with him in December 2014; her body was found in a shallow grave in May 2015. The defendant was arrested in 2017 and charged with two counts of murder in the second degree and two related counts of tampering with physical evidence.

The charges were joined in a single indictment, and the defendant moved to sever them pursuant to CPL 200.20 (3). He argued that the cases "could not be any more different" because the victims were unrelated and their deaths occurred nearly two years apart under dissimilar circumstances, that his defenses for each would be different, and that the evidence against him for each murder was "underwhelming." The trial court denied the motion, explaining that the distinct evidence

relating to each murder would enable the jury to consider separately the proof for each charge, and joinder thus would not unduly prejudice the defendant. The jury convicted the defendant of both murders and the associated tampering charges.

During trial, defense counsel reported an incident to the trial court that ultimately resulted in dismissal of a juror. Counsel explained that a juror had been present during a “boisterous” and “inflammatory” conversation in the courthouse lobby. She admitted to the court that she had made “derogatory comments” about her client.¹ The parties agreed to strike the juror.

In December 2019, the defendant moved to vacate his convictions under CPL 440.10, arguing that his trial counsel and the ADA who prosecuted him had an improper business relationship that constituted a conflict of interest. A hearing revealed that the defendant’s trial counsel had paid the ADA to write several briefs for her clients over a four-year period. The trial court denied the motion to vacate, concluding that although there was a potential conflict of interest, it did not operate on the defense (*see* 2020 NY Slip Op 30669[U] [Sup Ct, Albany County 2020]).

The defendant appealed the judgment of conviction and sentence and the order denying his CPL 440.10 motion, claiming, among other things, that the trial court abused its discretion in denying the motion to sever and erred in denying the motion to vacate due to a conflict of interest.

The Appellate Division affirmed the judgment and the order. On severance, the Court reasoned that the defendant’s characterization of the evidence for each murder as “underwhelming” belied any suggestion that proof of one murder was more significant than proof of the other, and that the defendant’s argument that the crimes “could not be any more different” refuted his contention that the jury would struggle to consider them separately (*see* 221 AD3d 1242, 1250 [3d Dept 2023]). The Appellate Division agreed with the trial court that the potential conflict of interest did not operate on the defense and rejected the defendant’s other challenges to the conviction.

Two Justices dissented with respect to severance, taking the view that the proof of the second murder was “significantly more abundant in quantity and significant in scope” than the

1. During posttrial proceedings, counsel denied participating in the exchange and asserted she was merely present for the comments.

proof relating to the first murder (*id.* at 1253 [Reynolds Fitzgerald, J., dissenting in part]). The dissenting Justices concluded that, even with limiting instructions, the jury would likely “focus on the abhorrent common nature of the crimes,” rather than “the fundamental differences of proof” (*id.*). A dissenting Justice granted leave to appeal (40 NY3d 1095 [2024]), and we now affirm.

II.

We begin with the defendant’s motion to sever the charges related to the first murder from those related to the second murder. CPL 200.20 (2) (c) allows joinder of offenses “based upon different criminal transactions” that “are defined by the same or similar statutory provisions and consequently are the same or similar in law” (CPL 200.20 [2] [c]). There is no dispute that joinder of the offenses under this provision was proper in the first instance. The defendant was charged with two counts of murder in the second degree and two corresponding counts of tampering with physical evidence, and acknowledged that joinder was “permissible” in moving to sever. Additionally, there were several overlapping witnesses who testified regarding both murders, namely the medical examiner and a jailhouse informant to whom the defendant had confessed committing both murders.

Where counts have been joined under CPL 200.20 (2) (c), the CPL provides that the trial court has discretion to sever them if doing so would be “in the interest of justice and for good cause shown” (*id.* § 200.20 [3]). This provision has its origins in a 1936 amendment to the Code of Criminal Procedure that allowed joinder of “two or more acts or transactions constituting crimes of the same or a similar character which are neither connected together nor parts of a common scheme or plan” (Code Crim Pro § 279 [eff 1936]).

The statute specifies two situations that establish good cause: first, where there is “[s]ubstantially more proof on one or more such joinable offenses than on others and there is a substantial likelihood that the jury would be unable to consider separately the proof as it relates to each offense”; and second, where there is “[a] convincing showing that a defendant has both important testimony to give concerning one count and a genuine need to refrain from testifying on the other, which satisfies the court that the risk of prejudice is substantial” (CPL 200.20 [3] [a], [b]). The statute expressly notes that good cause is not limited

to these grounds (*see id.* § 200.20 [3]), and we have explained that “a defendant’s fundamental right to a fair trial free of undue prejudice” must be protected when offenses are joined for trial (*People v Lane*, 56 NY2d 1, 8 [1982]). Denial of a defendant’s motion to sever is reviewed for abuse of discretion (*see People v Ford*, 11 NY3d 875, 879 [2008]).

The defendant’s arguments before us on severance are cursory, and primarily summarize the points made by the Appellate Division dissent. The defendant asserts that “the jury was incapable of considering the proof separately with respect to each offense” because the proof of each crime was “markedly different” and “dissimilar.” But that is generally true whenever offenses are joined pursuant to CPL 200.20 (2) (c), and the key question is whether it would be difficult for the jury to consider separately the proof for each offense, a point we address below.

[1] The defendant does not show there was “[s]ubstantially more proof” of the first offense than the second (CPL 200.20 [3] [a]). Rather, he characterized the amount of proof for each as *similarly* “underwhelming,” and asserted that there was a “clear danger” the jurors would treat the evidence cumulatively because of the “abhorrent nature of the allegations.” Even if we were to accept that characterization of the evidence, the question, again, is whether the jury would find it difficult to segregate the proof for each set of offenses (*see Ford*, 11 NY3d at 879; *United States v Werner*, 620 F2d 922, 929 [2d Cir 1980] [despite the risk that juries may use evidence cumulatively where charges are joined for trial, “‘the objection disappears’” provided that “‘the accused’s conduct on several separate occasions can properly be examined in detail’” and “‘the only consideration is whether the trial as a whole may not become too confused for the jury’” (quoting *United States v Lotsch*, 102 F2d 35, 36 [2d Cir 1939, L. Hand, J.]])).

As both the trial court and the Appellate Division concluded, the defendant did not make that showing here. The trial court gave thorough instructions to the jury, once before trial began, once before jury deliberation began, and once in response to a note requesting a readback of the instructions.² Absent evidence to the contrary, we assume the jurors followed these

2. The court instructed as follows:

“Now, you have observed that the People have joined in this single indictment two separate and distinct cases: On or about January 27, 2013; and on or about December 3, 2014. Now, these

(n. cont’d)

instructions (see *People v Stone*, 29 NY3d 166, 171 [2017]; see also *People v Adames*, 42 AD3d 328, 329 [1st Dept 2007] [(“T)he court’s jury instructions were sufficient to prevent the evidence of (one) incident from having any prejudicial effect with respect to the (joined) incident”]; cf. *People v Davis*, 225 AD3d 62, 75 [1st Dept 2024] [(“I)t cannot be fairly said that the evidence was easily segregable in the minds of the jurors where the trial court failed to give a limiting instruction to that effect” (internal quotation marks and citation omitted)]).³ Given the facts presented here, the defendant failed to demonstrate “a substantial likelihood that the jury would be unable to consider separately the proof as it relates to each offense” (CPL 200.20 [3] [a]).⁴

The defendant and Judge Rivera in dissent suggest that joinder inevitably prejudiced the defendant given the “heinous” nature of the charged crimes (Rivera, J., dissenting op at 438).

cases are joined in a single indictment for reasons that do not concern you.

“The fact that a defendant is charged with one crime constitutes no proof that he committed another crime also charged in a single indictment. You are instructed to segregate and to keep separate in your minds the evidence applicable to each of the cases presented to you.

“You may not infer guilt on one accusation simply because there is another accusation as well, nor may you make any negative inference because the defendant has been twice accused. You are to vote on each case separately and solely on the basis of the evidence applicable to that case.

“Proof on one case must not be considered as proof in the other case. It is your obligation to evaluate the evidence as it applies or fails to apply to each case separately. Each instruction on the law must be considered by you as referring to each case separately. You must return a separate decision for each case, and those decisions may be but need not be the same. It is your sworn duty to give separate consideration to each individual case.”

3. *People v Stanard* (32 NY2d 143 [1973]), on which Judge Rivera in dissent relies (see Rivera, J., dissenting op at 439), does not suggest otherwise. That case had nothing to do with severance, and our fact-specific holding that an instruction would not cure a combination of extensive testimony on unrelated criminal activity and a prosecutor’s improper suggestion that the defendant could be held accountable for that conduct (see *Stanard*, 32 NY3d at 148) does not bear on whether the jurors here could segregate the proof for the two murders.

4. The jury notes, which requested a readback of the medical examiner’s testimony only as it related to the second victim, and days later, the testimony regarding only the first victim, confirm that the jury did consider separately the proof for each offense.

However, the defendant points to nothing akin to the “unique” and “peculiar” context in *People v Shapiro* that mandated severance—circumstances that included what this Court termed “aberrant sexual practices,” the aggregation of 64 counts of one offense with two counts of other, more serious offenses, and a request by the defendant to testify regarding one set of offenses, but not the other (50 NY2d 747, 755-756 [1980]). Moreover, we note that the Appellate Division Departments have permitted joinder of homicides on numerous occasions (see e.g. *People v Bonner*, 94 AD3d 1500, 1501 [4th Dept 2012]; *People v Perez*, 47 AD3d 409, 411 [1st Dept 2008]; *Adames*, 42 AD3d at 329; *People v Oliveira*, 2 AD3d 122, 123 [1st Dept 2003]), and nothing in our case law suggests joinder is impermissible solely because of the nature of the crime.

None of the other factors to which Judge Rivera points indicates that the trial court abused its discretion in declining to sever (see Rivera, J., dissenting op at 437-439). The dissent notes the People’s statement at oral argument that proof of the second murder was stronger than proof of the first (see *id.* at 437-438), but proof of joined offenses will rarely be identical in strength. Additionally, CPL 200.20 (3) (a) provides for severance if the jury cannot segregate proof—a showing which, as noted, was not made here. The dissent describes the trial as “complex” (Rivera, J., dissenting op at 439), but that does not mean the jury could not segregate the evidence of each charge.

Finally, both dissents make sweeping contentions regarding the CPL’s joinder and severance provisions. Judge Rivera takes the view that “wholly unrelated offenses” cannot be joined “because of the inherent prejudice to a defendant from propensity evidence” (Rivera, J., dissenting op at 435; see also *id.* at 435 n 1). But joinder of factually unrelated offenses does not necessarily present a greater risk of prejudice than joinder of factually related offenses (see e.g. *People v Forest*, 50 AD2d 260, 262 [1st Dept 1975] [risk of “conviction by reason of . . . cumulative effect” required severance where “all three crimes (were) of a similar nature”]; cf. *Herring v Meachum*, 11 F3d 374, 378 [2d Cir 1993] [(B)ecause the evidence with respect to each murder was distinct and easily compartmentalized, the risk of jury confusion at petitioner’s trial was significantly limited]). The Chief Judge would go even further, saying that offenses may be joined under CPL 200.20 (2) (c) only if all the evidence of one offense would be admissible in the case in chief of the other (see Wilson, Ch. J., dissenting op at 419). But the

Legislature addressed joinder under this circumstance when it enacted CPL 200.20 (2) (b), which authorizes joinder of cases in which “proof of the first offense would be material and admissible as evidence in chief upon a trial of the second” (or vice versa) (CPL 200.20 [2] [b]). In any event, all that is before us are the arguments raised by the defendant, who did not contest that CPL 200.20 (2) (c) authorized joinder in the first instance and does not press the dissents’ various points about legislative history or critiques of our joinder scheme.

Accordingly, we hold that the trial court did not abuse its discretion in denying the defendant’s motion to sever the charges against him.

III.

[2] The defendant argues that the improper business relationship between his defense counsel and an ADA who was prosecuting him created an impermissible conflict of interest that required vacatur of his conviction. He first contends that the arrangement created an actual conflict of interest, which requires reversal if not waived (*see People v Solomon*, 20 NY3d 91, 95 [2012]). Such a conflict arises when an attorney “has divided and incompatible loyalties within the same matter necessarily preclusive of single-minded advocacy” (*People v Brown*, 33 NY3d 983, 987 [2019] [brackets and internal quotation marks omitted]). That is not what occurred here. The ADA was paid for drafting four appellate briefs and a motion for a change of venue in other cases litigated outside of the county where this prosecution took place. The record indicates that the work was performed on nights and weekends, without access to defense counsel’s office or files.

The defendant also argues, in the alternative, that the arrangement created a potential conflict of interest necessitating reversal. We have held that reversal of a conviction is required if a defendant shows that a potential conflict actually operated on the conduct of his defense (*see People v Sanchez*, 21 NY3d 216, 223 [2013]). Evidence that unconflicted counsel would have acted in a “more vigorous, less inhibited manner” may establish this point (*People v Harris*, 99 NY2d 202, 211 [2002]). The inquiry presents a mixed question of law and fact, and thus we will reverse only if the Appellate Division’s determination lacks record support (*see People v Ennis*, 11 NY3d 403, 411 [2008]).

We certainly do not condone the conduct of trial counsel. But the trial court characterized defense counsel’s advocacy as

“meaningful” and “zealous[] and effective[]” notwithstanding the incident that led to the removal of the juror within earshot of the disparaging comments about the defendant (2020 NY Slip Op 30669[U], *11-12, *19). The juror was dismissed with the consent of all parties, and no other jurors heard the remarks. The defendant has produced no evidence suggesting the business conflict had anything to do with the removal of the juror, or that it otherwise operated on his defense.

Nor is the conflict here akin to that in *People v Shinkle* (51 NY2d 417 [1980]). There, the defendant’s attorney left his position with the Legal Aid Society in the months preceding the defendant’s trial and joined the District Attorney’s office in a senior leadership position (*id.* at 419-420). We held that the resulting “unmistakable appearance of impropriety” and “continuing opportunity for abuse of confidences” was significant enough to disqualify the entire District Attorney’s office from handling the prosecution (*id.* at 420). Indeed, this Court noted that the attorney had extensively interviewed the defendant, “was intimately familiar with the contents of his file, and assisted in the formulation of defense strategy” (*id.* at 419). The circumstances here are different. The prosecutor here never represented the defendant, and the record indicates that defense counsel did not share information or confidences with the prosecutor regarding the defendant. The defendant’s reliance on *People v Wandell* is similarly misplaced (75 NY2d 951 [1990 mem]). We limited our holding to the unique circumstances presented there: the concurrent representation of a defendant and the People’s chief witness against him, following a reversal in a prior case for a similar omission by the same attorney (*see id.* at 952).

The defendant’s remaining claims are meritless. First, the defendant argues that he was deprived effective assistance of counsel, noting defense counsel’s conflict of interest, the incident that led to the removal of a juror, and various other points about trial strategy. As the trial court explained, the disparaging comments made in the courtroom lobby “clearly operated on the defense of the case” to the extent it resulted in the dismissal of a juror (2020 NY Slip Op 30669[U], *19). But the court also determined that this incident was unrelated to the potential conflict of interest between defense counsel and the ADA, that the ADA “was not present during the lobby fiasco,” and that there was “no causal relationship between [defense counsel’s] disparaging remarks and the business rela-

tionship with [the ADA]" (*id.*). The trial court further held that defense counsel provided meaningful representation and was detailed in her work. The defendant makes several other claims about the performance of his trial counsel, including the decision to forgo calling several witnesses and not to investigate a claim about a trooper's offhand remark. But the defendant failed to demonstrate that these decisions were not strategic.

Second, the defendant argues that his convictions are unsupported by legally sufficient evidence, but the record refutes this claim. As to the first murder, the evidence at trial showed that the defendant and the victim had a loud argument the night she died, the victim's body showed signs she was dead before the fire started, the defendant bragged to coworkers about his ability to get rid of a body by arson and offered contradictory alibi statements to the police, and a jailhouse informant testified that the defendant confessed the murder and arson to him. With respect to the second murder, the evidence showed that defendant was the last person to see the victim, was one of few people with access to the property on which her body was found, got rid of his car shortly after the victim disappeared, implicated himself in an interview with police, and confessed to two jailhouse informants who testified to specific details of the murder.

Third, the defendant contends that two men he met in jail, each of whom testified at trial that the defendant had confessed to one or both of the murders, were acting as agents of the State and their statements should therefore have been suppressed. As the Appellate Division correctly noted, a defendant must be able to show that the State was "actively involved in, or even encouraged" the decision to volunteer the statements (221 AD3d at 1248 [internal quotation marks omitted]). The record lacks evidence to that effect.

Fourth, the defendant argues that admission of a text message and a short colloquy with investigators constituted an impermissible comment on defendant's invocation of his right to silence. Without considering the merits of this claim, we conclude that any error was harmless given the court's curative instruction (*cf. People v McLean*, 243 AD2d 756, 756-757 [3d Dept 1997]). Finally, the defendant's weight of the evidence claim is unreviewable in this Court (*see People v Bleakley*, 69 NY2d 490, 495 [1987]; *People v Danielson*, 9 NY3d 342, 349 [2007]).

Accordingly, the order of the Appellate Division should be affirmed.

Chief Judge WILSON (dissenting). I agree with my dissenting colleague that our fundamental prohibition on convictions based on propensity requires us to reverse and remit for two separate trials. I write separately because, where two unrelated crimes are charged, our *Molineux* doctrine must take precedence over administrative convenience. I therefore interpret CPL 200.20 (3) as incorporating the *Molineux* rule by requiring severance unless the evidence from each of the joined charges would fit under a *Molineux* exception.

It is helpful to think of this case in terms of *Molineux*. Mr. Mero was tried jointly for the murders of two young women. One woman was buried in a shallow grave; her badly decomposed body showed that she had suffered significant blunt force trauma to her head and face. The other young woman was Mr. Mero's roommate. Her badly charred body was recovered after a fire in their shared apartment, where Mr. Mero had been hours earlier; the body showed no signs of smoke inhalation, suggesting she was dead before the fire began.

Suppose, for a moment, that Mr. Mero had first been tried separately for the murder of the woman found in a shallow grave. Whether he had been convicted or acquitted of that murder, our *Molineux* rule would have prevented the introduction of the evidence against him, the fact of conviction (or acquittal), or the fact of arrest, from introduction in a separate trial for the murder of his roommate. The same would be true if he had been tried first, separately, for the murder of his roommate. There is no argument that any *Molineux* exception applies here. The efficiency arguments, such as they are, are that the same medical examiner and jailhouse informant were involved in both cases. But our *Molineux* doctrine does not allow the convenience of witnesses to overcome Mr. Mero's right to a fair trial.

It is also worth thinking about the following question: why did the People want to try these two unrelated crimes together? If the evidence for each crime was very strong, the People should have wanted two chances—with two separate juries—to put Mr. Mero away for 25 to life. It is only if the evidence for one or both was not very strong that the People would sacrifice two bites at the apple for one. That is precisely what our *Molineux* rule prevents.

I.

I begin from the same well-established premise as Judge Rivera: a defendant may not be convicted on evidence of criminal propensity (*People v Molineux*, 168 NY 264, 291 [1901]). We do not permit proof of guilt based on prior bad acts or prior convictions, except in very limited circumstances, such as to prove identity where the similarities between two offenses are “unusual enough to compel the inference that the defendant committed both” and identity is not otherwise conclusively established (*People v Agina*, 18 NY3d 600, 603 [2012], quoting *People v Beam*, 57 NY2d 241, 251 [1982]), or to prove intent “when proof of the act falls short of demonstrating that the defendant acted with a particular state of mind and where proof of a prior act is relevant to that issue” (*People v Alvino*, 71 NY2d 233, 242 [1987]). Unless a *Molineux* exception applies, the defendant’s guilt must be proved by evidence related to the charged crime only. Based on that fundamental rule, we have repeatedly held that evidence of past crimes is inadmissible unless it serves a non-propensity purpose, and its probative value outweighs the risk of prejudice (see e.g. *People v Weinstein*, 42 NY3d 439, 458 [2024]). Like Judge Rivera, I believe that CPL 200.20 (2) (c), which permits joinder of offenses defined by the same or similar statutory provisions, creates the clear risk of convictions based on propensity.

I depart from my dissenting colleague in my analysis of how the *Molineux* rule should inform our reading of CPL 200.20 (3), which gives courts the authority to sever offenses “in the interest of justice and for good cause shown.” Judge Rivera would hold that trial courts abuse their discretion in denying severance where joinder “carries[s] significant risks that the jury would determine guilt based on the appearance of defendant’s criminal disposition and . . . the evidence of guilt on one . . . count[] would spill over and bolster the evidence of the other,” and those risks cannot be overcome (Rivera, J., dissenting op at 430). In applying that rule, she suggests that “considerations of judicial economy” may sometimes justify joinder of offenses (*id.* at 440). In my view, there is no place for such considerations in our analysis. The provisions at issue here were intended to give the State the tools it needed to fight organized crime by allowing prosecutors to join a defendant’s interrelated offenses for trial. Nothing in the legislative history indicates a desire to erode the *Molineux* rule, which was deeply entrenched by the time these provisions were enacted. I would therefore apply

our *Molineux* jurisprudence to hold that good cause to sever exists as a matter of law where, as here, there is no non-propensity purpose for which evidence of one offense could be admitted at the trial of the other. Good cause would also exist where the risk of prejudice outweighs the probative value of joinder.

II.

“[I]n matters of statutory . . . interpretation, ‘legislative intent is the great and controlling principle, and the proper judicial function is to discern and apply the will of the enactors’” (*Matter of Sedacca v Mangano*, 18 NY3d 609, 615 [2012] [brackets omitted]). In 1936, when the legislature enacted the provisions at issue here, the *Molineux* rule was already recognized as fundamental to New York law. We do not construe statutes to derogate the common law unless they do so clearly.¹ Here, neither the text nor the legislative history of CPL 200.20 (2) (c) and (3) indicates that the legislature intended to displace *Molineux*. Instead, the “good cause” provision is best read to incorporate the *Molineux* rule to require severance where evidence of one offense would not be admissible to prove the defendant’s guilt of the other.

A.

It is a fundamental principle of our justice system that a person is presumed innocent until proven guilty. We have long recognized that the presumption of innocence means that the State may not introduce evidence of a past crime as proof of a person’s criminal propensity (*People v Molineux*, 168 NY 264, 291 [1901]; see also *People v Arafet*, 13 NY3d 460, 465 [2009] [“The point of *Molineux* is to prevent a jury from convicting a defendant because of his criminal propensity”]). The *Molineux* rule “serves as a judicial bulwark against a guilty verdict based on supposition rather than proof, on ‘collateral matters or . . . because of [a defendant’s] past’ or on the defendant’s ‘bad character’ alone” (*Weinstein*, 42 NY3d at 455, quoting *People v Alvino*, 71 NY2d 233, 241 [1987]).

1. *Molineux* has both a common-law and a constitutional dimension; our more recent *Molineux* jurisprudence makes clear that *Molineux* is grounded in the constitutional right to a fair trial (e.g. *People v Telfair*, 41 NY3d 107, 117 [2023] [“(C)onsistent with our duty to safeguard the rights of criminal defendants to a fair trial, we have reversed in numerous cases when *Molineux* evidence was improperly admitted”]).

The “time-tested rule against propensity evidence” (*id.*) substantially predates the legislature’s enactment, in 1936, of the joinder and severance provisions at issue here. In 1901, we described the *Molineux* rule as “universally recognized and . . . firmly established in all English-speaking lands, . . . rooted in that jealous regard for the liberty of the individual which has distinguished our jurisprudence from all others, at least from the birth of the Magna Charta” (*People v Molineux*, 168 NY 264, 291 [1901]). *Molineux* quoted our 1873 decision in *Coleman v People*, where we explained:

“It would be easier to believe a person guilty of one crime if it was known that he had committed another of a similar character, or, indeed, of any character; but the injustice of such a rule in courts of justice is apparent. It would lead to convictions, upon the particular charge made, by proof of other acts in no way connected with it, and to uniting evidence of several offenses to produce conviction for a single one” (*id.* at 292, quoting *Coleman v People*, 55 NY 81, 90 [1873]).

As we recognized in 1901, there are exceptions to the broad rule that evidence of one crime may not be introduced in a prosecution for another. Evidence may be relevant, for example, to establish motive, intent, the absence of mistake or accident, a common scheme, or identity (*id.* at 293). Where evidence of other crimes is relevant to “some issue, *other than mere criminal propensity*,” and its “probative value exceeds the potential for prejudice resulting to the defendant,” it may be admitted (*Weinstein*, 42 NY3d at 458, quoting *People v Hudy*, 73 NY2d 40, 55 [1988], and *People v Alvino*, 71 NY2d 233, 242 [1987]).

“The Legislature . . . is presumed to be aware of the common law” (*Gletzer v Harris*, 12 NY3d 468, 476-477 [2009], citing McKinney’s Cons Laws of NY, Book 1, Statutes § 301 [a]). We therefore strictly construe statutes in derogation of the common law, and common-law rules “are to be no further abrogated than the clear import of the language used in the statute” (*Matter of Midland Ins. Co.*, 16 NY3d 536, 547 [2011], quoting *Transit Commn. v Long Is. R.R. Co.*, 253 NY 345, 355 [1930]; see also McKinney’s Cons Laws of NY, Book 1, Statutes § 301 [a]; *Oden v Chemung County Indus. Dev. Agency*, 87 NY2d 81, 86 [1995]; *Matter of Excelsior Pictures Corp. v Regents of Univ of State of N.Y.*, 3 NY2d 237, 245 [1957]). This presumption extends to statutes that derogate from the common-law

rules of evidence (McKinney's Cons Laws of NY, Book 1, Statutes § 305).

The *Molineux* rule was firmly established in our jurisprudence long before the legislature enabled the joinder of offenses for trial in 1936. Our pre-1936 decisions lead inexorably to the conclusion that joinder of offenses—especially offenses of the same nature—may lead to convictions based on criminal propensity. Recall that our 1873 decision in *Coleman* explained that “[i]t would be easier to believe a person guilty of one crime if it was known that he had committed another of a similar character, or, indeed, of any character” (55 NY at 90).

CPL 200.20 (2) (c)—the provision under which the charges against Mr. Mero were joined—makes offenses joinable when they are “defined by the same or similar statutory provisions and consequently . . . the same or similar in law.” To address the potential for prejudice arising from joinder of unrelated offenses, CPL 200.20 (3) provides that when offenses are joined under subdivision (2) (c), the court may, “in the interest of justice and for good cause shown . . . in its discretion, order that any such offenses be tried separately.”

We must presume that in enacting section 279 of the Code of Criminal Procedure—the precursor to CPL 200.20—the legislature was aware of the *Molineux* rule. I therefore would not construe CPL 200.20 to derogate from the common law unless the “clear import” of the language requires it. Nothing in the language or the legislative history of CPL 200.20 suggests that the legislature wanted us to depart from the *Molineux* rule in determining when good cause exists to sever offenses of the same kind joined for trial. In fact, the legislative history of CPL 200.20 (2) (c) and (3) supports the conclusion that the legislature intended to enable joinder of *interrelated* offenses for the specific purpose of enabling prosecutors to combat organized crime.

B.

CPL 200.20 (2) (c) and (3) were enacted to enable the State to successfully prosecute organized crime. In 1936, Thomas E. Dewey, then the Special Prosecutor for racketeering and organized crime in New York County, proposed legislation that

would permit courts to join multiple offenses in one trial.² That legislation created section 279 of the Code of Criminal Procedure—the predecessor to CPL 200.20 (2) (c) and (3). In his memorandum to Governor Lehman, Dewey explained the problem section 279 was intended to solve:

“More than a century ago, when the State criminal procedure was established, the criminal problem was simple, crime was isolated and organized crime unknown. . . .

“Today, as you well know, crime is syndicated and organized. . . . Seldom, if ever, does any major criminal commit any crime under circumstances in which apprehension is possible. Only the tool commits the extortion, the assault, the stench bomb throwing or the acts of coercion; and if he be convicted there are a hundred others to take his place while the major criminal enterprise goes on without interruption. The only way in which the major criminal can be punished is by connecting to him, through various layers of subordinates, the related but separate crimes committed on his behalf.”

(Mem from Thomas E. Dewey to Governor Herbert H. Lehman, Bill Jacket, L 1936, ch 328 at 6.)

He wrote that New York law—which prohibited joinder “except in a conspiracy, which is a mere misdemeanor”—created “a procedural strait-jacket . . . Though the organization is conceived and functions to prey upon hundreds of men in the same status, each of its offenses must at present be tried separately before a separate court and a separate jury” (*id.* at 6-7).

In fact, according to former Judge George Medalie, Mr. Dewey had a very specific “major criminal” in mind when he proposed section 279: Lucky Luciano. In a 1941 meeting of the Federal Advisory Committee on Rules of Criminal Procedure, Judge Medalie told his fellow committee members that the New York statute “was really prepared with a view to Lucciano [sic]” (Minutes of Advisory Comm on Rules of Crim Pro [1941], Part 3, at 529-530, https://www.uscourts.gov/sites/default/files/fr_import/CR09-1941-min-Part3.pdf.pdf).

2. The relevant provisions were originally enacted as section 279 of the Code of Criminal Procedure. In early versions of the Criminal Procedure Law, section 279 of the Code became section 100.20. When the new CPL was enacted in 1970, section 279 became CPL 200.20.

Governor Lehman recommended the bill's passage in a special message to the Legislature in which he read Mr. Dewey's memorandum in its entirety. In addition to repeating Mr. Dewey's warnings about the rise of organized crime, Governor Lehman added his own. He explained that the existing rules "frequently hampered" efforts to "combat the highly organized criminal groups of today," and that the changes would "permit police and prosecutors to convict the 'higher-ups' in racketeering activities," who are "the really dangerous and despicable enemies of society" (Governor's Mem, Bill Jacket, L 1936, ch 328 at 9).

Neither the Governor nor Special Prosecutor Dewey cited judicial efficiency as a freestanding goal. To the extent Mr. Dewey referenced efficiency at all, he did so in the specific context of organized crime prosecutions, writing:

"Aside from the great advantage which this procedure gives to professional criminals, the expense to the People in separately prosecuting the separate *but interrelated offenses* of the single criminal organization is very great. The People should not be compelled to suffer such expense and delay where a single criminal racket is on trial" (Mem from Thomas E. Dewey to Governor Herbert H. Lehman, Bill Jacket, L 1936, ch 328 at 7 [emphasis added]).

Not only does Mr. Dewey's reference to efficiency underscore the centrality of organized crime prosecutions to the enactment of section 279, it also explicitly highlights that the efficiency arose from the joint prosecution of "interrelated" offenses—not from trying unrelated offenses together.

The other reference to efficiency in the legislative history is a Bar Association letter recommending passage of the bill. Like Mr. Dewey, the Bar Association argued that prosecuting "similar or connected offenses" together would increase judicial efficiency—there was no attempt to justify joining completely unrelated crimes (Letter from NY St Bar Assn, Bill Jacket, L 1936, ch 328 at 14). The Bar Association's letter explained that the existing rules were "defective" because "in any *complicated situation involving the commission of more than one crime*, although there be a common intent or motive, the propriety of joining the various crimes thus committed is a matter of some doubt" (*id.* at 13 [emphasis added]). Both Mr. Dewey's memorandum and the Bar Association's letter describe situations that fit within a *Molineux* exception. There is no reason to think the legislature meant to do more than that.

Nor does the legislative history's reference to the federal rules support justifying joinder of offenses on the basis of judicial economy. Section 279 of the Code of Criminal Procedure was, in part, modelled on the federal rules for joinder. But in 1936, the federal rules included no "good cause" provision. At that time, federal law permitted joinder of offenses "[w]hen there are several charges against any person for the same act or transaction, or for two or more acts or transactions connected together, or for *two or more acts or transactions of the same class of crimes or offenses*, which may be properly joined" (18 USC 557 [1934] [emphasis added]).³ The federal statute did not provide for severance upon a showing of good cause.

Contemporaneous federal case law supports the argument that federal law did not permit joinder when it would be inconsistent with fundamental rules protecting the rights of defendants. U.S. Supreme Court jurisprudence required trial courts to "determine whether, in a given case, a joinder . . . is consistent with the settled principles of criminal law" (*Pointer v United States*, 151 US 396, 400 [1894]), including the "fundamental . . . principle" that "the court must not permit the defendant to be embarrassed in his defence by a multiplicity of charges embraced in one indictment and to be tried by one jury" (*id.* at 403). In *Pointer*, "[t]here was such close connection between the two killings, in respect of time, place, and occasion, that it was difficult, if not impossible, to separate the proof of one charge from the proof of the other" (*id.* at 404). The Court held that in light of the connection between the two jointly tried murders it was "clear that the accused was not confounded in his defence . . . and that his substantial rights were not prejudiced" by consolidation (*id.*). When the Federal Rules of Criminal Procedure came into effect in 1944, they included a provision granting the trial court authority to sever "[i]f the joinder of offenses . . . appears to prejudice a defendant or the government" (Fed Rules Crim Pro rule 14 [a]). The 1944 Advisory Committee on Rules of Criminal Procedure cited *Pointer* to explain rule 14 (Notes of Advisory Comm on Rules [1944], Fed Rules Crim Pro rule 14).

Subsequent legislative history does not change that analysis. In 1970, when New York adopted the new Criminal Procedure

3. Today, rule 8 (a) of the Federal Rules of Criminal Procedure allows joinder "if the offenses charged—whether felonies or misdemeanors or both—are *of the same or similar character*, or are based on the same act or transaction, or are connected with or constitute parts of a common scheme or plan" (Fed Rules Crim Pro rule 8 [a]).

Law recommended by the Bartlett Commission, section 279 became CPL 200.20. The Bartlett Commission explained that section 200.20 “substantially restate[d]” existing law (Staff Comment of Temp St Commn on Rev of Penal Law & Crim Code, 1967 Proposed NY CPL 100.20 at 173). With respect to the requirements for severance, a staff comment to the 1967 proposed draft explained:

“The proposed draft, like the existing Criminal Code, is not inattentive to the possibility of prejudice when offenses are joined or consolidated *solely* because they are ‘of the same or a similar character’ (§ 100.20 [2(d)]). It expressly provides that in such instance (for example, two separate robberies), the trial court, in the interest of justice and for good cause shown, may in its discretion order [severance]” (*id.*).

Although section 200.20 underwent some revisions between 1967 and 1970,⁴ the good cause provision did not change.

The legislative history fully supports reading CPL 200.20 (3) to incorporate our longstanding prohibition on the admission of propensity evidence. It does not suggest that judicial economy can outweigh the risks of prejudice that come with the joinder of unrelated offenses for trial.⁵

4. The 1967 version of CPL 200.20 (2) (c) permitted joinder of multiple “offenses of the same or a similar character,” copying section 279. In 1968, that became “defined by the same or similar statutory provisions and consequently . . . of the same or a similar legal character” (Temp St Commn on Rev of Penal Law & Crim Code, 1968 Proposed NY CPL 100.20 [2] [c] at 88). In 1969, “of the same or a similar legal character” became “the same or similar in law” (Temp St Commn on Rev of Penal Law & Crim Code, 1969 Proposed NY CPL 200.20 [2] [c] at 115).

5. Judicial economy is not unimportant, but it does not allow us to shortchange the right to a fair trial. We have, for example, highlighted the value of efficiency in the context of joinder of defendants for trial. In *People v Mahboubian*, we were asked to determine whether a joint trial of two defendants accused of jointly orchestrating a “staged theft of Persian antiquities” was proper (74 NY2d 174, 180 [1989]). In that context, we held that “a strong public policy favors joinder, because it expedites the judicial process, reduces court congestion, and avoids the necessity of recalling witnesses” (*id.* at 183). Our holding in *Mahboubian* is not relevant here. First, the statutory provisions providing for joinder of defendants were enacted at a different time, through different legislation. Unlike the provisions governing joinder of offenses, which were created in 1936, the provisions governing joinder of defendants were created by the Bartlett Commission in the late 1960s. A staff

(n. cont’d)

III.

Reading the *Molineux* rule into CPL 200.20 (3) is consistent with the statutory context, and in particular with CPL 200.20 (2) (b). Subdivision (2) (b) permits joinder where “proof of the first offense would be material and admissible as evidence in chief upon a trial of the second” or vice versa. On first glance, incorporating *Molineux* into CPL 200.20 (3) might seem inconsistent with the existence of subdivision (2) (b). But CPL 200.20 (2) (b) reaches offenses that would not be joinable under subdivision (2) (c). Imagine, for example, charges for tax fraud and murder, where the tax fraud occurred years before the murder, but the prosecution argued that the murder victim was killed for threatening to reveal the fraud. Those offenses would not be joinable as arising from the same transaction, or as involving the same legal provisions. But they would be joinable under subdivision (2) (b) if evidence of the fraud were admissible to prove motive for the murder. Interpreting good cause under section 200.20 (3) to incorporate the *Molineux* rule would not, therefore, render section 200.20 (2) (b) redundant.

Also, CPL 200.20 (2) (b) was enacted after section 200.20 (2) (c) and (3). When section 279 was created in 1936, it permitted joinder where offenses (1) arose from “the same act or transaction,” (2) arose from “two or more acts or transactions connected together or constituting parts of a common scheme or plan,” or (3) constituted “crimes of the same or a similar character” (L 1936, ch 328). Section 200.20 (2) (b) was added to the statute during the Bartlett Commission’s drafting process, sometime between 1967 (when the draft bill did not include a subdivision [2] [b] equivalent) and 1970, when the new Criminal Procedure Law was enacted.⁶ The addition of subdivision (2) (b) in the late 1960s does not tell us anything about the

comment to the Bartlett Commission’s 1967 proposed Criminal Procedure Law explained that joinder of defendants was “not covered by the Criminal Code” (Staff Comment of Temp St Commn on Rev of Penal Law & Crim Code, 1967 Proposed NY CPL 100.40 at 174). The legislative history of the offense joinder provisions, as discussed *supra*, does not support an emphasis on judicial economy. Second, the joinder of multiple defendants presents different risks from the joinder of multiple offenses against a single defendant. While joining multiple defendants together for trial may be highly prejudicial in some circumstances, that is not due to the concerns underlying *Molineux*, but rather because the defenses of the defendants may be antithetical to each other, such as where one defendant’s attorney attempts to impeach the testimony of another defendant (*People v Cardwell*, 78 NY2d 996, 998 [1991]).

6. The Bartlett Commission also modified CPL 200.20 (2) (c) by adding the phrase “even though not joinable pursuant to paragraph (b).” This change

(n. cont’d)

1936 legislature's intent in creating a good cause exception to joinder for offenses of the same kind.

IV.

Here, the proper remedy is remittal for two separate trials. In denying Mr. Mero's request for severance, Supreme Court held that no good cause existed for severance because the "jury will readily be able to consider the proof separately as it relates to each charge" given that "the evidence in each case is markedly distinct." That is the wrong standard.

It was an abuse of discretion for Supreme Court to refuse to sever because the only reason to introduce evidence of one murder at a trial for the other would be to suggest Mr. Mero had a propensity to kill. At Supreme Court, the People conceded that they did not have "a *Molineux* purpose" for introducing evidence of one murder to show Mr. Mero's guilt in the other. As the court held, the record supports that concession. That means that in determining Mr. Mero's guilt in each killing, the only thing a juror could infer from evidence of the other was propensity. The only possible reason to permit joinder under these circumstances is efficiency. But efficiency cannot justify depriving Mr. Mero of his right to a fair trial. It was therefore an abuse of discretion for Supreme Court to deny severance.

Requiring that a *Molineux* exception be met for the joinder of two distinct crimes is also the best way to make practical sense of the statutory scheme. It would be easier for a jury to keep distinct proof of two unrelated crimes that did not involve the same Penal Law violation—for example, an automobile theft committed a year after an unrelated assault charge—than to keep separate the proof of two unrelated murder charges, and the risk of conviction by propensity is greater in the latter than the former. The legislature's concern for the jury's ability to keep the proof in each offense separate—evidenced in CPL 200.20 (3) (a)—thus weighs against reading CPL 200.20 (2) (c) to permit the joinder of completely unconnected crimes.

We must face the reality that when faced with a defendant charged with two crimes—especially two crimes that are the same in law—"[t]he natural and inevitable tendency of the tribunal . . . is to give excessive weight to the vicious record of crime thus exhibited, and either to allow it to bear too strongly

does not alter the meaning of the good cause provision, which the Commission imported without modification.

on the present charge, or to take the proof of it as justifying a condemnation irrespective of guilt of the present charge” (*People v Telfair*, 41 NY3d 107, 114 [2023], quoting *People v Zackowitz*, 254 NY 192, 198 [1930, Cardozo, Ch. J.]). We should not read the joinder statutes quietly to circumvent our time-honored protections against such prejudice. The legislature did not intend to do so. I would read the joinder and severance provisions enacted in 1936 as the legislature intended: to allow joinder where offenses are interrelated, and to require severance when joinder would serve no purpose but prejudice, or where the risk of prejudice outweighs any probative purpose.

RIVERA, J. (dissenting). Defendant was convicted of two unrelated murders, which occurred years apart, by different methods. There were no eyewitnesses to either death and no forensic evidence linked defendant to the crimes. The bodies were found in different locations. The common denominator was that defendant knew both victims: one was his roommate and the other, a female acquaintance. Defendant maintained his innocence and contended that one of the deaths was caused by an accidental fire. Nevertheless, the murders and the related evidence-tampering charges were joined in a single indictment. Eventually, they were tried before the same jury, over defendant’s request for separate trials to avoid inevitable prejudice to his defense. Joinder of these counts rested solely on the ground that they “are defined by the same or similar statutory provisions” (CPL 200.20 [2] [c]).

Failing to sever the trials carried significant risks that the jury would determine guilt based on the appearance of defendant’s criminal disposition and that the evidence of guilt on one of the murder counts would spill over and bolster the evidence of the other. The court’s instructions and counsel’s advocacy could not overcome this prejudice to the defense. Therefore, the trial court abused its discretion by denying severance. On that ground, I would reverse defendant’s convictions and order separate trials on each of the respective murder and related counts.

I.

Section 200.20 (2) (c) of the Criminal Procedure Law permits joinder of wholly unrelated offenses so long as “such offenses are defined by the same or similar statutory provisions and consequently are the same or similar in law.” But CPL 200.20 (3) authorizes a court, upon request by the defendant or the

prosecution, to order that such dissimilar counts be tried separately “in the interest of justice and for good cause shown.” This subdivision also sets forth nonexhaustive examples of “good cause,” the common thread being the risk of prejudice to the defense. For example, good cause exists in “situations where there is . . . (a) Substantially more proof on one or more such joinable offenses than on others and there is a substantial likelihood that the jury would be unable to consider separately the proof as it relates to each offense” or “a defendant has both important testimony to give concerning one count and a genuine need to refrain from testifying on the other, which satisfies the court that the risk of prejudice is substantial” (CPL 200.20 [3] [a], [b]).

II.

Our prohibition on the admission of evidence of crimes and bad acts unrelated to the offense charged guards against conviction based on a defendant’s perceived criminal disposition. As relevant to the issue on this appeal, it serves as a judicial safeguard against prejudicial joinder of offenses similar at law but factually unconnected. The concerns underlying that rule, along with the history and purpose of CPL 200.20, confirm that the murder-related counts here should have been tried separately.

A.

One of our bedrock criminal law principles is that a defendant may not be convicted based on propensity evidence (*see People v Molineux*, 168 NY 264 [1901]). A defendant’s conviction for an offense must rest solely on the evidence admitted at trial and the factual findings and inferences drawn therefrom. Evidence of other crimes or bad acts may not be admitted to bolster evidence of another crime or to establish a defendant’s likelihood of having committed the crime charged because they have a bad character or appear predisposed to criminality (*see id.* at 293). Absent a relevant connection between the offenses, reliance on evidence of a criminal disposition is inherently prejudicial and if admitted, requires reversal of the conviction.

“ ‘It would be easier to believe a person guilty of one crime if it was known that [they] had committed another of a similar character, or, indeed, of any character; but the injustice of such a rule in

courts of justice is apparent. It would lead to convictions, upon the particular charge made, by proof of other acts in no way connected with it, and to uniting evidence of several offences to produce conviction for a single one'” (*id.* at 292, quoting *Coleman v People*, 55 NY 81, 90 [1873]).

“Thus, ‘[w]hen we limit *Molineux* or other propensity evidence, we do so for policy reasons, due to fear of the jury’s “human tendency” to more readily “believe in the guilt of an accused person when it is known or suspected that [they have] previously committed a similar crime” ’” (*People v Weinstein*, 42 NY3d 439, 461-462 [2024], quoting *People v Brewer*, 28 NY3d 271, 276 [2016], quoting *People v Ventimiglia*, 52 NY2d 350, 359 [1981], citing *Molineux*, 168 NY at 313).

The exceptions to the bar on propensity evidence share the common characteristic of relevance to the offense prosecuted. Thus, we have identified evidence of motive, intent, impossibility or improbability of mistake or accident, a common plan or scheme, and identity as relevant bases for admission of evidence of other criminal conduct (*see Molineux*, 168 NY at 293). Even when evidence of a defendant’s criminal propensity is relevant to some other, proper issue, the evidence may only be admitted if “its probative value exceeds the potential for prejudice resulting to the defendant” (*see People v Alvino*, 71 NY2d 233, 242 [1987]).

The Legislature was well aware of this well-established principle and the limited exceptions to the bar against propensity evidence when it introduced the provisions at issue on this appeal (*see Matter of Estate of Youngjohn v Berry Plastics Corp.*, 36 NY3d 595, 606 [2021] [(T)he legislative history of a particular enactment must be reviewed in light of the existing decisional law which the (l)egislature is presumed to be familiar with and to the extent it left it unchanged, that it accepted”).

B.

Until 1936, the Code of Criminal Procedure required that an “indictment must charge but one crime and in one form except that the crime may be charged in separate counts to have been committed by different means; and when the acts complained of may constitute different crimes, such crimes may be charged in separate counts” (*People v Dimick*, 107 NY 13, 31 [1887], citing Code Crim Pro §§ 278, 279). Then, the Legislature enacted

a predecessor of today's CPL 200.20. That enactment liberalized the law of joinder, including by providing that "the court may order" consolidated trials of "two or more acts or transactions constituting crimes of the same or a similar character" (Code Crim Pro § 279 [eff 1936]). In such cases, however, "the court, in the interest of justice and for good cause shown, may, in its discretion, order that the different charges . . . be tried separately" (*id.*).

Crucially, this liberalization did not displace established principles of criminal law. The Governor and a key proponent supported the 1936 amendment as an "anti-racketeering bill" (Letter from Thomas E. Dewey to Charles Poletti, Feb. 27, 1936, Bill Jacket, L 1936, ch 328 at 5), one that would permit prosecution of "the separate but inter-related offenses of the single criminal organization" (Governor's Mem at 2, Bill Jacket, L 1936, ch 328 [quoting Dewey]). Joinder would also provide for the efficient resolution of criminal matters (*see id.*). Consistent with these purposes, the bill's supporters emphasized that it was "of course, not a new or radical departure in the administration of criminal justice" (*id.*). Indeed, the bill tracked with minor changes an analogous federal statute, the predecessor to today's Federal Rules of Criminal Procedure rules 8 and 14. Thus, as the Governor noted, New York's new section 279 would "bring[] to the state courts a large body of considered judicial decisions from all of the Federal Courts, where the statute ha[d] been in just and successful administration" for nearly a century (*id.* at 2-3).

That body of federal case law balanced the administrative benefits of joinder with the concern for undue prejudice against defendants. The leading case at the time was *Pointer v United States* (151 US 396 [1894]; *see People ex rel. Pincus v Adams*, 274 NY 447, 454 [1937] [discussing *Pointer*]; *De Luca v United States*, 299 F 741, 743-745 [2d Cir 1924] [same]). There, the United States Supreme Court indicated that if a joint trial of multiple charges risked prejudice to "the substantial rights of the accused," "the court, according to the established principles of criminal law, can compel" severance (*Pointer*, 151 US at 403). Whether a court abused its discretion by denying severance depended "on the special circumstances" of each case (*id.* at 402). *Pointer* itself concerned two charges of murder. "The indictment showed that the two murders were committed on the same day, in the same county and district, and with the same kind of instrument. These facts alone justified" the trial

court's denial of severance (*id.* at 403). And at trial, "the wisdom of the course pursued by the court became manifest; for it appeared that the two murders were committed at the same place, on the same occasion, and under such circumstances, that the proof in respect to one necessarily threw light upon the other" (*id.* at 404). In short, under the principles adopted by the 1936 amendment to the Code of Criminal Procedure, denial of severance was most appropriate where charges were factually related. Where charges were utterly distinct except in law, a trial court risked abusing its discretion by permitting a joint trial.

Subsequent developments reinforce that the Legislature was attentive to this risk. In 1967, the Temporary Commission on Revision of the Penal Law and Criminal Code, known as the Bartlett Commission, proposed to replace the Code of Criminal Procedure. Section 279, however, was largely untouched. The Commission sought "solely" to "substantially restate[]" and "give added clarity" to the 1936 provision (Staff Comment of Temp St Commn on Rev of Penal Law & Crim Code, 1967 Proposed NY CPL 100.20 at 173). The Commission explained that "[t]he proposed draft, like the existing Criminal Code, is not inattentive to the possibility of prejudice when offenses are joined or consolidated *solely* because they are 'of the same or a similar character,' " as in an indictment of "two separate robberies" (*id.*). In such cases, the Commission noted that severance might well be appropriate or, perhaps, required. The Commission's draft became what is now CPL 200.20.

In 1984, the Legislature amended section 200.20 to encourage severance in appropriate cases. The 1984 amendments, which remain effective today, identified situations in which there exists "good cause" to sever counts of an indictment that are similar only in law. One of these is "where there is . . . [s]ubstantially more proof on one or more such joinable offenses than on others and there is a substantial likelihood that the jury would be unable to consider separately the proof as it relates to each offense" (CPL 200.20 [3], [3] [a]). According to both the Governor and the New York City Mayor, this clause codified the rule of *People v Forest* (50 AD2d 260 [1st Dept 1975]) (see Governor's Approval Mem at 1-2, Bill Jacket L 1984, ch 672; Mem of Mayor of City of NY at 2, Bill Jacket L 1984, ch 672). In *Forest*, the defendant had been convicted following a joint trial of three counts of robbery (see *Forest*, 50 AD2d at 261). For two of those counts, eyewitnesses identified the de-

fendant as the perpetrator; for the third, the victim identified the defendant only from a photo array, and only after first selecting a different person (*see id.*). Even though the robberies all occurred within one month, and even though all involved purse snatchings in the Bronx, the Court held that the trial court abused its discretion by denying severance (*see id.* at 261-262). Factual similarities among the counts, although decisive in *Pointer*, were not enough to justify joinder in *Forest*.

Thus, in the near-century since it first liberalized the joinder rules, the Legislature has never retreated from the established legal principles protecting defendants against undue prejudice. Indeed, it has only reaffirmed them. While offenses similar in nature may be joined, the Legislature fully understood that wholly unrelated offenses—those lacking any connection whatsoever other than the prosecution’s allegation that the defendant committed the crimes so charged—would be inadmissible under general criminal law principles because of the inherent prejudice to a defendant from propensity evidence.¹

C.

Scholars have long warned of the grave risks attending joinder in cases like the one presented on this appeal. In 1980, Judge Friendly noted that CPL 200.20 (2) (c)’s federal analog—the “same or similar character” provision in Federal Rules of Criminal Procedure rule 8 (a)—had “not met with the favor of commentators” (*United States v Werner*, 620 F2d 922, 927 [2d Cir 1980]). The criticism continues more than 40 years later. For example, the American Bar Association’s Standard for Criminal Justice states: “Whenever two or more unrelated offenses”—that is, offenses not based upon the same conduct,

1. Evidence concerning one criminal transaction is often inadmissible in a trial of another criminal transaction, even where there is some alleged factual connection between them (*see e.g. People v Weinstein*, 42 NY3d 439, 456 [2024]). In such cases, joinder would be impermissible under CPL 200.20 (2) (b), but permissible under CPL 200.20 (2) (c) (*see e.g. People v Adames*, 42 AD3d 328, 329 [1st Dept 2007]). In concluding as much, I depart from the Chief Judge (*see Wilson*, Ch. J., dissenting op at 419). Requiring separate trials for charges with *no* factual connection vindicates the Legislature’s choice to expand joinder beyond *Molineux*’s strict terms, while also respecting its decision to preserve the long-standing principles embodied in that case. If, as the majority suggests, “joinder of factually unrelated offenses does not necessarily present a greater risk of prejudice than joinder of factually related offenses” (majority op at 415), that is reason to grant severance in some cases involving the latter; it is no reason to abandon this Court’s role in supervising trial courts’ exercises of discretion.

criminal episode, or plan—“have been joined for trial, the prosecuting attorney or the defendant *shall have a right to a severance of the offenses*” (ABA Criminal Justice Standards: Joinder & Severance standard 13-3.1 [emphasis added], available at https://www.americanbar.org/groups/criminal_justice/resources/standards/joinder-severance/). The leading treatise on federal practice and procedure likewise questions “whether joinder of this type should ever be permitted” (1A Charles Alan Wright et al., Federal Practice & Procedure § 144 [5th ed, June 2024 update]). And that text’s counterpart on criminal procedure suggests that “[a]bsent reform” along the ABA’s proposed lines, “some change in the law (or at least in judicial attitudes) is badly needed” (5 Wayne R. LaFave, Jerold H. Israel, Nancy J. King & Orin S. Kerr, Criminal Procedure § 17.1 [f] [4th ed, Nov. 2024 update]).

These concerns are not speculative. In 1989, there already existed empirical literature concerning joinder of offenses, based mostly upon experimental studies (James Farrin, Note, *Rethinking Criminal Joinder: An Analysis of the Empirical Research and Its Implications for Justice*, 52 L & Contemp Probs 325, 326 [1989]). That “empirical data unequivocally show[ed] that the probability of a defendant being convicted significantly increases if offenses are joined rather than tried separately” (*id.* at 332). The effect was stronger still “when the cases joined were similar as opposed to dissimilar” (*id.*). Moreover, limiting instructions to juries were “insufficient to counter the demonstrated prejudicial effects of joinder” (*id.* at 336). More recently, an examination of all federal criminal defendants who stood trial over a five-year period found that “a defendant’s chances of conviction *increase by more than 10%* if [they] stand[] trial on more than one count,” regardless of whether the defendant stands trial alone or with other defendants (Andrew D. Leipold & Hossein A. Abbasi, *The Impact of Joinder and Severance on Federal Criminal Cases: An Empirical Study*, 59 Vand L Rev 347, 383-384 [2006]). This enhanced risk of conviction from joinder has profound significance for defendants standing trial—and even for those bargaining with prosecutors before trial (see Andrew Manuel Crespo, *The Hidden Law of Plea Bargaining*, 118 Colum L Rev 1303, 1316-1323 [2018]).

Our role as New York’s high court demands that we confront these concerns. For Judge Friendly, the answer was clear: “The Rule is what it is; if commentators do not like it, the road for

them to seek amendment is open” (*Werner*, 620 F2d at 928). Presumably, the majority views matters similarly. But there is one problem: our rule is not the federal rule. “In order to prevail,” the defendant in *Werner* had to “show not simply some prejudice but substantial prejudice” from the failure to sever (*id.*). Federal courts still adhere to that requirement (*see e.g. United States v Lingala*, 91 F4th 685, 693 [3d Cir 2024]; *United States v Page*, 657 F3d 126, 129 [2d Cir 2011]). This Court, however, has never held that a defendant must establish actual prejudice. To the contrary, as the majority acknowledges, we review denial of a defendant’s severance motion only for abuse of discretion, considering the risk of prejudice as it existed at the time of the motion (*see* majority op at 413; *People v Ford*, 11 NY3d 875, 879 [2008]; *People v Shapiro*, 50 NY2d 747, 756 [1980]). Consequently, we may—indeed, we must—ensure that trial courts exercise their discretion with due regard for the possibility that a joint trial might not be a fair trial.

III.

Turning to the appeal before us, defendant requested severance on the ground that the evidence in the cases was underwhelming, and, thus, “[t]he simple ‘What are the odds?’ factor that defendant couldn’t possibly be uninvolved in both cases, create[d] immediate prejudice.” He also contended that the prosecutor’s evidence would be sharply different in each case, given defendant’s claims that the roommate died in an accidental fire and that the murder of the female acquaintance was a case of misidentification.

Trial courts have “reasonable latitude” to grant or deny severance of trials for multiple offenses (*People v Lane*, 56 NY2d 1, 8 [1982]). But that latitude is not unlimited. In this case, the trial court erred by denying defendant’s request. Presenting evidence of both murders to the same jury presented a substantial risk that the jury would convict based on what it might conclude was his criminal disposition and an equally high risk that the jury would aggregate the evidence, so that proof of one murder would bolster evidence of the other. The result was that the jury might well convict on insufficient evidence of defendant’s guilt on either or both murder counts. Such a prospect is anathema to “our system of justice” (*Weinstein*, 42 NY3d at 444).

Several factors, taken together, rendered denial of severance untenable. First, the prosecution conceded that the case against

defendant for the murder of the female acquaintance was stronger than that for the murder of the roommate. Evidence of the former murder would be confirmatory of guilt of the latter. The danger of “conviction by reason of [the charges’] cumulative effect rather than on the strength of the specific evidence regarding each crime” was precisely the sort of risk CPL 200.20 (3) was enacted to avoid (*Forest*, 50 AD2d at 262; see Governor’s Approval Mem at 1-2, Bill Jacket, L 1984, ch 672).²

Second, the cases were completely different factually, except for one common feature: defendant knew both victims. As defendant argued in his initial severance motion, the jury could well conclude that it was not coincidence that defendant was the only connection between the two murdered victims. In this respect, this case differs sharply from those where this Court has found no abuse of discretion in denying severance. For example, in *People v Ford*—relied upon at oral argument by the prosecution—there were “two successive robberies in May 2004 in elevators of residential buildings on Park Avenue in Manhattan” (11 NY3d at 876).

Third, the crimes are heinous, committed by someone without regard for human life. Indeed, if the jury credited the prosecution’s evidence, it could have concluded that the roommate’s murder was premeditated. Joinder of offenses is always prejudicial (see *Werner*, 620 F2d at 929), but the prejudice is greater when the crimes charged provoke the revulsion of the jury (see *Shapiro*, 50 NY2d at 756). Given the understandable human tendency to feel animosity towards the perpetrator of two brutal murders, there was a high risk that the jurors would

2. The majority’s discussion of this factor is puzzling. If the majority means that neither conviction was against the weight of the evidence, that is a judgment that this Court lacks authority to render in this case (see *People v Danielson*, 9 NY3d 342, 349 [2007]). More fundamentally, the majority appears to impose a prejudice requirement where none exists. A defendant’s request for severance “must be judged in the context of the . . . circumstances against which it is made” (*Shapiro*, 50 NY2d at 757). This Court’s retrospective analysis of the trial evidence has no place in assessing whether the trial court abused its discretion by denying a pretrial severance motion. The majority’s additional observation that CPL 200.20 (3) (a) “provides for severance if the jury cannot segregate proof” and the court made no such finding (see majority op at 415) further illuminates the error below. The court simply ignored the fundamental precept of the *Molineux* rule: propensity evidence cannot be segregated from evidence of the charged offense because of the jurors’ natural and human tendency to bolster or disregard the weakness of the prosecution’s evidence and find guilt based upon the defendant’s criminal past.

convict on all counts not because they would find guilt beyond a reasonable doubt based on the evidence specific to each case, but because they would view the cases cumulatively. In other words, viewing the evidence in totality, the jury would conclude that defendant murdered the victims.

Fourth, and finally, the issues were complex. Unlike many cases in which there was no abuse of discretion in denying severance, this was not a trial in which “the evidence as to each [offense] was short and simple” (*United States v Lotsch*, 102 F2d 35, 36 [2d Cir 1939, L. Hand, J.]). To the contrary, dozens of witnesses testified over a lengthy trial about matters ranging from municipal apparel to cell phone records to pulmonary edema. If ever jurors were at risk of impermissibly aggregating evidence, it was in this trial.

In sum, much as in *Shapiro*, “the superficial closeness of the indictments here, resulting largely from a common focus on the same kind of” violent conduct, “was likely to eclipse the very fundamental difference between them” (*Shapiro*, 50 NY2d at 755). Thus, “there is a substantial likelihood that the jury would be unable to consider separately the proof as it relates to each offense” (CPL 200.20 [3] [a]).

For the same reason, and contrary to the majority’s view, the court’s instructions could not eliminate the risk that the jury would convict defendant of both crimes based on the combined strength of the evidence (*cf.* majority op at 413-414). We assume that the jury will follow the court’s instructions, and here the court told the jury that “[p]roof on one case must not be considered as proof in the other case. It is your obligation to evaluate the evidence as it applies or fails to apply to each case separately.” However, there are cases where instructions are not enough. Even where instructions are “precise and impeccable,” they cannot cure an “overabundance” of improperly prejudicial evidence (*People v Stanard*, 32 NY2d 143, 147-148 [1973]). This is just such a case.

Nor, as the majority suggests, are the jury notes relevant (*cf.* majority op at 414 n 4). The propriety of the court’s decision on the motion to sever is measured as of the time of the motion, and not based on hindsight. The question is one of potential risk, not of whether an erroneous ruling was vindicated at trial. In any case, the jury notes here did not establish that the jurors cabined the evidence to prevent tainting their deliberations on the counts related to one murder with consideration of

evidence related to the other. The notes merely established that the jury referenced the evidence by victim's name. The notes provide no insight into how they considered that evidence and whether they improperly synthesized it to reach their verdict.³

Finally, considerations of judicial economy cannot support affirmance. While trial courts should weigh considerations of efficiency against the defendant's interest, "compromise of a defendant's fundamental right to a fair trial free of undue prejudice as the *quid pro quo* for the mere expeditious disposition of criminal cases" is intolerable (*Lane*, 56 NY2d at 8). Thus, where the risk of undue prejudice becomes sufficiently great, no appeal to judicial economy can justify denying severance. Here, the risk was significant and thus intolerable.

IV.

The Legislature never intended for joinder in cases like this one. To have done so would indeed have been the "radical departure" that liberalized joinder's proponents explicitly disclaimed (Governor's Mem at 2, Bill Jacket, L 1936, ch 328). However, if the judiciary exercises its discretion as broadly as

3. The majority fails to identify any factual similarity between the Appellate Division cases it cites and the underlying facts of defendant's prosecution (*see* majority op at 415). The majority's silence emphasizes the outlier status of the joinder of the counts here and why the court abused its discretion by denying severance. In *People v Bonner*, the evidence established defendant's common "motive," "modus operandi," and "common scheme of using physical abuse to instill fear and obedience in the prostitutes who worked for him" (94 AD3d 1500, 1501 [4th Dept 2012]). In *People v Perez*, the counts were joinable under CPL 200.20 (2) (b), "on the basis of overlapping evidence . . . , especially with regard to defendant's confessions and their surrounding circumstances" (47 AD3d 409, 410-411 [1st Dept 2008]; *see also* *Perez v Conway*, 2011 WL 1044607, *4, 2011 US Dist LEXIS 28164, *11 [SD NY, Mar. 18, 2011, No. 09 Civ. 5173] ["While (defendant) initially told police that two drug-dealers killed Drakeford and that he had only helped dispose() of her body, he admitted that his tale was a lie and confessed that he had killed both Pollard and Drakeford in later videotaped interviews"]). In *People v Adames* (42 AD3d 328 [1st Dept 2007]) the prosecution sought to link both murder counts to defendant's involvement in the narcotics trade (*see generally* brief for appellant in *Adames*, 42 AD3d 328, *46-64; brief for respondent in *Adames*, 42 AD3d 328, *40-53). And in *People v Oliveira*, "the evidence of guilt as to both incidents was overwhelming" and defendant's "proposed testimony would have opened the door to evidence of the crimes charged in the second incident" (2 AD3d 122, 123 [1st Dept 2003]; *see also* *Oliveira v Phillips*, 2007 WL 2890211, 2007 US Dist LEXIS 74118 [SD NY, Sept. 28, 2007, No. 05 Civ. 564 (SAS)]). These cases illustrate judicial recognition of the need for some relevant connection between the charges.

the majority now permits—in contravention of our criminal law principles and notwithstanding the prejudicial effects on defendants—then it is time for the Legislature to step in and take corrective action.

Judges GARCIA, SINGAS, CANNATARO and TROUTMAN concur. Chief Judge WILSON dissents in an opinion. Judge RIVERA dissents in a separate opinion.

Order affirmed.

[264 NE3d 223, 237 NYS3d 172]

RICHARD HOBISH et al., Appellants, v AXA EQUITABLE LIFE INSURANCE COMPANY, Respondent.

Argued November 21, 2024; decided January 14, 2025

PROCEDURAL SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered March 19, 2024. The Appellate Division order, insofar as appealed from, affirmed so much of an order of the Supreme Court, New York County (Andrea Masley, J.; op 2022 NY Slip Op 32321[U] [2022]), as had (1) denied plaintiffs' motion for summary judgment on the issue of liability on their breach of contract cause of action, and (2) granted defendant's motion for summary judgment to the extent of dismissing certain categories of damages sought by plaintiffs. The following question was certified by the Appellate Division: "Was the order of this Court, which unanimously affirmed the order of the Supreme Court, properly made?"

Hobish v AXA Equit. Life Ins. Co., 225 AD3d 487, affirmed.

HEADNOTES**Insurance — Construction of Policy — Ambiguous Terms**

1. Supreme Court properly denied plaintiffs summary judgment on their claim alleging that defendant insurer breached the provision of a life insurance policy requiring any increase in the cost of insurance (COI) be "equitable to all policyholders of a given class" by increasing monthly COI charges for certain age-based groups rather than the deceased policyholder's "rating class," as the contractual term "given class" was ambiguous. One could reasonably conclude that a "given class" had two different meanings in the policy: first, that "given class" referred to the "rating class," which would have tethered rate increases to decedent's particular rating class of "standard non-smoker"; or second, that use of two different phrases, "given class" and "rating class," implied that the terms were not equivalent, and that a "given class" therefore referred to any actuarially reasonable grouping of policies. Because plaintiffs could not point to any other definition or provision of the contract, or any other circumstances under which it was executed that resolved the ambiguity, the term "a given class" was subject to two reasonable interpretations, and was thus ambiguous when considered within the four corners of the contract. Nor did extrinsic evidence in the record resolve the ambiguity, leaving a triable issue of fact, and therefore plaintiffs' reliance on the doctrine of *contra proferentem* was misplaced. Where inconclusive extrinsic evidence has been introduced by the parties concerning the meaning of an ambiguous term, that rule of contract construction does not automatically apply in favor of the insured at the summary judgment stage. With competing definitions in the record, significant ambiguity remained.

Contracts — Breach or Performance of Contract — Punitive Damages

2. In plaintiffs' action alleging that defendant insurer breached the provision of a life insurance policy requiring any increase in the cost of insurance (COI) be "equitable to all policyholders of a given class" by increasing monthly COI charges for certain age-based groups rather than based upon a policyholder's "rating class," plaintiffs failed to demonstrate entitlement to punitive damages on their breach of contract claim. Punitive damages on a contract claim are available only where the fraud, aimed at the public generally, is gross and involves high moral culpability, or when it evinces a high degree or moral turpitude and demonstrates such wanton dishonesty as to imply a criminal indifference to civil obligations. Although damages arising from the breach of a contract will ordinarily be limited to the contract damages necessary to redress the private wrong, punitive damages may be recoverable if necessary to vindicate a public right. No party disputed that the policy expressly stated that the COI charges could potentially be increased, and expressly delineated guaranteed maximum COI charges that defendant could apply to the policy account. The new COI rate scale resulted in charges below the policy's maximum limits. Moreover, the record evidence relied upon by plaintiffs failed to raise a triable issue concerning whether defendant's behavior was so egregious, wanton, or malicious as to warrant punitive damages.

Consumer Protection — Deceptive Acts and Practices — Private Right of Action — Punitive Damages

3. Punitive damages for General Business Law § 349 (h) claims are limited to the treble damages provided by the statute. The private right of action provision of the statute provides for layered damages. There is no reference to "punitive damages" in the statute, although treble damages are viewed as having some punitive effect. Treble damages under section 349 (h) are more easily proved than traditional punitive damages but are restricted in value. The balanced remedies reflect compromises reached in the legislative process that produced the private right of action. The balance struck provides a private right of action that complemented the Attorney General's enforcement power but limits the range of available damages, and the legislature has not altered that balance in the 44 years since the private right of action was added to the statute. While similar provisions have been updated to increase penalties, no corresponding increase or adjustment has been made for remedies available under section 349 (h), despite numerous proposals to do so. The legislature thus carefully calibrated damages at the time section 349 (h) was enacted, and punitive damages in addition to the treble damages delineated in section 349 (h) are unavailable.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

- AM JUR 2d Consumer and Borrower Protection §§ 280–281, 292, 300; AM JUR 2d Contracts § 577; AM JUR 2d Damages § 556; AM JUR 2d Insurance §§ 262–265, 493.
- CARMODY-WAIT 2d Complaints in Particular Actions §§ 29:21, 29:103, 29:105; CARMODY-WAIT 2d Actions by or Against the State § 126:104.
- COUCH ON INSURANCE (3d ed) §§ 1:39, 4:23, 21:7, 21:11, 21:14, 21:15, 204:54, 205:98, 205:99, 206:55.

McKINNEY'S, General Business Law § 349 (h).

NEW YORK CONTRACT LAW (2d ed) §§ 9:17, 9:28, 9:37, 22:45.

NY JUR 2d Consumer and Borrower Protection §§ 6, 8–9; NY JUR 2d Contracts §§ 204, 429; NY JUR 2d Damages § 195; NY JUR 2d Insurance §§ 64, 859, 868, 871, 2345.

NEW YORK PATTERN JURY INSTRUCTIONS—CIVIL, PJI 4:20.

WILLISTON ON CONTRACTS (4th ed) §§ 30:5, 33:42, 49:14, 64:13.

ANNOTATION REFERENCES

Punitive and exemplary damages for breach of contract, other than contracts to marry and actions on statutory bonds. 84 ALR 1345.

Scope and exemptions of state deceptive trade practice and consumer protection acts. 89 ALR3d 399.

Insurer's liability for consequential or punitive damages for wrongful delay or refusal to make payments due under contract. 47 ALR3d 314.

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Query: ((contract! policy /3 provision term) /s ambig!) & "life insurance"

POINTS OF COUNSEL

Constantine Cannon LLP, New York City (*Gary J. Malone* and *Robert L. Begleiter* of counsel), for appellants. I. The Appellate Division erred in holding that an insurer that breaches an insurance policy to pressure the policyholder to surrender the policy cannot be sued for the loss in value of the policy caused by the breach. (*Brushton-Moira Cent. School Dist. v Thomas Assoc.*, 91 NY2d 256; *Goodstein Constr. Corp. v City of New York*, 80 NY2d 366; *Awards.com v Kinko's, Inc.*, 42 AD3d 178, 14 NY3d 791; *Kenyon v National Life Assn.*, 39 App Div 276; *Arkwright-Boston Mfrs. Mut. Ins. Co. v Calvert Fire Ins. Co.*, 887 F2d 437.) II. The Appellate Division erred in holding that Richard Hobish is not entitled to recover actual damages under General Business Law § 349 if he cannot establish breach of contract damages. (*Gaidon v Guardian Life Ins. Co. of Am.*, 94 NY2d 330; *Himmelstein, McConnell, Gribben, Donoghue & Joseph, LLP v Matthew Bender & Co., Inc.*, 37 NY3d

169; *Karlin v IVF Am.*, 93 NY2d 282; *Plavin v Group Health Inc.*, 35 NY3d 1; *Matter of Asman v Ambach*, 64 NY2d 989.) III. The Appellate Division erred in holding that Richard Hobish is not entitled to recover restitutionary damages based on AXA Equitable Life Insurance Company's profits for duties it failed to faithfully perform. (*Liu v Securities and Exchange Commission*, 591 US 71; *Tull v United States*, 481 US 412; *Gucci America, Inc. v Weixing Li*, 768 F3d 122; *Soam Corp. v Trane Co.*, 202 AD2d 162; *Matter of Blumenthal [Kingsford]*, 32 AD3d 767.) IV. The Appellate Division erred in granting summary judgment on Richard Hobish's claim for punitive damages despite evidence that AXA Equitable Life Insurance Company misled elderly consumers to deprive them of life insurance. (*Walker v Sheldon*, 10 NY2d 401; *Weinstein v Natalie Weinstein Design Assoc., Inc.*, 86 AD3d 641; *New York Univ. v Continental Ins. Co.*, 87 NY2d 308; *Giblin v Murphy*, 73 NY2d 769.) V. The Appellate Division erred in holding punitive damages are unavailable under General Business Law § 349. (*Bristol Harbour Assoc. v Home Ins. Co.*, 244 AD2d 885; *City of New York v Smokes-Spirits.Com, Inc.*, 12 NY3d 616; *Oswego Laborers' Local 214 Pension Fund v Marine Midland Bank*, 85 NY2d 20; *Wilner v Allstate Ins. Co.*, 71 AD3d 155; *Perlbinder v Vigilant Ins. Co.*, 190 AD3d 985.) VI. The Appellate Division erred in failing to grant the trust summary judgment on the issue of AXA Equitable Life Insurance Company's liability for breach of contract. (*Kass v Kass*, 91 NY2d 554; *Greenfield v Philles Records*, 98 NY2d 562; *In re AXA Equit. Life Ins. Co. COI Litig.*, 595 F Supp 3d 196; *Matter of Mostow v State Farm Ins. Cos.*, 88 NY2d 321; *State of New York v Home Indem. Co.*, 66 NY2d 669.)

Krantz & Berman LLP, New York City (Larry H. Krantz and Hugh D. Sandler of counsel), for respondent. I. The trial court correctly dismissed appellants' claim for the death benefit as damages for breach of contract. (*Brushton-Moira Cent. School Dist. v Thomas Assoc.*, 91 NY2d 256; *Process Am., Inc. v Cynergy Holdings, LLC*, 839 F3d 125; *Inchaustegui v 666 5th Ave. Ltd. Partnership*, 96 NY2d 111; *In re AXA Equit. Life Ins. Co. COI Litig.*, 595 F Supp 3d 196; *Interpharm, Inc. v Wells Fargo Bank, N.A.*, 655 F3d 136.) II. The trial court correctly dismissed appellants' identical theory of damages under General Business Law § 349. III. The trial court and the First Department correctly dismissed appellants' claim for "restitutionary damages" under General Business Law § 349. (*Batas v Prudential Ins. Co. of Am.*, 281 AD2d 260; *Tull v United States*, 481 US

412; *Rocanova v Equitable Life Assur. Socy. of U.S.*, 83 NY2d 603; *Brown v Government Empls. Ins. Co.*, 156 AD3d 1087; *Thoreson v Penthouse Intl.*, 80 NY2d 490.) IV. AXA Equitable Life Insurance Company was entitled to summary judgment dismissing appellants' demands for punitive damages on their breach of contract and General Business Law § 349 claims. (*Rocanova v Equitable Life Assur. Socy. of U.S.*, 83 NY2d 603; *Brown v Government Empls. Ins. Co.*, 156 AD3d 1087; *Thoreson v Penthouse Intl.*, 80 NY2d 490; *Levinson v 77 Perry Realty Corp.*, 212 AD3d 464; *Cox v Microsoft Corp.*, 290 AD2d 206.) V. The First Department decision correctly denied appellants' request for partial summary judgment on the "given class" issue. (*In re AXA Equitable Life Ins. Co. COI Litig.*, 595 F Supp 3d 196; *Platek v Town of Hamburg*, 24 NY3d 688; *Hanks v Voya Retirement Ins. & Annuity Co.*, 492 F Supp 3d 232; *Macy's Inc. v Martha Stewart Living Omnimedia, Inc.*, 127 AD3d 48; *Matter of State Farm Mut. Auto. Ins. Co. v Fitzgerald*, 25 NY3d 799.)

OPINION OF THE COURT

TROUTMAN, J.

In this action, plaintiffs bring claims for breach of contract and a violation of General Business Law § 349 against defendant AXA Equitable Life Insurance Company in connection with the purchase of a universal life insurance policy in 2007 and defendant's decision to increase the effective cost of that policy in 2015. Before us are plaintiffs' challenges to the trial court's grant of defendant's summary judgment motion on plaintiffs' contract claim and several of their damages theories and denial of plaintiffs' cross-motion for summary judgment. We agree with the decisions of the courts below and affirm.

I.

In early 2007, the Hobish Irrevocable Trust (Trust) purchased an Athena Universal Life Insurance II (AULII) life insurance policy from defendant to insure Toby Hobish, then 82 years old. The policy provided for a \$2 million death benefit if the policy remained in effect at the time of Ms. Hobish's death.

Upon purchase of such a policy, an AULII policyholder opened a "Policy Account" with defendant and could make flexible premium payments into the account at their discretion. Defendant deducted a monthly charge, known as a "COI charge" (cost of insurance), from the account. The account ac-

crued interest, and the COI charge applicable to the account would increase as the balance decreased, creating incentives for the policyholder to make premium payments in sums higher than the minimum necessary to pay the COI charge on a month-to-month basis. While the policy imposed no mandatory scheduled premium payment, the account would enter a grace period before ultimately lapsing if the account balance became insufficient to meet the monthly COI charge. At that point, the policyholder would become ineligible to receive the death benefit upon the insured's death.

The policy did not allow the Trust to withdraw money deposited into the Policy Account at will. Rather, upon Ms. Hobish's death, any money remaining in the Policy Account would revert to defendant. While defendant also sold AULII policies pursuant to which any money remaining in the account would revert to the policyholder upon death but imposed a higher monthly COI charge, the Trust chose the option with a lower COI charge. During the insured's lifetime, the policyholder could surrender the Policy Account, at which point defendant would return the account balance to the policyholder, less a surrender fee, and terminate the policy.

The monthly COI charges were determined by a formula known as the "COI Rate Scale." The rate scale in effect when the Trust purchased the policy in 2007 had been set by defendant in 2004. The terms of the policy expressly provided that defendant maintained the right to alter the COI Rate Scale and increase COI charges, but provided that any such increase must be "equitable to all policyholders of a given class." The policy also included a cap on monthly COI charges, which was linked to the insured's age.

In late 2015, defendant announced plans to change the COI Rate Scale that would apply to two groups of policies: those with death benefits above \$1 million where the insured was 70-79 years old at the time of inception, and those above the same death benefit threshold where the insured was 80 or older at the time of inception. The parties sharply dispute the reasons for this change in the COI Rate Scale and the timing of defendant's decision to develop and implement the new scale. Defendant alleges that under the new scale, the COI charges applicable to the Trust's Policy Account would increase from approximately \$7,000 to approximately \$10,500 per month. Plaintiffs claim that this change would result in a drastic increase in the annual premium payments necessary to keep

the policy in force. Plaintiffs do not contend, however, that the new COI Rate Scale exceeded the policy's cap on monthly charges.

Defendant began applying the new COI Rate Scale to the Trust's account in March 2016. After COI charges were imposed for four successive months, the Trust elected to surrender the policy "under protest." Pursuant to the terms of the policy, \$412,688.01 was returned to the Trust, representing the remaining account balance less a \$35,586.49 surrender fee.

In 2017, plaintiffs commenced this action in Supreme Court, alleging that defendant had breached the contract and violated General Business Law § 349, which prohibits "[d]eceptive acts or practices in the conduct of any business" (General Business Law § 349 [a]). With respect to their breach of contract claim, plaintiffs alleged that defendant's altered COI Rate Scale failed to increase rates in a manner "equitable to all policyholders of a given class," as the policy required. Plaintiffs noted that the policy described Ms. Hobish's "Rating Class" as "STANDARD NON-SMOKER," and argued that this category ("STANDARD NON-SMOKER") was the proper "class" for purposes of applying any COI charge increase, rather than the age-based groups that defendant had utilized. With respect to their section 349 claim, plaintiffs alleged that defendant had specifically marketed and sold AULII policies to elderly consumers with a representation that the likelihood of a COI Rate Scale change was minimal, all the while intending to raise COI charges in the future. Plaintiffs sought "compensatory, consequential, and punitive damages" for breach of contract; actual damages, attorney's fees, and punitive damages on their section 349 claim; and "other and further relief as the Court deems just and proper."

Supreme Court denied each party's motions for summary judgment on liability. On the contract claim, the court concluded that the contractual term in question—"a given class"—was ambiguous within the four corners of the contract, and that the parties had submitted relevant, competing extrinsic evidence that raised a triable issue of fact. As for the section 349 claim, the court held plaintiffs had sufficiently alleged they were affected by a deceptive business practice.

Supreme Court rejected various damages theories that plaintiffs had asserted as to both causes of action. Plaintiffs offered only one theory of consequential or compensatory dam-

ages: that they were entitled to the full value of the policy's \$2 million death benefit, minus the surrender value, for a total of approximately \$1.6 million. The court held that these damages were precluded because they did not "relate to any actual harm that resulted from AXA's alleged breach" (2022 NY Slip Op 32321[U], *14 [Sup Ct, NY County 2022]). Plaintiffs' claim for "actual damages" under General Business Law § 349 rested on the same theory, and Supreme Court held that the same logic precluded those damages (*id.* at *16-17). Plaintiffs also sought approximately \$250,000 in restitutionary damages under section 349, which Supreme Court found was a "speculative" calculation as to what "would have been left on the Policy Account upon Ms. Hobish's hypothetical death," and was thus unavailable to plaintiffs (*id.* at *17-18). Finally, Supreme Court held that plaintiffs' allegations were insufficient as a matter of law to establish the availability of punitive damages for either claim, noting that plaintiffs had not pointed to any evidence of "AXA's scienter" or of evidence of actions "intended to defeat the contract" (*id.* at *18-19 [emphasis and internal quotation marks omitted]).

Plaintiffs appealed, and the Appellate Division affirmed. On damages, the Court held that Supreme Court properly dismissed plaintiffs' demand for damages in the amount of the full face value of the policy minus the surrender amount because plaintiffs "chose to exercise the surrender provisions of the policy" and thus "were no longer entitled to the \$2 million death benefit" (225 AD3d 487, 488 [1st Dept 2024]). While precluding this measure of damages, the Appellate Division noted that "we do not . . . address the issue . . . of what damages may still be available for the alleged breach" (*id.*). The Court further held that restitutionary damages had been properly dismissed because they were too speculative and "never realized" (*id.* at 489). It affirmed dismissal of plaintiffs' punitive damages demand based on the breach of contract, and held that General Business Law § 349 (h) only allows for "limited punitive damages" of three times actual damages (*id.*, quoting *Karlin v IVF Am.*, 93 NY2d 282, 291 [1999]). The Appellate Division granted leave to appeal, and we now affirm.

II.

The Appellate Division, in finding the contractual term "given class" ambiguous, properly refused to grant plaintiffs summary judgment on their contract claim.

A court determines whether a contract is ambiguous by looking within the four corners of the document (*see Kass v Kass*, 91 NY2d 554, 566 [1998]; *W.W.W. Assoc. v Giancontieri*, 77 NY2d 157, 162-163 [1990]). Where a “reasonable basis for a difference of opinion” exists concerning the meaning of a contractual term, a court may find on summary judgment that the meaning of the term is ambiguous and raises a triable issue of fact (*Selective Ins. Co. of Am. v County of Rensselaer*, 26 NY3d 649, 655 [2016], quoting *Greenfield v Philles Records*, 98 NY2d 562, 569 [2002]).

[1] The policy uses the term “class” twice: once referring to “a given class” in requiring defendant to raise rates only “on a basis that is equitable to all policyholders of a given class,” and again in defining Ms. Hobish’s “RATING CLASS” as “STANDARD NON-SMOKER.” As the courts below held, one could reasonably conclude that a “given class” has two different meanings in the policy: first, that “given class” refers to the “rating class,” delineated in all capitalized letters, which would tether rate increases to Ms. Hobish’s particular rating class of “standard non-smoker”; or second, that use of two different phrases, “given class” and “rating class,” implies that the terms are not equivalent, and that a “given class” therefore simply refers to any actuarially reasonable grouping of policies. Because plaintiffs cannot point to any other definition or provision of the contract, or any other “circumstances under which it was executed” that resolves this ambiguity (*Kass*, 91 NY2d at 566, quoting *Atwater & Co. v Panama R.R. Co.*, 246 NY 519, 524 [1927]), we agree with the lower courts that “a given class” is subject to two reasonable interpretations, and is thus ambiguous when considered within the four corners of the contract.

We also agree that the extrinsic evidence in the record fails to resolve the ambiguity, leaving a triable issue of fact, and therefore plaintiffs’ reliance on the doctrine of *contra proferentem* is misplaced. Where inconclusive extrinsic evidence has been introduced by the parties concerning the meaning of an ambiguous term, that rule of contract construction does not automatically apply in favor of the insured at the summary judgment stage (*see State of New York v Home Indem. Co.*, 66 NY2d 669, 671 [1985] [stating that the ambiguity “must be resolved against the insurer which drafted the contract” only when the “tendered extrinsic evidence is itself conclusory and will not resolve the equivocality of the language of the

contract”]; see also e.g. *Dean v Tower Ins. Co. of N.Y.*, 19 NY3d 704, 707-709 [2012] [acknowledging that ambiguities in a contract should be construed against the insurer but concluding that ambiguity in the contract rendered summary judgment inappropriate]). As Supreme Court noted, the evidence submitted by defendant included the text of a New York regulation which defines “[c]lass of policies” as “all policies with similar expectations as to anticipated experience factors” (11 NYCRR 48.1 [e]), another definition of the term “policy class” derived from the Actual Standard of Practice guidelines, and two expert opinions suggesting that “a given class” simply refers to any actuarially permissible class of policies. Plaintiffs, for their part, submitted evidence from defendant’s own “Illustrations” of policy details that refer to “the Standard Non-Tobacco User underwriting class” (2022 NY Slip Op 32321[U], *8-10). With these competing definitions in the record, significant ambiguity remains, and as a result we agree with the courts below that plaintiffs were not entitled to summary judgment on their contract claim.

III.

We turn to plaintiffs’ demand for compensatory and consequential damages, actual damages, and restitutionary damages.

Plaintiffs assert the same theory and amount for compensatory/consequential damages on their breach of contract claim and actual damages on their General Business Law § 349 claim: approximately \$1.6 million, calculated as the value of the \$2 million death benefit less the policy’s surrender value. Under New York law, damages on a breach of contract claim are intended “to place the nonbreaching party in as good a position as it would have been had the contract been performed” (*Brushton-Moira Cent. School Dist. v Thomas Assoc.*, 91 NY2d 256, 261 [1998]). Plaintiffs claim they are entitled to \$1.6 million because defendant breached the policy and they therefore had a right to terminate the policy and sue for damages in the amount of the full face value.

This theory misconstrues the record. Upon defendant’s alleged breach, plaintiffs did not terminate the insurance policy. Rather, they enforced it by opting to receive a defined contractual benefit—the surrender payment—and terminate the policy’s coverage. And they did so deliberately, after extensive financial deliberations with various family members (see 2022

NY Slip Op 32321[U], *14-15). Notably, the decision to take the surrender value allowed for the family to access otherwise unavailable funds that would not have reverted to the Trust upon Ms. Hobish's death. Had plaintiffs wanted to keep the policy in force and obtain the death benefit, they could have refused to pay any further premiums and allowed for COI charges to be deducted from the amount remaining in the account, or sued defendant for injunctive relief to prevent the draining of the policy account and subsequent acceleration of the COI charges under the new COI Rate Scale (see e.g. *Inter-Power of N.Y. v Niagara Mohawk Power Corp.*, 259 AD2d 932, 934 [3d Dept 1999], *lv denied* 93 NY2d 812 [1999]). They did not pursue these options.

Plaintiffs contend that because Ms. Hobish was no longer insurable due to her age at the time defendant breached the policy by raising the COI rates, the appropriate measure of damages was the value of the policy (see *Conlew, Inc. v Kaufmann*, 269 NY 481, 490-491 [1936] [suggesting that, where a replacement policy is available, the appropriate measure of damages is the difference in value between the lost policy and the replacement policy, or, if the insured is not insurable, the "value of the policy lost"]; see also *Whitehead v New York Life Ins. Co.*, 102 NY 143, 156-157 [1886]; *Kenyon v National Life Assn.*, 39 App Div 276, 293-294 [4th Dept 1899]). But there was no wrongful cancellation or improper lapse in coverage entitling plaintiffs to treat the policy as terminated and sue for its full value (see *Conlew*, 269 NY at 490-491).

With respect to plaintiffs' demand for actual damages on the section 349 claim, although plaintiffs are correct that the theory of liability for a section 349 claim is not identical to a breach of contract claim, for the same reasons that plaintiffs' theory of compensatory and consequential damages fails on the facts presented here, it likewise fails to support plaintiffs' theory that the \$1.6 million figure is a proper measure of plaintiffs' "actual damages," as required by section 349. Accordingly, we affirm the Appellate Division's dismissal of plaintiffs' demand for compensatory/consequential damages and actual damages based on a recovery of the death benefit, and do not address what consequential/compensatory damages or actual damages may still be available.

We agree with the Appellate Division that, to the extent some form of "restitutionary" damages may be available on their section 349 cause of action, the record here fails to support that claim.

IV.

We also affirm the Appellate Division’s rejection of plaintiffs’ request for punitive damages under their breach of contract and General Business Law § 349 claims.

A.

[2] The bar for subjecting a defendant to punitive damages on a contract claim is high. Such damages are available only where “the fraud, aimed at the public generally, is gross and involves high moral culpability,” or when it “evinces a high degree of moral turpitude and demonstrate[s] such wanton dishonesty as to imply a criminal indifference to civil obligations” (*Walker v Sheldon*, 10 NY2d 401, 405 [1961]). Although “damages arising from the breach of a contract will ordinarily be limited to the contract damages necessary to redress the private wrong, . . . punitive damages may be recoverable if necessary to vindicate a public right” (*New York Univ. v Continental Ins. Co.*, 87 NY2d 308, 315 [1995]; see *Rocanova v Equitable Life Assur. Socy. of U.S.*, 83 NY2d 603, 613 [1994]). To state a claim for punitive damages in this context, a plaintiff must allege that “(1) [the] defendant’s conduct [is] actionable as an independent tort; (2) the tortious conduct [is] of the egregious nature set forth in *Walker*. . . ; (3) the egregious conduct [is] directed to [the] plaintiff; and (4) it [is] of a pattern directed at the public generally” (*New York Univ.*, 87 NY2d at 316).

Plaintiffs have not cleared *Walker*’s high bar. They claim that defendant fraudulently induced the Trust to purchase the policy by instructing its sales representative to make false representations about the likelihood of a future COI charge increase when in fact defendant had already decided to alter the COI Rate Scale. First, and most significantly, no party disputes that the policy at issue expressly stated that the COI charges could potentially be increased, and clearly delineated guaranteed maximum COI charges that defendant could apply to the Policy Account. The new COI Rate Scale developed in 2015 resulted in charges below the policy’s maximum limits. Second, the record evidence relied upon by plaintiffs fails to raise a triable issue concerning whether defendant’s behavior was so egregious, wanton, or malicious as to warrant punitive damages. For example, plaintiffs’ principal source of record information on defendant’s sales strategies for its AULII policies is the deposition testimony of the salesperson, but that

testimony is equivocal and provides no specific communication or statement from defendant that accords with plaintiffs' allegations of wanton fraud. Although plaintiffs claim that defendant planned to increase COI deductions as early as 2007, unrebutted deposition testimony established that any decision to raise the COI Rate Scale would always be "contingent on the actual work being performed," and that no recommendation to increase rates was ever approved by defendant in 2007. On this record, defendant's conduct falls short of the standard set forth in *Walker* (10 NY2d at 404-405), and plaintiffs have failed to demonstrate entitlement to punitive damages on the contract claim.

B.

[3] With respect to plaintiffs' demand for punitive damages under section 349 (h), the parties dispute whether this remedy is available at all. Section 349 (h) authorizes a private person to bring a General Business Law § 349 action and permits a court to increase an award of damages "to an amount not to exceed three times the actual damages up to one thousand dollars, if the court finds the defendant willfully or knowingly violated this section." The Appellate Division below concluded that a court could not award damages beyond these "limited punitive damages" and dismissed the claim on that basis, relying on this Court's decision in *Karlin* (225 AD3d at 489, quoting *Karlin*, 93 NY2d at 291). The Second Department has taken the opposite view, allowing a claim for punitive damages to proceed without reference to the statutory cap (*see Wilner v Allstate Ins. Co.*, 71 AD3d 155 [2d Dept 2010]), and the Fourth Department appears to have taken internally divergent positions on the question (*compare Bristol Harbour Assoc. v Home Ins. Co.*, 244 AD2d 885, 885-886 [4th Dept 1997], *with JD&K Assoc., LLC v Selective Ins. Group, Inc.*, 118 AD3d 1402, 1403-1404 [4th Dept 2014]). Federal courts applying New York law have likewise divided on the issue of punitive damages (*compare Guzman v Mel S. Harris & Assoc., LLC*, 2018 WL 1665252, *13, 2018 US Dist LEXIS 49622, *31 [SD NY, Mar. 22, 2018, 16 Civ 3499 (GBD)] ["Plaintiff's punitive damages on (his General Business Law § 349) claim are limited to \$1,000"], *and Bristol Vil., Inc. v Louisiana-Pacific Corp.*, 916 F Supp 2d 357, 370 [WD NY 2013], *with Koch v Greenberg*, 14 F Supp 3d 247, 278-279 [SD NY 2014] ["(I)t is clear that in New York the GBL's treble damages provision does not proscribe an additional

award of punitive damages”], citing *Wilner*, 71 AD3d at 167; see generally *Bueno v LR Credit 18, LLC*, 269 F Supp 3d 16, 19-23 [ED NY 2017] [describing the arguments on both sides of the issue and collecting cases]). The issue is squarely presented here, as is the need to resolve it (see *Fritz v LVNV Funding, LLC*, 587 F Supp 3d 1, 7 [ED NY 2022] [noting the “absence of a clear answer by the New York Court of Appeals” on the punitive damages issue]).¹ We do so by holding that punitive damages for section 349 (h) claims are limited to the treble damages provided by the statute.

General Business Law § 349 applies to virtually all economic activity, and its “application has been correspondingly broad” (*Karlin*, 93 NY2d at 290). Initially, section 349 allowed for enforcement solely by the Attorney General, with restitution and injunctive relief the only available remedies (L 1970, ch 43, § 2). In 1980, a private right of action was added “[t]o ensure the broadest enforcement of the statute” (*Himmelstein, McConnell, Gribben, Donoghue & Joseph, LLP v Matthew Bender & Co., Inc.*, 37 NY3d 169, 176 [2021]). That section provides:

“In addition to the right of action granted to the attorney general pursuant to this section, any person who has been injured by reason of any violation of this section may bring an action in his own name to enjoin such unlawful act or practice and to recover his actual damages or fifty dollars, whichever is greater. The court may, in its discretion, increase the award of damages to an amount not to exceed three times the actual damages up to one thousand dollars, if the court finds the defendant willfully or knowingly violated this section. The court may award reasonable attorney’s fees to a prevailing plaintiff” (L 1980, ch 346, § 1).

It is well settled that, while the statute may “cover conduct ‘akin’ to common-law fraud” (*Gaidon v Guardian Life Ins. Co.*

1. While we appreciate our concurring colleagues’ concern over “judicial modesty” (concurring op at 461), the issue of the availability punitive damages was preserved, was decided by the Appellate Division, and was briefed to this Court. Given the split at the Appellate Division over whether such damages are available under General Business Law § 349 (h) and the uncertainty in federal courts that are called upon to apply the New York statute, we see resolution of the issue as an institutional responsibility, not a “‘gratuitous ride’” (concurring op at 462, quoting *PDK Labs. Inc. v United States D.E.A.*, 362 F3d 786, 799 [DC Cir 2004, Roberts, J., concurring in part & concurring in judgment]).

of Am., 96 NY2d 201, 209 [2001]), claims under this provision of General Business Law § 349 are “creature[s] of statute based on broad consumer-protection concerns” (*Gaidon v Guardian Life Ins. Co. of Am.*, 94 NY2d 330, 343 [1999]; see *Matter of Motor Veh. Acc. Indem. Corp. v Aetna Cas. & Sur. Co.*, 89 NY2d 214, 220-221 [1996] [distinguishing between claims with a common-law source codified by statute and claims that “would not exist but for the statute”]; *Oswego Laborers’ Local 214 Pension Fund v Marine Midland Bank*, 85 NY2d 20, 24-25 [1995]). Accordingly, in determining whether punitive damages are available to a private plaintiff bringing a General Business Law § 349 claim, “we look to the statute—not to whether the nature of the wrong alleged would permit recovery under traditional concepts of punitive damages in tort law” (*Thoreson v Penthouse Intl.*, 80 NY2d 490, 496 [1992]).

We turn first to the text of the private right of action provision. The statute provides for layered damages: actual damages, or fifty dollars, whichever is greater; discretionary treble damages up to a cap of \$1,000; and attorney’s fees (see General Business Law § 349 [h]). There is no reference to “punitive damages” in the statute, although treble damages are viewed as having some punitive effect (see *Matter of Regina Metro. Co., LLC v New York State Div. of Hous. & Community Renewal*, 35 NY3d 332, 385 [2020], citing *Vermont Agency of Natural Resources v United States ex rel. Stevens*, 529 US 765, 786 [2000] [“The very idea of treble damages reveals an intent to punish past, and to deter future, unlawful conduct, not to ameliorate the liability of wrongdoers’ ”], quoting *Texas Industries, Inc. v Radcliff Materials, Inc.*, 451 US 630, 639 (1981)]; see also *State of N.Y. ex rel. Grupp v DHL Express [USA], Inc.*, 19 NY3d 278, 286 [2012] [“Thus, rather than redressing the harm actually suffered, the statute’s imposition of civil penalties and treble damages evinces a broader punitive goal of deterring fraudulent conduct against the State”]). Treble damages under section 349 (h) are more easily proved than traditional punitive damages but are restricted in value. On the one hand, the statute provides a standard for treble damages—“willful and knowing”—that is substantially less onerous than the general standard for punitive damages (see e.g. *Prozeralik v Capital Cities Communications*, 82 NY2d 466, 479 [1993] [“Punitive damages are awarded in tort actions ‘(w)here the defendant’s wrongdoing has been intentional and deliberate, and has the character of outrage frequently associ-

ated with crime,’ ”], quoting Prosser & Keeton, Torts § 2 at 9 [5th ed 1984]). At the same time, the provision limits those damages to a hard cap of \$1,000 and gives the court discretion in awarding them even if the lower standard is met.

The balanced remedies reflect compromises reached in the legislative process that produced the private right of action (*see* Letter from Chairman of Standing Comm on Consumer Protection to Governor, May 23, 1980 at 1, Bill Jacket, L 1980, ch 346 [explaining that the bill “represents years of negotiation and compromise by business and consumer groups in pursuing a ‘private right of action’ for our citizens (and) (i)t is my belief that a fair balance has been struck in this bill”]; *compare* Letter from Commissioner of Dept of Commerce to Counsel to Governor, May 21, 1980 at 1, Bill Jacket, L 1980, ch 346 [urging the Governor to veto the bill because it “would subject businesses, particularly small businesses, to numerous claims by allowing individuals to recover at least \$50.00 plus attorneys’ fees”], *with* NY Pub Interest Research Group Legis Mem No. 32 at 1, Bill Jacket, L 1980, ch 346 [“The prospect of paying a high damage award will make deception extremely unprofitable”]). The balance struck provides a private right of action that complemented the Attorney General’s enforcement power but limits the range of available damages.

In the 44 years since the private right of action was added to the statute, the legislature has not altered that balance, leaving the provisions in section 349 (h), including the monetary caps, unchanged. By contrast, similar provisions have been updated to increase penalties. In 1980, when section 349 (h) was adopted, the legislature also added a private right of action for false advertising claims under General Business Law § 350-d (subsequently reorganized to § 350-e) in a companion bill with an identical damages provision (*see* Letter from Atty Gen to Governor, June 10, 1980 at 1, Bill Jacket, L 1980, ch 346). In 2007, the penalties were increased tenfold for false advertising claims brought under General Business Law § 350-d, allowing for “actual damages or five hundred dollars, whichever is greater” and raising the limit for treble damages to ten thousand dollars (L 2007, ch 328, § 1). Likewise, in 2010, the legislature enacted an “energy services company consumers bill of rights” (L 2010, ch 416, § 1) containing a private right of action for consumers with the same enhanced penalties as the amended section 350-d (*see* General Business Law § 349-d; *see also* Carrie Scrufari, *The Lights are on: Shining a*

Spotlight on the Retail Energy Market Reveals the Need for Enhanced Consumer Protections, 29 Fordham Envtl L Rev 349, 369 n 103 [2018]).²

No corresponding increase or adjustment has yet been made for remedies available under section 349 (h), despite numerous proposals to do so (*see* 2017 NY Senate Bill S435, 2017 Assembly Bill A5247; 2015 NY Senate Bill S1273, 2015 Assembly Bill A1161; 2013 NY Senate Bill S56-A, 2013 Assembly Bill A312-A; 2011 NY Senate Bill S74, 2011 Assembly Bill A8381; 2009 NY Senate Bill S7301, 2009 Assembly Bill A10306). Among other things, these proposed amendments would have lifted the cap on actual damages from \$50 to \$500 and, with respect to treble damages, from \$1,000 to \$10,000 (*id.*). Moreover, the amendments would have specifically allowed for punitive damages, proposing that “[t]he court may . . . award punitive damages in an amount not to exceed three times the actual damages” (*id.*).

In sum, the legislature carefully calibrated damages at the time section 349 (h) was enacted. We decline to alter that balance by making available a remedy that goes far beyond what the legislature contemplated. As evidenced by the increased penalties on similar statutes, the legislature will act where it believes current remedies are insufficient. It has not done so here. We therefore conclude that punitive damages in addition to the treble damages delineated in section 349 (h) are unavailable.

Accordingly, the order of the Appellate Division insofar as appealed from should be affirmed, with costs, and the certified question answered in the affirmative.

HALLIGAN, J. (concurring). I part ways with the majority’s insistence on deciding an important question of statutory interpretation that readily could be resolved on other grounds. The parties dispute whether General Business Law § 349 (h) permits punitive damages beyond the treble multiplier of actual damages up to one thousand dollars expressly authorized in the statute. But neither side offers more than a glancing analysis of this question. They spar about the import of

2. In 1996, the legislature added an “[a]dditional civil penalty for consumer frauds against elderly persons” of up to ten thousand dollars (L 1996, ch 687, § 1 [formerly General Business Law § 350-j, now General Business Law § 349-c]; *see generally State of New York v Justin*, 3 Misc 3d 973, 993 [Sup Ct, Erie County 2003]).

dicta in our decision in *Karlin v IVF Am.* (93 NY2d 282, 291 [1999]), a law review note written more than 40 years ago, and a handful of decisions from state and federal courts, all of which offer barebones analysis. Neither party actually examines the legislative history of this particular provision or section 349 more broadly. Nor do we have before us the views of the New York Attorney General, who has weighed in on numerous other cases involving section 349's scope (e.g. *Karlin*, 93 NY2d 282; *Gaidon v Guardian Life Ins. Co. of Am.*, 94 NY2d 330 [1999]; *Gaidon v Guardian Life Ins. Co. of Am.*, 96 NY2d 201 [2001]; *Blue Cross & Blue Shield of N.J., Inc. v Philip Morris USA Inc.*, 3 NY3d 200 [2004]; *Goshen v Mutual Life Ins. Co. of N.Y.*, 98 NY2d 314 [2002]; *Plavin v Group Health Inc.*, 35 NY3d 1 [2020]; *Collazo v Netherland Prop. Assets LLC*, 35 NY3d 987 [2020]; *Himmelstein, McConnell, Gribben, Donoghue & Joseph, LLP v Matthew Bender & Co., Inc.*, 37 NY3d 169 [2021]).

The majority nonetheless forges ahead. It decides that section 349 (h) bars punitive damages beyond the capped treble damages, pointing to a few letters declaring that the enactment of a private right of action under section 349 represented a compromise between business and consumer groups, and the absence of any subsequent amendment expressly authorizing punitive damages. Perhaps that is indeed what the Legislature intended. There are signs that point in the other direction, though. For starters, one of the letters from the Bill Jacket that the majority itself relies on stresses that “[t]he prospect of paying a high damage award will make deception extremely unprofitable” (majority op at 457, quoting NY Pub Interest Research Group Legis Mem No. 32 at 1, Bill Jacket, L 1980, ch 346). That understanding squares with the potential for punitive damages, not just actual damages (which may be “difficult to establish,” see Mem for Governor from Dept of Law, June 10, 1980 at 2, Bill Jacket, L 1980, ch 346) or a cap of one thousand dollars. Along the same lines, contemporaneous reports underscore industry’s concerns that expanded liability for a private right of action could yield “an award of substantial damages” (Warren W. Traiger, *Consumer-Fraud Laws In New York Require Private Right of Action*, NYLJ, Mar. 17, 1980 at 5, col 2, Bill Jacket, L 1980, ch 346), which suggests that any compromise between business and consumer groups may not have excluded punitive damages.

The majority also asserts that treble damages “hav[e] some punitive effect” (majority op at 456). The import of this is unclear; perhaps the majority believes this effect explains why

no punitive damages are available. In any event, the majority ignores that treble damages may be intended to deter particular statutory violations or to ensure rigorous and robust private enforcement, in addition to simply punishing egregious misconduct (*see American Soc. of Mechanical Engineers, Inc. v Hydrolevel Corp.*, 456 US 556, 574-576 [1982] [noting that the federal Sherman Act's private right of action was created "primarily as a remedy for the victims of antitrust violations," and treble damages "make the remedy meaningful by counterbalancing 'the difficulty of maintaining a private suit' " under antitrust laws (citations omitted)]; *Sperry v Crompton Corp.*, 8 NY3d 204, 214 [2007] [the New York Donnelly Act's uncapped treble damages provision "necessarily punishes antitrust violations, deters such behavior . . . or encourages plaintiffs to commence litigation—or some combination of the three"])). Statements in the bill jacket for section 349 (h) make the same point (*see* Letter from Commissioner of County of Suffolk Dept of Consumer Affairs to NY Pub Interest Research Group, Inc., May 22, 1980 at 1, Bill Jacket, L 1980, ch 346 [the bill "provide(s) enforcement machinery for communities or areas of the state where there are no active consumer service organizations"]; *and* Statement from Assemblyman Jose E. Serrano, Mar. 10, 1980 at 1, Bill Jacket, L 1980, ch 346 ["The Attorney General cannot possibly adequately police the market alone"]). Thus, the inclusion of a treble damages remedy capped at one thousand dollars sheds little light on whether the Legislature intended that punitive damages would nonetheless be available to punish wrongdoers, as the Legislature could have instead primarily intended treble damages to serve a deterrent effect or incentivize private enforcement. None of these questions are addressed by the parties.

Nor does the majority discuss numerous other points that might bear on the meaning of section 349 (h). To note a few: Is our decision in *Thoreson*, on which plaintiff relies, best read as broadly holding that remedies otherwise available at common law are never available for a statutorily created cause of action unless explicitly delineated, or more narrowly, as tethered to the Legislature's intent in enacting the New York State Human Rights Law (*see Thoreson v Penthouse Intl.*, 80 NY2d 490 [1992])? How does the absence of a scienter requirement for a General Business Law § 349 (h) claim affect the availability (or lack thereof) of punitive damages? What is the import of prior cases from this Court holding that courts are not limited to the

remedies specified under the Martin Act (General Business Law art 23-A) or Executive Law § 63 (12) (*see e.g. People v Greenberg*, 27 NY3d 490, 497 [2016], citing *People v Lexington Sixty-First Assoc.*, 38 NY2d 588 [1976])? How might the majority's decision affect remedies available for other state law provisions that include a treble damages option (*e.g.* General Business Law § 340 [5] [Donnelly Act]; General Business Law § 628 [1] [health club services]; General Business Law § 206 [hotel overcharges]; General Business Law § 458-i [credit services businesses])? What, if anything, should we make of the recent introduction of bills in the State Legislature to add punitive damages explicitly to General Business Law § 349?

Granted, other courts have divided on the question whether punitive damages are available under section 349 (h), and it is preserved for our review. But that does not mean that we “need to resolve it” here and now, as the majority blithely asserts (majority op at 455), because an alternative ground is right before us. In explaining why punitive damages are not available for plaintiff's breach of contract claim, the majority concludes that plaintiffs simply have not raised a triable issue of fact as to the type of egregious, deliberate conduct that has long been the hallmark of punitive damages (majority op at 453-454; *see e.g. Prozeralik v Capital Cities Communications*, 82 NY2d 466, 479 [1993], quoting Prosser & Keeton, Torts § 2 at 9 [5th ed 1984]; *Rocanova v Equitable Life Assur. Socy. of U.S.*, 83 NY2d 603, 613 [1994]). That is an easy call, especially since the charges at issue were less than the cap included in the policy. I believe that conclusion forecloses punitive damages, period—whether for plaintiff's breach of contract claim, section 349 claim, or any other claim that might give rise to such damages.

I do not understand the majority's insistence on reaching an issue that is meagerly briefed and presents arguments that neither the parties nor the majority have addressed. Courts often decide questions on narrow grounds and reserve harder issues for another day. And our Court regularly “considers only those arguments . . . which arise *by necessity* in our analysis of the questions explicitly presented” (*Matter of World Trade Ctr. Lower Manhattan Disaster Site Litig.*, 30 NY3d 377, 403 n [2017, Rivera, J., concurring] [emphasis added]). Such judicial modesty is especially prudent where an issue has not been fully subjected to the crucible of the adversarial process and there is a sufficient alternative ground for deciding the case.

Thus, “the cardinal principle of judicial restraint—if it is not necessary to decide more, it is necessary not to decide more—counsels us to go no further” (*PDK Labs. Inc. v United States D.E.A.*, 362 F3d 786, 799 [DC Cir 2004, Roberts, J., concurring in part & concurring in judgment]). Anything more is a “gratuitous ride” (*id.*), and one that I would not embark upon here.

Judges GARCIA, SINGAS and CANNATARO concur. Judge HALLIGAN concurs in result in an opinion, in which Chief Judge WILSON and Judge RIVERA concur.

Order insofar as appealed from affirmed, with costs, and certified question answered in the affirmative.

[264 NE3d 774, 237 NYS3d 372]

JEFFREY COLT et al., Respondents, v NEW JERSEY TRANSIT
CORPORATION et al., Appellants.

Argued September 10, 2024; decided November 25, 2024

PROCEDURAL SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered May 24, 2022. The Appellate Division affirmed an order of the Supreme Court, New York County (Adam Silvera, J.; op 2020 NY Slip Op 33260[U] [2020]), which had denied defendants' motion to dismiss the complaint. The following question was certified by the Appellate Division: "Was the order of Supreme Court, as affirmed by this Court, properly made?"

Colt v New Jersey Tr. Corp., 206 AD3d 126, affirmed.

HEADNOTES

Courts — Jurisdiction — Sovereign Immunity of Foreign State-Created Entity

1. In considering whether a foreign state-created entity is entitled to sovereign immunity in New York, courts should consider how the State defines the entity and its functions, the State's power to direct the entity's conduct, and the effect on the State of a judgment against the entity. Courts need not give equal weight to each consideration, and the underlying indicia may vary by case and from one party to another. Each consideration should be analyzed with the fundamental goal of determining whether allowing a suit against the foreign state-created entity to proceed in New York courts would offend the sister State's dignity.

Courts — Jurisdiction — Sovereign Immunity Defense

2. In an action to recover damages for injuries plaintiff sustained in New York when he was struck by a bus owned and operated by defendant New Jersey Transit Corporation (NJT), defendants were not entitled to invoke a sovereign immunity defense, where maintaining the action against defendant in New York would not offend New Jersey's sovereign dignity. Though New Jersey law gives defendant NJT a separate corporate existence, it classifies defendant NJT as a department within New Jersey's Executive Branch and as "an instrumentality of the State exercising public and essential government functions" (NJ Stat Ann § 27:25-4 [a]) that has the power to sue and be sued. Defendant NJT may pass rules and regulations with the "force and effect of law" in accordance with the New Jersey Administrative Procedure Act (*id.* § 27:25-5 [e]) and is not required to pay state taxes. While defendant NJT maintains the broad authority to conduct its business without the State's authorization, the Governor maintains the ability to influence its operations through their exercise of appointment and veto powers. Finally, the State has clearly disclaimed any legal liability for judgments against defendant NJT, counseling against treating it as an arm of New Jersey. Ad-

ditionally, defendants had not established that New Jersey would bear ultimate liability for a judgment against defendant NJT. Balancing each consideration, New Jersey's lack of legal liability or ultimate financial responsibility for a judgment outweighed the relatively weak support provided by the other factors. Allowing the suit to proceed would not be an affront to New Jersey's dignity because a judgment would not be imposed against the State, and the entity that would bear legal liability has a significant degree of autonomy from the State.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Municipal, County, School, and State Tort Liability §§ 534, 536.
 CARMODY-WAIT 2d Courts and Their Jurisdiction § 2:78;
 CARMODY-WAIT 2d Actions by or Against the State
 §§ 126:129–126:130, 126:132; CARMODY-WAIT 2d Actions
 By and Against Public Bodies and Public Officers
 §§ 144:5, 144:12.
 DOBBS LAW OF TORTS (2d ed) §§ 342–343.
 NY JUR 2d Courts and Judges § 568; NY JUR 2d Govern-
 ment Tort Liability §§ 1, 5, 8, 280.
 NEW YORK LAW OF TORTS §§ 17:2, 17:19, 17:37–17:38,
 17:41.
 SIEGEL, NY PRAC (6th ed) § 68.

ANNOTATION REFERENCE

See ALR Index under Foreign States; Governmental Immunity or Privilege; Jurisdiction; Privileges and Immunities; States; Torts.

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POINTS OF COUNSEL

Friedman Kaplan Seiler Adelman & Robbins LLP, New York City (*Katherine L. Pringle* of counsel), and *DeCotiis, FitzPatrick, Cole & Giblin, LLP*, New City (*John A. Stone* of counsel), for appellants. I. Interstate sovereign immunity bars plaintiffs-respondents' claims. (*Alden v Maine*, 527 US 706; *Seminole Tribe of Fla. v Florida*, 517 US 44; *Woods v Rondout Val. Cent. School Dist. Bd of Educ.*, 466 F3d 232; *Franchise Tax Bd. of Cal. v Hyatt*, 538 US 488.) II. The Appellate Division's order contravenes the Full Faith and Credit Clause. (*Wichita & Affiliated Tribes of Okla. v Hodel*, 788 F2d 765.)

Sullivan Papain Block McGrath Coffinas & Cannavo P.C., New York City (*Brian J. Shoot* and *Eric K. Schwarz* of counsel), for respondents. I. New Jersey Transit Corporation is not “the State” or an “arm of the State” under the actually governing United States Supreme Court precedents, and it therefore had no interstate immunity to waive in the first place. (*Lake Country Estates, Inc. v Tahoe Regional Planning Agency*, 440 US 391; *Lincoln County v Luning*, 133 US 529; *Hess v Port Authority Trans-Hudson Corporation*, 513 US 30; *Mancuso v New York State Thruway Auth.*, 86 F3d 289; *Bolden v Southeastern Pa. Transp. Auth.*, 953 F2d 807.) II. Defendant Ana Hernandez plainly has no Eleventh Amendment or interstate immunity from suit, and would not have had any such immunity even if New Jersey Transit Corporation actually were “one of the United States.” (*Hafer v Melo*, 502 US 21; *Ying Jing Gan v City of New York*, 996 F2d 522; *Guillemard-Ginorio v Contreras-Gomez*, 585 F3d 508; *Lewis v Clarke*, 581 US 155; *Mathie v Fries*, 121 F3d 808.) III. Assuming, arguendo, that New Jersey Transit Corporation could not be sued in New York for conduct that occurred in New York absent its or New Jersey’s consent, it plainly provided such consent. IV. Assuming, arguendo, that New Jersey Transit Corporation had any interstate immunity to waive, it plainly did so by failing to plead such immunity and by failing to timely move for dismissal. (*State of New York v Vayu, Inc.*, 39 NY3d 330; *Rubino v City of New York*, 145 AD2d 285.)

Pollack, Pollack, Isaac & DeCicco, LLP, New York City (*Brian J. Isaac* of counsel), and *David L. Scher*, *New York State Trial Lawyers Association*, New York City, for New York State Trial Lawyers Association, amicus curiae. New Jersey Transit Corporation is not an “arm of the State” based upon case law and New Jersey statutes and regulations; as such, it is not entitled to interstate sovereign immunity. Further, the doctrine does not apply to New Jersey Transit Corporation’s drivers derivatively. The restrictive venue provisions governing New Jersey Transit Corporation’s amenability to suit only highlight the impropriety and unfairness of providing New Jersey Transit Corporation and its drivers with interstate sovereign immunity, especially in a case where the latter sat on their rights for years before moving for dismissal subsequent to the expiration of the statute of limitations—acts which should give rise to a finding of waiver as a matter of law based on this record. (*Hess v Port Authority Trans-Hudson Corporation*, 513 US 30; *Lake Country Estates, Inc. v Tahoe Regional Planning Agency*,

440 US 391; *Lincoln County v Luning*, 133 US 529; *Karns v Shanahan*, 879 F3d 504; *Fitchik v New Jersey Tr. Rail Operations, Inc.*, 873 F2d 655.)

OPINION OF THE COURT

SINGAS, J.

In *Franchise Tax Bd. of Cal. v Hyatt*, the United States Supreme Court recognized that the text and structure of the Federal Constitution not only preserved States' pre-ratification sovereign immunity, but compelled absolute recognition of that immunity in other States' courts as a matter of "equal dignity and sovereignty" (587 US 230, 244-247 [2019] [hereinafter *Hyatt III*], *overruling Nevada v Hall*, 440 US 410 [1979]). However, the Court did not address how to determine whether a state-created entity is entitled to this immunity. We glean from the Court's analysis that the relevant inquiry is whether subjecting a state-created entity to suit in New York would offend that State's dignity as a sovereign. We hold that, to answer this question, courts must analyze how the State defines the entity and its functions, its power to direct the entity's conduct, and the effect on the State of a judgment against the entity. Considering these factors, we conclude that maintaining this action against defendant New Jersey Transit Corporation (NJT) in our courts would not offend New Jersey's sovereign dignity and accordingly hold that defendants are not entitled to invoke a sovereign immunity defense.

I.

On February 9, 2017, a bus owned and operated by NJT allegedly struck and injured plaintiff Jeffrey Colt as he traversed a crosswalk on 40th Street in Manhattan. The bus was driven by defendant Ana Hernandez, an employee of NJT. Colt and his wife, plaintiff Betsy Tsai, commenced this action on September 18, 2017, asserting causes of action for negligence, negligent hiring, and loss of consortium. Defendants answered the complaint and denied many of plaintiffs' factual allegations. Defendants asserted—as part of an exhaustive list including many boilerplate defenses—that plaintiffs' recovery was "barred by lack of jurisdiction over NJT" and "barred as this Court lacks jurisdiction," and that defendants were "immune from suit." Defendants did not specifically reference sovereign immunity. In 2018, plaintiffs filed a bill of particulars, and defendants deposed Colt. In 2019, plaintiffs deposed

Hernandez and another NJT employee who was on the bus at the time of the accident. The parties had status conferences and stipulated to scheduling orders six times during that period. In November 2019, defendants moved to compel discovery and subsequently stipulated to three more scheduling orders.

On July 15, 2020, defendants moved to dismiss the complaint. Relying on *Hyatt III*—decided 14 months prior—defendants argued that NJT is “the alter ego of New Jersey” and therefore protected by sovereign immunity. In support of its argument that NJT was an “arm of the state” entitled to invoke sovereign immunity, defendants cited a decision by the United States Court of Appeals for the Third Circuit holding that NJT is entitled to invoke sovereign immunity in federal court (*see Karns v Shanahan*, 879 F3d 504, 519 [3d Cir 2018]). Defendants contended that NJT’s immunity extended to defendant New Jersey Transit Bus Operations, Inc., as a wholly owned subsidiary of NJT, and to Hernandez because she was acting within the scope of her employment with NJT. Defendants argued that their sovereign immunity defense could be raised at any time because it was jurisdictional and therefore could not be waived. Plaintiffs opposed the motion and asserted several grounds on which NJT waived any immunity it possessed.

On October 2, 2020, Supreme Court denied defendants’ motion (2020 NY Slip Op 33260[U] [Sup Ct, NY County 2020]). The court held that, by waiting three years from the inception of the action to raise a jurisdictionally based objection, defendants had waived their right to assert a sovereign immunity defense (*id.* at *3-4). Defendants appealed.

The Appellate Division affirmed in a split decision (206 AD3d 126 [1st Dept 2022]). The Court concluded that NJT did not waive its sovereign immunity defense. At the outset, the Court noted that it had previously held that NJT was an arm of the State of New Jersey and thus entitled to invoke sovereign immunity (*id.* at 128, citing *Fetahu v New Jersey Tr. Corp.*, 197 AD3d 1065, 1065 [1st Dept 2021]). The Court further concluded that, contrary to Supreme Court’s holding, defendants had not waived this immunity through their litigation conduct, or otherwise (*id.* at 129).

The Court nonetheless affirmed because dismissal would be “an affront to our sense of justice and cannot be countenanced” (*id.* at 133). In reaching this conclusion it considered whether plaintiffs would have been able to bring their suit in New

Jersey under the New Jersey Tort Claims Act (NJTCA). Reviewing New Jersey’s venue rules, the Court concluded that “plaintiffs cannot commence an action in New Jersey because the cause of action arose outside its borders” (*id.* at 130). Thus, the Court concluded that there was an issue “pitting the sovereign immunity defense against an individual’s fundamental right derived from the common law to be able to seek redress in a judicial forum for injuries inflicted by a tortfeasor” (*id.* at 132). Resolving this issue by analogy to the forum non conveniens doctrine, the Court concluded that these factors weighed in favor of retaining the action, reasoning that NJT would not be prejudiced by allowing the suit to proceed, given that it waited three years to move to dismiss, would not be burdened by defending the action in New York, where all of the material witnesses and evidence were located, and plaintiffs would not be able to sue in New Jersey’s courts (*id.* at 133).

Two Justices dissented, contending that the Court’s inquiry should be limited to whether defendants could assert a sovereign immunity defense and whether they had waived that defense (*id.* at 136 [Friedman, J., dissenting]). On those questions, the dissent agreed that NJT was an arm of the State of New Jersey, and that neither the NJTCA nor defendants’ litigation conduct had waived the sovereign immunity defense (*id.*). The dissent disagreed that plaintiffs’ inability to file suit in New Jersey had any relevance to the sovereign immunity analysis because no legal authority requires States to waive their sovereign immunity under any circumstances (*id.* at 138-139).

Defendants appealed, but we dismissed the appeal for lack of finality (*see* 39 NY3d 954 [2022]). The Appellate Division granted defendants leave to appeal and certified the question of whether its order was properly made (*see* 2023 NY Slip Op 64078[U] [1st Dept 2023]). We now affirm, albeit on different grounds.

II.

Hyatt III fundamentally altered the landscape of interstate sovereign immunity. Overturning *Nevada v Hall*, the Court “clarified] that all state sovereign immunity derives from the structure of the Constitution which confirmed and retained pre-ratification notions of state sovereign immunity ‘except as altered by the plan of the Convention or certain constitutional Amendments’ ” (*Henry v New Jersey Tr. Corp.*, 39 NY3d 361, 370 [2023] [some internal quotation marks omitted], quoting

Hyatt III, 587 US at 241). Under *Hall*, the Supreme Court had looked to “international-law notions of immunity,” which treated the “decision for one State to extend immunity to another State in its own courts [] as a matter of comity for the forum State to decide” (*id.* at 369, citing *Hall*, 440 US at 421, 425). *Hyatt III* abrogated this aspect of *Hall*, concluding instead that as an “essential component of federalism,” by entering the Union, the States, which had previously “relate[d] to each other solely as foreign sovereigns” were “strip[ped] . . . of any power they once had to refuse each other sovereign immunity” under international law (*Hyatt III*, 587 US at 245, 247 [internal quotation marks omitted]). In other respects, however, the Court concluded that the States maintained their pre-ratification immunity “under both the common law and the law of nations” (*id.* at 241).

Because interstate sovereign immunity was a matter of comity before *Hyatt III*—constrained by the Federal Constitution’s Full Faith and Credit Clause—few decisions explored which parties, other than a State itself, are entitled to invoke sovereign immunity in another State’s courts. Wading into these uncharted waters, we look for guidance in the Court’s opinion in *Hyatt III* as well as the related jurisprudence of state sovereign immunity in federal courts. As we explained in *Henry*, the Supreme Court in *Hyatt III* noted that

“[s]overeign immunity derives from the common-law premise that ‘no suit or action can be brought against the king, even in civil matters, because no court can have jurisdiction over him’ (1 William Blackstone, *Commentaries on the Laws of England* at 235 [1765]; see *Hyatt III*, 587 US at [238-239]; see also *Glassman v Glassman*, 309 NY 436, 440 [1956]). Because ‘all jurisdiction implies superiority of power,’ no authority could hear a case ‘unless that court had power to command the execution of it; but who . . . shall command the king?’ (1 Blackstone at 235). . . . Sovereign immunity also emanates from the conceit of ‘the perfect equality and absolute independence of sovereigns under . . . international law’ (*Hyatt III*, 587 US at [239] [internal quotation marks omitted])” (*Henry*, 39 NY3d at 368; see also *Beers v Arkansas*, 20 How [61 US] 527, 529 [1858]; *The Antelope*, 10 Wheat [23 US] 66, 122 [1825]).

Before ratification, the States—as foreign sovereigns—recognized each other’s dignity by affording immunity in their own courts as a matter of comity (*see Hyatt III*, 587 US at 244-245). But when the States’ discretion was removed, their obligation to respect each other’s sovereign dignity in their own courts became absolute (*see id.* at 245). Thus, in exploring the limits of a state-created entity’s sovereign immunity in our courts, our basic task is to determine whether allowing the suit to proceed under the circumstances would offend our sister State’s “equal dignity and sovereignty under the Constitution” (*id.*).

Our analysis aligns with the framework many courts apply in analyzing whether a state-created entity may invoke sovereign immunity in federal court—often called “Eleventh Amendment immunity”¹—which is rooted in the same pre-ratification notions of State dignity (*see Federal Maritime Comm’n v South Carolina Ports Authority*, 535 US 743, 760 [2002] [“The preeminent purpose of state sovereign immunity is to accord States the dignity that is consistent with their status as sovereign entities”]; *Seminole Tribe of Fla. v Florida*, 517 US 44, 58 [1996] [sovereign immunity “serves to avoid the indignity of subjecting a State to the coercive process of judicial tribunals at the instance of private parties” (internal quotation marks omitted)]; *Hess v Port Authority Trans-Hudson Corporation*, 513 US 30, 47 [1994] [analyzing whether suit in federal court was a “threat to the dignity” of the State]). While the text of the Eleventh Amendment applies only to federal courts, the Supreme Court has explained that it “stand[s] not so much for what it says, but for the presupposition of our constitutional structure which it confirms: that the States entered the federal system with their sovereignty intact . . . [and] that the [federal] judicial authority . . . is limited by this sovereignty” (*Blatchford v Native Village of Noatak*, 501 US 775, 779 [1991]). It is these same principles that underpinned the Court’s rejection of *Hall* in *Hyatt III*. Indeed, in *Hyatt III*, the Court reaffirmed that the Eleventh Amendment “reflect[ed]” and reaffirmed existing state sovereign immunity, rather than establishing a new “source of sovereign immunity” that limits

1. The Supreme Court has explained that the phrase “Eleventh Amendment immunity” is a “misnomer” because “States’ immunity from suit is a fundamental aspect of the sovereignty which the States enjoyed before the ratification of the Constitution” (*Alden v Maine*, 527 US 706, 713 [1999]; *see Northern Ins. Co. of N. Y. v Chatham County*, 547 US 189, 193 [2006]).

only the jurisdiction of the federal courts (*Hyatt III*, 587 US at 241, 247; see also *Virginia Office for Protection and Advocacy v Stewart*, 563 US 247, 253 [2011] [the Eleventh Amendment reflects “the structural understanding that States entered the Union with their sovereign immunity intact”]). The Supreme Court has rejected the idea that the Eleventh Amendment represents an independent limitation on federal courts’ subject matter jurisdiction over suits involving States (see *Federal Maritime Comm’n*, 535 US at 753 [“the Eleventh Amendment does not define the scope of the States’ sovereign immunity; it is but one particular exemplification of that immunity”]; compare *PennEast Pipeline Co. v New Jersey*, 594 US 482, 506 [2021] [rejecting dissenting opinion’s assertion that the Eleventh Amendment imposes an independent jurisdictional limitation], with *id.* at 510-512 [Gorsuch, J., dissenting] [arguing that the Eleventh Amendment both confirms pre-ratification structural immunity and eliminates federal judicial power in certain cases]).² Because States’ sovereign immunity in federal and state courts are analytically and historically intertwined, we deem it appropriate to conduct our analysis consistent with the Supreme Court’s and other federal courts’ arm-of-the-state jurisprudence.

The Supreme Court has explained that “when the action is in essence one for the recovery of money from the state, the state is the real, substantial party in interest and is entitled to invoke its sovereign immunity from suit” (*Ford Motor Co. v Department of Treasury of Ind.*, 323 US 459, 464 [1945]). In assessing whether a state-created entity is a so-called “arm of the state,” the Supreme Court has looked to the “‘the essential nature and effect of the proceeding’” (see *Regents of Univ. of Cal. v Doe*, 519 US 425, 429 [1997], quoting *Ford Motor Co.*, 323 US at 464) and the “‘nature of the entity created by state law’” (*id.*, quoting *Mt. Healthy City Bd. of Ed. v Doyle*, 429 US 274, 280 [1977]). The Court has considered the degree of the State’s control over the entity, how state law characterizes the entity, whether the entity performs traditional state governmental functions, and whether the State would be liable, or financially responsible, for a judgment against the entity (see *Hess*, 513 US at 44-45; *Lake Country Estates, Inc. v Tahoe Regional Planning Agency*, 440 US 391, 400-401 [1979]; *Mt.*

2. The concurrence’s analysis eschewing the use of federal court arm-of-the-state jurisprudence (see Wilson, Ch. J., concurring op at 502-509) rests on this flawed premise.

Healthy City Bd. of Ed., 429 US at 280; *Moor v County of Alameda*, 411 US 693, 717-721 [1973]).³ The Court has also analyzed whether there is evidence that the State structured the entity “to enable it to enjoy the special constitutional protection of the States themselves” (*Lake Country Estates, Inc.*, 440 US at 401).

Federal Circuit Courts have identified more specific considerations in an array of multifactor and multistep tests (see e.g. *Fresenius Med. Care Cardiovascular Resources, Inc. v Puerto Rico & Caribbean Cardiovascular Ctr. Corp.*, 322 F3d 56, 68-75 [1st Cir 2003]; *Mancuso v New York State Thruway Auth.*, 86 F3d 289, 293-297 [2d Cir 1996]; *Karns*, 879 F3d at 513-519; *Hutto v South Carolina Retirement Sys.*, 773 F3d 536, 543-548 [4th Cir 2014]; *Clark v Tarrant County, Tex.*, 798 F2d 736, 744-745 [5th Cir 1986]; *Ernst v Rising*, 427 F3d 351, 359-361 [6th Cir 2005]; *DuPage Regional Off. of Educ. v United States Dept. of Educ.*, 58 F4th 326, 341-350 [7th Cir 2023]; *United States ex rel. Fields v Bi-State Dev. Agency of Mo.-Ill. Metro. Dist.*, 872 F3d 872, 877-883 [8th Cir 2017]; *Kohn v State Bar of Cal.*, 87 F4th 1021, 1025-1032 [9th Cir 2023]; *Hennessey v University of Kan. Hosp. Auth.*, 53 F4th 516, 528-542 [10th Cir 2022]; *Manders v Lee*, 338 F3d 1304, 1308-1328 [11th Cir 2003]; *Puerto Rico Ports Auth. v Federal Mar. Commn.*, 531 F3d 868, 873-881 [DC Cir 2008]).⁴ Indeed,

“courts take numerous factors into consideration, including the statute creating the particular agency, whether the defendant has state-court im-

3. The Court has cautioned, however, that a State’s actual control over a state-created entity is not necessarily dispositive, because “ultimate control of every state-created entity resides with the State, for the State may destroy or reshape any unit it creates” (*Hess*, 513 US at 47).

4. The Third Circuit previously considered NJT not to be an arm of New Jersey for nearly three decades (see *Fitchik v New Jersey Tr. Rail Operations, Inc.*, 873 F2d 655 [3d Cir 1989]). Recently, however, the Third Circuit overruled that precedent, in part, based on its view that the Supreme Court has shifted away from emphasizing the state fisc in the context of state sovereign immunity in federal court, therefore tipping the result of the Third Circuit’s balancing test the other way (*Karns*, 879 F3d at 518-519; but see *Galette v NJ Transit*, 2023 PA Super 46, 293 A3d 649 [2023], appeal granted 313 A3d 450 [Pa 2024] [holding that NJT is not an arm of New Jersey in the interstate immunity context]). While we of course respect the Third Circuit’s analysis, we “remain at liberty to answer” this question “in a manner that may conflict with the determinations of courts in our [or other] federal circuit[s]” (*Sue/Perior Concrete & Paving, Inc. v Lewiston Golf Course Corp.*, 24 NY3d 538, 551 [2014]).

munity, decisions by the state courts, and decisions involving such agencies in other states. Also important are the powers of the agency vis-à-vis the state—for example, its powers to contract, to sue or be sued, to raise revenue, and to expend funds. In the final analysis, central factors appear to be the degree of autonomy of the defendant and whether recovery against it will come from state funds; if the unit or individual is simply functioning as the alter ego of the state in accomplishing some public purpose, it will be treated as the state and entitled to immunity” (13 Charles Alan Wright & Arthur R. Miller, *Federal Practice and Procedure* § 3524.2 [3d ed, June 2024 update] [footnote omitted]).

Many Federal Circuit Courts look to the State’s dignity as a foundational principle in analyzing arm-of-the-state status (*see e.g. Mancuso*, 86 F3d at 296 [“the sole question remaining is whether suit in federal court will be an affront to the dignity of New York State”]; *Hutto*, 773 F3d at 546 [analyzing factors to determine “whether allowing suit against a state entity would offend a State’s dignity”]). The Supreme Court has not yet endorsed any particular Circuit’s formulation of the arm-of-the-state test.

III.

[1] We distill from *Hyatt III* and other federal cases the following factors, adapted to our current use in the interstate sovereign immunity context. In considering whether a foreign state-created entity is entitled to sovereign immunity in New York, courts should consider: (1) how the State defines the entity and its functions, (2) the State’s power to direct the entity’s conduct, and (3) the effect on the State of a judgment against the entity. Courts need not give equal weight to each consideration, and the underlying indicia may vary by case and from one party to another. We do not find it necessary to list more specific subfactors that might not be relevant to all cases. Rather, we analyze each consideration with the fundamental goal of determining whether allowing a suit against the foreign state-created entity to proceed in our courts would offend our sister State’s dignity. Applying these principles to the present case, we conclude that NJT does not enjoy New Jersey’s sovereign immunity.

A.

First, to determine whether the entity is an extension of the State and its powers, we examine how the State defines the entity and its functions. Initially, the State's own characterization of NJT conflicts somewhat as to whether it envisions NJT as a separate corporation serving the public or an extension of the State. The New Jersey Legislature created NJT to "establish and provide for the operation and improvement of a coherent public transportation system" (NJ Stat Ann § 27:25-2 [b]), deeming the "provision of efficient, coordinated, safe and responsive public transportation" to be "an essential public purpose which promotes mobility, serves the needs of the transit dependent, fosters commerce, conserves limited energy resources, protects the environment and promotes sound land use and the revitalization of our urban centers" (*id.* § 27:25-2 [a]). Though New Jersey law gives NJT a separate corporate existence, it classifies NJT as a department within New Jersey's Executive Branch, specifically its Department of Transportation (*id.* § 27:25-4 [a]). It also characterizes NJT as "an instrumentality of the State exercising public and essential governmental functions" (*id.* § 27:25-4 [a]). NJT has the power to sue and be sued (*id.* § 27:25-5 [a]). Though New Jersey law prohibits NJT from asserting sovereign immunity in certain actions based on federal law, in doing so, it appears to take no position on whether NJT is entitled to sovereign immunity in the first instance (*see id.* § 27:25-24.2 ["if such defense is found to be available, the defense shall be waived"]).

Nonetheless, some state cases describe NJT as a state agency (*see e.g. New Jersey Tr. PBA Local 304 v New Jersey Tr. Corp.*, 290 NJ Super 406, 408, 675 A2d 1180, 1181 [App Div 1996] [NJT "is a state agency responsible for operating and improving public transportation in New Jersey"]). Moreover, the New Jersey Supreme Court has held that "NJT is a public entity within the ambit of the [NJ]TCA" notwithstanding that NJT is not included within that law's definition of a "State" (*Muhammad v New Jersey Tr.*, 176 NJ 185, 194, 821 A2d 1148, 1153 [2003]). However, this carries less weight in our analysis, given that the NJTCA expansively includes many entities that would not be considered arms of the State for sovereign immunity purposes (*see* NJ Stat Ann § 59:1-3). We must also take into account that NJT may pass rules and regulations with the "force and effect of law" in accordance with the New Jersey Administrative Procedure Act (*id.* § 27:25-5 [e]). And it is not required to pay state taxes (*id.* § 27:25-16).

Additionally, it is debatable whether operating an intrastate and interstate transportation network is a traditional state governmental function given the myriad other non-state public and private entities that provide similar services (*see Hess*, 513 US at 45). Though, NJT's unique status provides few analogues.⁵

On balance, we conclude that this factor leans toward according NJT sovereign immunity.

B.

The second factor asks whether the State directs the entity's conduct such that the entity acts at the State's behest. NJT exercises significant independence from New Jersey's control. "[N]otwithstanding" its classification under the Department of Transportation's umbrella, NJT is "independent of any supervision or control by the department or by any body or officer thereof" (NJ Stat Ann § 27:25-4 [a]). In fulfilling their duties, NJT's board members must exercise their "independent judgment in the best interest of [NJT], its mission, and the public" (*id.* § 27:25-4.1 [b] [1]). New Jersey's government does not direct the day-to-day operations of NJT. Rather, in directing its own operations, NJT has the power to, among other things, "[m]ake and alter bylaws for its organization and internal management and for the conduct of its affairs and business," transact in real and personal property and collect revenues for its operations, set fares and collect fare revenue for its operations, and enter into agreements and contracts (*id.* § 27:25-5 [c], [j], [k], [n], [o], [v]).

On the other hand, NJT remains beholden to the State in some respects. The members of NJT's board are appointed by the Governor, either for that office, or by virtue of their appointment as members of the Executive Branch, though they may be removed only for cause (*id.* § 27:25-4 [b]). The Commissioner of Transportation, an executive branch official who is the chairman of NJT's governing board, reviews NJT's expenditures and budget (*id.* § 27:25-20 [a]). NJT must annually report

5. We decline to adopt the concurrence's circular "core functions" framework (Wilson, Ch. J., concurring op at 501 [an entity is entitled to sovereign immunity if it performs functions that are "necessary for the State to maintain its sovereign status and sustain itself as a government"]), which pays lip service to, but is entirely unmoored from *Hyatt III*. The concurrence also disregards that the U.S. Supreme Court maintains original and exclusive jurisdiction over disputes between States (*see* US Const, art III, § 2).

its budget and condition to New Jersey's Commissioner of Transportation, its Governor, and its Legislature (*id.* § 27:25-20 [a]-[b]). The Governor has veto authority over official actions taken by the board, and the legislature can overrule a limited number of transactions (*id.* §§ 27:25-4 [f]; 27:25-13 [h]). Thus, while NJT maintains the broad authority to conduct its business without the State's authorization, the Governor maintains the ability to influence its operations through their exercise of appointment and veto powers. Therefore, this factor does not weigh heavily in either direction.

C.

The final factor assesses whether the entity's liability is the State's liability, such that a judgment against the entity would be an affront to the State. Regarding the legal effect of a judgment against NJT, New Jersey law provides:

“All expenses incurred by [NJT] in carrying out the provisions of this act shall be payable from funds available to [NJT] therefor and no liability or obligation shall be incurred by the corporation beyond the extent to which moneys are available. No debt or liability of [NJT] shall be deemed or construed to create or constitute a debt, liability, or a loan or pledge of the credit of the State” (*id.* § 27:25-17).

The State has thus clearly disclaimed any legal liability for judgments against NJT, counseling against treating NJT as an arm of New Jersey. Additionally, defendants have not established that New Jersey would bear ultimate liability for a judgment against NJT.

[2] Balancing each consideration, we conclude that New Jersey's lack of legal liability or ultimate financial responsibility for a judgment in this case outweighs the relatively weak support provided by the other factors. Put simply, allowing this suit to proceed would not be an affront to New Jersey's dignity because a judgment would not be imposed against the State, and the entity that would bear legal liability has a significant degree of autonomy from the State.⁶ We therefore conclude that NJT is not an arm of New Jersey and may not invoke

6. We reject the dissent's strawman argument that the practical impact of a judgment is our “primary consideration” (dissenting op at 510). As with all balancing tests, the impact of individual factors will vary from case to case.

sovereign immunity.⁷ The remaining defendants' claims of sovereign immunity also fail, because these claims depend on NJT's status as an arm of New Jersey.

IV.

Given our holding that NJT is not entitled to invoke sovereign immunity, we need not reach plaintiffs' arguments that defendants waived any such immunity. However, to avoid any misimpression that we endorse the Appellate Division's reasoning on that score, we make clear that we expressly reject it. Regardless of whether the Appellate Division was correct that plaintiffs were unable to bring their action in New Jersey's courts, interstate sovereign immunity is not, as the Appellate Division theorized, founded on the equitable principles that motivate the *forum non conveniens* doctrine. Inherent in the nature of sovereign immunity is the possibility that a State may avoid liability for a wrong it has done. Our courts may not disregard a sister State's sovereignty simply because an individual might otherwise not be able to recover a judgment against it. We agree with the dissent that this theory would render sovereign immunity and *Hyatt III* "dead letters" (206 AD3d at 135 [Friedman, J., dissenting]).

Accordingly, the order of the Appellate Division should be affirmed, with costs, and the certified question answered in the affirmative.

HALLIGAN, J. (concurring). The majority aptly says that *Franchise Tax Bd. of Cal. v Hyatt* (587 US 230 [2019] [*Hyatt III*]) leaves us in "uncharted waters" on the question before us: when a party other than the State itself may invoke sovereign immunity to block a private lawsuit commenced in another State's courts (majority op at 469). I agree that New Jersey Transit Corporation (NJT) cannot invoke sovereign immunity here, but write separately to address several points made by the majority and the concurrence.

I.

The majority holds that "the relevant inquiry is whether

7. Defendants' argument that allowing this suit to proceed contravenes the Full Faith and Credit Clause fails. Our analysis seeks only to apply federal constitutional sovereign immunity principles—we neither apply New York law, nor decline to apply New Jersey's (see *Franchise Tax Bd. of Cal. v Hyatt*, 578 US 171, 176 [2016]).

subjecting a state-created entity to suit in New York would offend that State's dignity as a sovereign" (majority op at 466). This reliance on "dignity" raises more questions than it answers.

First, why is "dignity" the relevant touchstone for questions of interstate sovereign immunity? The majority draws an inference based on *Nevada v Hall* (440 US 410 [1979]) (see majority op at 468-470), but the continued force of *Hall*'s analytical framework and historical grounding is at best dubious after *Hyatt III*. Indeed, the United States Supreme Court in *Hyatt III* explicitly told us that "*Hall*'s determination that the Constitution does not contemplate sovereign immunity for each State in a sister State's courts misreads the historical record and misapprehends the 'implicit ordering of relationships within the federal system'" (587 US at 237, quoting *Hall*, 440 US at 433 [Rehnquist, J., dissenting]).

Second, what does it mean to "offend [a] State's dignity" (majority op at 466)? The majority has no answer: it merely asserts that its inquiry "aligns" with Eleventh Amendment jurisprudence (*id.* at 470), and then announces another version of the "arm of the State" test (see *id.* at 473). To be sure, the Supreme Court's case law on state sovereign immunity, though extensive, says little more about the concept than does the majority. Perhaps its clearest articulation came over a century ago in *In re Ayers*, where the Court declared that "[t]he very object and purpose of the 11th Amendment were to prevent the indignity of subjecting a State to the coercive process of judicial tribunals at the instance of private parties" (123 US 443, 505 [1887]). It would "be neither becoming nor convenient," the Court said, "that the course of [the States'] public policy and the administration of their public affairs should be subject to and controlled by the mandates of judicial tribunals without their consent, and in favor of individual interests" (*id.*). None of the Court's more recent decisions give any more detail, and so, based on this fleeting explanation, the best one can say is that a concern for State dignity reflects a reluctance to allow a non-consenting State to be haled into court and its policy decisions subjected to judicial dictates (*cf. Hyatt III*, 587 US at 246-247 [noting that "a State's assertion of compulsory judicial process over another State involves a direct conflict between sovereigns"]).

Third, what does the notion of dignity tell us about whether an entity other than a State itself may invoke sovereign im-

munity? *Hall* gave a clear answer: the “source” of interstate sovereign immunity “must be found either in an agreement, express or implied, between the two sovereigns, or in the voluntary decision of the second to respect the dignity of the first as a matter of comity” (440 US at 416). Thus, for the 40 years that *Hall* was good law, the States presumably were free to determine as a matter of comity when a non-state entity was sufficiently akin to the State itself to invoke sovereign immunity. But *Hyatt III* overruled *Hall*, and even though Hyatt had sued a non-state entity, the Court was silent about why an entity other than a State itself could immunize itself from a private suit in another State’s courts. The majority offers no clear connection between dignity and the question of immunity either, eliding its leap from *Hyatt III*’s discussion of dignity to a reliance on Eleventh Amendment jurisprudence (see majority op at 469-471). It is therefore understandable that our dissenting colleague has concluded that a concern for state solvency, rather than dignity, drives the majority’s analysis (see dissenting op at 510).

In short, I am skeptical that this nebulous concept of State dignity is useful in determining what types of non-state entities may invoke sovereign immunity. It is one thing to say that “[t]he preeminent purpose of state sovereign immunity is to accord States the dignity that is consistent with their status as sovereign entities” (*Federal Maritime Comm’n v South Carolina Ports Authority*, 535 US 743, 760 [2002]). It is another task altogether to determine whether, and in what circumstances, a private suit against a non-state entity is “an impermissible affront to a State’s dignity” (*id.*).

That said, I agree with the majority that the “arm of the State” doctrine developed in Eleventh Amendment litigation is a useful reference point. The Court’s approach to when a non-state entity can invoke immunity has evolved over the years. Early decisions denied immunity to a state-created corporate entity that had “the capacity to sue and be sued” (see e.g. *Bank of United States v Planters’ Bank of Ga.*, 9 Wheat [22 US] 904, 907 [1824]).¹ That gave way to the “arm of the State” test by the mid-twentieth century (see *Mt. Healthy City Bd. of Ed. v*

1. Some have recommended reviving this approach (see e.g. *Puerto Rico Ports Auth. v Federal Mar. Commn.*, 531 F3d 868, 881-884 [DC Cir 2008, Williams, J., concurring] [arguing for a return to the test that existed “in the days before *Mt. Healthy*”]; *Springboards to Educ., Inc. v McAllen Ind. Sch. Dist.*, 62 F4th 174, 187-199 [5th Cir 2023, Oldham, J., concurring] [same]). It

(n. cont’d)

Doyle, 429 US 274, 279-281 [1977]; see also *Hess v Port Authority Trans-Hudson Corporation*, 513 US 30, 42-43 [1994]; *Regents of Univ. of Cal. v Doe*, 519 US 425, 429 [1997]). The factors encompassed in this test go to the crux of what a sovereign is (see generally *Lake Country Estates, Inc. v Tahoe Regional Planning Agency*, 440 US 391, 401-402 [1979] [setting forth the factors]),² and there is no apparent reason to define that differently depending on whether a litigation is in state or federal court. *Hyatt III* confirms this point, tearing down the wall that had separated Eleventh Amendment immunity from interstate sovereign immunity, and thereby suggesting that the same doctrinal inquiry may apply to both strands of immunity (see 587 US at 236-237 [rejecting *Hall*'s historical and analytical distinction between interstate and Eleventh Amendment immunity]). This approach has the additional virtue of ensuring that a non-state entity will be amenable to suit in both federal and state court, or neither, but not suable in one court and immune in the other. Applying those factors, I agree that NJT is not an arm of the State of New Jersey.

II.

Chief Judge Wilson has proposed an unusual approach to the issue at hand. He objects to relying on Eleventh Amendment precedent because Eleventh Amendment immunity and interstate sovereign immunity stem from distinct sources of law

rested on the “principle . . . that when a government becomes a partner in any trading company, it divests itself, so far as concerns the transactions of that company, of its sovereign character, and takes that of a private citizen” (*Planters’ Bank*, 22 US at 907). Under this theory, the State could not “identify itself with [a] corporation” created by yet independent of the sovereign (*id.*), because at common law a corporate entity was understood as “an artificial person, existing in contemplation of law, and endowed with certain powers and franchises . . . considered as subsisting in the corporation itself” (*Trustees of Dartmouth College v Woodward*, 4 Wheat [17 US] 518, 667 [1819, op of Story, J.]). The Supreme Court has not indicated it agrees with these recommendations.

2. The dissent contends that a court should not consider whether the entity’s liability is the State’s liability because this factor does not impact a State’s “coequal status among the states” (dissenting op at 518). Although the Supreme Court has instructed that protection of the State fisc is not the singular focus of state sovereign immunity (see *Federal Maritime Comm’n*, 535 US at 765), a concern for state solvency plainly must be relevant given that any significant impact on a State’s finances will hinder its ability to serve the basic needs of the polity. As the Supreme Court has explained, “state sovereign immunity serves the important function of shielding state treasuries and thus preserving ‘the States’ ability to govern in accordance with the will of their citizens’ ” (*id.*, quoting *Alden*, 527 US at 750-751).

and (to some extent) serve different objectives (*see* Wilson, Ch. J., concurring op at 502-507). That is correct as far as it goes, but, as I have said, *Hyatt III*'s treatment of *Hall* reflects a unitary conception of state sovereign immunity. Whatever it means to say the Eleventh Amendment is "an Amendment" and therefore "not an immunity" (*id.* at 506 n 13), the Court has concluded that "the 'natural inference' from [the Eleventh Amendment's] speedy adoption is that 'the Constitution was understood, in light of its history and structure, to preserve the States' traditional immunity from private suits'" (*Hyatt III*, 587 US at 243, quoting *Alden*, 527 US at 723-724). That immunity, *Hyatt III* suggests, applies in both state and federal courts (*see id.*). The concurrence's efforts to preserve *Hall*'s distinction sound suspiciously similar to the "the type of ahistorical literalism" the Court repeatedly has "rejected in interpreting the scope of the States' sovereign immunity" (*Alden*, 527 US at 730; *see also Hyatt III*, 587 US at 247).

The concurrence would look not to the Eleventh Amendment "arm of the State" case law, but to "customary international law and the common law" to determine whether sovereign immunity extends to a non-state entity (Wilson, Ch. J., concurring op at 486). *Hyatt III* explains that "[t]he Founders believed that both 'common law sovereign immunity' and 'law-of-nations sovereign immunity' prevented States from being amenable to process in any court without their consent" (587 US at 238). The decision instructs that sovereign immunity rests on these historical premises, and that "the States retained these aspects of sovereignty, 'except as altered by the plan of the Convention or certain constitutional Amendments'" (*id.* at 241, quoting *Alden*, 527 US at 713). The concurrence thus starts with the proposition that sovereigns had authority to punish those who came within their borders; points to "[m]odern conceptions of international law" that distinguish between a State's public and commercial capacities; asserts that the U.S. Constitution left untouched a State's right "to regulate matters within [its] own borders"; and concludes that only activities "that concern the essential existence and administration of a government qua government" are cloaked with immunity (Wilson, Ch. J., concurring op at 490-491, 498, 499).

This analysis has several flaws. First, assuming the concurrence correctly has identified a "modern" distinction between public and commercial activities, that contemporary categorization seems irrelevant to the question at hand. *Hyatt III*

instructs that States retain the sovereign immunity they enjoyed prior to ratification, except insofar as it was altered by the adoption of the Constitution and its later amendments (*see* 587 US at 241-243). So even if we are to rely on immunities recognized at common law and by the law of nations, our point of reference would be the time of the Founding, not today. *Hyatt III* itself relied only upon pre-ratification decisions to support its conclusion that common-law and law-of-nations immunities are embedded in the constitutional design (*see id.* at 239-241 [discussing *Nathan v Virginia* (1 Dallas [1 US] 77 n [C P, Phila County 1781]) and *Moitez v South Carolina* (17 F Cas 574 [Adm Ct, Pa 1781, No. 9,697]])]. Although the decision also mentioned two “early foreign immunity decisions” post-dating ratification, it did so only to explain that they failed to appreciate “that the Constitution affirmatively altered the relationships between the States, so that they no longer relate to each other solely as foreign sovereigns” (587 US at 244-245). The concurrence makes the same mistake.

In an effort to sidestep this problem, the concurrence asserts that under *Hyatt III*, the States’ common-law and law-of-nations immunities “are not static, but rather, evolve organically with changes in customary international law . . . because the Constitution cannot claim the power to freeze international law (or common law) in time” (Wilson, Ch. J. concurring op at 493). But again: if *Hyatt III* makes anything clear, it is that the States no longer “maintain[] sovereign immunity vis-à-vis each other in the same way that foreign nations do” (587 US at 236; *see also id.* at 246). By relying on modern conceptions of international law to define the scope of state sovereign immunity, the concurrence flouts this basic proposition. Its approach also contradicts the historical methodology it purports to apply. When the Court has looked to history to determine the scope of other constitutional rights, it repeatedly has said that the meaning of the Constitution was fixed at the time of ratification (*see e.g. New York State Rifle & Pistol Assn., Inc. v Bruen*, 597 US 1, 28 [2022], citing *United States v Jones*, 565 US 400, 404-405 [2012]). It is implausible that with its decision in *Hyatt III* the Court meant to depart from its current practice by treating state sovereign immunity as an “evolving” right. And if the Founding generation had understood that the scope of a State’s immunity from private suit in a sister State’s courts, unlike any other aspect of state sovereignty, would wax and wane according to evolving sentiment, then surely the concurrence could offer some historical evidence to that effect.

Second, and relatedly, it is hardly apparent how the Founders would have viewed an entity like NJT—one that is not itself a sovereign but nonetheless exercises some powers and responsibilities that make it akin to a sovereign. The concurrence glosses over this issue as well, instead stressing that at the time of the Founding and beyond, government officers could be sued for certain torts, and foreigners (including sovereigns) held liable for some harms inflicted outside their territory (*see* Wilson, Ch. J., concurring op at 489-490). Even if these points might bear on the scope of immunity to which a State itself is entitled, it is unclear how they should affect whether a non-state entity may claim immunity. That unanswered question confirms the challenges that courts face in undertaking such historical analysis. Like the dissenting opinion, I would refrain from such speculation (*see* dissenting op at 511 n 1; *see also McDonald v Chicago*, 561 US 742, 910 [2010, Stevens, J., dissenting] [“It is not the role of federal judges to be amateur historians”]; *State v Wright*, 961 NW2d 396, 427-428 [Iowa 2021, Appel, J., concurring] [“History is not granular, and it rarely points only in one direction. Even if historical truths can be discovered by judges writing opinions in a matter of weeks (and, alas, sometimes days), the historical truths are very difficult even for trained historians to discover and are often inconsistent and contradictory”]).

Third, the distinction between commercial operations and traditional (or, as the concurrence calls them, “core”) governmental functions has been soundly rejected by the Supreme Court (*see Garcia v San Antonio Metropolitan Transit Authority*, 469 US 528, 538-547 [1985] [disavowing “traditional government() functions” as “an organizing principle” for distinguishing state from non-state functions], *overruling National League of Cities v Usery*, 426 US 833 [1976]; *see also* Douglas Laycock, *Modern American Remedies* at 510 [4th ed 2010] [explaining that “no court has ever generated a coherent set of precedents applying the distinction”]). The concurrence acknowledges that differentiating between a State’s “commercial and public activities” may not always be “workable” for questions about “the balance between state and federal power,” but asserts that the test can nevertheless be used “to determine the scope of interstate sovereignty” (Wilson, Ch. J., concurring op at 491-492 n 1). It is true, as the concurrence notes, that we have distinguished between governmental and proprietary functions in determining the scope of common-law tort im-

munity under state common law (*see id.* at 491 n 1, citing *Connolly v Long Is. Power Auth.*, 30 NY3d 719 [2018]). But the task of doing so with respect to *another* State’s policies is fraught, and would necessarily inject us into the policy choices of that State (*cf. Garcia*, 469 US at 546 [noting that “the people—acting not through the courts but through their elected legislative representatives—have the power to determine as conditions demand, what services and functions the public welfare requires” (internal quotation marks omitted)]).³

And beyond that, how to determine what is a core function and what is not? The concurrence offers a minimalist view of core state functions as limited to “the exercise of police powers within its own borders, the election or appointment of its own officials, or the collection of taxes” (Wilson, Ch. J., concurring op at 486; *see also id.* at 501). That view of the State is inconsistent with the concurrence’s view that state sovereignty is tethered to modern, evolving precepts of international law, and the concurrence points to nothing in the Constitution that necessitates this cramped understanding of a State’s role in providing for the welfare of its citizens. As the Court explained in *Garcia*, “the ‘traditional’ nature of a particular governmental function can be a matter of historical nearsightedness; today’s self-evidently ‘traditional’ function is often yesterday’s suspect innovation” (469 US at 544 n 9). The skimpy contours of state sovereign immunity that the concurrence advances are hard to reconcile with this insight. Perhaps the concurrence means to enhance accountability for harms inflicted by bad actors, particularly a “billion-dollar . . . enterprise” (Wilson, Ch. J., concurring op at 487). That goal may be salutary (*see e.g.* Erwin Chemerinsky, *Against Sovereign Immunity*, 53 Stan L Rev 1201 [2001]), and it may counsel against a sweeping test for when a non-state entity can invoke sovereign immunity. But the “arm of the State” framework is not so broad; indeed, the result here is a determination that NJT is not cloaked with immunity.

Finally, I would not tether our jurisprudence to the prospect that one State will “create, operate and supervise a shooting gallery” within the borders of another State to “cause[] dozens of deaths each day” (Wilson, Ch. J., concurring op at 500). As even the concurrence admits, this scenario will not come to

3. Congress’s treatment of foreign sovereigns does not implicate principles of federalism, and thus the concurrence’s reliance on the “commercial activity” exception of the Foreign Sovereign Immunity Act of 1976 (28 USC § 1605) is misplaced.

pass (*see id.* at 508-509). And if something along those lines ever transpired, the conduct would be plainly unconstitutional, and a federal court would say as much (*see* US Const, art I, § 10; *see also Hyatt III*, 587 US at 245; *Ex parte Young*, 209 US 123 [1908]; Ann Woolhandler, *Interstate Sovereign Immunity*, 2006 Sup Ct Rev 249, 262 [2006] [explaining that the ratifiers of the Eleventh Amendment understood that “the Constitution and judiciary acts provided an avenue for federal court resolution of disputes when a citizen of one state complained of a wrong inflicted by an officer of another state”]). Moreover, the hypothetical is irreconcilable with the foundational principle of our Federalism: that, by entering into the Union, the States agreed to throw their lot in together and “no longer relate to each other solely as foreign sovereigns” (*Hyatt III*, 587 US at 245). In crafting a jurisprudence that governs relations with our sister States, I would not “assume the States will refuse to honor the Constitution or obey the binding laws of the United States” (*Alden*, 527 US at 755). Rather, as the Supreme Court has reminded us time and again, “[o]ur constitutional system . . . looks to ‘the good faith of the States to provide an important assurance that “this Constitution, and the Laws of the United States which shall be made in Pursuance thereof shall be the supreme Law of the Land” ’ ” (*DeVillier v Texas*, 601 US 285, 292-293 [2024] [alterations omitted], quoting *Alden*, 527 US at 755, and US Const, art VI, cl 2).

Chief Judge WILSON (concurring). New Jersey Transit sends hundreds of buses, trains and ferries into and out of New York every day, transporting hundreds of thousands of passengers each day. Unsurprisingly, a New Jersey Transit bus hit and injured a New York pedestrian crossing a New York street. According to New Jersey Transit, the pedestrian cannot sue in New York, but can sue only in New Jersey, and only if New Jersey chooses to allow it. At the outset, the majority and I are answering the same question: not whether New Jersey itself possesses sovereign immunity, but whether New Jersey Transit does.

I agree with the majority’s result: The doctrine of interstate sovereign immunity as reformulated in *Franchise Tax Bd. of Cal. v Hyatt* (587 US 230 [2019] [hereinafter *Hyatt III*]) does not prohibit the New York courts from hearing this lawsuit because New Jersey Transit is not clothed with sovereign immunity. But my reasoning differs substantially from the major-

ity's in two respects. First, I disagree with the majority's conclusion that "courts must analyze how the State defines the entity and its functions, its power to direct the entity's conduct, and the effect on the State of a judgment against the entity" (majority op at 466). The majority's test would allow a State to extend its sovereign immunity to all sorts of functions without regard to whether those functions are truly the sort over which a State may claim sovereign immunity. Under the majority's rationale, if New Jersey Transit reported directly to the Governor and was instructed to run down as many New Yorkers as possible, New Jersey's sovereign immunity would prevent it from being sued in the New York courts, and it could be sued in New Jersey only if New Jersey permitted it and only to the extent permitted.

Instead, the correct test is whether the function performed by the entity is what would, under customary international law and the common law, be considered a core governmental function to which sovereign immunity would have extended, such as the exercise of police powers within its own borders, the election or appointment of its own officials, or the collection of taxes. As regards interstate sovereign immunity, that determination would be impervious to the State's intent, the particular structure created by a State, or the potential magnitude of a judgment. Instead, the scope of sovereign immunity that extends to a state-created entity should be determined, as *Hyatt III* suggests, by examination of customary international law and the common law, as modified, if at all, by the U.S. Constitution. The answer is not affected by State intent, control or liability.

Second, I disagree that the Eleventh Amendment and associated case law has any bearing on the question at hand. The Eleventh Amendment does not define the common-law or law-of-nations concepts of sovereign immunity, nor is it coextensive with those. Instead, it is a decision by the States as to how extensive the power of the federal courts would be vis-à-vis them. In short, the question of whether a state-created entity may invoke the Eleventh Amendment to bar an action in federal court is irrelevant, because the relation of New Jersey to the United States is fundamentally different from the relation between New Jersey and New York. Transplanting the meaning of "sovereign dignity" from the Eleventh Amendment context does not comport with *Hyatt III*.

Interstate sovereign immunity, unlike the immunity of States in federal court, involves the relation between equal sovereigns.

Hyatt III holds that one State cannot decline to recognize another State's sovereignty in its own courts. However, when sovereignty is not at stake, there is no bar to a proceeding in the courts of another State. A state-created entity operating a billion-dollar interstate transportation enterprise is not a sovereign function of any State. It is a commercial enterprise operating in daily competition with myriad private entities that also shuttle riders back and forth between New Jersey and New York. Any other holding would undermine our federalist system and threaten the "fundamental principle of equal sovereignty among the States" (*Hyatt III* at 246, quoting *Shelby County v Holder*, 570 US 529, 544 [2013]).

I.

No constitutional provision addresses whether one State can be sued in another State's courts. The Supreme Court in *Hyatt III* concluded interstate sovereign immunity is implicit in the structure of the Constitution and binding upon the States as a matter of federal constitutional law. To reach that conclusion, *Hyatt III* relied on two key historical insights. First, state sovereignty predated the Constitution and States retained their sovereignty when they entered the Union (*id.* at 237-240). Second, the Constitution "affirmatively altered the relationships between the States, so that they no longer relate to each other solely as foreign sovereigns" (*id.* at 245). *Hyatt III* instructs that interstate immunity questions must proceed from those two premises. Thus, one must examine the historical origins of sovereign immunity and the nature of the sovereignty States held prior to the ratification of the Constitution. Next, one must account for the changes the Constitution provoked, transforming States from full sovereigns to quasi-sovereign entities subject to the changes worked by the U.S. Constitution.

A.

The modern doctrine of sovereign immunity originates from the English common-law concept that a sovereign cannot be dragged into a court against its will. The concept is often restated in the maxim "the King can do no wrong," or in the words of Alexander Hamilton, "It is inherent in the nature of sovereignty not to be amenable to the suit of an individual without its consent" (Hamilton, Federalist No. 81). Many readings of sovereign immunity stop here. But the rhetoric justify-

ing expansive readings of immunity tends to ignore the context-specific applications of the doctrine and obscures the long historical practice of private litigation against government entities.

The U.S. Supreme Court has identified two historical strands that inform our contemporary doctrine of sovereign immunity: “common law sovereign immunity” and “law-of-nations sovereign immunity” (*Hyatt III* at 238). Both doctrines, as practiced at the time of the Founding, allowed sovereign tribunals to vindicate the rights of private parties who had been harmed by government tortfeasors. For instance, “common law” immunity provided private individuals with wide latitude to sue government officers for violations of the law (see Louis L. Jaffe, *Suits against Governments and Officers: Sovereign Immunity*, 77 Harv L Rev 1, 3 [1963]). The King was also subject to suit by his consent, which was later replaced by fictional consent or implicit authority rather than a strict requirement (see James E. Pfander, *Sovereign Immunity and the Right to Petition: Toward a First Amendment Right to Pursue Judicial Claims against the Government*, 91 Nw U L Rev 899, 911-912 [1997]).

Sovereign immunity under customary international law, sometimes called “law-of-nations” sovereign immunity, also recognized significant limits on Sovereign A’s ability to escape Sovereign B’s tribunals for actions occurring in Sovereign B’s territory. A sovereign’s immunity did not extend outside its own territory unless the other sovereign chose to grant it immunity (see *Schooner Exchange v McFaddon*, 7 Cranch [11 US] 116, 136 [1812] [“All exceptions . . . to the full and complete power of a nation within its own territories must be traced up to the consent of the nation itself. They can flow from no other legitimate source”]).

The *Hyatt III* Court expressly invoked law-of-nations principles to determine the scope of the immunity the framers would have expected States to hold in other States’ courts. This is because, as the *Hyatt III* majority explained, after independence but before the adoption of the Constitution, States considered themselves “fully sovereign nations,” entitled “to all the rights and powers of sovereign states” (*Hyatt III* at 237-238, quoting *McIlvaine v Coxe’s Lessee*, 4 Cranch [8 US] 209, 212 [1808]). Scholars have noted that the term “State” in the Constitution is itself “a term of art drawn from the law of nations” (Anthony J. Bellia Jr. & Bradford R. Clark, *The*

International Law Origins of American Federalism, 120 Colum L Rev 835, 839 [2020]). In sum, although the law of nations does not account for the unique structure of the Federal Constitution, it illustrates the background expectations the Framers had in mind when they designed the constitutional plan.

Notably, law-of-nations immunity left sovereigns with wide latitude to punish both foreigners who transgressed within territorial boundaries and foreign sovereigns that failed to force subjects to repair the harms inflicted. Here again, rhetoric obscures the nuance of historical practice. The *Hyatt III* majority quotes Emer de Vattel, the foremost expert on the law of nations at the time of the Founding, as saying “[i]t does not . . . belong to any foreign power to take cognisance of the administration of [another] sovereign, to set himself up for a judge of his conduct, and to oblige him to alter it.’ . . . The sovereign is ‘exemp[t] . . . from all [foreign] jurisdiction’ ” (*Hyatt III*, 587 US at 239, citing 2 Emer de Vattel, *The Law of Nations* § 55 at 155 [J. Chitty ed 1883] and 4 *id.* § 108 at 486). Although sounding sweeping in scope, Vattel’s immunity mostly referred to efforts by one nation to take charge of the internal governance of another. When he explained that a foreign power could not “take cognisance of the administration of [another] sovereign,” his quintessential examples involved a foreign sovereign who supplanted a domestic sovereign for taxing his subjects too highly, inflicting unjust punishments on his subjects, or contravening Christian morals—“things, for which [the domestic sovereign] was not at all accountable to [the foreign sovereign]” (2 *id.* § 55 at 155-156; accord 1 James Kent, *Commentaries on American Law* at 20-21 [Comstock ed 1867]). That is, the sovereign immunity protected under customary international law related to the ability of one State to interfere with the essential workings of another State. That interpretation fully squares with the result in *Hyatt III*, in which the Supreme Court held that California’s sovereign immunity extended to protect its attempts to collect taxes from a former California resident who had relocated to Nevada, such that the Franchise Tax Board of California could not be sued in the Nevada courts. Collection of taxes is a core function of States, fully protected by their sovereign immunity.

By contrast, Vattel acknowledged a domestic sovereign’s “right to preserve herself from all injury” because “when we cannot use constraint in order to cause our rights to be respected, their effects are very uncertain” (2 Vattel § 49 at

154; *accord* 1 Kent at 22 [“Every nation has an undoubted right to provide for its own safety, and to take due precaution against distant as well as impending danger”]). Applying sovereign immunity to bar New York’s courts from hearing a case concerning injury to one of its own residents that occurred within its own territory would deny an essential element of New York’s own sovereignty, while not protecting any core function of New Jersey’s.

Vattel further distinguished between types of conduct in his account of the immunity afforded to the literal body of a foreign sovereign itself. If a prince were in a foreign country to negotiate or “treat about some public affair” he would be “entitled in a more eminent degree to enjoy all the rights of ambassadors,” whereas “[i]f he . . . c[a]me as a traveller, his dignity alone, and the regard due [his] nation” would “exempt[] him from all jurisdiction,” though the host country could withdraw that protection if it so informed him (4 Vattel § 108 at 486). However, if he “act[ed] as an enemy,” the prince would be entitled to no regard at all (4 *id.* § 108 at 486). Moreover, the foreign prince could not exercise his rights in such a manner as to “affect the sovereignty of the country in which he [was] a sojourner” (*id.* at 487; *see also* 2 *id.* § 92 at 169 [“the least encroachment on the territory of another is an act of injustice”]). “Even in cases of ordinary transgressions, which are only subjects of civil prosecution . . . with a view to the recovery of damages . . . the subjects of two neighboring states [we]re reciprocally obliged to appear before the magistrate of the place where they [we]re accused of having failed in their duty” (2 *id.* § 76 at 162). The foreign subject’s sovereign was generally not permitted “to examine whether the accusation be true or false” and if the sovereign “refuse[d] to cause reparation to be made for the damage done by his subject,” the sovereign would “render[] himself in some measure an accomplice in the injury, and become[] responsible for it” (2 *id.* §§ 76-77 at 163). Thus, if we look to customary international law, as *Hyatt III* directs, we find that sovereigns—and more particularly the agents of sovereigns—had no immunity from torts committed in foreign lands, and that, indeed, sovereigns were expected to recompense injuries caused by their actions or actors occurring in foreign lands.

In the centuries after Vattel’s writing, international law hewed to the older doctrine in ways that help clarify its application to this case. Modern conceptions of international law

distinguish between circumstances in which a State acts in a public rather than in a commercial capacity and extend immunity only to the former (see John M. Rogers, *Applying the International Law of Sovereign Immunity to the States of the Union*, 1981 Duke L J 449, 472 [1981]). In the United States, the so-called “restrictive theory” of sovereign immunity is enshrined in the Foreign Sovereign Immunities Act of 1976 (FSIA), which establishes criteria for when a foreign state can be subjected to civil suit in the United States (28 USC §§ 1330, 1602-1611; see Rogers at 472). The Act provides broad immunity to nations subject to specified exceptions. The major exception to the Act, known as the “commercial activity” exception, exempts from immunity actions arising out of a defendant’s commercial activity that has a nexus with the United States (28 USC § 1605). The statute defines “commercial” and notes that whether an activity is commercial “shall be determined by reference to the nature of the course of conduct or particular transaction or act, rather than by reference to its purpose” (28 USC § 1603 [d]). Courts exercise discretion in determining whether an activity is commercial or whether it has a sufficient nexus with the United States (see e.g. *Republic of Argentina v Weltover, Inc.*, 504 US 607 [1992]).¹

1. The extensive use of the distinction between commercial and public activities by Congress and the Court in determining the scope of international sovereignty helps explain why the concurrence’s observation, based on *Garcia v San Antonio Metropolitan Transit Authority* (469 US 528 [1985]) is inapposite. *Garcia* overruled *National League of Cities v Usery* (426 US 833 [1976]), a case that limited Congress’ commerce power over the States. In overruling *National League of Cities*, *Garcia* held that state sovereignty was not a bar to federal legislation subjecting state employees to the Fair Labor Standards Act (FLSA). Both cases concern the rules to determine the balance between state and federal power as set out in the Constitution—not the rules to determine questions of interstate sovereignty. Conceptually, relying on those rules instead of rules concerning coequal sovereigns is the same mistake as made when relying on Eleventh Amendment rules to determine the scope of interstate sovereignty (see part III, *infra*). (As a result of the *Garcia* decision, Congress amended the FLSA to modify its application to public sector employees—which further illustrates that the “vertical” separation-of-powers questions in that case are inapposite here.) It is also worth noting that similar distinctions are routinely made in other areas of law. For example, our courts must determine whether New York State government entities are acting in a “proprietary” or “governmental” capacity to assess their immunity from tort liability (see e.g. *Connolly v Long Is. Power Auth.*, 30 NY3d 719 [2018]). Although this New York doctrine does not inform the substance of interstate sovereignty, it does undercut the concurrence’s reliance on *Garcia* outside of its specific context to support a more general

The development of the restrictive theory of immunity is linked to historical changes, such as the increased phenomenon of States entering marketplaces and engaging in commercial activities indistinguishable from those customarily undertaken by private parties (Jasper Finke, *Sovereign Immunity: Rule, Comity or Something Else?*, 21 Eur J Intl L [Issue 4] 853-881, 859 [2010]).² However, the principles underlying that theory are not new, but rather embrace an idea at the heart of Vattel and the law of nations. That theory balances the need to respect the sovereignty and independence of foreign states with the need to hold States to account when they encroach on the territory of other States and act outside the realm of the traditional core activities of a sovereign.³

proposition that distinctions between governmental and commercial functions are not workable. The concurrence's observation that the FSIA does not involve federalism concerns, and reliance on it is therefore misplaced, assumes the answer to the question posed here (Halligan, J., concurring op at 484 n 3). Federalism altered some aspects of the sovereignty of States but left others intact. The question here is whether a state-created entity engaged in a commercial activity was clothed with the State's sovereignty before the Constitution was adopted, and whether the Constitution altered that. To say "federalism"—that the States are now part of the Union—does nothing to illuminate the answer to that question. To the extent the States retained sovereignty that was unaffected by the Constitution, the FSIA is directly relevant, because as to that sovereignty the States are no different than foreign nations. If the Constitution in some way augmented or restricted the scope of State sovereign immunity applicable to commercial entities of their creation, the FSIA remains relevant at least to disprove the majority's and concurrence's statements that a distinction between governmental and proprietary functions is not workable.

2. When the U.S. Constitution was ratified, and for more than a century thereafter, transportation was conducted by private companies, whether stagecoaches, railroads or ships (*see* Robert Jay Dilger, *American Transportation Policy* at 5, 8-10 [1954]). Even early American roads, such as turnpikes, were operated by private companies chartered by States (*id.* at 8; *see* Russell Bourne, *Americans on the Move: A History of Waterways, Railways, and Highways* at 27-30, 34 [1995]). There was, at the time the U.S. Constitution was adopted, no evidence to suggest that transportation across state lines was considered a governmental function at all, much less a sovereign one (Bourne at 34). I do not rely on the above history as imposing a limit on state sovereignty simply because these facts existed at the time of the Founding, but rather as evidence that, at the time of the Founding, it was understood that state governments could function without operating private transportation companies.

3. Other than in result, there are only small differences between my approach and that of the dissent. Both our analyses are informed by pre-ratification history, and although the dissent mischaracterizes my approach as solely based on that history, my approach is not so hidebound. As explained immediately above, the current conception of state sovereignty is also

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The concurrence misconstrues *Hyatt III*'s directives and misinterprets my reference to modern international law. *Hyatt III* does not say that the sovereign immunity of states today is precisely what it was at the time of the founding (Halligan, J., concurring op at 481-482). *Hyatt III* instead says: "[A]t the time of the founding . . . States were immune under both the common law and the law of nations. . . . And the States retained these aspects of sovereignty" (*Hyatt III* at 241). These "aspects" are not static, but rather, evolve organically with changes in customary international law. That is because the Constitution cannot claim the power to freeze international law (or common law) in time. Sovereign rights and obligations under international law do not remain frozen based on the obligations a nation had at the time of its founding; rather, international law conceptions of sovereignty change over time. Thus, while the sovereignty States enjoyed at the Founding provides a starting point, the *Hyatt III* analysis requires considering the changes in the sovereignty a modern nation-state now holds (of course, less the sovereignty the States gave up in the Constitution).⁴ Though the Framers in drafting the

informed by modern conceptions of international law. The material difference between our approaches is that, whereas the dissent looks to New Jersey law to inform the determination of the reach of its state sovereignty, I disagree that an individual State's statutory definition is relevant to determine the entity's immunity outside that State's borders.

4. Contrary to the concurrence's claim, I fully accept *Hyatt III*'s holding that "the States no longer 'maintain[] sovereign immunity vis-à-vis each other in the same way that foreign nations do' (Halligan, J., concurring op at 482, quoting *Hyatt III*, 587 US at 236). Many provisions in the Constitution, including the Commerce Clause, Full Faith and Credit Clause and virtually all of the constitutional provisions organizing the federal government, constitute incursions on State sovereignty. But this does not mean the law of nations is irrelevant. To the contrary, the *Hyatt III* Court affirmed that state sovereignty is an attribute of the law of nations and cited law-of-nations principles in its own analysis (*Hyatt III*, 587 US 230, 239-240; see *supra* at 488-489). Those principles are not the only factor in the analysis, as they do not account for the unique structure of the Constitution and the sovereignty States gave up in enacting it, but they must be considered, and they should be considered in their modern form. When the Constitution was enacted, there was no *jus cogens* norm prohibiting slavery. Today there is, and that would restrict the States' sovereignty to reinstitute slavery with or without the Constitution. Thus, the concurrence's observation that the Court has "fixed" the meaning of the Constitution's text in its interpretation of certain constitutional rights (such as the Second Amendment in the *Bruen* line of cases) is off point (Halligan, J., concurring op at 482). The Constitution has no power to fix the scope of state sovereignty in time, and the States have no sovereign power to violate *jus cogens* norms of international law today even if those norms did not exist at the time of the Constitution's ratification.

Constitution had a certain conception of the law of nations, the Framers themselves understood that the rules of the law of nations were subject to change (William S. Dodge, *Customary International Law, Change, and the Constitution*, 106 Geo L J 1559, 1581-1582 [2018]; see *Ware v Hylton*, 3 Dallas [3 US] 199, 281 [1796, op of Wilson, J.] [“When the United States declared their independence, they were bound to receive the law of nations, in its *modern state* of purity and refinement” (emphasis added)]; *United States v La Jeune Eugenie*, 26 F Cas 832, 846 [D Mass 1822, No. 15,551] [“It does not follow, therefore, that because a principle cannot be found settled by the consent or practice of nations at one time, it is to be concluded, that at no subsequent period the principle can be considered as incorporated into the public code of nations”]; Letter from Thomas Jefferson to Thomas Pinckney [May 7, 1793], Founders Online, National Archives, <https://founders.archives.gov/documents/Jefferson/01-25-02-0616> [original source: The Papers of Thomas Jefferson, vol. 25, 1 January-10 May 1793, ed John Catanzariti, Princeton: Princeton University Press, 1992, 674-676] [noting that the principles of the law of nations “have been liberalized in latter times by the refinement of manners and morals, and evidenced by the Declarations, Stipulations and Practice of every civilized Nation”]). The subject matter, rules, and means of enforcements in international law have all changed since the ratification of the U.S. Constitution; the Constitution’s texts and historical understandings must be translated “in light of [these] changes” (Dodge at 1582).⁵

5. For example, at the time of the Constitution’s ratification, slavery and genocide were not violations of customary international law. In Vattel’s time, sovereigns could support slavery or commit genocide within their own territory and no other sovereign would have had the right to interfere. The international prohibition of both was first expressed in conventions; today, both are recognized as *jus cogens* norms of customary international law (see Restatement [Third] of the Foreign Relations Law of the United States § 702; see also Silvia Scarpa, *Slavery*, Oxford Bibliographies, <https://www.oxfordbibliographies.com/display/document/obo-9780199796953/obo-9780199796953-0097.xml> [last updated May 29, 2014] [“Prohibitions of slavery and the slave trade in times of both peace and war are unanimously considered to be customary rules of international law, and they have attained the level of peremptory norms (*jus cogens* principles)”]; United Nations, *The Global Fight for Justice: How Genocide Prevention Became Law*, <https://www.un.org/en/video/global-fight-justice-how-genocide-prevention-became-law> [last accessed Oct. 11, 2024] [“The International Court of Justice (ICJ) has repeatedly stated that the Convention embodies principles that are part of general customary international law. This means that whether or not

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B.

For the purposes of this appeal, however, it does not matter whether the sovereignty of state-created entities was frozen at the time the Constitution was enacted (as Judge Halligan assumes) or is altered as rules of international law change.⁶ As Judge Halligan herself notes, “‘when a [State] government becomes a partner in any trading company, it divests itself, so far as concerns the transactions of that company, of its sovereign character, and takes that of a private citizen’” (Halligan, J., concurring op at 480 n 1, quoting *Bank of United States v Planters’ Bank of Ga.*, 9 Wheat [22 US] 904, 907 [1824]). Although in *Planters’ Bank* the Court considered the Eleventh Amendment, the Court determined that because “[t]he Planters’ Bank of Georgia is not the State of Georgia, although the State holds an interest in it,” it possessed no “sovereign character,” and therefore could be sued in any court (9 Wheat [22 US] at 907).

States have ratified the Genocide Convention, they are all bound as a matter of law by the principle that genocide is a crime prohibited under international law”]; Reservations to the Convention on the Prevention and Punishment of the Crime of Genocide, Advisory Opinion, 1951 ICJ 15, 23 [May 28, 1951] [(“T)he principles underlying the (Genocide) Convention are principles which are recognized by civilized nations as binding on States, even without any conventional obligation”). The Constitution is no more able to freeze the customary law of sovereignty in time than it is able to do so for genocide or slavery.

6. The concurrence observes that the expansion of “traditional” functions of state governments is inconsistent with my position that sovereignty is informed by changes in international law, but it does so by conflating “traditional” with “core.” In 1600, the King of England created the East India Company; several other European nations followed suit. The East India Company is “traditional,” in the sense that it existed centuries ago, but—quite pertinently here—it was subject to suit for its commercial activities but not for its governmental acts in Asia, where it acted essentially as a sovereign (see Philip J. Stern, *The English East India Company and the Modern Corporation: Legacies, Lessons, and Limitations*, 39 Seattle U L Rev 423, 432-434 [2016] [“the English East India Company was subject at various times to common law and equity courts, civil law courts, or the prerogatives and obligations of the law of nations . . . (but) the East India Company in Asia nonetheless continued to operate its own courts and establish its own law”]; compare *Nabob of the Carnatic v East India Co.*, 30 Eng Rep 521, 523 [Ch Ct 1793] [dismissing action on sovereign immunity grounds where the East India Company’s challenged acts were in the nature of treaty making], with *Moodalay v Morton*, 28 Eng Rep 1245, 1246 [Ch Ct 1785] [rejecting sovereign immunity where the East India Company’s challenged acts were commercial]). In short, all core functions are traditional, but not all traditional functions are core.

Thus, if the sovereignty of the States is as it was at the time they ratified the Constitution, *Planters' Bank* instructs that entities such as New Jersey Transit cannot invoke the sovereignty of the States. Judge Halligan offers an explanation: that subsequently the Supreme Court has moved to an "arm of the State" test, beginning with *Mt. Healthy City Bd. of Ed. v Doyle* (429 US 274 [1977]). There are two difficulties with that argument. First, *Mt. Healthy* and the other cited cases concern Eleventh Amendment immunity, not the inherent sovereign immunity of the States. The use of the arm-of-the-state test for that purpose does not bear on the test for the scope of the inherent sovereign immunity of States (*see* section IV, *infra*).

Second, *Mt. Healthy* and the other cases cited by the concurrence either support my view or are irrelevant. In *Mt. Healthy*, the Court relied on its longstanding doctrine that "[t]he bar of the Eleventh Amendment to suit in federal court[] . . . does not extend to counties and similar municipal corporations" (429 US at 280). Municipal corporations are, of course, created by States, and they serve a governmental function. Nevertheless, settled doctrine is that such entities can be sued in federal court.⁷ If they had some sovereign immunity (setting aside the Eleventh Amendment's bar, which does not apply to them), they could not be sued at all. New Jersey Transit is even less like the State than a municipal corporation; *Mt. Healthy* strongly suggests it possesses no sovereign immunity.⁸

7. *See e.g. Lake Country Estates, Inc. v Tahoe Regional Planning Agency*, 440 US 391, 401 (1979) ("the Court has consistently refused to construe the [Eleventh] Amendment to afford protection to political subdivisions such as counties and municipalities, even though such entities exercise a 'slice of state power'").

8. *Hess v Port Authority Trans-Hudson Corporation* (513 US 30, 42 [1994]) holds that the Eleventh Amendment does not bar the federal courts from hearing claims against an entity formed with federal approval pursuant to the Compact Clause, because in such cases "the federal tribunal cannot be regarded as alien in this cooperative, trigovernmental arrangement." That holding is unrelated to any issue present here. In *Regents of Univ. of Cal. v Doe* (519 US 425 [1997]), the Court answered the "narrow question . . . [of] whether the fact that the Federal Government has agreed to indemnify a state instrumentality against the costs of litigation, including adverse judgments, divests the state agency of Eleventh Amendment immunity" (*id.* at 426). The Court expressly declined to address whether the University enjoyed the sovereign immunity of California (*id.* at 431-432). Thus, the case says nothing about even the scope of Eleventh Amendment immunity, much less the inherent sovereign immunity of state-created entities. Finally, in *Lake*

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C.

I turn, then, to the common law. Common law is fully in accord with the law of nations. Although under English common law the maxim “the King can do no wrong” is frequently found, its meaning was limited to the monarch, not the monarch’s subjects, and was not absolute even as to the monarch. Thus, for example, although the King himself could not be brought into court, “if the tortious act were that of an agent or servant of the King, it was conclusively presumed to be without his sanction. The subject might sue the actual tortfeasor, and the latter could not plead in defense that it was done by royal authority” (Herbert Barry, *The King Can Do No Wrong*, 11 Va L Rev [No. 5] 349, 356 [1925]). Barry recounts two illustrative cases under English common law: *Earl of Danby’s Case* (1679), in which the King assumed responsibility for Danby’s act and granted a pardon, which was deemed ineffective because of the irrebuttable presumption that the King could do no wrong; and *Feather v The Queen* (1865), which held:

“ ‘from the maxim that the King cannot do wrong it follows as a necessary consequence that the King cannot authorize a wrong . . .

“In our opinion no authority is needed to establish that a servant of the Crown is responsible to law for a tortious act done to a fellow subject though done by authority of the Crown’ ” (*id.*).

Thus, under English common law, sovereign immunity extended to the sovereign personally but did not insulate tortious acts from suit even when directed by the sovereign (*see also supra* n 6).

The American common-law concept of sovereign immunity, to the extent resting on the proposition that if the monarch could do no wrong, neither could the government, was cabined in the same way it had been under English common law: “[T]he English maxim does not declare that the government, or those who administer it, can do no wrong; for it is a part of the principle itself that wrong may be done by the governing power,

Country Estates, another Eleventh Amendment case involving an entity created pursuant to the Compact Clause, “California and Nevada have both filed briefs in this Court disclaiming any intent to confer immunity on” the entity they had created with federal approval (440 US at 401). Both Eleventh Amendment immunity and sovereign immunity are waivable, so *Lake Country Estates* tells us nothing about the scope of New Jersey Transit’s claim to immunity.

for which the ministry, for the time being, is held responsible” (*Langford v United States*, 101 US 341, 343 [1880]).

II.

The next question is whether and to what degree the unique structure of the Federal Constitution altered the sovereignty States held under the law of nations or common law. *Hyatt III* soundly rejected Hyatt’s argument that States retained the power of fully independent nations completely to deny immunity to fellow sovereigns. The Court observed that Hyatt’s argument failed to account for how the Constitution and the “deprivation of traditional diplomatic tools” reordered the States’ relationships with one another (*Hyatt III* at 248). The Constitution “divests the States of the traditional diplomatic and military tools that foreign sovereigns possess” and “deprives them of the independent power to lay imposts or duties on imports and exports, to enter into treaties or compacts, and to wage war” (*id.* at 245). Each State’s equal dignity and sovereignty under the Constitution implies certain constitutional “limitation[s] on the sovereignty of all of its sister States” (*id.*, quoting *World-Wide Volkswagen Corp. v Woodson*, 444 US 286, 293 [1980]). One of those limitations is the States’ inability to ignore the sovereign immunity of their sister States (*Hyatt III* at 245).

Under the plan of the Constitution, the same federalist principles that protect interstate sovereign immunity bear on the question of what entities can claim sovereign immunity. Although not disturbing many of the attributes of State sovereignty, the Constitution deprived States of certain remedies they previously held as sovereigns to respond to harm caused by other States inside their own borders. Thus, if New York disapproves of New Jersey Transit’s operations within New York, New York cannot cut off trade with New Jersey, forbid New Jersey Transit from operating in New York (*see e.g. Philadelphia v New Jersey*, 437 US 617 [1978]), or declare war on New Jersey.

But just as the Constitution did not expressly disturb the right of States to be haled into the court of another State, it did not expressly disturb the law-of-nations attribute of sovereignty entitling States to regulate matters within their own borders. *Hyatt III* itself presented a situation in which those two rights of a sovereign were at least arguably in tension: the alleged torts occurred in Nevada, but the actions were

taken by agents of California pursuing an alleged tax evader. However, whether the Franchise Tax Board was, effectively, the State of California was not at issue before the Supreme Court in any of the three *Hyatt* decisions. Turning back to the law-of-nations principles discussed earlier, we can see that *Hyatt III*, which concerned California's ability to obtain tax revenues from its own residents, involved Nevada's interference with that core governmental function. As *Hyatt III* observed, "[i]t does not . . . belong to any foreign power to take cognisance of the administration of [another] sovereign," which is precisely what Nevada's lawsuit would have done by allowing a tort recovery for California's attempt to pursue an alleged tax evader (*Hyatt III* at 239). Here, however, New Jersey Transit's operations are not core functions necessary to the operation of a state government; they are commercial operations that, though undeniably important, would not have been clothed with sovereign immunity when causing torts in another sovereign's jurisdiction. Instead, the sovereign in whose territory the tort occurred was the forum in which claims would be adjudicated, and a foreign sovereign refusing to make recompense would have been in violation of the law of nations.

Thus, the constitutional structure would not deem New Jersey Transit to be clothed with the immunity of the State of New Jersey. States are immune in other States' courts for their activities that are core governmental functions—functions that concern the essential existence and administration of a government qua government. Under law-of-nations principles, however, other activities by state-created entities are not.

III.

New Jersey Transit contends that New Jersey's own characterization of New Jersey Transit is controlling, and the majority, though rejecting that notion, concludes that the characterization is relevant. I disagree. As *Hyatt III* makes clear, the source of the sovereign immunity of the States is the law of nations and the common law, as modified by the U.S. Constitution. There is no suggestion in *Hyatt III* that state law figures into the equation (except to the extent it might evidence a waiver of sovereign immunity), and for good reason: if it did, States could extend their sovereign immunity to any manner of activity occurring outside of their borders, simply by enacting statutes that, for example, placed a commercial entity under direct executive branch control, stated that the entity pos-

sessed sovereign immunity, and made the State directly liable for judgments against it.

New Jersey Transit's theory would not only insulate it from all torts its buses commit in New York, but even from liability if it used the right statutory words to create, operate and supervise a shooting gallery with live ammunition in Times Square that caused dozens of deaths each day.⁹ The same problem, to a lesser degree, infects the majority's reliance on

9. By referring to the Supreme Court's original jurisdiction over disputes between States (majority op at 475 n 5), the majority may be suggesting that New York could bring a *parens patriae* suit against New Jersey directly in the U.S. Supreme Court under some unspecified circumstance and under some unspecified theory that somehow would prevent New Jersey from either setting up a shooting gallery in Times Square or negligently running over New York pedestrians on New York City streets. The majority's suggestion is novel in its vagueness and in historical practice. The Court's original jurisdiction is commonly used in cases of boundary disputes or interstate water rights (see e.g. *Kansas v Missouri*, 322 US 213, 654 [1944]; *New Jersey v New York*, 283 US 336 [1931]). It is difficult to envision a scenario in which New York could bring suit against New Jersey under the Supreme Court's original jurisdiction to resolve a citizen's ordinary tort claim (whether intentional or negligent), or even a collection of them. Were such a claim viable, in asking the source of the rule of decision when weighing the sovereignty interests of one state against the sovereignty (or other) interest of the other, it is worth noting that, in exercising its original jurisdiction, the Court has applied principles of international law to resolve interstate disputes (see e.g. *Louisiana v Mississippi*, 202 US 1, 49-50 [1906] [applying the "thalweg" doctrine of international law to a boundary dispute]). Unlike the Eleventh Amendment jurisprudence on which the majority relies, such cases, which involve disputes between coequal States, suggest that my approach, not the majority's, is correct.

As to the concurrence's terse observation that New Jersey's operating a shooting gallery in Times Square "would be plainly unconstitutional" (Halligan, J., concurring op at 485), it is not clear what part of the Constitution would support that claim. It is also unclear why a suit to enjoin New Jersey from running a negligently constructed shooting gallery in Times Square would not offend New Jersey's sovereignty but a suit to enjoin it from driving buses negligently would. Perhaps the analysis rests on the difference between injunctive and monetary relief, though the citations to *Ex parte Young* (209 US 123 [1908]) and the Woolhandler article do not illuminate the point. The former suggests that the Eleventh Amendment would not bar a suit in federal court against the bus driver to stop driving negligently (or perhaps against the New Jersey Transit official responsible for hiring drivers, to enjoin that person from hiring negligent drivers), and latter suggests that before the Eleventh Amendment, the Constitution would have allowed a federal damage suit against the driver, though not after. In any event, the shooting gallery might be immensely profitable, and shutting it down via an injunction might have a very substantial impact on New Jersey's fisc. My view is much simpler: unless a New York lawsuit would impair the core governmental functions of New Jersey, what happens in New York stays in New York.

New Jersey law to determine whether New Jersey Transit is entitled to be treated as New Jersey itself for sovereign immunity purposes. A cabining principle is required, and *Hyatt III* directs that the law of nations and common law, as modified by the U.S. Constitution, must be the source of that cabining principle—not state law.

To preserve the equal sovereignty between States, interstate sovereign immunity must protect those acts that are necessary to a State’s functioning as a government, but cannot extend to acts that do not carry with them the essential attributes of sovereignty. Providing public transportation is undoubtedly an important function of a modern government. But the analysis for whether an entity constitutes the State for interstate immunity purposes is not whether a function is important. Rather, it is about whether that function is a necessary attribute of a State’s existence and operation as a State.

In sum, both historical practice and constitutional structure protect States from being subjected to suits in sister States’ courts when engaged in core governmental functions. At minimum, core functions include collecting taxes, running elections, and use of police power—acts necessary for the State to maintain its sovereign status and sustain itself as a government.¹⁰ *Hyatt III* involved exactly that. In contrast, when a governmentally created entity is not acting in a sovereign capacity, it is no different from an individual tortfeasor. That was true under the law of nations and the common law, and the plan of the U.S. Constitution did not change that.¹¹

10. The concurrence critiques my approach for offering a “skimpy” “minimalist” view of a State’s core functions (Halligan, J., concurring op at 484). Again, the question here is not whether a function is socially useful; the question is whether a State is immune for that function when a commercial actor of its creation and under its supervision inflicts injuries upon persons outside its own borders. My answer may or may not “enhance accountability for harms inflicted by bad actors,” but it does not cramp the ability of a State to “provid[e] for the welfare of its citizens” (Halligan, J., concurring op at 484)—except in the sense that it might stop a State from pillaging a neighbor. It establishes a limiting principle to distinguish between those functions that are inherently “State-like,” and those functions that are not (i.e., when a State is acting no differently than a private party might). Distinguishing by function also offers the benefit of simplicity, in contrast to the majority’s absence of a test—refraining from choosing among the several different multifactored tests offered by the federal appellate courts on the ground that they all lead to the same result in this case.

11. For two reasons, I disagree with the concurrence that drawing this

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IV.

The other point where I depart from the majority is its reliance on Eleventh Amendment jurisprudence to inform whether New Jersey Transit possesses New Jersey's sovereign immunity. The considerations pertaining to whether a state-created entity is deemed to be the State for purposes of Eleventh Amendment jurisprudence are not germane to the determination of whether a State is sovereign for interstate sovereign immunity purposes. The doctrines come from two very different sources and are fundamentally different in purpose and character.

Although the inability of federal courts to hear claims brought by citizens against States is often referred to as an "immunity," it is not a sovereign immunity, but a restriction of the judicial power of the federal courts alone. The Amendment

distinction with respect to another State's policies is "fraught" (Halligan, J., concurring op at 484). First, New York is not drawing the distinction with respect to another State's policies—the U.S. Constitution is, and the test will ultimately be determined by the Supreme Court, not any State court. We just happen to be the ones with this case at this moment, but even we are not trying to determine the question based on any New York law, but rather on the U.S. Constitution, about which we are required to make interim judgments from time to time.

Second, the concurrence again cites *Garcia*, this time for the proposition that distinguishing between another State's governmental and proprietary functions is a matter to be left to the people "acting not through the courts but through their elected legislative representatives" (Halligan, J., concurring op at 484). However, although New Yorkers and New Jerseyans are represented in Congress (and through their representatives can decide, apropos of *Garcia*, whether they want state employees to be subjected to federal labor laws), New Yorkers are not represented in New Jersey's legislature. With respect to New Jersey Transit's operation within New York borders, New Yorkers have no power to "determine . . . what services and functions the public welfares requires" (*id.*, quoting *Garcia*, 460 US at 546). The dissent makes the same mistake (*see* dissenting op at 514 n 2 [(A) judge is not in a better position than a duly-elected legislature to choose for its population what are its government's core functions]). The New Jersey legislature may have the power to determine what functions are "essential" and thereby immune within New Jersey's borders (dissenting op at 513-514), but when New Jersey inflicts injuries within the territory of another sovereign, it cannot be the case that New Jersey can decide which of its acts are immune. The dissent would not give New Jersey the final say, but rather, would have the judiciary determine "whether that state has sufficient control over a public entity" such that it is an arm of the State (dissenting op at 514 n 2). I agree with the dissent that the judiciary—ultimately the U.S. Supreme Court—must determine whether an entity like New Jersey Transit benefits from the State's sovereign immunity, but I disagree that the State's self-described statutory "control" over the entity should be relevant to that determination.

reads: “The Judicial power of the United States shall not be construed to extend to any suit in law or equity, commenced or prosecuted against one of the United States by Citizens of another State, or by Citizens or Subjects of any Foreign State” (US Const Amend XI). The amendment does not mention sovereign immunity, but instead places a limit on the power of the federal courts. Indisputably, the Amendment was passed as a swift response to *Chisholm v Georgia* (2 Dallas [2 US] 419, 429 [1793]), in which a citizen of South Carolina sued the State of Georgia to recover a debt. The Supreme Court held that Georgia had no sovereign immunity and allowed the claim to proceed. Although the U.S. Supreme Court’s decisions have not been consistent as to whether *Chisholm* was correctly decided (compare *New Hampshire v Louisiana*, 108 US 76, 91 [1883] [“Under the Constitution, as it was originally construed, a citizen of one State could sue another State in the courts of the United States for himself”], with *Alden v Maine*, 527 US 706, 722 [1999] [“The text and history of the Eleventh Amendment also suggest that Congress acted not to change but to restore the original constitutional design”]), in any event the Eleventh Amendment concerned the power of the federal courts to entertain suits against States. The federal government itself is a creation of the States; the extent to which the courts of the States’ new creation could adjudicate claims against them was a political question to which the States were free to provide any answer on which they agreed. It was not limited by law-of-nations or common-law rules.

Thus, even if the motivation for the Eleventh Amendment rested, ultimately, in the States’ interest in the preservation of their sovereignty, they were completely free to limit the federal power as they saw fit—without regard to the law of nations or the common law. The question the States answered, both in the Tenth and Eleventh Amendments, was how powerful they wished the federal government to be. The factors the majority borrows from Federal Eleventh Amendment jurisprudence (the State’s intent in creating an entity; its direction of the entity’s conduct; and the effect of an adverse judgment on the State’s fisc) are fine considerations when fashioning the contours of a doctrine created by the States to restrict the power of the federal courts they created, but are wholly unmoored from the dictates of law-of-nations or common-law conceptions of sovereignty, which the States are not free to modify.

That difference leads to my disagreement with the majority's resort to Eleventh Amendment jurisprudence instead of the law-of-nations and common-law jurisprudence to which *Hyatt III* directs us. Factors such as the extent to which a State will have to pay a judgment or the degree of control a State has chosen to exercise over an entity may be relevant in settling the constitutional balance between state and federal power. But those concepts have no basis in law-of-nations or common-law jurisprudence.¹²

The majority's criticism of my approach evidences a misunderstanding both of U.S. Supreme Court precedent and of my approach. The majority understands my approach as rejecting the proposition that the Eleventh Amendment "reflects" the inherent sovereign immunity of the States or the proposition that the Eleventh Amendment confirms that the States have some measure of sovereignty not diminished by the Constitution. I accept both. The majority has confused motive and means. States had sovereignty before they ratified the Constitution. It is hardly a novel proposition, as *Hyatt III* notes, that States ceded some of that sovereignty by ratifying the Constitution. It is certainly true that the States viewed *Chisholm* as something that was an unintended and undesirable consequence of the Constitution they had just adopted, and that their view of sovereignty led them to assert their sovereignty by disabling the federal courts from hearing cases in which they were defendants. The means they chose—disabling the federal courts—was unquestionably motivated by their view as to state sovereignty vis-à-vis the federal government, and collectively they had the power to regulate that relationship as

12. The disagreement between the majority and dissenting opinions as to whether the impact on a State's fisc affects the determination of the scope of sovereign immunity is better resolved by my approach (*compare* majority op at 476-477, *with* dissenting op at 510). The question, as I see it, is not whether or how much a State's fisc is affected, but the nature of function the foreign state seeks to adjudicate. If State A would impair State B's fisc by rendering a decision that interferes with State B's core governmental functions (as in *Hyatt II*), State B's sovereignty acts to bar that suit. But if, as in this case, State A's adjudication of an injury caused within the borders of State A by an entity created by State B would impair State B's fisc through a judgment against State B's injury-causing entity, State B's sovereignty would not bar that suit. In the first example, State B cannot avoid an adjudicatory effect on its fisc without curtailing a core governmental function (taxation of its residents, in *Hyatt III*); in the second, State B can avoid an adjudicatory effect on its fisc by curtailing its operations within State A's borders. Or, more sensibly, it can account for the cost of foreign tort judgments in the business plan for its extraterritorial commercial operations.

they saw fit. Although their view of their sovereignty was the reason they chose to act, the rules that have been developed to define the contours of the means they chose do not bear on the extent of sovereignty they had vis-à-vis each other. Whereas States were able to constrict or expand the power of the federal government, motivated by sovereignty or otherwise, they had no power to affect the inherent sovereignty that they possessed before ratification unless the plan of the Constitution altered it. The means chosen to restrict the federal government—the Eleventh Amendment and jurisprudence thereunder—certainly tell us that States were motivated by sovereignty, but do not tell us that the means adopted to restrict the federal government (or the jurisprudence related thereto) have import when determining the scope of interstate sovereign immunity or—more particularly—that the jurisprudence defining how to implement the chosen means helps to define the scope of interstate sovereign immunity.

To put this into a simple illustration, I post signs around my property saying, “No trespassing; persons engaged in solicitation will be prosecuted as trespassers.” My motivation is my sovereignty (if we could call it that) over the property I own. I develop a system of rules about who is engaged in solicitation (e.g., it excludes solicitation for local charities but not national charities, excludes solicitation by businesses I already deal with, and excludes people who merely drop off advertising circulars without ringing the bell). Additionally, neighborhood families sometimes play catch on my lawn without permission, and I don’t prosecute them. My “no trespassing” sign surely evidences my belief that I have sovereignty in my property that is important to me, but it would be a huge mistake to infer from the solicitation rules that those rules (or my disregard of ball-playing families) determines the scope of my sovereignty. By relying on the Eleventh Amendment jurisprudence to determine the scope of interstate sovereign immunity, the majority is importing my rule barring solicitations to define the extent of my sovereignty. *Hyatt III* affirms that “[t]he ‘sovereign immunity of the States,’ we have said, ‘neither derives from, nor is limited by, the terms of the Eleventh Amendment’ ” (*Hyatt III*, 587 US at 243 [emphasis added], quoting *Alden*, 527 US at 713). As I read *Hyatt III*, it says that interstate sovereign immunity exists independently of the Eleventh Amendment

and is not defined or cabined by the jurisprudence thereunder.¹³

Doubtless, the States quickly ratified the Eleventh Amendment out of concerns for an incursion on their sovereignty, which preexisted the Constitution. Thus, the Eleventh Amendment “is but one particular exemplification” of the sovereign immunity of the States (*see* majority op at 471, quoting *Federal Maritime Comm’n v South Carolina Ports Authority*, 535 US 743, 753 [2002]). But using that “one particular exemplification”—crafted by the States to set their relationship with the new federal courts—to set the rules for determining whether State actions are sovereign vis-à-vis each other, makes no

13. The concurrence claims that *Hyatt III* tore “down the wall that had separated Eleventh Amendment immunity from interstate sovereign immunity” and “suggest[ed] that the same doctrinal inquiry may apply to both strands of immunity” (Halligan, J., concurring op at 480). The support for the concurrence’s contention appears to be the section in the *Hyatt III* opinion that rejected *Hall*’s reading of history that inferred from “the lack of an express sovereign immunity granted to the States and from the Tenth Amendment that the States retained the power in their own courts to deny immunity to other States” (*Hyatt III*, 587 US at 237; Halligan, J., concurring op at 481). I fully accept *Hyatt III*’s proposition that *Hall* misread the historical record on this point. I also accept that there may be overlap in the historical materials to which courts turn in interpreting the Eleventh Amendment and the sources to which *Hyatt III* directs. But it simply does not follow (and is a misreading of *Hyatt III*) that *Hyatt III* “reject[ed] [the] historical and analytical distinction between interstate and Eleventh Amendment immunity” or in any way implied the two inquiries are indistinguishable (Halligan, J. concurring op at 480-481). It is not an “ahistorical literalism” to say that the Eleventh Amendment is not an immunity: The Eleventh Amendment is an Amendment. The Amendment affirmed and gave constitutional force to aspects of the preexisting immunity of the States, but it is not itself that immunity, and it is a mistake to treat “the written text of the Amendment, and the unwritten doctrines of state sovereign immunity, as one and the same” (William Baude & Steven E. Sachs, *The Misunderstood Eleventh Amendment*, 169 U Pa L Rev 609, 611 [2021]). The true ahistorical literalism is the concurrence’s assumption that there is “virtue” in “ensuring that a non-state entity will be amenable to suit in both federal and state court” (Halligan, J., concurring op at 480). Again, because Eleventh Amendment “immunity” is not an immunity but rather a disability imposed on federal courts, there is no reason the two doctrines should be aligned, and it is axiomatic that the federal courts are courts of limited jurisdiction, whereas state courts are courts of general jurisdiction, able to hear many cases that federal courts cannot hear. It is not an anomaly for an entity to have no immunity from suit in one jurisdiction and yet be protected from suit in another because the courts of that jurisdiction have been disabled from hearing such suits; rather, the anomaly is to treat New Jersey’s relation to New York’s courts as equivalent to New Jersey’s relation to the federal judicial power in the context of the constitutional design. The underlying action in *Hyatt III*, like the action at issue here, “involved no federal power at all” (Baude & Sachs at 621).

sense. For example, the need for food might cause a university to negotiate a meal plan for students, but we would be mistaken to use the contours of the meal plan to set rules the university would use to provide food for the faculty club or at alumni events or, as relevant here, to define the limits of the university's authority to provide food to persons on campus. Indeed, the majority's recognition that "the Eleventh Amendment does not define the scope of the States' sovereign immunity" (majority op at 471, quoting *Federal Maritime Comm'n*, 535 US 743, 753), makes one wonder why the majority would rely on Eleventh Amendment jurisprudence to define, or even inform, the scope of state sovereign immunity.

The majority's reliance on *PennEast Pipeline Co. v New Jersey* (594 US 482 [2021]) is particularly curious. In *PennEast*, the Court held that the States ceded their sovereign immunity to permit the federal government to take state-owned lands through condemnation and could delegate that power to private entities. The Court rejected Justice Gorsuch's view that the Eleventh Amendment independently barred the federal courts from hearing the condemnation action because once the States ceded that sovereignty as part of the plan of the Constitution (and, as the Court noted, such actions had long been prosecuted in federal court), the Eleventh Amendment could not be read to disable the federal courts from adjudicating such actions. Contrary to the majority's assertion, this does not bear on my approach at all. I do not contend that the Eleventh Amendment has nothing to do with state sovereignty or dispute that its underlying motivation was state sovereignty. But to determine the scope of state sovereign immunity, I turn to rules that define sovereign immunity, not rules that pertain to Eleventh Amendment immunity. The majority's approach is infamously used in the parable of the blind men and the elephant, with the majority using a single body part (Eleventh Amendment doctrine) to determine the entirety of the animal (state sovereign immunity doctrine).¹⁴

14. There is a slight difference: all the observed elephant parts were subsets of the elephant. Although Eleventh Amendment "immunity" is an intersecting set with, not a subset of, state sovereign immunity, that distinction does not matter for the purpose of explaining the faults in majority's approach. Indeed, because one is not a subset of the other, it would be as if one of the blind men touched not just a part of the elephant but something else as well.

Under the majority's approach, a State could create an entity and vest it with sovereign immunity regardless of its function or location—even if it operated exclusively within another State's territory—so long as the creating State announced its intent to make it a sovereign entity, directly controlled its actions, and would be responsible for a judgment against it. In my view, none of those factors is salient in determining whether a state-created entity has the sovereign immunity of the State. That analysis turns on the function of the entity. If it is the sovereign itself—meaning engaged in a function that is an essential feature of existing as a government—it is immune. If not, it is not, regardless of the intent, control or ultimate monetary liability of the State. A commercial entity licensed or run by a sovereign could not escape liability by explaining that the sovereign would have to pay a large judgment itself, or that the sovereign controlled and directed the commercial entity's actions.¹⁵ As A.V. Dicey explained:

“ ‘The King can do no wrong’ . . . means, in the first place, that by no proceeding known to the law can the King be made personally responsible for any act done by him; if (to give an absurd example) the Queen were herself to shoot the Premier through the head, no court in England could take cognisance of the act. The maxim means, in the second place, that no one can plead the orders of the Crown or indeed of any superior officer in defence of any act not otherwise justifiable by law” (A.V. Dicey, *Introduction to the Study of the Law of the Constitution* at 24 [5th ed 1897]).

The Queen would not shoot the Prime Minister through the head, nor would New Jersey establish a shooting gallery in Times Square to murder tourists. My point, though, is that the test used to determine whether a state-created entity is entitled

15. See e.g. *Farnell v Bowman*, 12 App Cas 643, 649 (1887) (“[T]he local Governments in the Colonies, as pioneers of improvements, are frequently obliged to embark in undertakings which in other countries are left to private enterprise, such, for instance, as the construction of railways, canals, and other works for the construction of which it is necessary to employ many inferior officers and workmen. If, therefore, the maxim that ‘the king can do no wrong’ were applied to Colonial Governments in the way now contended for by the Appellants, it would work much greater hardship than it does in England”).

to sovereign immunity must account for the fanciful as well as the realistic, else it is not a logically sound test.¹⁶

The majority backtracks a little from its three-element test drawn from Eleventh Amendment jurisprudence, saying that it “analyze[s] each consideration with the fundamental goal of determining whether allowing a suit against the foreign state-created entity to proceed in our courts would offend our sister State’s dignity” (majority op at 473). But if that, not the three-factor test (with freedom to diverge based on unnamed “more specific subfactors that might not be relevant to all cases” [*id.*]), is the majority’s test, it sounds suspiciously like *Hall*’s comity test, which was emphatically overturned by *Hyatt III*. Moreover, what would not offend a sister State’s dignity is an amorphous question. The test I propose is clear and consistent with the narrowness of the law-of-nations and common-law understanding of the extent to which actors other than the sovereign itself would be amenable to suit, even if the sovereign, ultimately, paid the judgment.

V.

I appreciate that the path forward from *Hyatt III* is unclear, that the U.S. Supreme Court must ultimately provide the rule and rationale, and that history provides room for disagreement. Very simply, though, I see nothing in history, the law of nations, the common law, the U.S. Constitution or *Hyatt III* that would suggest that New Jersey Transit can send buses into New York, injure New York pedestrians (whether accidentally or intentionally), and claim immunity from suit in New York.

16. I disagree with my concurring colleague’s view that scenarios that are unlikely to come to pass are not relevant to test a rule. As one can see, the eminent British scholar A.V. Dicey subscribes to my view. More to the point, though, *Hyatt III* changed the prevailing law on sovereign immunity, and the question is how to formulate a rule that has a sound theoretical underpinning and does not wreak havoc in the real world. A rule that a state-owned entity is immune from damage caused in another State—no matter how severe or how negligent (let’s presume that a State would not intentionally cause harm in another State)—would give States the incentive to enter the commercial arena more broadly than simply by owning transportation companies. Perhaps Michigan should purchase an automobile company and maintain complete immunity from automobile defect lawsuits, or require them to be brought only in Michigan courts. In the real world, we deal with these sorts of issues regularly, because many foreign sovereigns own commercial entities and, as described briefly herein, in the real world we do not consider them immune from suit in our courts for those sorts of activities (*see supra* at 490-492).

RIVERA, J. (dissenting). The primary issue on appeal is whether New Jersey Transit Corporation (NJT) may invoke sovereign immunity in plaintiffs' personal injury action filed in our state courts. I conclude it may do so, in accordance with the reasoning and holding of *Franchise Tax Bd. of Cal. v Hyatt* (587 US 230, 244-247 [2019] [hereinafter *Hyatt III*]). Although we reach different conclusions on this ultimate question, I agree with the majority that our analysis should consider whether this suit against NJT in a New York court offends New Jersey's dignity as a sovereign (*see* majority *op* at 466). However, unlike the majority, I do not believe that the primary consideration is whether New Jersey has disavowed "legal liability or ultimate financial responsibility" for a judgment against NJT (majority *op* at 476). Instead, sovereign immunity bars private suits against NJT in our courts because New Jersey: (1) regards NJT as an arm of the State; (2) empowers NJT to perform an essential governmental function; and (3) endows NJT with exclusive powers of the State in furtherance of the enabling act's statutory purpose. The latter include eminent domain, police power, and ownership of tax-exempt property in the State's name.

Notably, New Jersey has consented to private suit against NJT for alleged injurious conduct only in its own state courts. We are without constitutional power to ignore this choice and have no authority to demand that NJT answer for its conduct in New York. Doing so would be an act of superiority over New Jersey, in derogation of interstate sovereign immunity and an affront to New Jersey's dignity as a coequal, independent state.

I.

In *Hyatt III*, the United States Supreme Court overruled its prior precedent and held that the Constitution prohibits a State from being privately sued without its consent in the courts of another State (587 US at 244-247). The Court clarified that "although the Constitution assumes that the States retain their sovereign immunity except as otherwise provided, it also fundamentally adjusts the States' relationship with each other and curtails their ability, as sovereigns, to decline to recognize each other's immunity" (*id.* at 237).

To understand *Hyatt III*'s implications for interstate sovereign immunity, we must examine the legal principles the

Supreme Court extracted from the doctrine's history.¹ The interstate sovereign immunity retained in the Constitution derives from well-known and well-accepted common-law and law of nations doctrines (*id.* at 237-239). Preratification, "[t]he common-law rule was that no suit or action [could] be brought against the king, even in civil matters, because no court [could] have jurisdiction over him. The law-of-nations rule followed from the perfect equality and absolute independence of sovereigns under that body of international law" (*id.* at 238-239 [citation and internal quotation marks omitted]). And according to the "founding era's foremost expert on the law of nations": "[i]t does not . . . belong to any foreign power to take cognisance of the administration of [another] sovereign, to set himself up for a judge of his conduct, and to oblige him to alter it. The sovereign is exemp[t] . . . from all [foreign] jurisdiction" (*id.* at 239 [internal quotation marks and citations omitted]).

To illustrate the "founding generations" preratification understanding, the *Hyatt III* Court highlighted *Nathan v Virginia*, where a private individual sought to collect an alleged debt of the state of Virginia by attaching certain Virginia-owned property in Pennsylvania (*id.* at 240, citing *Nathan v Virginia*, 1 Dallas [1 US] 77 n, 78 n [C P, Phila County 1781]). James Madison, as a Virginia delegate to the Confederation Congress, objected along with several others, arguing that to allow process issued by another state's court "would require Virginia to abandon its Sovereignty by descending to answer before the Tribunal of another Power" (*id.* at 239 [internal quotation marks and citation omitted]). Pennsylvania's At-

1. Chief Judge Wilson's concurrence proposes more broadly to look to the common law and to customary international law, "as *Hyatt III* directs" (Wilson, Ch. J., concurring op at 490). *Hyatt III*, however, does not demand any such inquiry. In determining the bounds of interstate sovereign immunity under the Federal Constitution, we are bound not by the Supreme Court's historical analysis or even by its historical method, but only by its statements of law. The statements relevant here were relatively narrow. *Hyatt III* does not command that states' immunity today encompasses precisely what a historian or a judge might think was conferred by the common law and the law of nations before ratification, as modified by the Constitution. Rather, that case teaches that "States retained immunity from private suits" before ratification, "both in their own courts and in other courts" (*Hyatt III*, 587 US at 249). *Hyatt III* leaves open whether other common-law and law-of-nations principles were among those "shared by the States that ratified the Constitution" (*id.* at 236). Until the Supreme Court instructs that our Constitution requires otherwise, I would refrain from speculating about the contemporary significance of preratification doctrines.

torney General similarly advocated for dismissal of the action, arguing that it violated international law “because all sovereigns are in a state of equality and independence, exempt from each other’s jurisdiction. All jurisdiction implies superiority over the party, . . . but there could be no superiority between the States, and thus no jurisdiction, because the States were perfectly equal and entirely independent” (*id.* at 240 [citations, brackets, and internal quotation marks omitted]).

Hyatt III’s historical discussion indicates that the animating principle of these preratification notions of sovereign immunity was protection of a sovereign’s equal standing among its peers. The former colonies—having recently fought for independence from the British monarchy—ensured that the newly formed constitutional structure would preserve this coequal status. Therefore, the resulting constitutional design reflects that equal standing among the states. Because one sovereign cannot be forced to cede to another’s demand without relinquishing its independence, no sovereign can be “haled involuntarily” before another State’s courts (*id.* at 239). Conversely, derogation of interstate sovereign immunity by one State offends the other State’s dignity as an independent sovereign possessing rights of no lesser or greater significance than those of any other State in the Union.

II.

Plaintiffs commenced the underlying personal injury suit against NJT and an NJT bus driver in New York State court for damages incurred when a NJT bus struck plaintiff spouse on a New York City street. If plaintiffs had named “New Jersey” as a defendant, there would be no doubt that the State could assert sovereign immunity from this suit on its own behalf. Plaintiffs maintain that neither defendant constitutes the “State” and therefore may not invoke immunity in its place. Since defendant bus driver is sued in her capacity as an NJT employee, she may assert an immunity defense coextensive with that of NJT (*Karns v Shanahan*, 879 F3d 504, 519 n 5 [3d Cir 2018], citing *Kentucky v Graham*, 473 US 159, 167 [1985]). Accordingly, the dispositive question is whether NJT—as a public entity charged with creating and maintaining the State’s public transportation system—may invoke sovereign immunity in an action arising from NJT’s performance of its governmental functions.

To resolve that question, we must determine whether NJT’s relationship vis-à-vis New Jersey and its political branches is

of a kind that NJT may fairly be called an arm of the State, meaning, whether within its sphere of authority, NJT acts as the State in all but name. The State's intent that a public entity should be regarded as an arm of the State informs the analysis and is entitled to certain deference, but the State cannot expand the boundaries of its sovereignty by pronouncement alone. Instead, a public entity is only an arm of the State for sovereign immunity purposes if it actually serves in that capacity. As I discuss, NJT is both recognized by New Jersey as an arm of the State and de facto functions as such.

III.

The historically-grounded reasoning of *Hyatt III* must be the lodestar of a proper analysis. The protection of the States' coequal status embedded in the constitutional design thus frames the relevant inquiry as to whether New Jersey controls NJT to such extent and in such manner that a suit against NJT is the intended equivalent of a suit against the State. The characteristics which establish that equivalence are (1) performance of an essential governmental function as delineated by the State; (2) the exercise of powers exclusive to the State; and (3) oversight by the political branches that constrain the public entity's autonomy. NJT bears all of these characteristics.

A.

New Jersey enacted the Public Transportation Act of 1979, which established NJT, because

“[t]he provision of efficient, coordinated, safe and responsive public transportation is an essential public purpose which promotes mobility, serves the needs of the transit dependent, fosters commerce, conserves limited energy resources, protects the environment and promotes sound land use and the revitalization of our urban centers” (NJ Stat Ann § 27:25-2 [a]).

The State's role in this venture is “a matter of public policy” for “it is the responsibility of the State to establish and provide for the operation and improvement of a coherent public transportation system in the most efficient and effective manner” (*id.* § 27:25-2 [b]). “In furtherance of these findings and declarations,” the legislature created NJT “as an instrumentality of the State exercising public and essential governmental func-

tions,” and endowed it “with the necessary powers to accomplish the purposes and goals” of the Act, “including the power to acquire and operate public transportation assets” (*id.* §§ 27:25-2 [e]; 27:25-4 [a]). Thus, NJT was established to develop and maintain an efficient statewide public transportation system accessible to “the transit dependent” with its attendant benefits to the State-at-large (*id.* § 27:25-2 [a]). Indeed, NJT asserts that it is the largest public statewide transportation system in the United States, “provid[ing] nearly 270 million passenger trips each year” (*About Us*, New Jersey Transit, <https://www.njtransit.com/our-agency/about-us> [accessed Sept. 29, 2024]; *NJT Plans*, New Jersey Transit, <https://www.njtransit.com/plans> [accessed Oct. 1, 2024]). In furtherance of its accessibility goals, NJT also states that it provides “publicly funded transit programs for people with disabilities, senior citizens and people living in the state’s rural areas who have no other means of transportation” (*id.*).²

Thus, because NJT’s enabling Act expressly declares that NJT is “an instrumentality of the State” (NJ Stat Ann § 27:25-4 [a]) and assigns to NJT the *State’s* responsibility for New Jersey’s public transportation system, the legislature intended for NJT to be regarded as an arm of the State in the constitutional sense.³ The fact that this is the position advanced by New Jersey’s Attorney General in other litigation (*see e.g. Maison v New Jersey Tr. Corp.*, 245 NJ 270, 245 A3d 536 [2021])

2. Chief Judge Wilson’s concurrence fails to explain why accessible public transportation is not a “core function” under its test (Wilson, Ch. J., concurring op at 501). Although I do not adopt Chief Judge Wilson’s core functions test, in my view, it fails on its own terms here. It appears that the core function test is fundamentally normative. But a judge is not in a better position than a duly-elected legislature to choose for its population what are its government’s core functions. To illustrate the difference between the Chief Judge’s and my positions, in my view, a State can determine its essential functions. It is then the judiciary’s role to determine whether that State has sufficient control over a public entity that exercises its governmental functions such that the entity has structurally become an arm of the State.

3. Chief Judge Wilson’s concurrence posits that my approach “looks to New Jersey law to inform the determination of the reach of its state sovereignty” (Wilson, Ch. J., concurring op at 493 n 3). To clarify, as I have explained above, “The State’s intent that a public entity should be regarded as an arm of the State informs the analysis and is entitled to certain deference, but the State cannot expand the boundaries of its sovereignty by pronouncement alone” (*supra* at 513). Thus, the Chief Judge and I agree that a State cannot unilaterally cloak an entity with the protection of sovereign immunity. In my view, structurally, the entity must actually be an arm of the State, as evidenced by my analysis of multiple factors here.

further confirms New Jersey's view that NJT is its legal equivalent for sovereign immunity purposes.

B.

The New Jersey Legislature has also endowed NJT with core powers of that State. NJT may acquire property through eminent domain (NJ Stat Ann §§ 27:25-13 [a], [c] [1]), a recognized "attribute of sovereignty" that "appertains to every independent government" (*Boom Co. v Patterson*, 98 US 403, 406 [1879]). And NJT has its own security force with "general authority, without limitation, to exercise police powers and duties . . . in all criminal and traffic matters at all times throughout the State" (NJ Stat Ann § 27:25-15.1 [a]), powers solely "vested in the States" (*National Federation of Independent Business v Sebelius*, 567 US 519, 557 [2012]; see also *Karns*, 879 F3d at 517 [noting NJT security force powers are "the official police powers of the state"])). Further, NJT is exempt from state taxation and under the Act, "any property owned by [NJT] or any wholly owned business corporation or other entity shall be considered 'State' property" (NJ Stat Ann § 27:25-16).

In holding that NJT could invoke immunity against suit in federal court, the Third Circuit observed that these powers and tax-exempt status are judicially recognized as hallmarks of sovereignty (879 F3d at 517). And although *Karns* involved Eleventh Amendment immunity, that is a distinction without a difference when it comes to analyzing NJT's powers as traditional exemplars of state sovereignty (see *Alden v Maine*, 527 US 706, 713 [1999] ["The phrase ('Eleventh Amendment immunity') is convenient shorthand but something of a misnomer, for the sovereign immunity of the States neither derives from, nor is limited by, the terms of the Eleventh Amendment. Rather, as the Constitution's structure, its history, and the authoritative interpretations by this Court make clear, the States' immunity from suit is a fundamental aspect of the sovereignty which the States enjoyed before the ratification of the Constitution, and which they retain today (either literally or by virtue of their admission into the Union upon an equal footing with the other States) except as altered by the plan of the Convention or certain constitutional Amendments"]). On that point, the Third Circuit's comparison of NJT's statutory authority to powers reserved to sovereign states is both instructive and compelling.

C.

New Jersey's political branches wield significant control over NJT by way of appointment and veto powers. NJT is situated within the New Jersey's Department of Transportation, a principal department of the Executive Branch (NJ Stat Ann § 27:25-4 [a]). Although NJT is statutorily "independent of any supervision or control by the [D]epartment or by any body or officer thereof" (*id.*), the political branches constrain NJT's power. The Governor appoints NJT's entire 13-person governing Board (*see* NJ Stat Ann § 27:25-4 [b]). Several are members of the Executive Branch and the eight public members are appointed upon the advice and consent of the New Jersey Senate—with one each appointed upon recommendation of the President of the Senate and the Speaker of the General Assembly and two upon the Governor's recommendation (*id.*). The Commissioner of Transportation is an Executive Branch officer who serves as chair of the Board with the power to review NJT's expenditures and budget (*id.* § 27:25-4 [d]). NJT is statutorily required to submit an extensive annual report to the Governor and Legislature on topics including NJT's budget and operating expenses, personnel, safety violations, and, as relevant here, detailed accident data (*id.* § 27:25-20 [b]). NJT is also subject to audit at any time by the state auditor—a legislative official—or their authorized representative (*id.* § 27:25-20 [e]).⁴ Furthermore, the Governor has authority to veto any and all actions of the NJT board, and in fact "[n]o action taken at such meeting by the board shall have force or effect until approved by the Governor or until 10 days after such copy of the minutes shall have been delivered" (*id.* § 27:25-4 [f]). The legislature may also veto certain NJT proposed acquisitions by condemnation (*id.* § 27:25-13 [h]). Although NJT has the authority to sue and the capacity to be sued, that pales in comparison to the political branches' extensive influence over NJT's governing body and budgetary policies. "All of these facts suggest that [NJT] is an instrumentality of the state, exercising limited autonomy apart from it [, and] weigh[] in favor of immunity" (*Karns*, 879 F3d at 518).

4. The New Jersey State Auditor "is a constitutional officer appointed by the Legislature," and the Office of the State Auditor is located within New Jersey's legislative branch (*Office of the State Auditor*, New Jersey Legislature, <https://www.njleg.state.nj.us/audit-reports> [accessed Oct. 1, 2024]).

It is also significant that New Jersey has chosen to waive its immunity from suits against NJT solely in the state of New Jersey. The New Jersey Tort Act provides that every “public entity” in New Jersey is liable in tort “in the same manner and to the same extent as a private individual under like circumstances” (NJ Stat Ann § 59:2-2 [a]-[b]). New Jersey has thus chosen to permit plaintiffs and others alleging injury by NJT to seek redress, but only in their own courts. We cannot refuse to honor that choice by elevating the interests of our residents in a New York forum over those of the State of New Jersey to decide whether and when to permit such private suit.

For the reasons I have discussed, in accordance with the reasoning and holding of *Hyatt III*, I would hold that NJT is an arm of the State that may invoke sovereign immunity from private suit in our state courts as it has done here.

IV.

The majority “distill[s] from *Hyatt III* and other federal cases” three factors to be considered when determining the applicability of sovereign immunity and then proceeds to apply those factors to NJT in support of its conclusion that NJT is not an arm of New Jersey (majority op at 473). The first and second factors are similar to those I have identified as relevant to our analysis: “how the State defines the entity and its functions” (*id.* at 474; *supra* at 512-513), and “whether the State directs the entity’s conduct such that the entity acts at the State’s behest” (majority op at 475; *supra* at 513). Notwithstanding the majority’s attempt to recast their “balancing test,” the majority erroneously undervalues both of the first two factors. As to the first, the majority concludes the State’s interest “leans toward according NJT sovereign immunity” (majority op at 475). The second is even less consequential because, the majority concludes, the State’s power over NJT “does not weigh heavily in either direction” (*id.* at 476). However, these overlapping considerations support sovereignty for the reasons I have discussed above (*supra* at 513-517).

The majority’s most significant mistake is its adoption as a third factor “whether the entity’s liability is the State’s liability, such that a judgment against the entity would be an affront to the State” (majority op at 476), which the majority weighs against immunity because the State has “disclaimed any legal liability for judgments against NJT” (*id.*). That last factor weighs heavily, and is often the deciding factor, in

an Eleventh Amendment analysis (see *Regents of Univ. of Cal. v Doe*, 519 US 425 [1997]; *Hess v Port Authority Trans-Hudson Corporation*, 513 US 30, 51 [1994]; but see *Karns*, 879 F3d at 518). As the Supreme Court has explained, “the States’ solvency and dignity” are “the concerns . . . that underpin the Eleventh Amendment” (*Hess*, 513 US at 52-53). But the State’s solvency is of little consequence here when we are dealing with interstate sovereign immunity, and the inquiry at hand is whether allowing plaintiffs’ suit to proceed in New York state court alters New Jersey’s coequal status among the states, in contravention of the constitutional design (see *Hyatt III*, 587 US at 246).

The majority compounds its error by rendering this third factor dispositive. According to the majority, one factor weighs on each side of the scale and another has no effect at all on its analysis, thus, the majority could just as easily have concluded that NJT is an arm of the State. Indeed, the majority provides no rational basis—and I can see none—for holding that New Jersey’s lack of legal liability for a verdict against NJT tilts the scales and outweighs the first and second factors—the State’s intent in creating NJT and its power over NJT’s conduct. On its own terms, then, the majority’s analysis is illogical and its conclusion unjustifiable.⁵

Even viewed through the majority’s ill-selected Eleventh Amendment prism, the majority’s conclusion that NJT may not invoke immunity as an arm of New Jersey is an outlier view. The Third Circuit has expressly abandoned an “analytical framework [that] ‘ascribe[s] primacy to the [state-treasury] factor’” (*Karns*, 879 F3d at 513 [citation omitted]), and, instead, “each of the factors is considered ‘co-equal,’ and ‘on the same terms’” (*id.* [citation omitted]). Applying this “evolved approach,” the *Karns* court concluded that, even though the state-treasury factor did not favor immunity, NJT was nonetheless an arm of the State and entitled to Eleventh Amendment immunity (*id.* at 513, 516, 519). Other federal and state courts

5. Judge Halligan’s concurrence argues that, in a state sovereign immunity analysis, “concern for state solvency plainly must be relevant given that any significant impact on a State’s finances will hinder its ability to serve the basic needs of the polity” (Halligan, J., concurring op at 480 n 2). But this has no limiting principle. Any damages that the State must pay could interfere with the State’s ability to pay for other services. After all, a State has budgetary constraints. Thus, under the concurrence’s view, when the State is liable for judgments against a public entity, there is always an intrusion on state sovereignty, making this in practice a one-step test.

have also found NJT to be an arm of the State (*see e.g. Davis v New Jersey Tr.*, 2012 WL 3192716, *3, 2012 NJ Super Unpub LEXIS 1915, *7-10 [NJ Super Ct App Div, Aug. 8, 2012, No. A-4901-10T1]; *Dykman v New Jersey Tr. Rail Operations, Inc.*, 685 F Supp 79, 80 [SD NY 1988]; *Williamson v New Jersey Tr. Rail Operations Inc.*, 1987 WL 5791, *1, 1987 US Dist LEXIS 115, *1-2 [SD NY, Jan. 9, 1987, No. 86 Civ. 5353]; *Brotherhood of Locomotive Engineers v New Jersey Tr. Rail Operations, Inc.*, 608 F Supp 1216, 1217-1218 [SD NY 1985]). And post-*Hyatt III*, the Commonwealth Court of Pennsylvania held that NJT is an arm of New Jersey (*Marshall v Southeastern Pennsylvania Transp. Auth.*, 300 A3d 537, 543 n 8, 546 n 14 [Pa Commw Ct 2023]).

V.

The Appellate Division held that NJT was an arm of the State under its departmental precedent holding the same (206 AD3d 126, 128 [1st Dept 2022], citing *Fetahu v New Jersey Tr. Corp.*, 197 AD3d 1065 [1st Dept 2021]). But the Appellate Division refused to afford NJT immunity because, under that Court's reading of New Jersey law, plaintiffs would have no forum to litigate their claim, an intolerable result (*id.* at 129, 133). I agree for the reasons stated by the majority here that the Appellate Division's application of a forum non conveniens analysis to reach its conclusion was error (majority op at 477).

The remaining issue is whether there is any other legal basis to reject NJT's sovereign immunity defense. Plaintiffs contend that, even if NJT may invoke sovereign immunity, it implicitly waived that defense based on its dilatory conduct below.⁶ NJT maintains that immunity is not waivable, but claims, in the alternative, that it has not waived its defense. NJT's first argument is foreclosed by *Henry v New Jersey Tr. Corp.*, wherein we stated that "[t]he history and nature of interstate sovereign immunity guide us to the conclusion that the doctrine more closely aligns with jurisdiction over a party, rather than overall subject matter concerning that party" and accordingly this defense can be waived "based on litigation conduct" (39 NY3d 361, 371-372 [2023]). Whether on the record before us NJT has waived immunity as a matter of law is a close question.

6. Plaintiffs' claim that the New Jersey Tort Claims Act is an express waiver of immunity is wrong on the merits. That statute applies to claims filed in New Jersey's state courts and does not limit NJT's interstate sovereign immunity defense.

In its answer, NJT asserted, in conclusory language, that “Plaintiffs’ recovery, and/or claims in this litigation [] against Defendants is barred by lack of jurisdiction over NJT,” that “Plaintiffs’ recovery should be barred as this Court lacks jurisdiction,” and that “Defendants are immune from suit.” But NJT failed to move for dismissal on sovereign immunity grounds until July 2020, over a year and a half after filing its answer in January 2018, over a year after *Hyatt III* was decided, and after the New Jersey statute of limitations expired in February 2019. This conduct suggests the type of gamesmanship we frowned upon in *Henry* (see 39 NY3d at 366). Moreover, between commencement of plaintiffs’ personal injury action and NJT’s motion to dismiss, three depositions were held, a discovery motion disputed, and nine stipulations entered. NJT made no effort to avoid potentially unnecessary litigation and the costs associated with a wasteful expenditure of party and judicial resources. Nevertheless, NJT asserted immunity in its pleading, which we must construe liberally and which preserved the defense (34-06 73, *LLC v Seneca Ins. Co.*, 39 NY3d 44, 51 [2022]). And although NJT’s delay is troubling, it acted earlier than it did in *Henry* where it raised sovereignty after litigating to a jury verdict (39 NY3d at 361, 365). On the totality of this record, I conclude that NJT’s conduct does not constitute an implicit waiver of its sovereign immunity defense.

VI.

New Jersey regards NJT as an arm of the State in its exercise of the essential governmental function to provide a statewide accessible public transportation system, a function that is the sole responsibility of the State. The New Jersey Legislature has endowed NJT with powers traditionally and exclusively exercised by the State, and New Jersey’s Legislature and Executive Branch exercise significant control over NJT’s management, expenditures and budget. Therefore, NJT is an arm of the State authorized to invoke interstate sovereign immunity. The majority’s contrary decision requires that New Jersey “abandon its Sovereignty by descending to answer before the Tribunal of another Power” (*Hyatt III* at 239; *Nathan v Virginia*, 1 Dallas [1 US] 77 n [C P Phila County 1781]). The Constitution forbids that result, and I therefore dissent.

Judges GARCIA, CANNATARO, TROUTMAN and HALLIGAN concur, Judge HALLIGAN in a concurring opinion. Chief Judge WILSON concurs in result in an opinion. Judge RIVERA dissents in an opinion.

Order affirmed, with costs, and certified question answered
in the affirmative.

[264 NE3d 816, 237 NYS3d 414]

In the Matter of OCEANVIEW HOME FOR ADULTS, INC., Doing Business as OCEANVIEW MANOR, Appellant, v HOWARD ZUCKER, as Commissioner of Health, Respondent, et al., Respondent.

Argued January 8, 2025; decided February 13, 2025

PROCEDURAL SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the Third Judicial Department, from an order of that Court, entered May 4, 2023. The Appellate Division (1) reversed, on the law, an amended judgment of the Supreme Court, Albany County (Margaret T. Walsh, J.; op 2022 NY Slip Op 34546[U] [2022]), entered in a combined declaratory judgment action and CPLR article 78 proceeding, which had (a) granted the petition as to the third cause of action relative to 18 NYCRR 487.2 (c); 487.4 (d), (i); 487.10 (e) (3), and 487.13; (b) declared those regulations to violate and to be therefore preempted by the Federal Fair Housing Act as amended; (c) annulled those regulations; and (d) immediately and permanently enjoined respondent Howard Zucker, M.D., in his official capacity as Commissioner of Health of the State of New York, his agents, successors, employees and all those acting in concert with them from enforcing those regulations; (2) dismissed the petition; and (3) declared that the challenged regulations do not violate the Fair Housing Act.

Matter of Oceanview Home for Adults, Inc. v Zucker, 215 AD3d 140, affirmed.

HEADNOTE

Health — Adult Care Facilities — Adult Homes Admissions Cap for Persons with Serious Mental Illness — Compliance with Fair Housing Act

In plaintiff's combined declaratory judgment action and CPLR article 78 proceeding alleging that regulations promulgated by the State's Department of Health (DOH) precluding an adult home from admitting additional residents with serious mental illness if it has a capacity of 80 or more beds and its resident population is over 25% persons with serious mental illness discriminated against persons with disabilities in violation of the Fair Housing Act (*see* 42 USC § 3604 [f] [1]-[2]), plaintiff failed to demonstrate that the regulations "deny" or "make unavailable" housing on the basis of a person's disability (42 USC § 3604 [f] [1]). The Chief Medical Officer of the State's Office of Mental Health (OMH) concluded that certain large adult homes are not clinically appropriate settings for the significant number of persons with serious mental illnesses who reside in such settings, nor are they conducive

to the rehabilitation or recovery of such persons. DOH licenses these homes, and implemented an admissions bar based on the proportion of residents with serious mental illness in such facilities in line with OMH's judgment. The admissions cap reflects a professional judgment about what settings are clinically and therapeutically effective for persons with serious mental illness. By giving those individuals greater ability to exercise autonomy and interact with individuals who do not have serious mental illness, the regulations further the goal of ending unnecessary exclusion of persons with disabilities. Nor is the clinical determination embodied in the regulations unusual. As a general matter, disability services are subject to various conditions and limitations, including the type of facility in which services may be provided, and the State frequently relies upon the reasonable medical judgment of its public health officials as to how best to administer such services.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Civil Rights §§ 377–378, 383, 385–388, 390.
 MCKINNEY'S, CPLR art 78.
 NY JUR 2d Civil Rights §§ 145, 147, 158–159, 166–167; NY
 JUR 2d Public Welfare and Elder Assistance §§ 200, 202,
 205.
 42 USCA § 3604 (f) (1); (2).

ANNOTATION REFERENCE

Construction and Application of § 804(f) of Fair Housing Act (42 U.S.C.A. § 3604(f)), Prohibiting Discrimination in Housing Because of Individual's Disability. 148 ALR Fed 1.

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 OR mental)

POINTS OF COUNSEL

O'Connell and Aronowitz, Attorneys at Law, Albany (Michael Y. Hawrylchak and Jeffrey J. Sherrin of counsel), for appellant.
 I. The Fair Housing Act expressly preempts state laws that purport to require discrimination in housing. (*Hargrave v Vermont*, 340 F3d 27; *Laflamme v New Horizons, Inc.*, 605 F Supp 2d 378; *Corey v Secretary, U.S. Dept. of Hous. & Urban Dev.*, 719 F3d 322; *McDonnell Douglas Corp. v Green*, 411 US 792; *United States v City of Black Jack, Mo.*, 508 F2d 1179.) II. The Third Department expressly and impliedly reversed critical findings of fact without explanation or support in the record.

(*Schroeder v State of New York*, 145 AD3d 1204; *Olmstead v L. C.*, 527 US 581; *Disability Advocates, Inc. v Paterson*, 653 F Supp 2d 184; *Disability Advocates, Inc. v New York Coalition for Quality Assisted Living, Inc.*, 675 F3d 149; *Hassan v City of New York*, 804 F3d 277.)

Constantine Cannon LLP, New York City (Gary J. Malone and Robert L. Begleiter of counsel), for Howard Zucker, respondent. I. The Appellate Division correctly held the views of the Department of Justice regarding the Fair Housing Act and Americans with Disabilities Act warrant considerable respect. (*People v Ford*, 69 NY2d 775; *Matter of Albano v Kirby*, 36 NY2d 526; *Samiento v World Yacht Inc.*, 10 NY3d 70; *Matter of Howard v Wyman*, 28 NY2d 434; *Matter of Jennings v New York State Off. of Mental Health*, 90 NY2d 227.) II. The Appellate Division correctly adopted the prevailing standard for Fair Housing Act challenges of government regulations. (*Community House, Inc. v City of Boise*, 490 F3d 1041; *Bangerter v Orem City Corp.*, 46 F3d 1491; *Larkin v State of Mich. Dept. of Social Servs.*, 89 F3d 285; *Bostock v Clayton Cnty., Georgia*, 590 US 644; *United States v Starrett City Assoc.*, 840 F2d 1096.) III. The Appellate Division correctly held that under the applicable legal standard, the regulations do not violate the Fair Housing Act because they benefit the protected class in a narrowly tailored way. (*Baba-Ali v State of New York*, 19 NY3d 627; *Northern Westchester Professional Park Assoc. v Town of Bedford*, 60 NY2d 492; *Pegasus Aviation I, Inc. v Varig Logistica S.A.*, 26 NY3d 543; *Disability Advocates, Inc. v Paterson*, 598 F Supp 2d 289; *Familystyle of St. Paul, Inc. v City of St. Paul, Minn.*, 728 F Supp 1396.)

OPINION OF THE COURT

HALLIGAN, J.

The State of New York's Department of Health (DOH) licenses certain facilities known as "adult homes" to provide "long-term residential care, room, board, housekeeping, personal care and supervision to five or more adults unrelated to the operator" (Dept of Health Regs [18 NYCRR] § 485.2 [b]). Regulations promulgated by DOH provide that an adult home may not admit additional residents with serious mental illness if it has a capacity of 80 or more beds and its resident population is over 25% persons with serious mental illness (*id.* § 487.4 [d]; see also *id.* § 487.2 [c]). Oceanview Home for Adults, Inc., an adult home subject to this admissions cap, claims that those

regulations discriminate against persons with disabilities in violation of the Fair Housing Amendments Act of 1988 (FHAA), which extended the protections of the Fair Housing Act (FHA) to persons with disabilities (*see* 42 USC § 3604 [f] [1]-[2]). We conclude that plaintiff has failed to establish that the challenged regulations facially discriminate against persons with disabilities, and therefore affirm.

I.

We begin with a brief history of the challenged regulations. In 1999, the United States Supreme Court held in *Olmstead v L. C.* that the Americans with Disabilities Act (ADA) required Georgia to move two individuals whose psychiatrists had determined they were fit for “community placement” from institutional housing into a community setting, reasoning that “[u]njustified isolation . . . is properly regarded as discrimination based on disability” under the ADA (527 US 581, 587, 593-595, 597 [1999]). The Court noted Congress’s findings that “historically, society has tended to isolate and segregate individuals with disabilities,” and that “individuals with disabilities continually encounter various forms of discrimination, including . . . segregation” (*id.* at 600, citing 42 USC § 12101 [a] [2], [5]). It concluded that the ADA imposes an affirmative obligation on the states to prevent the segregation of persons with disabilities in institutionalized settings that are more restrictive than appropriate for their needs (*id.* at 597-603). Related regulations promulgated by the Department of Justice (DOJ) pursuant to the ADA require that “[a] public entity shall administer services, programs, and activities in the most integrated setting appropriate to the needs of qualified individuals with disabilities” (28 CFR 35.130 [d]).

Following *Olmstead*, a number of courts held that the ADA and its implementing regulations impose a broad “integration mandate” on the states, which is violated by “[a] failure to provide placement in a setting that enables disabled individuals to interact with non-disabled persons to the fullest extent possible” (*e.g. Joseph S. v Hogan*, 561 F Supp 2d 280, 289-290 [ED NY 2008] [internal quotation marks omitted], citing *Messier v Southbury Training Sch.*, 1999 WL 20910, *9, 1999 US Dist LEXIS 1479, *31 [D Conn, Jan. 5, 1999, No. 3:94—CV—1706 (EBB)]; *see also Helen L. v DiDario*, 46 F3d 325, 335-336 [3d Cir 1995]). This integration mandate has underpinned various challenges to state policies or practices that

contribute to the segregation of the mentally ill (*see Steimel v Wernert*, 823 F3d 902, 910-914 [7th Cir 2016] [plaintiffs alleged that change in Indiana’s provision of Medicaid services would reduce their ability to participate in community activities]; *Guggenberger v Minnesota*, 198 F Supp 3d 973, 1026-1030 [D Minn 2016] [“the integration mandate’s application is not limited to the context of institutionalization”]; *Lane v Kitzhaber*, 841 F Supp 2d 1199, 1205 [D Or 2012] [allegations concerning segregation in employment facilities]), including practices which create an undue risk of institutionalization (*see M.R. v Dreyfus*, 697 F3d 706, 720 [9th Cir 2012]; *Fisher v Oklahoma Health Care Auth.*, 335 F3d 1175 [10th Cir 2003]; *Hiltibran v Levy*, 793 F Supp 2d 1108 [WD Mo 2011]).

In 2009, a federal court held that DOH’s licensing regime governing adult homes violated the ADA as applied to persons with mental illness (*Disability Advocates, Inc. v Paterson*, 653 F Supp 2d 184, 187-188 [ED NY 2009] [hereinafter *DAI*]). The *DAI* lawsuit was targeted at “adult homes in New York City with more than 120 beds and in which twenty-five residents or 25% of the resident population (whichever is fewer) have a mental illness” (*id.* at 187 [internal quotation marks omitted]). After a lengthy trial, the federal district court concluded that “virtually all” members of the subject group (“people with mental illness residing in, or at risk of entry into” the targeted adult homes) were “qualified” to receive mental health services in the more integrated setting of “supported housing” (*id.* at 187-188, 311). The court further determined that the large adult homes at issue contributed to the segregation of persons with mental illness by limiting their opportunities to interact with persons without mental illness, discouraging them from integrating into the community, and fostering “learned helplessness” (*id.* at 208-216). Although the trial court’s decision in *DAI* was vacated by the Second Circuit on standing grounds, the Second Circuit recognized that litigation might continue (*Disability Advocates, Inc. v New York Coalition for Quality Assisted Living, Inc.*, 675 F3d 149, 152, 162 [2d Cir 2012]).

The regulations at issue here were promulgated around this time. In August and October of 2012, the Chief Medical Officer of the State’s Office of Mental Health (OMH) issued two Clinical Advisories stating that certain large adult homes, known as transitional adult homes, “result in housing experiences that are not clinically appropriate to the needs of such persons and

are not conducive to their rehabilitation or recovery” (Lloyd I. Sederer, M.D., *Clinical Advisory* [Aug. 8, 2012], available at <https://omh.ny.gov/omhweb/advisories/>; see also Lloyd I. Sederer, M.D., *UPDATE—Clinical Advisory Regarding Adult Homes Previously Issued to Psychiatric Inpatient Programs on August 8, 2012* [Oct. 1, 2012], available at <https://omh.ny.gov/omhweb/advisories/>). Shortly thereafter, DOH issued the challenged regulations, which defined a “transitional adult home” as an adult home with a bed capacity of 80 or more residents and with a proportion of 25% or more of the resident population having “serious mental illness” (see 18 NYCRR 487.13 [b] [1]). The regulations prohibited these facilities from admitting any persons with serious mental illness until and unless the proportion of the resident population with serious mental illness fell below the 25% threshold (*id.* § 487.13 [c]-[j]), and required the homes to develop a “compliance plan” to reduce their “mental health census” (that is, the proportion of current residents who are persons with serious mental illness) (*id.* § 487.13 [b] [4]; [c]). The regulations define “persons with serious mental illness” as individuals who have a designated diagnosis of a mental illness that is included in the DSM-V, the Diagnostic and Statistical Manual of Mental Disorders published by the American Psychiatric Association, “and whose severity and duration of mental illness results in substantial functional disability” (*id.* § 487.2 [c]). Subsequent guidance from DOH defines a serious mental illness with reference to various functional limitations, impairments, and symptoms (see 2022 NY Slip Op 34546[U], *12-13 [Sup Ct, Albany County 2022]).

After the regulations were promulgated, DOJ and a group of private plaintiffs filed a lawsuit with claims that were substantially identical to those presented in *DAI* (see *United States v New York*, 2014 WL 1028982, 2014 US Dist LEXIS 35274 [ED NY, Mar. 17, 2014, Nos. 13-CV-4165 (NGG) (MDG), 13-CV-4166 (NGG) (MDG)]; 215 AD3d 140, 143 [3d Dept 2023]). A proposed settlement agreement referenced the new regulations and required the State to expand its supported housing capacity by at least 2,000 beds and take other affirmative steps to encourage the adoption of supported housing for persons with mental illness (*United States v New York*, 2014 WL 1028982, *2, *5, 2014 US Dist LEXIS 35274, *7, *18). The settlement was approved in 2014 (*id.*) and has since been amended several times. In a subsequent ruling, the court observed that the regulations were “critical to achieving the

goals of the Settlement Agreement” (*United States v New York*, 2017 WL 2616959, *1 n 3, 2017 US Dist LEXIS 92435, *7 n 3 [ED NY, June 15, 2017, Nos. 13-CV-4165 (NGG) (RML), 13-CV-4166 (NGG) (RML), 16-CV-1683 (NGG) (RER)]). No condition of the settlement—and no regulation at issue here—required any adult home to discharge a person with mental illness.

Turning to the dispute before us, DOH cited plaintiff in 2016 for admitting persons with serious mental illness in violation of the regulations (215 AD3d at 145). Plaintiff brought this combined declaratory judgment action and CPLR article 78 proceeding, alleging, among other things, that the restriction on admission of residents with serious mental illness violated the FHA, as amended by the FHAA. Before the trial court, the DOJ filed a Statement of Interest in support of the challenged regulations. DOJ argued that because the regulations governed “the types of services and settings the State determined it would provide” and rested on a professional determination that transitional adult homes were “clinically and therapeutically ineffective” for persons with serious mental illness, they did not “deny” or “make unavailable” housing within the meaning of the FHA (NY St Cts Elec Filing [NYSCEF] Doc No. 187, DOJ Statement at 11-14). DOJ also argued that the regulations would pass muster under existing federal circuit court precedent establishing other exceptions to the scope of the FHAA (*id.* at 15).

Supreme Court, among other things, held that the regulations violated the Fair Housing Act. The court applied a line of federal circuit court decisions holding that discrimination against persons with disabilities may be permissible under the FHA if “narrowly tailored” to benefit the protected class (2022 NY Slip Op 34546[U], *3-5, *68-75, citing *Community House, Inc. v City of Boise*, 490 F3d 1041, 1048 [9th Cir 2007], *Larkin v State of Mich. Dept. of Social Servs.*, 89 F3d 285, 291 [6th Cir 1996], and *Bangerter v Orem City Corp.*, 46 F3d 1491, 1503-1504 [10th Cir 1995]; see also *United States v City of Chicago Hgts.*, 161 F Supp 2d 819, 833 [ND Ill 2001]; *Human Resource Research & Mgt. Group, Inc. v County of Suffolk*, 687 F Supp 2d 237 [ED NY 2010]). Supreme Court concluded that the regulations were not permissible under this standard for two reasons: first, *Olmstead’s* integration mandate did not require them, and second, they were not narrowly tailored because alternative approaches, such as allowing persons with serious mental illness to make an “informed choice” to live in transitional adult homes, were available (*id.* at *57).

The Appellate Division reversed, dismissed the proceeding and declared that the regulations do not violate the Fair Housing Act (215 AD3d 140 [3d Dept 2023]). It agreed with Supreme Court that the challenged regulations were facially discriminatory and applied the same legal framework, but concluded that the regulations had been adopted to implement *Olmstead*'s integration mandate and were narrowly tailored (215 AD3d at 148-152). Although Supreme Court had accorded little weight to the testimony given by the State's experts, the Appellate Division found that testimony both credible and relevant (*id.* at 151-152). Exercising its "broad authority to independently evaluate the evidence and render a judgment warranted by the facts," the Appellate Division found the trial evidence showed that transitional adult homes "are not beneficial to recovery for people with serious mental illness" and that "smaller facilities are beneficial to the recovery of people with serious mental illness" (*id.*). Accordingly, the Appellate Division upheld the regulations.

The Appellate Division granted plaintiff leave to appeal (2024 NY Slip Op 67536[U] [3d Dept 2024]).

II.

The FHAA, enacted in 1988, amended the FHA to add disability as a protected classification (*see* 42 USC § 3604 [f] [1] [making it unlawful to "discriminate in the sale or rental, or to otherwise make unavailable or deny, a dwelling to any buyer or renter" because of disability]). The FHAA also defines discrimination to include "a refusal to make reasonable accommodations in rules, policies, practices, or services, when such accommodations may be necessary to afford such person equal opportunity to use and enjoy a dwelling" (*id.* § 3604 [f] [3] [B]). The legislative history of these amendments indicates that they were intended to "end the unnecessary exclusion of persons with handicaps from the American mainstream" (HR Rep 711, 100th Cong, 2d Sess at 18, reprinted in 1988 US Code Cong & Admin News at 2173, 2179).

The parties sharply disagree about the standard for adjudicating the FHA claim before us, including whether the FHA incorporates an implied exception for so-called "benign discrimination" and what the contours of a narrow tailoring inquiry might be in the context of such an exception. We do not need to resolve these thorny questions, though, because we hold that plaintiff has not demonstrated that the regulations

“deny” or “make unavailable” housing on the basis of a person’s disability (*see* 42 USC § 3604 [f] [1]).

The challenged regulations concern the type of institutional setting in which services for persons with serious mental illness may be provided, and in this respect, differ from zoning or permitting requirements used to confine persons with disabilities to particular locations and separate them from others. OMH’s Chief Medical Officer concluded that large adult homes “are not clinically appropriate settings for the significant number of persons with serious mental illnesses who reside in such settings, nor are they conducive to the rehabilitation or recovery of such persons” (Sederer, *Clinical Advisory* [Aug. 8, 2012]; *see also* Sederer, *UPDATE—Clinical Advisory Regarding Adult Homes Previously Issued to Psychiatric Inpatient Programs on August 8, 2012* [Oct. 1, 2012]). DOH licenses these homes, and implemented an admissions bar based on the proportion of residents with serious mental illness in such facilities in line with OMH’s judgment (*see* 215 AD3d at 151-152).

As the Appellate Division concluded, the admissions cap reflects a professional judgment about what settings are clinically and therapeutically effective for persons with serious mental illness (215 AD3d at 153). By giving those individuals “greater ability to exercise autonomy and interact with individuals who do not have serious mental illness,” the regulations further the goal of ending unnecessary exclusion of persons with disabilities (215 AD3d at 146-150, 153). Moreover, we note that the FHAA defines discrimination to include “a refusal to make reasonable accommodations in rules, policies, practices, or services” as necessary for persons with disabilities to “use and enjoy” a dwelling (42 USC § 3604 [f] [3] [B]), and the Appellate Division determined that the admissions cap reflects a “reasonable modification[] to the State’s provision of services” intended to eliminate discrimination against persons with disabilities (215 AD3d at 154).

Nor is the clinical determination embodied in the regulations unusual. As a general matter, disability services are subject to various conditions and limitations, including the type of facility in which services may be provided, and the State frequently relies upon the “reasonable medical judgment[]” of its public health officials as to how best to administer such services (215 AD3d at 152, quoting *Olmstead*, 527 US at 602). Indeed, other DOH regulations limit admission to *all* adult homes on various

grounds that concern the particular needs of the person seeking admission or the nature of their disability (*see e.g.* 18 NYCRR 487.4 [c] [1]-[2]; [h] [3] [medical evaluation of prospective resident must certify that resident does “not require placement in a hospital or residential health care facility”]; *id.* § 485.2 [a] [adult homes must serve “adults who . . . are, by reason of physical or other limitations associated with age, physical or mental disabilities or other factors, unable or substantially unable to live independently”]). And large portions of the Mental Hygiene Law, articles 29 and 31, regulate the operation of multiple types of facilities for persons with mental disabilities, including admission and discharge from those facilities (*see e.g.* Mental Hygiene Law § 29.07 [a] [Commissioner of OMH may defer admissions to any inpatient facility “when the total number of patients therein exceeds its capacity to an extent which will not permit adequate care”]).

Finally, we note that no evidence in the record before us suggests that the admissions cap rests on stereotypes, prejudice, or fear about persons with serious mental illness.

For these reasons, we conclude that plaintiff has failed to mount a successful facial challenge and we conclude that the challenged regulations do not “deny” or “make unavailable” housing on the basis of disability for purposes of the FHA. Accordingly, the order of the Appellate Division should be affirmed, with costs.

Chief Judge WILSON and Judges RIVERA, CANNATARO and TROUTMAN concur. Judges GARCIA and SINGAS concur in result and agree with the conclusion in section II that plaintiff has not met its burden to show that, on their face, the regulations violate the Fair Housing Act.

Order affirmed, with costs.

[264 NE3d 822, 237 NYS3d 420]

CHI BARTRAM WRIGHT, Respondent, v STATE OF NEW YORK, Appellant. (Claim No. 136589.)

Argued February 12, 2025; decided March 18, 2025

PROCEDURAL SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the Third Judicial Department, from an order of that Court, entered November 22, 2023. The Appellate Division (1) reversed, on the law, an order of the Court of Claims (Catherine E. Leahy-Scott, J.; op 2022 NY Slip Op 34968[U] [2022]), which had granted defendant's motion to dismiss the claim; (2) denied the motion; and (3) remitted the matter to the Court of Claims for further proceedings. The following question was certified by the Appellate Division: "Did this Court err, as a matter of law, in reversing, on the law, the order of the Court of Claims which granted defendant's motion to dismiss the claim, denying the motion and remitting the matter to the Court of Claims for further proceedings not inconsistent with this Court's decision?"

Wright v State of New York, 221 AD3d 132, reversed.

HEADNOTES

State — Sovereign Immunity — Child Victims Act — Court of Claims Act § 11 (b)'s Pleading Requirements

1. The Child Victims Act (CVA) did not alter the substantive pleading requirements set forth in Court of Claims Act § 11 (b). Section 11 (b) places five specific substantive conditions upon the State's waiver of sovereign immunity. The Court of Appeals does not have the leeway to exempt claims brought under the CVA from the limitations the Court of Claims Act imposes on the State's waiver of immunity. A waiver of sovereign immunity must be clearly expressed. The CVA lacks any indication, let alone a clear expression, that the Legislature intended to exempt CVA claims from section 11 (b)'s conditions; it does not amend or even mention the Court of Claims Act's pleading requirements. Accordingly, section 11 (b)'s requirements must be applied to a claim brought under the CVA in the same manner as to any other claim against the State.

State — Claim against State — Child Victims Act — Lack of Specificity

2. Claimant's claim under the Child Victims Act alleging that he was sexually abused on multiple occasions over a four-year period when he was a minor by employees of defendant State of New York at a state-owned performing arts center lacked the specificity required by Court of Claims Act § 11 (b) and was dismissed. The claim alleged that the perpetrators included teachers, coaches, counselors, and perhaps other employees of the State, but it did not explain whether those employees were claimant's teachers, coaches,

and counselors, or why, as a child, he was in their company multiple times during the named time period. The claim also alleged that members of the public were responsible for some of the abuse he suffered, but it did not explain why claimant came into contact with those persons as a child, the context in which adult supervision of any particular activity allegedly should have been provided, or the extent to which the State bore responsibility for claimant's contact with the abusers. Nor did the claim adequately allege what repeatedly brought claimant to the center over a four-year period, or why, once on the premises, he frequently engaged with both members of the public and state employees. In the absence of such information, the State could not promptly investigate the claim and determine its liability under claimant's theories of negligence. It is not the State's burden to assemble information not included in a claim so that it may promptly investigate and assess its liability. Section 11 (b) places that burden on the claimant.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Municipal Corporations, Counties, and Other Political Subdivisions §§ 653, 656, 661, 664, 668, 674; AM JUR 2d States, Territories, and Dependencies §§ 98–99, 101.

CARMODY-WAIT 2d Actions in the Court of Claims §§ 120:9, 120:43, 120:48–120:49; CARMODY-WAIT 2d Actions by or Against the State §§ 126:129, 126:132–126:134; CARMODY-WAIT 2d Actions by and Against Public Bodies and Public Officers § 144:5.

DOBBS LAW OF TORTS (2d ed) §§ 247, 342.

McKINNEY'S, Court of Claims Act § 11 (b).

NY JUR 2d Government Tort Liability §§ 2–3, 285, 291, 293–295, 398, 405, 407, 415, 421; NY JUR 2d State of New York § 184.

NEW YORK LAW OF TORTS §§ 17:2, 17:18–17:24.

SIEGEL, NY PRAC (6th ed) § 208.

ANNOTATION REFERENCE

Necessity and sufficiency of plaintiff's pleading of having given requisite notice or presented claim to municipality or other public body. 83 ALR2d 1178.

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POINTS OF COUNSEL

Letitia James, Attorney General, Albany (Jeffrey W. Lang, Barbara D. Underwood and Kevin C. Hu of counsel), for appel-

lant. I. The Child Victims Act did not amend the Court of Claims Act § 11 (b) pleading requirements for revived Child Victims Act claims. (*Alweis v Evans*, 69 NY2d 199; *Matter of Consolidated Edison Co. of N.Y. v Department of Envtl. Conservation*, 71 NY2d 186; *People v Newman*, 26 32 NY2d 379; *Matter of County of St. Lawrence v Shah*, 95 AD3d 1548; *Matter of Amorosi v South Colonie Ind. Cent. School Dist.*, 9 NY3d 367.) II. Chi Bartram Wright's claim failed to satisfy the Court of Claims Act § 11 (b) pleading requirements. (*Gabbur v State of New York*, 202 AD3d 761; *Kimball Brooklands Corp. v State of New York*, 180 AD3d 1031; *Mid-Hudson Val. Fed. Credit Union v Quartararo & Lois, PLLC*, 155 AD3d 1218; *Easterbrooks v Schenectady County*, 218 AD3d 969; *Doe v Hauppauge Union Free Sch. Dist.*, 213 AD3d 809.)

Belluck & Fox, New York City (Seth A. Dymond and Michael A. Macrides of counsel), for respondent. I. The sufficiency of pleadings in Child Victims Act claims asserted against the State should be measured against the guiding principle of whether they provide sufficient definiteness to enable the State to begin its investigation and ascertain its potential liability under the particular, fact-specific "circumstances" of each claim. (*Dreger v New York State Thruway Auth.*, 81 NY2d 721; *Long v State of New York*, 7 NY3d 269; *Lichtenstein v State of New York*, 93 NY2d 911; *Alston v State of New York*, 97 NY2d 159; *Kolnacki v State of New York*, 8 NY3d 277.) II. Chi Bartram Wright's claim provides sufficient definiteness to permit the State to begin its investigation and ascertain its potential liability. (*People v Uplinger*, 58 NY2d 936; *Preston v State of New York*, 59 NY2d 997; *Miller v State of New York*, 62 NY2d 506; *Nallan v Helmsley-Spear, Inc.*, 50 NY2d 507; *In re World Trade Ctr. Bombing Litig.*, 17 NY3d 428.)

Hach Rose Schirripa & Cheverie LLP, New York City (Hillary Nappi of counsel), and Marci A. Hamilton, CHILD USA, Philadelphia, Pennsylvania (Jessica Schidlow and Carina Nixon of counsel), for CHILD USA, amicus curiae. I. A restrictive interpretation of Court of Claims Act § 11 (b) conflicts with contemporary research regarding the impact of trauma on memory and disclosure of sexual abuse. II. The Third Department's decision upholds the public policy interests served by the Child Victims Act. (*Globe Newspaper Co. v Superior Court, County of Norfolk*, 457 US 596; *New York v Ferber*, 458 US 747; *Ashcroft v Free Speech Coalition*, 535 US 234; *Packingham v North Carolina*, 582 US 98.)

OPINION OF THE COURT

HALLIGAN, J.

Section 11 (b) of the Court of Claims Act (the Act) sets forth substantive pleading requirements intended to ensure that the State can promptly investigate a claim against it and ascertain its potential liability. Because these requirements are conditions the Legislature has placed upon the State's waiver of sovereign immunity, they are strictly construed, and a claim against the State must comply with them. Another provision of the Act requires that a notice of claim against the State be filed within 90 days of its accrual. In enacting the Child Victims Act (the CVA), the Legislature amended this rule to allow claims alleging child sexual abuse to be filed within a two-year window, even if they would otherwise be untimely and therefore barred (*see* L 2019, ch 11, § 7, codified at Court of Claims Act § 10 [10]; CPLR 214-g, as amended by L 2020, ch 130, § 1).

Claimant Chi Bartram Wright brought his claim under the CVA, alleging that the State is responsible for abuse that occurred when he was a child, nearly four decades ago. We conclude that the CVA did not alter the substantive pleading requirements set forth in section 11 (b) and, applying those requirements, that Wright's claim lacks the requisite specificity to proceed.

I.

Wright commenced this action against the State, the Office of General Services, and the State University of New York (collectively the State) in the Court of Claims in July 2021. He alleges that between 1986 and 1990, when he was approximately 12 to 15 years old, he was repeatedly sexually assaulted by numerous men at the state-owned performing arts center in Albany known as "The Egg." He brought this action under the CVA, seeking to recover 75 million dollars in damages based on various theories of negligence by the State, including negligent hiring, retention, supervision, and direction.

Wright alleges that he was subjected to "sexual[] abuse," "fondling and molesting," "repeated[] sexual[] assault[]," "inappropriate relationships," and "lewd and lascivious conduct." Although the claim does not allege the number or frequency of such incidents, it states that a "majority of the[] incidents occurred at the premises [of The Egg], more specifically in the bathrooms, stairwells, tunnels, boiler room, and Kitty Carlisle Hart Theater." The claim also states that the perpetrators

“sexually abused other boys at the premises,” and that “the sexual abuse of [Wright] and other children was open and obvious.”

The claim does not identify who abused Wright.* It states that Wright “was raped and sexually abused as a child by numerous men in multiple incidents” and that “[t]he rape and sexual abuse were perpetrated . . . by both employees of the State as well as members of the general public.” According to the claim, the state employees included “teacher[s], coach[es], and counselor[s]” who “induc[ed] Wright . . . to look up to [them] and to place absolute trust and confidence in [them]” and “used their position[s] of power and authority . . . to sexually abuse [Wright] and other boys.” The claim further asserts that the men who assaulted Wright were “members of the public” and “agents, servants and/or employees of the State” who were “known among the community and the children as . . . sexual predator[s]” and had “reputation[s] as sexual predators to young children.”

Wright alleges that the State is “responsible for the injuries that [he] incurred.” He asserts that the State’s “negligence and recklessness caused these numerous [abusers] to have access to children, including children on the premises, despite its knowledge that [the] [abusers] sexually abused children and/or had the propensity to do so.” The claim further alleges that the State “allow[ed] pedophiles to be around young children including [Wright],” to “meet them with no other adults present,” and “to travel with children with no other adults present.” In addition, the State “fail[ed] to provide proper security at the premises”; “to investigate the background, character and fitness of [the] [abusers] to serve as employees”; “to have . . . systems or policies in place and a procedure to monitor, and supervise activities going on in the bathrooms at the premises and in other areas of the premises such as the audience of [T]he Egg”; “to take prompt action to remove [the] [abusers]”; “to take prompt action regarding complaints and suspicions of sexual molestation”; and “to adopt policies and procedures to protect children.” Finally, the claim asserts that the State “engaged in a plan of action to cover up incidents of the sexual abuse of minors by their employees and [abusers] and [to]

* The claim uses both plural and singular pronouns when referring to the abusers (i.e. “him” and “them”). When quoting the claim, we use plural pronouns.

prevent disclosure, prosecution, and civil litigation including but not limited to failing to report incidents of abuse to law enforcement or child protection agencies,” and that it “conceal[ed] abuse they had substantiated.”

After serving discovery demands on Wright, the State moved to dismiss the claim for failing to comply with section 11 (b) of the Act. It argued that it was unable to investigate Wright’s allegations, and that the Court of Claims therefore lacked subject matter jurisdiction, because his claim failed to provide the specific time when the alleged abuse occurred or when the claim accrued and to allege with sufficient detail the nature of the claim and the State’s conduct with respect to it. Wright opposed the motion.

The Court of Claims granted the State’s motion (2022 NY Slip Op 34968[U] [Ct Cl 2022]). The court determined that the CVA does not relax the requirements of section 11 (b), and that a claim brought under that statute must plead the date of the underlying conduct with sufficient definiteness to enable the State promptly to investigate its claim and to ascertain its potential liability. It concluded that Wright’s claim did not clear this bar because it did not set forth any specific dates upon which the alleged abuse occurred.

The Appellate Division reversed (221 AD3d 132 [3d Dept 2023]). After noting that the purpose of section 11 (b) is to ensure “a sufficiently detailed description of the particulars of the claim to enable [the State] to investigate and promptly ascertain the existence and extent of its liability” (*id.* at 134 [internal quotation marks omitted]), the Court considered the relationship between the CVA and the Act. It explained that “[t]he CVA did not . . . modify the pleading requirements set forth in [section 11 (b)],” and that courts therefore had “the difficult task of determining, on a *sui generis* basis, whether claims filed decades after the fact are sufficiently specific to enable the State to investigate” (*id.* at 135). The Court concluded that the four-year period alleged in Wright’s claim satisfied section 11 (b) because “the events are alleged to have occurred several decades ago, when [Wright] was a child,” and “it is not clear how providing exact dates, as opposed to a range of years, would better enable the State to conduct a prompt investigation of the subject claim” (*id.* [internal quotation marks and brackets omitted]). The Appellate Division further determined that the allegations were “sufficient to provide [the State] with an indication of the manner in which [Wright] was injured and

how [the State] was negligent” (*id.* at 136 [internal quotation marks and ellipsis omitted]), and denied the State’s motion to dismiss the claim.

The Appellate Division granted the State’s motion for leave to appeal to this Court, certifying the following question for our review:

“Did this Court err, as a matter of law, in reversing, on the law, the order of the Court of Claims which granted defendant’s motion to dismiss the claim, denying the motion and remitting the matter to the Court of Claims for further proceedings not inconsistent with this Court’s decision?” (2024 NY Slip Op 62505[U] [3d Dept 2024]).

We reverse and answer the certified question in the affirmative.

II.

The Court of Claims Act waives the State’s immunity from suits for money damages, but only insofar as “the claimant complies with [its] limitations” (Court of Claims Act § 8; *see also Alston v State of New York*, 97 NY2d 159, 163 [2001]). “The Act contains several conditions that must be met in order to assert a claim against the State” (*Kolnacki v State of New York*, 8 NY3d 277, 280 [2007]). “Because suits against the State are allowed only by the State’s waiver of sovereign immunity and in derogation of the common law,” those conditions “must be strictly construed” (*Dreger v New York State Thruway Auth.*, 81 NY2d 721, 724 [1992]). Accordingly, a claimant who does not meet “the literal requirements” of the Act’s conditions has “not properly commenced their action[]” (*Lichtenstein v State of New York*, 93 NY2d 911, 913 [1999]).

Section 11 (b) directs that a claim “shall state the time when and place where such claim arose, the nature of same, the items of damage or injuries claimed to have been sustained and . . . the total sum claimed” (Court of Claims Act § 11 [b]). We have explained that section 11 (b) “places five specific substantive conditions upon the State’s waiver of sovereign immunity” (*Lepkowski v State of New York*, 1 NY3d 201, 207 [2003]). It requires a claim to “specify (1) ‘the nature of the claim’; (2) ‘the time when’ it arose; (3) the ‘place where’ it arose; (4) ‘the items of damage or injuries claimed to have been sustained’; and (5) ‘the total sum claimed’ ” (*id.* [brackets omit-

ted]). Because the Act conditions the State's waiver of immunity upon compliance with these requirements, "[t]he failure to satisfy any of the conditions is a jurisdictional defect" mandating dismissal (*Kolnacki*, 8 NY3d at 281; *cf. Alston*, 97 NY2d at 163 [concluding that Court of Claims Act § 10 (4) is jurisdictional]).

The "guiding principle informing section 11 (b)" is that a claim must be "[s]ufficiently definite 'to enable the State . . . to investigate the claim promptly and to ascertain its liability under the circumstances'" (*Lepkowski*, 1 NY3d at 207, quoting *Heisler v State of New York*, 78 AD2d 767, 767 [4th Dept 1980] [alteration omitted]). Consistent with that principle, we have emphasized that "the State is not responsible for uncovering information that the claimant is required to allege under section 11 (b)" (*Kolnacki*, 8 NY3d at 280, citing *Lepkowski*, 1 NY3d at 208). That is so even if "the State can easily ascertain [that information] from its . . . records" (*Lepkowski*, 1 NY3d at 208).

Two of our decisions provide useful guidance on what section 11 (b) requires. In *Lepkowski*, two groups of public employees sought unpaid overtime compensation. The claim provided the employees' civil service salary grade and bargaining unit, and stated that the alleged violations covered "July 1992 and continuing to the present" for one group, and "April 1994 and continuing to the present" for the other (*id.* at 207). We held that the nature of the claim was adequately pleaded, but the remaining elements of section 11 (b) were not. As for the "time when" the claim accrued, we determined that merely stating the month and year when the claims began to accrue was not sufficient, even though the claim alleged that the State had employment records from which it could ascertain those details and was required by federal law to maintain this data (*see id.* ["All that the State may guess from these allegations is that some or all of the . . . claimants worked some number of hours in excess of 40 in some or all of the work weeks over many months and years"]). We also dismissed the claim in *Kolnacki*, a personal injury case, for failing to specify the "total sum claimed," while recognizing that damages in such cases may be "harder to quantify at the outset" (8 NY3d at 281).

Claims brought under the CVA, such as Wright's, may present a distinct challenge. The Sponsor's Memorandum accompanying the CVA explains that "restrictive statutes of limitations" often expire before "survivors [of child sexual abuse] report or come to terms with their abuse, which has been

estimated to be as high as 52 years old on average” (Senate Introducer’s Mem in Support, Bill Jacket, L 2019, ch 11 at 7). Likewise, the Assembly Memorandum acknowledges “the unique character of sex crimes against children, which can have a multitude of effects upon victims, including being justifiably delayed in otherwise timely taking actions against their abusers and/or those who facilitated in their abuse” (Assembly Mem in Support of 2015 NY Assembly Bill A10600).

The CVA sought to address this problem by providing a two-year window within which adult survivors could file child sexual abuse claims that would otherwise be time-barred (*see* CPLR 214-g, as amended by L 2020, ch 130, § 1). With respect to actions against public institutions, which are subject to section 10’s 90-day notice of claim requirement (*see* Court of Claims Act § 10 [3]), the Legislature amended the Act by adding a subdivision that exempts “any claim to recover damages for physical, psychological, or other injury or condition suffered as a result of conduct which would constitute a sexual offense . . . committed against a child less than eighteen years of age” from section 10’s time limits (*id.* § 10 [10] [i]).

[1] As the Appellate Division recognized, even with this amendment to section 10’s timing requirement, it may still be difficult for victims of abuse that occurred decades ago to plead their claim with the specificity section 11 (b) requires. In light of this concern, Wright urges us to relax the pleading requirements for CVA claims. But we do not have the leeway to exempt claims brought under the CVA from the limitations the Act imposes on the State’s waiver of immunity. It has long been settled that a waiver of sovereign immunity “must be clearly expressed” (*Goldstein v State of New York*, 281 NY 396, 403 [1939] [internal quotation marks omitted]), and that “waiver of immunity by inference [is] disfavored” (*Sharapata v Town of Islip*, 56 NY2d 332, 336 [1982]). The CVA lacks any indication, let alone a clear expression, that the Legislature intended to exempt CVA claims from section 11 (b)’s conditions; indeed, it does not amend or even mention the Act’s pleading requirements. That contrasts sharply with the Legislature’s decision to amend section 10 by waiving the notice of claim requirement for claims revived by the CVA (*see* L 2019, ch 11, § 7, codified at Court of Claims Act § 10 [10]). We also note that the Legislature has adopted different pleading requirements for claims of unjust conviction and imprisonment (*see* Court of Claims Act § 8-b), confirming that it knows how to adjust the

conditions on the State's waiver of immunity for certain classes of claims when it seeks to do so. Accordingly, we must apply section 11 (b)'s requirements to a claim brought under the CVA in the same manner we would apply them to any other claim against the State.

III.

[2] Applying this standard, we conclude that Wright's claim lacks the specificity section 11 (b) requires. Because the allegations are too spare to enable the State promptly to investigate and ascertain the existence and extent of its liability, the claim suffers a jurisdictional defect and therefore must be dismissed.

The claim lacks critical information about the abusers. It alleges that the perpetrators included teachers, coaches, counselors, and perhaps other employees of the State, but it does not explain whether those employees were Wright's teachers, coaches, and counselors, or why, as a child, he was in their company multiple times between 1986 and 1990. The claim also alleges that members of the public were responsible for some of the abuse he suffered, but it does not explain why Wright came into contact with those persons as a child, the context in which adult supervision of any particular activity allegedly should have been provided, or the extent to which the State bore responsibility for Wright's contact with the abusers. Nor does the claim adequately allege what repeatedly brought Wright to The Egg over a four-year period in the late 1980s, or why, once on the premises, he frequently engaged with both members of the public and state employees.

In the absence of such information, the State cannot promptly investigate the claim and determine its liability under Wright's theories of negligence. Indeed, the allegations included in Wright's claim are even less detailed than those we found insufficient in *Lepkowski* and *Kolnacki*. The State is left to "guess" whether at any point during the four-year period alleged in the claim it owed some duty to Wright and, if so, whether it breached that obligation (*Lepkowski*, 1 NY3d at 207). But it "is not the State's burden . . . to . . . assemble information" not included in a claim so that it may promptly investigate and assess its liability (*id.* at 208). Section 11 (b) places that burden on the claimant.

Although we recognize the difficulties attendant to recollecting the details of any abuse that might have occurred decades ago, we must abide by the conditions set forth in the Act. The

claim lacks the specificity section 11 (b) demands, and so it must be dismissed.

* * *

Accordingly, the order of the Appellate Division should be reversed, with costs, defendant's motion to dismiss the claim granted, and the certified question answered in the affirmative.

Chief Judge WILSON and Judges RIVERA, GARCIA, SINGAS, CANNATARO and TROUTMAN concur.

Order reversed, with costs, defendant's motion to dismiss the claim granted and certified question answered in the affirmative.

[264 NE3d 1260, 238 NYS3d 129]

In the Matter of NEW YORK CIVIL LIBERTIES UNION, Respondent, v CITY OF ROCHESTER et al., Appellants.

Argued January 9, 2025; decided February 20, 2025

PROCEDURAL SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered November 10, 2022. The Appellate Division modified, on the law, so much of a judgment (denominated order) of the Supreme Court, Monroe County (Ann Marie Taddeo, J.; op 2021 NY Slip Op 34252[U]), entered in a proceeding pursuant to CPLR article 78, as had denied those parts of the petition as sought disclosure of law enforcement disciplinary records containing unsubstantiated claims or complaints, subject to redaction pursuant to particularized and specific justification under Public Officers Law § 87 (2). The modification consisted of granting those parts of the petition. The Appellate Division affirmed the judgment as modified.

Matter of New York Civ. Liberties Union v City of Rochester, 210 AD3d 1400, affirmed.

HEADNOTE

Records — Freedom of Information Law — Personal Privacy Exemption — Law Enforcement Disciplinary Records

The Freedom of Information Law’s (FOIL) personal privacy exemption, which permits an agency to withhold from public access any record that “if disclosed would constitute an unwarranted invasion of personal privacy” (Public Officers Law § 87 [2] [b]), does not provide a basis for agencies to categorically withhold all disciplinary records relating to complaints against law enforcement officers that were not deemed substantiated. The purpose of the 2020 amendments to FOIL was to bring greater transparency to the law enforcement disciplinary process, including how complaints of officer misconduct are handled. To effectuate that objective, the legislature added to FOIL a definition of “[l]aw enforcement disciplinary records” that expressly encompasses “complaints” levied against officers “in furtherance of a law enforcement disciplinary proceeding” (Public Officers Law § 86 [6] [a]). The definition imposes no limitation based on the outcome or disposition of such proceeding. Rather than withhold all such records, Public Officers Law § 87 (2) requires an agency to evaluate each record individually and determine whether “a particularized and specific justification” exists for denying access on the ground that disclosing all or part of the record would constitute an unwarranted invasion of privacy (Public Officers Law § 87 [2] [b]). Where redactions would prevent such an invasion and can be made without unreasonable difficulty, the agency must disclose the record with those necessary redactions.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Freedom of Information Acts §§ 128, 224–226, 235, 246, 252, 265, 272, 293.

CARMODY-WAIT 2d Disclosure § 42:157; CARMODY-WAIT 2d Proceeding Against a Body or Officer §§ 145:598–145:599, 145:601.

McKINNEY'S, Public Officers Law §§ 86 (6) (a); 87 (2) (b).

NY JUR 2d Records and Recording §§ 29, 41, 43–45, 48.

ANNOTATION REFERENCES

Validity, construction, and application of statutory provisions relating to public access to police records. 82 ALR3d 19.

What constitutes personal matters exempt from disclosure by invasion of privacy exemption under state freedom of information act. 26 ALR4th 666.

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Query: "Freedom of Information Law" or FOIL /p "personal privacy" /p "law enforcement" or police /p (disciplin! /3 record)

POINTS OF COUNSEL

Patrick Beath, Corporation Counsel, Rochester (John M. Campolieto of counsel), for appellants. I. Release of records of unfounded, exonerated and unsubstantiated misconduct complaints or investigations cause an unwarranted invasion of personal privacy. (Matter of LaRocca v Board of Educ. of Jericho Union Free School Dist., 220 AD2d 424; Gannett Co., Inc. v Herkimer Police Dept., 76 Misc 3d 557.) II. Redaction is an inadequate means to protect against an unwarranted invasion of personal privacy. (D'Amico v Correctional Med. Care, Inc., 120 AD3d 956.)

New York Civil Liberties Union Foundation, New York City (Robert Hodgson and Lisa Laplace of counsel), and Shearman & Sterling LLP, New York City (Joshua T. Ebersole and Sheyla D. Soriano of counsel), for respondent. I. The Freedom of Information Law creates a presumption of maximum access. (Matter of Gould v New York City Police Dept., 89 NY2d 267; Matter

of *Capital Newspapers Div. of Hearst Corp. v Burns*, 67 NY2d 562; *Matter of Westchester Rockland Newspapers v Kimball*, 50 NY2d 575; *Matter of Schenectady County Socy. for the Prevention of Cruelty to Animals, Inc. v Mills*, 18 NY3d 42.) II. The New York Legislature repealed Civil Rights Law § 50-a and amended the Freedom of Information Law to make police misconduct complaint records public regardless of disposition. (*Riley v County of Broome*, 95 NY2d 455; *Matter of T-Mobile Northeast, LLC v DeBellis*, 32 NY3d 594; *Matter of Suarez v Williams*, 26 NY3d 440; *Matter of Industrial Commr. of State of N.Y. v Five Corners Tavern*, 47 NY2d 639; *People ex rel. Fleming v Dalton*, 158 NY 175.) III. The unwarranted-invasion-of-privacy exemption does not justify the City of Rochester's and Rochester Police Department's blanket denial and requires narrow targeted redactions. (*People v Lawrence*, 64 NY2d 200; *Matter of Thomas v New York City Dept. of Educ.*, 103 AD3d 495; *Matter of Harbatkin v New York City Dept. of Records & Info. Servs.*, 19 NY3d 373; *Matter of Buffalo News v Buffalo Enter. Dev. Corp.*, 84 NY2d 488; *Gannett Co., Inc. v Herkimer Police Dept.*, 76 Misc 3d 557.)

Association of the Bar of the City of New York, New York City (*Evan Henley, Isabelle Canaan, Mara Fleder and Krystan Hitchcock* of counsel), for Association of the Bar of the City of New York, amicus curiae. I. The Freedom of Information Law is founded on the public's right to know. (*Branzburg v Hayes*, 408 US 665; *Pell v Procunier*, 417 US 817; *Saxbe v Washington Post Co.*, 417 US 843; *Matter of Capital Newspapers Div. of Hearst Corp. v Burns*, 67 NY2d 562; *Matter of Gould v New York City Police Dept.*, 89 NY2d 267.) II. The right to know has a special character with respect to law enforcement agencies. III. A blanket exemption for "unsubstantiated" complaints is contrary to the Freedom of Information Law's broad disclosure policy. (*Buffalo Police Benevolent Assn., Inc. v Brown*, 69 Misc 3d 998.) IV. The legislative history of the repeal of Civil Rights Law § 50-a and the legislative history and text of the 2020 Freedom of Information Law amendments foreclose the argument that a law enforcement agency may withhold "unsubstantiated" complaints on a wholesale basis. (*Carpenter v City of Plattsburgh*, 105 AD2d 295; *Matter of New York Civ. Liberties Union v New York City Police Dept.*, 32 NY3d 556; *Matter of Friedman v Rice*, 30 NY3d 461; *Colon v Martin*, 35 NY3d 75.) V. A robust conception of the Freedom of Information Law promotes and safeguards First Amendment activity.

Davis Wright Tremaine LLP, New York City (*Jeremy Chase*

of counsel), and *Reporters Committee for Freedom of the Press*, Washington, D.C. (Bruce Brown, Katie Townsend, Mara Gassmann and Daniela del Rosario Wertheimer of counsel), for Reporters Committee for Freedom of the Press and others, amici curiae. I. The New York Legislature repealed Civil Rights Law § 50-a to create a presumption of openness, thereby enabling press and public access to all police officer complaint records and increasing law enforcement transparency. (*New York Lawyers for the Pub. Interest v New York City Police Dept.*, 64 Misc 3d 671; *Matter of Fink v Lefkowitz*, 47 NY2d 567; *Matter of Newsday, LLC v Nassau County Police Dept.*, 222 AD3d 85.) II. New York law expressly entitles the public to the complaint records at issue, and their disclosure would not constitute an “unwarranted invasion of privacy.” (*Matter of Journal Publ. Co. v Office of Special Prosecutor*, 131 Misc 2d 417; *Matter of New York 1 News v Office of President of Borough of Staten Is.*, 231 AD2d 524; *Matter of New York Civ. Liberties Union v New York City Dept. of Corr.*, 213 AD3d 530; *Matter of New York Civ. Liberties Union v City of Syracuse*, 210 AD3d 1401; *Matter of New York Civ. Liberties Union v City of Rochester*, 210 AD3d 1400.) III. Access to complaints of police misconduct enables the press to report on law enforcement and provide the public and lawmakers with accurate information to shape reform. (*Sheppard v Maxwell*, 384 US 333.)

NAACP Legal Defense & Educational Fund, Inc., New York City (David Moss and Kimberly Saltz of counsel) and Washington, D.C. (Jin Hee Lee of counsel), for NAACP Legal Defense & Educational Fund, Inc., amicus curiae. I. The City of Rochester’s and Rochester Police Department’s interpretation of New York’s Freedom of Information Law is flawed and without merit. (*Matter of Gould v New York City Police Dept.*, 89 NY2d 267; *Matter of Capital Newspapers Div. of Hearst Corp. v Burns*, 67 NY2d 562; *Matter of Newsday, LLC v Nassau County Police Dept.*, 222 AD3d 85; *Matter of New York Civ. Liberties Union v New York City Dept. of Corr.*, 213 AD3d 530; *Matter of New York Civ. Liberties Union v City of Syracuse*, 210 AD3d 1401.) II. The legislative intent of repealing Civil Rights Law § 50-a favors the disclosure of “unsubstantiated” records. (*Matter of NYP Holdings, Inc. v New York City Police Dept.*, 220 AD3d 487.) III. Public disclosure of “unsubstantiated” disciplinary records serves the public interest. (*Garrison v Louisiana*, 379 US 64; *United States v Robinson*, 414 US 218.)

OPINION OF THE COURT

CANNATARO, J.

Until 2020, disciplinary records of law enforcement officers were categorically exempted from the public disclosure requirements of the Freedom of Information Law (FOIL) by statute (*see* former Civil Rights Law § 50-a; Public Officers Law § 87 [2] [a]). In June of that year, in the wake of the national outcry over the killing of George Floyd in Minnesota, and rising public concern that law enforcement agencies were not appropriately handling allegations of officer misconduct, the legislature repealed Civil Rights Law § 50-a and amended FOIL to specifically address the disclosure of law enforcement disciplinary records (*see* L 2020, ch 96, amdg Public Officers Law §§ 86, 87, 89). The question on this appeal is whether FOIL's personal privacy exemption, which was left intact by the 2020 amendments, provides a basis for agencies to categorically withhold all disciplinary records relating to complaints against law enforcement officers that were not deemed substantiated.¹ The answer is no.

Shortly after the 2020 amendments went into effect, petitioner New York Civil Liberties Union submitted a series of FOIL requests to respondents, the City of Rochester and the Rochester Police Department. The requested documents included records of all civilian complaints against Rochester police officers dating back to January 2000, irrespective of whether those complaints were ultimately deemed substantiated or resulted in disciplinary action against the officers.² When respondents did not promptly produce the requested documents, petitioner commenced this CPLR article 78 proceeding to compel disclosure. Supreme Court ordered production of many of the records but determined that respondents were entitled to withhold all records relating to complaints that were not deemed substantiated, pursuant to

1. FOIL does not define or use the term “substantiated.” For purposes of this appeal, we deem “substantiated” to mean supported by “sufficient credible evidence to believe that the subject officer committed the alleged act without legal justification” (*see* New York City Civilian Complaint Review Board, Case Outcomes, <https://www.nyc.gov/site/ccrb/investigations/case-outcomes.page> [last accessed Feb. 10, 2025]; *see also* *People v Randolph*, 69 Misc 3d 770, 772 [Sup Ct, Suffolk County 2020] [“a case is ‘substantiated’ where it is determined that the facts clearly support the allegation”]).

2. Petitioner explained that its requests were motivated by concerns regarding the death of Daniel Prude, a Black man who reportedly died of asphyxiation after being restrained by Rochester police officers.

the personal privacy exemption contained in Public Officers Law § 87 (2) (b) (*see* 2021 NY Slip Op 34252[U] [Sup Ct, Monroe County 2021]). Petitioner appealed and the Appellate Division modified, holding that the personal privacy exemption did not authorize respondents to categorically withhold all such records. The Appellate Division instead directed respondents to review the requested records and determine whether there is a particularized and specific justification to redact or withhold each record on personal privacy grounds (*see* 210 AD3d 1400 [4th Dept 2022]). This Court granted respondents' motion for leave to appeal (39 NY3d 915 [2023]), and we now affirm.

“To promote open government and public accountability, FOIL imposes a broad duty on government agencies to make their records available to the public” (*Matter of Abdur-Rashid v New York City Police Dept.*, 31 NY3d 217, 224 [2018]; *Matter of Gould v New York City Police Dept.*, 89 NY2d 267, 274 [1996]; *see* Public Officers Law § 84). The statute is based on the principle that “the public is vested with an inherent right to know and that official secrecy is anathematic to our form of government” (*Matter of Fink v Lefkowitz*, 47 NY2d 567, 571 [1979]). Under FOIL, “[a]ll records are presumptively available for public inspection and copying, unless the agency satisfies its burden of demonstrating that ‘the material requested falls squarely within the ambit of one of [the] statutory exemptions,’ ” which must be “narrowly interpreted” (*Matter of Abdur-Rashid*, 31 NY3d at 225, quoting *Matter of Fink*, 47 NY2d at 571; *see Matter of Appellate Advocates v New York State Dept. of Corr. & Community Supervision*, 40 NY3d 547, 551 [2023]).

FOIL's personal privacy exemption permits an agency to withhold from public access any record that “if disclosed would constitute an unwarranted invasion of personal privacy” (Public Officers Law § 87 [2] [b]). We agree with respondents that FOIL, as amended in conjunction with the repeal of Civil Rights Law § 50-a, does not deny law enforcement officers the benefit of this exemption. However, the Appellate Division correctly concluded—consistent with uniform appellate precedent—that there is no categorical or blanket personal privacy exemption for records relating to complaints against law enforcement officers that are not deemed substantiated (210 AD3d at 1401; *accord Matter of New York Civ. Liberties Union v New York City Dept. of Corr.*, 213 AD3d 530, 530-531 [1st Dept 2023], *lv denied* 40 NY3d 909 [2024]; *Matter of Newsday, LLC v Nassau County Police Dept.*, 222 AD3d 85, 90-92 [2d

Dept 2023]; *Matter of New York Civ. Liberties Union v City of Syracuse*, 210 AD3d 1401, 1403-1405 [4th Dept 2022]; *see also Matter of Thomas v New York City Dept. of Educ.*, 103 AD3d 495, 498 [1st Dept 2013]).

As the scope of Public Officers Law § 87 (2) (b) is a question of statutory interpretation, “[o]ur primary consideration is to ascertain and give effect to the intention of the [l]egislature” (*see CIT Bank N.A. v Schiffman*, 36 NY3d 550, 559 [2021], quoting *Samiento v World Yacht Inc.*, 10 NY3d 70, 77-78 [2008]). “Because the clearest indicator of legislative intent is the statutory text, the starting point in any case of interpretation must always be the language itself, with due consideration given to the statutory purpose and history, including the objectives the legislature sought to achieve through its enactment” (*id.* [internal quotation marks and citation omitted]). Courts interpreting the scope of a FOIL exemption should also keep in mind that “blanket exemptions for particular types of documents are inimical to FOIL’s policy of open government” (*Matter of Gould*, 89 NY2d at 275).

It is evident from the text and history of the 2020 amendments that their purpose was to bring greater transparency to the law enforcement disciplinary process, including how complaints of officer misconduct are handled. To effectuate that objective, the legislature added to FOIL a definition of “[l]aw enforcement disciplinary records” that expressly encompasses “complaints” levied against officers “in furtherance of a law enforcement disciplinary proceeding” (*see* Public Officers Law § 86 [6] [a]). The definition imposes no limitation based on the outcome or disposition of such proceeding.³ Another contemporaneous amendment requires agencies disclosing law enforcement disciplinary records to redact specific categories of sensitive personal information about officers and their families, including medical histories, home addresses, and cell phone

3. The term “[l]aw enforcement disciplinary proceeding” is defined as “the commencement of any investigation and any subsequent hearing or disciplinary action conducted by a law enforcement agency” (Public Officers Law § 86 [7]). Contrary to respondents’ contention, the phrase “and any subsequent hearing or disciplinary action” does not require that the disciplinary process have reached the hearing or disposition stage before a complaint will qualify as a law enforcement disciplinary record. By the statute’s plain meaning, a complaint qualifies under that definition as long as it was created “in furtherance of” the disciplinary process (*see id.* § 86 [6]; Black’s Law Dictionary [12th ed 2024], furtherance [“The act or process of facilitating the progress of something or of making it more likely to occur; promotion or advancement”]).

numbers, but again makes no mention of allegations or complaints that are not deemed substantiated (*see id.* § 89 [2-b]). The legislature similarly declined to add such complaints to the nonexclusive list of examples in Public Officers Law § 89 (2) (b) of disclosures that may constitute “[a]n unwarranted invasion of personal privacy.” And, as was the case before the 2020 amendments, Public Officers Law § 87 (2) continues to provide that “[a] denial of access shall not be based solely on the category or type of such record.” Collectively, these provisions controvert respondents’ argument that the legislature intended to broadly exempt from disclosure all records relating to complaints that are not deemed substantiated (*see Matter of Newsday, LLC*, 222 AD3d at 91).

Rather than withhold all such records, Public Officers Law § 87 (2) requires an agency to evaluate each record individually and determine whether “a particularized and specific justification” exists for denying access on the ground that disclosing all or part of the record would constitute an unwarranted invasion of privacy (*see* Public Officers Law § 87 [2] [b]; *Matter of Gould*, 89 NY2d at 275). Where redactions would prevent such an invasion and can be made without unreasonable difficulty, the agency must disclose the record with those necessary redactions (*see Matter of Schenectady County Socy. for the Prevention of Cruelty to Animals, Inc. v Mills*, 18 NY3d 42, 45 [2011]; *Matter of Data Tree, LLC v Romaine*, 9 NY3d 454, 464 [2007]). The Appellate Division properly directed respondents to undertake this process, subject to further judicial review (*see* 210 AD3d at 1401).

Accordingly, the order of the Appellate Division should be affirmed, with costs.

Chief Judge WILSON and Judges RIVERA, GARCIA, SINGAS, TROUTMAN and SINGH* concur. Judge HALLIGAN took no part.

Order affirmed, with costs.

* Designated pursuant to NY Constitution, article VI, § 2.

[264 NE3d 1264, 238 NYS3d 133]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DIVINE
FREDERICKS, Appellant.

Argued January 8, 2025; decided February 20, 2025

PROCEDURAL SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered June 22, 2023. The Appellate Division affirmed (1) a judgment of the Supreme Court, Bronx County (Efrain Alvarado, J., at request for new counsel; Margaret L. Clancy, J., at jury trial and sentencing), which had convicted defendant, upon a jury verdict, of murder in the second degree, attempted murder in the second degree and criminal possession of a weapon in the second degree; and (2) an order of that Supreme Court (Margaret L. Clancy, J.), which had denied defendant's CPL 440.10 motion to vacate the judgment.

People v Fredericks, 217 AD3d 582, affirmed.

HEADNOTES

Crimes — Right to Counsel — Complaints About Counsel — Minimal Inquiry

1. In a criminal prosecution in which defendant wrote a letter to the trial court expressing frustration with his assigned counsel, defendant's complaints about his attorney were not factually specific and serious enough to require the court to engage in a minimal inquiry as to the nature of the disagreement or its potential for resolution. Defendant's assertions that counsel was not working in his best interest, was prolonging the proceedings, and was advising him to take a plea were too general and conclusory to require a minimal inquiry. There were no facts elucidating those allegations that would have signaled to the trial court that a serious conflict emerged between defendant and his counsel. The seriousness of defendant's allegation that counsel failed to visit him was undermined by other statements in the letter, which clearly indicated that counsel and his private investigator were communicating with defendant. Moreover, defendant failed to explain how defense counsel allegedly disrespected him and his wife. Nor did he provide any context regarding defense counsel allegedly hanging up on him. In any event, the court conducted a minimal inquiry when it inquired further into the purported issues between defendant and counsel. The court considered defendant's letter and counsel's in-court explanation together, which provided it sufficient information to understand the nature of the disagreement and conclude that there was not a genuine conflict or that any conflict was reconcilable.

Crimes — Right to Counsel — Actual Conflict of Interest — Counsel's Response to Defendant's Complaints

2. In a criminal prosecution, assigned defense counsel's statements to the trial court in response to complaints from defendant contained in a letter to

the court did not create an actual conflict of interest requiring substitution of counsel. Where the defendant challenges counsel's performance, assigned counsel does not take a position adverse to their client by merely outlining their efforts on their client's behalf in a defense of their performance. At the first call, the court asked defense counsel whether he had a chance to review defendant's substitution motion and whether he was "adopting the motion." After recalling the case, the court again inquired about defendant's motion. Although counsel stated that he was "opposing" defendant's substitution motion, he followed up his statement by recounting his efforts on defendant's behalf, explaining that he had discussed the case a "number of times" with defendant and merely gave him an "honest assessment of the case." Viewing defense counsel's statements in context, counsel was not opposing defendant's motion, but rather was opposing defendant's allegations concerning counsel's allegedly deficient performance and, in response to the court's specific query, declining to adopt the motion. Furthermore, counsel's remark about "shooting the messenger" did not amount to an assessment of the motion's merits. The statement was a defense of counsel's performance and was intended to provide the trial court with a factual explanation of defendant's complaints, which would inform the court's resolution of the motion.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Attorneys at Law § 179; AM JUR 2d Criminal Law §§ 1078, 1111, 1116–1117.

CARMODY-WAIT 2d Right to Counsel §§ 184:100–184:101, 184:103–184:106, 184:108–184:109, 184:111, 184:181–184:182.

LAFAVE, ET AL., CRIMINAL PROCEDURE (4th ed) §§ 11.4, 11.6, 11.9.

NY JUR 2d Criminal Law: Procedure §§ 750–753, 755–756, 962, 966.

ANNOTATION REFERENCES

Right of defendant in criminal case to discharge of, or substitution of other counsel for, attorney appointed by court to represent him. 157 ALR 1225.

Circumstances giving rise to prejudicial conflict of interests between criminal defendant and defense counsel—state cases. 18 ALR4th 360.

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POINTS OF COUNSEL

Jenay Nurse Guilford, Center for Appellate Litigation, New York City (V. Marika Meis of counsel), for appellant. I. Divine Fredericks’ “seemingly serious request” for new counsel warranted a minimal inquiry, particularly where counsel opposed the application and made unsolicited comments opposing it. (*People v Porto*, 16 NY3d 93; *Gideon v Wainwright*, 372 US 335; *People v Medina*, 44 NY2d 199; *Wheat v United States*, 486 US 153; *People v Sawyer*, 57 NY2d 12.) II. Counsel’s conduct impermissibly took a position adverse to Divine Fredericks’ demanding a new trial. (*People v Mitchell*, 21 NY3d 964; *People v Washington*, 25 NY3d 1091; *People v Ortiz*, 76 NY2d 652; *People v Carncross*, 14 NY3d 319.) III. The trial court abused discretion in summarily denying Divine Fredericks’ pro se Criminal Procedure Law § 440.10 motion. (*Montes v Manufacturers Hanover Trust Co.*, 197 AD2d 357; *Lancaster v Kindor*, 65 NY2d 804; *Rosen v Raum*, 164 AD2d 809; *People v Roberts*, 143 AD3d 843; *Walker v Schult*, 717 F3d 119.)

Darcel D. Clark, District Attorney, Bronx (Nicole Neckles, Yael V. Levy and Rafael Curbelo of counsel), for respondent. I. The trial court prudently denied defendant’s application for substitute counsel on a sufficiently developed record when after reviewing the generic, conclusory allegations in the application, speaking with counsel, and considering the history of the case, it found no genuine conflict of interest requiring appointment of substitute counsel. (*Morris v Slappy*, 461 US 1; *People v Sawyer*, 57 NY2d 12; *People v Sides*, 75 NY2d 822; *People v Watson*, 26 NY3d 620; *McKee v Harris*, 649 F2d 927.) II. No conflict of interest was created by counsel’s explanation, in response to defendant’s request for substitute counsel, of the extent to which he had discussed the case with defendant and of his impression that defendant was unhappy with his assessment of the case. (*People v Ortiz*, 76 NY2d 652; *People v Rozzell*, 20 NY2d 712; *People v Mitchell*, 2 NY3d 272; *People v Sykes*, 204 AD3d 1244, *lv denied* 38 NY3d 1136; *People v Safford*, 74 AD3d 1835.) III. The record amply supports the trial court’s discretionary denial without a hearing of defendant’s post-conviction motion raising unsubstantiated and implausible ineffective assistance of counsel allegations. (*People v Session*, 34 NY2d 254; *People v Tiger*, 32 NY3d 91; *People v Bachert*, 69 NY2d 593; *People v Satterfield*, 66 NY2d 796; *People v Jones*, 24 NY3d 623.)

OPINION OF THE COURT

TROUTMAN, J.

This appeal presents us with two primary issues. The first is whether defendant's complaints about his assigned counsel were factually specific and serious enough to require the trial court to engage in a "minimal inquiry" as to "the nature of the disagreement or its potential for resolution" (*People v Sides*, 75 NY2d 822, 825 [1990]). The second is whether defendant was entitled to substitution of counsel based on defense counsel's statements on the record responding to those complaints. Because we conclude that no minimal inquiry was required and that the trial court properly denied defendant's request for new counsel, we affirm.

I.

Defendant and a friend of his were riding in the backseat of a vehicle early one morning after a night of drinking. While still inside the car, defendant allegedly shot the front-seat passenger in the back of the head and the driver in the chest and jaw. Defendant and his friend fled. The front-seat passenger died from his injuries, but the driver survived. Defendant thereafter was indicted on numerous counts and assigned counsel.

Several months into the proceeding, defendant wrote a letter to the trial court, expressing frustration with his attorney:

"Your Honor my assigned attorney isn't in fact working in my best interest[.] I do not want to keep prolonging these proceedings any longer[.] [M]y attorney disregarded my request of counsel visit even via Video [sic]. He also hung up the phone on me [and] [d]isrespected my wife as well as myself[.] [M]y attorney is aware that I do not want him on my case any longer[,] which is why he keeps prolonging the proceedings[,] as well as my November 13, 2018 court appearance. Your Honor it is clear he is not working in my best interest to where I believe you noticed it when you have been addressing the District Attorney on not being ready for the pre-trial hearings[,] and my attorney is in fact arguing the issue for the District Attorney."

In the same letter, defendant requested that he "be assigned a new attorney that is going to fight to get the truth out . . .

because [he was] in fact innocent.” Defendant stated that “all” counsel was telling him was to “help [him]self or accept a plea,” and that “these are not statements an attorney should in fact make to his client when the client is in fact innocent.”

At the next court appearance, the court informed defense counsel that defendant had filed a pro se letter application and asked if counsel had an opportunity to review it and whether he was adopting it. Counsel responded that he had never seen the letter. The court thus gave counsel a chance to “examine” the motion and “make a determination whether it has legal merit for [counsel] to adopt it.” When the case was recalled, the court stated that it had reviewed the motion and that “one of the items contained in the motion [was] a request for a new attorney.” A colloquy ensued, during which defense counsel stated as follows:

“Well, I’m opposing to that [sic]. I want to put on the record, Judge, that, you know, sometimes you want to shoot the messenger as opposed—you know, because you don’t like the message. I, and my investigator, . . . have gone over this stuff with [defendant] any number of times. And we have gone through everything and [defendant] just doesn’t like what I have to tell him. I’m required to give him an honest assessment of the case.”

The court stated that defense counsel was “correct,” noting that the investigator to whom counsel referred was a “well respected” former police officer. The court then asked defendant whether he wished to retain a private attorney. Defendant responded that he wanted a new attorney but lacked the funds to hire one. The court explained to defendant that the State was paying for an experienced attorney on defendant’s behalf. The court thus denied defendant’s request for a new attorney but advised defendant that, should he “come into funds,” he could hire defense counsel of his choice.

A jury trial was held with the same counsel serving as defendant’s attorney. The jury ultimately returned a verdict finding defendant guilty of murder in the second degree (Penal Law § 125.25), attempted murder in the second degree (*id.* §§ 110.00, 125.25), and criminal possession of a weapon in the second degree (*id.* § 265.03).

Following sentencing, defendant, acting pro se, moved to vacate the judgment pursuant to CPL 440.10. Defendant argued, among other things, that his trial counsel was ineffec-

tive for allegedly failing to prepare him for trial, failing to impeach the driver's testimony at trial, and failing to contact or call as a witness defendant's friend who had been riding with him in the backseat. The People opposed, observing that defendant's allegations regarding counsel's ineffectiveness were not supported by anything other than defendant's self-serving affidavit.

Supreme Court denied defendant's motion without holding a hearing. The court observed that many of defendant's contentions concerning ineffective assistance of counsel were based on and contradicted by the record. To the extent defendant raised arguments that were not record-based, the court observed that defendant failed to provide, or explain his failure to provide, an affidavit substantiating the essential facts supporting his claim through sworn allegations by his trial counsel (*see* CPL 440.30 [1]). Although the court acknowledged that "[a]n affidavit from counsel is not necessary where a defendant's claim is hostile and adverse to trial counsel, where [the] defendant sufficiently explains the absence of an affidavit, and where [the] defendant's allegations are corroborated by other parts of the record," the court concluded that there was nothing in the record or defendant's submissions corroborating his allegations regarding counsel.

The Appellate Division affirmed both the judgment and the order (*see* 217 AD3d 582 [1st Dept 2023]). As relevant here, the Appellate Division held that the trial court "providently exercised its discretion in denying defendant's request for new counsel" and that "[d]efendant 'failed to proffer specific allegations of a seemingly serious request that would require the court to engage in a minimal inquiry'" (*id.* at 583, quoting *People v Porto*, 16 NY3d 93, 100 [2010]). Additionally, the Appellate Division concluded that the court did not abuse its discretion in denying defendant's CPL 440.10 motion without conducting a hearing, acknowledging that defendant failed to obtain an affidavit from defense counsel or indicate that he unsuccessfully attempted to do so and, in any event, defendant failed to raise a factual dispute warranting a hearing.

A Judge of this Court granted leave to appeal (40 NY3d 1039 [2023]).

II.

Defendant contends that Supreme Court erred in denying his request for new counsel without conducting a minimal in-

quiry. We reject that contention. It is well settled that, under both the Federal and New York State Constitutions, an indigent defendant is guaranteed the right to counsel (*see* US Const 6th Amend; NY Const, art I, § 6; *see also* *People v Medina*, 44 NY2d 199, 207 [1978]). However, “[t]he right of an indigent criminal defendant to the services of a court-appointed lawyer does not encompass a right to appointment of successive lawyers at [the] defendant’s option” (*People v Washington*, 25 NY3d 1091, 1095 [2015], quoting *Sides*, 75 NY2d at 824; *see* *People v Sawyer*, 57 NY2d 12, 18-19 [1982] [(“T)he right to assistance of counsel . . . is not to be equated with a right to choice of assigned counsel”]). Rather, a defendant may be entitled to new counsel only “upon showing good cause for a substitution, such as a conflict of interest or other irreconcilable conflict with counsel” (*Washington*, 25 NY3d at 1095, quoting *Sides*, 75 NY2d at 824; *see* *Medina*, 44 NY2d at 207).

“While a court has a duty to investigate complaints concerning counsel, ‘this is far from suggesting that an indigent[] [defendant’s] request that a court assign new counsel is to be granted casually’” (*Porto*, 16 NY3d at 99, quoting *Sawyer*, 57 NY2d at 19). The decision to substitute counsel remains “within the ‘discretion and responsibility’ of the trial judge” (*id.*, quoting *Medina*, 44 NY2d at 207), and the trial court’s obligation to consider a motion to substitute counsel arises only where the defendant makes a “seemingly serious request[]” (*Sides*, 75 NY2d at 824). Thus, where the defendant comes forth with “specific factual allegations of ‘serious complaints about counsel’” (*Porto*, 16 NY3d at 100, quoting *Medina*, 44 NY2d at 207; *see* *People v Smith*, 30 NY3d 1043, 1044 [2017]), the trial court must conduct “at least a ‘minimal inquiry,’ and discern meritorious complaints from disingenuous applications by inquiring as to ‘the nature of the disagreement or its potential for resolution’” (*Porto*, 16 NY3d at 100, quoting *Sides*, 75 NY2d at 825).

In considering what types of complaints trigger the minimal inquiry requirement, we held in *Sides* that statements made by the defendant and defense counsel, “suggest[ing] a serious possibility of irreconcilable conflict” and “a complete breakdown of communication and lack of trust . . . in the[] relationship,” gave rise to the trial court’s duty to conduct a minimal inquiry as to the nature of the conflict (75 NY2d at 825). Conversely, in *Porto*, we held that no minimal inquiry was required where the defendant filled out a pro se motion form requesting new

counsel by circling three preprinted grounds for substitution, and the assigned counsel merely indicated “his belief that defendant’s motion was based on ‘frustration’ ” (16 NY3d at 97).

[1] Against this backdrop, defendant argues that the complaints contained in his letter were factually specific and serious enough to require a minimal inquiry. He points to his accusations that defense counsel was not working in his best interest; disregarded his request to visit, “even via [v]ideo”; hung up on him; disrespected him and his wife; was prolonging the proceedings; and told him to accept a plea even though he was “in fact innocent.” Contrary to defendant’s contention, these statements did not constitute “specific factual allegations of ‘serious complaints about counsel’ ” (*id.* at 100, quoting *Medina*, 44 NY2d at 207). Defendant’s assertions that counsel was not working in his best interest, was prolonging the proceedings, and was advising him to take a plea were too general and conclusory to require a minimal inquiry. There are simply no facts elucidating these allegations that would have signaled to the trial court that a serious conflict emerged between defendant and his counsel.

Defendant’s remaining complaints similarly were not sufficiently specific and serious. The seriousness of defendant’s allegation that counsel failed to visit him was undermined by other statements in the letter, which clearly indicated that counsel and his private investigator were communicating with defendant. Moreover, defendant failed to explain how defense counsel allegedly disrespected him and his wife. Nor did he provide any context regarding defense counsel allegedly hanging up on him. For instance, it is entirely unclear whether defense counsel intentionally or inadvertently hung up on defendant or whether defense counsel simply hung up because the conversation had ended. In this respect, defendant’s complaints are akin to the preprinted allegations circled by the defendant in *Porto*: they lacked sufficient elaboration to signal to the trial court that the complaints were serious enough to warrant minimal inquiry (*see id.*). We thus disagree with the dissent’s and defendant’s attempt to equate the facts of this case to the “serious possibility of irreconcilable conflict” present in *Sides* (75 NY2d at 825).¹ In our view, the trial court was entitled to review defendant’s letter in its entirety and glean

1. Because we conclude that defendant’s letter, on its face, did not “suggest[] a serious possibility of irreconcilable conflict with his lawyer” (*Sides*,

(n. cont’d)

from its substance and tone that defendant's complaints merely reflected his dissatisfaction with counsel's advice rather than "a complete breakdown of communication and . . . trust" warranting a minimal inquiry (*id.*).²

In any event, the court conducted a minimal inquiry when, in response to defendant's letter, it inquired further into the purported issues between defendant and counsel. Contrary to the dissent's assessment that the trial court failed to "'discern' whether defendant's complaints were 'meritorious'" (dissenting op at 565, quoting *Porto*, 16 NY3d at 100), the court considered defendant's letter and counsel's in-court explanation together, which provided it sufficient information to understand "the nature of the disagreement" (*Sides*, 75 NY2d at 825) and conclude that there was not a genuine conflict or that any conflict was reconcilable. To the extent the dissent contends that the court's inquiry failed to meet the minimal inquiry standard, we emphasize that a minimal inquiry need only be that: minimal. The record demonstrates that the trial court met this minimal requirement.

[2] We reject defendant's further contention that counsel's statements to the court in response to defendant's complaints created an actual conflict requiring substitution of counsel. Where assigned counsel takes a position on a pro se motion that is adverse to their client, "a conflict of interest arises, and the court must assign a new attorney to represent the defendant on the motion" (*People v Mitchell*, 21 NY3d 964, 967 [2013];

75 NY2d at 825), we disagree with the dissent's suggestion that counsel's lack of awareness of defendant's letter and statements to the trial court somehow amplified or made obvious the seriousness of defendant's complaints (*see* dissenting op at 562, 564). "[I]t is incumbent upon [the] defendant to make specific factual allegations of 'serious complaints about counsel,'" and the court's obligation to perform a minimal inquiry is implicated only where the defendant makes such a showing (*Porto*, 16 NY3d at 100, quoting *Medina* 44 NY2d at 207). Defendant simply did not meet that burden here.

2. We respectfully disagree with our dissenting colleagues' assertion that our decision "undermines [a] defendant's right to counsel" (dissenting op at 565). While we certainly agree that a defendant's right to counsel is "valued" (dissenting op at 563, quoting *Sides*, 75 NY2d at 824), an indigent defendant's request for new counsel cannot be granted every time the defendant is displeased with their attorney. The "practical constraints" involved in administering legal assistance programs do not allow this (*Porto*, 16 NY3d at 100, quoting *Medina*, 44 NY2d at 207). In view of these practical constraints, our precedent recognizes that a court need not inquire of every complaint that a defendant makes about their attorney. Our holding merely reiterates what is evident from our precedent: absent specific and serious allegations, the court is not required to conduct a minimal inquiry.

see *Washington*, 25 NY3d at 1095). “Although an attorney is not obligated to comment on a client’s pro se motions or arguments, [they] may address allegations of ineffectiveness ‘when asked to by the court’ and ‘should be afforded the opportunity to explain [their] performance’” (*Washington*, 25 NY3d at 1095, quoting *Mitchell*, 21 NY3d at 967; see *People v Nelson*, 7 NY3d 883, 884 [2006]).

We have held that counsel takes a position adverse to their client where counsel states that the defendant’s pro se motion lacks merit (see *Mitchell*, 21 NY3d at 966) or where counsel states, in response to the defendant’s challenge to the voluntariness of a guilty plea, that the defendant’s plea was knowing and in their best interest (*People v Deliser*, 21 NY3d 964, 966 [2013] [decided with *Mitchell*]). Conversely, where the defendant challenges counsel’s performance, assigned counsel does not take a position adverse to their client by merely “outlining [their] efforts on [their] client’s behalf” (*People v Nelson*, 27 AD3d 287, 287 [1st Dept 2006], *affd* 7 NY3d 883 [2006]) in a “defen[se] [of their] performance” (*Nelson*, 7 NY3d at 884; see *Washington*, 25 NY3d at 1095).

Defendant asserts that his counsel took a position adverse to him by opposing defendant’s pro se motion to substitute counsel and “put[ting] on the record” that defendant was “shoot[ing] the messenger” because he did not like what defense counsel “ha[d] to tell him.” In defendant’s view, these statements not only indicated that counsel opposed his motion, but also that counsel believed defendant’s motion lacked merit, creating a conflict that required substitution (see *Mitchell*, 21 NY3d at 966).

Although counsel’s statements were perhaps inartful, we conclude that they did not establish an actual conflict of interest. At the first call, the court asked defense counsel whether he had a chance to review defendant’s substitution motion and whether he was “adopting the motion.” After recalling the case, the court again inquired about defendant’s motion. Although counsel stated that he was “opposing” it, he followed up his statement by recounting his efforts on defendant’s behalf, explaining that he had discussed the case a “number of times” with defendant and merely gave him an “honest assessment of the case.” Viewing defense counsel’s statements in context, we conclude that counsel was not opposing defendant’s motion, but rather was opposing defendant’s allegations concerning counsel’s allegedly deficient performance and, in response to

the court's specific query, declining to adopt the motion. Furthermore, counsel's remark about "shooting the messenger" did not amount to an assessment of the motion's merits. Defendant's interpretation stretches counsel's words beyond their practical meaning. In our view, the statement was a defense of counsel's performance and was intended to provide the trial court with a "factual explanation" of defendant's complaints, which would inform the court's resolution of the motion (*Washington*, 25 NY3d at 1095).

III.

Contrary to defendant's last contention, the court properly denied his CPL 440.10 motion without a hearing. "A CPL 440.10 motion asserting an ineffective assistance of counsel claim 'must contain sworn allegations [alleging that the conviction was obtained due to deficient attorney performance that violated the State or Federal Constitutions], whether by the defendant or by another person or persons'" (*People v Delorbe*, 35 NY3d 112, 121 [2020], quoting CPL 440.30 [1] [a]). A court may deny a CPL 440.10 motion without a hearing if "the moving papers do not contain sworn allegations substantiating or tending to substantiate all the essential facts" (CPL 440.30 [4] [b]; see *Delorbe*, 35 NY3d at 121; *People v Satterfield*, 66 NY2d 796, 799 [1985]). We review "the summary denial of a CPL article 440 motion under an abuse of discretion standard" (*People v Wright*, 27 NY3d 516, 520 [2016]; see *People v Jones*, 24 NY3d 623, 630 [2014]).

Contrary to defendant's assertion, the courts below correctly concluded that—in addition to defendant's failure to provide an affirmation from defense counsel or explain the absence thereof—defendant's claims of ineffectiveness were otherwise not corroborated by the record and were solely supported by his self-serving affidavit (see CPL 440.30 [4] [b]; *Delorbe*, 35 NY3d at 121). The court therefore properly acted within its discretion in summarily denying defendant's CPL 440.10 motion.

Accordingly, the order of the Appellate Division should be affirmed.

RIVERA, J. (dissenting). Defendant requested appointment of new counsel, alleging that his appointed counsel refused to meet with him, even by video; hung up on him and disrespected his wife; was not working in his best interest but rather was serving as a second prosecutor; wanted defendant to plead guilty despite defendant's claims that he was innocent and

wanted counsel to prepare a defense; and was delaying the proceedings rather than expeditiously moving the case to trial because counsel knew that defendant wanted to replace him. Counsel confirmed for the court that defendant was unreceptive to his efforts, rejected his advice, and was unwilling to accept his view of the case. Defendant's allegations and counsel's response suggest an irreconcilable conflict, a breakdown in communication, and a loss of defendant's trust in counsel. If these are not "specific factual allegations of 'serious complaints about counsel'" sufficient to trigger the court's duty to make a minimal inquiry on the state of the professional relationship, it is difficult to see what would be (*People v Porto*, 16 NY3d 93, 100 [2010], quoting *People v Medina*, 44 NY2d 199, 207 [1978]). The majority's decision does not comport with our precedent. A defendant's allegations need only "suggest[]" a significant conflict with appointed counsel to mandate the court's inquiry (*People v Sides*, 75 NY2d 822, 825 [1990]). Here, the majority faults defendant because his written allegations' "substance and tone" did not convince a skeptical court (majority op at 558-559). Our precedent establishes a standard meant to safeguard a defendant's right to counsel, not to excuse ineffectiveness or normalize a broken attorney-client relationship.

I dissent.

I.

Defendant was convicted of second-degree murder, attempted second-degree murder, and second-degree criminal possession of a weapon, all related to a shooting inside a car in which he was a passenger. Defendant maintained his innocence, contending that he had been dropped off and that someone else was the shooter. On this appeal, we are concerned with the court's response to defendant's pretrial request for new counsel.

Several months before trial, defendant wrote to the court alleging, among other things, that his counsel failed to meet with him and to advocate aggressively for his defense. Counsel was defendant's original assigned lawyer and the letter included defendant's first request for substitution of counsel. In support of that request, defendant wrote that counsel was not working in his best interest, disregarded his request for a visit even by video, hung up the phone on him, and disrespected both him and his wife. Defendant stated that counsel was delaying the proceedings because counsel was aware that de-

fendant wanted another lawyer. Defendant added that counsel was excusing the prosecution's failure to be ready for pretrial hearings. He also asserted that he had not received discovery materials necessary for him to prepare an adequate defense and implored the court to "look into these plain and simple facts." Defendant stated several times that he was innocent but that his attorney merely told him to "help [him]self or accept a plea"—statements that defendant viewed as appropriate for a second prosecutor, not a defense attorney.

At the next appearance, the court asked if counsel was adopting defendant's pro se motion and after the case was put on for a second call so that he could review the letter, counsel opposed the motion. Unprompted, counsel stated that defendant wanted to "shoot the messenger" because he did not like the message. Counsel added that he and his investigator "had gone over this stuff with [defendant] any number of times" but defendant "just [did]n't like what [he had] to tell him." The court responded that counsel was "quite right" and remarked that his investigator was "well-respected," "having been a New York City Police Officer." The court then addressed defendant—not for a response to his lawyer's comments, but only to ask defendant if he wanted to hire private counsel. When defendant responded that he could not afford one, the court remarked that the State was paying for his appointed counsel and this counsel was "highly confident and experienced." As such, the court denied defendant's request for different appointed counsel. Against defendant's wishes, counsel represented him for the remainder of the prosecution and at sentencing.

On this appeal, defendant presses his claim that the court should have made a minimal inquiry of his complaints and that the failure to do so requires reversal and a new trial. I agree.

II.

Both the State and Federal Constitutions guarantee effective counsel to indigent defendants (*see Porto*, 16 NY3d at 99; *People v Baldi*, 54 NY2d 137, 146 [1981]). Although this "entitlement does not encompass the right to counsel of one's own choosing" in every case (*id.*), that right is nonetheless "valued" (*Sides*, 75 NY2d at 824). Indeed, courts have an "ongoing duty" to ensure that appointed counsel remains effective and "should substitute counsel when a defendant can demonstrate 'good cause'" (*People v Linares*, 2 NY3d 507, 510 [2004], quoting *Medina*, 44

NY2d at 207). Where a defendant makes a “seemingly serious request[]” for new counsel (*Sides*, 75 NY2d at 824), supported by “specific factual allegations” (*Porto*, 16 NY3d at 100), “the trial court in exercising its discretion to grant or deny must carefully evaluate” it to ascertain whether good cause for substitution exists (*Sides*, 75 NY2d at 824). This careful evaluation must include “at least a ‘minimal inquiry’” to “discern meritorious complaints from disingenuous applications by inquiring as to ‘the nature of the disagreement or its potential for resolution’” (*Porto*, 16 NY3d at 100, quoting *Sides*, 75 NY2d at 825). Failure to inquire is grounds for reversal (*see Sides*, 75 NY2d at 825).

The record makes plain that the court did not investigate defendant’s complaints, so the question is whether an inquiry was required based on defendant’s allegations of counsel’s deficiencies. It was. Defendant’s statements were specific allegations of counsel’s refusal to meet with defendant, disrespectful treatment, and awareness of defendant’s desire to replace him, the last of which defendant believed was the reason for counsel’s prolonging the proceedings. These allegations indicate a breakdown in communication between defendant and counsel, a complete lack of trust in counsel’s commitment to defendant’s defense, and defendant’s desire to terminate the representation and replace counsel with a lawyer who would move the proceedings forward expeditiously and fight for him.

These were not vague or generalized complaints of “frustration” as in *Porto*, nor were they made close to trial, suggesting a delay tactic (*cf. Porto*, 16 NY3d at 102). To the contrary, defendant complained that counsel delayed the proceedings. Counsel was not even aware of defendant’s request, a further indication of the breakdown in their professional relationship. And counsel’s response to the assertions in the letter confirmed that defendant’s allegations were serious, as counsel admitted that defendant was displeased with him and unwilling to accept his advice. These complaints triggered the court’s obligation to make a minimal inquiry as to “the nature of the disagreement” (*Porto*, 16 NY3d at 100, quoting *Sides*, 75 NY2d at 825). “The court might well have found upon limited inquiry that defendant’s request was without genuine basis, but it could not so summarily dismiss this request” (*Sides*, 75 NY2d at 825; *cf. People v English*, 201 AD3d 733, 735 [2d Dept 2022] [minimal inquiry required where the “relationship between the defendant and assigned counsel had been contentious for some

time due to the defendant's lack of access to discovery and assigned counsel's inability to obtain specific evidence that the defendant requested"]; *People v Jones*, 173 AD3d 1628, 1629-1630 [4th Dept 2019] [minimal inquiry required where "defendant attempted to inform the court that he was pleading guilty only because he was not receiving effective assistance of counsel," even though defendant's "request may well have been a frivolous delaying tactic"])*.

The majority's suggestion that the court's brief colloquy with counsel constituted the requisite minimal inquiry is a mere obiter dictum, "uttered by the way, not upon the point or question pending" (*Rohrbach v Germania Fire Ins. Co.*, 62 NY 47, 58 [1875]). In any event, the record belies the conclusion that this colloquy was adequate. Counsel's assertions that he and his investigator had gone "over this stuff" with defendant "any number of times," but that defendant did not like what counsel told him, do not contradict defendant's assertions that counsel refused to meet with him. Indeed, they do not even explain when counsel discussed these matters with defendant. Counsel's statements also do not address the potential breakdown in the attorney-client relationship, defendant's lack of trust in counsel's commitment to his defense, and defendant's complaints that counsel was delaying the proceedings and failing to focus on defendant's wish to develop a trial defense rather than take a plea. Counsel's suggestion that defendant wished to "shoot the messenger" because he did not "like the message" that counsel was conveying only confirmed defendant's complaint that communication had broken down between attorney and client. Nothing in this short exchange sufficed for the court to "discern" whether defendant's complaints were "meritorious" (*Porto*, 16 NY3d at 100).

The majority purports to be faithful to our precedent, but its application of that precedent here undermines defendant's right to counsel. We do not require dates, times, and other minutia because a pro se defendant—especially one in pretrial detention with limited outside communication—may not know how best to support a request for new counsel. Moreover, a de-

* The majority's statement that "an indigent defendant's request for new counsel cannot be granted every time the defendant is displeased with their attorney" is beside the point (majority op at 559 n 2). This appeal concerns only whether the court was obliged to inquire into defendant's request and, if so, whether the court's inquiry was adequate—not whether the court should have granted the request.

fendant may be unaware of the legal and ethical limits on counsel's ability to explain to the court the details of the breach in the attorney-client relationship.

Measuring defendant's request by the correct standard, he made specific factual allegations sufficient to trigger the court's duty to make a minimal inquiry into defendant's seemingly serious complaint. A court can avoid potential constitutional violations and an appellate issue by taking a few moments to make a minimal inquiry before deciding whether there is cause to substitute counsel. Those would be moments well spent. The court here failed to take this necessary precaution and therefore I would vacate the judgment of conviction and order a new trial.

Judges GARCIA, SINGAS and CANNATARO concur. Judge RIVERA dissents in an opinion, in which Chief Judge WILSON and Judge HALLIGAN concur.

Order affirmed.

[264 NE3d 1276, 238 NYS3d 145]

In the Matter of Arbitration between LEWIS B. ROSBAUGH et al., Respondents, and TOWN OF LODI, Appellant, et al., Respondent/Defendant.

Argued February 13, 2025; decided March 13, 2025

PROCEDURAL SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered March 22, 2024. The Appellate Division order, insofar as appealed from, with two Justices dissenting, affirmed an order and judgment (one paper) of the Supreme Court, Seneca County (Barry L. Porsch, A.J.; op 2021 NY Slip Op 34254[U] [2021]), entered in a proceeding pursuant to CPLR article 75 and action for money damages, to the extent it had confirmed an arbitrator's award and awarded petitioners/respondents/plaintiffs money damages against respondent/petitioner/defendant Town of Lodi.

Matter of Rosbaugh (Town of Lodi), 225 AD3d 1314, reversed.

HEADNOTE

Logs and Timber — Cutting or Carrying off Trees or Timber — Treble Damages

Treble damages under RPAPL 861 (1) in an action to recover “the stumpage value of” “tree[s] or timber on the land of another” cut down or removed without the landowner's consent are punitive in nature and are therefore unavailable in a suit against a municipality. Accordingly, the portion of an arbitrator's award imposing treble damages under RPAPL 861 against defendant Town after it cut down or trimmed trees on plaintiffs' land without their consent was vacated. The “good faith” provision in RPAPL 861, which does not insulate a person from the imposition of statutory damages but merely saves them from having to pay the plaintiff treble damages, demonstrates the punitive nature of the treble damages available under the statute. Punitive damages are essentially private fines levied by civil juries to punish reprehensible conduct, and deter its future occurrence. It is unreasonable to read the statute in a way that allows the defendant's state of mind—a showing the defendant acted in good faith—to reduce a recovery merely intended to make the plaintiff whole. Rather, the plain reading of the text is that treble damages, punitive in nature, are mitigated by the good faith of the defendant. Moreover, a consistent theme of punishment and deterrence runs throughout the statute's legislative history, further showing that the treble damages the statute authorizes are meant to punish those who do not act in good faith and are punitive.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Logs and Timber §§ 115, 117, 119; AM JUR 2d

Municipal Corporations, Counties, and Other Political Subdivisions § 743; AM JUR 2d Trespass §§ 126–127.
 CARMODY-WAIT 2d Actions for Waste, Nuisance, and Trespass §§ 107:106, 107:140.
 DOBBS LAW OF TORTS (2d ed) § 56.
 MCKINNEY’S, RPAPL 861.
 NY JUR 2d Damages §§ 191, 197; NY JUR 2d Government Tort Liability § 18; NY JUR 2d Logs and Timber §§ 27, 33; NY JUR 2d Trespass §§ 67–68, 87.
 NEW YORK LAW OF TORTS §§ 2:7–2:8, 21:117, 21:120.

ANNOTATION REFERENCES

Recovery of exemplary or punitive damages from municipal corporation. 1 ALR4th 448.
 Measure of Damages for Wrongful Injuries to Timber. 50 ALR7th Art. 6.

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POINTS OF COUNSEL

Hancock & Estabrook, LLP, Syracuse (Alan J. Pierce of counsel), for appellant. The award of treble damages against the Town of Lodi violates well-established New York public policy and law. (*Sharapata v Town of Islip*, 56 NY2d 332; *Krohn v New York City Police Dept.*, 2 NY3d 329; *Katt v City of New York*, 151 F Supp 2d 313; *People v King*, 61 NY2d 550; *Cornell v County of Monroe*, 187 AD3d 1566.)

Powers & Santola, LLP, Albany (Michael J. Hutter of counsel), for respondents. An award of treble the stumpage value of trees and timber cut or removed from Lewis B. Rosbaugh’s and Lynne T. Rosbaugh’s property, without authorization, as permitted by RPAPL 861 is an award of compensatory damages and not punitive damages, and thus may be properly awarded against the Town of Lodi. (*Lawrence Constr. Corp. v State of New York*, 293 NY 634; *Chauca v Abraham*, 30 NY3d 325; *Sharapata v Town of Islip*, 56 NY2d 332; *Reid v Terwilliger*, 116 NY 530; *Welch v. Mr. Christmas*, 57 NY2d 143.)

OPINION OF THE COURT

GARCIA, J.

An unpaved road runs along one side of property owned by

plaintiffs. In 2010, the Town of Lodi determined that low-hanging branches and dead or dying trees on plaintiffs' side of the road posed a hazard to travelers and needed to be cut or removed. Plaintiffs disagreed. Nevertheless, after apparently concluding that the trees were within the right-of-way, a tree service company hired by the Town cut down or trimmed 55 trees on plaintiffs' land. Plaintiffs commenced an action against the Town and the tree service company seeking, among other remedies, treble damages pursuant to RPAPL 861 (1). The parties agreed to binding arbitration and the arbitrator awarded plaintiffs damages, including treble the "stumpage value" of the damaged or destroyed trees. Supreme Court confirmed the arbitrator's award and a divided Appellate Division affirmed. The sole issue on appeal is whether treble damages under RPAPL 861 are punitive in nature, making them unavailable in a suit against a municipality. We hold that they are and reverse.

RPAPL 861 provides that

"[i]f any person, without the consent of the owner thereof, cuts, removes, injures or destroys . . . tree[s] or timber on the land of another . . . an action may be maintained against such person for treble the stumpage value of the tree or timber or two hundred fifty dollars per tree, or both and for any permanent and substantial damage caused to the land or the improvements thereon" (RPAPL 861 [1]).

"Stumpage value" is defined as "the current fair market value of a tree as it stands prior to the time of sale, cutting, or removal," and several valuation methods are specified in the statute (*id.* § 861 [3]). Treble damages are the default measure for any recovery, but the statute also provides that

"if the defendant establishes by clear and convincing evidence, that when the defendant committed the violation, he or she had cause to believe the land was his or her own, or that he or she had an easement or right of way across such land which permitted such action, or he or she had a legal right to harvest such land, then he or she shall be liable for the stumpage value or two hundred fifty dollars per tree, or both" (*id.* § 861 [2]).

In other words, the defendant's good faith "does not insulate that person from the imposition of statutory damages, but

merely saves him or her from having to pay the plaintiff treble damages” (*Halstead v Fournia*, 160 AD3d 1178, 1182 [3d Dept 2018] [internal quotation marks and citations omitted]).

In the present case, an arborist assigned a value to each tree ranging from less than \$100 to more than \$5,000, arriving at a total stumpage value of \$48,349. This amount was then trebled and \$145,047 awarded against the Town. Plaintiffs were also awarded remedial measure costs and the value of pre-cut wood removed from the property; however, the arbitrator found no evidence of any reduction in the value of the property or of “mental anguish.” The Town sought to vacate the award in Supreme Court, arguing that treble damages were punitive in nature and, as a matter of public policy, could not be imposed against a municipality. Supreme Court rejected that argument, holding that, because treble damages did not require a finding of “actual malice or a wanton, willful or reckless disregard of plaintiffs’ rights,” they were not punitive in nature, and confirmed the arbitrator’s award (2021 NY Slip Op 34254[U], *2 [Sup Ct, Seneca County 2021]).

In affirming that decision, the Appellate Division majority concluded that treble damages in RPAPL 861 were not punitive but were instead intended to capture elusive compensatory damages, including “the intrinsic value of a tree in its natural state—such as its environmental, historical and aesthetic qualities—which can be substantially greater to a landowner than the mere marketable lumber value” (225 AD3d 1314, 1315 [4th Dept 2024]). The two dissenting Justices would have held that the treble damages were punitive and therefore that the arbitrator lacked authority to award those damages against the Town. According to the dissent, the “good faith” clause in RPAPL 861 (2) made clear that treble damages were not merely compensatory as it would be unreasonable to read the statute as intending that “owners of trees cut down by trespassers who harvest trees in *good faith* should not be made whole and instead receive only one-third of the market value of their trees” (*see id.* at 1317 [Whalen, P.J., & Lindley, J., dissenting]). The Town appealed to this Court as of right (*see* CPLR 5601 [a]).

It is well established that “the State and its political subdivisions are not subject to punitive damages” (*Clark-Fitzpatrick, Inc. v Long Is. R.R. Co.*, 70 NY2d 382, 386 [1987]). Consistent with this principle, the Court has held “that public funds [are] not . . . available, directly or indirectly, for the

payment of damages beyond those actually suffered” because “the twin justifications for punitive damages—punishment and deterrence—are hardly advanced when applied to a governmental unit” (*Sharapata v Town of Islip*, 56 NY2d 332, 338 [1982]). “Treble damages are generally viewed as punitive” and to determine if that general view holds here, we look to the statute at issue to determine whether the legislature intended the treble damages to function punitively (*Matter of Regina Metro. Co., LLC v New York State Div. of Hous. & Community Renewal*, 35 NY3d 332, 385 [2020] [treble damages at issue were the functional equivalent of punitive damages because “actual damages are also available and there are no limitations on the amount . . . that may be trebled”]).

As Supreme Court below noted, recovery of punitive damages at common law generally requires a showing akin to “actual malice or a wanton, willful or reckless disregard of plaintiffs’ rights,” and no such requirement is found in RPAPL 861. Nevertheless, when considering a claim created by statute, “it is . . . within the province of the Legislature in authorizing the award of such [punitive or exemplary] damages to establish other and different criteria” (*Welch v Mr. Christmas*, 57 NY2d 143, 150 [1982] [citations omitted]) and so a statute may authorize punitive damages for less culpable conduct. In *Welch*, this Court cited RPAPL 861 as an example of a statute authorizing such damages based on different criteria than traditionally applied in an action at common law (*see id.*). While dictum in that case, the conclusion that the legislature intended the treble damages in RPAPL 861 to be punitive is correct.

The “good faith” provision in RPAPL 861 demonstrates the punitive nature of the treble damages available under the statute. “In contrast to compensatory damages, which are intended to redress the concrete loss that a plaintiff has suffered by reason of the defendant’s wrongful conduct, punitive damages are essentially private fines levied by civil juries to punish reprehensible conduct, and deter its future occurrence” (*Frankson v Brown & Williamson Tobacco Corp.*, 67 AD3d 213, 218-219 [2d Dept 2009], citing *Cooper Industries, Inc. v Leatherman Tool Group, Inc.*, 532 US 424, 432 [2001] [compensatory damages “are intended to redress the concrete loss that the plaintiff has suffered by reason of the defendant’s wrongful conduct,” whereas punitive damages “operate as ‘private fines’ intended to punish the defendant and to deter future wrongdoing

ing”)). As the dissent below asserted, it is unreasonable to read the statute in a way that allows the defendant’s state of mind—a showing the defendant acted in good faith—to reduce a recovery merely intended to make the plaintiff whole. Rather, the plain reading of the text is that treble damages, punitive in nature, are mitigated by the good faith of the defendant.

The history of the statute also contradicts the notion that the treble damages provision is meant to compensate the owner for the “intrinsic value” of the tree outside any measure of stumpage “market value” (225 AD3d at 1315). Under the version of the statute in effect from 1963 until the current version was enacted in 2003, the plaintiff was authorized to state his or her “damages and demand judgment for treble the sum so stated” (former RPAPL 861 [2]). That prior version, allowing for broad damages claims, also set out a reduction based on good faith from treble to single damages, suggesting, as here, that treble damages were an additional penalty to deter knowing and intentional taking of timber (*id.* former § 861 [2] [a]). In fact, the earliest predecessor statutes, enacted more than two centuries ago, contained provisions for treble damages with a corresponding good-faith mechanism for reducing to single damages (*see e.g.* L 1805, ch 94 [single damages if conduct engaged in by “mistake”]; 1813 Rev Laws of NY, 36th Sess, ch LVI, § XXIX [1 Van Ness & Woodworth rev at 525-526] [single damages if trespass was “casual or involuntary” or defendant had a good-faith belief he or she owned the land]).

That approach carried over to the current version of RPAPL 861 enacted in 2003. Treble damages are generally intended as punitive, and treble the stumpage value is not less so, especially with a corresponding good-faith mechanism for reducing those damages. A consistent theme of punishment and deterrence runs throughout the statute’s legislative history (*see Halstead*, 160 AD3d at 1181-1182 [reviewing legislative history for L 2003, ch 602]). For example, the Assistant Commissioner of the New York State Department of Environmental Conservation explained:

“Current penalties are not high enough to deter the illegal taking of timber This legislation, by increasing the penalties to allow for treble the stumpage value, will provide for greater deterrence for the knowing offender while at the same time promote more diligence and care on the part of le-

gitimate timber harvesters to prevent inadvertent trespass and timber theft [and] this legislation will make it easier for timber theft victims to recover damages” (Letter from St Dept of Env’tl Conservation, Sept. 24, 2003, Bill Jacket, L 2003, ch 602 at 14).

In sum, the structure and the history of this statute show that the treble damages it authorizes are meant to punish those who do not act in good faith and are punitive. As a result, treble damages as provided for by RPAPL 861 may not be imposed against the Town (*see Sharapata*, 56 NY2d at 339).

Accordingly, the order of the Appellate Division insofar as appealed from should be reversed, with costs, and the petition to vacate the award granted in part in accordance with this opinion.

Chief Judge WILSON and Judges RIVERA, SINGAS, CANNATARO, TROUTMAN and HALLIGAN concur.

Order insofar as appealed from reversed, with costs, and petition to vacate the award granted in part in accordance with the opinion herein.

[264 NE3d 1281, 238 NYS3d 150]

In the Matter of P.C., Respondent, v STONY BROOK UNIVERSITY
et al., Appellants.

Argued February 13, 2025; decided March 18, 2025

PROCEDURAL SUMMARY

APPEAL from a judgment of the Appellate Division of the Supreme Court in the Second Judicial Department, entered November 8, 2023, in a proceeding pursuant to CPLR article 78 (initiated in the Appellate Division pursuant to CPLR 506 [b] [1]). The Appellate Division, with two Justices dissenting, (1) granted the petition, on the law; (2) annulled the determination of the Stony Brook University Appeals Committee, which had denied the appeal from a determination of the Review Panel of Stony Brook University, which had, after a hearing, found petitioner responsible for violating certain sections of the Stony Brook University Code of Student Responsibility and suspended him; (3) vacated the penalties; (4) dismissed the charges that petitioner violated certain sections of the Stony Brook University Code of Student Responsibility; and (5) directed respondent Stony Brook University to expunge all references to the finding from petitioner's academic record.

Matter of P.C. v Stony Brook Univ., 221 AD3d 686, reversed.

HEADNOTES

Colleges and Universities — Disciplinary Proceedings — Sexual Misconduct

1. In a CPLR article 78 proceeding challenging the determination of respondent university that petitioner student violated its code of student responsibility by committing sexual misconduct against another student, substantial evidence supported the determination that petitioner violated the code by engaging in unwanted sexual activity with the other student despite her physical resistance and loss of consciousness during separate encounters. Although some aspects of the sexual encounters may have been consensual, there was ample evidence that other aspects were not. The other student's un rebutted testimony was deemed credible and she provided consistent evidence, both in her written statement and in her hearing testimony, that she tried unsuccessfully to physically remove petitioner's hands from her neck during an encounter in the woods. Under the code, her physical resistance was inconsistent with affirmative consent. The student also consistently maintained that, during a separate incident, she lost consciousness, woke up while petitioner was still having sex with her, and that petitioner then told her she had only been "out" for a moment. Under the code, sexual activity must stop when a person is incapacitated by lack of consciousness or being asleep. Moreover, petitioner's own text messages acknowledged the sexual contact and, to some degree, evinced a consciousness of guilt.

Colleges and Universities — Disciplinary Proceedings — Judicial Review

2. In a CPLR article 78 proceeding, respondent university did not violate its own rules and procedures in finding that petitioner student violated its code of student responsibility by committing sexual misconduct against another student, and therefore its determination was not arbitrary and capricious. Both respondent's review panel and the appeals committee expressly rendered their determinations under the proper preponderance of the evidence standard. Nor was there any indication that respondent failed to accord petitioner the presumption that he was not responsible for the charged sexual misconduct. The presumption, in the context of this administrative proceeding, applied unless and until proved otherwise by a preponderance of the evidence. Petitioner had the right to decline to testify or answer questions and, instead, hold respondent to its burden. Once respondent met its burden by a preponderance of the evidence, petitioner's failure to put forth any rebuttal evidence from which the committee could have drawn a different conclusion dictated the outcome. Statements made in the administrative determination concerning petitioner's failure to explain how the other student provided affirmative consent to sexual activity were consistent with a finding that he failed to rebut the evidence against him. As such, those references were not inconsistent with the presumption of non-responsibility, which would not have permitted respondent to place the burden on petitioner to prove affirmative consent as an initial matter.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Administrative Law §§ 447–448, 450–451; AM
JUR 2d Colleges and Universities §§ 26–27, 31.

CARMODY-WAIT 2d Proceeding Against a Body or Officer
§§ 145:678, 145:700, 145:703.

McKINNEY'S, CPLR art 78.

NY JUR 2d Article 78 and Related Proceedings §§ 53–56,
61–62; NY JUR 2d Schools, Universities, and Colleges
§§ 816, 818, 866–867.

ANNOTATION REFERENCE

See ALR Index under Administrative Law; Colleges and
Universities; Discipline and Disciplinary Actions.

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capricious" & testif! testimony preponderance

POINTS OF COUNSEL

Letitia James, Attorney General, New York City (Elizabeth A. Brody, Barbara D. Underwood and Judith N. Vale of counsel),

for appellants. Substantial evidence supports Stony Brook University's determination that S.G. did not affirmatively consent to all of the sexual activity. (*300 Gramatan Ave. Assoc. v State Div. of Human Rights*, 45 NY2d 176; *Matter of FMC Corp. [Peroxygen Chems. Div.] v Unmack*, 92 NY2d 179; *Matter of Ridge Rd. Fire Dist. v Schiano*, 16 NY3d 494; *Matter of Weber v State Univ. of N.Y., Coll. at Cortland*, 150 AD3d 1429; *Matter of Meyer v Board of Trustees of N.Y. City Fire Dept., Art. 1-B Pension Fund*, 90 NY2d 139.)

Barket Epstein Kearon Aldea & LoTurco, LLP, Garden City (Alexander Klein and Donna Aldea of counsel), for respondent. The Appellate Division correctly vacated P.C.'s suspension from Stony Brook University where the school violated its own policies and procedures and rendered a decision lacking in substantial evidence. (*Matter of ACME Bus Corp. v Orange County*, 28 NY3d 417; *Tedeschi v Wagner Coll.*, 49 NY2d 652; *Matter of A.E. v Hamilton Coll.*, 173 AD3d 1753; *Matter of Waldman v United Talmudical Academy*, 147 Misc 2d 529; *Matter of Board of Educ. of City Sch. Dist. of City of N.Y. v Mills*, 293 AD2d 37.)

OPINION OF THE COURT

CANNATARO, J.

Petitioner, a student at respondent Stony Brook University (the University), commenced this CPLR article 78 proceeding challenging the determination that he violated the University's Code of Student Responsibility by committing sexual misconduct against another student. We hold that the determination at issue is supported by substantial evidence and therefore reverse the judgment of the Appellate Division.

I.

In September 2019, following a report indicating that petitioner, P.C., had engaged in behavior that violated the University's sexual misconduct policy, the University commenced an investigation. The other student involved, S.G., provided a written statement to the investigator in which she recounted the details of their encounter. P.C. declined to meet with the University's investigator.

Following the investigation, P.C. was charged with violating three provisions of the Code of Student Responsibility relating to sexual misconduct, namely, sexual harassment, nonconsensual sexual contact and nonconsensual sexual intercourse

and/or penetration. The notice of charges detailed the allegations lodged against P.C., that he “engaged in sexual contact with a female student while she was incapacitated due to alcohol and unable to give consent,” and listed specific behaviors, including choking S.G. during sexual intercourse in the woods and having sexual intercourse in S.G.’s vehicle. The notice also set forth in full the text of the Code provisions P.C. was alleged to have violated. As relevant here, the definition of sexual harassment encompasses unwelcome sexual advances and physical conduct of a sexual nature, including sexual violence (Code of Student Responsibility § VII.C.6.a). Nonconsensual sexual contact includes “any contact of a sexual nature which is unwanted or unwelcome” (Code of Student Responsibility § VII.C.6.b) and nonconsensual sexual intercourse is “any sexual penetration or intercourse that is unwanted or unwelcome” (Code of Student Responsibility § VII.C.6.c).

II.

A hearing was held before a Review Panel composed of faculty and staff members from the University. P.C. was represented by counsel. The University’s investigator placed a summary of the investigation on the record and S.G. gave a statement consistent with her prior written statement. With respect to the choking allegation, S.G. testified that she had been “black[ing] out,” but “became present in the moment because of how aggressive [P.C.] was being, how I felt like I couldn’t breathe and tried to get his hands off my throat. He wasn’t budging and I don’t know what happen[ed] after that because I blacked out again.” With respect to the sexual intercourse in her car, S.G. stated that she did not recall much of what happened, but remembered “dreaming as if [she] were asleep” and, when she “woke up,” she “remember[ed] panicking, asking [P.C.] if I passed out” and that he initially said no, but then said she was “only out for a moment.” She also recalled swiftly terminating the encounter, returning to her dorm and crying on the phone with her friends, telling them that she “woke up and it was still happening. He didn’t stop.” Video surveillance footage showing the two walking together around campus at various points in the evening was played during the cross-examination of S.G.

P.C. provided a brief opening statement denying that he engaged in sexual conduct with S.G. while she was incapacitated due to alcohol and unable to consent. He generally argued

that S.G. was not credible, asserting that the surveillance footage showing the two walking together around campus at various points in the evening belied any claim of inability to consent due to incapacitation by alcohol. He also argued that the allegation that she was violently choked should not be believed, given that there were no marks on her neck. P.C. confirmed that he was familiar with the definition of affirmative consent set forth in the Code of Student Responsibility. P.C. then declined to answer most of the questions asked by the hearing officer on the advice of counsel, including whether he could identify actions or words by S.G. during the sexual interactions that constituted affirmative consent.

No other testimony was taken, but text messages exchanged between P.C. and another individual—a mutual friend who had introduced P.C. and S.G. that evening and had elicited a promise from P.C. that he would not have sex with S.G.—were introduced into evidence. In the messages, P.C. admitted he had sex with S.G., stating “I made my choice, and I’m sorry, and I know I f***ed up, and I won’t sugar coat that.” P.C. also acknowledged that he “did something terrible, and I don’t know how to say I’m sorry, but I am.” In explaining why he had sex with S.G., he said “I was drunk and horny and let my monkey brain have fun in the moment despite the obvious long-term outcome. What I’m saying is that if I had been sober, I would’ve been thinking more straight and I wouldn’t have hurt her nor broken your trust.”

The Review Panel found P.C. responsible for violating the charged provisions of the Code of Student Responsibility by a preponderance of the evidence at the hearing. In support of its determination, the Review Panel pointed to S.G.’s testimony that P.C. engaged in conduct that amounted to unwelcome sexual advances, unwelcome sexual contact and unwelcome sexual intercourse, primarily that S.G. did not want P.C. to choke her during sex and that he admitted to her that she was briefly unconscious while they were having sex in the car. The Panel also cited to P.C.’s text messages, in which he acknowledged engaging in sexual intercourse with the victim and stated that he “f***ed up.” The Review Panel stated that it had considered all available information and determined that, regardless of whether S.G. was incapacitated by alcohol, the evidence supported the conclusion that P.C. was responsible for the charged misconduct. The Panel imposed a penalty of suspension from the University.

P.C. administratively appealed the determination, arguing that the violations of the Code of Student Responsibility were not established by a preponderance of the evidence. Despite his acknowledgement that the Review Panel did not base its determination on the question of S.G.'s inability to consent due to intoxication, P.C. nonetheless devoted a significant portion of his argument to evidence that purportedly negated any claim that S.G. was incapacitated by alcohol. He further posited that the evidence introduced at the hearing was sufficient to establish affirmative consent, citing S.G.'s statements relating to their consensual sexual activity that night. Finally, he argued that the Review Panel improperly held his decision to remain silent against him and improperly referenced his inability or unwillingness to identify evidence establishing affirmative consent, in violation of the presumption of non-responsibility contained in the Student Code.

The Appeals Committee found "no grounds upon which to alter the Review Panel's determination" and upheld the disciplinary penalty. The Committee rejected the argument that S.G. was not credible. In addition, the Committee found that the evidence supported the Review Panel's findings of responsibility on all three charges based on a preponderance of the evidence. The Committee explained that, although P.C. was permitted to decline to answer questions put to him at the hearing, the Review Panel was constrained to consider only the evidence in the record and that his decision not to answer questions limited the evidence that could be considered.

III.

Petitioner commenced this CPLR article 78 proceeding against respondents¹ seeking to vacate the Appeals Committee's determination, asserting that it lacked substantial evidence and that it was arbitrary and capricious and made pursuant to an error of law due to the University's failure to follow its own rules for disciplinary proceedings. In particular, he asserted that the University did not adhere to the standard requiring that misconduct be established by a preponderance

1. In addition to the University, the respondents are the University's Director of the Office of Community Standards, the hearing officer, and the members of the Review Panel and the Appeals Committee.

of the evidence and that it failed to accord him a “presumption of innocence.”²

Upon transfer from Supreme Court pursuant to CPLR 7804 (g), a majority of the Appellate Division granted the petition, annulled the Appeals Committee’s determination, dismissed the charges and directed the University to expunge the matter from petitioner’s academic record (221 AD3d 686 [2d Dept 2023]). Since the University Review Panel made no determination that S.G. was unable to consent as a result of incapacitation caused by intoxication, the Court deemed the only question before it to be whether substantial evidence supported the conclusion that S.G. did not otherwise consent to the sexual activity. The majority determined that substantial evidence was lacking to support that conclusion, specifically referencing S.G.’s written statement that she consented to sexual activities earlier in the evening. In addition, the majority found that reliance on P.C.’s decision not to answer certain questions violated the presumption of non-responsibility contained in the Code of Student Responsibility.

Two Justices dissented and would have confirmed the determination, denied the petition and dismissed the proceeding. The dissent concluded that the determination that petitioner violated the Code of Student Responsibility was supported by substantial evidence (*see* 221 AD3d at 692).

Respondents appeal as of right pursuant to CPLR 5601 (a) based on the two-Justice dissent.

IV.

We review appeals from the determinations of administrative bodies following a hearing under a substantial evidence standard (*see* CPLR 7803 [4]; *Matter of Pell v Board of Educ. of Union Free School Dist. No. 1 of Towns of Scarsdale & Mamaroneck, Westchester County*, 34 NY2d 222, 231 [1974]). Substantial evidence consists of “such relevant proof as a reasonable mind may accept as adequate to support a conclusion or ultimate fact” (*Matter of Ridge Rd. Fire Dist. v Schiano*, 16 NY3d 494, 499 [2011]). We have characterized the substantial evidence standard as a “minimal” one, “demand[ing] only that a given inference is reasonable and plausible, not necessarily

2. Under the Code of Student Responsibility, a “[r]espondent enjoys a presumption of not responsible unless and until proven otherwise by a preponderance of the evidence” (*see* Code of Student Responsibility § VII.D).

the most probable” (*Matter of Haug v State Univ. of N.Y. at Potsdam*, 32 NY3d 1044, 1045-1046 [2018] [internal quotation marks and citation omitted]). Stated otherwise, we review the administrative determination to see if it is supported by “proof within the whole record of such quality and quantity as to generate conviction in and persuade a fair and detached fact finder that, from that proof as a premise, a conclusion or ultimate fact may be extracted reasonably—probatively and logically” (*300 Gramatan Ave. Assoc. v State Div. of Human Rights*, 45 NY2d 176, 181 [1978]).

In performing this analysis, a reviewing court is not permitted to reweigh the evidence or “substitute its judgment for that of the agency, even if the court would have decided the matter differently” (*Matter of Haug*, 32 NY3d at 1046). Thus, “[w]here substantial evidence exists . . . , the determination must be sustained, irrespective of whether a similar quantum of evidence is available to support other varying conclusions” (*id.* [internal quotation marks and citations omitted]).

Here, as required by the Education Law, the University has incorporated the statutory definition of affirmative consent in its Code of Student Responsibility (*see* Education Law § 6441 [1]). “Affirmative consent is a knowing, voluntary, and mutual decision among all participants to engage in sexual activity. Consent can be given by words or actions, as long as those words or actions create clear permission regarding willingness to engage in the sexual activity. Silence or lack of resistance, in and of itself, does not demonstrate consent” (Code of Student Responsibility § VII.C.7; Education Law § 6441 [1]). The Code further specifies that “[c]onsent to any sexual act or prior consensual sexual activity between or with any party does not necessarily constitute consent to any other sexual act” (Code of Student Responsibility § VII.C.7.a.ii; *see* Education Law § 6441 [2] [a]). Importantly, consent cannot be given when a person is incapacitated due, for example, to a “lack of consciousness or being asleep” (Code of Student Responsibility § VII.C.7.a.v.b; *see* Education Law § 6441 [2] [d]). Moreover, consent that is initially given “may be revoked/or withdrawn at any time, either verbally, through physical resistance, or by losing consciousness” (Code of Student Responsibility § VII.C.7.b.i; *see* Education Law § 6441 [2] [c]). Any sexual activity must stop when consent is either withdrawn or can no longer be given (*see* Code of Student Responsibility § VII.C.7.b.ii; Education Law § 6441 [2] [f]) and the “[f]ailure to cease sexual contact

promptly in response to withdrawal of consent constitutes prohibited non-consensual sexual contact” (Code of Student Responsibility § VII.C.7.b.iii). And although no longer directly at issue here, the Code separately provides that no consent can be given where a person is unable to form consent due to intoxication by drugs or alcohol (*see* Code of Student Responsibility § VII.C.7.a.vi; Education Law § 6441 [2] [d]).

V.

[1] Applying the above provisions, substantial evidence supports the determination that P.C. violated the Code of Student Responsibility by engaging in unwanted sexual activity with S.G. despite her physical resistance and loss of consciousness during separate encounters. Although some aspects of the sexual encounters may have been consensual, there is ample evidence that other aspects were not. S.G.’s un rebutted testimony was deemed credible and she provided consistent evidence, both in her written statement for the investigator and in her hearing testimony, that she tried unsuccessfully to physically remove P.C.’s hands from her neck during an encounter in the woods. Under the Code of Student Responsibility, her physical resistance is inconsistent with affirmative consent.

Similarly, with respect to the allegation that P.C. had sex with S.G. in the car without her affirmative consent, S.G. consistently maintained that she lost consciousness, woke up while P.C. was still having sex with her, and that P.C. then told her she had only been “out” for a moment. Under the Code, sexual activity must stop when a person is incapacitated by lack of consciousness or being asleep. Moreover, P.C.’s own text messages acknowledge the sexual contact and, to some degree, evince a consciousness of guilt.

The evidence adduced depicting unwelcome sexual conduct by P.C. constitutes substantial evidence supporting all three charges. In reaching the opposite conclusion, the Appellate Division majority improperly reweighed the evidence by relying on S.G.’s statements concerning consensual conduct that transpired earlier in the evening, to the exclusion of her testimony regarding the contact to which she did not consent, and disregarded the conclusion that P.C.’s text messages reflected a consciousness of guilt.

[2] Petitioner’s remaining argument that the University’s determination was arbitrary and capricious in that it violated

its own rules and procedures is without merit.³ Initially, both the Review Panel and the Appeals Committee expressly rendered their determinations under the proper preponderance of the evidence standard. Nor is there any indication that the University failed to accord him the presumption that he was not responsible for the charged sexual misconduct (*see* Code of Student Responsibility § VII.D; *see* Education Law § 6444 [5] [c] [ii]). The presumption, in the context of this administrative proceeding, applies “unless and until proven otherwise by a preponderance of the evidence” (Code of Student Responsibility § VII.D). As the Appeals Committee found, P.C. had the right to decline to testify or answer questions and, instead, hold the University to its burden. Once the University met its burden by a preponderance of the evidence, P.C.’s failure to put forth any rebuttal evidence from which the Committee could have drawn a different conclusion dictated the outcome. Statements made in the administrative determination concerning P.C.’s failure to explain how S.G. provided affirmative consent to sexual activity are consistent with a finding that he failed to rebut the evidence against him. As such, these references are not inconsistent with the presumption of non-responsibility, which would not permit the University to place the burden on P.C. to prove affirmative consent as an initial matter.

Accordingly, the judgment of the Appellate Division should be reversed, with costs, and the petition dismissed.

Chief Judge WILSON and Judges RIVERA, GARCIA, SINGAS, TROUTMAN and HALLIGAN concur.

Judgment reversed, with costs, and petition dismissed.

3. At oral argument, P.C. argued that the University violated his due process rights and acted arbitrarily by failing to provide him with adequate notice of the charges against him. As noted above, the notice of charges alleged that he “engaged in sexual contact with a female student while she was incapacitated due to alcohol and unable to give consent.” At the hearing, P.C. focused on showing that S.G. was not incapacitated on the night in question. We do not address whether any inconsistency between the notice, the basis for the Review Panel’s determination that he violated the Code, and the Appeals Committee’s decision upholding that determination requires reversal because that issue is unpreserved.

[264 NE3d 1288, 238 NYS3d 157]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DWIGHT
MOSS, Appellant.

Argued February 11, 2025; decided March 20, 2025

PROCEDURAL SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered December 22, 2023. The Appellate Division affirmed an order of the Monroe County Court (Michael L. Dollinger, J.; op 81 Misc 3d 1239[A], 2022 NY Slip Op 51427[U] [2022]), which had determined that defendant is a level three risk pursuant to the Sex Offender Registration Act and designated him a sexually violent offender and predicate sex offender.

People v Moss, 222 AD3d 1451, affirmed.

HEADNOTE

Crimes — Sex Offenders — Sex Offender Registration Act — Automatic Override to Presumptive Risk Level Three Classification

In a Sex Offender Registration Act (SORA) proceeding to determine defendant's risk level classification, the SORA Guidelines' automatic override to a presumptive risk level three was properly applied in light of defendant's undisturbed prior felony sex crime conviction. Although a resentencing court ultimately determined that the prior conviction could not be used as a sentencing predicate because defendant had put forth substantial evidence that the guilty plea was unconstitutionally coerced, defendant did not move to vacate his prior conviction under CPL 440.10. Nor did defendant request a downward departure at the SORA hearing based on the conviction's asserted unconstitutionality. Defendant instead chose to challenge the prior conviction in the civil context, thus retaining the terms and benefits of his plea deal in the prior action, while at the same time claiming that his prior guilty plea was unconstitutional for SORA and resentencing purposes only. No court had determined that the prior conviction was unconstitutional or otherwise invalid under the more demanding standard of proof for a direct challenge to the conviction's constitutionality. Nor had the People had an opportunity to be heard in opposition to defendant's attempt to make such a showing. Given that defendant failed to pursue any procedural pathway to vacate the prior conviction, there was no reason to depart from the Guidelines' text stating that the override is triggered if "[t]he offender has a prior felony conviction for a sex crime."

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Mentally Impaired Persons §§ 131, 134, 151.

CARMODY-WAIT 2d Postjudgment Motions § 205:7;

CARMODY-WAIT 2d Appeals in Criminal Cases § 207:156.

LAFAVE, ET AL., CRIMINAL PROCEDURE (4th ed) § 26.6.

McKINNEY'S, CPL 440.10.

NY JUR 2d Criminal Law: Procedure §§ 3464, 3470; NY

JUR 2d Penal and Correctional Institutions §§ 383, 400.

ANNOTATION REFERENCE

Validity, Construction, and Application of State Sex Offender Registration Statutes Concerning Level of Classification—Initial Classification Determination. 65 ALR6th 1.

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Query: "Sex Offender Registration Act" or SORA /p
"automatic override" or "presumptive risk level" & (vacat!
/s convict!)

POINTS OF COUNSEL

Julie A. Cianca, Public Defender, Rochester (David R. Juergens of counsel), for appellant. When determining an offender's risk level under the Sex Offender Registration Act (Correction Law art 6-C), the court cannot use a coerced guilty plea as an automatic override to increase the offender's presumptive risk classification. (*Matter of Kasckarow v Board of Examiners of Sex Offenders of State of N.Y.*, 25 NY3d 1039; *People v Mingo*, 12 NY3d 563; *People v Perez*, 35 NY3d 85; *People v Weber*, 40 NY3d 206; *People v Richetti*, 302 NY 290.)

Sandra Doorley, District Attorney, Rochester (Martin P. McCarthy of counsel), for respondent. The Sex Offender Registration Act court properly applied the override to the defendant's presumptive risk score based upon the 2007 conviction because regardless of collateral litigation regarding that conviction, it had never been vacated and, as a result, represents a final and binding adjudication. (*People v Konstantinides*, 14 NY3d 1; *Burgett v Texas*, 389 US 109; *People v Jones*, 17 NY2d 404; *People v Wilson*, 13 NY2d 277; *People v Di Giacomo*, 96 AD2d 1127.)

OPINION OF THE COURT

SINGAS, J.

The Sex Offender Registration Act (SORA) Guidelines call for an automatic "override" to a presumptive risk level three

classification if “[t]he offender has a prior felony conviction for a sex crime” (Sex Offender Registration Act: Risk Assessment Guidelines and Commentary [Guidelines], override 1 [2006]). Here, the SORA court applied this override in light of defendant’s undisturbed prior felony sex crime conviction. We agree that the override applies and therefore affirm.

I.

Defendant has been convicted of a series of sex crimes, including the offense that triggered the override at issue here. In 1995, defendant pleaded guilty to sexual misconduct for raping a 13-year-old child when he was 25 years old. In 2006, defendant pleaded guilty to course of sexual conduct against a child in the second degree for sexually abusing a child on more than 10 occasions starting in 2004, when the victim was 10 years old, and ending in January 2006. During that time, defendant impregnated the victim and then arranged for an abortion. In 2007, defendant pleaded guilty to forcible touching for fondling a 15-year-old girl’s genitals while masturbating. And in 2016, defendant was convicted of sexual abuse in the first degree and endangering the welfare of a child stemming from incidents when, while babysitting his seven-year-old relative, he touched her genitals and masturbated in her presence.

In the 2016 criminal action, defendant was originally sentenced as a second child sexual assault felony offender (*see* CPL 400.19), with his 2006 felony conviction serving as the predicate for the enhanced sentence. On appeal, defendant argued that the 2006 conviction was constitutionally infirm and thus could not serve as a predicate for purposes of sentencing (*see id.* § 400.19 [6] [c]). The prior conviction’s constitutionality was not reviewed on direct appeal in the 2006 action because defendant did not timely file a notice of appeal and the Appellate Division then denied defendant’s *pro se* motion to take a late appeal under CPL 460.30 (*see People v Moss*, 2008 NY Slip Op 64992[U] [4th Dept 2008]). To date, defendant has not filed any other motion challenging the 2006 conviction. However, the Appellate Division vacated defendant’s sentence in the 2016 action and remitted for a hearing to determine whether his 2006 guilty plea was unconstitutionally obtained, based on defendant’s statement at sentencing that the court in the 2006 action “coerced him into pleading guilty to a reduced charge by threatening to impose the maximum sentence if he were convicted after a trial” (*People v Moss*, 200 AD3d 1662, 1664 [4th Dept 2021]).

At the ensuing hearing, the resentencing court stressed that it was empowered to assess the constitutionality of defendant's 2006 guilty plea "only for the purpose of using it to establish [defendant] as a second child sexual assault felony offender" in the 2016 criminal case, and that the court lacked authority to vacate the 2006 plea. The court ultimately determined that the 2006 conviction could not be used as a sentencing predicate because defendant had put forth substantial evidence that his 2006 guilty plea was unconstitutionally coerced (*see People v Harris*, 61 NY2d 9, 15-16 [1983]).* The court therefore resentenced defendant as a first felony offender.

In anticipation of defendant's release from prison, the Board of Examiners of Sex Offenders (Board) prepared a risk assessment instrument assessing him 65 points, which would result in a presumptive risk level one classification (*see* Correction Law § 168-1 [6]; Guidelines at 3). The Board also determined that under the Guidelines, "the fact [that defendant] has a prior felony sex crime conviction automatically results in a presumptive risk [l]evel [three]" classification, pursuant to the override that applies if the offender "has a prior felony conviction for a sex crime" (Guidelines, override 1). The Board did not recommend departing from this presumptive classification, reasoning that defendant's 2016 offense "represents his fourth sex crime conviction and despite prior detection and sanctioning, his sexually offending behavior has persisted."

Before the SORA court, defendant argued that the 2006 conviction does not trigger the override, asserting that his 2006 guilty plea had been deemed unconstitutional at his resentencing in the 2016 criminal case. Defendant did not alternatively request a downward departure from his presumptive risk level three classification in the event the SORA court applied the override. The People countered that the resentencing court had not overturned defendant's 2006 conviction, and that the override must be applied because the conviction remains on defendant's criminal record. In the alternative, the People requested an opportunity to seek an upward departure.

The SORA court applied the override and designated defendant a level three sexually violent predicate sex offender. It held that the override applies automatically because defendant's

* Defendant argued that his 2006 guilty plea was unconstitutionally coerced based on both the trial court's threat to impose a 50-year sentence if he were convicted at trial, and the trial court's denial of his request for more time to discuss the People's plea offer with his family.

2006 felony sex offense conviction was neither “vacate[d]” nor “overturn[ed]” (81 Misc 3d 1239[A], 2022 NY Slip Op 51427[U], *3 [Monroe County Ct 2022]). The court declined to depart from defendant’s resulting presumptive risk level three classification, noting that defendant had not sought a downward departure.

The Appellate Division affirmed “for reasons stated in the [SORA court’s] decision” (222 AD3d 1451, 1451 [4th Dept 2023]). We granted defendant leave to appeal (*see* 41 NY3d 999 [2024]) and now affirm.

II.

SORA’s underlying purpose is “to protect the public from sex offenders” (*People v Mingo*, 12 NY3d 563, 574 [2009]; *see also e.g. People v Windham*, 10 NY3d 801, 802 [2008] [SORA imposes “a collateral consequence of a conviction for a sex offense designed not to punish, but rather to protect the public”]). To that end, SORA directs the Board to “develop guidelines . . . to assess the risk of a repeat [sexual] offense . . . and the threat posed to the public safety” (Correction Law § 168-l [5]), and requires that the Guidelines “be based upon” non-exhaustive factors including “the number, date and nature of [the offender’s] prior offenses” (*id.* § 168-l [5] [b] [iii]). The Guidelines’ function is to advance SORA’s goal of generating “an accurate determination of the risk a sex offender poses to the public” (*Mingo*, 12 NY3d at 574). We afford “careful consideration to the Board’s interpretations of th[e] Guidelines,” recognizing the Board’s legislative mandate to promulgate them and the Board’s subject matter expertise (*People v Cook*, 29 NY3d 121, 129 [2017]).

A defendant can utilize several legal avenues to contest a conviction. They can directly challenge the conviction by moving to vacate it under CPL 440.10, including, as relevant here, by arguing that the conviction was obtained “by duress, misrepresentation or fraud on the part of the court” (CPL 440.10 [1] [b]) or in violation of their constitutional rights (*see id.* § 440.10 [1] [h]). They can also argue on direct appeal that the conviction is unconstitutional or otherwise infirm (*see id.* § 450.10 [1]). These are the remedies that the legislature has provided for a defendant wishing to unwind a criminal conviction. However, after the Appellate Division denied defendant’s motion to file a late notice of appeal, defendant did not move to vacate his conviction under CPL 440.10, including on grounds

of ineffective assistance of counsel (*see id.* § 440.10 [1] [h]), and we cannot speculate as to the outcome of such a motion had he chosen to file one. Nor did defendant request a downward departure at the SORA hearing based on the conviction's asserted unconstitutionality—a discretionary remedy available under SORA if the offender adequately demonstrates “mitigating circumstances” that are “not adequately taken into account by the [G]uidelines” (*People v Gillotti*, 23 NY3d 841, 861 [2014]). Indeed, this case's unusual facts would seem to present the type of circumstance that a SORA court could properly consider in deciding whether to depart from an offender's presumptive classification. Defendant instead has chosen to challenge his 2006 conviction in the instant civil context, thus retaining the terms and benefits of his plea deal in the 2006 action, while at the same time claiming that his 2006 guilty plea was unconstitutional for SORA and resentencing purposes only.

Defendant's reliance on the resentencing court's collateral determination that his 2006 conviction cannot be used as a predicate to impose an enhanced sentence is misplaced. As the resentencing court explained, it lacked authority to vacate the 2006 conviction and instead properly stressed that its determination governed only the question of whether the People could use the conviction to establish defendant's status as a second child sexual assault felony offender for purposes of sentencing. Furthermore, at the resentencing hearing, defendant bore the burden of offering substantial evidence that the 2006 conviction is constitutionally infirm (*see Harris*, 61 NY2d at 15-16). If defendant directly challenged the conviction's constitutionality, however, he would face a higher burden of proof (*see People v Sosa*, 28 NY3d 965, 966 [2016] [appellate courts assess under “the totality of the circumstances” a defendant's claim that their plea was involuntary]; CPL 440.30 [6] [a defendant moving to vacate their conviction “has the burden of proving by a preponderance of the evidence every fact essential to support the motion”]). No court has determined that defendant's 2006 conviction is unconstitutional or otherwise invalid under that more demanding standard. Nor have the People had an opportunity to be heard in opposition to defendant's attempt to make such a showing. Against this backdrop, it is logical for the Guidelines to require an offender with a prior felony sex offense conviction to satisfy the higher evidentiary burden that they must meet to vacate or reverse that conviction, if they wish to avoid the override's application.

Given that defendant failed to pursue any procedural pathway to vacate the 2006 conviction, we see no reason to depart from the Guidelines' text stating that the override is triggered if "[t]he offender has a prior felony conviction for a sex crime" (Guidelines, override 1). We therefore apply the Guidelines and hold that the override was properly implemented (*see Cook*, 29 NY3d at 128-129; *Johnson*, 11 NY3d at 420-421).

Defendant's other contentions lack merit or are unpreserved for our review.

Accordingly, the order of the Appellate Division should be affirmed, without costs.

Chief Judge WILSON and Judges RIVERA, GARCIA, CANNATARO, HALLIGAN and WEBBER* concur. Judge TROUTMAN took no part.

Order affirmed, without costs.

* Designated pursuant to NY Constitution, article VI, § 2.

[265 NE3d 1076, 239 NYS3d 59]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MITCHELL HERNANDEZ, Appellant.

Argued January 8, 2025; decided February 18, 2025

PROCEDURAL SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered February 2, 2023. The Appellate Division order, insofar as appealed from, affirmed so much of a judgment of the Supreme Court, New York County (Thomas Farber, J.), as had sentenced defendant, as a persistent violent felony offender, to concurrent terms of 20 years to life in prison.

People v Hernandez, 213 AD3d 425, affirmed.

HEADNOTE

Crimes — Sentence — Persistent Violent Felony Offender — Effect of Presentence Period of Incarceration on 10-Year Lookback Period

Defendant was properly sentenced for his robbery convictions as a persistent violent felony offender based upon two prior felony convictions notwithstanding that sentencing on one prior qualifying felony occurred more than 10 years prior to his commission of the robbery, as defendant's presentence incarceration time for that prior qualifying felony extended the 10-year lookback period pursuant to Penal Law § 70.04. For a prior violent felony conviction to qualify as a predicate, "[e]xcept as provided in subparagraph (v) of this paragraph, sentence must have been imposed not more than ten years before commission of the felony of which the defendant presently stands convicted" (Penal Law § 70.04 [1] [b] [iv]). The "[e]xcept as provided" language expressly requires that the 10-year period be determined as set out in the subsequent subparagraph, the plain text of which unambiguously requires that the 10-year lookback period be extended by any period of incarceration "between the time of commission of the previous felony and the time of commission of the present felony," including any period of presentence incarceration for the prior crime (Penal Law § 70.04 [1] [b] [v]).

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Criminal Law § 782; AM JUR 2d Habitual Criminals and Subsequent Offenders §§ 20, 22–23.
CARMODY-WAIT 2d Sentencing Procedures §§ 203:144–203:145.
LAFAYE, ET AL., CRIMINAL PROCEDURE (4th ed) § 26.6.
MCKINNEY'S, Penal Law § 70.04 (1) (b) (iv), (v).

NY JUR 2d Criminal Law: Procedure §§ 3380, 3382, 3385–3386.

ANNOTATION REFERENCE

Constitutionality and construction of statute enhancing penalty for second or subsequent offense. 139 ALR 673.

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POINTS OF COUNSEL

Kaplan Hecker & Fink LLP, New York City (*Amit Jain* and *David Patton* of counsel) and Washington, D.C. (*Raymond P. Tolentino* of counsel), and *Caprice R. Jenerson*, *Office of the Appellate Defender*, New York City (*Victorien Wu* of counsel), for appellant. The trial court improperly sentenced Mitchell Hernandez as a mandatory persistent violent felony offender, despite the fact that he had spent 10 years at liberty after his 1991 sentencing. (*People v Schneider*, 37 NY3d 187; *People v Dozier*, 78 NY2d 242; *People v Meckwood*, 20 NY3d 69; *People v Thompson*, 26 NY3d 678; *People v Kaval*, 39 NY3d 1081.)

Alvin L. Bragg, Jr., *District Attorney*, New York City (*Steven C. Wu*, *Christian Rose* and *Christopher P. Marinelli* of counsel), for respondent. The sentencing court correctly applied the plain language of the statute to adjudicate defendant a persistent violent felony offender. (*People v Talluto*, 39 NY3d 306; *Matter of M.B.*, 6 NY3d 437; *Matter of Mestecky v City of New York*, 30 NY3d 239; *Leader v Maroney, Ponzini & Spencer*, 97 NY2d 95; *Matter of Tall Trees Constr. Corp. v Zoning Bd. of Appeals of Town of Huntington*, 97 NY2d 86.)

Letitia James, *Attorney General*, New York City (*Barbara D. Underwood*, *Ira M. Feinberg*, *Sheila L. Bautista* and *Robert C. McIver* of counsel), in her statutory capacity under Executive Law § 71. I. Appellant's *Erlinger v United States* (602 US 821 [2024]) claim is unpreserved. (*People v Cabrera*, 41 NY3d 35; *New York State Rifle & Pistol Association v Bruen*, 597 US 1; *People v Smith*, 73 NY2d 961; *People v Bailey*, 32 NY3d 70; *People v Finkelstein*, 28 NY3d 345.) II. *Erlinger* does not undermine the validity of New York's procedure for sentencing persistent violent felony offenders. III. If jury trials are

required to decide the tolling issue, the courts have ample authority to convene a jury to make the necessary factual findings. (*Apprendi v New Jersey*, 530 US 466; *Almendarez-Torres v United States*, 523 US 224; *Ring v Arizona*, 536 US 584; *Blakely v Washington*, 542 US 296; *United States v Booker*, 543 US 220.) IV. A court ruling that a jury trial is required to decide the tolling issue would potentially put in doubt the validity of sentences of many of the state's most serious offenders and likely generate extensive litigation. (*People v Wrotten*, 14 NY3d 33; *People v Ricardo B.*, 73 NY2d 228; *People v Huntley*, 15 NY2d 72; *Jackson v Denno*, 378 US 368; *People v Coffey*, 11 NY2d 142.)

Wilmer Cutler Pickering Hale and Dorr LLP, New York City (*Alan Schoenfeld*, *Thomas K. Bredar* and *Thais R. Ridgeway* of counsel), and *The Bronx Defenders*, New York City (*Ilona Coleman*, *Elli Marcus* and *Samantha Reiser* of counsel), and *Wilmer Cutler Pickering Hale and Dorr LLP*, New York City (*Alan Schoenfeld*, *Thomas K. Bredar* and *Thais R. Ridgeway* of counsel), for The Bronx Defenders and others, amici curiae. The lower courts' interpretation will result in incarcerated individuals receiving vastly different sentences due to factors outside of their control. (*People v Oliveras*, 21 NY3d 339; *Strickland v Washington*, 466 US 668.)

Lincoln Square Legal Services, Inc., New York City (*Michael Martin* and *Ian Weinstein* of counsel), for Ethan J. Leib, amicus curiae. I. This Court's integrative and pragmatic approach to statutory interpretation considers a variety of sources and arguments to best ascertain and give effect to the intention of the Legislature. (*People v Schneider*, 37 NY3d 187; *Riley v County of Broome*, 95 NY2d 455; *People v Badji*, 36 NY3d 393; *New York State Bankers Assn. v Albright*, 38 NY2d 430; *People v Love*, 71 NY2d 711.) II. This Court should consider the text, history, purpose, and context of the statute at issue and avoid absurd results and constitutional difficulties in reading the statute at issue. (*People v Cagle*, 7 NY3d 647.)

Karen Murtagh, *Prisoners' Legal Services of New York*, Albany (*David Bentivegna* of counsel), *New York Civil Liberties Union Foundation*, New York City (*Daniel Lambright*, *Terry Ding*, *Christopher T. Dunn* and *Ifeyinwa Chikezie* of counsel), and *Center for Community Alternatives, Inc.*, Brooklyn (*David Condliffe* of counsel), for Prisoners' Legal Services of New York and others, amici curiae. The rule of lenity and the collateral

consequences of prolonged incarceration weigh heavily in favor of adopting Mitchell Hernandez's interpretation of subparagraphs (iv) and (v) of Penal Law § 70.04 (1) (b). (*People v Green*, 68 NY2d 151; *People v Jackson*, 106 AD2d 93; *Wooden v United States*, 595 US 360; *People v Golb*, 23 NY3d 455; *People v Thompson*, 26 NY3d 678.)

District Attorneys Association of the State of New York, Albany (David M. Cohn, Darcel D. Clark, Michael E. McMahon and Gina Mignola of counsel), for District Attorneys Association of the State of New York, amicus curiae. *Erlinger v United States* (602 US 821 [2024]) does not invalidate New York's recidivist sentencing scheme. (*Texas v Cobb*, 532 US 162; *Almendarez-Torres v United States*, 523 US 224; *Parke v Raley*, 506 US 20; *Alleyne v United States*, 570 US 99; *People v Leon*, 10 NY3d 122.)

OPINION OF THE COURT

GARCIA, J.

A person convicted of a violent felony offense is a “persistent violent felony offender” for sentencing purposes if that person has “two or more predicate violent felony convictions” (Penal Law § 70.08 [1] [a], [b]). Those potentially qualifying felony convictions must satisfy the timing requirement set forth in Penal Law § 70.04, namely that the sentence on the prior crime must have been imposed not more than 10 years before the commission of the current felony (Penal Law § 70.04 [1] [b] [iv]). This 10-year lookback period is extended by any period of incarceration between commission of the prior felony and commission of the current felony (Penal Law § 70.04 [1] [b] [v]). Defendant challenges any extension of the 10-year lookback period using time he spent in presentence incarceration on his earliest qualifying felony conviction. We now hold that pursuant to Penal Law § 70.04, defendant's presentence incarceration time did extend the 10-year period and therefore defendant was properly sentenced as a persistent violent felony offender.

In 2015, defendant robbed a Manhattan convenience store at gunpoint and assaulted the proprietor. A jury convicted him of that robbery in 2017. Prior to sentencing, the People filed a predicate felony statement (*see* CPL 400.16) listing two prior violent felony convictions, the dates of conviction and sentence on those crimes, and detailing the relevant dates of incarceration that extended the 10-year period described in Penal Law

§ 70.04 (1) (b) (iv). For a first qualifying felony, the People asserted that defendant was convicted of first-degree robbery and first-degree burglary in April 1997 and was sentenced for those crimes in May 1997. According to the People, that conviction resulted from a home invasion where defendant forced his way into a Bronx apartment occupied by a woman and her two children and robbed and sexually assaulted the woman. The second qualifying felony was a May 1990 second-degree robbery conviction that stemmed from the robbery and assault of passengers on a New York City subway. Defendant was arrested for that crime in April of 1990, pleaded guilty the following month, and was then incarcerated beginning in January 1991, prior to his October 1991 sentencing.¹ According to the People's calculations, defendant was incarcerated for nearly 14 years (5,049 days) during the relevant period (*see* Penal Law § 70.04 [1] [b] [v]).

When given the opportunity to controvert the People's statement at his sentencing hearing (*see* CPL 400.15), defendant did not challenge the People's account of his prior convictions or the amount of time spent incarcerated for each crime. Rather, he made a purely legal argument, namely the one he presses here, that under the terms of Penal Law § 70.04, the time he served in presentence incarceration for the 1990 felony should not be excluded from the 10-year lookback period. The parties agreed that if the period of presentence incarceration did not factor into the calculation for determining persistent offender status, the sentence on the 1990 offense would be outside of the 10-year limitations period and the conviction could not serve as a predicate for a persistent violent felony offender sentence. Supreme Court held instead that under the plain language of the statute, the period of presentence incarceration must be excluded, and the relevant lookback period tolled, and sentenced defendant as a persistent violent felony offender pursuant to Penal Law § 70.08. After noting that defendant had "a long history of violence" and stood convicted of "a particularly violent crime," the court imposed the minimum available sentence of 20 years to life in prison. The Appellate

1. Defendant was sentenced to 18 to 54 months in prison on the 1990 robbery conviction. The record does not definitively establish that defendant was given credit against his sentence for the approximately nine months he had already been incarcerated prior to sentencing, but Penal Law § 70.30 (3) requires such credit. That time of presentence incarceration is the period at issue here.

Division affirmed, agreeing that the period of presentence incarceration on the 1990 conviction tolled the 10-year look-back period (213 AD3d 425, 426 [1st Dept 2023]). A Judge of this Court granted leave to appeal and we now affirm.

Repeat offender statutes are intended “to deter recidivism by enhancing the punishments of those who, having been convicted of felonies, violate the norms of civil society and commit felonies again” (*People v Walker*, 81 NY2d 661, 665 [1993]). We are asked to interpret one of the statutes enacted by the legislature to accomplish that public safety goal, Penal Law § 70.04, which establishes the 10-year lookback period and the method for extending that period. “Where a statute is plain on its face, we need only apply it in accordance with its meaning” (*id.* at 666; see *People v Talluto*, 39 NY3d 306, 310-311 [2022]). The text at issue here is plain and the meaning clear.

For a prior violent felony conviction to qualify as a predicate, “[e]xcept as provided in subparagraph (v) of this paragraph, sentence must have been imposed not more than ten years before commission of the felony of which the defendant presently stands convicted” (Penal Law § 70.04 [1] [b] [iv]). The “[e]xcept as provided” language expressly requires that the 10-year period be determined as set out in the subsequent subparagraph, which explains that

“[i]n calculating the ten year period under subparagraph (iv), any period of time during which the person was incarcerated for any reason between the time of commission of the previous felony and the time of commission of the present felony shall be excluded and such ten year period shall be extended by a period or periods equal to the time served under such incarceration” (Penal Law § 70.04 [1] [b] [v]).

The plain text of this subparagraph unambiguously requires that the 10-year lookback period be extended by any period of incarceration “between the time of commission of the previous felony and the time of commission of the present felony,” including any period of presentence incarceration for the prior crime (*id.*). That is, the first part of the phrase mandates that such time “shall be excluded” and the second clause requires that the 10-year period “be extended” by that period of incarceration

(*id.*). Unsurprisingly, each department of the Appellate Division to consider the issue has concluded that section 70.04 means what it says (see *People v Holman*, 53 AD3d 775, 776 [3d Dept 2008]; *People v McEachern*, 275 AD2d 330, 331 [2d Dept 2000]; *People v Cortez*, 231 AD2d 450, 451 [1st Dept 1996]).

Other statutes demonstrate that the legislature chooses this same formula when warranted (see CPL 500.10 [21] [providing a five-year lookback period to determine whether an individual qualifies for electronic monitoring and excluding periods of incarceration between the time of commission of the previous crime and commission of the present crime]; Penal Law § 240.75 [1] [providing a five-year lookback to determine whether an individual is guilty of an aggravated family offense and excluding periods of incarceration between the time of commission of the previous crime and commission of the present crime]), and when it intends a different result, it makes that clear (see CPL 160.59 [5] [providing a 10-year lookback for sealing criminal records from “imposition of the sentence” but with tolling for incarceration “after . . . conviction” of the previous crime rather than the date of its commission]).² We cannot avoid the deliberate legislative choice made here by accepting defendant’s invitation to rewrite the statute’s reference to “*commission* of the previous felony” (Penal Law § 70.04 [1] [b] [v] [emphasis added]) to read “*sentence* imposed” for that crime (see *People v Boston*, 75 NY2d 585, 589 [1990]). There is no ambiguity in the text requiring resort to legislative history or interpretive aids for statutory construction (see *Matter of Walsh v New York State Comptroller*, 34 NY3d 520, 524 [2019]). Nor may we manufacture an ambiguity in the service of a preferred policy goal (see dissenting op at 600-606).

Defendant’s argument that the United States Supreme Court’s holding in *Erlinger v United States* (602 US 821 [2024]) renders unconstitutional the recidivist sentencing regime is unpreserved. As a threshold matter, defendant did not contest his criminal history, including the relevant periods of incarceration, and therefore we need not consider whether, had he done

2. Even under this formula—using “conviction on” instead of “commission of” the prior offense as the determinative event—defendant’s presentence detention would nevertheless still extend the relevant 10-year period as he was not incarcerated until more than six months after he pleaded guilty to the 1990 robbery.

so, preservation would otherwise be required (*see People v Cabrera*, 41 NY3d 35 [2023]).

Accordingly, the order of the Appellate Division insofar as appealed from should be affirmed.

RIVERA, J. (dissenting). The legislature enacted Penal Law § 70.04 to enhance the sentences of persistent violent felony offenders—defendants who commit a violent felony within 10 years of being sentenced on more than one violent felony. The statute plainly defines this lookback period as the time between the date of sentencing on the prior violent felony and the date of commission of the current violent felony. The statute includes a narrow exception to this fixed time, which extends the 10 years by any time spent incarcerated during that period. Thus, the lookback period may expire later than 10 years from sentencing, after the mandatory tolling of intermittent periods of incarceration, if any.

The majority fails to interpret the statute holistically, fixating on the wording of the tolling exception, which uses the commission of the crime, rather than the date of sentencing, to set the measurement of the tolling period. But the majority ignores that the tolling period is not a freestanding measurement: it can be applied only to the time within the 10-year period—not to time in the abstract.

The purpose of the statute is to punish more severely the recidivist who fails to live in the community for at least 10 years without reincarceration. This mathematical calculation achieves that purpose by tolling the 10-year lookback period for every day the defendant is incarcerated during the 10-year lookback period. The majority veers from the commonly understood mechanics of tolling and interprets the statute to require the tolling when a defendant is incarcerated before conviction and sentencing on the prior felony. That approach illogically counts days outside of the 10-year lookback period. To achieve that end, the majority employs a reading of the statute which is contrary to the text, our enhanced sentencing precedent, statutory intent, and established rules of construction, including the rule of lenity. Moreover, the majority's calculation method leads to absurd and unjust results with constitutional implications. I dissent and would reverse, vacate the persistent violent felony offender sentence, and remand for

resentencing as a second violent felony offender (Penal Law § 70.04).*

I.

On this appeal, defendant claims that he was wrongly classified as a persistent violent felony offender at his sentencing for a robbery he committed in 2015. As a result of this classification, he was sentenced to three concurrent mandatory imprisonment terms of 20 years to life. Absent this classification, defendant would be subject to a lengthy prison term, but not the harsh punishment reserved for a subclass of recidivists. He would not be eligible for a life sentence. As the sentencing court observed, “were the Defendant not a persistent violent felon, a sentence close to 20 years would be appropriate.”

Defendant argues that he does not fit the definition of a persistent violent felony offender, which requires prior convictions on two violent felonies within 10 years, because the 1991 sentence was imposed more than 10 years prior to the commission of the 2015 offense, taking into account periods of incarceration between that sentence and the robbery. According to defendant, the legislature intended to enhance sentences of people who could not live a law-abiding life while at liberty for a total of at least 10 years following sentencing on a violent felony. Defendant also claims that tolling of time spent incarcerated before actual sentencing on the prior felony would impose a longer lookback period on people who cannot afford bail, thereby imposing harsher sentences based on ability to pay, with unconstitutional and unjust results.

The prosecution responds that the statute clearly states that all periods of incarceration from the commission of the prior felony, rather than from the sentencing date for that crime, are tolled during the 10-year period. In an attempt to rationalize a calculation which leads to obvious inequality of application, the prosecution asserts that their methodology ensures that defendants with the same dates of commission and sentencing for a prior felony must wait the same total period of time to be free from a potential enhanced sentence. But no such intended outcome can be gleaned from the text or the legislative purpose.

* If defendant’s presentencing incarceration were not used to extend the lookback period, he would be a second violent felony offender. The sentence for a second violent felony offender on a class B felony “must be at least ten years and must not exceed twenty-five years” (Penal Law § 70.04 [3] [a]).

II.A.

Our purpose, as in all cases of statutory interpretation, is “to ascertain and give effect to the legislature’s intent” (*People v Schneider*, 37 NY3d 187, 196 [2021]). “[A]ll parts of a statute must be harmonized with each other as well as with the general intent of the whole statute, and effect and meaning must, if possible, be given to the entire statute and every part and word thereof” (*People v Pabon*, 28 NY3d 147, 152 [2016], quoting McKinney’s Cons Laws of NY, Book 1, Statutes § 98 [a]). Thus, “a statute should be construed to avoid rendering any of its provisions superfluous” (*Kimmel v State of New York*, 29 NY3d 386, 393 [2017], citing *Majewski v Broadalbin-Perth Cent. School Dist.*, 91 NY2d 577, 587 [1998]). Further, “if the statute is ambiguous and two constructions can be given, the one must be adopted which will not cause objectionable results or cause inconvenience, hardship, injustice or mischief or lead to absurdity” (*People v Ryan*, 274 NY 149, 152 [1937]; *Lubonty v U.S. Bank N.A.*, 34 NY3d 250, 255 [2019] [“In a manner consistent with the text, we may look to the purpose of the enactment and the objectives of the legislature. We must also interpret a statute so as to avoid an unreasonable or absurd application of the law” (internal quotation marks and citations omitted)]).

B.

In 1978, the legislature enacted laws that mandate enhanced sentences for people who commit multiple felonies, including especially harsh penalties for those who commit two or more violent felonies within a certain period of time (*see* Penal Law § 70.04 [second violent felony offender]; Penal Law § 70.06 [second felony offender]; Penal Law § 70.08 [persistent violent felony offender]; Penal Law § 70.10 [persistent felony offender]). The laws expressly define what constitutes a predicate felony for enhanced punishment.

At issue here is Penal Law § 70.04 (1) (b). Under that provision, a conviction on a prior violent felony may serve as a predicate for enhanced sentencing unless it is too stale. The relevant language states that:

“(iv) Except as provided in subparagraph (v) of this paragraph, sentence must have been imposed not

more than ten years before commission of the felony of which the defendant presently stands convicted;

“(v) In calculating the ten year period under subparagraph (iv), any period of time during which the person was incarcerated for any reason between the time of commission of the previous felony and the time of commission of the present felony shall be excluded and such ten year period shall be extended by a period or periods equal to the time served under such incarceration” (*id.*).

As the text makes clear, subparagraph (iv) sets a fixed starting point (the date of sentencing for the prior felony), a fixed end point (the date on which the current felony was committed), and the length of time that must expire between those points (10 years). Outside these limits, the prior felony is too old to trigger an enhanced sentence. Subparagraph (v) sets forth a narrow exception to this fixed 10-year period, requiring that the court “exclude[]” certain periods of incarceration from the subparagraph (iv) period and “extend[]” the period accordingly.

As the text illustrates, and as CPL 400.15 (2) states explicitly, subparagraph (v) operates to toll “the ten year limitation set forth in subparagraph (iv) of [Penal Law § 70.04 (1) (b)].” This Court has repeatedly described subparagraph (v) in exactly this way, as it has with respect to other identically-worded statutes (*see e.g. People v Meckwood*, 20 NY3d 69, 71 [2012]; *People v Thompson*, 26 NY3d 678, 686 [2016]; *People v Kaval*, 39 NY3d 1081, 1082 [2022]; *People v Thomas*, 33 NY3d 1, 5 n 3 [2019]; *People v Ross*, 7 NY3d 905, 906 [2006]; *People v Cagle*, 7 NY3d 647, 651 [2006]; *People v Love*, 71 NY2d 711, 714 [1988]).

The legislative word choice further confirms that subparagraph (v) tolls the 10-year period as defined in subparagraph (iv). The terms of art adopted in subparagraph (v) are commonly used to denote tolling of a statutorily defined period. “Exclude” is ordinarily defined as, “to bar from participation, consideration, or inclusion[;] to expel or bar especially from a place or position previously occupied” (Merriam-Webster.com Dictionary, exclude [<https://www.merriam-webster.com/dictionary/exclude>] [last viewed Jan. 23, 2025]). And “extend” means “to cause to be longer” (Merriam-Webster.com Dictionary, extend [<https://www.merriam-webster.com/dictionary/extend>]

[last viewed Jan. 23, 2025]). Black’s Law Dictionary defines “toll” to be “(Of a time period, esp. a statutory one) to stop the running of; to abate <toll the limitations period>” (Black’s Law Dictionary [12th ed 2024], toll). The word “exclude” is commonly used in tolling provisions to direct that certain periods be “subtracted” from a limitations or lookback period. In turn, the word “extend” is often used when the intent is to lengthen the period by the time subtracted. And tolling provisions refer to “extend[ing]” limitation periods under other statutes (*see e.g. B.F. v Reproductive Medicine Assoc. of N.Y., LLP*, 30 NY3d 608, 613 [2017] [describing the “toll” as “extend(ing)” a limitation period]; *Portfolio Recovery Assoc., LLC v King*, 14 NY3d 410, 417 [2010] [“Delaware’s tolling provision does not extend the three-year statute of limitations”]; *Berkshire Life Ins. Co. v Fernandez*, 71 NY2d 874, 876 [1988] [declining to discuss “whether the various tolling provisions” were applicable to “toll() or extend()” the statutory period]). Given the use of those terms in subparagraph (v), we must presume they carry the same meaning and import here as they do in other tolling provisions (*see McKinney’s Cons Laws of NY, Book 1, Statutes* § 236 [(W)here the same word or phrase is used in different parts of a statute, it will be presumed to be used in the same sense throughout, and the same meaning will be attached to similar expressions in the same or a related statute]). By definition and common application, only the time that falls within the temporal boundaries of the lookback period can toll those 10 years.

The majority rejects this interpretation, relying on subparagraph (v), which states that the lookback period should be extended by any time the defendant spent incarcerated after the commission of the prior felony, not after sentencing. That language differs from the language the legislature used in subparagraph (iv), which provides that the lookback period should be calculated from the time of *sentencing*. As the practice commentary notes, “the statutes setting forth what qualifies as an excludable period of incarceration seem logically deficient” (William C. Donnino, *Prac Commentary*, McKinney’s Cons Laws of NY, Penal Law § 60.00). The majority’s error is that it reads subparagraph (v) in a vacuum and concludes that defendant’s interpretation of the statute—which would exclude only time after the limitations period begins to run—would render subparagraph (v)’s reference to the “commission” of the prior felony meaningless. The majority

interprets subparagraph (v) to require subtraction of time in detention after commission of the prior felony but before sentencing on that crime. That interpretation is inconsistent with the legislature's use of the term "excluded." To be "excluded," time must have been "included" to begin with. But time that passed before sentencing is never included in the lookback period. The majority would reach back before sentencing, take any period of incarceration between commission and sentencing, and add that time to the lookback period. But that would not be "excluding" time. That would be adding it. The only reasonable interpretation of the statute is that the periods to be excluded and then used to extend the lookback period are those that fall within the 10 years.

The Court has explained precisely the interplay between these two subparagraphs in the broader context of the enhanced sentencing framework: "Penal Law § 70.04 (1) (b) (iv) and (v) prohibits enhanced sentencing where more than 10 years have passed between sentencing for the prior felony and commission of the present felony, excluding all periods of incarceration *during such time period*" (*Meckwood*, 20 NY3d at 73 [emphasis added]). Subparagraph (v) therefore sets out the terms for when to stop the 10-year time period—like a stopwatch that can pause and restart—based on events occurring within those 10 years, and then add the excluded time at the tail end to add up to 10 years. That calculation ensures that a defendant only gets credit for time when they are at liberty.

That interpretation also achieves the legislative purpose. As the Court has repeatedly recognized,

"enhanced sentencing statutes punish a defendant 'more for the second felony . . . because recidivism evidences a lack of rehabilitation and a greater danger to society'. . . . Section 70.04 . . . furthers that legitimate interest Indeed, it is rational to omit periods of incarceration from the lookback period because society has an interest in treating differently individuals who demonstrate good behavior *during the time in which they are released and living in society* from those who cannot" (*Meckwood*, 20 NY3d at 73-74 [emphasis added]; *Thomas*, 33 NY3d at 11 ["the ameliorative purpose of the look-back period . . . requires *only* that 'prior felons . . . demonstrate their ability to live within

the norms of civil society for 10 years' ” (emphasis added)]; *Cagle*, 7 NY3d at 651 [“To avoid enhanced punishment, prior felons must demonstrate their ability to live within the norms of civil society for 10 years”]; *People v Bell*, 73 NY2d 153, 165 [1989], *modfg on dissenting op of Sullivan, J.*, 138 AD2d 298, 300 [1st Dept 1988, Sullivan, J., dissenting] [(T)he second felony offender statute . . . was not intended to punish an individual for his past conduct, but, rather, to enhance the sentences applicable to a predicate felon who fails to demonstrate that he can function in society in a law-abiding manner for a 10-year period. . . . Hence, the time of eligibility for release from the statute’s application is measured, not from the date of the commission of the crime, but from the date of the sentence”]).

Penal Law § 70.04 was enacted in 1978, and its relevant language, including all of the language at issue in subparagraphs (iv) and (v), was copied verbatim from Penal Law § 70.06, which was enacted five years prior. And Governor Rockefeller explained in his 1973 approval memorandum that for a prior conviction to qualify as a predicate under Penal Law § 70.06, “[t]he alleged second felony offense must occur within 10 years *after the defendant was released from a prison term on the first felony*” (Governor’s Mem approving L 1973, ch 277, 1973 NY Legis Ann at 4 [emphasis added]).

C.

The majority’s interpretation fails to properly apply these rules of construction and as a consequence reads the statute counterintuitively. First, the majority fails to consider that we interpret statutory language in context—here within the enhanced sentencing framework, and that we do so to achieve the legislative purpose. That context makes plain that subparagraphs (iv) and (v) work in tandem to impose a fixed 10-year lookback period, with defined commencement and end dates, which must be extended every day that a defendant is incarcerated during that same period. This is wholly rational because during the time that a defendant is incarcerated it is impossible for the defendant to demonstrate their ability to live a law-abiding life in the community. The majority ignores the simple fact that the legislature has determined that the period of incarceration that matters is the time during the look-

back period when defendant is free to make a choice to comply with the law or commit another qualifying felony (*Meckwood*, 20 NY3d at 73-74). The defendant who complies avoids future enhanced sentencing while the defendant who cannot is subject to punishment as a recidivist. Of course, during pretrial detention, a person charged with a crime is not incarcerated pursuant to a valid conviction but instead stands innocent before the law and so the defendant cannot exercise the choice posited by the legislature as they are not at liberty, and they have not been convicted of a prior felony.

Second, the majority violates the rule against superfluity because its interpretation renders the word “exclude” unnecessary. By definition, pretrial detainment occurs before sentencing and accordingly falls outside the 10-year lookback period. Such detainment cannot be excluded from a wholly separate period of which it is not a part. Further, if, as the majority concludes, pretrial detainment is added to the back end of the 10-year period, the same would be achieved solely by the word “extended.” By way of illustration, if we remove the word “exclude,” subparagraph (v) would read as follows:

“In calculating the ten year period under subparagraph (iv), any period of time during which the person was incarcerated for any reason between the time of commission of the previous felony and the time of commission of the present felony . . . such ten year period shall be extended by a period or periods equal to the time served under such incarceration.”

That version accomplishes exactly what the majority claims the current subparagraph (v) does (majority op at 596). Hence, the majority’s interpretation renders “exclude” superfluous, in contravention of our interpretive rules (*Majewski*, 91 NY2d at 587; *Pabon*, 28 NY3d 147, 152 [2016], quoting McKinney’s Cons Laws of NY, Book 1, Statutes § 98 [a]).

Third, the majority ignores the potential unjust consequences of its decontextualized reading of subparagraph (v). This Court has rejected strict readings of Penal Law § 70.04 (1) (b) that produce bizarre and unreasonable results because “statutes should be construed to avoid results which are absurd, unreasonable or mischievous or produce consequences that work a hardship or an injustice” (*People v Dozier*, 78 NY2d 242, 250 [1991]). As discussed below (*infra* section D), if pretrial detention is part of the period excluded under subparagraph (v),

then people who cannot afford bail may be punished more severely than those who can. It is a first principle of our criminal law that defendants are treated fairly regardless of their economic status or financial resources. Money should not be able to buy a lighter sentence.

D.

At a minimum, our competing interpretations of section 70.04 (1) (b) suggest an ambiguity in the interplay between subparagraphs (iv) and (v). On the one hand, as I explain, subparagraph (iv) can be read to set beginning and end dates of the 10-year lookback period, with subparagraph (v) extending those 10 years by any time in that range that defendant was incarcerated. On the other hand, the majority reads subparagraph (v) as calculating the time period in isolation from the defined temporal parameters set out in subparagraph (iv). Even if the majority interpretation is a viable reading of the statute, my interpretation is no less plausible. Where the statutory language is ambiguous, we must consider its legislative purpose. Here, the majority's interpretation does not further the legislative purpose. Instead, it ignores the nuance in the statutory scheme and merely adds up numbers without taking into account what those numbers reflect—incarceration after a conviction versus pretrial detention when, under the law, a defendant is still innocent until proved guilty. The aggregated calculation also fails to account for the fact that the time between a commission of a crime and sentencing may be delayed for significant periods unrelated to defendant's actions or the severity of the crime committed. Those reasons include backlogs in criminal courts, the Department of Corrections' failure to produce a defendant for a court hearing, time spent while the prosecution assembles and discloses pretrial discovery materials, or an adjournment to accommodate a sick attorney. These are all circumstances that can result in significant delays through no fault of the defendant (*see Katz, 1 in 4 People Jailed in NYC Are Not Being Brought to Court on Time*, Gothamist, Feb. 20, 2023). Yet, pretrial detainees would be charged for delays caused by others or delays endemic to the criminal law system. The legislature surely could not have intended to penalize defendants with a harsh enhanced sentence for the failings of others.

The majority's reading of the statute also disadvantages detained defendants whose sentencing is delayed because they

choose to go to trial. Imagine defendants A and B commit a robbery on January 2, 2000. Both defendants are incarcerated pretrial. Defendant A pleads guilty and is sentenced on January 2, 2001. Defendant B is not sentenced until January 2, 2002. Perhaps the delay, including delay attributable to the court or prosecution, is because defendant B chose to go to trial. Defendants A and B are both sentenced to 10 years. Because they were both incarcerated before trial, they are both released on January 2, 2010. Both defendants commit another robbery on January 3, 2021, 11 years and a day after their release. For defendant A, who was sentenced first, the first robbery is not a predicate because they only had to spend 10 years plus one at liberty (the statutory 10 years, plus the one year of presentence incarceration). For defendant B, who went to trial, the first felony is a predicate because they had to spend 10 years plus two at liberty (the statutory 10 years, plus two years of presentence incarceration). In other words, two defendants who commit crimes on the exact same dates are treated differently solely because defendant B was incarcerated longer in pretrial detention because they chose to go to trial rather than taking a plea. Under such circumstances, Penal Law § 70.04 would operate as a statutory burden on the right to a jury trial. This disparity thus raises fairness concerns and concerns of a constitutional nature. And of course, a statute “should be construed in such a manner as to uphold its constitutionality” (*Matter of Town of Southampton v New York State Dept. of Envtl. Conservation*, 39 NY3d 201, 211 [2023]). We therefore must interpret this provision to avoid an interpretation that “raise[s] . . . serious question[s]” as to the statute’s constitutionality (*Matter of Lower Manhattan Loft Tenants v New York City Loft Bd.*, 66 NY2d 298, 306 [1985]), or one that “might precipitate embarrassing constitutional questions” (*Matter of Jacob*, 86 NY2d 651, 668 n 5 [1995]).

III.

There is another reason defendant’s sentence should not have been enhanced from a determinate sentence of up to 25 years to an indeterminate life sentence. In the case of an ambiguity that cannot be resolved by application of the usual interpretative devices, the rule of lenity applies. As the Supreme Court has explained:

“the rule of lenity[] teach[es] that ambiguities

about the breadth of a criminal statute should be resolved in the defendant's favor. That rule is 'perhaps not much less old than' the task of statutory 'construction itself.' *United States v. Wiltberger*, 5 Wheat. 76, 95 (1820) (Marshall, C. J.). And much like the vagueness doctrine, it is founded on 'the tenderness of the law for the rights of individuals' to fair notice of the law 'and on the plain principle that the power of punishment is vested in the legislative, not in the judicial department' " (*United States v. Davis*, 588 US 445, 464-465 [2019] [some internal citations omitted]).

"At worst (or best, depending on one's perspective) this is an instance in which two constructions of [Penal Law provisions] are plausible, and to that end 'the one more favorable to the defendant should be adopted in accordance with the rule of lenity' " (*Thompson*, 26 NY3d at 687-688, quoting *People v. Golb*, 23 NY3d 455, 468 [2014]).

IV.

The difference in outcomes based on these methodologies is real and best illustrated with a simple hypothetical. Defendants A and B commit a violent felony on January 2, 2000, for which they are eventually sentenced to two years' incarceration. Defendant A cannot afford bail and is held in pretrial detention until A takes a plea two years later. Defendant A is sentenced on January 2, 2002. Defendant A is immediately released upon sentencing, having served the two years pre-conviction. Defendant B pays the bail and is at liberty until B takes a plea two years later, where they are also sentenced on January 2, 2002. After sentencing, defendant B serves two years in prison, from which they are released in 2004. Both defendants commit another violent felony on January 2, 2013.

Applying the statutory lookback 10-year period as I have discussed, and tolling that period to ensure a total, albeit intermittent, 10 years at liberty, would not subject defendant A to enhanced sentencing but would result in an enhanced sentence on defendant B. In A's case, we reach back from January 2, 2013, 10 years to January 2, 2003, and do not toll that period because defendant was at liberty the entire time and the 10 years ran without interruption. Under this calculation, the 2000 crime is not a predicate felony within the meaning of Penal Law § 70.04 (1) because the date that defendant A was

convicted and sentenced for that crime—2002—was 11 years before commission of the 2013 felony. This methodology conforms with the legislative goal to measure a defendant's conduct during a total of 10 years at liberty and subject them to a lengthier sentence if they cannot live in the community for at least a full 10 years without committing another qualifying felony.

In defendant B's case the statutory toll applies and we must extend the 10 years another two years—to 2015—to reflect that during this lookback period—between January 2, 2002, and January 2, 2004—defendant B was incarcerated while serving his sentence on the prior felony. Under this calculation, defendant B is subject to enhanced sentencing because the 2013 crime is committed within the now recalibrated lookback period (i.e., before 2015). Again, the legislative goal is achieved; defendant B has demonstrated that they cannot be at liberty for at least 10 years without reincarceration.

As the hypothetical makes clear, these defendants are treated the same. Both must live 10 years in the community without reincarceration to avoid an enhanced (lengthier) sentence than if they had. This application of the statutory language ensures that a defendant's finances do not impact their sentence—defendant A is not disadvantaged because they could afford bail. Instead, both defendants are on equal footing and measured by the same yardstick during the same period.

Under the interpretation of the statute adopted by the majority, both defendant A and B would be subject to enhanced sentencing because the January 2000 crime constitutes a qualifying predicate felony. Applying the prosecution's methodology, we start with the 10-year period and add any period of incarceration, including the pretrial detention for defendant A, which results in a total 12 year waiting period before a defendant is no longer subject to sentencing enhancement. For both defendants A and B, that date is January 2, 2014—12 years after commission of the 2000 felony. As applied to each of these hypothetical defendants, that calculation leads to perverse outcomes.

In defendant A's case, the 2014 date would trigger enhanced sentencing even though defendant A committed the 2013 felony 11 years after being at liberty without committing a qualifying felony. In contrast, defendant B was at liberty only nine years before committing the same felony. There is no question that

both defendants should be held accountable for their current 2013 crime, but the legislature has designated a lookback period that excludes prior felonies more than a decade out. The prosecution would treat both defendants the same, even though A committed the 2013 felony more than a decade prior while defendant B spent less than 10 years at liberty in the community before committing the same felony. However, the statute accounts for the difference in how these two defendants behaved during the only period that matters—while at liberty between when they were convicted and sentenced on the prior felony and when they committed another qualifying felony. Defendants A and B are not similarly situated. Rather than account for the fact that defendant A did not commit another qualifying felony in over a decade, the prosecution would treat A as having done so simply because defendant A lacked the financial resources to make bail. That interpretation of the enhanced sentencing framework is unfair and raises serious constitutional concerns.

V.

For the reasons I have discussed, Penal Law § 70.04 (1) (b) (iv) and (v) work in tandem to set a defined, fixed 10-year lookback period which can be modified only by extending it by the number of days that a defendant is incarcerated during that same period. This furthers the legislative goal of limiting the harsh penalties of enhanced sentencing to those defendants who cannot demonstrate the ability to live in the community without reincarceration during the 10 years between the sentencing date of the prior felony and the commission of the current felony. The majority concludes otherwise—in disregard of our precedent, interpretive rules and statutory purpose. It is now for the legislature to confirm if this was the intended resolution of the “logically deficient” statute (William C. Donnino, *Prac Commentary*, McKinney’s Cons Laws of NY, Penal Law § 60.00).

Judges SINGAS, CANNATARO, TROUTMAN and GENOVESI* concur. Judge RIVERA dissents in an opinion, in which Chief Judge WILSON concurs. Judge HALLIGAN took no part.

Order insofar as appealed from affirmed.

[Next page is 901.]

* Designated pursuant to NY Constitution, article VI, § 2.